

AGREEMENT

Between

HAWAIIAN AIRLINES, INC.

And

THE AIRLINE PILOTS

In Service of

HAWAIIAN AIRLINES, INC.

As Represented by

THE AIRLINE PILOTS ASSOCIATION, INTERNATIONAL

2023 PILOTS AGREEMENT

Effective March 2, 2023 to March 2, 2027

THIS AGREEMENT is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC. and the AIRLINE PILOTS in the service of HAWAIIAN AIRLINES, INC. (hereinafter referred to as the “Company”), as represented by the AIRLINE PILOTS ASSOCIATION, INTERNATIONAL (hereinafter referred to as the “Association”) to cover all flying.

Witnesseth:

It is hereby mutually agreed:

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SECTION 1 RECOGNITION, SCOPE, AND JOB SECURITY

A. RECOGNITION

1. The Air Line Pilots Association, International, has furnished to the Company evidence that a majority of the pilots employed by the Company have designated the Association to represent them and in their behalf negotiate and conclude an Agreement with the Company as to hours of labor, wages and other employment conditions covering the pilots in the employ of the Company in accordance with the provisions of Title II of the Railway Labor Act, as amended.
2. The Company recognizes the right of pilots on the Pilots' System Seniority List to perform the Company's flying and operate the Company's aircraft as specified in this Agreement.

B. SCOPE

1. This Agreement covers all revenue flying performed by or for the Company or any Affiliate.
2. As used herein, the term "all revenue flying performed by or for the Company or any Affiliate" shall include, but not be limited to, all flying over the Company's or any Affiliate's present or future routes and extensions thereof, and any contract (government, military or commercial) flying, charter flying and flying subcontracted for or by the Company or any Affiliate and/or subcontracted out by the Company or any Affiliate, any "wet-lease" flying, and any flying under the Company's or an Affiliate's control.
3. Except as provided in Paragraph B6 and B.7 of this Section, all revenue flying by or for the Company or any Affiliate covered by this Agreement shall be performed by pilots whose names appear on the Hawaiian Airlines, Inc. Pilots' System Seniority List under the terms and conditions of the Agreement.
4. No revenue flying covered by this Agreement shall be performed by the Company or an Affiliate until the Company and the Association have signed an agreement covering the rates of pay, rules and working conditions applicable to such flying.
5. In the event that the Company or an Affiliate determines to perform revenue flying which is not already covered by this Agreement, the following procedures will be followed:
 - a. The Company will send written notification to the Chairman of the Hawaiian Airlines Pilots' Master Executive Council of its intent to commence such revenue flying. At the same time, a copy of such notification will be sent to the President of the Association and to The Air Line Pilots Association Contract Administration Office that is then supporting the HAL MEC (currently, the ALPA SEA Contract Administration Office, 18000 International Boulevard, Suite 300, Seattle, WA 98188).
 - b. Within two (2) consecutive calendar days of such notification, the parties will commence conferences in the Company's general offices in Honolulu, Hawaii or at some other mutually agreeable location. Such conferences shall be for the purpose of negotiating the rates of pay, rules and working conditions applicable to such revenue flying. Direct conferences between the parties shall continue for not more than ten (10) consecutive calendar days or until an agreement is reached, whichever occurs first, unless the parties mutually extend such ten (10) day period.
 - c. If no agreement has been reached at the end of such ten (10) day period or any extension thereof, then the open unresolved issues will be submitted promptly for determination by an arbitrator to

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be mutually agreed upon by the parties. The arbitrator shall have the authority and responsibility to hear and determine all of the open unresolved issues.

- d. The hearing before the arbitrator will commence as soon as possible after the ten (10) day period of direct negotiation or any extension thereof. Within ten (10) consecutive calendar days after the close of the hearing, the arbitrator shall furnish each of the parties with a copy of their written decision concerning the open unresolved items and such decision shall be final and binding upon the parties hereto.
 - e. The entire period from notification specified in Subparagraph (a) above until the arbitrator issues their written decision shall include not more than thirty (30) consecutive calendar days, unless mutually extended by the parties hereto.
6. Paragraph B.3. of this Section shall prohibit the Company or an Affiliate of the Company from entering into marketing and related arrangements that permit another air carrier to utilize the Company's designator code, name, logo, marks or cargo manifests in commercial flight operations (any such agreement, a "Code Sharing Agreement"), unless the requirements of either this Paragraph B.6 or of Paragraph B.7 of this Section are satisfied. Paragraph B.3 of this Section shall also prohibit the Company from partly or wholly acquiring, establishing, Controlling, or operating another carrier that does not operate under this Agreement, unless the Company ensures that the requirements of this Paragraph B.6 are satisfied with respect to such carrier and that it operates for Hawaiian as a Feeder Carrier.
- a. This Paragraph B.6 governs "Feeder Carriers," and Paragraph B.7 of this Section 1 governs "Code Share Partners." The term "Feeder Carrier" refers to an air carrier, whether or not partly or wholly owned, Controlled, or operated by the Company or an Affiliate of the Company, that operates under a Code Sharing Agreement using its own operating certificate in lawfully operable commercial flight operations under the following conditions in this Paragraph B.6. The term "Code Share Partner" refers to an air carrier that is not partly or wholly owned, controlled, or operated by the Company or an Affiliate of the Company and operates using such carrier's operating certificate, under the conditions in Paragraph B.7 of this Section.
 - b. A Feeder Carrier acquired, established or operated by the Company, or the portion of a Feeder Carrier operated under a Code Sharing Agreement with the Company, may operate only within the Hawaiian Islands (but not to or from Hawaii).
 - c. A Feeder Carrier acquired, established or operated by the Company, and the portion of a Feeder Carrier operated under a Code Sharing Agreement with the Company, may operate only turboprop aircraft, and such aircraft must be lawfully operable in commercial flight operations with a maximum certificated seating capacity of sixty-nine (69) seats and a maximum certificated gross takeoff weight of no more than 69,000 pounds in passenger operations, or a maximum certificated gross takeoff weight of no more than 69,000 pounds in all-freight operations.
 - d. With respect to Inter-Island Feeder Carriers:
 - 1) An Inter-Island Feeder Carrier will conduct no commercial passenger flight operations of any kind on the following city pairs: HNL-LIH, HNL-ITO, HNL-KOA, and HNL-OGG.
 - 2) Feeder Carriers all freight aircraft may not operate an aggregate of more than the greater of the number of available ton miles operated by the largest air cargo carrier in the Inter-Island

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SECTION 1 RECOGNITION, SCOPE, AND JOB SECURITY

Hawaii market ("Largest Air Cargo Carrier") in the twelve months preceding the January 14th, 2010 or the available ton miles then currently operated by the Largest Air Cargo Carrier.

- 3) The Company will neither furlough any Hawaiian pilots nor reduce the number of block hours the Company operates in 717 or equivalent jet operations within the Hawaiian Islands as a result of initiation or expansion of flying by an Inter-Island Feeder Carrier. The existence of an Inter-Island Feeder Carrier will not by itself be sufficient to demonstrate causation.
 - 4) During any consecutive twelve-month period of Inter-Island Feeder Carrier operation ending on the last day of any calendar month following the effective date of this Agreement, the Company will not operate fewer than twenty-nine thousand (29,000) hours of Inter-Island turbojet block hours measured over the same period.
 - e. The Company shall not be required to apply this Agreement to pilots employed by a Feeder Carrier, and the Association shall make no argument to or in any forum that application of this Agreement to the Feeder Carrier is required by contract or law.
 - f. If the Company establishes a Feeder Carrier, or if it acquires a Feeder Carrier whose pilots are not represented by a union, the Company agrees to recognize, or cause the Feeder Carrier to recognize, the Association as the representative of such pilots upon a lawful demonstration of majority support and will take a neutral position with respect to the Association's efforts to secure and provide that lawful demonstration.
 - g. The Company will make commercially reasonable efforts to obtain the same jumpseat and pass privileges on the aircraft operated by the Feeder Carrier as Hawaiian pilots have on Hawaiian aircraft.
 - h. If the Company chooses to acquire and operate turboprop aircraft on Hawaiian's certificate, then the Parties shall meet to negotiate the rates of pay, rules and working conditions for such aircraft pursuant to Section 26.I, and if no agreement is reached within ninety (90) days, the rates of pay, rules and working conditions for such aircraft shall be determined through Expedited Arbitration pursuant to Section 1.I and according to prevailing industry standards, with each party in such Expedited Arbitration having the right to strike one industry comparable carrier from the Board's consideration.
 - i. The Company will require Feeder Carriers that it wholly owns and operates to provide a right of first interview and hire to furloughed Hawaiian pilots and will use its commercially reasonable best efforts to secure such rights from Feeder Carriers that it partly owns or which operate under a Code Sharing Agreement.
7. Except as expressly permitted in Paragraph B6 of this Section 1, and in this Paragraph B.7, the Company shall not permit any other carrier to utilize the Company's designator code, name, trade name, brand, logo, trademarks, service marks, aircraft livery or aircraft paint scheme without the express written consent of the Association in commercial flight operations. The following provisions of this Paragraph B.7 apply to "Code Share Partners," defined as air carriers, other than Feeder Carriers, that are not partly or wholly owned, Controlled, or operated by the Company or an Affiliate of the Company, and that operate under a Code Sharing Agreement with the Company.

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SECTION 1 RECOGNITION, SCOPE, AND JOB SECURITY

- a. The Company may permit a passenger to book under the HA or HA* code an itinerary that includes a nonstop flight operated by a Code Share Partner that is a Domestic Air Carrier subject to the following limitations:
 - 1) if and only if the flight does not operate between an airport in Hawaii and an airport in the remainder of the United States or, if it is not a Feeder Carrier, between airports in Hawaii;
 - 2) if the flight operates between an airport in Hawaii and a country outside the United States, only if during each calendar quarter the available seat miles scheduled to be operated by the Domestic Air Carrier under the HA or HA* code to or from Hawaii and the country outside the United States do not exceed one-third (1/3) of the available seat miles scheduled to be operated by the Company to or from Hawaii and such country.
- b. The Company may permit a passenger to book under the HA or HA* code an itinerary that includes a nonstop flight operated by a Code Share Partner that is a Foreign Air Carrier only if either (i) the flight does not operate to or from Hawaii, or (ii) it operates between a point in that Code Share Partner's home country and Honolulu or another Company Connecting Airport subject to the limitations of subparagraph 7.c.
- c. For each Foreign Air Carrier that becomes a Code Share Partner after the effective date of this Agreement, and for each Foreign Air Carrier that is a Code Share Partner as of the effective date of this Agreement, for each calendar quarter the Current ASM Ratio for flights scheduled to be operated between that Code Share Partner's home country and Hawaii will not exceed 110% of the Base ASM Ratio for that quarter for such flights.
 - 1) For purposes of this subparagraph 7.c., the "Base ASM Ratio" for a Foreign Air Carrier that is a Code Share Partner means the ratio in a Base Calendar Quarter between (i) a numerator equal to the greater of (a) available seat miles scheduled to be operated in the relevant period by the Foreign Air Carrier on nonstop flights to or from Hawaii and the relevant home country and (b) the number of scheduled available seat miles that would be generated if the Foreign Air Carrier scheduled four flights per week on an A330 aircraft in each direction between Hawaii and such country, and (ii) a denominator equal to the greater of (a) the available seat miles scheduled to be operated in the relevant quarter by the Company to or from Hawaii and such country or (b) the number of scheduled available seat miles that would be generated if the Company scheduled four flights per week on an A330 aircraft in each direction between Hawaii and such country.
 - 2) For a carrier that is a Code Share Partner as of the effective date of this Agreement, a Base Calendar Quarter is a calendar quarter of the year July 1, 2015 to June 30, 2016. For a carrier that becomes a Code Share Partner after the effective date of this Agreement, a Base Calendar Quarter is a calendar quarter of the full year immediately prior to the quarter in which the carrier became a Code Share Partner.
 - 3) For purposes of this subparagraph 7.c, the "Current ASM Ratio" means the ratio in a current calendar quarter between (i) a numerator equal to the available seat miles scheduled to be operated in that quarter by a Code Share Partner on nonstop flights bearing the HA or HA* code to or from Hawaii and the relevant country and (ii) a denominator equal to the greater of (x) the available seat miles scheduled to be operated in that quarter by the Company to or from Hawaii and such country or (y) the number of available seat miles that would be generated if the Company operated four flights per week on an A330 aircraft in each direction between Hawaii and such country.

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- 4) If in any calendar quarter it appears that a Current ASM Ratio for a Code Share Partner will exceed by more than 10% a Base ASM Ratio for that Partner for that quarter, the Company will promptly: (i) notify the chairman of the Hawaiian Pilots' MEC; and (ii) (except as provided in the next sentence) remove from its schedule a sufficient number of nonstop flights scheduled to be operated by the Code Share Partner under the HA or HA* code to or from an airport in Hawaii and the relevant country so that the limit is met for that quarter. If, however, the Company is unable to remove from its schedule a sufficient number of flights scheduled to be operated under the HA or HA* code to satisfy this obligation within the then-current calendar quarter because of either late substitution of larger equipment or late addition of flights scheduled to be operated by the Code Share Partner, then it shall, without exception, assure that the Current ASM Ratio for that Code Share Partner will not exceed by more than 10% the Base ASM Ratio for that Partner for the then-current calendar quarter and the following calendar quarter combined.
- d. The Company will not reduce the number of scheduled available seat miles on nonstop flights operated by the Company to or from such Foreign Air Carrier's home country as the result of any Code Sharing Agreement. The existence of a Code Share Partnership will not by itself be sufficient to demonstrate causation.
- e. For purposes of this Section, a "Code Share Market" is a pair of airports between which passengers may book itineraries entirely using the HA or HA* code that include one or more segments operated by a Code Share Partner using the HA or HA* code. For the same purposes, an "airport" includes not only itself (a "Reference Airport") but also all airports providing scheduled commercial air service whose ARP (Aerodrome Reference Point), per Jeppesen data, is located within fifty (50) nautical miles of the Reference Airport's ARP, except that each airport in the following airport groups should be counted separately: OAK/SFO, JFK/EWR, LAX/SNA/ONT, and NRT/HND.

Examples of Code Share Markets:

- 1) A passenger may book an itinerary under the Company designator code from BOS to HNL via SFO or OAK, from BOS to HNL via ORD to SFO or OAK, or from BOS to HNL via JFK, flying on an aircraft of one or more Domestic Air Carrier Code Share Partners for the segment or segments within the continental United States not served by the Company, and on Company aircraft for the segment to HNL. BOS-HNL is a Code Share Market.
- 2) A passenger may book an itinerary under the Company designator code from MSY via IAH and PHX to HNL, flying on an aircraft of a Domestic Air Carrier Code Share Partner for the segment between MSY and IAH, on an aircraft of the same or other Domestic Air Carrier Code Share Partner between IAH and PHX, and on a Company aircraft for the segment from PHX to HNL. MSY to HNL is a Code Share Market.
- 3) A passenger may book an itinerary under the Company designator code from CTU via PEK to HNL, flying on the aircraft of a Foreign Air Carrier Code Share Partner for the CTU-PEK segment and either a Company aircraft or the aircraft of the Code Share Partner for PEK-HNL. CTU-HNL and PEK-HNL are each a Code Share Market.
- 4) A passenger may book an itinerary under the Company designator code between ORD and MCO flying only the aircraft of a Domestic Air Carrier Code Share Partner. ORD-MCO is a Code Share Market.

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- 5) A passenger may book an itinerary under the Company designator code between FRA and HNL via JFK, flying on the aircraft of a Code Share Partner for the FRA-JFK segment and either a Company aircraft or the aircraft of the Code Share Partner for JFK-HNL. FRA-HNL is a Code Share Market.
- 6) A passenger may book an itinerary under the Company designator code between FRA and LHR, flying on the aircraft of a Code Share Partner for the FRA-LHR segment. FRA-LHR is a Code Share Market if the Company gains authority to operate in that Market.
- f. On a quarterly basis, the Company shall present to ALPA an analysis of the profitability of using Company aircraft to fly in each Code Share Market identified by ALPA, provided that each Code Share Market identified by ALPA is one in which there is a per day average of passengers flying each way in that Market under HA or HA* itineraries operated at least in part by a Code Share Partner, computed over the preceding quarter, of at least ninety (90) passengers. The Company will provide to ALPA, on a confidential basis, information necessary to determine whether this passenger threshold has been met in any Code Share Market in any Quarter.
- g. "Profitability" under subparagraph f. above means that it can be predicted with reasonable certainty that the Company can begin or, if applicable, supplement flying with its own aircraft between two airports in a Code Share Market, and, taking into account the revenues, if any, earned from passengers connecting to the Company's network, 1) operate such flight in the Code Share Market profitably on an annual basis for the fourth year of Company operation based on the Company's standard flight profitability measurement including standard allocation of corporate overhead expenses and investment capital and 2) recover its cumulative investment including start-up losses on the Code Share Market within a period of seventy (70) months. The Company's analysis may also take into account the impact, if any, of initiating service in the Code Share Market on the Company's existing market (e.g., in evaluating MCO-HNL, the Company may consider the impact of MCO-HNL service on the Company's LAX-HNL flight, and may reduce its projection of the profits for the MCO-HNL service by the extent to which such service is projected to reduce the profitability of the LAX-HNL service). ALPA shall enter into a commercially standard confidentiality agreement covering any information provided in such analysis or provided under subparagraph f. above.
- h. If a dispute arises as to whether a Code Share Market satisfies the passenger threshold in subparagraph f. above, or the profitability test in subparagraph g. above, that dispute shall be subject to final and binding, expedited arbitration before the ALPA-Hawaiian System Board of Adjustment sitting with Donald Munroe as the neutral member (or, in his absence, with another neutral member jointly selected by the Parties or, if they are unable to agree on a neutral, then by alternate strikes from a list to be provided in accordance with Section 17.E ()).
- i. If a Code Share Market satisfies the profitability test in paragraph f. above, the Parties shall meet within ninety (90) days to discuss the following options:
 - 1) that the Code Share Agreement continue without Company operation in the Code Share Market;
 - 2) that the Company should begin (or, if applicable, supplement) service in the Code Share Market with its own aircraft, or
 - 3) that the Company should cease placing the HA or HA* code on the segment or segments of the Code Share Market operated by a Code Share Partner (e.g. MCO-LAX).

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- j. If there is no agreement on option 1) of subparagraph h. above, then the Company must either:
 - 1) at the next regularly scheduled meeting of the Board of Directors, seek and obtain Board approval to commence service in the Code Share Market with the Company's own aircraft within a further six (6) month period of time; or
 - 2) within the same period cease placing the HA or HA* code on the segment of the Code Share Market operated by a Code Share Partner.
 - k. If any other dispute arises under Paragraph B.6 of this Section or under this Paragraph B.7, that dispute shall be subject to final and binding expedited arbitration before the ALPA-Hawaiian System Board of Adjustment sitting with Donald Munroe as the neutral member (or, in his absence, with another neutral member selected as specified in subparagraph g. of this Paragraph B.7).
8. Joint Ventures
- a. This Subparagraph 1.B.8 shall govern Joint Ventures between the Company and a Foreign Air Carrier. Joint Ventures with U.S. Air Carriers are not permitted absent agreement of the parties. The Company may not enter into a Joint Venture on terms that differ from those set forth herein unless the Company and ALPA first agree upon such different terms and enter into a new, separate Letter of Agreement setting forth such agreed-upon terms.
 - b. "Joint Venture" for purposes of this Agreement means the business relationship between Hawaiian Airlines and a Foreign Air Carrier in which revenues or the costs and revenues of flights within the Joint Venture are shared between the air carrier partners, as typified by the business relationship between Hawaiian Airlines and the Foreign Air Carrier that is embodied in their Joint Venture Agreement.
 - c. Trunk Route Flying
 - 1) "Trunk Route" for purposes of this Subparagraph 1.B.8 means flights between the home country of the Foreign Air Carrier and the Hawaiian Islands.
 - 2) Prior to implementation of a new Joint Venture with a Foreign Air Carrier, ALPA and the Company must negotiate and agree on a base ASM ratio between Hawaiian Airlines and the Foreign Air Carrier (the "Base HAL/OAL ASM Ratio") on all flights between Hawaii and the home country of the Foreign Air Carrier that is appropriate for that Joint Venture.
 - 3) The agreed-upon Base HAL/OAL ASM Ratio would be measured on a rolling 12-month basis for compliance.
 - d. Joint Venture Profitability
 - 1) On a quarterly basis the Company shall present to ALPA an analysis of the profitability of using Company aircraft to fly in each Joint Venture Market identified by the Association, provided that each Joint Venture Market identified by ALPA is not a Trunk Route, and is one in which there is a per day average of passengers flying each way in that Joint Venture Market under HA or HA* itineraries operated at least in part by the Joint Venture Airline, computed over the preceding quarter, of at least ninety (90) passengers. For purposes of this Subparagraph 1.B.8, a "Joint Venture Market" shall be defined in accordance with the

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agreement between the Company and the Foreign Air Carrier establishing the Joint Venture (“Joint Venture Agreement”). The Company will provide to ALPA, on a confidential basis, information necessary to determine whether this passenger threshold has been met in any Joint Venture Market in any Quarter.

- 2) “Joint Venture Profitability” under Subparagraph 1.8.d.1) above means,
 - a) The results of an analysis that predicts with reasonable certainty that if the Company were to begin new or add additional non-stop flights with its own aircraft between two airports in a Joint Venture Market, such flight in the Joint Venture Market would, (i) be profitable on an annual basis by the fourth year of Company operation based on the Company’s standard flight profitability measurement including standard allocation of corporate overhead expenses and investment capital, and (ii) the Company would recover its cumulative investment including start-up losses in the Joint Venture Market within a period of seventy (70) months.
 - b) The above analysis shall treat this Joint Venture Market as if it is in a silo and shall exclude the impact, if any, of the loss of revenue earned under the Joint Venture, in that Joint Venture Market, due to the new or additional non-stop service by Hawaiian Airlines. ALPA shall enter into a commercially standard confidentiality agreement covering any information provided in such analysis or provided under Subparagraph 1.8.d.2) above.
 - c) If a dispute arises as to whether a Joint Venture Market satisfies the passenger threshold in Subparagraph 1.8.d.1) above, or whether the Joint Venture Profitability test in Subparagraph 1.8.d.2) above has been satisfied, that dispute shall be subject to final and binding arbitration. The dispute shall be heard expeditiously no later than thirty (30) days following the submission to the System Board and decided expeditiously no later than sixty (60) days after submission to the System Board, unless the parties agree otherwise in writing. The parties agree to abide by any lawful arbitration award that is issued. If the parties are unable to agree on a neutral, the arbitrator shall be chosen by alternate strikes from a list to be provided in accordance with Subsection 17.E (The Panel of Referees (Arbitrators)) of the PWA.
 - d) Upon the successful satisfaction of the Joint Venture Profitably test the Company must:
 - (1) start operating the route within eighteen (18) months after the successful satisfaction of the Joint Venture Profitability test, with the announcement of the route to occur no later than twelve (12) months after the successful satisfaction of the Joint Venture Profitability test; or
 - (2) start operating a substantially equivalent route or routes (measured in terms of total block hours and ASMs) within eighteen (18) months after the successful satisfaction of the Joint Venture Profitability test, with the announcement to occur no later than twelve (12) months after the successful satisfaction of the Joint Venture Profitability test. The substantially equivalent route or routes must have not been announced prior to the date of request of the Joint Venture Profitability test; or
- 3) cease placing the HA or HA* code on the relevant segment or segments of the Joint Venture Market operated by the other Joint Venture air carrier (the “OAL”).

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e. Information Sharing

- 1) The Company will share the information described below with the Scope Review Committee, upon execution of a commercially standard confidentiality agreement if necessary.
- 2) Monthly Report: The Company will provide a monthly report that will contain:
 - a) HA* passengers traveling on the flights of the OAL on Trunk Routes, and on routes beyond and behind Trunk Routes;
 - b) OAL* passengers traveling on HA flights on Trunk Routes, and on routes beyond and behind Trunk Routes.
- 3) Quarterly Meeting: The Scope Review Committee will meet quarterly to review the following information:
 - a) Equity stakes in any Foreign or Domestic Air Carrier;
 - b) Block hours, broken down, on a quarterly basis, by fleet within the Joint Venture;
 - c) ASMs, broken down, on quarterly basis, by markets within the Joint Venture;
 - d) Any agreement, arrangement, or plan the Company has, that provides or that could provide for the creation of a new Foreign Air Carrier over which the Company has Control and the substance of or describing any such agreement, arrangement, or plan.
 - e) HA* passengers traveling on OAL flights
 - (1) On Trunk Routes;
 - (2) On routes beyond and behind Trunk Routes
 - f) OAL* passengers traveling on HA flights
 - (1) On Trunk Routes;
 - (2) On routes beyond and behind Trunk Routes
- 4) The Company will share the information described below, upon execution of a commercially standard confidentiality agreement, with the Scope Review Committee Chairman, the MEC Chairman, ALPA Economic & Financial Analyst, and ALPA Legal Counsel.
 - a) The Joint Venture revenue sharing formula when it is finalized; and
 - b) on an annual basis, the Revenue Share Statement or similarly titled document prepared in accordance with the Joint Venture Agreement.
- 5) The Company will provide all the above listed information in hard copy or PDF format.

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- f. With the exception of current PWA provisions regarding freight operations or aircraft, the Joint Venture Agreement will not include all-freighter operations.
 - g. In the event of a lawful primary strike against Hawaiian Airlines by Hawaiian pilots, no airline that is a party to a Joint Venture Agreement with Hawaiian Airlines will operate any HA or HA* itineraries at any time during the strike.
 - h. Any and all disputes concerning alleged violation of this Letter of Agreement shall be resolved by final and binding arbitration. The Company and its Affiliates specifically agree to arbitrate any grievance permitted under the Railway Labor Act filed by the Association alleging violation of this Letter of Agreement on an expedited basis directly before the System Board of Adjustment sitting with a neutral member. All provisions of the Railway Labor Act shall bind the Arbitrator. The dispute shall be heard expeditiously no later than thirty (30) days following the submission to the System Board and decided expeditiously no later than sixty (60) days after submission, unless the parties agree otherwise in writing. The parties agree to abide by any lawful arbitration award that is issued. The parties further expressly agree that any violation of this Letter of Agreement shall constitute irreparable injury for which no adequate remedy at law exists.
9. The Company and the Association shall establish a Scope Review Committee comprised of the Senior Vice-President of Global Sales and Alliances and Vice-President Revenue Management and Network Planning (or other comparable title) and another Company representative and three (3) pilots designated by the Association's Hawaiian Master Executive Council. The Scope Review Committee shall meet periodically, but no less than quarterly, to review the financial and operating results of any of the Company's code sharing agreements with other carriers and to ensure that the Company is in compliance with Section 1B of this Agreement. The Company shall provide the Scope Review Committee and the Association's economic and legal advisors, under a commercially standard confidentiality agreement if necessary, its best available financial and operating information concerning the Company's code sharing practices with other carriers.

C. PARENT, SUBSIDIARY, AFFILIATE OR SUCCESSOR COMPANY(S)

- 1. The provisions of this Agreement shall be binding upon any Parent, Affiliate or Successor.
- 2. The Company and its Affiliates shall require any successor, assign, assignee, transferee, administrator, executor and/or trustee of the Company or of a Parent (a "Successor") resulting from the transfer (in a single transaction or in multi-step transactions) to the Successor of the ownership and/or control of all or substantially all of the equity securities and/or assets of the Company (a "Successorship Transaction") to employ the pilots on the Hawaiian Airlines System Seniority List in accordance with the provisions of the Agreement and to assume and be bound by the Agreement.
- 3. The Company and its Affiliates agree to give written notice of the terms of this Agreement to a proposed Successor, before concluding any Successorship Transaction. The Company and its Affiliates agree that no agreement or other legally binding commitment involving a Successorship Transaction will be signed or otherwise entered into, unless it is agreed in writing as a material and irrevocable condition of entering into, concluding and implementing the transaction, that this Agreement and recognition of the Association is assumed by the Successor(s) and that the pilots on the Hawaiian Airlines Pilots' System Seniority List will be employed in accordance with the provisions of this Agreement. The Company will provide the Association with the details of, and material agreements related to, any such transaction in a timely manner.

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4. The Company will not enter into, maintain, or permit any transaction, agreement or arrangement which provides for, permits, facilitates, creates, maintains or results in the establishment of a Parent or an Affiliate unless the Parent or Affiliate agrees in writing, as an irrevocable condition of such transaction, agreement or arrangement, to be bound by the Agreement in the same manner as the Company as if every reference to the "Company" in this Agreement also referred to and bound the Parent or Affiliate.

D. LABOR PROTECTIVE PROVISIONS

1. The pilots will be provided with the same labor protective provisions specified by the Civil Aeronautics Board in Section 2, 3, and 13 only of the Allegheny-Mohawk merger conditions as amended (herein "LPP") as a material and irrevocable written condition of any future merger or acquisition, as defined by Section 2(a) of said LPP, involving the Company. The written condition to provide the pilots with said LPP shall be embodied in a signed agreement between/among the parties to the transaction, which shall specifically:
 - a. Bind all parties to the transaction, including the Company and any successor of the Company, to assume and carry out the obligation to provide the pilots with said LPP as a material and irrevocable condition of entering into, concluding and implementing their transaction.
 - b. Provide that the Association and affected pilots shall have all necessary and required rights and standing to invoke said LPP, and to take such action as is necessary to enforce the application of said LPP, against all parties to the transaction, including the Company and any successor of the Company; provided that, with respect to the integration of seniority lists between/among two or more groups represented by the Association, the Association merger policy shall be applied according to its terms before Section 13 of the said LPP may be invoked as to any dispute or controversy over integration of seniority lists, and that Section 13 may be invoked on behalf of the pilots only by the Association as bargaining representative.
 - c. Provide that the Association and the affected pilots shall be entitled to a remedy of specific performance, including injunctive relief, against all parties to the transaction, including the Company and any successor of the Company, to enforce the application of said LPP.
2. The signed agreement required by paragraph 1 above shall be provided to the Association within seventy-two (72) hours of signing any agreement or other legally binding merger or acquisition commitment.

E. JOB SECURITY

1. If, within any twelve (12) month period, the Company or an Affiliate sells, transfers or disposes in a single transaction or a series of transactions assets, net of asset purchases or acquisitions during the same 12 month period, (i) which constitute twenty percent (20%) or more of the value of the assets (including the Company's aircraft, whether owned or leased) of the Company, or (ii) whose sale directly or indirectly results in a reduction of the Company's monthly block hours or available seat miles by twenty percent (20%) or more (any such transaction or series of transactions referred to herein as a "Triggering Event"), then:
 - a. In the event (i) another air carrier or (ii) an Entity that intends to operate, own or Control an air carrier following its acquisition of the Company's assets (any such Entity, a "Transferee") purchases or acquires any aircraft, international route or international route authority of the

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Company or an Affiliate as part of any transaction or series of transactions that constitutes a Triggering Event, pilots from the Hawaiian Airlines Pilots' System Seniority List (the "Transferring Pilots") shall be offered the opportunity to transfer to the Transferee. The number of transferring pilots shall be determined by calculating the average pilot staffing on a monthly basis, rounded to the nearest whole number, over the prior twelve (12) months attributable to (i) the international route or international route authority transferred to the Transferee in connection with the Triggering Event; or (ii) the aircraft or aircraft interest transferred to the Transferee in connection with the Triggering Event; and

- b. The Transferring Pilots shall be selected on the basis of seniority on the Hawaiian Airlines Pilots' System Seniority List from those pilots who are qualified to operate the aircraft transferred to the Transferee; provided that a pilot shall be deemed "qualified" to transfer if they are qualified without additional long course training (other than recurrent or substantially equivalent training, proficiency check, or training necessary to qualify pilots on the specific operations procedures of the Transferee) to operate the aircraft transferred to the Transferee in the case of an aircraft transfer or the aircraft the Transferee intends to operate on the acquired international route in the case of an international route or international route authority transfer; and
 - c. The Company and its Affiliates shall require the Transferee(s), and the Transferee(s) shall agree: (i) to employ the Transferring Pilots under rates of pay, rules and working conditions no less favorable than those maintained by the Transferee's pilots; and (ii) to integrate the Transferring pilots into the Transferee's pilot seniority list pursuant to Association Merger Policy if the Transferee's pilots are represented by the Association and otherwise pursuant to Sections 3 and 13 of the Allegheny-Mohawk Labor Protective Provisions. There shall be no requirement that the seniority integration of the Transferring Pilots be completed simultaneous with the transfer of the international route, international route authority or aircraft and it is expressly agreed that such seniority integration may be completed after such transfer; and
 - d. Any pilot who transfers to the Transferee shall be required to resign from Hawaiian Airlines as a condition of the transfer.
2. The provisions of Paragraph E of this Section shall not apply to: (i) aircraft sale-leaseback for financing purposes, (ii) the transfer of international route(s), international route authority or aircraft caused by circumstances over which the Company has no control. The phrase "circumstances over which the Company has no control" means: (i) an act of nature; (ii) labor dispute within the Company; (iii) grounding of a substantial number of the Company's aircraft by government agency; (iv) reduction in flying operations because of a decrease in available fuel supply or other critical material for the Company's operations; (v) war emergency; and (vi) involuntary revocation of the Company's operation certificate(s).
 3. The rights and protection provided the Association and the Hawaiian pilots under Paragraph E of this Section are in addition to any other rights and protection contained in any other agreement involving the Association and the Hawaiian pilots.
 4. The Company and its Affiliates shall not conclude or enter into any agreement for any international route, international route authority or aircraft transfer unless the Transferee(s) agree in writing to be bound by the applicable terms of Paragraph E of this Section.
 5. The Company and its Affiliates agree, and shall require the Transferee(s) to agree, to resolve all disputes concerning the interpretation or application of Paragraph E of this Section through final and binding arbitration on an expedited basis directly before the ALPA-Hawaiian System Board of

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Adjustment sitting with a neutral arbitrator pursuant to Section 1 of this Agreement, except that the arbitrator shall be selected from a panel of neutral Referees provided by the National Mediation Board upon the request of any party. If the Association submits a grievance alleging a violation of Paragraph E of this Section, the challenged transaction will be held in abeyance pending the arbitrator's disposition of the Association's grievance.

F. CHANGE IN CONTROL

1. In the event a "Change of Control" occurs and within two (2) years of the Change of Control the person(s) exercising such control (i) replaces a majority of the directors of the Company or of Hawaiian Holdings, Inc. ("Holdings"), excluding replacements as the result of death, disability or reaching of retirement age, or (ii) through making shareholder proposals or initiating proxy solicitations, directs Holdings' board and/or influences the operations of the Company (a "Change of Control Event"), then: (a) the Association shall have the right in its sole discretion to extend the duration of the Agreement for up to two (2) years from the date of the Change of Control Event; and (b) Holdings and the Company shall at Holdings option either (i) issue to pilots common shares of Holdings having an aggregate market value of \$1,500,000 at the time of the Change of Control Event, or (ii) pay \$1,500,000 in cash. If Holdings elects to issue common stock it shall be issued within five (5) business days after the date of the Change of Control Event, and the number of shares to be issued shall be \$1,500,000 divided by the average closing price for the five (5) business days preceding the third business day after the date of Change of Control Event. If Holdings elects to issue cash, it shall do so no later than eight (8) business days following the date of the Change of Control Event. The stock or cash shall be allocated based on W-2 wages for the tax year immediately preceding the issuance of the stock. A "Change of Control" occurs when a purchaser or a group of purchasers acting in concert (as defined in Section 13(d) of the Securities Exchange Act of 1934, as amended, and the rules and regulations promulgated thereunder), through a single transaction or a series of related transactions, (i) acquires more than 40% of the capital stock of Holdings or the Company on a fully diluted basis, or (ii) obtains the right to elect the majority of Holdings' directors.
2. An "Adverse Transaction" shall mean: (a) any changes made in operations within two (2) years after either the Effective Date of the Joint Plan or a Change of Control, that reduce the total number of block hours flown by the Company during any 12 month period by 15% or more compared to the prior 12 month period or that reduce the number of the Company's aircraft to fewer than twenty (20) (an "Operational Reduction"); (b) a sale of all or substantially all of the equity securities or assets of the Company (a "Sale"); or (c) a merger of the Company with or into another entity, regardless of which entity is the surviving entity and which merger is used to implement an acquisition of the Company by another airline (a "Merger"). In the event that an "Adverse Transaction" occurs then, in addition to all other rights and remedies specified in the Agreement or otherwise available at law, the Association shall have the right in its sole discretion to (A) extend the duration of the Agreement for up to two (2) years past the Change of Control date, in the event of an Operational Reduction, or two (2) years past the Adverse Transaction date in the event of a Sale or Merger; and (B) obtain an agreement from the Company pursuant to which no active pilots (less the number of pilots on leave) who are on the seniority list on the date of the Adverse Transaction shall be furloughed from the date the Adverse Transaction through the amendable date, as it may be extended hereunder, except for furloughs that occur in the ordinary course for reasons such as but not limited to seasonality and aircraft placed out of service except as a result of the Adverse Transaction. In addition, Holdings and the Company shall at Holdings' option either (i) issue to pilots common shares of Holdings having an aggregate market value of \$1,500,000 at the time of the Adverse Transaction, or (ii) pay \$1,500,000 in cash. If Holding elects to issue common stock it shall be issued within five (5) business days after the effective date of the Adverse Transaction, and the number of shares to be

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issued shall be \$1,500,000 divided by the average closing price for the five (5) business days preceding the third business day after the date the Adverse Transaction is publicly announced. If Holdings elects to issue cash, it shall do so no later than eight (8) business days following the effective date of the Adverse Transaction. The stock or cash shall be allocated based on W-2 wages for the tax year immediately preceding the issuance of the stock. In the event of a Merger, the furlough protection provided in (B) herein shall only be required of the Company until such time as the seniority lists and collective bargaining agreements of the merged companies are combined, and the Company hereby agrees to make such operational integration of the two carriers a condition of such Merger. The Company agrees that it shall provide the Association with sufficiently detailed information regarding a prospective Adverse Transaction on which to make the determination described herein, on or before the later of (x) 30 days prior to the effective date of the proposed Adverse Transaction, or (y) as soon as legally practicable based on advice of counsel to Holdings.

3. For purposes of this Section 1.F., any reference to the Company or Holdings shall be deemed to include any successor or parent entity of either the Company or Holdings; provided, however, in no event shall a single transfer or disposition of assets or equity securities of the Company, Holdings or any successor or predecessor of either the Company or Holdings trigger both a Change of Control Event and an Adverse Transaction for purposes of this Section 1.F., whether or not coupled with a replacement of a majority of the directors of the Company or Holdings in connection with a Sale or Merger, as both are defined above.

G. RELEASE OF INFORMATION

The Company will make available to the Association, on a confidential basis and subject to applicable legal requirements of law, the following information:

1. Statement of Operations/Monthly Income or P&L Statement, by Market and Combined Operations: Quarterly and Year-to-Date: actuals on an accrual basis.
2. Statement of Cash Flows: Quarterly Year-to-Date actuals
3. Balance Sheet: Quarterly Year-to-Date Actuals
4. Operating Statistics: Quarterly and Year-to-Date actuals, forecast (with any revisions or updates), including the following:

Passengers, Average Fares, Revenue, RPMs, ASMs, Load Factor and Flights by both route and aircraft type for: Transpac, Southpac, Inter-Island, Charters and all other flights by Market and by Aircraft Type
5. All Audited Financial Statements SEC Filings

H. EXPEDITED ARBITRATION

1. Any and all disputes concerning alleged violation of this Section shall be resolved by final and binding arbitration. The Company and its Affiliates specifically agree to arbitrate any grievance permitted under the Railway Labor Act filed by the Association alleging violation of this Section on an expedited basis directly before the System Board of Adjustment sitting with a neutral member. All provisions of the Railway Labor Act shall bind the Arbitrator. The dispute shall be heard

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expeditiously no later than thirty (30) days following the submission to the System Board and decided expeditiously no later than sixty (60) days after submission, unless the parties agree otherwise in writing. The parties agree to abide by any lawful arbitration award that is issued. The parties further expressly agree that any violation of this Section shall constitute irreparable injury for which no adequate remedy at law exists.

I. DEFINITIONS

The following definitions shall apply to the capitalized terms in this Section 1 of the Agreement:

1. Agreement. The term "Agreement" means and includes this collective bargaining agreement between the Association and the Company and any and all other agreements between the Association and the Company or among the Association, the Company and its Affiliates.
2. Entity. The term "Entity" shall mean any business form of any kind, including without limitation any natural person, corporation, company, unincorporated association, division, partnership, trustee, trust, receivership, joint venture, administrator or executor.
3. Control. Entity A shall be deemed to "Control" Entity B if Entity A, whether directly or indirectly, (a) maintains the power, right, or authority to manage or direct the management of Entity B's operations, or (b) maintains the power, right or authority to appoint a majority of Entity B's Board of Directors or similar governing body, or (c) maintains the power, right or authority to appoint a minority of B's Board of Directors or similar governing body, if such minority maintains the power, right or authority to appoint or remove any of B's executive officers, to approve a substantial part of B's business or operating plans or to approve a substantial part of B's debt or equity offerings, or (d) owns securities that constitute, are exercisable for or are exchangeable into forty percent (40%) or more of Entity B's outstanding common stock or otherwise owns forty percent (40%) or more of Entity B.
4. Common Control. A shall be deemed to be under "Common Control" with B if any third person or entity Controls both A and B whether directly or indirectly through the Control of other persons or entities that Control A and B.
5. Parent. As used in the Agreement, the term "Parent" refers to any Entity that Controls the Company, whether directly or indirectly through the Control of other Entities that Control the Company.
6. Affiliates. As used in the Agreement, the term "Affiliate" refers to (i) any Parent, (ii) any Entity that Controls or manages the Company or any Entity that the Company Controls or manages, or (iii) any Entity under Common Control with the Company, or (iv) any other corporate subsidiary, parent or division of the Company, a Parent or any other Affiliate.
7. Domestic Air Carrier. As used in this Agreement, the term "Domestic Air Carrier" means an "air carrier" as defined in 49 U.S.C. Section 40102(a)(2) holding an air carrier certificate issued by the Administrator of the FAA under 14 C.F.R. Section 119.5.
8. Foreign Air Carrier. As used in this Agreement, the term "Foreign Air Carrier" means a "foreign air carrier" as defined in 49 U.S.C. Section 40102(a)(21).
9. Scheduled. As used in this Section 1, the term "scheduled" in reference to a flight, seat, or itinerary means one that is offered for sale to the public via the OAG and similar services.

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SECTION 1 RECOGNITION, SCOPE, AND JOB SECURITY

10. Company Connecting Airport. As used in this Section 1, the term “Company Connecting Airport” means an airport in Hawaii served by thirty (30) or more scheduled Company departures per day.
11. Market. As used in this Section 1, a “Market” is a pair of airports between which a passenger may book a one-way itinerary on one or more nonstop flights.

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SECTION 2

DEFINITIONS

A. The following terms as used in this Agreement shall be construed as follows:

1. 767 AIRCRAFT: It shall be understood that for the purposes of this agreement, all references to “767” shall incorporate 757 aircraft as well.
2. ACTIVATED/ACTIVATION: Means the release of a pilot to line flying in an awarded or assigned Vacancy as the result of the pilot being:
 - a. Trained,
 - b. Qualified, and
 - c. Flying a revenue Segment in the Category of such vacancy.
3. ACTIVE DEVICE TIME: Means time spent in a flight simulator or under direction of an Instructor or Evaluator pilot. This does not include time spent while waiting for simulator or device maintenance or restarts, but does include time spent with the device or simulator motion or visual system not moving but instruction is being received.
4. AIRCRAFT QUALIFIED:
 - a. Used when referring to a pilot’s qualification to bid for or hold a Category Vacancy, and
 - b. Means a pilot who has within the preceding thirty (30) months qualified with Hawaiian Airlines to perform as a cockpit crewmember.
5. AIRPORT RESERVE/AIRPORT RESERVE CREW:

An Interisland Pilot or Interisland Crew assigned an Airport Reserve Grouping.
6. AIRPORT RESERVE GROUPING: Means a Flight Grouping that is designated as an Airport Reserve Grouping, and meets the requirements in Subparagraph 21.F.8, 22.C.1, and 22.D.7.
7. AWARD: Shall mean to be granted in accordance with the provisions of this Agreement.
8. BID RUN: Means a Monthly Run that at the time it is awarded has:
 - a. For passenger pilot Categories, projected Pay and Credit hours within that month’s published ALV window per Subparagraph 21.D.1.d.7); or
 - 1) Projected Pay and Credit hours less than that month’s published ALV window, with eighteen (18) days of work including awarded Flight Groupings and pre known absences, excluding training blocks in excess of six (6) days.
 - b. For freight pilot Categories, seventy-five (75) or more hours of projected Pay and Credit time for the month; or
 - 1) Projected Pay and Credit less than seventy-five (75) hours, with sixteen (16) days of work including awarded Flight Groupings and pre known absences, excluding training blocks in excess of six (6) days.
9. CALLOUT ORDER: Means the sequence wherein Crew Scheduling shall contact reserve pilots for the purpose of giving them a flight assignment.

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DEFINITIONS

10. CAPTAIN:

- a. Means a pilot who is in command of the aircraft; and
- b. Has authority over all crewmembers for the purpose of operating the aircraft while under way; and
- c. Is responsible for the manipulation of, or who manipulates, the flight controls of the aircraft while under way, including, takeoff and landing of such aircraft; and
- d. Is properly qualified to serve as and holds a currently effective Airman's Certificate authorizing them to serve as such.

11. CATEGORY:

- a. Means a pilot's status (Captain and First Officer) in an equipment type and the type of operation (freight ("F")/passenger (indicated by absence of "F" designation) (e.g., Captain A330F; First Officer A330; Captain A321; First Officer B717; etc.)

12. CATEGORY VACANCY or VACANCY:

- a. Means the requirement for a pilot in a particular:
 - a. Pilot status;
 - b. Type of equipment;
 - c. Domicile; and
 - d. Operation
 - a) Passenger
 - b) Freight (F)
- b. A pilot occupies a Category Vacancy:
 - a. Upon completion of IOE; and
 - b. On or after their Activation date; unless the pilot:
 - 1) Has a delay in Activation; or
 - 2) Is Activated early.

13. CURRENTLY QUALIFIED:

- a. Used when referring to a pilot's qualification to bid for or hold a Category Vacancy; and
- b. Means a pilot who requires no ground or flight training other than pilot recent experience (FAR 121.439), or a proficiency check to perform as a cockpit crewmember in the status in the equipment posted for bid.

14. DEADHEAD/DEADHEADING: Means the transport by air or surface vehicle of a pilot from one point to another, pursuant to Company orders, for the purpose of:

- a. Performing any duty under this Agreement after arrival at the destination point, or
- b. Returning after having performed such duty.

15. DELAY:

- a. Delay exists if and only if:
 - 1) The delay in the departure time is the only change; provided, as soon as a delay exceeds the scheduled departure time of the next operation of the originally scheduled HAL flight, it will then be considered a Reassignment except during any time period when there are no flights (HAL or Other Air Line (OAL)) operating out of the departure airport; or

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SECTION 2

DEFINITIONS

- 2) The pilot is Deadheaded to the pilot's Domicile and arrives not later than eighteen (18) hours from the end of the Footprint of the original Flight Grouping; or
 - 3) The pilot ferries an aircraft to the pilot's Domicile and, the ferry flight is no later than two (2) hours after the first operating HAL flight(s) that routes to the pilot's Domicile.
 - b. If the Company obtains extra utilization from the pilot beyond the original city pair (even extra availability that does not result in flight operations), it is not a case of "delay," provided that if the Company utilizes a pilot to operate a flight(s) or Deadhead (that does not return the pilot to their Domicile) that occurs entirely within the original Flight Grouping (an "internal assignment"), and the internal assignment does not cause any delay of a flight from the original Flight Grouping, the delay language in this Subparagraph 2.A.15.a shall apply. If the internal assignment causes a delay of a flight from the original Flight Grouping in excess of twelve (12) hours from the end of the Footprint, the delay shall be regarded as a reassignment.
16. DELAY IN ACTIVATION: Means a pilot has not been Activated in their awarded or assigned Category Vacancy by the Effective Date.
17. DIVERSION: When a flight takes off from an airport, and is then rerouted during flight to a different airport; provided, that the pilot then continues to the originally intended destination (irrespective of any intervening rest period); and provided further that if a pilot subsequently operates a different flight(s), the subsequent different flight(s) will then be considered a Reassignment.
- a. If the pilot, following a Diversion, subsequently operates a flight that continues to transport any of the original revenue passenger(s) directly to the original intended destination, it is not considered "a different flight."
 - b. If the pilot, following a Diversion, subsequently operates a flight without any of the original revenue passengers, it shall be considered "a different flight," and thus be considered a Reassignment.
18. DOMICILE and PERMANENT DOMICILE:
- a. Shall be interchangeable throughout the Agreement.
 - b. Means any Domicile within the fifty (50) United States so designated by the Company.
19. DUTY PERIOD:
- a. Interisland (B717)
 - 1) Defined as a period of time beginning:
 - a) In-Domicile: thirty (30) minutes before the scheduled departure of their first flight of the day or whenever the pilot is required to report for duty, whichever is earlier; and
 - b) Out of Domicile: thirty-five (35) minutes before the scheduled departure of their first flight of the day or whenever the pilot is required to report for duty, whichever is earlier;
 - (1) unless separate transportation for pilots is provided that is planned to arrive at the airport thirty (30) minutes prior to departure, at which point the Duty Period shall begin thirty (30) minutes prior to departure.
 - 2) Duty Period ends:
 - a) Either fifteen (15) minutes after scheduled or actual block-in; or until the pilot is released from duty at their Domicile, whichever is greater; or
 - b) On layovers, when the pilot is placed into crew rest in accordance with Subsection 10.E (Rest Periods).
 - 3) The scheduled Duty Period shall be compared with the actual Duty Period for Pay and Credit purposes.

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- b. International (A350, A321, A330, B767 and B787)
 - 1) Defined as a period of time beginning:
 - a) In-Domicile one (1) hour before the scheduled departure of their first flight following a rest period, as provided in Subsection 10.E (Rest Periods); and
 - b) Out of Domicile- seventy-five (75) minutes before the scheduled departure of their first flight following a rest period, as provided in Subsection 10.E (Rest Periods);
 - (1) unless separate transportation for pilots is provided that is planned to arrive at the airport sixty (60) minutes prior to departure, at which point the Duty Period shall begin sixty (60) minutes prior to departure.
 - a. Duty Period ends:
 - 1) Either fifteen (15) minutes after scheduled or actual block-in; or
 - 2) When required to clear Customs, thirty (30) minutes after scheduled or actual block-in; or
 - 3) When pilot is released from duty, whichever is later.
 - 4) The scheduled Duty Period shall be compared with the actual Duty Period for Pay and Credit purposes.
- 20. DUTY RIG: Defined as sixty percent (60%) Pay and Credit for the “greater of” all time an Interisland Pilot is scheduled or actually remains in a Duty Period.
- 21. EARLY ACTIVATION: Means the Activation of a pilot to an awarded or assigned Category Vacancy prior to the effective date of such Vacancy.
- 22. EFFECTIVE DATE:
 - a. Interchangeable with the phrase “originally published Effective Date of the award.”
 - b. Means the planned date that a pilot is “expected to be Activated” in an awarded or assigned Category Vacancy.
- 23. ENROUTE STOP
 - a. A scheduled or unscheduled stop after the pilot’s flight schedule is published, and is
 - b. A stop along the general routing of the Trip with no backtracking, and
 - c. Such Trip retains the same flight numbers and destination.
- 24. EXCEPT AS OTHERWISE PROVIDED HEREIN: Means, reads, and is interchangeable with “except as otherwise provided for in this Agreement.”
- 25. EXTENDED RANGE CREW: Means a four (4) person flight crew consisting of one Captain, one type-rated First Officer, and two additional First Officers. The Company may, in its discretion, choose to staff an Extended Range Crew with two Captains and two First Officers.
- 26. FIRST OFFICER (FO):
 - a. Means a pilot who is second in command of the aircraft; and
 - b. Has authority over all crewmembers for the purpose of operating the aircraft while underway, and
 - c. Part of whose duty it is to assist or relieve the Captain in the manipulation of the flight controls of the aircraft while underway, including, takeoff and landing of such aircraft; and
 - d. Is properly qualified to serve as, and holds a currently effective Airman’s Certificate authorizing them to serve as such.

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27. FLIGHT GROUPING: Means a number of flights and/or Deadheading, grouped together in such a manner that one (1) crew can fly the complete group within the flight time and/or duty time limitations set forth in this Agreement and applicable FARs.
28. FLIGHT TIME (Block-to-block): Means the time from the moment an aircraft moves from the blocks for the purposes of flight until the time the aircraft comes to rest at the next point of blocking.
29. FLIGHT TIME PAY AND CREDIT:
- a. Means that the flight time shall be credited to the pilot's time as though they had flown the flight, and shall be included as part of their maximum pay time for that month.
 - b. They shall be paid as stipulated in the pilot pay sections of this Agreement.
30. FLIGHT TRAINING DEVICE: A static training device that replicates an aircraft flight deck in either an open or closed design and that contains instruments, equipment panels, and controls, including the equipment and computer programs necessary to perform aircraft operations in ground and flight conditions.
31. FLYING PAY PURPOSES: Means hours on scheduled and extra-section flights for which pilots receive pay in accordance with pay differentials outlined in this Agreement and for the following non-scheduled flights:
- a. Publicity, charters, scenic, and survey flights;
 - b. Attempts, rerouting, instructing, and ferrying flights;
 - c. Test flights (engine, instrument, plane and radio, and airway nav-aids); and
 - d. Experimental, and proving of aircraft and facilities flights.
32. FOOTPRINT: Means the time beginning at the originally scheduled time of check-in of a Flight Grouping and continuing until the originally scheduled release from duty time for that Flight Grouping.
33. FREE AND CLEAR RESERVE RUN PILOT: Means a reserve pilot on any given day(s) throughout the month that does not have any conflicting projected Flight Grouping(s).
34. FULL FLIGHT SIMULATOR: A Flight Training Device that has at least six (6) axes of movement.
35. INTERISLAND FLYING: Means all flying done between the main Hawaiian group consisting of Ni'ihau, Kaua'i, O'ahu, Moloka'i, Lana'i, Maui, Kaho'olawe, and Hawai'i.
36. INTERISLAND PILOT or CREW:
- a. A pilot(s) holding a Category Vacancy in the B717; or
 - b. An A321, A330, B787, or B767 pilot performing Interisland flying other than a repositioning flight.
37. INTERNATIONAL FLYING: Means any flying other than Interisland Flying.
38. INTERNATIONAL PILOT or CREW: Means a pilot(s) holding a Category Vacancy in the A321, A330, B787, or B767.
39. INTERNATIONAL RELIEF OFFICER (IRO):

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- a. Means a First Officer who has voluntarily been qualified and is thereafter required to maintain the qualifications (including First Class medical certificate) required by the FARs to provide enroute relief for the Captain or First Officer.
 - b. Current IRO designation shall be a qualification required for the award of IRO groupings as part of the monthly PBS bid award. IRO will not be a separate Category Vacancy.
40. IRO CREW:
- a. Means a crew consisting of a Captain and First Officer augmented by a currently qualified Captain or an International Relief Officer, except that if a flight assignment consists of more than one Segment in the Duty Period and all Segments are more than two (2) hours, then the crew shall consist of two (2) Captains and one (1) First Officer.
 - b. A pilot who is receiving IOE (not a recurrent line check) may not be included as one of the three (3) members of an IRO crew.
 - c. IRO crewmembers must be on the Pilots' System Seniority List.
 - d. The IRO Crew provisions of this Agreement shall apply whenever the Company augments a two (2) person cockpit crew with one additional crewmember on any given flight Segment for any reason (e.g., FAR or contract compliance, or Company convenience).
41. LEGAL AND AVAILABLE: Phrase used to describe a pilot who may be assigned a Segment(s) or Flight Grouping(s), on a specific day, because they:
- a. Have a total projected monthly Pay and Credit time that will not exceed the monthly cap;
 - b. Have a sufficient number of consecutive work days without changing days off to accommodate such Segment(s) or Flight Grouping(s); and
 - c. Complies with other contractual provisions in the Agreement, for example, Subsection 10.E (Rest Periods).
42. LOCAL DOMICILE TIME (LDT): Time at the pilot's base or Domicile.
43. LOCAL TIME (LT): Time of day at that specific geographic location.
44. MILE: Means statute mile.
45. MIXED FLYING: Means, notwithstanding Subsection A.37 (International Flying) of this Section 2 (Definitions), a Duty Period that consists of a Segment of at least three (3) hours and at least one (1) interisland Segment, in addition to a single Repositioning Flight associated with an international Segment. Such flying shall be performed by International Pilots in accordance with international rules, except as otherwise provided in this Agreement.
46. MIXED RESERVE/MIXED RESERVE RUN: Shall be any pilot whose monthly schedule includes both Reserve days and Flight Grouping(s) but has less than ALV minus nine (-9) hours of projected Pay and Credit time for the month.
47. MONTH:
- a. Means the period from the first day of, up to and including the last day of each calendar month of the year;
 - b. Except that, for pilot scheduling and pay purposes, months will be deemed to have the number of days as indicated below:

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30 days	31 days
January (1/1-1/30)	May (5/1-5/31)
February* (1/31-3/1)	June (6/1-7/1)
March (3/2-3/31)	September (8/31-9/30)
April (4/1-4/30)	October (10/1-10/31)
July (7/2-7/31)	November (11/1-12/1)
August (8/1-8/30)	---
December (12/2-12/31)	---

* In leap years, February will have thirty one (31) days

- c. The Company may redefine the definition of “Month” on an annual basis with the following provisions:
 - a. The definition of each Month for the upcoming calendar year shall be posted no later than the earlier of October 1st of each year or the date upon which the Vacation Lines are posted as provided in Subsection 6.E (Posting of Vacation Lines) of this Agreement; and
 - b. A newly-defined Month shall not have less than thirty (30) days or more than thirty-one (31) days; and
 - c. the calendar year shall end on December 31st.

48. MONTHLY RUN:

- a. Means a Vacancy for one (1) month, with or without a projection of daily flights; and
- b. A maximum number of working days; and
- c. A projected number of days off.

49. NORMALLY COULD HAVE EARNED:

- a. Shall mean earnings resulting from scheduled or actual pay hours, whichever is greater;
- b. Duty Period credit as specified in Subsection 4.C (Minimum Pay and Credit); and
- c. Advancement to a higher pay Category to which a pilot’s Seniority would entitle them.

50. NOTICE/NOTIFICATION: Two-way communication (unless explicitly stated otherwise) between a pilot and the appropriate Company representative.

51. NQ PILOT: A pilot who is unable to perform as a cockpit crewmember in their currently Activated Category Vacancy as a result of dequalification based solely on:

- a. Pilot recent experience (FAR 121.439), or
- b. Continuing Qualification training (“CQ”), including line check and CQ distance learning.

52. OPERATIONAL HOURS (Interisland):

- a. Beginning two hours and thirty minutes (2:30) prior to the first interisland flight departure of each day, and
- b. Ending thirty (30) minutes after the block-in of the last interisland flight each day at Honolulu or any other Hawaiian Island.

53. OPERATIONS

- a. Freight Operations:
 - 1) Operations conducted by aircraft configured for cargo (e.g., A330F. Such operations are covered under PWA Section 27).
- b. Passenger:
 - 1) Operations conducted by aircraft configured for Passenger service (e.g., A330, A321, and B717.)

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SECTION 2

DEFINITIONS

54. OPEN TRIP SCHEDULING LIST (OTSL): A daily listing of all pilots available to fly on a specific day.
- Prepared daily by Crew Scheduling for each Domicile, and
 - Lists the pilots by name and Category in the order in which they will be assigned any flight that becomes available after the month has begun.
55. PAY AND CREDIT or PAID AND CREDITED:
- Means all Pay and Credit time provided for in this Agreement shall be included as part of a pilot's maximum pay for that Month;
 - Including flight time Pay and Credit.
56. PAY DAY:
- Shall be the seventh (7th) and twenty-second (22nd) days of the month.
 - All pilots' monthly guarantees and/or salaries will be paid on the last Payroll Department working day prior to the seventh (7th) and twenty-second (22nd) of each month for the preceding month.
 - The twenty-second (22nd) pay day shall be a true-up of the previous month's actual earned compensation, while the seventh (7th) pay day shall be the estimate based on MMG.
 - The Company and the Association shall meet and create a mutually agreed upon process to move the "true up" pay day from the 7th to the 22nd.
57. PAY PROTECT/PAY PROTECTION (PAYP): A Flight Grouping that has been removed from a pilot's schedule, however the pilot shall retain the Pay and Credit for such Flight Grouping.
58. PILOT:
- Means Captain and First Officer as defined herein; and
 - Shall include only pilots on the Pilots' System Seniority List.
59. PROBATION PERIOD:
- Means a pilot's first three hundred sixty-five (365) days of active service as a pilot with the Company (exclusive of time spent on furlough, or leave of absence); or
 - Ninety (90) days after their first assignment as Captain; whichever occurs first.
 - Notwithstanding the above, a pilot furloughed for the third time shall be considered to have passed their "Probation Period."
60. PUBLISHED: A Flight Grouping shall be considered "published" when it is:
- Awarded via the PBS bid process
 - Awarded via the Online Scheduling Access Program
 - Assigned by Crew Scheduling in the Crew Scheduling software (e.g., Crewtrac).
61. REASSIGNMENT: An assignment to operate a flight or Deadhead other than those as published on the pilot's original schedule that is not a Delay or a Diversion, excluding the reassignment of pilots for whom special qualifications are required for maintenance "heavy checks" that require functional check flights, and also excluding pilots awarded new aircraft deliveries.
- If a pilot is assigned to either a maintenance "heavy check" or a new aircraft delivery, the above exclusions do not apply.
62. REPOSITIONING FLIGHT: Means a single operation in a Duty Period, of an international aircraft in revenue service interisland, in order to position such aircraft, or operating crew, scheduled with minimal delay at the neighbor island station, to:

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- a. A neighbor island station (Hilo, Kona, Kahului, Lihue) for departure to a point outside the Hawaiian Islands.
 - b. Honolulu from a neighbor island station after arrival from a point outside the Hawaiian Islands.
63. REROUTED TRIP:
- a. Means a scheduled Round-Trip for a pilot from their Domicile of which some Segments are cancelled and substitute routing is implemented.
 - b. The Round-Trip from their Domicile must contain at least one (1) Segment under the original Trip number(s) on the original routing.
64. RESERVE: A pilot required to maintain a means of contact with Crew Scheduling for the purpose of being available for a flight assignment or, with at least forty-eight (48) hours notice, a training event necessary to regain currency or qualifications.
65. RESERVE RUN:
- a. Means a Monthly Run that, at the time it is awarded, has less than published ALV minus nine (-9) hours of projected Pay and Credit time for the month.
 - b. Includes Short Call Reserve, Long Call Reserve, and Mixed Reserve.
66. RESERVE AVAILABILITY PERIOD (RAP): A period of time when a flight crewmember is not in a Duty Period, but must be available to report upon notice for a Duty Period.
67. RESERVE CREW: Consists of one (1) Captain and one (1) First Officer who are current, qualified, and legal to fly in the Category for which they are designated as a reserve crewmember.
68. REST PERIOD (IN -DOMICILE OR OUT OF -DOMICILE):
- a. Means a defined period of time free of all duty immediately prior to starting any duty with the Company:
 - a. Either at pilot's Domicile, or
 - b. At a hotel if out of Domicile.
 - b. An out of Domicile rest period is further defined as time in the hotel (door-to-door), when a hotel is required, uninterrupted by the Company.
69. ROUND-TRIP:
- a. Means a series of Trips originating at a pilot's Domicile, and
 - b. Terminating with the first landing at such pilot's Domicile.
70. RUN:
- a. A full month's pilot flying requiring the equivalent of the flying of one (1) pilot for one (1) full month; and
 - b. Shall include all Pay and Credit provided elsewhere in this Agreement; as well as
 - c. Special flying assignments, scheduled, extra-section, and miscellaneous flying as stipulated in Subsection 3.A (Compensation).
71. SEGMENT: Means the flight between any airport of departure and the point of first landing thereafter.

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SECTION 2

DEFINITIONS

72. SUFFICIENTLY QUALIFIED: Means that a pilot possesses a multi-engine ATP and has met the requirements of FAR 121.436, as appropriate for the Category (e.g., upgrade to CA requires a multi-engine ATP and hours required by 121.436).
73. SYSTEM-WIDE BID: Means that all active pilots, all pilots on a leave of absence, and all supervisory pilots are eligible to bid on the posted Vacancy.
74. TEMPORARY DOMICILE: Means any Domicile other than those designated as “Domicile” or “Permanent Domicile.”
75. TIME AWAY FROM BASE or DOMICILE (TAFB): Means all time beginning when a pilot checks-in for a Flight Grouping at their Domicile until released from duty at their Domicile.
76. TRAINEE: A pilot enrolled in a designated course of instruction.
77. TRAINER: A replica of a specific part or parts of an aircraft, such as cockpit, flight management computer head, or door trainer.
78. TRANSFER TIME: Means the predetermined Pay and Credit time a pilot receives due to a scheduled Flight Grouping that originates out of one airport but terminates at another airport serving the pilot’s Domicile.
- a. May be used to increase a pilot’s maximum duty time (see Subparagraph 5.A.6);
 - b. Shall be used to determine deadhead Pay and Credit (see Subparagraph 5.A.6); and
 - c. Shall be used to determine per diem due the pilot (see Subparagraph 5.A.6).
79. TRIP: Means the flight between the airport of departure and the last point reached under the same flight number.
80. TRIP RIG: Means the greater of one (1) hour of Pay and Credit for each three and one half (3.5) hours a pilot (as defined in Subparagraph 2.A.36 or 2.A.38):
- a. Is scheduled; or
 - b. Actually remains away from their Domicile (TAFB as defined in Subparagraph 2.A.75).
81. UNASSIGNED TRAINING PERIOD (UTP): Is a scheduled day of work on an Instructor or Evaluator Pilot’s assigned schedule on which no training has been assigned at the time of the award.
82. VACANCY: See Category Vacancy.
83. VACATION LINE: Means one (1) vacation period for one (1) entire calendar month.

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SECTION 3

COMPENSATION

A. INTRODUCTION

1. Pilots shall be paid the differentials outlined in this Agreement:
 - a. For scheduled and extra-section flights; and
 - b. For the following non-scheduled flights:
 - 1) Publicity, charters, scenic, and survey flights;
 - 2) Attempts, rerouting, instructing, and ferrying flights;
 - 3) Test flights: engine, instrument, plane, radio; and
 - 4) Experimental, proving of aircraft, or facilities and airway aids test flights.
2. Except for instructional and test flights, the flights listed in Paragraph 3.A.1 shall be operated by no less than:
 - a. Two (2) pilots in B717, A330, A321, B787, and B767 aircraft; and
 - b. The pilots in Subparagraphs 3.A.1 must:
 - 1) Not be on furlough;
 - 2) Be on the current Pilots' System Seniority List (SSL); and
 - 3) hold a Category Vacancy in that aircraft.
 - c. Instructional flights require at least one (1) pilot who is:
 - 1) Not on furlough and on the current HAL Pilots' SSL; or
 - 2) Employed and assigned by the aircraft manufacturer.

B. LONGEVITY FOR PAY PURPOSES

1. A pilot's longevity for pay purposes is to be computed from the date of employment as a pilot with the Company; and
2. Shall include all time spent in the service of the Company as a pilot.

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SECTION 3

COMPENSATION

C. CAPTAINS' HOURLY PAY RATE

- Each B717 Captain shall be paid an hourly rate for each hour of Pay and Credit as listed below:

		EFFECTIVE DATES FOR B717 CAPTAIN				
		3/2/23	3/2/24	3/2/25	3/2/26	1/31/27
LONGEVITY	1	\$259.66	\$270.05	\$280.85	\$292.08	\$300.84
	2	\$261.76	\$272.23	\$283.12	\$294.44	\$303.27
	3	\$263.90	\$274.46	\$285.44	\$296.86	\$305.77
	4	\$266.03	\$276.67	\$287.74	\$299.25	\$308.23
	5	\$268.15	\$278.88	\$290.04	\$301.64	\$310.69
	6	\$270.27	\$281.08	\$292.32	\$304.01	\$313.13
	7	\$272.39	\$283.29	\$294.62	\$306.40	\$315.59
	8	\$274.51	\$285.49	\$296.91	\$308.79	\$318.05
	9	\$276.63	\$287.70	\$299.21	\$311.18	\$320.52
	10	\$278.74	\$289.89	\$301.49	\$313.55	\$322.96
	11	\$280.87	\$292.10	\$303.78	\$315.93	\$325.41
	12	\$283.00	\$294.32	\$306.09	\$318.33	\$327.88

- Each A321 Captain shall be paid an hourly rate for each hour of Pay and Credit as listed below:

		EFFECTIVE DATES FOR A321 CAPTAIN				
		3/2/23	3/2/24	3/2/25	3/2/26	1/31/27
LONGEVITY	1	\$301.90	\$313.98	\$326.54	\$339.60	\$349.79
	2	\$304.35	\$316.52	\$329.18	\$342.35	\$352.62
	3	\$306.84	\$319.11	\$331.87	\$345.14	\$355.49
	4	\$309.30	\$321.67	\$334.54	\$347.92	\$358.36
	5	\$311.77	\$324.24	\$337.21	\$350.70	\$361.22
	6	\$314.23	\$326.80	\$339.87	\$353.46	\$364.06
	7	\$316.69	\$329.36	\$342.53	\$356.23	\$366.92
	8	\$319.16	\$331.93	\$345.21	\$359.02	\$369.79
	9	\$321.62	\$334.48	\$347.86	\$361.77	\$372.62
	10	\$324.07	\$337.03	\$350.51	\$364.53	\$375.47
	11	\$326.54	\$339.60	\$353.18	\$367.31	\$378.33
	12	\$329.00	\$342.16	\$355.85	\$370.08	\$381.18

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3. Each A330 Freight Captain shall be paid an hourly rate for each hour of Pay and Credit as listed below:

		EFFECTIVE DATES FOR A330F CAPTAIN				
		3/2/23	3/2/24	3/2/25	3/2/26	1/31/27
LONGEVITY	1	\$345.00	\$358.80	\$373.15	\$388.08	\$399.72
	2	\$347.79	\$361.70	\$376.17	\$391.22	\$402.96
	3	\$350.63	\$364.66	\$379.25	\$394.42	\$406.25
	4	\$353.45	\$367.59	\$382.29	\$397.58	\$409.51
	5	\$356.27	\$370.52	\$385.34	\$400.75	\$412.77
	6	\$359.08	\$373.44	\$388.38	\$403.92	\$416.04
	7	\$361.91	\$376.39	\$391.45	\$407.11	\$419.32
	8	\$364.72	\$379.31	\$394.48	\$410.26	\$422.57
	9	\$367.55	\$382.25	\$397.54	\$413.44	\$425.84
	10	\$370.35	\$385.16	\$400.57	\$416.59	\$429.09
	11	\$373.17	\$388.10	\$403.62	\$419.76	\$432.35
	12	\$376.00	\$391.04	\$406.68	\$422.95	\$435.64

4. Each B787 Captain and each A330 Passenger Captain shall be paid an hourly rate for each hour of Pay and Credit as listed below:

		EFFECTIVE DATES FOR B787 CAPTAIN AND A330 PAX CAPTAIN				
		3/2/23	3/2/24	3/2/25	3/2/26	1/31/27
LONGEVITY	1	\$359.68	\$374.07	\$389.03	\$404.59	\$416.73
	2	\$362.59	\$377.09	\$392.17	\$407.86	\$420.10
	3	\$365.55	\$380.17	\$395.38	\$411.20	\$423.54
	4	\$368.49	\$383.23	\$398.56	\$414.50	\$426.94
	5	\$371.43	\$386.29	\$401.74	\$417.81	\$430.34
	6	\$374.36	\$389.33	\$404.90	\$421.10	\$433.73
	7	\$377.31	\$392.40	\$408.10	\$424.42	\$437.15
	8	\$380.24	\$395.45	\$411.27	\$427.72	\$440.55
	9	\$383.19	\$398.52	\$414.46	\$431.04	\$443.97
	10	\$386.11	\$401.55	\$417.61	\$434.31	\$447.34
	11	\$389.05	\$404.61	\$420.79	\$437.62	\$450.75
	12	\$392.00	\$407.68	\$423.99	\$440.95	\$454.18

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5. Computation of the hours for Flying Pay Purposes (defined in Subparagraph 2.A.31) is governed by the “greater of” provisions in:
 - a. Subparagraph 4.C.1 for Interisland Pilots; or
 - b. Subparagraph 4.C.3 for International Pilots.

D. FIRST OFFICERS’ (FO) HOURLY PAY RATE

1. Each First Officer who has less than one (1) year of active service with the Company shall be paid the greater of:
 - a. The rate indicated in the First Officers’ pay table below; or
 - b. The Company has discretion to set a New FO (i.e., first-year of service as a pilot) Hourly Pay Rate above the First Officers’ pay table value, provided that:
 - 1) the New FO Hourly Pay Rate cannot be greater than any hourly pay rate for any pilot that has completed one (1) year of active service;
 - 2) the New FO Hourly Pay Rate will be applied to all First Officers on all equipment with less than one (1) year of active service, including without limitation First Officers already on the payroll as of the effective date of the New FO Hourly Pay Rate;
 - 3) notification of the New FO Hourly Pay rate is provided to the HAL MEC at least thirty (30) days prior to the effective date of the New FO Hourly Pay Rate; and
 - 4) once the New FO Hourly Pay Rate is established and implemented, it cannot be reduced.
2. Each First Officer who has completed one (1) year of active service with the Company shall be paid an hourly rate for each hour of Pay and Credit based on a percentage of Captain hourly pay.
 - a. For years two (2) through twelve (12), the same Captain longevity rate times the respective First Officer percentage of Captain hourly pay.
 - b. Each year of longevity and its respective percentage is listed below:

LONGEVITY PERCENTAGE (%)

1 st year	In accordance with Subparagraph 3.D.1
2 nd year	50.0
3 rd year	57.0
4 th year	60.0
5 th year	62.0
6 th year	64.5
7 th year	66.6
8 th year	67.5
9 th year	68.5
10 th year	68.9
11 th year	69.4
12 th year	69.8

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3. Each B717 First Officer shall be paid an hourly rate for each hour of Pay and Credit as listed below:

		EFFECTIVE DATES FOR B717 FIRST OFFICER				
		3/2/23	3/2/24	3/2/25	3/2/26	1/31/27
LONGEVITY	1	\$81.00	\$84.00	\$87.00	\$90.00	\$93.00
	2	\$130.88	\$136.12	\$141.56	\$147.22	\$151.64
	3	\$150.42	\$156.44	\$162.70	\$169.21	\$174.29
	4	\$159.62	\$166.00	\$172.64	\$179.55	\$184.94
	5	\$166.25	\$172.90	\$179.82	\$187.02	\$192.63
	6	\$174.32	\$181.30	\$188.55	\$196.09	\$201.97
	7	\$181.41	\$188.67	\$196.21	\$204.06	\$210.18
	8	\$185.29	\$192.71	\$200.41	\$208.43	\$214.68
	9	\$189.49	\$197.07	\$204.96	\$213.16	\$219.55
	10	\$192.05	\$199.74	\$207.73	\$216.04	\$222.52
	11	\$194.92	\$202.72	\$210.82	\$219.26	\$225.83
	12	\$197.53	\$205.44	\$213.65	\$222.19	\$228.86

4. Each A321 First Officer shall be paid an hourly rate for each hour of Pay and Credit as listed below:

		EFFECTIVE DATES FOR A321 FIRST OFFICER				
		3/2/23	3/2/24	3/2/25	3/2/26	1/31/27
LONGEVITY	1	\$81.00	\$84.00	\$87.00	\$90.00	\$93.00
	2	\$152.18	\$158.26	\$164.59	\$171.18	\$176.31
	3	\$174.90	\$181.89	\$189.17	\$196.73	\$202.63
	4	\$185.58	\$193.00	\$200.72	\$208.75	\$215.01
	5	\$193.30	\$201.03	\$209.07	\$217.43	\$223.96
	6	\$202.68	\$210.79	\$219.22	\$227.98	\$234.82
	7	\$210.91	\$219.35	\$228.12	\$237.24	\$244.36
	8	\$215.43	\$224.05	\$233.02	\$242.34	\$249.61
	9	\$220.31	\$229.12	\$238.28	\$247.81	\$255.24
	10	\$223.29	\$232.22	\$241.51	\$251.16	\$258.70
	11	\$226.62	\$235.68	\$245.11	\$254.91	\$262.56
	12	\$229.64	\$238.83	\$248.38	\$258.32	\$266.06

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5. Each A330 Freight First Officer shall be paid an hourly rate for each hour of Pay and Credit as listed below:

		EFFECTIVE DATES FOR A330F FIRST OFFICER				
		3/2/23	3/2/24	3/2/25	3/2/26	1/31/27
LONGEVITY	1	\$81.00	\$84.00	\$87.00	\$90.00	\$93.00
	2	\$173.90	\$180.85	\$188.09	\$195.61	\$201.48
	3	\$199.86	\$207.86	\$216.17	\$224.82	\$231.57
	4	\$212.07	\$220.55	\$229.37	\$238.55	\$245.70
	5	\$220.89	\$229.72	\$238.91	\$248.46	\$255.92
	6	\$231.61	\$240.87	\$250.51	\$260.53	\$268.35
	7	\$241.03	\$250.67	\$260.70	\$271.13	\$279.26
	8	\$246.19	\$256.03	\$266.27	\$276.92	\$285.23
	9	\$251.77	\$261.84	\$272.31	\$283.20	\$291.70
	10	\$255.17	\$265.38	\$276.00	\$287.03	\$295.65
	11	\$258.98	\$269.34	\$280.11	\$291.31	\$300.05
	12	\$262.45	\$272.95	\$283.86	\$295.22	\$304.08

6. Each B787 First Officer and each A330 Passenger First Officer shall be paid an hourly rate for each hour of Pay and Credit as listed below:

		EFFECTIVE DATES FOR B787 FIRST OFFICER AND A330 PAX FIRST OFFICER				
		3/2/23	3/2/24	3/2/25	3/2/26	1/31/27
LONGEVITY	1	\$81.00	\$84.00	\$87.00	\$90.00	\$93.00
	2	\$181.30	\$188.55	\$196.09	\$203.93	\$210.05
	3	\$208.37	\$216.70	\$225.37	\$234.39	\$241.42
	4	\$221.09	\$229.94	\$239.13	\$248.70	\$256.16
	5	\$230.29	\$239.50	\$249.08	\$259.04	\$266.81
	6	\$241.46	\$251.12	\$261.16	\$271.61	\$279.76
	7	\$251.28	\$261.33	\$271.79	\$282.66	\$291.13
	8	\$256.66	\$266.93	\$277.61	\$288.71	\$297.37
	9	\$262.48	\$272.98	\$283.90	\$295.26	\$304.12
	10	\$266.03	\$276.67	\$287.74	\$299.24	\$308.22
	11	\$270.00	\$280.80	\$292.03	\$303.71	\$312.82
	12	\$273.62	\$284.56	\$295.95	\$307.78	\$317.02

E. MINIMUM MONTHLY GUARANTEE (MMG)

1. Captains and First Officers shall receive a guaranteed monthly salary, payable monthly, composed of a sum representing that portion of the applicable hourly pay rate (see Subsections 3.C (Captains' Hourly Pay Rate), 3.D (First Officers' (FO) Hourly Pay Rate), and 3.E (Minimum Monthly Guarantee)) such pilot would earn if they flew seventy-five (75) hours.

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- a. A pilot shall receive less than the Minimum Monthly Guarantee of seventy-five (75) hours Pay and Credit ONLY under the following eight (8) conditions:
 - 1) Bid Run pilot awarded a Monthly Run within the ALV window per Subparagraph 21.D.1.d.7) shall have an MMG equal to ALV minus nine (-9) hours;
 - 2) Leave of Absence (Section 11);
 - 3) Voluntary Monthly Guarantee Reduction (Subparagraph 22.I.3.c and 22.I.4); or
 - 4) Furlough (Section 19); or
 - 5) Freight Operation Long Call Reserve Minimum Monthly Guarantee of seventy (70) hours Pay and Credit; or
 - 6) A Bid Run pilot, who has vacation, and who has eighteen (18) work days including awarded Flight Groupings and pre known absences, excluding training blocks in excess of six (6) days.
 - 7) A Bid Run Freight Pilot, who has vacation, and who has sixteen (16) work days including awarded Freight Flight Groupings and pre known absences, excluding training blocks in excess of six (6) days.
 - 8) Time off without pay, for example:
 - a) Discipline without pay;
 - b) Leave without pay;
 - c) Maternity leave without pay;
 - d) Military leave without pay;
 - e) Occupational leave without pay;
 - f) Sick leave without pay;
 - g) Missed commute without pay.
 - b. At all other times, the pilot shall receive a Minimum Monthly Guarantee of seventy-five (75) hours Pay and Credit.
2. When a pilot is not available for flight duty for a portion of a month because of a leave of absence (LOA), furlough, or time off without pay, then,
 - a. Their applicable monthly guarantee shall be prorated on a ratio of the total days available for flight duty to the total days in the month as indicated below:

Total Days Available		Monthly			
	X	Dollar	=		
Total Days in Month		Guarantee			Prorated Monthly Dollar Guarantee
 - b. A pilot returning from LOA, furlough, or time off without pay shall be paid (as provided for in the applicable sections of this Agreement) upon their return to active status with the Company at:
 - 1) The hourly rate of the Category Vacancy to which such pilot is reinstated; or
 - 2) The rate of pay for the Category Vacancy that the pilot holds; whichever is higher.
 3. Any month that a pilot serves in a higher paying Category or is credited with pay time in such higher Category, then they shall be paid the greater of:
 - a. The Pay and Credit time flown in the higher Category;
 - b. The minimum guarantee applicable to the higher Category; or

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- c. The Pay and Credit time flown in the lower Category.

F. PROFIT BONUS PLAN

1. Performance Bonus

- a. Each year, the Company will establish performance goals for on-time performance, safety, etc. Based on the yearly goals, quarterly goals will be set. These performance goals will be discussed with all unions and brought to the attention of all employees. For each quarter that the performance goals are met, each active full-time employee will receive a bonus of \$150, a potential total of \$600 per year, and each active part-time employee will be eligible for a quarterly bonus of \$75 per quarter, a potential total of \$300 per year. Any bonus payments will be reduced by applicable taxes and court required deductions. If goals are not met, no Performance Bonus will be paid for that quarter. Performance Bonus payments will be paid regardless of Company profitability. Should the Performance Bonus payments be increased for any other group, such increase shall not result in a decrease to ALPA's share of any Profit Bonus.

2. Profit Bonus

- a. The total potential Profit Bonus will be 5% of annual pretax profits (excluding extraordinary items and charges) from the first dollar of profit. Before being allocated among employee groups, the total potential Profit Bonus will be reduced dollar-for-dollar by the performance bonuses and any special bonuses paid for the year, excluding any payment under the Incentive Compensation Program. The Company may, at its discretion, pay the Profit Bonus on a quarterly, rather than an annual basis. Should any other group(s) be provided a different Profit Bonus formula, such group(s) will be separated into a different Profit Bonus plan so as not to negatively impact the ALPA share of this plan.
- b. The net Profit Bonus will first be divided among all employee groups (ALPA, AFA, IAM, non-represented, etc.) on the basis of each group's pro rata share of W-2 wages for the year. The pro rata share of any non-participating employee group will not be paid out to any group. Within each participating group, the bonus will then be allocated based on regular W-2 wages (as defined below) of each eligible member of the group, or another basis if that is agreed upon. Profit Bonuses paid will be less applicable taxes and pretax deferral deductions. The Company would have discretion to set a minimum amount payable to any individual.

Example:

If Hawaiian's 2009 pre-tax profit were \$40 million the total potential bonus payment would be \$2 million. If the Performance Bonuses paid out for the year totaled \$600 thousand, then up to \$1.4 million would be allocated among employee groups and individual employees in the manner described above.

3. Incentive Compensation Program

- a. ALPA will participate in the Incentive Compensation Program established by the Board of Directors for senior management, with a target payout bonus of one (1) percent of W-2 wages. The same numerical calculations established by the Board that determine the Company's performance will be applied to ALPA, resulting in potential payment range of zero (0) percent to two (2) percent of the previous year's W-2 wages. Payment from the

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Incentive Compensation Program will be paid at the same time and in the same manner as applied to senior management.

- b. Should there be any changes made to the terms of the Incentive Compensation Program during the term of this Agreement, the Company and Association agree to meet and review such changes to see what adjustments may be necessary to ensure the pilots are not disadvantaged.

4. General Provisions

- a. Eligible employees are defined as active employees during the applicable period with accumulated W-2 wages in excess of \$500 per quarter or \$2,000 per year unless, before the time of payout, they were involuntarily terminated or voluntarily resigned. The Performance Bonus Program and the Profit Bonus Program would apply to all employees meeting these criteria, except corporate officers.
- b. For purposes of the plans, W-2 wages shall mean regular earnings as reported in Box 5, including employee pretax deferrals (e.g., 401(k) employee contributions) on previous year's IRS Form W-2, and exclude bonuses, vacation payoffs, insurance, layoff severance, and other similar non-regular earnings, even if otherwise reported in Box 5 on Form W-2.
- c. Payments described herein will not be treated as covered compensation for 401(k) or pension plan purposes.
- d. Participation in the Profit Bonus Program shall start as of the date of signing of the Agreement and any partial year of participation shall be prorated by the complete calendar months of participation divided by twelve (12).
- e. Participation in the Performance Bonus and Profit Bonus programs described in Subparagraph 3.F.1.a and 3.F.2.a shall continue unless and until terminated in a future PWA.

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MISCELLANEOUS PAY PROVISION

A. CHANGE IN CALENDAR DATE

1. When a change in calendar date occurs enroute, the date on which the Segment on any particular route originated shall be considered the date on which the flight was made, and
2. The date to which all time for the flight, for pay purposes only, shall be credited.

B. PAY AND CREDIT

1. During each Duty Period, pilots, including pilots utilized as an "IRO Crew," shall be Paid and Credited for the actual time flown or the time scheduled to be flown, whichever is greater on a Segment basis.
2. Such Pay and Credit shall be at the rates for the equipment originally scheduled or the equipment flown, whichever is greater.
3. If equipment other than the equipment originally scheduled is substituted on any Segment(s), the pilots shall be Paid and Credited for any time lost at the rates applicable to the highest paying equipment, scheduled or substituted, in which they are qualified. For example:

A330 and B767 pilots shall be Paid and Credited no less than the respective A330 or B767 rates for the time flown.

4. The foregoing (Subparagraphs 4.B.1, 4.B.2, and 4.B.3) shall apply to:
 - a. The Published monthly schedule of a Bid Run pilot;
 - b. The Published schedule of a Reserve Run pilot;
5. Except for an Enroute Stop, or stops, the monthly schedule of a pilot shall be considered Published on The date awarded under Section 21 (Preparation, Bidding, and Awarding of Runs)

C. MINIMUM PAY AND CREDIT

1. Interisland Pilots:
 - a. Who report for flight duty shall be Paid and Credited the greater of:
 - 1) The Minimum Daily Guarantee (MDG) for a Flight Grouping of no less than:
 - a) Two (2.00) hours when a reserve pilot reports but doesn't perform any credited flight time; or
 - b) Four and seventeen hundredths (4.17) hours when any pilot (bid or reserve) performs credited flight time;
 - (1) Effective March 2, 2025:
 - (a) Five (5) hours when any pilot (bid or reserve) performs credited flight time
 - 2) Duty Rig equal to sixty (60) percent of all time spent in a Duty Period (greater of scheduled or actual); or
 - 3) "Subparagraph 4.B.1 Greater of Provisions":
 - a) Actual time flown plus segment credits; or
 - b) Time scheduled to be flown plus scheduled segment credits.
 - 4) Trip Rig equal to one (1.00) hour of Pay and Credit time for each three and one half (3.5) hours scheduled or actually away from their Domicile (TAFB as defined in Subparagraph 2.A.75); or

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5) Effective March 2, 2025:

- a) At no point in time shall a pilot receive less than five (5.00) hours multiplied by the number of calendar days encompassed by the Flight Grouping being flown.
- b. Shall have pay hours credited to them for a Segment(s) published but not flown (as provided for by other sections of this Agreement) included to determine the pilot's total Pay and Credit for the entire Duty Period.
- c. In understanding the provisions in Subparagraph 4.C.1, consider the following examples:
 - 1) An Interisland Pilot flies a grouping having four (4) Round-Trips (ITO, KOA, KOA, OGG) and a Duty Period of nine and three hundredths (9.03):

a) Block Time:	<u>Sched</u>	<u>Actual</u>	<u>Seg</u>	<u>Credit</u>
HNL-ITO	0:48	0:51	0:04	0:55 (0.92)
ITO-HNL	0:45	0:50	0:04	0:54 (0.90)
HNL-KOA	0:40	0:39	0:04	0:44 (0.73)
KOA-HNL	0:38	0:40	0:04	0:44 (0.73)
HNL-KOA	0:40	©	0:04	0:44 (0.73)
KOA-HNL	0:38	©	0:04	0:42 (0.70)
HNL-OGG	0:35	0:32	0:04	0:39 (0.65)
OGG-HNL	0:32	0:35	0:04	0:39 (0.65)
"Sec 4.B.1 GOP" total				6.02 hours

GOP ("Greater of Provisions")

© Trip cancellation or equipment substitution; see Subparagraph 4.B.1; and Subsection 22.M (Irregularities).

- b) Calculation of Pay and Credit uses the greater of:
 - (1) Minimum Daily Guarantee 4.17
 - (2) Duty Rig (60%) 5.42
 - (3) "Subparagraph 4.B.1 GOP" 6.02

- c) Total Pay and Credit Hours 6.02 hours

- 2) An interisland reserve pilot (with a two (2) hour report time and a RAP of 0500-1700) is called at 0500 to fly a Round-Trip to OGG. Eight (8) hours after completing the OGG Round-Trip they are called out to fly an ITO Round-Trip that results in a Duty Period of twelve (12) hours:

a) Block Time:	<u>Sched</u>	<u>Actual</u>	<u>Seg</u>	<u>Credit</u>
HNL-OGG	0:35	0:32	0:04	0:39 (0.65)
OGG-HNL	0:32	0:35	0:04	0:39 (0.65)
HNL-ITO	0:48	0:51	0:04	0:55 (0.92)
ITO-HNL	0:45	0:40	0:04	0:49 (0.82)
"Subparagraph 4.B.1 GOP" total				3.04 hours

- b) Calculation of Pay and Credit uses the greater of:
 - (1) Minimum Daily Guarantee 4.17
 - (2) Duty Rig (60%) 7.20
 - (3) "Subparagraph 4.B.1 GOP" 3.04

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c) Total Pay and Credit Hours 7.20 hours

2. Interisland Airport Reserve/Airport Reserve Crew:

Pay and Credit for Airport Reserve duty shall be calculated on a daily basis as follows:

- a. Pilot(s) standing Airport Reserve will receive Pay and Credit of the greater of five (5) hours or what they actually fly during that reserve day.
- b. In the event an Airport Reserve pilot is assigned to a flight which extends beyond the awarded or assigned Airport Reserve Duty Period, the pilot shall “receive minute for minute flight time Pay and Credit for each additional minute spent on duty,” beyond the awarded or assigned Airport Reserve Period, in accordance with Subparagraph 4.D.1.c of the Agreement.
- c. Payment of “minute for minute” pay will not be paid in the event the Airport Reserve pilot’s flight assignment is scheduled to return the pilot to their Domicile prior to the end of the awarded or assigned Airport Reserve Period (inclusive of the 15-minute debrief time) and, because of circumstances beyond the control of the Company (e.g., ATC delay, weather), return is delayed beyond the awarded or assigned Airport Reserve Period. Thus, “minute for minute pay” will be received by an Airport Reserve as would apply in the same manner as would be the case of a line holder whose actual return time is delayed beyond their scheduled return time.

3. International Pilots:

- a. Who report for flight duty shall be Paid and Credited the greater of:
 - 1) The Minimum Daily Guarantee (MDG) for a Flight Grouping of no less than:
 - a) Two (2.00) hours when a reserve pilot reports but doesn’t perform any flight time; or
 - b) Four and seventeen hundredths (4.17) hours when any pilot (bid or reserve) performs credited flight time;
 - (1) Effective March 2, 2025:
 - (a) Five (5) hours when any pilot (bid or reserve) performs credited flight time.
 - 2) Trip Rig equal to one (1.00) hour of Pay and Credit time for each three and one half (3.5) hours scheduled or actually away from their Domicile (TAFB as defined in Subparagraph 2.A.75); or
 - 3) Duty Rig as defined in Subparagraph 2.A.20 equal to sixty (60) percent of all time spent in a Duty Period (scheduled/actual) for all Interisland Flying (except Repositioning Flights); or
 - 4) “Subparagraph 4.B.1 Greater of Provisions”:
 - a) Actual time flown (plus segment credits for Interisland Flying); or
 - b) Time scheduled to be flown (plus scheduled segment credits for Interisland Flying).
 - 5) At no point in time shall a pilot receive less than four and seventeen hundredths (4.17) hours multiplied by the number of calendar days encompassed by the Flight Grouping being flown.
 - a) Effective March 2, 2025:
 - (1) At no point in time shall a pilot receive less than five (5) hours multiplied by the number of calendar days encompassed by the Flight Grouping being flown.
- b. Voluntarily awarded a Flight Grouping at other than their Domicile shall have their Pay and Credit time commence at the time such pilot:
 - 1) Reports for duty at such other Domicile, or
 - 2) Their actual reporting time, whichever is later; and
 - 3) Shall continue until their release from duty:
 - a) At such other Domicile, or

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- b) At such pilot's own Domicile, whichever is earlier.
- c. Shall have pay hours credited to them for a Segment(s) published but not flown (as provided for by other sections of this Agreement) included to determine the pilot's total Pay and Credit for the entire Duty Period.
- d. In understanding the provisions of Subparagraph 4.C.3, consider the following two (2) examples:
- 1) An International Pilot flies a three-day (3) Flight Grouping (HNL-LAX-LAS-HNL) with TAFB 37.42 hours LAX weather causes the crew to divert to, and land at, LAS.
- a) Block Time:

	Sched	Actual	MDG	Credit
HNL-LAX	5:05	5:50	5:00	5:50 (5.83)
RON				
LAX-LAS	1:05	@	5:00	5:00 (5.0)
RON-LAS				
LAS-HNL	6:10	6:40	4:10	6:40 (6.67)
- b) Calculation of Pay and Credit uses the greater of:
- | | | |
|------------------------------------|------|-------|
| (1) MDG (3 Day) | 17.5 | |
| (2) Trip Rig (1:3.5) | | 10.69 |
| (3) "Subparagraph 4.B.1 GOP" total | | 13.58 |
| (4) MFGC (5.0) | 15.0 | |
- c) Total Pay and Credit hours 17.5 hours
- 2) International reserve pilot called out during Reserve Availability Period and assigned two (2) interisland Round-Trips to OGG, resulting in a Duty Period of 6.75 hours:
- a) Block Time:

	Sched	Actual	MDG	Credit
HNL-OGG	0:35	0:50	0:04	0:54 (0.90)
OGG-HNL	0:32	0:40	0:04	0:44 (0.73)
HNL-OGG	0:35	0:56	0:04	1:00 (1.00)
OGG-HNL	0:32	0:44	0:04	0:44 (0.73)
- b) Calculation of Pay and Credit uses the greater of:
- | | |
|------------------------------|------|
| (1) Minimum Daily Guarantee | 4.17 |
| (2) Duty Rig (60%) | 4.05 |
| (3) "Subparagraph 4.B.1 GOP" | 3.36 |
- c) Total Pay and Credit Hours 4.17 hours
4. International Pilots performing Mixed Flying shall be Paid and Credited in accordance with Subparagraph 4.C.3 (International Pilots), except as follows:
- a. Trip Rig shall apply to the entire mixed grouping from release to report;
- b. Duty Rig shall be applied to an entire Duty Period containing mixed or Interisland Flying; and
- c. Segment credits shall be applied to all interisland Segments.

D. PAY AND CREDIT FOR SCHEDULE CHANGES

1. Interisland Pilots

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- a. The published schedule of any pilot may be changed to protect the daily flight schedule subject to:
 - 1) Subparagraphs 4.D.1.b, 4.D.1.c, and 4.D.1.d; and
 - 2) The flight time and duty time limitations of Section 10 (Hours of Service).
- b. Pay and Credit for schedule changes for interisland pilots shall be on a Segment basis the greater of the:
 - 1) Actual time flown; or
 - 2) Time scheduled to be flown; or
 - 3) Time rescheduled to be flown.
- c. In any case where a change to the published schedule of an interisland pilot causes an extension of the originally scheduled Duty Period:
 - 1) The pilot shall receive minute for minute flight time Pay and Credit for each additional minute actually spent On Duty;
 - 2) In addition to the Pay and Credit accrued pursuant to the provisions of Subparagraph 4.D.1.b.
- d. If a pilot's Segment(s) is delayed, diverted, or reassigned, such pilot will fly that Segment(s) and any remaining portion of their Flight Grouping provided it:
 - 1) Can be accomplished within the provisions of Section 10 (Hours of Service); and
 - 2) Does not cause such pilot to receive less than the minimum days off applicable to their Monthly Run or adjusted Monthly Run for that month.
- e. Consider the following example: Original schedule was for six (6) hours duty time Pay and Credit (scheduled for a ten (10) hour Duty Period) and the first flight was changed to depart one (1) hour earlier. The pilot's actual Duty Period was eleven (11) hours and actual flight time was five and forty-two hundredths (5.42) hours. The pilot will be Paid and Credited as follows:
 - 1) Calculation of Pay and Credit uses the greater of:

a) Minimum Daily Guarantee	4.17
b) Duty Rig (60%)	6.60
c) "Subparagraph 4.B.1 Greater of Provisions"	5.42
 - 2) Total Pay and Credit Hours is:

a) Duty Rig (60%)	6.60
b) Minute for minute extension	1.00
Total Pay and Credit	7.60 hours

2. International Pilots

- a. The published schedule of any pilot may be changed to protect the daily flight schedule subject to:
 - 1) Subparagraphs 4.D.2.b through 4.D.2e; and
 - 2) Flight time and duty time limitations of Section 10 (Hours of Service).
- b. Pay and Credit for schedule changes of an International Pilot shall be the greater of:
 - 1) The original schedule shall be Paid and Credited the greater of the actual or scheduled time for any Segments flown, on a segment basis, and the scheduled time for any Segments not flown; or
 - 2) Paid and Credited the greater of the actual or scheduled time for any rerouted Segments flown, on a segment basis, plus the greater of the actual or scheduled time for any Segments

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flown from the original schedule, on a segment basis, plus any Pay and Credit for Deadheading.

- 3) Paid and Credited according to the provisions of Subparagraph 22.J.2 for reassignment/rescheduled Segment(s). For purposes of this provision, minute for minute flight time pay and no credit shall be applied to all time that falls outside of the Footprint of the originally scheduled Flight Grouping.
- 4) A pilot who is assigned an Emergency In Domicile Reassignment (EIDR) will be Paid and Credited as follows:
 - a) 100% Pay and Credit for the greater of the pilot's originally scheduled Flight Grouping or the actual Flight Grouping operated, as prescribed in Sections 4.B., C., and D.; plus
 - b) 100% additional pay no credit for the Flight Grouping operated, in accordance with Sections 4.B., C., D.; plus
 - c) If the time of actual release from all duty in Domicile at the end of the EIDR is more than twelve (12) hours later than the end of the pilot's originally scheduled Footprint, then the pilot shall receive one (1) hour of pay/no credit for every three and one-half (3.5) hours beyond the Footprint of the pilot's originally scheduled Flight Grouping, up to twenty-four (24) hours; plus
 - d) If the Company elects or is unable to return the pilot to Domicile within twenty-four (24) hours of the end of the pilot's originally scheduled Footprint, the pilot will receive minute for minute pay for the portion of the reassigned Flight Grouping that follows such twenty-four (24) hour period.
 - e) Examples:

Example One				Example Two					
Pilot's originally scheduled Footprint		EIDR Grouping actual Footprint		Pilot's originally scheduled Footprint			EIDR Grouping actual Footprint		
Day 1	Day 2	Day 1	Day 2	Day 1	Day 2	Day 3	Day 1	Day 2	Day 3
7:00	13:00	7:00	23:00	12:10	15:05		13:25		01:00
Credit 11:00		Credit 12:00		Credit 12:30			Credit 12:15		
E.2.a 100% pay and credit		12:00		E.2.a 100% pay and credit			12:30		
E.2.b 100% pay no credit		12:00		E.2.b 100% pay no credit			12:15		
E.2.c 1 for 3.5		0:00		E.2.c 1 for 3.5			0:00		
E.2.d minute for minute		0:00		E.2.d. minute for minute			0:00		
Total		24:00		Total			24:45		

Example Three						Example Four					
Pilot's originally scheduled Footprint			EIDR Grouping actual Footprint			Pilot's originally scheduled Footprint			EIDR Grouping actual Footprint		
Day 1	Day 2	Day 3	Day 1	Day 2	Day 3	Day 1	Day 2	Day 3	Day 1	Day 2	Day 3
12:00	11:45		12:10		7:45	12:10	11:45		12:10		15:00
Credit 10:40			Credit 12:50			Credit 10:40			Credit 14:31		
E.2.a 100% pay and credit			12:50			E.2.a 100% pay and credit			14:31		
E.2.b. 100% pay no credit			12:50			E.2.b. 100% pay no credit			14:31		
E.2.c 1 for 3.5			5:42			E.2.c 1 for 3.5			6:51		
E.2.d. minute for minute			0:00			E.2.d. minute for minute			3:15		
Total			31:22			Total			39:08		

- f) The Pay and Credit for such Flight Groupings shall be calculated utilizing a “greater of” concept in comparing Out of Domicile Reassignment (ODR) and EIDR pay provisions.
- g) A pilot who is assigned an Emergency In-Domicile Reassignment from Deadhead to Operate (EIDRDO) will be Paid and Credited as follows:
 - (1) 100% Pay and Credit for the greater of the pilot's originally scheduled Deadhead or the actual flight Segment operated, as prescribed in Sections 4.B., 4.C., and 4.D.; plus
 - (2) 100% additional pay/no credit for the flight Segment operated, in accordance with Sections 4.B., 4.C., and 4.D.
- 5) If an International Bid Run pilot is reassigned commencing outside of the pilot's Domicile, resulting in the pilot being released from duty in the pilot's Domicile later than the originally

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scheduled release from duty time, then such pilot shall be paid per the provisions of the PWA up until the point of Reassignment and then the greater of Column 1 or Column 2.

COLUMN 1	COLUMN 2
200% pay no credit PLUS 100% credit for the greater of: - The greater of actual or scheduled time flown for each reassigned Segment(s) (including Deadheads) - Minimum Flight Grouping Credit - Minimum Daily Guarantee - The difference between the original grouping Trip Rig (scheduled TAFB) and the final grouping Trip Rig (actual TAFB). PLUS - LODO pay per Subparagraph 4.D.2.e)	100% Pay and Credit for the greater of actual or scheduled time flown for each reassigned Segment(s) (including deadheads) PLUS - If eligible for minute for minute (MFM) pay under Subparagraph 22.J.2.a), pay no credit for all the time that falls outside the footprint of the original scheduled grouping - Less 100% pay for the greater of actual or scheduled time flown for each reassigned Segment(s) (including Deadhead)

- 6) If the Company utilizes a pilot to operate a flight(s) or Deadhead (excluding a Deadhead returning the pilot to their Domicile) that occurs entirely within the original grouping (an “internal assignment”), the pilot shall be paid one hundred (100) percent Pay and Credit and one hundred (100) percent pay no credit for the internal assignment performed, pursuant to the greater of provisions in Subparagraph 4.C.3.a.
 - c. If a pilot’s Segment(s) is delayed, diverted, or reassigned, such pilot will fly that Segment(s) or any remaining portion of the Flight Grouping provided it:
 - 1) Can be accomplished within the provisions of Section 10 (Hours of Service); and
 - 2) Does not cause such pilot to receive less than the minimum days off applicable to their Monthly Run or adjusted Monthly Run for that month.
 - d. If an International Pilot flying a voluntarily awarded Flight Grouping at a Domicile other than their own, becomes eligible for LODO pay, such LODO pay calculations will terminate upon release from duty at:
 - 1) Such other Domicile; or
 - 2) The pilot’s own Domicile, whichever is earlier.
 - e. Loss of Day Off (LODO).
 - 1) If an International Pilot arrives in their Domicile after the end of the scheduled original footprint due to Delay, Diversion, Reassignment, or any other reason; and
 - 2) The time of the actual release from all duty at their Domicile is on a scheduled day off ; then
 - 3) In addition to Subparagraph 4.D.2.b , the pilot shall be paid (but not credited) at their normal hourly rate:
 - a) Four (4) hours of pay for each calendar day off that was lost.
3. In understanding the provisions of Subparagraph 4.D.2, consider the following two (2) examples:

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- a. An HNL-based pilot is originally scheduled to depart HNL to OAK on 7/13/17 at 1125, and depart OAK to HNL on 7/14/17 with an arrival at 1145, for a scheduled TAFB of 25.58 hours. The pilot is reassigned to operate OAK-OGG and deadhead OGG-HNL. The Reassignment results in a TAFB of 24.65 hours.

1) Block Time:	<u>Sched</u>	<u>Actual</u>	<u>Credit</u>
HNL-OAK	5:10	5:00	5:10 (5.17)
OAK-HNL	5:30 ⊕	@	⊕
OAK-OGG	Ⓜ ⊕	5:35	⊕ 5:35 (5.58)
OGG-HNL (DH) Ⓜ		0:36	0:36 (0.6)

⊕ Greater of

Ⓜ Reassigned

@ Not Flown

DH Deadhead

GOP Greater of Provisions

MDG (4.17) is less than any segment value; therefore, not a factor in calculations

- 2) Calculation of Pay and Credit uses:

- a) Prior to Reassignment the greater of:

(1) "Subparagraph 4.B.1 GOP" 5.17

(2) Trip Rig First Reported for Duty (7/13/17 20:25Z) to Start of Reassignment Duty (7/14/17 13:00Z) 4.7

- b) Plus After Reassignment "Subparagraph 4.D.2.b.4)":

(1) "Subparagraph 4.B.1 GOP"

(a) 200% Pay No Credit 12.36

(b) 100% Credit 6.18

- 3) Total Pay and Credit

	<u>Pay</u>	<u>Credit</u>
a) Prior to Reassignment	5.17	5.17
b) Subparagraph 4.D.2.b.4)	12.36	6.18
c) Totals	17.53 hrs	11.35 hrs

- b. An HNL-based pilot is originally scheduled to depart HNL to SFO on 7/13/17 at 1310 and arrive back in HNL on 7/14/17 at 1130 with a scheduled TAFB of 23.35 hours. The SFO-HNL departure is delayed by 13.65 hours. The delay in departure time was the only change and the delay did not exceed the scheduled departure time of the next operation of the originally scheduled HAL flight. The delay results in a TAFB of 37 hours with a return to Domicile on 7/15/17 at 0109 which results in the loss of a day off (7/15/17 was a scheduled day off).

1) Block Time:	<u>Sched</u>	<u>Actual</u>	<u>Credit</u>
HNL-SFO	5:10	5:15	5:15 (5.25)
SFO-HNL (delayed)	5:35	5:30	5:35 (5.58)
"Subparagraph 4.B.1 GOP" total			10.83 hrs

GOP Greater of Provisions

MDG (4.17) is less than any Segment value; therefore, not a factor in calculations

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2) Calculation of Pay and Credit uses:

a) The greater of:

- | | |
|------------------------------|-------|
| (1) "Subparagraph 4.B.1 GOP" | 10.83 |
| (2) Trip Rig (1:3.5) | 10.57 |

b) Plus LODO pay of:

- | | |
|----------------------|------|
| (1) One day off lost | 4.00 |
|----------------------|------|

3) Total Pay and Credit:

	<u>Pay</u>	<u>Credit</u>
a) "Subparagraph 4.B.1 GOP"	10.83	10.83
b) LODO pay	4.00	0.00
c) Totals	14.83 hrs	10.83 hrs

E. POSTING REQUIREMENTS FOR PAY AND CREDIT TIME

1. The Company shall provide pilots with access to the pilots' total time for pay purposes for each Duty Period. Such information/data shall reflect all Pay and Credit time and shall be a duplicate of the Pay and Credit time figures used by Crew Scheduling. Further, the information/data shall be made within two (2) days (unless unavailable due to technical/facilities outages or major issues (e.g., flood, power failure)) following the respective Duty Periods.
2. The following types of Pay and Credit shall be included in the daily posting of Pay and Credit:
 - a. Pay and Credit from the Captain's flight report inclusive of Segment credits.
 - b. Pay and Credit for each Duty Period or credited block time, whichever is greater.
 - c. Pay and Credit for all paid absences from active line flying.
 - d. Pay and Credit for minimum report time.
 - e. Pay and Credit for Trip Rig.
 - f. Pay and Credit for training.

F. ALPA FLIGHT PAY LOSS

1. Pilots on Company authorized ALPA business shall be Paid and Credited in any Month as follows:
 - a. The Association shall designate an ALPA business day as Paying and Crediting either three (3) or six (6) hours.
 - b. Bid and Reserve Run pilots shall be Paid and Credited, per Subparagraph 4.F.1.a.

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- 1) During the PBS award process, a pilot may not be awarded greater than ninety (90) hours of flight pay loss Pay and Credit.
 - c. After awarding of the Monthly Runs:
 - 1) Bid Run pilots shall be Paid and Credited for Segments missed.
 - 2) Reserve Run pilots granted ALPA leave shall be Paid and Credited one of the following:
 - a) Any published Segments missed as defined in Subparagraph B.4 of this Section; or
 - b) The designated value, per 4.F.1.a, for any other work days missed on ALPA leave.
2. The Company shall pay at no cost to the Association:
 - a. A total of two hundred fifty-five (255) hours of Pay and Credit system-wide for ALPA business each calendar month at no cost to the Association. Such Pay and Credit shall be distributed, as the MEC Chairperson shall direct. Any remaining unused portion of the two hundred fifty-five (255) hour monthly limit may be banked and, at the MEC Chairperson's discretion, be used against future chargeable flight pay loss amounts.
 - b. In addition to the above two hundred fifty-five (255) hours:
 - 1) The Company shall pay ninety (90) hours of Pay and Credit each calendar month at no cost to the Association for the MEC Chairperson.
 - a) Any remaining unused portion of the ninety (90) hour monthly limit may be banked and, at the MEC Chairperson's discretion, be used against future chargeable flight pay loss amounts.
 - 2) The Company shall pay ninety (90) hours of Pay and Credit each calendar month at no cost to the Association, split between (e.g., 90 for 1, 30 for 3, etc.):
 - a) Negotiating Committee Chairperson
 - b) Scheduling Committee Chairperson
 - c) Central Air Safety Committee Chairperson
 - d) Other MEC Officer
 - c. All ALPA flight pay loss, hotel, and transportation expenses at no cost to the Association for the Pilot Negotiating Committee (maximum of three (3) members) for any negotiations initiated by the Company other than negotiations pursuant to Section 6 of the Railway Labor Act.
 - d. In circumstances where the Company requests a meeting with any MEC officer, representative, or committee, flight pay loss for the meeting will not be charged to the Association.
 - e. Flight pay loss will not be charged for activities of safety-related committees (including but not limited to the Central Air Safety Committee, Accident Investigation Committee, Critical Incident Response Committee, etc.), associated with an accident or incident.
 - f. Time spent by the Pilots' Scheduling Committee on monitoring awards and resolving conflicts arising from the award process, and any other such routine activities, shall be considered Union Business.
3. The Scheduling Division shall prepare and submit to the MEC a compilation of ALPA flight Pay and Credit not later than the fifteenth (15th) of the month following any month during which pilots are on Company-authorized ALPA business. The MEC shall promptly review and return such compilation to the Scheduling Division, designating the distribution of allowable Company-paid ALPA Pay and

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Credit as set forth in Subparagraph 4.F.3. The Company shall then prepare a billing for the remaining reimbursable ALPA Pay and Credit which, after review by the MEC Chairperson, will be reimbursed by the Association.

4. In calculating the reimbursable cost of such Pay and Credit, the actual pay plus override costs of benefits such as retirement, insurance, and workers' compensation shall be included. In no case, however, shall charges for such override costs exceed thirty (30) percent of a pilot's direct pay. Further, the Company shall not be reimbursed for any such override costs in cases of ALPA leave for the MEC Chairperson, LEC Chairperson, or Grievance Chairperson.

G. JURY DUTY

1. When a pilot is called for jury duty, they shall notify the Company immediately and the Company may request the court to release them from such jury duty, or the Company shall release them from all Company duties on such days they are called for selection or actively serve as a juror.
2. Total compensation to the pilot when called for selection or while actively serving on a jury shall equal that which they would normally have earned during such period less fees received for such services as follows:
 - a. A pilot awarded a Bid Run shall be Paid and Credited what they normally could have earned for any published Segments missed on their Monthly Run.
 - b. A pilot awarded a Reserve Run shall be Paid and Credited the greater of the following:
 - 1) Any published Segments missed as defined in Subparagraph 4.B.4; or
 - 2) For all work days missed on Jury Duty, five (5) hours per work day.

H. COMPANY BUSINESS

1. The Company Business period shall include all days performing Company Business, all travel days associated with such Company Business, and all days off within the Company Business period (e.g., five (5) days of Company Business followed by two days off). Days off associated with Company Business count toward minimum days off provided they are at the pilot's Domicile.
2. Except for the provisions of Section 8 (Administrative Pilots), if the Company requests a pilot perform service for the Company not directly related to their normal training or flight duties and such pilot accepts such assignment, then the pilot shall be Paid and Credited as follows:
 - a. Prior to the opening of the monthly bidding period:
 - 1) Five (5) hours of Pay and Credit per day during the company business period.
 - 2) During the company business period work days shall normally be five (5) work days followed by two (2) days off (Normally Monday through Friday work days and Saturday, Sunday and Company Holidays days off).
 - 3) Prorate days off pursuant to provisions of Section 26.II
 - b. After awarding of the Monthly Runs:
 - 1) Bid Run pilots Paid and Credited for Segments missed.
 - 2) Reserve Run pilots on Company business shall be Paid and Credited the greater of the following:
 - a) For any published Segments missed as defined in Subparagraph B.4 of this Section; or
 - b) For all workdays missed on Company business five (5) hours per workday.

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3. A pilot within their Probation Period shall be provided one (1) day of Company business at five (5) hours of Pay and Credit for ALPA onboarding within thirty (30) days of completion of initial training. The ALPA onboarding event shall be scheduled and conducted by the HAL MEC Membership Committee, with Company personnel being invited for select presentations.
4. Except for the provisions of Section 8 (Administrative Pilots), if the Company requests a pilot perform service for the Company not directly related to their normal training or flight duties, and such pilot accepts such assignment, then the pilot shall be Paid and Credited as follows:
 - a. Prior to the opening of the monthly Bidding Period:
 - 1) Five (5) hours of Pay and Credit per day during the Company Business period.
 - 2) During the Company Business period, work days shall normally be five (5) work days followed by two (2) days off (normally Monday through Friday work days, and Saturday, Sunday, and Company Holidays days off).
 - 3) Prorate days off pursuant to the provisions of Subsection 26.JJ (Table of Prorated Absences).
 - b. After awarding of the Monthly Runs:
 - 1) Bid Run pilots Paid and Credited for Segments missed.
 - 2) Reserve Run pilots on Company Business shall be Paid and Credited the greater of the following:
 - a) For any published Segments missed as defined in Subparagraph 4.B.4; or
 - b) For all work days missed on Company Business, five (5) hours per work day.

I. MONTHLY ACCOUNTING REPORTS

1. The Company shall distribute certain communications to pilots according to the following:
 - a. Within five (5) days of a month's reconciliation pay date, an email shall be sent to each pilot's Company email account containing:
 - 1) Current sick bank
 - 2) Current vacation bank
 - 3) An accounting of the prior month's Pay and Credit time
 - 4) All entries necessary to satisfy FAR Part 121 logbook requirements, including at least the following:
 - a) Flight numbers;
 - b) Dates;
 - c) Points of departure and arrival;
 - d) Total flight time;
 - e) Type and identification of aircraft;
 - f) Pilot in command or second in command; and
 - g) Number of landings.

J. MEC ACCOUNTING

1. The Company shall, by the fifteenth (15th) of the month following the month in which the flying was performed, provide the MEC Chairperson with a full and complete accounting of all debits and credits.

K. PAY ERRORS

1. LOA 22-05 Pay Errors shall remain in effect until this Subsection becomes effective on June 2, 2024:

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- a. To file a general or specific pay error report, a pilot must submit the report via the mutually agreed-upon electronic method (e.g., eConnect).
- b. For general questions on pay or paychecks that do not trigger the three (3) Working Day pay correction requirement, the Company shall provide the pilot with a response and answer within five (5) Working Days.

Example of a general question: "I flew extra hours last month, why is my paycheck not equal to the number of hours I flew?"

- 1) A Company response will be considered sufficient if additional information is requested from the pilot and the requested information is not promptly provided or results in the Company being unable to provide an answer within five (5) Working Days.
- c. For a pay claim that results in a payment of less than \$1,000.00, the payment shall be made in the next regular paycheck following the specific pay error claim.
 - 1) Should a specific pay error claim be received within seven (7) working days or less of a regular paycheck, the payment shall be made in the subsequent regular paycheck.
- d. If a pay error is made which results in a pilot being underpaid by one-thousand dollars (\$1,000.00) or more, payment to be issued by the Company within ten (10) Working Days, unless the underpayment is fifty percent (50%) or more of the pilot's gross wages, which shall require payment sent (i.e., FedEx to physical address on file) within three (3) Working Days.
 - 1) For the purposes of Subparagraph 4.K.1, "Working Days" shall be defined as Monday through Friday, excluding national and state holidays.
 - 2) To trigger a specific pay error notification to the Company, a pilot must include the following information in the report:
 - a) Either the dollar or hour amount in question, or
Example: "I am missing 37.5 hours from my May 22nd paycheck."
 - b) A detailed account of the cause of the error.
Example 1: "I flew a PPU grouping on Oct 2nd (H3102) and was not paid any premium pay."
Example 2: "I am owed DIRT pay for the 23 hrs. and 14 min. delay on grouping H5000 that I flew on May 23rd."
 - 3) If the underpayment is fifty percent (50%) or more of the pilot's gross wages, the payment may be made via the following methods:
 - a) Direct deposit (which may not immediately be available due to Bank of Hawaii processing times);
 - b) Place the amount on the next paycheck;
 - c) Send a check via FedEx to the pilot's physical address on file with the Company; or
 - 4) Pilot has option to receive a correction that is one-thousand dollars (\$1,000.00) or more but less than fifty percent (50%) of their gross wages by manual check or on their next check.

L. SEGMENT CREDIT

1. Flight Pay and Credit of six (6) minutes will be paid for each Segment, scheduled or flown (whichever produces the greater number of Segments), for each Duty Period and shall be added to the pay time for each Segment.

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2. Pay hours credited to the pilot for Segments published but not flown, including Segment Credits (as provided for by other sections of this Agreement), will be included to determine the pilot's total Pay and Credit for the entire Duty Period.
3. The provisions of this Paragraph shall not apply to flight training.

M. RECALL PAY

1. A pilot recalled pursuant to the provisions of Subsection 22.G (Unassigned Flying Assignment Process)) shall be Paid and Credited as follows:
 - a. Pay for the Flight Grouping shall be in accordance with Subsections 4.B (Pay and Credit), 4.C (Minimum Pay and Credit), and 4.D (Pay and Credit for Schedule Changes) at two hundred (200) percent of the pilot's normal hourly pay rate (as prescribed in Subsections 3.C (Captains' Hourly Pay Rate), 3.D (First Officers' (FO) Hourly Pay Rate), and 3.E (Minimum Monthly Guarantee)).
 - b. Credit for the Flight Grouping shall be in accordance with Subsections 4.B (Pay and Credit), 4.C (Minimum Pay and Credit), and 4.D (Pay and Credit for Schedule Changes) at one hundred (100) percent of the pilot's normal hourly pay rate (as prescribed in Subsections 3.C (Captains' Hourly Pay Rate), 3.D (First Officers' (FO) Hourly Pay Rate), and 3.E (Minimum Monthly Guarantee)).
2. That results in a pilot being unavailable or illegal to fly any other Flight Grouping(s) on their schedule, shall be Paid and Credited the greater of:
 - 1) The Flight Grouping(s) missed, or
 - 2) The Flight Grouping flown.
3. If, for any reason, an International Pilot is delayed in returning to their Domicile on such recall Flight Grouping, the provisions of Subparagraph 4.D.2.e shall apply at the rates described therein.
4. Subparagraph 4.M.1.a shall be applied to reserve pilots who are recalled such that the two hundred (200) percent shall be paid in addition to the minimum monthly guarantee.

N. Over 75

1. Pay for the assigned Flight Grouping(s) shall be in addition to the pilot's seventy-five (75) hour minimum monthly guarantee; whereas credit for the assigned Flight Grouping shall be added to the pilot's cumulative time for the month.

O. IRO/EXTENDED RANGE CREW OVERRIDE PAY

1. IRO and Extended Range Crews shall be paid an hourly override added to the pay rates designated in Subsections 3.C (Captains' Hourly Pay Rate) and 3.D (First Officers' (FO) Hourly Pay Rate). The hourly override shall be paid, per block hour (block out to block in) flown, to the entire crew as follows:
 - a. IRO Crew

Captain	\$5.00
IRO	\$4.00
First Officer	\$3.00

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b. Extended Range Crew

Captain	\$5.00
FO "Type-rated"	15% hourly pay premium
First Officer	\$3.00

The override for Captains serving as a member of an IRO or Extended Range Crew shall be the Captain override amount under all circumstances.

P. PREMIUM PICK-UP PAY

1. A pilot who is eligible for Premium Pick-up Pay as defined in Subsection 22.P (Premium Pick-up Pay) shall receive one hundred percent (100%) Pay and Credit and fifty percent (50%) pay for the Flight Grouping.

Q. NQ PAY PROTECTION

1. "NQ Pay Protection" ("NQ PayP") shall be applied to all removed Flight Groupings or Reserve days of an NQ Pilot.
 - a. A Bid Run pilot shall be Paid and Credited for any Flight Grouping(s) that is removed per PWA Subparagraph 22.J.11.
 - b. A Reserve Run pilot shall be Paid and Credited four and seventeen hundredths (4.17) hours for each Reserve day(s) removed per Subparagraph 22.J.11.

R. PAY PROTECT (PAYP)

1. Should a pilot elect to Add a Flight Grouping on a PAYP day(s), the pay shall be:
 - a. Pay and Credit of the PAYP Day, and
 - b. Pay and Credit of the added Flight Grouping

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A. HOURLY EXPENSE ALLOWANCE

1. Pilots shall receive an hourly expense allowance to cover meals, laundry, and incidental expenses for each hour or portion thereof that a pilot is away from their Permanent Domicile. The hourly rate paid to pilots will be as follows:
 - a. Interisland rate:
 - 1) At \$2.00 per hour and prorated for fractions of an hour.
 - 2) Interisland as used herein shall mean “Interisland Flying” as defined in Subparagraph 2.A.35.
 - b. International rate:
 - 1) At \$2.50 per hour and prorated for fractions of an hour.
 - 2) Paid to any Interisland Pilot who departs the Hawaiian Islands for an overseas destination.
 - 3) International as used herein shall mean “International Flying” as defined in Subparagraph 2.A.37.
 - 4) Paid for the entirety of any Mixed Flying grouping.
2. The hourly expense allowance for an International Pilot voluntarily awarded a Flight Grouping at a Domicile other than their own shall begin one (1) hour prior to such pilot’s departure from their Domicile enroute for duty at another Domicile and end when such pilot is released from duty at their Domicile.
3. If a pilot transits their Domicile during a Duty Period, their hourly allowance and Trip Rig will continue until such time as they are released from duty at their Permanent Domicile for the number of hours specified in Subsection 10.E (Rest Periods).
4. A pilot, when on flying or ground training assignments at their Permanent Domicile, will receive each day the hourly allowance shown in Subparagraph 5.A.1, commencing when they are required to report for training (or when they actually report, whichever is later) and ending when they are released from training sessions that day. When training is conducted away from their Permanent Domicile, the pilot will receive the hourly allowance stipulated in Subparagraph 5.A.1 for that period of time beginning when the pilot departs their Permanent Domicile and ending when the pilot arrives back at their Permanent Domicile.
5. The hourly expense allowance provided in Subparagraph 5.A.1 shall commence when a pilot departs their Permanent Domicile for temporary duty at another Permanent Domicile, or for duty at a Temporary Domicile, and shall continue until such time as the pilot returns to their Permanent Domicile after release from such duty. All pilots shall have a minimum of twenty-four (24) hours free of all duty immediately following transfer between Domiciles. If travel time is extended for personal reasons, it is understood that hourly expenses for this extended travel time will not be paid. A pilot shall not receive hourly expense allowance for days of vacation while serving at a Temporary Domicile.
6. When a pilot’s scheduled Flight Grouping originates out of one airport and terminates at another airport serving their Domicile, the following “Transfer Times” will be used to increase the Duty Period, deadhead Pay and Credit time, and per diem due such pilot pursuant to Subparagraph 5.C.3:

<u>Airports</u>	<u>Transfer Times</u>
LAX-BUR	1.17 hours
LAX-ONT	2.00 hours
LAX-PMD	2.00 hours

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SEA-BFI	0.83 hours
SFO-OAK	1.00 hours
SFO-SJC	1.00 hours

- b. Scheduled Duty Period and required limitations pursuant to the provisions of Subparagraph 10.D.1.a may be extended by application of the appropriate transfer time. Consider the following example:

- 1) A three (3) pilot crew is scheduled to fly LAX-HNL-ONT with an LAX departure of 0800 and a scheduled block time of ten and one-half (10.50) hours.

- 2) Calculation of Pay and Credit:
- | | |
|--------------------------|-------------|
| Block Time | 10.50 |
| Deadhead Transfer Time | <u>2.00</u> |
| Scheduled Pay and Credit | 12.50 hours |

- 3) Calculation of “Adjusted” Duty Times
- | | | |
|----------------------|------------------|----------------|
| | <u>Scheduled</u> | <u>Maximum</u> |
| Duty Times | 14.00 hours | 16.00 hours |
| Transfer Time | <u>2.00</u> | <u>2.00</u> |
| “Adjusted” Duty Time | 16.00 hours | 18.00 hours |

7. Pilots on a foreign Flight Grouping shall be provided an hourly expense allowance pursuant to the provisions below:

- a. Allowance is intended to cover the cost of meals, laundry, tips, and other incidental expenses.

- b. The Company shall arrange for and bear the costs of:

- 1) Suitable lodging; and
- 2) Transportation between the airport and hotel for duty purposes.

- c. The hourly rate shall be paid to pilots:

- 1) When a pilot’s “block-in to block-out” time at the foreign destination is four (4) or more hours; and

- 2) Shall be calculated at:

- a) The hourly rate specified in Subparagraph 5.A.1.b for the Duty Period:

- (1) Prior to “block-in” at the foreign destination; and
- (2) After “block-out” from such foreign destination.

- b) The greater of the hourly rate specified in Subparagraphs 5.A.1.b or a rate equivalent to seventy percent (70%) of the US State Department’s “Maximum Travel Per Diem Allowances for Foreign Areas” published for that foreign destination and in effect at the time of such layover for the period:

- (1) Beginning at “block-in” at the foreign destination; and
- (2) Ending at “block-out” from such foreign destination.

8. In addition to the hourly rate in Subparagraph 5.A.1.a, Interisland Pilots shall receive for each hour or portion thereof that a pilot is away from their Permanent Domicile:

- a. Interisland Premium Pay:

- 1) At \$0.75 per hour and prorated for fractions of an hour.
- 2) Interisland as used herein shall mean “Interisland Flying” as defined in Subparagraph 2.A.35.

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B. LODGING

1. In addition to the hourly expense allowances provided in Subsection 5.A (Hourly Expenses Allowance):
 - a. The Company shall furnish suitable single room hotel accommodations (where available) in a suitable location for pilots:
 - 1) Scheduled to layover at a location for four (4) or more hours (Block In to Block Out); or
 - 2) While on flying or training duty away from their Permanent Domicile.
 - b. If the Company does not provide hotel accommodations, the Captain shall:
 - 1) Obtain suitable lodging for the crew; and
 - 2) Claim reasonable actual lodging expense on their expense account form supported by hotel receipts.
 - c. The Company shall provide an International Pilot voluntarily awarded a Flight Grouping originating at other than their Domicile with hotel accommodations (at Company expense) in any Domicile (except their own) to accomplish the pilot's flight duties.
2. Hotels must have the following required items to be considered suitable pilot hotels on an initial and on-going basis:
 - a. Safety:
 - 1) Sprinklers
 - 2) Smoke Detector
 - 3) Emergency lighting
 - 4) Effective and safe egress paths and stairwells
 - 5) Guestroom phone should have outside-line accessibility
 - 6) Staff emergency training
 - 7) Electronic key
 - 8) Secondary door lock
 - 9) Alarm system
 - b. Security
 - 1) Rooms assigned above ground level
 - 2) No exterior corridors
 - 3) Windows/Sliders w/secondary lock
 - c. Quiet
 - 1) Should be able to get adequate rest
 - d. Guestroom
 - 1) Single occupancy
 - 2) Expedited check-in
 - 3) No credit card required
 - 4) Non-smoking
 - 5) Pilot rooms shall be assigned to the highest available floor (non-upgrade)
 - 6) Black out curtains
 - 7) Complimentary In-Room WIFI internet

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- e. Miscellaneous
 - 1) Fitness center
 - a) Or free access to one near the hotel
- f. Restaurant facilities (room service or non-fast food restaurant, including delivery).
 - 1) Open on a twenty-four (24) hour basis.
 - a) If such restaurant facilities are not available, then:
 - (1) The Captain may obtain transportation for the crew to and from suitable restaurant facilities; and shall be reimbursed for such transportation expense; or
 - (2) Each pilot shall be eligible for reimbursement for any delivery fees/service charges up to \$10 for each twenty-four (24) hour period at the hotel.
- 3. In addition to all of the requirements in Subsection 5.B.2, Long layovers (those of twenty (20) hours or more from release to report), shall have hotel accommodations located in areas that have the following:
 - a. Safe walking area
 - b. Restaurants, stores, entertainment, etc.
- 4. Sourcing Protocols:
 - a. The Company will share a list of hotels to be inspected prior to the hotel inspection trip, with adequate time for ALPA to add suggested hotels to the list.
 - b. ALPA shall not contact hotels to affect negotiations.
- 5. Selecting Protocols and Processes:
 - a. There will be timely collaboration between both parties during the entire selection process.
 - b. The Company will make every effort to plan site inspections with ALPA so that FPL for the Hotel Committee member conducting inspections is placed on their schedule prior to the monthly bid process.
 - c. The Company will arrange for a reasonable amount of time to inspect each property.
 - d. The Company will arrange for a reasonable number of inspections per day.
 - e. A consensus should be reached but is not required on hotel selections.
 - f. If ALPA believes the Company selected a hotel that does not meet the requirements of the PWA:
 - 1) Dispute Process can be invoked and, if so:
 - a) The Company may place pilots in the disputed hotel while the dispute is being resolved.
 - b) The Company will not enter into a long-term contract commitment (without an exit clause) until the results of the dispute process are final.
- 6. Dispute Resolution Process (DRP)
 - a. Problems encountered by a pilot with a crew hotel or transportation services shall exclusively be resolved through the Dispute Resolution Process (DRP) set forth below:
 - b. A pilot shall fill out a Hotel/Transportation Suitability Form (HTS) form and send it to the Association.

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- c. Upon receipt of an HTS submission, the Association's Hotel Committee will work to address the issue internally without directly contacting the crew hotel, or escalate the issue to the attention of the Flight Operations Manager. The Company shall, no less than monthly, respond to all open escalated issues.
 - d. A meeting between the MEC Chairman and VP of Flight Ops must occur within ten (10) business days of initial request for the meeting unless mutually agreed otherwise.
 - 1) A decision shall be issued within two (2) business days of the meeting unless mutually agreed otherwise.
 - 2) Expedited arbitration within thirty (30) days for disagreement or failure to meet.
7. The Company shall maintain and distribute to pilots a list of approved suitable hotel accommodations at each station where pilots layover.
- a. The Company shall submit the hotel list to the MEC for approval each January and July.
 - 1) The list shall:
 - a) Include the hotel's name, location, distance, and reasonable travel time from the airport of all such facilities.
 - 2) Prompt remedial action will be initiated in those cases where investigation affirms a deterioration of service.
8. In addition to other provisions of this section:
- a. An International Pilot voluntarily awarded a Flight Grouping originating at other than their Domicile shall be provided with hotel accommodations (at Company expense) in any Domicile (except their own) to accomplish the pilot's flight duties.
 - b. Pilots holding Type III, IV, or V Temporary Vacancies shall be provided suitable hotel accommodations any time such pilots are scheduled (pursuant to Company orders) to remain at their Permanent Domicile for four (4) or more hours.
 - c. Pilots awarded Type IV or V Temporary Vacancies that desire to live at a place other than the designated hotel may do so subject to the following:
 - 1) The Company will pay them an amount equal to the cost of a room where they would have been lodged; and
 - 2) The Company may subtract cancellation charges and taxes (if any) from the cost of lodging provided the hotel arrangements (made by the Company on behalf of the pilot) were made prior to the pilot notifying the Company of their desire to make other arrangements.
 - d. Pilots holding Type V Temporary Vacancies shall continue to maintain their lodging rights while on vacation.

C. TRANSPORTATION

- 1. When hotel accommodations are required in accordance with Subparagraph 5.B.1.a, the Company shall pay the cost of transportation to and from the hotel to the airport or training site, as applicable. (One taxi per pilot crew each way, unless suitable transportation is available, hotel bus, etc.)

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- a) The Company will provide clean, safe, reliable, and secure transportation for pilots. Items to be used when determining suitability of transportation vendor(s) contracted with, include but are not limited to:
 - (1) Schedule
 - (a) Roll times based on projected traffic, specific to time and day of the week
 - (2) Clean
 - (a) Clean and presentable shuttle,
 - (b) Equipped with efficient AC and heat
 - (3) Safe
 - (a) Seat for each pilot/crewmember (size of crew),
 - (b) Size of shuttle sufficient for crew size, luggage and travel time,
 - (c) Seatbelts for each pilot/crewmember,
 - (d) Training program and drug policy for drivers
 - (4) Reliable
 - (a) Reputable, established, experienced,
 - (b) On-time,
 - (c) Drive time and stops,
 - (d) Insurance
 - b) Any dispute of this Subparagraph 5.C.1 will be resolved using the Dispute Resolution Process contained in Sub paragraph 5.B.6.
2. In the event a pilot's Flight Grouping originates at one airport and terminates at another airport at their Domicile, the pilot shall be furnished transportation one way between one airport and the other at the pilot's option. A pilot assigned to a schedule involving this type of operation shall advise the Company prior to the start of the schedule, the one direction they desire such transportation during the period they are assigned to that schedule. When transportation does not leave within thirty (30) minutes after the completion of the Duty Period, then the pilot may use any other available means of ground transportation between one airport and the other and may claim reimbursement for expenses for such transportation, with receipts, on the regular Company expense account form and said pilot shall be reimbursed therefor. Further, they shall be Paid and Credited deadhead time and per diem, based on the applicable one way transfer time listed in Subparagraph 5.A.6 and the pilot shall also be entitled to claim reimbursement for any parking expenses, with receipts, incurred at other than their Domicile airport on the regular Company expense account form, and said pilot shall be reimbursed one hundred percent (100%) of such parking expense therefor.
3. When a pilot is scheduled to originate and terminate a Flight Grouping at an airport serving their Domicile other than the Domicile airport, as defined in Subparagraph 20.K.3, they shall receive a mileage allowance of fifteen cents (\$0.15) per mile for the round-trip driving distance between the Domicile airport and the airport at which the Flight Grouping originates and terminates. Further, they shall be paid per diem based on the applicable round trip Transfer Time listed in Subparagraph 5.A.6 and the pilot shall also be entitled to claim reimbursement for any parking expenses, with receipts, incurred at such airport on the regular Company expense account form, and said pilot shall be reimbursed one hundred percent (100%) of such parking expense therefore.
4. Whenever an International Pilot is required to travel between any Domicile to originate or terminate a voluntarily awarded Flight Grouping(s), the Company shall provide and arrange positive space travel to/from the location of such Flight Grouping(s) and the pilot's Domicile.

D. SPECIAL ASSIGNMENTS

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1. Pilots ordered by the Company to duty involving circumstances of a temporary or special nature shall be paid all reasonable actual expenses incurred thereby, as supported by receipts. These expenses will be in lieu of and not in addition to expenses provided by Subsections 5.A (Hourly Expenses Allowance), 5.B (Lodging), and 5.C (Transportation).
2. Pilots incurring such expenses will, whenever possible, obtain prior approval.

E. UNIFORMS

1. The Company will provide each “new hire” pilot with a complete uniform as appropriate to the Domicile at which they will be serving. A raincoat shall always be provided to such pilots regardless of initial Domicile, but the uniform coat may be omitted in tropical areas. The initial uniform issue shall include not less than two (2) approved shirts.
2. The Company shall provide each pilot with new uniform replacements at the rate of one (1) pair of trousers, one (1) tie, and two (2) shirts every twelve (12) months, or sooner at Company discretion, based upon reasonable wear.
3. The Company shall provide each pilot with one (1) pair of epaulets, one (1) hat, and one (1) coat (if required) every thirty-six (36) months, or sooner at Company discretion, based upon reasonable wear.
4. Whenever the Company initiates a change to pilot uniform styles the Company will consider the recommendations of the Master Executive Council.

F. PARKING

1. The Company shall make every reasonable effort to provide or arrange free parking for pilots at their Domiciles. Should free parking space not be available, the Company will pay the pilot, upon presentation of a receipt, any excess over five dollars (\$5.00) that the employee has to pay monthly. If the employee requests, they may pay through payroll deduction.
2. If a pilot does not claim parking expense at their Domicile, such pilot may claim parking expense at one other location and the Company shall reimburse such pilot the excess over five (\$5.00) dollars that such pilot has to pay monthly to a maximum of what such pilot’s parking expense would have been had they parked at their Domicile. In addition to any other reimbursable parking expense, a pilot assigned a flight or reserve duty at a Domicile other than their own may claim monthly parking expense at the assigned Domicile.

G. TRAVEL AND TEMPORARY LODGING

1. All transferring pilots shall be provided with positive transportation to the location of their new award or assignment by use of full fare, reduced fare positive, or reduced fare space available tickets depending upon the pre-booked load factors on the specific flights to be flown to the site of such award or assignment. No space available ticket will be issued when the pre-booked load factor is more than ninety percent (90%). If unforeseen circumstances make use of a space available ticket unlikely, the pilot may upgrade their ticket to positive space and be reimbursed therefore.
2. The Company shall, in addition to transportation provided in Subparagraph 5.G.1, bear the cost of all reasonable actual expenses of each pilot transferring from one Domicile to another Domicile, for hotel and meals, to the extent such expenses are supported by receipts.

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3. Each member of a transferring pilot's immediate family (eligible dependents of the pilot who reside with them) shall be provided with space available air transportation to the location of the new award or assignment when such award or assignment is expected to exceed ninety (90) days duration.
 - a. Each member of a pilot's immediate family (eligible dependents of the pilot who reside with them) shall be provided with round-trip space available air transportation from the pilot's Permanent Domicile to the location of their Type V Temporary Vacancy once during each ninety (90) day period while they are filling such Temporary Vacancy. In lieu of this provision, the pilot may elect to receive round-trip positive space air transportation to their Permanent Domicile once during each ninety (90) day period while they are away from their Permanent Domicile.
 - b. When a pilot is transferring as the result of an assignment to any Vacancy which is expected to exceed ninety (90) days duration, the Company shall pay all reasonable actual expenses, supported by receipts, for meals and lodging while in transit for each member of the pilot's immediate family.
4. The reasonable actual expenses, of each pilot for meals, lodging, and incidental expenses for a period of up to ten (10) days at their new Domicile, when they are transferring pursuant to the award of any Permanent Vacancy, shall be borne by the Company providing the move has been made. It is mutually agreed that the U.S. General Services Administration's (GSA) Domestic Maximum Per Diem Rate will be deemed to be "reasonable actual expenses". Such ten (10) days shall be selected at the discretion of the pilot.
 - a. When a pilot is transferring as a result of the assignment to any Permanent Vacancy, the Company shall pay all reasonable actual expenses, supported by receipts, of the pilot and all members of their immediate family for meals and temporary lodging for a period of up to fourteen (14) days at the new Domicile. Such fourteen (14) days shall be selected at the discretion of the pilot.
 - b. A transferring pilot, whether awarded or assigned to a Permanent Vacancy, shall be reimbursed for local transportation from their temporary lodging to airport until such time as their personal automobile arrives at their new Domicile.
 - c. When Company operations require a pilot to fill an awarded or assigned Permanent Vacancy prior to moving their household, pursuant to Subparagraph 5.H.1, the Company shall pay from the time a pilot departs their former Domicile the hourly expense allowance (Subsection 5.A) continuously, lodging expenses (Subsection 5.B) and transportation expenses (Subsection 5.C) of the pilot until such time as they are permitted to move and actually receives relocation and travel time to accomplish such move.
 - d. Expenses for new hire pilots shall be provided for their initial assignment after successful completion of their initial training. For the purposes of Subsection 5.G (Travel and Temporary Lodging), such new hire pilots shall be entitled to receive five (5) days' expenses as calculated in the manner described above.

H. MOVING EXPENSES

1. The Company shall pay for the following moves:

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- a. All non-voluntary moves, including all pilots assigned a Type V Temporary Domicile Vacancy after a minimum of six (6) months of duty at such Temporary Domicile*.
 - b. All moves to a newly established Domicile**.
 - c. All moves from HNL/Mainland or Mainland/HNL.
 - d. All Displacement moves.
 - e. *A pilot assigned a Type V Temporary Domicile Vacancy who exercises their right to a Company-paid move pursuant to the provisions of Subsection 5.H shall be treated for all purposes as though the Temporary Domicile were their Permanent Domicile.
 - f. **A “newly established Domicile” is a Domicile that has been in existence for one (1) year or less.
2. The Company shall pay actual moving expenses for household goods and effects up to a maximum of one thousand five hundred (1,500) cubic feet or fifteen thousand (15,000) pounds, if substantiated by properly receipted bills, for shipping, insurance for declared value, drayage, packing and unpacking, indicating the number of cubic feet of household goods or effects being handled. The Company may, at its option, prescribe or control the shipment from the time of packing at the point of departure to the time of unpacking at the point of arrival. If for any reason the Company has not delivered the household goods within thirty (30) days from the time of packing, the Company shall pay thirty dollars (\$30.00) per day for each adult and child over twelve (12) years of age and fifteen dollars (\$15.00) per day for each child under twelve (12) years of age until the pilot is notified that their household goods are available for pickup. Necessary storage of up to thirty (30) days will be authorized at origin and/or destination.
- a. If such pilot uses their personal automobile(s) for transportation to the new Vacancy, the Company will pay an allowance of twenty cents (\$0.20) per mile for the shortest American Automobile Association highway mileage between the pilot’s former Domicile and their new Domicile. In cases where personal automobiles must be transferred by ocean (or air) shipping for all or part of the move, the Company shall pay all reasonable and actual costs of such transfer for up to two (2) automobiles.
 - b. Moving expenses shall be from Domicile to Domicile or actual cost of the move, whichever is less. Consider the following two (2) examples:
 - 1) A pilot moves HNL to DFW and their new Domicile is LAX; they are paid HNL-LAX.
 - 2) A pilot moves DFW to HNL and their former Domicile was LAX; they are paid LAX-HNL.
 - c. Pilots who move pursuant to Subsection 5.H (Moving Expenses) shall have two (2) years to complete a move. This two (2) year period shall commence following the pilot’s first required duty at their new Domicile. This time may be extended by mutual written agreement between the pilot and the Company.
3. A pilot who is not afforded a paid move from a Domicile shall be permitted to transport household goods and personal effects free of charge on Company aircraft on a space available basis. In the event that space is not available on Company aircraft, the Company will make every reasonable effort to secure free or reduced rate carriage by another carrier.

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4. A pilot recalled from a furlough to a Domicile other than that from which they were furloughed shall be moved from their residence to the new Domicile at Company expense as provided in Subparagraph 5.H.1. In no event shall the Company's liability for moving expenses be greater than the cost of moving from the Domicile from which the pilot was furloughed to the Domicile to which they are recalled.
5. A pilot who has been assigned by the Company to a different Domicile and who is then furloughed for a period of ninety (90) days or more at the new location within four (4) months from the date of such assignment, shall, at that time, if the pilot so requests, have the Company pay their moving expenses, as outlined in Subparagraph 5.H.1, back to the Domicile from which the pilot was assigned or another location of their choice, whichever is less.

I. RELOCATION TIME

1. Whenever a pilot is awarded or assigned any Permanent Vacancy or assigned a Type V Temporary Domicile Vacancy and actually moves their household under the provisions of Subparagraph 5.H.1, they will be relieved from all duty with the Company for a period of five (5) days to permit the pilot to make final arrangements for closing their affairs at their old Permanent Domicile and to settle at their new Permanent Domicile. Such five (5) day relocation periods shall be designated through mutual agreement between the pilot and the Company, and shall attach to any travel time allowances due the pilot under Subparagraph 5.I.2. If the pilot and Crew Scheduling are unable to reach agreement on the travel day(s), then the pilot shall select three (3) days, if traveling for a single day, or three (3) periods, if traveling for two (2) or more days. Crew Scheduling shall immediately grant one (1) of the days or periods, as applicable, that the pilot has selected. If the pilot selects periods, they shall not overlap, unless overlapping is agreed to by Crew Scheduling.
2. In addition to the five (5) day relocation period specified above, pilots filling Permanent Vacancies or pilots assigned to Type V Temporary Domicile Vacancies shall be permitted to drive their personal automobile(s) to their new Permanent Domicile or Type V Temporary Domicile Vacancies and shall be allowed one (1) day of travel time for each three hundred seventy-five (375) statute miles or any fraction thereof which exceeds twenty-five (25) statute miles for the most direct AAA mileage between the pilot's former residence and their new residence. Such travel days shall be determined by mutual agreement between the pilot and the Company. If the pilot and Crew Scheduling are unable to reach agreement on the travel day(s), then the pilot shall select three (3) days, if traveling for a single day, or three (3) periods, if traveling for two (2) or more days. Crew Scheduling shall immediately grant one (1) of the days or periods, as applicable, that the pilot has selected. If the pilot selects periods, they shall not overlap, unless overlapping is agreed to by Crew Scheduling.
3. A pilot who notifies the Company that they intend to move their household in conjunction with their transfer to a new Permanent Vacancy shall be entitled, whenever possible, to move prior to performing any duty at their new Permanent Domicile. A pilot and the Company may, however, mutually agree to waive this paragraph if a deferred moving date is preferable to the pilot. A waiver of this paragraph by a pilot shall also constitute a waiver of the temporary living expense required by Subparagraph 5.G.4.c.
4. In the event a pilot loses a Flight Grouping(s) during the five (5) day relocation period or travel time determined under Subparagraphs 5.I.1 and 5.I.2, such pilot shall be Paid and Credited as though they had actually flown such flights. In no event, however, will such pilot be Paid and Credited with less than three (3) hours on any such days free of duty.

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 5

EXPENSES

5. The five (5) day relocation period and travel time allowance will usually include some of a pilot's originally scheduled days off, and such days off will not be replaced. Similarly, relocation and travel days off shall not be used to replace scheduled days off falling outside such period.
6. A pilot taking relocation days shall receive a prorated number of days off for the remainder of the month in accordance with Subsection 26.JJ (Table of Prorated Absences).

J. MISCELLANEOUS EXPENSES

1. The Company shall reimburse each pilot for the cost of passports, visas, inoculations, and any airport or government charges, such as head tax, incurred while traveling on Company Business.

K. EXPENSE REIMBURSEMENT CLAIMS

1. Expense claims must be received by the Company in a timely manner in order for ten percent (10%) accrued annual interest to be added to payment of an expense claim that is paid more than thirty (30) days after the Company receives the claim. An expense claim will be deemed to be received by the Company in a timely manner if the expense claim form is completely and accurately filled out, signed, and turned in to the flight crew payroll department within fifteen (15) calendar days of the following month after the reimbursable expense has been incurred.
2. In addition to Subparagraph 5.K.1, if the Company fails to reimburse the pilot within thirty (30) days after the pilot has timely filed an expense claim, at some time during the next thirty (30) days, the pilot should notify the flight crew payroll department of this fact by certified mail or Company date-stamped notification. If the pilot submits this notification and the pilot has not been reimbursed within ninety (90) days of the original expense claim submission, then the Company shall pay the pilot twenty-five dollars (\$25.00) in addition to the expense reimbursement and the ten percent (10%) accrued annual interest.

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HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 6

VACATIONS

A. THE CALENDAR YEAR

1. For administrative purposes, the calendar year shall be used as the vacation year; however, any increase in a pilot's vacation entitlement effective on their anniversary date shall be credited to the pilot at the increased rate for the balance of the year, and they may project and use such increased entitlement in bidding vacation periods posted by the Company on October 1 and November 1 each year.

B. VACATION ACCRUAL

1. Effective April 1, 2003, pilots who have completed one (1) or more years active service with the Company shall be granted annual vacation in accordance with the table below:

<u>Active Service</u>	<u>Annual Vacation</u>
After 1 year	15 days
After 3 years	16 days
After 5 years	21 days
After 10 years	23 days
After 12 years	27 days
After 15 years	29 days
After 19 years	33 days
After 25 years	38 days

- a. Effective since April 1, 2003, a vacation day shall be Paid and Credited at three (3) hours per day.
 - b. Effective January 1, 2024, a vacation day shall be Paid and Credited at three and one half (3.5) hours per day.
 - 1) Primary and Secondary vacation bidding beginning in October 2023 shall utilize these increased daily values.
 - c. Effective January 1, 2026, a vacation day shall be Paid and Credited at three and three quarter (3.75) hours per day.
 - 1) If the vacation day value at American, Delta, and United is four (4) hours or greater on September 1, 2025:
 - a) Effective January 1, 2026, a vacation day shall be Paid and Credited at four (4) hours per day.
 - 2) Primary and Secondary vacation bidding beginning in October 2025 shall utilize these increased daily values.
2. A pilot who has less than one (1) year of continuous service with the Company shall, for the purpose of vacation days' computation, be granted:
 - a. One and twenty-five hundredths (1.25) vacation days for each calendar month of service.
 - b. Credit for a full month for any month with fifteen (15) or more calendar days of service.
 - c. No credit shall be given for any month with less than fifteen (15) days service.

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 6

VACATIONS

C. NON-ACCRUAL ON LEAVE

1. Vacation time shall not, however, accrue to pilots while on leave of absence or sick leave without pay in excess of two (2) weeks, excluding time off due to industrial accident or industrial sickness; and
2. In those circumstances, the annual vacation credit shall be reduced on a prorated basis by the total number of days in the total actual leave.

D. MINIMUM VACATION TO BE USED

1. Each year, pilots shall be required to take a minimum of one (1) week's (seven (7) days) vacation. Unused vacation shall be paid to the pilot on the February 22nd paycheck in the following year utilizing the pilot's hourly pay rate as of December 31st of the previous year. (e.g., hourly pay rate on December 31, 2024 shall be utilized for the payment on February 22, 2025).

Example: Pilot has 27 days of available vacation to be used in 2023 and the pilot only takes the minimum vacation of 1 week. On December 31st 2023 the pilot has 60 hours of unused vacation and an hourly payrate of \$392.00. On the February 22nd 2024 paycheck the pilot shall receive \$23,520.

2. The minimum one (1) week requirement established in Subparagraph 6.D.1 may be reduced on a pro rata basis for actual time in service attained in any given calendar year that less than a full year of service was performed due to leaves of absence (Section 11), furlough (Section 19), or by the actual retirement date of a pilot.

E. POSTING OF VACATION LINES

1. The Company shall post the total number of Vacation Lines for each Category by Domicile. The total number of Vacation Lines posted in each Category at each Domicile shall not be less than one hundred percent (100%) of the total number of vacation days accrued by each pilot in that Domicile and Category for that vacation year available for the following calendar year. Such Vacation Lines shall be posted on or before October 1 of each year. Such posting shall be subject to the Company's operational requirements. Notwithstanding the foregoing, the number of Vacation Lines posted in each Category at each Domicile shall be:

- a. A minimum of five percent (5%) of the annual vacation day liability (i.e., only those vacation days accrued in the prior calendar year) per month; and

- 1) The minimum percentage of Vacation Lines must be evenly distributed throughout the month.
- 2) This should be done in conjunction with vacation bidding for the following calendar year.

- b. All percentage results of fifty hundredths (0.50) and above will be rounded upward. In no event shall the number of Vacations Lines be less than one (1) per Category per month.

F. BIDDING AND AWARDING OF VACATION PERIODS

1. All pilots will bid and be awarded their vacation periods in the permanent Category Vacancy the pilot holds and has been Activated in at the time the Vacation Lines are posted. After a vacation period has been awarded it will not be changed even though the pilot may change their Domicile, Category, and/or Vacancy; except as follows:

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 6

VACATIONS

- a. If the vacation of a pilot who changes their Category Vacancy conflicts with staffing requirements, the Company may cancel such vacation provided the pilot is notified within ten (10) days of the Category Vacancy award notification.
 - 1) Such pilot will be allowed to select any vacation period their Seniority could have been awarded had such pilot bid during the normal vacation bidding period in that Category Vacancy.
- b. Vacation that conflicts with a training shell, plus a seven (7) day post training shell buffer, associated with any voluntary (no displacements) changing of a Category, shall be cancelled.
- c. Vacation occurring after the planned training shell plus seven (7) days will be cancelled at the time a pilot is awarded a “newly created Category”.
 - 1) A Category shall be deemed to be a “newly created Category” for twenty-four (24) months after the first vacancy award of the “newly created Category”.
 - a) When a new Category (first year of the new Category’s existence) is awarded the Company will allocate vacation slots pursuant to Subsection 6.E (Posting of Vacation Lines) for the remainder of the vacation year.
 - 2) All pilots awarded a vacancy in a newly created Category shall be eligible to bid and be awarded vacation in seniority order no less than thirty (30) days after the published Category award bulletin, even though they are not necessarily yet Activated in the new Category.
 - 3) If a pilot fails to qualify in a newly created Category, their previously held vacation in their past Category will be reinstated.
- d. A pilot awarded a new Category shall not be awarded monthly vacation days or pop-up vacation days that conflict with their training shell (and post training shell buffer).
- e. Vacation bidding shall be divided into a primary and secondary bidding period. The primary vacation bidding period shall be October 1 through October 31. Pilots shall be allowed to split their primary vacation once, provided that each such period shall not be less than seven (7) days, except that remaining periods of five (5) days or more may be bid as part of this vacation split. Each pilot shall be given a specific date and time on which to submit their primary bid at the time the October runs are posted for bid. As these dates will be in order corresponding to Seniority status, each pilot will be able to see exactly what has been bid and approved ahead of them and what is now available to them. At the time the vacations are bid, approvals shall be given. The approved period(s) shall be posted at this time for the information of the remaining pilots.
- f. Pilots who are out on a flight, on vacation, or for some other reason are not available on the day or days they are scheduled to bid must indicate their preference before leaving. Their bids must be in by the deadline date and time. Pilots who have not bid by their scheduled date and time shall be allowed to bid at any time for a period which has not already been awarded to another pilot.
- g. The secondary vacation bidding period shall be November 1 through November 30. Pilots shall be allowed to bid for any number of additional vacation periods remaining, provided each period is at least seven (7) days duration, except that remaining periods of five (5) days or more may be bid, provided the pilot will have the vacation time to their credit by the end of the current year in addition to the time bid for and awarded on the primary bid. Again, each pilot shall be given a specific date and time on which to submit their bid in accordance with Seniority. Award and posting shall be completed as in the primary bid period.

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 6

VACATIONS

- h. Each pilot must during the primary or secondary bidding period, bid for at least the minimum vacation required pursuant to Subsection 6.D (Minimum Vacation to be Used).

G. REMAINING VACATION PERIODS

1. Any vacation periods/days remaining after the primary and secondary vacation periods have been awarded shall be awarded on a first-come, first-served basis to any pilot at any time throughout the remainder of the year.
2. A pilot shall notify the Company not later than the first (1st) day of the month preceding the month in which the vacation is to be taken.
3. If the Company denies a pilots vacation request due to a projected conflict with their CQ training during the month, the Company shall subsequently either assign the training that was projected to conflict with the vacation request or PAYP the day(s) requested (e.g., pilot requests vacation 9/5-9/8, Company denies request due to projected CQ scheduled 9/5-9/9, however pairing packet is published with pilot awarded CQ training on 9/20-9/24, pilot is PAYP for the requested vacation days on 9/5-9/8 and no vacation hours are debited from the pilot).

H. VACATION USE ON MILITARY LEAVE

1. Provided the Company is notified not later than the first (1st) day of the month preceding the month in which the vacation is to be taken, a pilot with accrued vacation shall, upon request, be granted vacation for any or all days while the pilot is on required military leave.

I. POP-UP VACATION

1. In addition to Subsection 6.F (Bidding and Awarding of Vacation Periods), during any calendar month, a pilot shall, on request, be granted pop-up vacation per Subparagraph 22.I.5. Any vacation granted under this Paragraph shall be vacation accumulated to the pilot in excess of their awarded bid vacation unless otherwise approved by the Company. Pilots granted vacation periods pursuant to the provisions of this Paragraph shall be Paid and Credited for such vacation pursuant to the provisions of Subsection 6.J (Vacation Debits and Credits).
2. In the case of a pilot requesting a vacation pursuant to this Subsection 6.I (Pop-up Vacation) who has insufficient remaining vacation time in their bank: the Company may, with the pilot's concurrence, grant such a vacation provided that the pilot's monthly Pay and Credit shall be reduced by the difference between any remaining vacation used and the credit value of the missed Flight Grouping or, in the case of reserve days, by a value of four and seventeen hundredths (4.17) hours per day. Notwithstanding any provision to the contrary, in the event that a pilot's monthly Pay and Credit is reduced pursuant to this Paragraph to less than the contractual minimum monthly guarantee, such hours shall constitute the pilot's revised minimum monthly guarantee for that month.

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VACATIONS

Examples*:

Original Monthly Pay and Credit	Credit Value of Missed Flight Grouping	Remaining Vacation Bank	New Monthly Pay and Credit less than MMG?	Minimum Monthly Guarantee	Estimated Monthly Pay*
88 hours	10 hours	15 hours	$88 - 10 + 10 = 88$ $88 < 75?$ (no)	75 hours	88 hours
88 hours	10 hours	5 hours	$88 - 10 + 5 = 83$ $83 < 75?$ (no)	75 hours	83 hours
78 hours	10 hours	5 hours	$78 - 10 + 5 = 73$ $73 < 75?$ (yes)	73 hours	73 hours
37.5 hours	10 hours	5 hours	$37.5 - 10 + 5 = 32.5$ $32.5 < 37.5?$ (yes)	32.5 hours	32.5 hours
75 hours (reserve)	X hours (3 days)	5 hours	$75 - X + 5 = Y$ $Y < 75?$ (yes)	Y hours	Y hours

*Examples are for purposes of illustration only. These examples do not take into consideration scheduled versus actual pay, etc. In actual application, all other provisions of the Agreement shall apply and may result in a higher or lower pay amount.

J. VACATION DEBITS AND CREDITS

- One day of vacation shall equal the Pay and Credit time referenced in Subparagraph 6.B.1. Pilots who are awarded vacation periods pursuant to the provisions of Subsections 6.F (Bidding and Awarding of Vacation Periods), 6.G (Remaining Vacation Periods), and 6.H (Vacation Use on Military Leave), shall be Paid and Credited per the vacation day values referenced in Subparagraph 6.B.1 per day during such vacation period and their accrued vacation shall be debited by an equal amount. Pilots who are awarded vacation periods pursuant to the provisions of Subsection 6.I (Pop-Up Vacation) shall be Paid and Credited the value of any Flight Grouping(s) missed or four and seventeen hundredths (4.17) hours for each reserve day during such vacation period and their accrued vacation shall be debited by an equal amount.

K. GENERAL

- A pilot who desires advance vacation payment shall be given a payroll advance immediately prior to the start of their vacation, provided they submit such request to the Chief Pilot on a form provided by the Company at least three (3) office working days before their vacation is scheduled to begin.

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VACATIONS

2. A pilot shall not be assigned vacation without their consent unless they are notified in writing thirty (30) days before the beginning of such vacation. A pilot shall be assigned vacation if they have not bid for the minimum vacation pursuant to Subsection 6.D (Minimum Vacation to be Used) during the primary or secondary vacation bidding periods.
3. A pilot on vacation shall not have their status changed to a lower Category for vacation pay purposes.
4. There shall be no changing of a pilot's vacation schedule or splitting of a vacation period without the consent of the pilot concerned.
5. A pilot shall not be required to keep the Company notified of their whereabouts while on vacation.
6. If a pilot desires to vacate or move an awarded vacation period, they must notify the Company not later than the first (1st) day of the month preceding the month in which the vacation will be vacated. A pilot shall not be allowed to vacate their minimum vacation period unless they are able to reschedule such minimum vacation within that year.
7. Vacation time from July 1 through September 15 and December 20 through January 3 awarded and subsequently vacated before the runs are posted for that month shall be offered at the time vacated to pilot(s) in order of Seniority, beginning with the pilot just junior to the pilot who vacated the bid.
8. A pilot on vacation for a portion of a month shall receive a prorated number of days off for the portion of the month such pilot is not on vacation in accordance with Subsection 26.JJ (Table of Prorated Absences) of this Agreement.
9. The Company may offer voluntary vacation cancellation on a per Category basis, to that entire Category. If a pilot desires to vacate an awarded vacation period, the Company must process the cancellation not later than the first (1st) day of the month preceding the month in which the vacation will be cancelled.
 - a. The pilot shall receive the cash value of the cancelled vacation on the twenty-second (22nd) paycheck of the following month (e.g., voluntarily cancelled vacation in July, paid on August 22nd.)
 - b. The Company may incentivize pilots to volunteer for the vacation cancellation by applying a one-hundred and fifty percent (150%) multiplier to the cancelled vacation (e.g., voluntarily cancelled 4 days of vacation at 3.75 hours per day, pilot is paid $15 \times 1.5 = 22.5$ hours).
10. A pilot shall be required to have a minimum of two (2) days of availability between vacation days (e.g., a pilot with 30 days of vacation cannot drop every other day, creating 15 single days of availability).

L. VACATION DONATION

1. The Company shall establish and maintain a program to permit the voluntary and anonymous donation of accrued vacation by pilots who wish to assist other employees who, because of serious illness, injury, or other exceptional circumstances, have exhausted their own sick leave and/or vacation banks but are unable to return to work and, consequently, are facing financial hardship. The Parties will establish a joint committee or may designate the Retirement & Insurance Committee to establish rules, limitations, and eligibility qualifications and to accept and approve applications for assistance.

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SECTION 6

VACATIONS

M. UNUSED VACATION PAYOUT

1. In the event a Hawaiian Airlines Pilot terminates service, dies, or retires, and has unused vacation accruals, such vacation accruals shall be paid at the vacation credit rate referenced in Subparagraph 6.B.1. based on the Pilot's rate of pay at the time of termination or retirement.
For example, a B787 Captain who terminates service in 2025 with an hourly rate of \$423.99 and has thirty (30) days of accrued vacation remaining, will be paid \$37099.13 ($\$423.99 \times 3.5 \text{ hours} \times 25 \text{ days}$).
2. If such vacation payoff amount is included in a Pilot's Final Average Earnings pursuant to the terms of the Pilots Retirement Plan, the conversion to the number of months and days for purposes of determining Final Average Earnings will be based on the vacation credit rate referenced in Subparagraph 6.B.1. and a straight thirty (25) days per month. Using the example above, the \$37099.13 vacation payoff amount represents one (1) month of earnings ($\$37099.13 / \$423.99 \times 25 \times 3.5$).

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HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 7

DEADHEADING

A. DEADHEADING PILOTS

1. Pilots, when “Deadheading” under orders from the Company, shall be paid all out-of-pocket expenses incident thereto and shall receive “Company Business” passes for the flight.
2. Pilots Deadheading on HAL flights for two (2) hours or more shall be ticketed P0A2/F0 (or equivalent) with First Class charges waived, thereby allowing the pilot to be seated in First Class/Business Class immediately following the last Revenue First Class Passenger (not including interline or HAL employee upgrades). The last Revenue First Class/Business Class Passenger shall be deemed to be any passenger traveling under an arrangement by which the Company derives revenue or economic value.
 - a. If more than one (1) crewmember is Deadheading on the same flight, then the boarding priority will be pilots currently flying as Captain first, then all other crewmembers, in order of seniority by Company date of hire.
3. A pilot may be scheduled to deadhead up to sixteen (16) hours when performing no other duty for the Company.
4. For the purpose of Subsection 7.A, Duty Periods shall start one (1) hour before the scheduled departure time of the Deadheading flight and end at the block-in time of the Deadheading flight.
5. An International Pilot voluntarily awarded a Flight Grouping(s) that originates at a Domicile other than such pilot’s Domicile shall not receive deadhead Pay and Credit for any travel between Domiciles to originate or terminate such Flight Grouping(s).
6. The Company shall pre-assign aisle seats to Deadheading pilots who have not been provided a First Class seat.
 - a. If a pilot is required to deadhead in a middle seat that is not located in First Class (or Business Class), the pilot shall receive an additional fifty percent (50%) pay for the deadhead flight. A pilot may not reseat themselves to obtain such fifty percent (50%) additional pay. To receive the additional pay, the pilot must provide supporting documentation, including but not limited to the date, flight number, the seat occupied, and a narrative of the event.
7. When a pilot is scheduled to deadhead for a Duty Period of ten (10) hours or more, the pilot shall be ticketed in Business or First Class.
 - a. Notwithstanding the above, if a pilot is scheduled for a Duty Period of ten (10) hours or more, with a combination of Deadheading block time of two (2) hours or more followed by a flight assignment (in the same Duty Period), the pilot shall be ticketed in Business Class or First Class Seating, unless there are no carriers operating over that route(s) within the required time frame who operate with the flight so configured, or First and Business Class are fully booked, provided the Company makes a reasonable effort to obtain such booking sufficiently in advance of the deadhead travel.
8. Captain(s), and then First Officer(s), shall have their Deadhead seat(s) booked via the following procedure, in seniority order of the HAL Pilots Seniority list:
 - a. Deadhead Segments (or the total combination of deadhead Segments within a Duty Period) greater than five and one-half (5.5) hours (scheduled flight time, at time of booking), or any

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 7

DEADHEAD

flight to/from Hawaii, will require booking of a Business Class or better seat, if available at the time of booking.

- 1) For Deadheads on HAL flights, a seat will be booked (seat blocked if name of pilot unknown) at the time of Flight Grouping creation.
- 2) For Deadheads on OAL flights, a seat will be booked at the later of:
 - a) Pilot awarded/assigned the Flight Grouping, or
 - b) Forty-eight (48) hours prior to the departure of the Deadhead.
- 3) If multiple crewmembers are booked on a specific flight, pilots shall be assigned seats in the order of: Captain(s) then First Officer(s).
- 4) A nonstop flight shall be used unless the available nonstop flight options would not allow a pilot to legally complete their next assignment.
 - a) Company maintains discretion to add a layover before a training or flight assignment based on the needs of the service.
- 5) A carrier with multiple classes of service shall be utilized unless doing so would not allow a pilot to legally complete their next assignment.
- 6) If a First or Business Class seat is not available on a HAL flight then next highest product (e.g., Extra Comfort) available shall be provided (revenue passengers must be bumped from Extra Comfort if required).
- 7) If a First or Business Class seat is not available on an OAL flight, then the next highest product (e.g., premium economy, etc.) shall be booked.

B. DEADHEAD PAY AND CREDIT

1. A pilot shall be Paid and Credited at a rate of one hundred percent (100%) and credited at a rate of one hundred percent (100%) for all Deadhead time via air and ground transportation accomplished by them during the month.
2. Such Pay and Credit shall be computed at the Category rate the pilot is Activated in at the time of the Deadhead travel.

C. RETURN TO DOMICILE

1. A pilot scheduled to Deadhead to their Domicile may waive any contractual rest requirements in order to Deadhead to their Domicile prior to their original schedule. Such pilot shall be provided with positive space travel on their desired return flight(s).

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 8

ADMINISTRATIVE PILOTS

A. PILOT TRANSFERRED TO AN ADMINISTRATIVE PILOT ROLE

1. An Administrative Pilot is any pilot who has been transferred to an administrative role for the Company.
 - a. Such pilot shall retain and continue to accrue seniority on the Pilots' System Seniority List provided such pilot maintains at all times the pilot's medical certificate required by their status.
2. If such pilot permits their pilot's medical certificate to lapse, they shall retain the Seniority already accrued to the time of such lapse, and shall have a period not to exceed one (1) year in which to regain their pilot's medical certificate. If they regain such pilot's medical certificate within one (1) year, their Seniority shall commence to accrue from the date their medical certificate is so regained.

B. PERMANENT BID PROCEDURE FOR ADMINISTRATIVE PILOTS

1. Administrative Pilots who are on the Pilots' System Seniority List will retain the permanent Category Vacancy and Domicile held at the time of transfer to such position for reinstatement to line flying unless awarded or assigned another Category Vacancy and Domicile pursuant to Subparagraphs 8.B.3 and 8.B.4.
2. An Administrative Pilot will be required to maintain and participate in the Standing Bid process in the same manner as an active line pilot.
3. An Administrative Pilot who is awarded a change in their Permanent Category Vacancy and Domicile will have that bid award recorded as a change for reinstatement to line flying purposes only.
4. An Administrative Pilot returning to line flying will be reinstated to the last Permanent Category Vacancy and Domicile they are holding at the time of return. If a pilot is not currently qualified in the Permanent Category Vacancy they are holding at the time of reinstatement, such pilot may be required to fly in any equipment in which they are currently qualified until training and qualification for the Permanent Category Vacancy they hold at the time of reinstatement can be accomplished pursuant to Section 9 (Training). Provided the pilot is not in training, they shall be guaranteed the same number of total scheduled days off as is contained in the line of flying to which their Seniority would have entitled them had they been so qualified. The pilot shall have the option of taking all such days off at the pilot's currently awarded Domicile or the pilot's former Domicile. If training has not begun within ninety (90) days after reinstatement, then such pilot shall be entitled to Bypass Pay as specified in Subsection 20.M (Bypass).

C. FLYING HOURS

1. Administrative Pilots who are on the Pilots' System Seniority List may each fly a total of three hundred sixty (360) Pay and Credit hours (aggregate total of all categories) per calendar year subject to the following conditions:
 - a. An Administrative Pilot performing Interisland Flying shall not exceed thirty (30) Pay and Credit hours in any calendar month.

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SECTION 8

ADMINISTRATIVE PILOTS

- b. An Administrative Pilot performing International Flying shall not exceed forty (40) Pay and Credit hours in any calendar month.
 - c. An Administrative Pilot who changes categories from Interisland to International Flying during a month shall be limited to forty (40) Pay and Credit hours for that month.
 - d. An Administrative Pilot who changes categories from International to Interisland Flying during a month shall be limited to thirty (30) Pay and Credit hours for that month.
2. Whenever an Administrative Pilot occupies a required cockpit crew position on any revenue or non-revenue flight, except for ferry flights, test flights, and line checks conducted pursuant to the provisions of Subsection 9.G (Line Checks), all such time shall be subject to the monthly hour limitations set forth in this Section.
3. Except for the provisions of Subparagraph 8.C.4, and excluding test flights, ferry flights, and line checks, all such flying shall be accomplished in the permanent Category Vacancy being held for reinstatement purposes pursuant to Subsection 8.B (Permanent Bid Procedure for Administrative Pilots).
 - a. The Category in which a Administrative Pilot performs flying per Subparagraph 8.C.3 of the PWA shall be:
 - 1) Prior to the Effective Date of the Permanent Category Vacancy held for reinstatement per Subsection 8.B of the PWA, the Administrative Pilot shall only accomplish flying in their active Category Vacancy. See “Activation” in PWA Section 2.
 - 2) On or after the Effective Date of the Permanent Category Vacancy held for reinstatement per Subsection 8.B of the PWA, the Administrative Pilot shall only accomplish flying in the Category Vacancy held for reinstatement purposes.
4. An Administrative Pilot may fly in any aircraft, in any Category to which that pilot would be entitled by reason of seniority.
 - a. If an Administrative Pilot would not be entitled by reason of seniority to occupy a specific Category Vacancy, then they shall only:
 - 1) Occupy the right control seat (i.e., must fly as FO if they cannot hold CA), and
 - 2) Must displace the pilot awarded or assigned the Flight Grouping.
5. On or before the 15th of each month the Company shall provide the MEC Chairperson a monthly printout of all flying performed by Administrative Pilots that will include at least the following:
 - a. Each Administrative Pilot’s total time for the previous month;
 - b. Each individual flight, by Category, accomplished by each Administrative Pilot during that month; and
 - c. A cumulative total for each Administrative Pilot for the year.

D. COMPANY BUSINESS LIMITATIONS

1. For the purposes of this section, a pilot will be deemed to an Administrative Pilot when that pilot has been Paid and Credited with more than fifty-five (55) hours of Company Business for four (4) consecutive months or for six (6) cumulative calendar months in any twelve (12) month period (hereinafter the “triggering period”).

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2. Training time covered by Section 9, either as a student or as an Instructor/Check Airman, shall not be considered Company Business for purposes of Subparagraph 8.D.1. Annual LOE Update/Certification, Annual CQ, including Requal Update/Certification and Initial/Qualification Certification shall also be considered as training time for the purposes of Subparagraph 8.D.2.
3. When Subparagraph 8.D.1 above is triggered, the transfer to an Administrative Pilot shall be effective the beginning of the first month of the triggering period.
4. A pilot on Administrative Pilot status who is Paid and Credited for fifty-five (55) hours or less of Company Business for twelve (12) consecutive months shall no longer be considered an Administrative Pilot per Subsection 8.B (Permanent Bid Procedure for Administrative Pilots) until another triggering period for that pilot occurs.
5. The Company will provide the ALPA MEC with a report naming the pilots whom the Company may regularly ask to work on Company Business matters, and will update that report as necessary. On a monthly basis the Company will inform the ALPA MEC of those pilots who have exceeded fifty-five (55) hours of Company Business in the preceding month.
6. The Company will provide the System Awards and Assignments Committee with the total actual hours Paid and Credited for Company Business at the meetings of the Committee as per the PWA.

E. TRANSFER DUE TO SICKNESS OR INJURY

1. When a pilot is transferred to Administrative Pilot status on account of sickness or injury, or becomes sick, injured, or medically retired while on such Administrative Pilot status, they shall retain their Seniority during the period of sickness or injury or medical retirement whether or not they are able to maintain the pilot's medical certificate required for their status, until they are able to return to flying duty or are found to be unfit for such duty for a continuous period of six (6) years.

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A. PILOT TRAINING CURRICULUM

1. All courses of pilot ground and flight training shall be conducted pursuant to a written curriculum, which shall be uniformly applied to all pilots in the employ of Hawaiian Airlines. This curriculum will be consistent with the Hawaiian Airlines FAA Approved Airman Training Program and shall be modified as necessary to ensure that all pilots are afforded the benefit of adequate ground and flight training.
2. At the beginning of each course of pilot ground or flight training, Trainees shall be provided with a copy of the written outline which defines that particular course, as well as a written summary of the grading or performance standards which they will be expected to attain.
3. A Pilot Training Committee is hereby established for the purpose of reviewing the curriculum of study and pilot training described in Subparagraph 9.A.1 above, for such things as procedures employed in the implementation of the curriculum and making other recommendations to the Company on matters relative to the pilot training program. The Committee shall consist of one (1) pilot from each type of aircraft.
 - a. The Company shall consider recommendations of the Pilot Training Committee relative to procedures or personnel employed in implementing the approved curriculum specified in Subparagraph 9.A.1 above.
 - b. The Committee will make every effort to reach accord with respect to changes in the training program and the Company will not implement changes without a prior meeting of the Committee unless mandated by the FAA.
4. The curriculum of study and training referred to in Subparagraphs 9.A.1 & 9.A.2 above, shall be prepared by the Company and submitted to the Pilot Training Committee for its recommendations and suggestions prior to submission to the FAA for final approval.
5. Such curriculum of study and training established per Subparagraphs 9.A.1 & .2 above, shall be evaluated on an as-needed basis by the Pilot Training Committee. Such evaluation shall take into consideration the feedback provided per Subparagraph 9.A.7 below. The Company shall give due consideration to Pilot Training Committee recommendations that result from such evaluation.
6. The Company shall furnish each member of the Pilot Training Committee with a current copy of the Hawaiian Airlines FAA Approved Training Program Manual and all subsequent revisions thereto.
7. The Company shall provide all Trainees (recurrent as well as initial, transition, and upgrade) with the opportunity to provide written feedback on the training program and the instruction received during training. Such feedback shall be made available to the Pilot Training Committee.

B. SCHEDULING OF GROUND, SIMULATOR, OR FLIGHT TRAINING AND CHECKING

1. A training period shall include all days spent in training, all periods free from duty or training (pursuant to Subparagraph 9.B.4 below) and any travel days in conjunction with such training.
2. A pilot shall not be required to be in training in excess of eight (8) hours per calendar day, excluding meals and other breaks (which shall not include time lost due to flight simulator maintenance greater than thirty (30) minutes; extensions beyond this, or due to other reasons shall

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be only be permissible with pilot concurrence). The eight (8) hour limit shall apply to all simulator, flight, or any other training (excluding "IOE" conducted by the Company).

3. Except as specified in Subparagraph 9.E.1, a pilot shall neither be scheduled for nor required to participate in more than four (4) hours of actual flight training (except IOE) or simulator training in any one (1) calendar day, exclusive of breaks, briefing, and debriefing.
4. For every five (5) days of training, the two (2) days following such training shall be free from training or duty. For training periods of less than five (5) days, such time free of duty or training shall be on a prorated basis in accordance with the following schedule:

Days of Training or Duty	Free of Training or Duty
1 day	12 hours
2 days	18 hours
3 days	24 hours
4 days	36 hours
5 days	2.00 calendar days
7 days	2.00 calendar days
	(see Subparagraph 9.B.4.c below)

- a. The time free of training or duty prescribed by the above table and those prescribed by Subparagraph 9.B.4.e below, shall not be counted as part of a pilot's required minimum days off in Domicile (Subsection 10.G).
- b. Time free from training or duty during the training period may be scheduled at the training site even though it may not be the pilot's Domicile and is not counted as part of a pilot's required minimum days off.
- c. Notwithstanding Subparagraph 9.B.4, above, a pilot may be scheduled for up to seven (7) consecutive days of training, provided that not less than two (2) of the seven (7) consecutive days are days of travel.
- d. Time free from training or duty derived from the schedule in Subparagraph 9.B.4, above, that encompasses a full calendar day and is at the pilot's Domicile shall be considered as part of such pilot's minimum days off for that month. For example: four (4) days of training produces thirty-six (36) hours free from duty or training and will be counted as one (1) day off and two (2) days of training produces eighteen (18) hours free from duty or training and will not be counted as a day off.
- e. Notwithstanding the provisions of this Subsection 9.B (Scheduling of Ground, Simulator, or Flight Training and Checking), the last one (1) or two (2) days, as the case may be, of the "Time Free of Training or Duty" shall not be considered part of the training period. Such days shall be days off for all purposes.
- f. The Company may schedule special on-aircraft training (e.g., special training required by the FAA) in conjunction with line flying duties, provided the total duty time does not extend beyond the limits of Section 10 (Hours of Service). The pilot shall receive minute-for-minute flight time pay and credit for each minute scheduled for such training.
- g. A pilot required to attend a long course of training (three (3) weeks or more) away from their Domicile shall be granted three (3) additional days free from training or duty immediately

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following such training (at three (3) hours of pay and credit per day) in addition to the days free from training or duty specified in Subparagraph 9.B.4 above.

5. Pilots reporting for requalification landings and proficiency checks on scheduled workdays may be utilized for flying in addition to the flight training on that day.
6. A pilot shall not be required to report for any simulator training, flight training, or a proficiency check unless the Company has given them at least forty-eight (48) hours advance notice by phone. Such notice shall identify the type, anticipated duration, and location of any such training or check; and whenever possible the name of the assigned check airman or instructor pilot. A pilot receiving a Line Check is not entitled to the above notification requirement.
7. A pilot shall not be required to standby for a proficiency check or training flight for more than two (2) hours after the scheduled departure time of the flight.
8. Except for the provisions of Subparagraph 9.B.8.a below, all pilots being trained or checked shall be given a minimum rest period of twelve (12) hours prior to and between periods of training. Such rest period shall be measured from the end of the post flight debriefing to the scheduled beginning or pre-briefing for the next training period.
 - a. A pilot scheduled to receive flight simulator training between the hours of 0030 and 0600 (local time) at the training location shall be entitled to a minimum sixteen (16) hour rest period at the training location prior to the beginning of any briefing or training.
9. Prorate days off pursuant to the provisions of Subsection 26.JJ (Table of Prorated Absences).
10. Published training schedules in the scheduling software (e.g., Crewtrac) may be a generic block of work days that refer the pilot to the training scheduling software (e.g., MINT) with the up to date and correct information on training times and locations.
 - a. The Company shall provide training scheduling information to a pilot on a twenty-four (24) hour basis (e.g., a telephone number that is staffed 24-hours a day).
11. A travel/training day may include Deadhead travel per Section 7 (Deadheading) and Subparagraph 9.S.8 in addition to a training period only on the last day of the training period, provided that:
 - a. The training period footprint portion of the travel/training day must start prior to 1400 local time (Simulator location time), and
 - b. The travel/training day is no longer than fifteen (15) hours, and
 - c. With pilot consent, Deadhead travel may include a “red eye” flight after the training period footprint is complete.
12. Training Schedule Modifications
 - a. By mutual agreement between the pilot and the Director of Flight Training for their fleet, a pilot may waive required days off in order to complete training.

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- b. The forty-eight (48) hour advance notice of training in Subparagraph 9.B.6 is only applicable to the start of a scheduled training curriculum.
 - 1) Interruptions or un-anticipated pause(s) in training greater than seven (7) days require the forty-eight (48) hour advance notice again prior to the restarting of the training curriculum.
- c. This Subparagraph 9.B.12.c shall only apply to Initial, Transition, Requalification training curriculums that are greater than ten (10) days, and to Upgrade training curriculum.
 - 1) All notices require two-way communication.
 - 2) Pilot must give consent for any change that requires an alteration of existing days off.
 - 3) Report times for pilots assigned training may be shifted up to four (4) hours earlier or later. Pilots must be notified of the change at least twelve (12) hours prior to the originally scheduled report time of the event, or the new report time of the event, whichever is earlier. The new report time cannot be earlier than 04:30 or later than 20:30 local time at the training location.
 - 4) Pilot training assignments may be shifted up to three (3) calendar days. Notification of such move shall occur at least twenty-four (24) hours prior to the originally scheduled report time and date of the event, or the new report time and date of the event, whichever is earlier.

C. PAY DURING TRAINING

- 1. Except for the provisions of Subparagraphs 9.C.4, C.5 & C.6 below, when a pilot is receiving training that is planned in duration for greater than seven (7) days in the Company's flight training, ground training, or flight simulator program, the pilot shall be Paid and Credited three (3) hours for each day or portion thereof during the training period excluding Subparagraph 9.C.1.c.
 - a. Such Pay and Credit shall be inclusive of days off during the training period (e.g., 90 hours pay for a 30-day month, 93 hours pay for a 31-day month).
 - b. Such Pay and Credit shall continue from day one (1) of the training period until completion of simulator.
 - c. During the portion of the training period after completion of simulator, when IOE can be conducted, the pay shall be the greater of three (3) hours of pay no credit per day, or the Pay and Credit value of the Flight Grouping flown on a daily basis.
- 2. Notwithstanding the foregoing, a pilot receiving training that is planned in duration for seven (7) days or less, both inclusive of travel days and required days off per Subparagraph 9.B.1, shall be Paid and Credited four and seventeen hundredths (4.17) hours for each day or portion thereof during the training period.
 - a.
- 3. The rate of pay for a pilot in training shall be based upon the pilot's present Category until the Effective Date or Activation date (whichever is earlier) of the pilot's awarded Vacancy, at which time the pilot's rate of pay shall be based upon his or her awarded Category.
- 4. A pilot receiving trainings in any Company training program, away from their Domicile, shall be paid expenses in accordance with the provisions of Section 5 (Expenses), as follows:

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- a. A pilot receiving recurrent or other training of less than seven (7) days, out of their Domicile, shall be paid expenses, for the entire period of absence from their Domicile, after the scheduled completion date of such training.
 - b. A pilot receiving training in their Domicile, regardless of the length of such training, shall be paid expenses after the scheduled completion date of such training.
 - c. Expenses due under Subparagraphs 9.C.3.a & 9.C.3.b shall be paid no later than the first payday of the Month following the Month containing the scheduled completion date of training; provided, however, when the forgoing is impracticable, such payment may be made no later than the first payday of the Month thereafter.
 - d. Probationary pilots receiving training outside of their Domicile, regardless of the length of such training, shall receive an expenses payment in advance of the scheduled start of that training.
 - e. Upon the request of a pilot who is receiving training of seven (7) days or greater in length, outside of their Domicile, the Company will issue an expenses payment in advance of the scheduled start of that training.
5. Pilots receiving proficiency check training shall be Paid and Credited only for the time actually required to complete the flight portion of such training (block to block) or Duty Period credit if applicable.
 6. If a pilot voluntarily attends training pursuant to the provisions of Subparagraph 21.B.8, the pilot shall be Paid and Credited for the training period as follows:
 - a. A Bid Run pilot shall be Paid and Credited what the pilot normally could have earned for any published Flight Grouping(s) missed during the training period.
 - b. A pilot awarded a Reserve Run shall be Paid and Credited for any published Flight Grouping(s) missed on their Monthly Run or Paid and Credited for each workday missed during the training period without published Flight Groupings as follows:
 - 1) In an eighteen (18) workday Month at a rate of five (5) hours per workday missed.
 - 2) In a nineteen (19) workday Month at a rate of four and seventy-four hundredths (4.74) hours per workday missed.

D. GROUND SCHOOL

1. Ground school (not including flight simulator) shall be scheduled between the hours of 0800 and 1800 hours local time. Classroom study and/or time spent in cockpit mockups or procedures trainers shall be limited to eight (8) hours of instructional time per day, excluding meal and other breaks.
2. When a pilot is assigned to the Company's ground school for initial qualification the pilot shall complete such schooling without interruption.
3. The Chief Pilot shall review any examination used in pilot ground schools where the failure rate appears to be excessive.

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4. Each initial, upgrade, transition, requalification, or recurrent ground school course shall comply with the approved course outlines contained in the training curriculum required by Subsection 9.A (Pilot Training Curriculum) of this Section.
5. “Distance Learning: The Company may assign pilots a self-study ‘distance learning’ ground school course(s) subject to the requirements of this Subparagraph 9.D.5. Such course shall be accomplished on a pilot’s own time.
 - a. Such course shall not constitute more than thirty two (32) hours (four (4) calendar days of traditional ground school) of planned or programmed ground school hours per the Hawaiian Airlines Training Program Manual (HATPM) for qualification (initial, transition) training. Subject to the provisions of Subparagraph 9.D.5.g below, such course may also be utilized for training opportunities other than qualification or continuing qualification training.
 - b. A pilot shall be timely provided with the necessary materials to accomplish such training (e.g. handouts, computer software or website access) while away from Hawaiian Airlines training facilities, at no expense to the pilot. A pilot may also utilize for this purpose any computer and internet facilities which are available for pilot use at Hawaiian Airlines facilities.
 - c. Pilots may be required to satisfactorily complete a written or on-line test to receive course credit. An unsatisfactory test result shall not by itself be counted as a failure per Subsection 9.I (Failure to Qualify) of this Agreement.
 - d. Distance learning will be paid at fifty percent (50%), minute for minute of the established run time. Such periods of distance learning shall reasonably approximate the run- or read-time of the distance learning computer program or other material utilized. The pilot will be paid on the first Pay Day of the month following the enrollment period for each such non-Quarterly Continuing Qualification (recurrent) Distance Learning (QCQDL)/ad hoc enrollment. The enrollment period will represent the amount of time between the enrollment date and the due/expiration date of the course.
 - e. Such program shall be established and conducted in coordination with the Pilot Training Committee as defined in Subsection 9.A.3.
 - f. A pilot must be afforded a reasonable amount of time to complete a distance learning assignment.
 - g. For distance learning training courses that are not conducted under the HATPM, the parties shall meet and agree on the equivalent planned or programmed hours for the course prior to the participation in such training by any pilot. In time-critical circumstances (for example, impromptu training with a completion date mandated by the FAA) where the parties are unable to reach agreement, the Company may implement such training and shall pay pilots based on a reasonable application of Subparagraph 9.D.5.d above. Such pay shall be subject to the provisions of Section 17 of the Agreement.
 - h. A course may be designated as QCQDL. QCQDL training courses shall be loaded and available for completion no later than the fifteenth (15th) day of the first month of the quarter. Pilots assigned a QCQDL course shall complete such training no later than the fifteenth (15th) day of the third month of the quarter, and shall receive pay for the training on the first Pay Day in the month following the completion of the quarter. The hourly pay rate used for QCQDL shall be the highest pay rate the pilot has received at any point during that quarter.

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Courses designated as QCQDL shall be considered stand alone for the purposes of time calculation, as described in 9.D.5.d, and any other ad hoc Distance Learning course(s) assigned during the quarter will pay in addition to the QCQDL training course.

E. FLIGHT SIMULATOR TRAINING

1. A simulator training period shall not exceed eight (8) hours total instructional time and shall consist of a maximum of four (4) hours of Active Device Time, plus any required briefing and debriefing.
 - a. A one (1) hour meal break is required on any training day that exceeds six (6) hours and is exclusive of the eight (8) hour training day.
 - 1) If additional training occurs prior to the simulator instruction period, the meal break shall occur between the simulator briefing period and the start of the simulator.
 - 2) If additional training occurs after the simulator instruction period, the meal break shall occur between the simulator debrief and the start of the additional training.
 - 3) Under no circumstance shall a pilot in training exceed six (6) hours without being given the opportunity for their meal break.
 - b. For non-evaluation events, the limitation of four (4) hours of Active Device Time may be exceeded for a maximum of one (1) hour under the following conditions:
 - 1) The four (4) hours is extended for the purpose of repeating a maneuver or additional training, and
 - 2) an extension of more than thirty (30) minutes shall be reported to the Training Committee.
 - c. For AQP evaluation events, the limitation of four (4) hours of Active Device Time may be exceeded for a maximum of one (1) hour, under the following conditions:
 - 1) The four (4) hours is extended pursuant to an agreement with the Trainees, and
 - 2) an extension of more than fifteen (15) minutes shall be reported to the Training Committee.
 - a) If the actual time of an LOE results in extensions more than ten percent (10%) of the time that the LOE has been conducted over a three (3) Month rolling period, the LOE will be reviewed and modified by the Company within thirty (30) days, with input from the Training Committee, to ensure it no longer exceeds the time specified.
2. Unpaired crews (e.g., FO/FO) are allowed for recurrent proficiency checks in a simulator.
3. Pilots participating in any of the approved courses of simulator instruction shall be given the opportunity to complete the instruction stipulated in the approved curriculum. Any pilot whose simulator instruction is reduced to less than the programmed curriculum shall be afforded the flight instruction in the airplane that is programmed for his or her training category (initial, upgrade, etc.). A pilot may, with the check airman's approval, take a proficiency check in less than the programmed hours of flight instruction.

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4. Any changes in the flight simulator training location shall be subject to the prior mutual agreement between the Company and the MEC. Simulator program changes shall be discussed with the Pilot Training Committee prior to implementation.
5. All references to Flight Simulator in Subsection 9.E (Flight Simulator Training) will include FAA-approved Flight Training Devices (FTD).
 - a. Ground school and academic events shall be conducted during ground school hours specified in Subparagraph 9.D.1.
6. Any combination of training (GS, SIM, etc.) shall be allowed on the same day as a simulator training period, with an eight (8) hour limit, exclusive of meal break, with any academic portion conducted during ground school hours specified in Subsection 9.D.1.
 - a. Any additional training conducted on a simulator training period day in excess of six (6) hours shall not occur on the LOE day of the simulator training curriculum footprint, and
 - 1) Such additional training may be no more than one (1) hour in duration per day.

F. FLIGHT TRAINING/PROFICIENCY CHECKS

1. The Company shall publish (electronically and by other means) and maintain practical training guides for each type airplane currently being operated by it that has been reviewed by the Pilot Training Committee. This training guide shall contain each required flight maneuver or procedure that is part of the current training or checking syllabus and shall include the performance criteria where applicable.
 - a. The Company shall provide access to the current copy of the flight training guide for the airplane in which they are required to maintain qualification and provide them with access to all revisions thereto in a timely manner.
 - b. All procedures, normal and abnormal, flight maneuvers, recommended flight techniques, and any oral examination relative thereto that arise during the course of Recurrent, Initial, Upgrade, Transition, or Requalification flight training shall be derived from this training guide or adjuncts thereto.
 - c. No maneuver or procedure not currently required for demonstration of pilot proficiency by applicable Federal Aviation Regulations may be included in the training guide(s) and no pilot will be required to demonstrate proficiency in any maneuver or procedure not included in the flight training guide or its adjuncts.
 - d. Only Instructor and Evaluator Pilots who have been designated in the FAA Approved Training Manual, except as otherwise provided in Subparagraph 9.K.3.c of this Section, may be employed in the conduct of any pilot flight training or checking.
 - e. Prior to any scheduled training or check flight, the Trainee shall be given a thorough briefing on each maneuver to be performed during the flight and an outline of the flight plan. When such flights will include operations along an airway and/or instrument departures or approaches, the pilot shall be afforded the opportunity to review the planned routing and each expected approach or departure procedure during the pre-briefing session. Following a training or check flight, the Trainee shall be thoroughly debriefed on their performance and shall, when completed, be provided with a copy of the written report on their performance, unless otherwise requested by the pilot.

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2. During any flight training periods or proficiency checks conducted in an airplane, the following maneuvers will be performed only during periods when visibility is equal to or greater than ten (10) miles.
 - a. Simulated engine failure on takeoff.
 - b. Approaches conducted at fifty percent (50%) or less power.
 - c. Circling approaches.
 - d. Zero degree flap approaches and landings.
3. A flight training period shall consist of a maximum of two (2) hours at the controls and two (2) hours observing or assisting another crew-member trainee. When such period is scheduled to exceed six (6) hours, trainees will be provided with an adequate crew meal for consumption in flight. A pilot Trainee will not normally be required to fly their first training flight in an aircraft during the hours of darkness when participating in initial or transition training.
4. Pilots shall not be scheduled to ride as observers or nonparticipating crewmembers on recurrent flight training or proficiency checks that are conducted in an airplane.
5. A pilot in flight training as part of an approved initial, upgrading, transition, or requalification program shall be given an opportunity to complete the programmed instruction stipulated in the approved curriculum. A pilot may, with the check airman's approval, take a proficiency check in less than the programmed hours of flight instruction. Neither simulator training time nor line flying may be credited toward the hours of required flight training.
6. A pilot scheduled to attend initial, upgrade, transition, or requalification training that has not served as a First Officer or Captain with the Company during the preceding twelve (12) month period shall be given ground school and link-type training (as necessary) to refresh their basic pilot skills. The Company shall pay for the first ten (10) hours of the link-type training.
7. Any pilot who is being rechecked following an unsatisfactory performance on a proficiency check may, at their option, have a qualified ALPA representative monitor any such rechecking; however, such ALPA representative shall not be compensated. In the event that cockpit space is not available for the ALPA representative, such representative shall be permitted to ride aboard the aircraft and observe to the maximum extent permitted by law.
8. Insofar as possible, all proficiency checks shall be given as an integral part and natural conclusion of each training program.
9. The Company shall make every reasonable effort to present a continuous flow of information and practice during flight training and shall endeavor to complete all flight training, simulator training and any required proficiency checks within a period of thirty (30) days after the start of any flight simulator training program.
10. Further, the Company shall make every reasonable effort to schedule a proficiency check as part of an initial, upgrading, or transition training program within forty-eight (48) hours of the last training flight.

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11. If a pilot's performance on a proficiency check in a flight simulator is considered to be unsatisfactory, the pilot shall always have the opportunity to take a proficiency check without prejudice in an aircraft in which the pilot is Currently Qualified.

G. LINE CHECKS

1. The Company shall not assign an Evaluator Pilot as part of the required crew when the Evaluator Pilot is performing a line check, except during a qualification or requalification event.
2. An Evaluator pilot conducting a line check shall restrict their activities to monitoring pilot performance and making notes relative thereto, while in the cockpit. Unnecessary conversation or instructional comments shall be avoided during flight time and the Evaluator Pilot shall reserve questions and critique until the airplane has come to a complete stop at the blocks and the parking checklist has been completed.
 - a. Pilots shall be given the opportunity to review any written report relative to their performance on line checks.
 - b. Pilots may not be evaluated negatively regarding procedures that are not contained in or are in conflict with the Company Operations Manuals.

H. INITIAL OPERATING EXPERIENCE ("IOE")

1. A pilot who has begun their initial operating experience for purposes of upgrading shall complete all such training without interruption or assignment to other than the position for which the pilot is being trained.
 - a. Each pilot shall be given the opportunity to review any written report relative to their performance during IOE.
 - b. No pilot may be negatively evaluated with respect to any procedure that is not contained in or is in conflict with the Company Operations Manuals.
 - c. On fleets that operate to a foreign destination, an International Pilot IOE candidate, shall be assigned at least one (1) IOE Flight Grouping to a foreign destination. Whenever possible, this assignment will not be their first IOE assignment.
 - d. A Freight Pilot shall complete their required IOE conducting flight Segments within the Freight Operation.
2. A pilot scheduled for IOE training shall, during the monthly bidding period, be allowed to preference for days off only in the equipment for which the pilot is being trained until the Evaluator Pilot conducting the IOE training releases such pilot to the line.
3. The Company shall establish Line Check Airman (LCA) that will be limited to only conducting IOE on suitable Flight Groupings (per Subsection 9.H (IOE)) and line checks.
 - a. The LCAs will bid normally via the monthly PBS process:
 - 1) A LCA may have certain days blocked as a pre-known absences at six (6) hours per day for the scheduling of line checks prior to the monthly PBS bidding process.
 - a) LCA shall be paid the greater of six (6) hours or the Flight Grouping Pay and Credit per Section 4 of the PWA.

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- 2) A LCA awarded a Reserve Run:
 - a) May be utilized to conduct line checks at Company discretion
 - b) Shall be utilized to conduct IOE only on assigned Flight Groupings, and
 - (1) Flight Groupings must be assigned per the UFAP.
- 3) A LCA awarded a Bid Run:
 - a) May be utilized to conduct IOE and line checks on awarded Flight Grouping(s).
 - b) The Company may lock a Flight Grouping on a LCAs schedule to be utilized for IOE. Such Flight Grouping shall be locked no later than seven (7) days prior to scheduled Flight Grouping. Whenever an LCA is locked pursuant to this Subparagraph 9.H.3.a.3)b), the First Officer on the Flight Grouping shall be displaced.
 - (1) The Company may lock a Flight Grouping on an LCA schedule and displace a First Officer from a Flight Grouping for IOE with less than seven (7) days' notice as a result of irregular operations per this Subparagraph 9.H.3.a.3)b)(1) (i.e., sick call, flight cancellation, or for a trainee delayed in completion of their LOE whose originally scheduled IOE can no longer be utilized).
- b. The Company must notify the displaced pilot(s) of any displacement at the time it occurs.
- c. None of the above provisions exempt the Company from the requirement in Subparagraph 9.H.6. to give forty-eight (48) hours' notice.
- d. The LCA shall be paid an hourly override of fifty dollars (\$50) per hour while conducting IOE or line checks.
- e. Subparagraph 9.K.3 shall be utilized for the selection and performance review of all Line Check Airman.
4. Flight Groupings containing an un-augmented "red-eye" Segment or Flight Groupings that include destinations not listed as "Approved IOE Segments" in that Month's Notification of Bidding Period for Monthly Runs Bulletin shall not be utilized for conducting IOE.
5. When IOE is being performed on an augmented Flight Grouping, the scheduled First Officer shall become a second IRO and will receive the applicable override.
6. After a pilot is released from Initial Operating Experience ("IOE"), such pilot shall for the first one hundred (100) hours only be awarded trips with pilots who have already accumulated over one hundred (100) hours in the same type equipment.
 - a. The above Subparagraph 9.H.6 shall be waived for a period of twenty-four (24) months beginning on the date of the initial revenue flight of the "New Equipment," provided a Federal Aviation Administration ("FAA") waiver exists.

I. FAILURE TO QUALIFY

1. Training for all pilots will be scheduled and conducted according to the procedures published in the Hawaiian Airlines Training Program Manual (HATPM).
2. A joint ALPA/Company Failure to Qualify Review board shall be established to review and make recommendations, if any, relative to FTQ issues and events and the Company shall give due deference to such recommendations. Any recommendation(s) that are made by the ALPA member(s) of the joint committee may not be used in any evidentiary hearing or process that the Company may seek in reference to any pilot that falls under this Section 9 of the agreement. Nor shall any ALPA member of the joint committee be called as a witness to any such proceeding.

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3. A pilot who is awarded a Vacancy which requires requalification, initial, transition, or upgrade training shall be considered to have failed to qualify if:
 - a. Said pilot fails a specific validation, evaluation, or phase gate event, as defined in Hawaiian's FAA-approved training program, in a single training curriculum, two (2) times, as long as sufficient additional training, using the amounts listed below as a minimum, is given between the attempts.
 - 1) For academic and knowledge events, one (1) day;
 - 2) For events requiring a flight simulator training device (FSTD), two (2) days;
 - 3) For aircraft events, two (2) Segments.
 - 4) In all cases, at the request of the pilot, a different instructor or examiner will be used for the second opportunity to pass the event.
 - b. Fails three (3) distinct validation, evaluation of phase gate events, as defined by Hawaiian's FAA-approved training program, within one (1) program's curriculum.
 - c. Requires greater than two hundred percent (200%) of the allocated Operating Experience time or Segments.
 - d. Requires greater than one hundred and fifty percent (150%) of the allocated training time in any single training phase or one hundred and fifty percent (150%) of the allocated training time for curriculum.
4. A pilot who fails to qualify, per Subparagraph 9.I.3 above, after review and confirmation of their status by the Failure to Qualify Review board, shall be subject to the following:
 - a. Such pilot shall be returned to their previous Category and requalify in said Category (or in the case where the previous Category no longer exists, then said pilot shall be permitted to go into any Category that they can hold and then shall be subject to requalification, initial, transition, or upgrade training, as applicable, in that Category).
 - b. Such pilot shall not be eligible for award of a subsequent Vacancy in the failed Category for a period of twelve (12) months.
 - c. If a pilot fails requalification in his or her previous Category (or requalification, initial, transition, or upgrade training in another Category, per Subparagraph 9.I.3 above if their Category no longer exists), the pilot status shall be reviewed by the Failure to Qualify Review Board and if no further training is recommended, the disposition shall be referred to the Chief Pilot.
5. If such pilot has failed a single Category's specific training course three (3) times, or an aggregate of five (5) training courses in total, said pilot's status shall be reviewed by Failure to Qualify Review Board and if no further training is recommended, the disposition shall be referred to the Chief Pilot.
6. Failure to Qualify Review Board shall be comprised of the Association's Chairman of the Professional Standards Committee or the Chairman's designee, the Association's Chairman of the

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Training Committee or the Chairman's designee, a Flight Qualified Manager from Flight Standards and Qualifications, and a representative from the Flight Standards and Qualifications.

7. A pilot that requests to pause their training with a failed event within the training curriculum shall be presumed to have a Failure to Qualify on their record. The presumption can only be overturned upon a good faith review and approval of the Failure to Qualify Review Board.
8. A pilot that requests to pause their training without a failed event within the training curriculum shall be presumed to have no Failure to Qualify on their record. The presumption can only be overturned upon a good faith review and approval of the Failure to Qualify Review Board.

J. ADVANCED QUALIFICATION PROGRAM

1. Provisions in the Agreement that refer to "proficiency checks" or "initial, transition, or upgrade" training shall apply to the equivalent simulator or aircraft training events when such training is conducted under the respective "Continuing Qualification" or "Qualification" provisions of the Advanced Qualification Program (AQP).

K. CATEGORIES OF INSTRUCTOR AND EVALUATOR PILOTS

1. Categories - Instructor and Evaluator Pilots fall into the following categories: Aircrew Instructor (formerly Ground Instructor); Instructor Pilot; Evaluator Pilot; and FAA Designee Pilot (also known as APD).
 - a. Aircrew Instructors (AI) – An AI is a non-HAL Seniority List pilot who will only be used to conduct ground school training events in accordance with the Hawaiian Airlines approved Training Manual. Training may include classroom instruction and/or instruction on a System Flight Training Device and/or a Procedures Flight Training Device, including the ground school portion of a proficiency check.
 - b. Instructor Pilot (IP) – An IP is authorized to conduct instruction and training events on a Flight Training Device, a Full Flight Simulator, and/or in the aircraft in accordance with the Hawaiian Airlines FAA approved Training Manual.
 - c. Evaluator Pilot (EP) – An EP is authorized to conduct instruction, training, and Evaluation events on a Flight Training Device, a Full Flight Simulator, and/or in the aircraft in accordance with the Hawaiian Airlines FAA approved Training Manual.
 - d. FAA Designee Pilot (APD) – An APD is authorized to conduct instruction, training, and Evaluation events on a Flight Training Device, a Full Flight Simulator, and/or in the aircraft in accordance with the Hawaiian Airlines FAA approved Training Manual. APDs are also authorized to perform FAA Examinations/Evaluation(s).
2. Qualifications – All Instructor, Evaluator, and FAA Designee Pilots must be on the Hawaiian Airlines Pilots' System Seniority List, be active and not furloughed pilots:
 - a. Instructor Pilot (IP) – Excluding Subparagraph 9.M.1.a must hold the Category Vacancy (in this instance, only the Pilot status and type of equipment apply) in which they instruct. Provided all other qualifications are met, and subject to the limitations in Subsection 9.L (Loss of Medical for Instructor and Evaluator Pilots) below, an IP may continue in their present position after the loss of an FAA Medical Certificate.

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- b. Evaluator Pilot (EP) – Excluding Subparagraph 9.M.1.a must hold the Category Vacancy (in this instance, only the Pilot status and type of equipment apply) in which they instruct or evaluate and have at least two (2) years of active service as a line pilot. An EP must be a Captain, have a minimum of five hundred (500) hours of Pilot-in-Command (PIC) time at Hawaiian Airlines and if instructing or evaluating pilots in an aircraft, have a minimum of three hundred (300) hours of PIC time in the type of aircraft at Hawaiian Airlines. The requirement to have three hundred (300) hours of PIC time does not apply during the first two (2) years of operation of a new fleet type measured from the date of the first revenue flight.
 - 1) Provided all other qualifications are met, and subject to the limitations in paragraph 9.L (Loss of Medical for Instructor and Evaluator Pilots) below, an EP may continue in their present position after the loss of an FAA Medical Certificate, however they may not occupy an aircraft control seat.
 - c. FAA Designee Pilot (APD) – Must hold the Category Vacancy (in this instance, only the Pilot status and type of equipment apply) in which they instruct or evaluate and have at least two (2) years of active service as a line pilot. An APD must be a Captain, have a minimum of five hundred (500) hours of Pilot-in-Command (PIC) time at Hawaiian Airlines and if instructing or evaluating pilots in an aircraft, have a minimum of three hundred (300) hours of PIC time in the type of aircraft at Hawaiian Airlines. The requirement to have three hundred (300) hours of PIC time does not apply during the first two (2) years of operation of a new fleet type measured from the date of the first revenue flight.
3. Staffing and Performance Review
- a. When Instructor or Evaluator Pilot staffing is required, the Company will notify the MEC and post notice of such openings to the entire pilot group for a reasonable period of time. Establishing selection criteria for the positions, review of applicants, and selection of qualified candidates shall be the responsibility of a four (4) member panel comprised of two (2) Company appointed panel members and two (2) Association appointed panel members. If the panel deadlocks, the deciding vote will be cast by the VP of Flight Operations.
 - b. Among other things, selection criteria that may be considered by the Company-ALPA panel include an applicant's ability to connect with trainees and communicate subject matter effectively, aircraft knowledge and flight skills, objectivity and perspective, respect among Hawaiian pilots and, all other factors being equal, seniority.
 - c. The Company may employ, the a manufacturer's instructor pilots, or third party instructor pilots, or instructor pilots employed by Hawaiian Airlines but not on the HAL Pilot Seniority List. Such instructors shall be familiar with and comply with the Hawaiian Airlines FAA approved Training Manual and Company instructional methods, and have 2000 hours of Part 121 (or foreign CAA equivalent, or Military equivalent, with mutual agreement between the Company and the Association) flying time.
 - 1) Instructors not on the HAL Pilot Seniority List shall not be used for:
 - a) continuing Qualification (CQ) training, or
 - b) evaluating/checking events (e.g. MV, LOE, orals, etc.)
 - 2) If any HAL seniority List pilots are furloughed:
 - a) no third-party (Non-Hawaiian employed) instructors shall instruct after six (6) months following the first pilot furlough date, and
 - b) furloughed HAL Seniority List pilots will be hired for any available instructor positions prior to these instructor positions being offered to others.

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- d. Individual Instructor and Evaluator Pilot performance and standardization shall be evaluated by the Company at least every two (2) years. The evaluation shall consider the feedback provided pursuant to Subparagraph 9.A.7 above, regarding trainee review of the training received, Subparagraph 9.S.6. below, regarding a pilot's option to decline training or checking from a specific Instructor or Evaluator Pilot, and the criteria set forth in Subparagraph 9.K.3.b above, for the selection of Instructor and Evaluator Pilots.
4. Instructor Pilots' or Evaluator Pilots' authority and duties, while in such capacity, shall consist of academic instruction, FTD/FFS instructing or evaluating, aircraft instructing or evaluating, crewing events, UTPs, assignments requiring an I/E qualification, or other training related administrative duties.
5. Each instructor employed in the Company's ground training program may instruct only in those courses for which they have been designated in the FAA Approved Airman Training Program Manual.

L. LOSS OF MEDICAL FOR INSTRUCTOR AND EVALUATOR PILOTS

1. Instructor and Evaluator Pilots who lose the ability to hold a medical certificate (as defined by the Hawaiian Airlines, Inc. Pilots' VEBA Disability and Survivors' Benefits Plan) may continue to serve in an instructor position for a period not longer than twenty-four (24) calendar months from the date that his or her medical certificate is surrendered provided that:
 - a. An Instructor/Evaluator pilot may only continue to perform training duties that they performed prior to losing their medical certificate.
 - b. If such Instructor desires to perform different or upgraded training duties, then they may apply for such position consistent with the terms, process and selection criteria of this Agreement.
2. After twenty-four (24) calendar months following such pilot's date of disability, the pilot will be placed in the applicable sick leave, vacation, VEBA, or leave without pay status, as appropriate. They will not continue to serve in the Training Department until the pilot again holds a valid medical certificate.

M. POSITION AND STATUS OF INSTRUCTOR AND EVALUATOR PILOTS

1. All Instructor and Evaluator Pilots shall be classified as either Full-Time or "Month-at-a-Time" (MT) Instructors and Evaluators.
 - a. Full-Time Instructors and Evaluators - The Company will immediately notify the Association when Full-Time Instructors and Evaluators are appointed or dismissed from the training department. Full-Time Instructors and Evaluator Pilots will provide the Company no less than sixty (60) days' notice of their intent to return to line flying.
 - 1) Full-Time Instructor and Evaluator Pilots will be carried as "excess" in that Category for a minimum of twelve (12) months from the time that the Association is notified of their appointment or for the time that they hold a Full-Time Instructor or Evaluator position, whichever is longer.
 - 2) Full-Time Instructor and Evaluators may instruct or evaluate in a higher paying Category Vacancy than their seniority can hold, with the following restrictions:

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- a) Such Full-Time Instructor and Evaluator pilot is prohibited from instructing or evaluating in the actual aircraft.
- b) Anytime such Full-Time Instructor and Evaluator pilot conducts line flying, they shall occupy the right seat, and such flying shall be done thru displacement.
- 3) Full-Time Instructor and Evaluator pilots may instruct or evaluate in a lower paying Category Vacancy than the Category Vacancy they currently occupy.
 - a) If a Full-Time Instructor and Evaluator pilot does not occupy the Category Vacancy they instruct or evaluate in, they must displace when flying the line for currency.
 - b) If the higher paying Category Vacancy is awarded via a Vacancy bid, once a pilot junior to the Full-Time Instructor and Evaluator pilot on the same bid is Activated, the Full-Time Instructor and Evaluator pilot shall be considered Activated for pay purposes.
- 4) Full-Time Instructors and Evaluators will not participate in the monthly bidding process.
- 5) Full Time Instructors and Evaluators shall maintain currency by displacing line pilots from their awarded Flight Groupings and operating those Flight Groupings on the Instructors/Evaluators days off.
- 6) Recurrent CQ shall be considered part of an Instructor or Evaluator Pilot's monthly assigned work days.
- 7) Full-time Evaluator Pilots qualified to conduct Freight Operation IOE/ Line Checks shall perform annual FAM flights on Freight Operations .
- b. MT Instructor and Evaluator Pilots – The Company will immediately notify the Association when MT Instructors and Evaluators are appointed or dismissed from the training department. MT Instructor and Evaluator Pilots will provide the Company no less than sixty (60) days' notice of their intent to return to full-time line flying.
 - 1) MT Instructor and Evaluator Pilots must hold a Category Vacancy in which they instruct or evaluate. MT Instructor and Evaluator Pilots will serve exclusively as an Instructor or Evaluator Pilot for a maximum of nine (9) months during a rolling twelve (12) month period. These months shall be referred to as Training months. Additionally, MT Instructor and Evaluator Pilots must serve as a line pilot for at least three (3) months during the same rolling twelve (12) month period. These months shall be referred to as Line Flying (LF) months The Company shall make every effort to ensure that MT Instructor and Evaluator Pilots have at least one (1) LF month in every three (3) months.
 - 2) During a Training month(s), MT Instructor and Evaluator Pilots will not participate in the monthly bid process for line flying and shall perform no line flying, except as provided under Subparagraph 9.S.12.
 - 3) During an LF month(s), MT Instructor and Evaluator Pilots will participate in the monthly bid process for line flying and shall perform no Instruction or Evaluation duties, except as provided under Subparagraph 9.O.2.c.6.
 - 4) To attend required Instructor and Evaluator Pilot meetings during an LF month, MT Instructor and Evaluator Pilots may have up to two (2) days designated as Company Business during the monthly bidding process.

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- 5) MT Instructor and Evaluator Pilots shall preference Training months and LF months after completion of yearly vacation awards and shall be advised of their planned Training months and LF months within four (4) weeks of submitting their preferences. Planned Training months and LF months are subject to change based on Company needs, but will not be changed less than sixty (60) days prior to the start of a month without the agreement of the pilot.
 - 6) MT Instructor and Evaluator Pilots shall serve in such positions for a minimum of six (6) months after first becoming current and qualified to instruct or evaluate events. For the purposes of this paragraph, the six (6) month measurement period will include both Training months and LF months.
 - 7) MT Instructor and Evaluator Pilots may, at Company discretion, be assigned recurrent CQ training within a Training month as part of their assigned work days.
 - 8) MT Evaluator Pilots qualified to conduct Freight Operation IOE /Line Checks shall perform annual FAM flights on Freight Operations.
2. Vacation accrual for Instructor and Evaluator Pilots will be in accordance with Subsection 6.B (Vacation Accrual).
 3. Vacation bidding will be conducted as follows:
 - a. Full-Time Instructor and Evaluator Pilots will bid vacation during the general vacation bidding period, in seniority order, within their respective Instructor or Evaluator position, by fleet type.
 - b. MT Instructor and Evaluator Pilots will bid vacation in accordance with Subsection 6.F (Bidding and Awarding of Vacation Periods).
 - 1) MT Instructor and Evaluator Pilots who have seven (7) or more vacation days in a month will not perform Instructor or Evaluator Pilot duties in that month and will be required to perform line flying duties in an LF month.
 - 2) MT Instructor and Evaluator Pilots who have six (6) or fewer vacation days in a month may, if requested and approved by the Company, work as an instructor or evaluator during that Training month and cash out the vacation days at three (3) hours pay no credit per day.
 - 3) Pop-up vacation requests made during a Training month will be granted at the Company's discretion based on training needs.

N. CONSTRUCTING OF INSTRUCTOR AND EVALUATOR PILOT SCHEDULES

1. Full-Time Instructors and Evaluators, and MT Instructors and Evaluators who are in a Training month shall preference monthly schedules not later than seven (7) days prior to the date and time specified in Subparagraph 21.F.4.a:
 - a. Preference days off that allow for at a minimum, four (4) day blocks of work.
 - 1) Such days shall be preferenced using a recorded system that can be easily reviewed.

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2. Assigned schedules will consist of fifteen (15) days of academic instruction, FTD/FFS instructing or evaluating, aircraft instructing or evaluating, crewing events, UTPs, assignments requiring an I/E qualification, or other training-related administrative duties.
 - a. In a thirty (30) day month, Instructor and Evaluator Pilots' schedules shall have fifteen (15) days of in domicile.
 - b. In a thirty-one (31) day month, Instructor and Evaluator Pilots' schedules shall have sixteen (16) days off in domicile.
 - c. Schedules will be assigned based on staffing requirements, factoring seniority, continuity of instruction, as well as I/E pilot qualifications and currency per the Training Manual Recency and Frequency Matrix.
 - d. Monthly schedules for Permanent Instructor and Evaluators, and MT Instructor and Evaluators during a Training month, will be assigned no later than the date and time specified in Subparagraph 21.F.4.a.
 - e. An MT Instructor or Evaluator Pilot, coming off of an LF month in to a Training month, who has a carry out Flight Grouping in their LF month shall be responsible for flying that Flight Grouping and such carry out Pay and Credit shall be in addition to the ninety (90) hours of pay and fifteen (15) days of work awarded in their Training month.
 - f. A non-flight training event that carries from one calendar day to the next (e.g., 2200-0200 FFS assignment) shall be considered as a single calendar day for an Instructor or Evaluator Pilot.
3. Pilots in initial training to become Instructor and Evaluator pilots will have Instructor and Evaluator qualification events loaded in PBS as pre-known Instructor/Evaluator absences. They will subsequently bid normally via PBS for the month.

O. DAILY OPERATION OF INSTRUCTOR AND EVALUATOR PILOTS' SCHEDULES

1. Unassigned Training Periods (UTP)
 - a. An Instructor or Evaluator Pilot with a UTP on their schedule will call Training Scheduling between 1700 and 1800 HST the day prior to their UTP to determine whether they have an assignment for the following day, unless the Pilot has already received the following day's assignment and acknowledged it verbally or electronically.
 - b. An Instructor or Evaluator Pilot working during the time period for checking the next day's UTP may receive an assignment by voicemail from the Company no later than 1700 HST. The assignment must be acknowledged verbally or electronically upon completion of the work assignment.
 - c. An Instructor or Evaluator Pilot who does not receive an assignment on the day prior to a UTP pilot will be on call between 0600 and 1500 HST on the day of the UTP. If called, they will report within three (3) hours for a trans-pacific fleet training assignment or two (2) hours for an interisland fleet training assignment.

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- d. Once an Instructor or Evaluator Pilot has reported for an assignment on a UTP day, they may not be reassigned to a different event or duty.
- e. If no assignment is received by 1500 HST on the UTP day, the pilot will be released for that day.
- f. An Instructor and Evaluator Pilot on a UTP may be assigned any instructing or evaluating event for which they are qualified, or any other training-related administrative duties that are required.
- g. When multiple Instructor and Evaluator Pilots with UTPs are qualified for uncovered training events, the least qualified Instructor or Evaluator Pilot will be assigned as follows:
 - 1) First, to the least qualified Instructor or Evaluator Pilot.
 - 2) Then, to the junior Instructor or Evaluator Pilot.
- h. An Instructor or Evaluator Pilot with a UTP on their schedule that is followed by a scheduled day off may be assigned a non-flight training event that carries over from their UTP day to their day off (e.g., 22:00-02:00 FFS assignment) provided:
 - 1) they consent to the additional day of work, and
 - 2) they receive six (6) hours of pay/no credit, plus any applicable override for such additional duty, and have nine (9) or greater days off in Domicile in the month.

2. Additional Days of Work

- a. A Full-Time Instructor or Evaluator, or MT Instructor or Evaluator Pilot during a Training month, may perform work on scheduled days off, in addition to their fifteen (15) scheduled work days. But in no case will Instructor or Evaluator Pilots have less than nine (9) days off in domicile in any month.
 - 1) Addition of flight (aircraft) instruction or evaluation events by an Instructor or Evaluator Pilot is capped at ninety (90) hours of flight time (for the purposes of FARs) per month in addition to the restrictions of this paragraph.
- b. Instructor or Evaluator Pilots may be recalled on a day off to conduct training but in no case will such pilots be offered or accept more than two (2) recall training events in a month unless no other qualified Instructor or Evaluator Pilots are available for that assignment.
- c. Uncovered instruction and evaluation events shall be assigned to a qualified Instructor or Evaluator Pilot in the following order:
 - 1) on a UTP day; then,
 - 2) on an unassigned day in a Training month; then,
 - 3) for recall in a Training month; then,
 - 4) on an unassigned day in a Line Flying month; then,
 - 5) for recall in a Line Flying month; then,

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- 6) removed from a Flight Grouping and recalled in a Line Flying month.
 - d. Uncovered crewing events shall be assigned in the order established in the above Subparagraph 9.O.2.c. If no Instructor or Evaluator Pilot is available, the event will be offered as recall, first per Subparagraph 22.G.2.h and second per Subparagraph 22.G.3.i.
 - e. The Company maintains the ability to displace both a Captain and First Officer from a Flight Grouping for IOE with less than seven (7) days' notice.
3. Schedule Changes
- a. Report times for Instructor or Evaluator Pilot assignments may be shifted up to four (4) hours earlier or later. Pilots must be notified of the change at least twelve (12) hours prior to the originally scheduled report time of the event, or the new report time of the event, whichever is earlier. The new report time cannot be earlier than 0430 or later than 2030.
 - b. Instructor or Evaluator Pilot assignments (including UTP's) may be shifted up to three (3) calendar days. Notification of such move shall occur at least forty-eight (48) hours prior to the originally scheduled report time and date of the event, or the new report time and date of the event, whichever is earlier.
 - 1) Once moved, an assignment may not be moved again. An Instructor or Evaluator Pilot shall not have more than two (2) assignments moved per month without their concurrence.
 - 2) An assignment is defined for the purposes of this Subparagraph 9.O.3.b as the same type training event (i.e., FTD, FSS, IOE, Line check, etc.).
 - c. When assignments are cancelled, Instructor or Evaluator Pilots may be placed on UTP.
 - d. The Company shall maintain a trade board to allow Instructor and Evaluator Pilots to trade assignments. All trade approvals will be subject to the continuity of Instructor or Evaluator for the Trainee being affected, the currency and qualifications of the Instructor or Evaluator Pilots, as well as FAA and PWA legalities.

P. INSTRUCTOR, EVALUATOR, AND FAA DESIGNEE PILOT COMPENSATION

- 1. Premium pay rates for all Instructor, Evaluator, and FAA Designee Pilots are established with this agreement and may be adjusted from time to time by mutual agreement between the Vice President of Flight Operations (or designee) and the ALPA MEC Chairman.
- 2. Instructor Pilots performing instructing duties in a given month shall be paid a salary equivalent to ninety (90) hours of pay in the Category Vacancy they hold, plus a monthly override of \$3,500.00 (Override is prorated for days actually worked).
 - a. Instructor Pilots who perform instructing duties in excess of their scheduled monthly training days shall be paid six (6) hours of pay/no credit per day in the Category Vacancy they hold, plus an additional \$230.00 on each additional day the Instructor Pilot performs duties.
 - b. Instructor Pilots who perform flight instructing duties in excess of their scheduled monthly instructing days shall be paid and credited six (6) hours of pay per day, in the Category

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Vacancy they hold, plus an additional \$230.00 on each additional day the Instructor Pilot performs duties.

3. An Evaluator Pilot performing instructing or evaluating duties in a given month shall be paid a salary equivalent to ninety (90) hours of pay in the Category Vacancy they hold, plus a monthly override of \$4,500.00 (Override is prorated for days actually worked).
 - a. Evaluator Pilots who perform flight instructing or flight evaluating duties as part of their scheduled monthly instructing or evaluating days shall be paid and credited six (6) hours of pay per day (as part of their 90 hour salary), in the Category Vacancy they hold, in addition to their monthly override.
 - b. Evaluator Pilots who perform non-flight instructing or evaluating duties in excess of their scheduled monthly instructing or evaluating days shall be paid six (6) hours of pay/no credit per day in the Category Vacancy they hold, plus an additional \$300.00 on each additional day the Evaluator Pilot performs duties.
 - c. Evaluator Pilots who perform flight instructing or flight evaluating duties in excess of their scheduled monthly instructing or evaluating days shall be paid and credited six (6) hours of pay per day, in the Category Vacancy they hold, plus an additional \$300.00 on each additional day the Evaluator Pilot performs duties.
4. FAA Designee Pilots performing instructing or evaluating duties in a month shall be paid a salary equivalent to ninety (90) hours of pay in the Category Vacancy they hold, plus a monthly override of \$5,000.00 (Override is prorated for days actually worked).
 - a. FAA Designee Pilots who perform flight instructing or flight evaluating duties as part of their scheduled monthly instructing or evaluating days shall be paid and credited six (6) hours of pay per day (as part of their 90 hour salary), in the Category Vacancy they hold, in addition to their monthly override.
 - b. FAA Designee Pilots who perform nonflight instructing/evaluating duties in excess of their scheduled monthly instructing or evaluating days shall be paid six (6) hours of pay/no credit per day in the Category Vacancy they hold, plus an additional \$333.00 on each additional day they perform such duties.
 - c. FAA Designee Pilots who perform flight instructing or flight evaluating duties in excess of their scheduled monthly instructing or evaluating days shall be paid and credited six (6) hours of pay per day, in the Category Vacancy they hold, plus an additional \$330.00 on each additional day that they perform such duties.
5. An Instructor, Evaluator, or FAA Designee Pilot who is recalled pursuant to Subsection 9.O (Daily Operation of Instructor and Evaluator Pilots' Schedules) shall in accordance with the following:
 - a. Pilots who perform non-flight instructing or evaluating duties on the recall day shall receive twelve (12) hours of pay per day and receive the applicable daily override.
 - b. Pilots who perform flight instructing or evaluating on the recall day shall receive one hundred percent (100%) of six (6) hours of Pay and Credit pay per day or actual time flown Pay and Credit on a daily basis, whichever is greater and 100% of six (6) hours of pay/no credit per

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day or the actual time flown Pay and Credit on a daily basis, whichever is greater, and the applicable daily override.

6. An Instructor or Evaluator Pilot, who is performing duties in excess of their fifteen (15) monthly scheduled training days, and who accepts a non-flight training event that carries from one calendar day to the next (e.g. 2200-0200 FFS assignment) shall receive six (6) hours of pay/no credit plus any applicable override, for such duty.
7. A pilot being trained to an Instructor category or higher category (Section 9.K), regardless of the category for which the pilot was selected, shall not be paid the applicable category override until they have been qualified to conduct an event in that applicable category without supervision.
8. An Instructor or Evaluator Pilot being trained to a higher category (Section 9.K), shall not be paid the applicable category override until they have been qualified to conduct an event in that applicable category without supervision.
9. An Instructor or Evaluator pilot who becomes qualified to conduct an event in a higher category (Section 9.K) on or prior to the sixteenth (16) of a month, shall receive the higher override for that month. Instructor and Evaluator pilots who complete their training after the sixteenth (16) of the month shall receive their previous pay override for the entirety of that month.
10. The Company shall maintain records of all Instructor, Evaluator and FAA Designee Pilot flight time Pay and Credit and shall make such records available to the Pilots' Scheduling Committee upon request.

Q. INSTRUCTOR AND EVALUATOR PILOT TEMPORARY PLACEMENT

1. The Company shall be able to utilize the Instructor and Evaluator Pilot Temporary Placement Program in the following situations:
 - a. During the introduction of a new equipment type until such time that fewer than four (4) aircraft of the new type are entering into service in a rolling twelve (12) month period.
 - b. During the drawdown of a fleet type, from the time the Company communicates their intention to remove the fleet type and:
 - 1) has eight (8) or fewer aircraft in service, or
 - 2) the fleet has decreased more than thirty percent (30%) in a rolling twelve (12) month period.
2. The Company shall, electronically, maintain and publish a list of Instructor and Evaluator Pilots who are participating in the program, whether currently temporarily placed in a second fleet type or not.
3. To participate in the program, a pilot must be a currently qualified Instructor or Evaluator Pilot in an eligible fleet and, in the case of an Evaluator Pilot have been so for a minimum of one (1) year.
4. An Instructor or Evaluator Pilot who is temporarily placed in a second Category shall be paid at the rate of the Category they currently hold.

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5. Eligible pilots shall temporarily be provided the ability to perform their Instructor or Evaluator Pilot related duties in an aircraft Category that is not their permanent Category Vacancy subject to the following:
 - a. Said pilot's period of placement shall be seven (7) months from the commencement of their ground school.
 - b. Said pilot temporary placement may be extended one additional six (6) months as required.
6. An Instructor or Evaluator Pilot, once temporarily placed, may perform, in the new Category, any Check/Instructor Pilot duties they are eligible to provide in their currently held Category.
 - a. Such pilots may perform aircraft flying subject to the following restrictions:
 - 1) Pilots may not pick up flying in their permanent or temporarily placed Category;
 - 2) Pilot(s) may be assigned flying by the Training, Crew Planning or Crew Scheduling departments that has been:
 - a) Displaced from a pilot previously awarded or assigned the flying
 - (1) Every effort will be made to notify such pilots in advance. If, however, less than three (3) days notice is provided, the Company must receive approval from the pilot prior to displacing them.
 - b) Is available in open time three (3) days or less from departure.
7. This temporary placement language shall only apply to Airbus 330 pilots being placed into the Airbus 321 or Boeing 767 categories. If the Company wishes to conduct temporary Instructor or Evaluator Pilot placement into aircraft other than those specified in this paragraph, they shall consult with the Association to determine the fleet types to use, with due regard to the Association's opinion regarding the potential impact on training, quality and safety.

R. NQ TRAINING ("NQ Training")

1. The following types of training are considered NQ Training:
 - a. Pilot recent experience (FAR 121.439), or
 - b. Requalification training, or
 - c. Continuing Qualification training ("CQ"), including line check and CQ distance learning.
2. An NQ Pilot shall only be assigned NQ Training. The assignment of any training other than NQ Training is permissible with consent from the NQ pilot.
3. An NQ Pilot shall only be assigned NQ Training concurrently with the NQ PayP process during the 72-hour window, or after the 72-hour window. Training may only be assigned:
 - a. that occurs during the Footprint of Flight Groupings previously removed from their schedule during the 72-hour window, or
 - b. that occurs on a Reserve day that was previously removed during the 72-hour window, or
 - c. with pilot consent, any other time.

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4. NQ Training Notification:
 - a. NQ Training assignments made during the 72-hour window (as defined in Subparagraph 22.M.11) to Bid Run and Reserve Run pilots only require one-way email notification that shall occur at least forty-eight (48) hours prior to the training event.
 - b. Bid Run pilot training assignments after the 72-hour window:
 - 1) Email at least seventy-two (72) hours prior to the assigned training event, and
 - 2) Phone call at least forty-eight (48) hours prior, if no prior pilot email acknowledgement.
 - c. Reserve Run pilot training assignments after the 72-hour window:
 - 1) Email at least ten (10) days prior to the assigned training event, and
 - 2) Phone call at least forty-eight (48) hours prior, if no prior pilot email acknowledgement.
 - d. Phone notifications that are at least forty-eight (48) hours prior to the training assignment do not require pilot acknowledgement.

S. GENERAL

1. Neither a pilot nor the pilot's estate shall be required to pay for the use of any Company equipment or equipment outside the Company that is required by it in pilot training. The cost of the use of any equipment for any training required of pilots by the Company for maintaining or improving the standard of proficiency shall be borne by the Company. No pilot or the pilot's estate shall be required to pay for any damage to any such equipment.
2. An Interisland Pilot shall not be required to maintain qualifications in more than one (1) type of equipment.
3. An International Pilot shall not be required to maintain qualifications in more than two (2) types of equipment.
4. First Officers with two (2) or more years of service as a first officer with the Company in the aircraft type shall have the opportunity to obtain a type rating or ATP at the time of a proficiency check, and shall be given one (1) training flight. This time-in-service requirement may be waived at Company option.
5. Each upgrading pilot shall be responsible for satisfactorily completing the FAA written examination for initial qualification as Captain (ATP) and shall personally bear the cost of any ground training needed in preparation therefor.
6. Pilots shall have the option of refusing to accept training or a proficiency check from a particular Instructor or Evaluator Pilot, provided the pilot shall register an objection to being scheduled for training or checks with a particular Instructor or Evaluator Pilot prior to actually being scheduled with such Instructor or Evaluator Pilot. Whenever it becomes apparent that pilots are consistently or repeatedly refusing to accept training or checks from a particular Instructor or Evaluator Pilot, the Vice-President of Flight Operations or their designee shall investigate the reasons for such refusals and take corrective action.
 - a. A pilot may register, and the Company shall approve, an objection to one I/E Pilot at any time (prior to actually being scheduled with such I/E Pilot), without providing an explanation ("Primary Objection").

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- 1) A pilot may withdraw or change their Primary Objection at any time, without providing an explanation.
- b. A pilot may register objections to additional I/E Pilots at any time (prior to actually being scheduled with such I/E Pilot) ("Secondary Objection(s)"), as follows:
 - 1) The pilot will be required to provide the Chief Pilot with an explanation(s) for the Secondary Objection(s).
 - 2) After due consideration, the Chief Pilot shall approve the registered Secondary Objection(s) unless the Secondary Objection(s) is deemed to be unreasonable by the Chief Pilot.
 - a) The Chief Pilot shall grant or deny the request within five (5) business days.
 - (1) If the Chief Pilot is unable to provide a decision within five (5) business days, the pilot's Secondary Objection(s) shall be provisionally honored until such time that the Chief Pilot provides a final decision.
 - 3) If the pilot believes that the Chief Pilot unreasonably denied their Secondary Objection(s), the pilot may appeal the Chief Pilot's decision by utilizing the grievance process. The parties agree that such grievance will be heard in Mediation/Arbitration, if not otherwise resolved before.
 - 4) A pilot's registered Secondary Objection(s), once granted, shall remain in force until such time that the pilot withdraws it.
7. When a pilot is assigned to the Company's training program for initial, upgrading, downgrading, or recurrent flight training, such training shall not be interrupted. However, a pilot may fly on the pilot's previous equipment between the pilot's scheduled ground school and simulator/flight training.
8. The Company shall provide each pilot who is scheduled for training or checks away from the pilot's home Domicile with positive space passes or fifty percent (50%) reduced fare tickets for travel to and from the site of such training. Travel to and from a training site shall be conducted under PWA Section 7 "Deadheading", except:
 - a. The applicable credit shall be the appropriate daily training Pay and Credit (currently 3 hours or 4.17 hours).
 - 1) The pilot shall receive pay no credit of the greater of:
 - a) The Deadhead block time , or
 - b) The daily training pay (and credit)

Example: Pilot is scheduled to travel to ATL on day 1, train on day 2-4, and travel back to HNL on day 5. Pay and Credit of 4.17 hours per day for days 1-5, plus the difference (greater of) in deadhead block times which were 10-hours HNL-ATL on day 1 and 10-hours ATL-HNL on day 5, which is an additional pay no credit of 5.83 hours on day 1 and on day 5. Pay and Credit = 20.85 hours, plus pay no credit = 11.66 hours.
 - 2) If the pilot is Deadheading from a training site on a travel/training day:
 - a) The applicable credit shall be the appropriate daily training credit (currently 3 hours or 4.17 hours), and

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- b) The pilot shall receive pay no credit for:
 - (1) The Deadhead block time , and
 - (2) The daily training pay

Example: Pilot is scheduled to travel LAX-LAS to the simulator on day 1, train on day 2, train on day 3 and train and travel LAS-LAX on day 4. Pay and Credit of 4.17 hours per day for days 1-4, plus the deadhead block times which were 2-hours LAS-LAX on day 4, which is an additional pay no credit of 2- hours on day 4. Pay and Credit = 12.51 hours, plus pay no credit = 2 hours.

- 9. A Full Flight Simulator with motion disabled may be substituted for a procedure flight training device and systems flight training device during ground school hours.
- 10. Events requiring crewing in Procedural Flight Training Devices and in Full Flight Simulators shall be listed in the FAA approved training manual(s).
- 11. Whenever a line pilot who is not in training, being trained or checked occupies a required crewmember position so that another pilot who is in training can complete their training or check flight, such line pilot shall be Paid and Credited the greater of what the pilot actually flies (if in an aircraft) or five (5) hours of Pay and Credit per day for each day or portion thereof such line pilot performs such duty. Any days of travel that were performed by such line pilot solely to position the pilot to fill a required crew position while another pilot is receiving training shall be Paid and Credited five (5) hours of Pay and Credit for each such day of travel.
- 12. In the event of short-term irregular line operations or the inability to cover the flying schedule, and the exhaustion of the UFAP, the Company reserves the right, to cancel a training event and make the Instructor Pilot or Evaluator Pilot, available to assist with coverage of open time.
- 13. A Flight Grouping that is published (available for all pilots in Category to view) and existed in open time greater than ninety-six (96) hours may be removed by the Company from open time for the purposes of conducting IOE. Such removal of the Flight Grouping from open time by the Company for the purposes of IOE is prohibited within two (2) days of such Flight Grouping operating.

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A. FEDERAL AVIATION REGULATION LIMITS.

1. If a pilot awarded/assigned a Bid Run or Flight Grouping that would cause such pilot to be in violation of any flight time, flight duty period, or rest limitation as defined by the Federal Aviation Regulations, then the Company will relieve such pilot from enough flight time or duty necessary to comply with such Federal Aviation Regulation and Pay and Credit the pilot the scheduled time for all such Segment(s).

B. TIME USED TO DETERMINE MAXIMUM PAY AND CREDIT TIME

1. All Pay and Credit time shall be used to determine the maximum Pay and Credit limitations for the purposes of monthly bidding. The following shall be included to determine the maximum pilot Pay and Credit limits for the purposes of monthly bidding :
 - a. The scheduled or actual time block-to-block (Subparagraph 4.B.1);
 - b. Minimum Daily Guarantee (Subparagraph 4.C.1 or 4.C.3);
 - c. MFGC (Subparagraph 4.C.1 or 4.C.3)
 - d. Duty Rig (Subparagraph 4.C.1);
 - e. Trip Rig (Subparagraph 4.C.1 or 4.C.3);
 - f. ALPA Flight Pay Loss (Subsection 4.G);
 - g. Segment Pay (Subsection 4.M).
 - h. Vacation Pay (Subsection 6.J);
 - i. Deadhead Pay (Subsection 7.B);
 - j. Training Pay (Section 9);
 - k. Sick Leave Pay (Subsection 12.B);
1. All credited flight time and all other Pay and Credit as provided for elsewhere in this Agreement.

C. FAR TIME LIMITS

1. The flight time limitations and required rest periods for pilots set forth in Federal Air Regulations in force and effect on the date this Agreement is signed shall continue in effect for the Company's operations.
2. In the event that such flight time limitations and required rest periods for pilots, as set forth in the Federal Air Regulations, are altered or amended by the appropriate government agency, conferences may be initiated either by the President of the Company or the President of the Association for the purpose of determining whether such alterations or amendments shall apply to the Company's operations.
3. Prior to submitting a Fatigue Risk Management system (FRMS) application or an exemption to FAR 117 to the FAA for approval, the Company will obtain ALPA's consent. Such consent will not be unreasonably withheld and, if withheld, will be based solely on the merits of the FRMS or exemption application.
 - a. Disagreements regarding any matter in Section 10.C.3 above must be resolved, including, if necessary, through an expedited grievance/arbitration process, before the Company may submit an FRMS application to the FAA. Both parties will abide by the arbitration decision.

D. DUTY PERIODS

All times used herein are Local Times (as defined by Subparagraph 2.A.43).

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1. International Pilot Duty Periods:

- a. Except as provided in Subparagraph D.1.b, D.1.c, D.1.d, & D.1.e (below) and, where indicated, the provisions of Section 5.A.6, an International Pilot shall not be scheduled, rescheduled or reassigned to a Duty Period and shall not be required to remain in a Duty Period in excess of the following limitations:

For Duty Period Starting	Scheduled, Rescheduled or Reassigned	Maximum
04:00-14:00	14 hours	16 hours *
14:01-03:59	14 hours	16 hours **

* Subparagraph 5.A.6 may be applied.

** Subparagraph 5.A.6 does not apply.

b. When serving as a member of an IRO Crew:

- 1) An International Pilot shall not be scheduled, rescheduled, or reassigned to a Duty Period more than sixteen (16) hours and shall not be required to remain in a Duty Period in excess of eighteen (18) hours;
- 2) Transfer times as set forth in Subparagraph 5.A.6.a, shall not be used to increase the duty time;
- 3) It is intended that the IRO or the Captain who is not the Pilot in command (PIC) on an IRO Crew will alternately and from time to time relieve the PIC Captain and the First Officer;
- 4) Members of an IRO Crew shall not remain at the controls for more than eight (8) hours in a twenty-four (24) hour period.

c. When serving as a member of an Extended Range Crew comprised of one (1) Captain, one (1) type-rated First Officer, and two (2) First Officers, a pilot shall not be scheduled, re-scheduled, or re-assigned to a Duty Period more than sixteen (16) hours and shall not be required to remain in a Duty Period in excess of eighteen (18) hours.

d. When serving as a member of an Extended Range Crew comprised of two (2) Captains and two (2) First officers, a pilot shall not be scheduled, re-scheduled, or re-assigned to be in excess of Part 117 Table C.

e. When serving as a crewmember of an Extended Range Crew that is scheduled, re-scheduled, or reassigned in excess of FAR 117 Table C (by the utilization of Fatigue Risk Management System (FRMS)) the crew shall be comprised of (2) Captains and (2) First Officers.

2. Interisland Pilot Duty Periods:

- a. An Interisland Pilot shall not be scheduled or rescheduled to a Duty Period and shall not be required to remain in a Duty Period in excess of:

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For Duty Period Starting	Scheduled, Rescheduled, or Reassigned	Maximum
05:00-21:59	12 hours	14 hours
22:00-04:59	10 hours	12 hours

- b. An Interisland Pilot starting a Duty Period before 2200 hours and continuing after 0300 the following morning shall not be scheduled to a Duty Period more than ten (10) hours, or be required to remain in a Duty Period more than twelve (12) hours.
- c. If an Interisland Pilot completes a Duty Period after 0200, they shall not start another Duty Period during the same calendar day.

3. Mixed Flying Duty Periods:

- a. A pilot assigned to a grouping containing a Mixed Flying Duty Period shall be subject to the following limitations:

	Scheduled, Rescheduled, or Reassigned	
Standard Crew	12 hours	14 hours
Augmented Crew	14 hours	16 hours

- 4. A pilot may, at their option, exceed the applicable maximum hours stipulated in Subparagraphs 10.D.2.a or 10.D.2.b, provided they:
 - a. Are departing a station other than their Domicile, and
 - b. Have not exceeded the applicable maximum at the time of departure from the blocks.
- 5. Each Duty Period shall commence at the time a pilot is to report for duty or their actual reporting time, whichever is later, and shall continue until the applicable maximum duty hours have elapsed pursuant to Subparagraphs 10.D.2 and 10.D.3 or until interrupted by a rest period as stipulated in Subsection 10.E (Rest Periods).

E. REST PERIODS

1. International Pilot Rest Periods:

- a. Each International Pilot, at their Domicile, shall have a minimum Rest Period of eleven (11) hours immediately prior to starting any duty with the Company.
 - 1) At stations other than the pilot's Domicile, each International Pilot shall have a minimum Rest Period equal to two (2) times their preceding Duty Period immediately prior to starting any other duty with the Company.
 - 2) If the Rest Period exceeds nine (9) hours the Company may, at their discretion, limit the Rest Period in the hotel to nine (9) hours for a regular crew.

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- 3) Rest Period is defined as time in the hotel (door-to-door), when hotel is required, uninterrupted by the Company.
 - 4) In case of any interruption by the Company, the pilot shall have the option of extending their Rest Period after the interruption, for a period of time equal to the Rest Period for which they were originally entitled.
 - b. When an International Pilot's Segment is scheduled to depart any station between 1400 hours and 0359 hours (local time) and the scheduled Duty Period is for twelve (12) hours or more, then the assigned crew will receive not less than an eighteen (18) hour Rest Period prior to departure.
2. Interisland Pilot Rest Periods:
- a. Each Interisland Pilot, at their Domicile, shall have a minimum Rest Period of twelve (12) hours immediately prior to starting any duty with the Company.
 - b. At stations other than their Domicile, each Interisland Pilot shall have a minimum Rest Period of nine (9) hours immediately prior to any other duty with the Company.
3. Mixed Flying Rest Period
- a. For pilots assigned to a grouping containing at least one (1) Mixed Flying Duty Period, out of Domicile rest (door-to-door at the hotel) shall be determined by the following table:

Number of Landings Performed in a Grouping	Up to 5	6-7	8 or more
Crew Rest	9 hours	10 hours	11 hours

F. PILOT REPORTS FOR DUTY AND THEN RELEASED

1. If a pilot reports for duty, and is released and is later called back for duty, with less time off than the Rest Periods prescribed in Subsection 10.E (Rest Periods), the total time from their first reporting for duty to their release from duty at the completion of their day's Duty Period shall be considered a Duty Period for the purpose of this Paragraph.

G. MINIMUM DAYS OFF IN DOMICILE

1. Except for the days off provisions of Subparagraph 26.JJ ("Table of Prorated Absences"); and Subparagraph 10.G.2 ("Three days off waiver") each month all pilots shall have the minimum number of days off in their Domicile awarded on their Bid Run or Reserve Run as prescribed below:
 - a. Bid Run Pilots:
 - 1) Twelve (12) calendar days off in a thirty (30) day month; and
 - 2) Thirteen (13) calendar days off in a thirty-one (31) day month.
 - b. Reserve Run Pilots:
 - 1) Interisland:
 - a) Have a minimum of twelve (12) calendar days off in any month; and
 - b) At least six (6) days off shall be Guaranteed Days Off (GDO) that are:

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- (1) Not subject to change (immovable) or recall, except by Pilot consent;
 - (2) Pilots may preference for the pattern and placement of their GDOs not exceeding a maximum number of four (4) periods.
 - c) All non-GDO are subject to change once in a month and are thereafter not subject to change or recall, except by pilot consent.
 - d) Pursuant to Subparagraph 10.G.b.1).c), the Company must notify a pilot by 1700 Local Domicile Time (LDT) two (2) calendar days prior to any change (e.g., notify by 1700 LDT on Tuesday for changing Thursday to a work day of a pilot's day off (e.g., notify by 1700 LDT on Tuesday for changing Thursday to a workday).
 - 2) International
 - a) Twelve (12) calendar days off in each month, and
 - b) At least six (6) days off shall be GDO that are:
 - (1) Not subject to change (immovable) or recall, except by pilot consent;
 - (2) Pilots may preference for the pattern and placement of their GDOs not exceeding a maximum number of four (4) periods.
 - c) All non-GDO are subject to change once in a month and are thereafter not subject to change or recall; except, by pilot consent.
 - d) Pursuant to Subparagraph 10.G.b.2).c), the Company must notify a pilot by 1700 Domicile LDT two (2) calendar days prior to any change of a pilot's day off (e.g., notify by 1700 LDT on Tuesday for changing Thursday to a work day).
2. Any pilot, at the pilot's sole option, may during the PBS monthly bidding process, waive one (1), two (2), or three (3) of their applicable minimum days off per month in order to increase their Pay and Credit time up to the monthly maximum.
3. Replacement Days(s) Off:
- a. If a Bid or Reserve Run pilot's schedule is involuntarily impacted (e.g. junior manning, Delay, Reassignment, etc.), which causes the pilot's projected minimum days off to fall below the minimum prescribed in Subparagraph 10.G.1.a and 10.G.1.b, then the following will occur:
 - 1) Such minimum days off must be replaced in that same month; except that if a day off that is within seven (7) days of the end of the current month is changed in accordance with Subparagraph 10.G.1.b above, the replacement day off may be in the following month, but only with pilot concurrence.
 - 2) The assignment of replacement days off shall be as follows:
 - a) The pilot and Crew Scheduling will, at the time the infringement occurs, mutually designate a replacement day(s); or
 - b) If the pilot and Crew Scheduling are unable to reach agreement on the replacement day(s) off; the pilot shall select:
 - (1) Three (3) days, if a single scheduled day off is lost, or
 - (2) Three (3) periods, if two (2) or more days off are lost; and
 - (3) Crew Scheduling shall immediately grant one (1) of the days or periods, as applicable, that the pilot has selected.
 - b. Application of Subsection G (Minimum Days Off in Domicile) shall not cause the pilot to be Paid and Credited for the month with less time than the pilot was awarded on their original Bid Run.

H. MAXIMUM PILOT LANDINGS PER DUTY PERIOD.

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1. A turbojet pilot shall not be scheduled for more than ten (10), nor required to perform more than eleven (11) landings, during any Duty Period. No pilot starting their Duty Period between 2200 and 0459 LT (Local Time) shall be required to make more than seven (7) landings.
2. An Interisland Pilot starting a Duty Period before 2200 hours HST and continuing after 0300 HST the following morning shall not be required to perform more than eight (8) landings.
3. Mixed Flying shall be limited to four (4) landings per Duty Period.

I. PILOT AT CONTROLS AT TERMINAL POINTS AND/OR INTERMEDIATE STOPS

1. Pilots who are required to remain at the controls of an aircraft with one (1) or more engines running at terminal points or intermediate stops shall be considered in a Duty Period involving Flight Time Pay and Credit.

J. CREW MEALS

1. The Company shall strive to provide meals that are nutritious and healthy.
2. The Company shall evaluate the ability to allow pilots to order their required meals via an automated portal.
3. No less than once a quarter, the Crew Meal Committee Chairman or committee member shall meet with Catering Manager to ensure the following:
 - a. For international crewmembers:
 - 1) Crew meals shall be boarded on all flight Segments scheduled for over four (4) hours non-stop or when any portion of the On-Duty period, exclusive of report and debrief exceeds six (6) consecutive hours with the scheduled time on the ground at any point, one and one-half (1.5) hours or less.
 - 2) The makeup of the cockpit snack box includes:
 - a) One and one half (1.5) liters of water per pilot.
 - b) Variety of canned beverages
 - c) Fresh fruit
 - d) Snacks
 - 3) Pilots shall receive the same food service and frequency as the highest class of passenger service on a given flight. If there is no passenger service on a given flight (example: ferry flight) then the meals provided will be the same as if there were business or first class service on that flight Segment.
 - a) Upon mutual agreement between the Association and the Company, a single crew meal service or all crew meals served on a given flight may be substituted with meals designed solely for flight crew members.
 - 4) All meals boarded for pilots, if different than passenger meals, shall be labeled as “pilot meals”.
 - 5) A crewmember that is Deadheading shall receive the food service provided to the seating class that the pilot is ticketed in.
 - b. For Interisland crewmembers

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- 1) On all B717 Flight Groupings that have a scheduled On-Duty period (exclusive of report and debrief times) of at least six (6) consecutive hours and:
 - a) Do not provide at least one (1) thirty-five (35) minute scheduled “block-in to block-out” time in Honolulu, or
Do not provide at least one (1) twenty-five (25) minute scheduled “block-in to block-out” time at any other station; and
 - b) The thirty-five or twenty-five minute “block-in to block-out” time is scheduled to occur after the third (3rd) hour of the Duty Period and prior to the last flight in the Flight Grouping,
 - c) The crew meal shall consist of at least one (1) sandwich and one (1) snack-sized bag of potato chips or similar snack food.

4. Problem resolution process

- a. If a pilot encounters a problem with the distribution or quality of a crew meal (either a standard highest class of service meal or a meal designated for pilots), they shall fill out a Dispute of Crew Meals (DCM) form and send it to the Association’s Crew Meal Committee within thirty (30) days following the incident in dispute.
- b. Upon receipt of a DCM submission, the Association’s Crew Meal Committee will work to address the issue internally or escalate the issue to the attention of the Catering Manager. The Company shall, no less than monthly, respond to all open escalated issues.
 - 1) If, after two (2) consecutive months, an escalated issue(s) is not resolved to the satisfaction of both parties, the issue will be addressed by the MEC Chairman and the VP of Flight Operations or his or her designee, no less than fifteen (15) days after an initial request for a meeting.
 - 2) If the MEC Chairman and the VP of Flight Operations are unable to resolve an escalated issue(s) within thirty (30) days of the initial request for a meeting, the Association may submit the issue as a PWA Section 16 grievance within ninety (90) days of that outcome, or the issue will be deemed resolved.

K. FATIGUE CALLS

1. A pilot that is unable to complete their assignment due to fatigue, shall call Crew Scheduling and declare themselves “fatigued.” Crew Scheduling shall remove them from their Flight Grouping and categorize the event as fatigued, to be reviewed by the Fatigue Review Committee (FRC).
 - a. Such pilot shall be immediately released into ten (10) hours of rest.
 - b. Such pilot shall initially have their sick bank debited for the fatigue event, until reviewed by the FRC.
 - c. Such pilot shall fill out an electronic fatigue report (e.g., WBAT) not to exceed forty-eight (48) hours after the event or within forty-eight (48) hours after returning to Domicile.

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2. The Fatigue Review Committee (FRC) shall consist of two (2) representatives from the Company and two (2) representatives from the Association. The FRC shall meet no less than once per month to review all fatigue events for acceptance, regardless of where or when they occurred (e.g., in-domicile, out of domicile, before report, after report, etc.). If the FRC is unable to reach a consensus, the VP of Flight Operations shall cast the deciding vote.
 - a. If the FRC accepts the fatigue event, the pilot's sick bank shall be restored.
 - b. A pilot's monthly sick accrual shall not be withheld in a month where the pilot does not call in sick, but instead notifies the Company that they are fatigued, irrespective of the acceptance of such fatigue event by the FRC.

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SECTION 11

LEAVES OF ABSENCE

A. FAMILY AND MEDICAL LEAVE ACT

1. Leaves of absence will be granted under the Family and Medical Leave Act in compliance with all appropriate Federal and State Laws.

B. PILOT LEAVES OF ABSENCE

1. The Company may grant a pilot a leave of absence for up to five (5) years. Every effort shall be made to comply with a pilot's leave request. In the event a pilot's leave cannot be arranged, the Company and the Hawaiian Airlines MEC Chairperson or their designee may review the issue jointly. A pilot granted a leave of absence shall retain and continue to accrue seniority during such leave, provided that the pilot maintains the certificate required for their status. If a pilot permits their certificate to lapse while on leave of absence, their Seniority shall accrue only to the date of lapse.
2. A pilot can only be placed on a leave of absence if they do so on a voluntary basis.
3. The Company shall not place a pilot on a leave of absence without their written permission.

C. LEAVE OF ABSENCE DUE TO SICKNESS OR INJURY

1. When leaves are granted on account of sickness or injury, or a pilot is medically retired, they shall retain and continue to accrue their Seniority irrespective of whether or not the pilot is able to maintain their Airline Transport Pilot's Certificate, until they are able to return to duty, except that in no case shall leave for sickness or injury exceed a total continuous period of six (6) years.

D. EXTENDED ACTIVE MILITARY DUTY

1. Pilots ordered to extended active military duty shall retain and continue to accrue Seniority and longevity for pay purposes. Return to duty after such leave of absence shall be subject to a reasonable qualifying period not to exceed three (3) months. Upon written request, any pilot may be granted two (2) weeks military leave each year, without pay.

E. EMERGENCY LEAVE

1. A pilot shall be granted a leave of absence up to and including four (4) (or five (5) outside of pilot's Domicile state) consecutive days for any absence which is occasioned by death or critical illness in the immediate family, and they shall be Paid and Credited for what they were scheduled to fly or normally would have flown, whichever is greater. The Company may, at its discretion, require appropriate confirmation of such emergency. For purposes of this Paragraph, a critical condition is one which requires the presence of the pilot, and the immediate family shall include their parents, grandparents, brother, sister, spouse, mother-in-law or father-in-law, and children. Pilots granted emergency leave shall be Paid and Credited during the initial four (4) or five (5) day period of leave as follows:
 - a. A pilot awarded a Bid Run shall be Paid and Credited what they normally could have earned for any published Flight Groupings missed on their Monthly Run.
 - b. A pilot awarded a Reserve Run shall be Paid and Credited the greater of the following:

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- 1) For any Published Segment(s) missed (as defined in Subparagraph 4.B.4) during the emergency leave period; or
- 2) For all reserve work days during the emergency leave period:
 - a) In an eighteen (18) work day month at a rate of five and zero hundredths (5.00) hours per work day missed on emergency leave.
 - b) In a nineteen (19) work day month, at a rate of four and seventy-four hundredths (4.74) hours per work day missed on emergency leave.

Additional emergency leave without pay may be granted.

F. PRORATED FLIGHT TIME

1. During any portion of a calendar month that a pilot is on leave of absence, their prorated flight time for the remaining period during such month shall not exceed three (3) hours per day.

G. LEAVES OF ABSENCE DUE TO COUNCIL ACTIVITIES, OR APPOINTMENT OR ELECTION TO ASSOCIATION, STATE GOVERNMENT, OR FEDERAL GOVERNMENT POSITIONS

1. A pilot shall be granted a leave of absence in order to perform duties related to council activities.
2. A pilot who has been appointed or elected to a national position with the Association or a State or Federal Legislature, or has been appointed to a position in a Federal or State Government agency directly connected with aviation, shall either:
 - a. Continue to accrue seniority and longevity (but will not accrue vacation or sick or be eligible for medical insurance any other benefit under the PWA other than travel on Hawaiian and to the extent allowed on other airlines pursuant to our interline agreements) while on a leave of absence, provided that during such period the pilot maintains their appropriate airmen certificate and medical certificate; or
 - b. Maintain currency (e.g., annual CQ and landing currency) on the following conditions:
 - 1) Commence each Month with zero credit hours;
 - 2) Utilize the Online Scheduling Access Program to pick up Flight Groupings that exist in open time, as long as the Pay and Credit does not exceed any limitations set by the pertinent governing body (e.g., ALPA Constitution and Bylaws, MEC Policy Manual, US House or Senate Select Committee on Ethics, etc.); and
 - 3) Pilots on this Subsection b. status will continue to accrue seniority and longevity but will not accrue vacation or sick leave. Pilots on this status will also not be eligible for medical insurance or any other benefits provided to a full-time pilot under the PWA other than travel on Hawaiian and to the extent allowed on other airlines pursuant to our interline agreements.
 - c. Both the pilot and the Company retain the right to convert status under B.2.b of this Agreement to leave status under B.2.a of this Agreement at any time.

H. PREGNANCY

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1. A pilot, immediately upon discovery that she is pregnant, must notify her Chief Pilot as soon as she has knowledge of such condition. She shall have the right to work indefinitely, absent circumstances that shall forward certification of her fitness to fly to the Chief Pilot on a monthly basis. Upon determination that she should no longer fly, or chooses not to fly, she shall be placed on leave of absence due to pregnancy. The Company shall reimburse the pilot for the reasonable and customary cost of the FAA physician's fees.
2. Leaves of absence due to pregnancy will not normally extend beyond six (6) weeks from the termination of pregnancy unless the pilot's attending physician deems additional time necessary.
3. A pilot will retain and accrue seniority during a leave of absence due to pregnancy.
4. A pilot will not be compelled to use her accrued sick leave or vacation in connection with a leave of absence due to pregnancy; however, at her option, a pilot may use all or part of her accrued sick leave benefits in accordance with Section 12 (Sick Leave) or vacation in accordance with Section 6 (Vacation).

I. PERMANENT BID PROCEDURE FOR PILOTS ON LEAVE

1. A pilot granted a leave of absence or any extension thereof pursuant to the provisions of Section 11 (Leaves of Absence) will retain the permanent Category Vacancy and Domicile held at the time the leave was granted for reinstatement purposes unless awarded or assigned another permanent Category Vacancy and Domicile pursuant to Subparagraphs 11.I.3 and 11.I.4.
2. A pilot on leave will be required to maintain and participate in the Standing Bid process in the same manner as an active pilot. Permanent Vacancy and/or Displacement Bulletins shall be made available to all pilots via posting on the Company web-site and via e-mail. It shall be the responsibility of the pilot on a leave of absence to keep the Company informed of their current mailing address and other contact information.
3. A pilot on leave who is awarded a change in their permanent Category Vacancy and Domicile will have that bid award recorded as a change for reinstatement purposes only.
4. A pilot returning from a leave of absence will be reinstated to the last permanent Category Vacancy and Domicile the pilot is holding at the time of return. If a pilot is not currently qualified in the permanent Category Vacancy they are holding at the time of reinstatement, such pilot may be required to fly in any equipment in which they are currently qualified until training and qualification for the permanent Category Vacancy they hold at the time of reinstatement can be accomplished pursuant to Section 9 (Training). Provided the pilot is not in training, they shall be guaranteed the same number of total scheduled days off as is contained in the line of flying to which their Seniority would have entitled them had they been so qualified. The pilot shall have the option of taking all such days off at the pilot's currently awarded Domicile or the pilot's former Domicile. If training has not begun within ninety (90) days after reinstatement, then such pilot shall be entitled to Bypass Pay as specified in Subsection 20.L (Bypass).

J. SURFER LEAVE

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LEAVES OF ABSENCE

1. From time to time the Company may offer voluntary “Surfer Leave” leaves of absence in a Category (or categories) where excess staffing exists. The Company shall indicate in each monthly bid bulletin whether or not Surfer Leaves may be offered. However, the indication that Surfer Leave may be offered is not a guarantee that such leaves shall be offered as staffing excess will not be determined until the bids are closed. Such Surfer Leave shall be:
 - a. for the duration of one (1) month, and
 - b. awarded to active pilots in Seniority order concurrently with the bid award for that month.
2. To be eligible for Surfer Leave, during the month in which such leave would be provided, a pilot shall not be:
 - a. scheduled for training or vacation, or
 - b. projected to lose landing currency as of the bid award date for that month.
3. A pilot volunteering for Surfer Leave shall notify Crew Planning no later than the closing of the Bidding Period for that month.
4. A pilot awarded Surfer Leave shall:
 - a. be Paid and Credited thirty-seven and fifty hundredths (37.5) hours in their applicable Category,
 - b. continue to receive all benefits as an active pilot for the duration of such leave,
 - c. be removed from the monthly bid process, and
 - d. have their Surfer Leave status listed on the monthly bid award bulletin.
5. A pilot awarded Surfer Leave that has a “carry-in” Flight Grouping into the month in which a pilot is awarded Surfer Leave shall:
 - a. be responsible to operate the Flight Grouping (unless traded with open or another pilot), and
 - b. forfeit any carry-in pay unless;
 - 1) the Flight Grouping was at the request of the Company or,
 - 2) due to a flight delay, or
 - 3) operational necessity, or
 - 4) unforeseen circumstances.
 - c. A pilot will not be denied Surfer Leave by virtue of receiving a bid award which results in a carry-in.

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SICK LEAVE

A. SICK LEAVE ACCRUAL

1. Sick leave shall be accrued as follows:
 - a. Seven and one half (7.5) hours in any month during which the pilot does not call in sick;
 - b. Five and sixty-five one-hundredths (5.65) hours per month in any month during which the pilot calls in sick. Notwithstanding the foregoing, zero (0) hours in any month during which the pilot calls in sick where, for the pilot group as a whole, paid sick hours as a percentage of total paid hours exceed five and one-half (5.5) percent over the preceding twelve (12) months. The Company shall advise the Association if, and when, the percentage approaches or exceeds five and one-half (5.5) percent.
 - c. Seven and one-half (7.5) hours any month in which the only sick leave taken is due to an uninterrupted continuation of the sick leave called in during the previous month or months.
2. Each pilot may accrue up to a maximum of one thousand eighty (1,080) hours of sick leave credit.
3. There shall be no maximum accrual amount after twelve (12) months prior to the pilot reaching the FAA mandatory retirement age (e.g., 65th birthday).
4. A pilot who was unable to report for duty on account of illness for two hundred and seventy (270) consecutive compensable sick hours or more shall accrue sick leave at ten (10) hours per month for that period of time that it will take the pilot to reaccrue the amount of sick leave credit that was in their sick leave bank prior to the illness or injury. However, sick leave usage during this period of rapid reaccrual shall not extend the duration of the reaccrual period.

B. SICK LEAVE PAY, CREDIT, AND DEBIT

1. "Hours" (for purposes of Section 12 (Sick Leave)) means pay hours compensable at the current pay rate (specified in Section 3 (Compensation)) for the pilot involved.
2. Compensable sick leave is based upon fitness to fly.
 - a. Routine dental or medical appointments do not constitute actual sickness within the meaning of this section.
 - b. The Company may require proof that a pilot was actually sick or disabled; in which event the Company shall:
 - 1) Pay the cost of an office visit to secure a doctor's certificate; but
 - 2) Not pay for the cost of any diagnostic service rendered during such visit.
3. A pilot shall not be allowed to make up sick leave that has been charged to them.
4. Prior to the opening of the monthly Bidding Period, a pilot on known sick leave shall:
 - a. Not be awarded any Flight Groupings during the period of the known sick leave; however, such pilot shall be awarded Flight Groupings during any portion of the month such pilot is not on sick leave;

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- b. Be Paid and Credited and their sick leave accrual debited by three (3) hours for each day of the sick leave period; and
 - c. Have days off prorated in accordance with the provisions of Section 26.JJ (Table of Prorated Absences).
5. For long-term sick leave (one (1) or more calendar months) a pilot shall have the option of being Paid and Credited and their sick leave debited by either:
 - a. Minimum monthly guarantee as described in Subsection 3.E (Minimum Monthly Guarantee); or
 - b. Maximum monthly Pay and Credit of ninety-six (96) hours.
6. After the awarding of the Monthly Runs, a pilot utilizing sick leave and awarded:
 - a. A Bid Run, shall be Paid and Credited what they normally could have earned for any published Segments missed on their Monthly Run, and their sick leave accrual shall be debited accordingly.
 - b. A Reserve Run pilot shall be Paid and Credited, and their sick leave accrual shall be debited as follows:
 - 1) In an eighteen (18) work day month at a rate of five (5) hours per work day missed.
 - 2) In a nineteen (19) work day month at a rate of four and seventy-four-hundredths (4.74) hours per work day missed on sick leave.

C. NOTIFICATION OF AVAILABILITY

1. A Bid Run pilot returning from sick leave shall notify the Company that they are available for duty not later than sixteen (16) hours prior to their return to duty.

Example: A Bid Run pilot calls in well at 1600LDT for a Flight Grouping with a report time of 0801LDT the following day, returns to duty and is not charged sick leave since this is greater than sixteen (16) hours from report time.

- a. When notification is made after sixteen (16) hours prior to report time, such Bid Run pilot returning to duty shall be Paid and Credited, and their sick leave accrual debited (when applicable), in accordance with Subsection 12.B (Sick Leave Pay, Credit, and Debit) for the following day.

Example: A Bid Run pilot calls in well at 1600HST for a Flight Grouping with a report time of 0600LDT the following day, remains on sick leave since this is less than sixteen (16) hours prior to report time.

2. A Reserve Run pilot returning from sick leave shall notify the Company that they are available for duty and shall be scheduled for their next published RAP.

Example: A Reserve Run pilot calls in well at 0730LDT for an assigned RAP starting at 0800LDT the same day, returns to duty and is not charged sick leave since this is prior to their next published RAP.

Example: A Reserve Run pilot aggressively picks up a 3-day Flight Grouping. Prior to that Flight Grouping, the pilot calls in sick and does not call in well greater than 16 hours prior to report. The

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pilot would have the Flight Grouping removed from their schedule and be charged sick leave for each reserve day missed.

- a. When notification is made after a reserve pilot has commenced a RAP, such pilot returning to duty shall be Paid and Credited, and their sick leave accrual debited (when applicable), in accordance with Subsection 12.B (Sick Leave Pay, Credit, and Debit) for that day.

Example: A reserve pilot calls in well at 0730LDT during a previously published RAP starting at 0600LDT the same day, such pilot remains on sick leave for that day and returns to duty for their next published RAP.

3. A Long Call (LCR) Reserve Run pilot returning from sick leave shall notify the Company that they are available for duty prior to 1500LDT.

- a. A LCR pilot shall recommence their LCR available status at 1500LDT, and shall not be assigned a Flight Grouping reporting earlier than 0500LDT the next day, regardless of the time they called in well.

Example: A LCR pilot calls in well at 0900LDT, will recommence their LCR available status at 1500LDT that day, and is not charged sick leave for the following day.

- b. When a LCR pilot notification is received after 1500LDT, such pilot returning to duty shall be Paid and Credited, and their sick leave accrual debited (when applicable), in accordance with Subsection 12.B (Sick Leave Pay, Credit, and Debit) for the following day.

Example: A LCR pilot calls in well at 1600LDT, such pilot remains on sick leave for the following day and returns to duty to recommence their LCR available status at 1500LDT the following day.

4. Charges against a pilot's sick leave shall not be made for any day(s) after a pilot has notified the Company of their availability for duty:

- a. Notification shall be in accordance with Subparagraph 12.C.1, 12.C.2, 12.C.3;
- b. If a Bid Run pilot is on sick leave for any portion of a Flight Grouping:
 - 1) Such pilot shall be Paid and Credited, and their sick leave accrual debited, for the remainder of the Flight Grouping; unless
 - 2) At Company discretion, the pilot is repositioned to rejoin their Flight Grouping.

D. SICK LEAVE RECORDS

1. The Company shall be responsible for maintaining a record of sick leave credits and payments; such records shall be distributed per Subparagraph 4.J.1.
2. Payments for sick leave resulting from non-occupational disability shall be:
 - a. Requested not later than the last day of the calendar month following the month such sick leave was taken.
 - b. Prepared by Crew Scheduling on a Company provided form showing:
 - 1) The sick leave charged, and

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- 2) The pilot(s) who flew the Segment(s) involved.
- c. The form is submitted, by Crew Scheduling, to the pilot for their signature.

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SECTION 13 PHYSICAL STANDARDS AND PHYSICAL EXAMINATIONS

A. PHYSICAL STANDARDS ESTABLISHED BY FAA

1. The medical standards required of a pilot shall be the standards established by Federal Air Regulations, including its waiver and special issuance policies, and statement of demonstrated ability.
2. If the Company has reasonable cause to believe that a pilot does not meet the standards established by the FAA, or is unable to perform their duties, or a pilot returns from leave having lost or surrendered a medical certificate and/or does not provide information about the circumstances relating to the loss of medical certification, the Company may require a pilot to submit to an additional medical examination from a Company appointed medical examiner (CME). In such cases the Company will provide written notice to the pilot specifying the basis for such exam. If such additional exam is required, the pilot will:
 - a. Receive a copy of the examination report, all tests, x-rays, imaging, other documentation, and all other information relied upon by the CME; and
 - b. Be reimbursed for all reasonable costs and expenses related to the additional medical exam including: the cost of the exam, tests, imaging, travel, and hotel accommodations, if necessary; and
 - 1) If air transportation is required to attend the exam, positive space passes on Hawaiian will be provided. Air transportation outside of the Hawaiian Airlines system will be permitted subject to the Company's approval of the itinerary and fare to and from the location of the examination.
3. A pilot may be held out of service until the results of the medical examination are known, and will be pay protected for the value of their line for the remainder of the month or, if held out of service for a full month, receive the minimum monthly guarantee.
4. A pilot who fails to pass the Company-required examination may have a review of the case in the following manner:
 - a. The pilot may employ a qualified medical examiner of their own choosing (PME) and at their own expense for the purpose of conducting a physical examination and/or tests for the same purpose as the medical exam required by the Company.
 - b. A copy of the findings of the PME shall be furnished to the Company. In the event that such findings confirm the findings of the CME, the pay, benefits (use of sick leave and disability, for example) and disposition of the pilot will be governed by other provisions of this Agreement. No further medical review shall be afforded under this Agreement.
 - c. If the CME and the PME disagree on the pilot's qualification to meet the standards established by the FAA, at the written request of the pilot, the Company will ask the two medical examiners to agree upon and appoint a third qualified and neutral medical examiner (NME), preferably a specialist, for the purpose of conducting a further physical examination of the pilot.
 - 1) If the CME and PME do not agree upon and appoint an NME, the Company will ask the CME and ALPA Aeromedical or ALPA to agree upon and appoint such an NME for this purpose.

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- d. The three medical examiners shall constitute a board of three, and a majority opinion of the Board shall be sufficient to decide whether the pilot meets the medical standards required by the FAA.
- e. The expense of employing the disinterested medical examiner shall be borne one half (1/2) by the pilot and one half (1/2) by the Company. Copies of such medical examiner's report shall be furnished to the Company and to the pilot.
- f. If the Board finds that the pilot meets the medical standards required by the FAA, the pilot will be returned to active flight status. The pilot will be made whole for pay and benefits lost by being paid retroactively, and sick leave used due to the failure to pass the Company-required medical examination will be restored by crediting it back to the pilot's sick leave bank.
- g. Medical records and other information obtained as a result of a Company-required medical examination, or subsequent examinations pursuant to the process referred to above, shall be treated as privileged and confidential, and limited to the medical examiners involved in this process and to Company officials designated to handle confidential medical matters. No information, documents, or records shall be disseminated to any other individual, agency, or entity without the written consent of the pilot. When required by court order or other legal requirement to release information, the pilot shall be notified of such request or demand.

B. FAILURE TO QUALIFY FOR FIRST CLASS PHYSICAL

- 1. A pilot who fails to qualify for their First Class physical, but who is able to qualify for a Second Class physical and who is legal to fly as a First Officer, may continue to fly as a First Officer. They may exercise their bidding rights to fill any position to which their Seniority entitles them.

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SECTION 13 PHYSICAL STANDARDS AND PHYSICAL EXAMINATIONS

C. DRUG AND ALCOHOL TESTING

1. A pilot will not be required to submit to a drug or alcohol test on a day free of duty. In the event a drug or alcohol test interferes with a pilot's schedule, the pilot shall not suffer any loss of pay or credit as a result of such drug or alcohol test. A pilot who is required to submit to a drug or alcohol test upon release from a Duty Period, shall receive one (1) hour pay/no credit for such drug or alcohol test. Time spent submitting to a drug or alcohol test shall not be considered duty for the purposes of the Agreement if such test is taken after the completion of all of that pilot's flights for that day.
2. At the time a drug test is administered, a "split sample" will be taken. The cost of maintaining the "chain of custody" and the test itself will be borne by the Company. One of the samples will be used for the drug test. The second sample will be retained and stored in a manner which will preserve its validity as a test sample, and which comports with "chain of custody" requirements. In the event the first sample tests negative, the stored sample will be destroyed. In the event the first sample tests positive, the stored sample shall be tested at a facility used by the Company which is different from the facility used to test the first sample or, at the pilot's option, at a prearranged DHHS/NIDA-approved facility designated by ALPA. In the event the stored sample tests negative, it shall void the results of the first sample. Costs associated with the "chain of custody" and the testing of the stored sample shall be borne by the Company, provided a Company-selected facility is used, or, if the pilot selects another facility, the Company shall pay an amount equal to the cost of maintaining the "chain of custody" and the testing at the Company-selected facility.
 - a. At the completion of an alcohol confirmation test, any pilot who has an alcohol test result of 0.02 or greater shall be allowed to depart the airport to seek an alcohol test of their own choice at their own expense.
3. An external calibration check of the EBT (Evidential Breath Testing device) shall be performed, as specified by the manufacturer's quality assurance plan (QAP), immediately whenever a pilot has an alcohol confirmation test result of two hundredths (0.02) or greater.
4. The Company will continue to provide assistance for treatment, rehabilitation and, whenever possible, return to duty, under its Employee Assistance Program for pilots who may have substance abuse or dependency problems and who voluntarily seek assistance. Payment for such treatment and rehabilitation shall be covered under the applicable medical benefit plan and as provided in Section 24 (Insurance).
 - a. A pilot who is in treatment and/or rehabilitation will be allowed, but not required, to use all of their accrued sick leave and/or vacation.
5. In the event any change to the Hawaiian Airlines, Inc. Substance Use Policy in effect on January 1, 1995 and Hawaiian Airlines, Inc. Alcohol Misuse Prevention Policy effective January 1, 1995 as published by Hawaiian Airlines Human Resources Department and noticed to each pilot December 27, 1994 is required by governmental action, the Company will notify the Association prior to implementing such change in order that the parties may meet and confer on the manner in which compliance is to be accomplished; however, the Company may be constrained to implement such change in a manner which does not allow for such meeting and conference in which case such meeting and conference shall occur as soon as practicable thereafter. Any changes other than pursuant to governmental requirement, shall be made by mutual agreement between the parties.
6. A pilot will only be required to submit to an alcohol or drug test that is required by the FAA.

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SECTION 13 **PHYSICAL STANDARDS AND PHYSICAL EXAMINATIONS**

7. Disciplinary action shall be restricted to that action that is required by the FAA.
8. Prior to ordering a pilot to submit to a “reasonable suspicion” test, the Company shall contact the designated ALPA representative(s), member of the MEC, or member of the Aeromedical Committee and inform the representative(s) that such testing is being directed. This notification is intended to facilitate the availability of prompt union representation, if requested by the pilot. Any pilot ordered to submit to a “reasonable suspicion” test shall be informed by the Company of their right to request such representation, and shall be given the opportunity to promptly obtain representation prior to any such testing.
9. The Company shall provide the MEC Chairman with the names of the individuals it is considering retaining as Substance Abuse Professionals (SAPs) with their background and qualifications. If the MEC Chairman objects to the retention of any person as a SAP, the Company will either exclude that person from performing SAP duties, or discuss the matter further with the MEC Chairman. The Company shall not retain anyone as a SAP that the MEC Chairman objects to for good reason.

D. COVID-19 TESTING

1. If a Flight Grouping requires a pre-departure COVID-19 test, and such test can be taken within the ninety (90) minute COVID-19 Test Report Time (“CTRT”) preceding the scheduled departure time:
 - a. the Duty Period that includes the pre-departure test shall begin concurrently with the CTRT, ninety (90) minutes prior to the scheduled departure time, and
 - b. the pilot shall receive an additional thirty (30) minutes of pay and no credit for each such CTRT in which the pilot is tested within the ninety (90) minute period prior to departure time.
2. A pilot who is scheduled to travel for the purposes of training (student or Instructor/Evaluator (“IE”) Pilot) and is required to take a COVID-19 test administered by the Company or a third party, at the airport of arrival or departure, shall receive an additional thirty (30) minutes of pay and no credit for each time the pilot is tested within the ninety (90) minute CTRT period prior to departure time or within sixty (60) minutes of arrival.
3. The CTRT of ninety (90) minutes prior to scheduled departure time may be extended with pilot consent based on the needs of service (e.g., multiple flights departing for Japan at the same time and a 120-minute CTRT is requested in order to test all the pilots in time).
 - a. Any extension of the CTRT shall compensate the affected pilot pay no credit on a minute-for-minute basis (e.g., a 120-minute CTRT would result in 60 minutes of pay no credit).
4. A pilot who is required to take a self-administered COVID-19 test within their hotel room shall not receive any compensation for such test.
5. A pilot who is required to and actually takes a COVID-19 test at a specified time and location on a day off shall receive four hours and ten minutes (4:10) of pay no credit for such test.
6. A pilot who is required to take a COVID-19 test at a specified time and location within a Flight Grouping, but the test is administered sixty (60) minutes beyond arrival of the flight, shall receive one hour (1:00) of pay no credit for such test.

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SECTION 13 PHYSICAL STANDARDS AND PHYSICAL EXAMINATIONS

7. A pilot who is required to take a COVID-19 test at a specified time and location on a Reserve day with no other flight assignment shall receive two (2) hours of pay and credit for such test, per Subparagraph 4.C.3.a.1).a).
8. A pilot who is required to take a COVID-19 test at the airport after the completion of a flight shall receive an additional thirty (30) minutes of pay and no credit.
 - a. The test shall be administered within sixty (60) minutes of arrival of the flight.
9. COVID-19 testing per this Subsection 13.D shall be at the expense of the Company. If, due to the last-minute nature of a required COVID-19 test, a pilot is required to bear the costs of said test, the pilot shall be reimbursed per Subsection 5.K (Expense Reimbursement Claims) of the PWA. Additionally, if the specific reason for the last-minute testing will foreseeably reoccur (e.g., entry to Canada), the Company shall set up direct billing no less than fourteen (14) days after the first occurrence of testing.

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SECTION 13 PHYSICAL STANDARDS AND PHYSICAL EXAMINATIONS

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HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 14 WORKERS' COMPENSATION & OCCUPATIONAL INJURY BENEFITS

A. WORKERS' COMPENSATION BENEFITS

1. Workers' compensation benefits shall be provided by the Company for all pilots and shall be in amounts equal to those prescribed by the Workers' Compensation Law of the State of Hawaii, or the State of pilot's Domicile, whichever provides the greater benefit to the pilot.

B. MONETARY BENEFITS

1. The monetary benefits so paid shall be in addition to any monetary benefits paid pursuant to the provisions of Subsection 15.A (Qualification of Compensation Benefits) and shall be paid to the beneficiaries prescribed by the applicable law as herein provided.

C. OCCUPATIONAL INJURY

1. Occupational injury as used in this Section means any illness or injury that is covered by workers' compensation insurance under applicable State Laws.

D. OCCUPATIONAL INJURY PAYMENT

1. Any pilot who suffers an occupational injury shall follow the applicable State Workers' Compensation laws for timely reporting of their occupational injury. Occupational injury pay will commence once the claim has been deemed compensable according to the applicable State Workers' Compensation laws. Occupational injury pay shall be equivalent to the pilot's current earnings, or an average of their previous twelve (12) months earnings, exclusive of leaves, whichever is greater, less taxes and workers' compensation, for a period up to and including three (3) months. If an occupational injury continues beyond such three (3) month period, occupational injury pay equivalent to two-thirds (2/3) of the pilot's earnings stipulated above, less taxes and workers' compensation, shall be paid for up to and including nine (9) additional months.

E. CHARGING OCCUPATIONAL INJURY

1. Such occupational injury benefits shall in no way be charged against a pilot's non-occupational sick leave provided for in Section 12 (Sick Leave). Once a pilot's occupational injury claim has been deemed compensable according to the applicable State Workers' Compensation laws, the Company shall restore any and all sick leave the pilot used because of the occupational injury between the date of the workplace injury and the date the workplace injury is deemed compensable. If a pilot had no, or insufficient, sick leave available to use between the date of the workplace injury and the date the workplace injury is deemed compensable, the Company shall compensate the pilot for any income lost during this time period, as defined in 14.D.1.

F. MODIFIED DUTIES

1. In the event that a pilot receiving Workers' Compensation or OCC benefits is released by his physician to perform light or modified duties, the Company may assign such pilot to perform such duties in accordance with Company policy in effect as of the effective date of this Agreement, to the extent that such assignment is required under applicable Workers' Compensation law.

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SECTION 14 WORKERS' COMPENSATION & OCCUPATIONAL INJURY BENEFITS

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PAY BENEFITS TO MISSING PILOTS

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SECTION 15

PAY BENEFITS TO MISSING PILOTS

“The foregoing direction may be modified from time to time by letter signed by the undersigned, and any such modification shall become effective upon receipt of such letter by you.

“Payments made by the Company pursuant to this direction shall fully release the Company from the obligation of making any further payment with respect thereto.

(Pilot’s Signature)”

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SECTION 16

GRIEVANCE

A. NON-DISCIPLINARY GRIEVANCES

1. Any pilot or group of pilots, covered by this Agreement who have a grievance concerning any Company rule or regulation, or any action of the Company affecting them, except matters involving discipline or discharge, shall have such grievance considered in accordance with the following procedures, provided such grievance is filed within ninety (90) days after the pilot(s) would reasonably have knowledge upon which the grievance is based. This does not preclude claims for adjustment arising out of bookkeeping errors beyond ninety (90) days.
2. Before filing a written grievance, it is recommended that a pilot with a dispute or potential grievance contact the Chief Pilot or his designee. The pilot shall specifically indicate that he is contacting the Chief Pilot for the purpose of arranging a consultation under this provision of the Agreement.
 - a. The Chief Pilot shall consult with the pilot with regard to their dispute or potential grievance and they shall make every effort to resolve the dispute without the need for a grievance.
 - b. The Chief Pilot shall have the necessary authority to resolve the ordinary disputes likely to arise from time to time.
 - c. In the case of disputes that would otherwise be filed as group grievances or MEC grievances, the MEC Chairman or other designated Association Representative shall contact the Vice President-Flight Operations, or designee, for this purpose.
 - d. Contact with the Chief Pilot (or the Vice President-Flight Operations, or designee) as provided in Subparagraphs 16.A.2.a and 16.A.2.c should be made by the pilot as soon as possible after the incident giving rise to the dispute or potential grievance and, in any case, must be made within the ninety (90) day time limit provided by Subparagraph 16.A.1, and that time limit shall not be extended by operation of this provision unless mutually agreed.
3. In the event the dispute is not resolved in accordance with Subparagraph 16.A.2, a grievance, including a written request for a hearing setting forth a complete statement of the known facts out of which the grievance arose and a specific request for relief, shall be filed with the Vice President-Flight Operations, or designee.
4. A hearing shall be held within fifteen (15) calendar days after receipt of such written request by the Vice President-Flight Operations, or their designee, and within fifteen (15) calendar days after the close of the hearing, the Vice President-Flight Operations, or designee, shall announce decision in writing to the grievant(s) and furnish a copy to the Contract Administration Department of the Association (Contract Administrator), MEC Grievance Chairman, and the MEC Chairman. In the event the Company fails to issue such decision within the period prescribed, the pilot's position shall be sustained and the relief requested shall be granted.
5. In the event the grieving pilot(s) is not satisfied with the Company's decision, appeal by the grievant(s), through the Association if made, shall be to:
 - a. Grievance mediation in accordance with Subsection 16.C (Permanent Grievance Mediation Program); or
 - b. The four (4) member or three (3) member Hawaiian Airlines Pilots' System Board of Adjustment, as provided for in Subsection 17.C (Jurisdiction of the Board) and Subsection 17.D

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(Proceedings Before the Board), or by mutual agreement to Mediation/Arbitration, as provided in Subsection 17.F (Grievance Mediation/Arbitration).

- c. Such appeal shall be made within thirty (30) calendar days from the date of receipt by the grievant(s) of the decision by the Company.
6. The Vice President-Flight Operations and the MEC Chairman or their designees shall meet approximately fifteen (15) calendar days prior to each four (4) member Board meeting to review pending cases and make every effort to resolve such cases prior to hearing by the Board. Subparagraph 16.D.2 shall not be applicable to this provision.
7. In the event a dispute arises in the future about whether the Company has violated any aspect of the Agreement provisions pertaining to monthly flying limits and/or minimum days off, said dispute may, at ALPA's option, be referred on an expedited basis, which means the first available date that an arbitrator on the parties' agreed panel is available, to a System Board of Adjustment for final and binding resolution. In such proceeding, the Company shall bear the burden of proof to establish that such violation did not occur. The Company also agrees that it will not charge ALPA for any flight pay loss that may result for a grievant and/or ALPA representative attributable to the first hearing under Subparagraph 16.A.3 of such grievance proceedings.

B. DISCIPLINE AND DISCHARGE

1. Before a pilot is disciplined or discharged, such pilot shall be notified in writing by certified mail, return receipt requested, of the precise charge or charges against them. They shall be given the necessary time, not to exceed seven (7) calendar days from date of receipt, in which to secure the presence of witnesses, and shall have the right to be represented by a Company employee of their choice or their duly accredited representative(s). A hearing shall be held by the Vice President-Flight Operations, or their designee, within ten (10) calendar days after receipt of the letter of charge to determine what action, if any, should be taken on the charge(s).
 - a. Within ten (10) calendar days after the close of the hearing, a decision shall be announced in writing and, if requested by the pilot, a copy shall be furnished to the Contract Administration Department of the Association, MEC Grievance Chairman, and the MEC Chairman.
 - b. During the course of the investigation conducted in accordance with Subparagraph 16.B.1.a, the Company may hold the pilot out of service. While held out of service, the pilot shall continue to receive pay until the effective date of the written decision determining the action to be taken.
 - c. Any extension of the time limits granted at the request of the pilot shall not extend the period for which the pilot shall continue to receive pay beyond the time limits specified in Subparagraph 16.B.1.a. Any extension of the time limits granted at the request of the Company shall extend the period for which the pilot shall continue to receive pay.
2. If the pilot is dissatisfied with any discipline or discharge action of the Company and desires to appeal, they shall, through the Association, within thirty (30) calendar days after receiving such decision make a written appeal to the Hawaiian Airlines Pilots' System Board of Adjustment as provided for in Subsection 17.C (Jurisdiction of the Board) and Subsection 17.D (Proceedings Before the Board), provided such appeal is made within thirty (30) calendar days from the date of receipt by the grievant(s) of the decision of the Company.

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3. Nothing in Section 16 (Grievances) shall be construed as extending the rights of this Subsection 16.B (Discipline and Discharge) to a pilot during their probationary period.

C. PERMANENT GRIEVANCE MEDIATION PROGRAM

1. Grievance mediation sessions will be scheduled at earliest available date whenever at least ten (10) unresolved grievance issues (there could be several grievances on the same issue) that the parties have mutually agreed would be suitable for Grievance mediation have been appealed to Grievance Mediation. The parties will jointly agree upon and contact an experienced grievance mediator willing to serve. The parties may use the services of the National Mediation Board if a mutually acceptable mediator is available
2. In the case of a grievance filed by an individual Pilot, the grievant will elect to attend the Mediation Conference in person or by telephone conference, or he will arrange to be represented by an authorized Association representative. The grievant will authorize such representative to act on his behalf. If a pilot chooses to be present it will not be at Company expense.
3. In the case of consolidated grievances, group grievances, or grievances filed by an Association Representative, the designated Association Representative present shall represent the Association and all Pilot parties to such grievances.
4. Both parties acknowledge the importance of having participants at the Mediation Conference who have complete authority to resolve the grievances. In addition, every effort will be made to insure that there are Association and Company Representatives present at each Mediation Conference who are knowledgeable of the subject matter pertaining to the grievances to be considered at the Conference.
5. The Company and the Association shall each appoint a principal spokesperson for each mediated case.
6. Proceedings before the mediator will be informal in nature and the rules of evidence will not apply. The presentation of evidence, documentation, arguments, etc., will not be limited to that which was presented at the prior stages of the grievance procedure.
7. The parties will promptly write a settlement agreement to document grievance settlements reached during the Mediation Conference. The parties shall mutually agree as to whether the settlement will constitute precedent, and this understanding will be included in the written settlement document.
8. Other than a settlement document resulting from a successful mediation, no record in any form or medium of the Mediation Conference will be made. Any material that is presented to the mediator will be returned to the party presenting that material at the termination of the Mediation Conference, and no copy will be retained by the Mediator or any other person or party.
9. The mediator will have the authority to meet separately with either the Association or the Company in the Mediation Conference, but will not have the authority to compel the resolution of the grievance.
10. If no settlement is reached during the Mediation Conference, and only at the joint request of both parties, the mediator may provide an immediate oral advisory decision. When rendering an oral advisory decision, the mediator will state the grounds for such decision. Unless accepted by both parties, this decision will not be binding.

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11. The Company, the Association, and the grievant will refrain from posting, publishing, or otherwise publicly disseminating information on the outcome of mediation with regard to specific cases, unless the parties have jointly agreed on the content and method of such dissemination. In the absence of such agreement, information on mediation outcomes will be disseminated only to mediation participants, grievants, other directly affected parties, Association representatives, and Company employees with a need for this information.
12. In the event that a grievance, which has been the subject of a Mediation Conference, is subsequently heard before the System Board of Adjustment, the mediator may not serve as the arbitrator. During the System Board proceeding on such a grievance, no reference will be made to the fact that the grievance was the subject of a Mediation Conference or to any statements, discussions, offers, or admissions which were made during the Conference. No written statements, documents, or similar material made or used at the Mediation Conference will be referred to, offered, or admitted in evidence, or otherwise disclosed in any System Board, court, or administrative proceeding, except to the extent the party offering such would have had access or entitlement to them outside of the Mediation Conference.
13. The fees and expenses for the mediator and conference facilities will be shared equally by the Association and the Company.
14. Nothing in this Subsection 16.C (Permanent Grievance Mediation Program) shall preclude the parties from agreeing to other or different methods of grievance settlement, mediation, mediation/arbitration, or alternative grievance resolution.

D. GENERAL

1. The time limits set forth in Subsections 16.A (Non-Disciplinary Grievances) and 16.B (Discipline and Discharge) may be extended by mutual agreement of the Company and the grievant or the Association.
2. If any decision of the Company under the provisions of this Section is not appealed by the grievant(s) within the time limits prescribed herein for such appeal or any extension mutually agreed upon, the decision of the Company shall be final and binding. If any hearing or decision required of the Company under the provisions of this Section is not provided within the time limits herein, or any extension mutually agreed upon, the grievant(s) position shall be sustained, and the relief requested shall be granted.
3. Nothing in this Section shall be construed to prevent the Company from holding a pilot out of service pending an investigation and hearing and appeal therefrom.
4. If, as a result of any hearing or appeals therefrom as provided herein, a pilot is exonerated, they shall, if they has been held out of service, be reinstated without loss of Seniority, and shall be paid for such time lost in an amount which they would have ordinarily earned had they been continued in service during such period.
5. If, as a result of any hearings or appeals, the award therefrom as provided for herein exonerates the pilot(s), all personnel records shall be cleared of the charges.
6. When it is mutually agreed that a stenographic report is to be taken of a hearing in whole or in part, the cost shall be borne equally by both parties to the dispute. When it is not mutually agreed that a stenographic report of the proceedings be taken, and such stenographic record of the hearing is made

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by either of the parties to the dispute, a copy shall be furnished to the other party to the dispute upon request, provided that the cost of such written record so requested shall be borne equally by both parties to the dispute.

7. All notification in writing shall be accomplished by certified mail, return receipt requested, addressed to the last known address of the party to whom the notice is being given. All time limits specified in Section 16 (Grievances) shall be determined by the date on the return receipt.
8. Grievant, witnesses, and representatives who are employees of the Company shall receive free transportation over the lines of the Company from the point of duty to the point of hearing and return to the extent permitted by law. Such travel shall be on positive space, with the same priority as provided to Hawaiian employees traveling on Company Business.
9. Also, grievant, witnesses, and their representatives who are employees of the Company may be granted a leave of absence, subject to the needs of the service, and the necessary transportation for the purpose of investigating and gathering evidence associated with a grievance to the extent permitted by law.
10. When a pilot is chosen to act as a representative of, or a witness for, another pilot, such pilot shall be given leave of absence for a time sufficient to permit them to appear as such representative or witness.
11. A pilot may be accompanied by their designated representative and such witnesses as they deem necessary at any grievance hearing.
12. Grievances shall be submitted to the System Board in the following manner:
 - a. Cases properly submitted to the four (4) member System Board of Adjustment in accordance with this Section, shall be heard and decided by the four (4) member Board as described in Section 17 (System Board). In the event of a deadlock by the four (4) member Board, such cases may be submitted by the Association to the three (3) member Board (i.e., the Board sitting with an "arbitrator"); or, by mutual agreement of the Company and the Association, to mediation/arbitration, as provided in Subsection 17.F (Grievance Mediation/Arbitration), to be heard and decided; provided, such submission is made within thirty (30) calendar days of the date of the decision to deadlock.
 - b. In the event the Company and the Association refer a case to Grievance Mediation, as provided in Subsection 16.C (Permanent Grievance Mediation Program), and such mediation is not successful in resolving the dispute, the case may be submitted directly to the three (3) member Board, and shall bypass the four (4) member Board except by mutual agreement otherwise. Such submission must be made within thirty (30) calendar days of the date the mediation is concluded.
 - c. Except as otherwise provided by expedited arbitration provisions contained in this Agreement, other cases may be submitted directly to the three (3) member Board, bypassing the four (4) member Board and/or the Grievance Mediation procedure, only by mutual agreement of the Company and the Association.

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E. PILOT WARNING LETTER

1. The Pilot Warning Letter may be utilized in lieu of Subsection 16.B (Discipline and Discharge). An example of the Pilot Warning Letter is displayed on the following page.



Pilot Warning Letter

To: Pilot

This letter may be used in lieu of a formal Section 16 disciplinary hearing. **The Pilot is not required to sign this letter and the Pilot's decision to not sign this letter may not be used against them in any subsequent proceeding. If the Pilot elects not to sign, this warning letter shall be destroyed and will not appear in their personnel file.**

Should the Pilot choose to sign this letter, they expressly waive their rights to a disciplinary hearing under Section 16 of the Agreement and agrees to have this record remain in their personnel file as a written warning for a period of eighteen (18) months. Upon signing of this warning letter, the matter will be considered closed; but, if the problem reoccurs, further disciplinary action may be taken, up to and including termination of employment, in accordance with Section 16 of the Agreement.

The Pilot will be allowed ten (10) days from the date of signing of this letter to change their mind and proceed down the traditional disciplinary process outlined within Section 16. The timelines outlined within Section 16 would be restarted from the point the Pilot elects to go down the more formal process.

The Pilot will also be provided with a copy of this document at the conclusion of the meeting.

PILOT'S NAME: _____ DATE OF MEETING: _____

CHIEF PILOT/VP OF FLIGHT OPERATIONS NAME: _____

OTHERS PRESENT: _____

REASON FOR THE COUNSELING:

PILOT'S COMMENTS (OPTIONAL):

SIGNATURE OF PILOT

SIGNATURE OF CHIEF PILOT/VP OF FLIGHT
OPERATIONS

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SECTION 17

SYSTEM BOARD

A. ESTABLISHMENT OF SYSTEM BOARD OF ADJUSTMENT

1. In compliance with Section 204, Title II of the Railway Labor Act, as amended, there is hereby established a System Board of Adjustment, which shall be known as the "Hawaiian Airlines Pilots System Board of Adjustment," hereinafter referred to as the "Board." The Board's purpose shall be to adjust and decide disputes that may arise under the terms of the Pilots' Agreement when such disputes have been properly submitted to the Board.

B. COMPOSITION OF THE BOARD

1. The Board shall consist of three (3) members or four (4) members as provided below:
2. The four (4) member Board shall consist of two (2) members selected and appointed by the Association, and two (2) members selected and appointed by the Company, and such appointees shall be known as "Board Members." In addition, the Association and Company shall each designate an alternate and, in the event of the unavailability of a Board Member, the respective alternate shall act as a Board Member in place of the absent Board Member. In the event one or the other party wishes to conduct a Board Meeting with only one of that party's Board Members present, that Board Member shall cast two (2) votes on matters before the Board.
3. The three (3) member Board shall consist of one (1) member selected and appointed by the Association, and one member selected and appointed by the Company, and such appointees shall be known as "Board Members." In addition, the Association and the Company shall each designate an alternate, and, in the event of the unavailability of a Board Member, the respective alternate shall act as a Board Member in place of the absent Board Member. The third member of the Board shall be the Referee (also known as the "Arbitrator"), who shall be selected as provided in Subsection 17.E (Panel of Referees (Arbitrators)).
4. Board Members appointed by the Company, and Board Members appointed by the Association, and their alternates, shall serve for one (1) year from the date of their appointment and, thereafter, until their successors have been duly appointed. Vacancies shall be filled in the same manner as is provided herein for the selection and appointment of the original Board Members and the original alternates.
5. The Company will ensure that grievances heard on appeal by management personnel will not be heard by the same person rendering a decision at an earlier step of the process. It is intended that these steps will provide for an unbiased and objective review of the circumstances and applicable contract provisions in each grievance.
6. The Board Members shall select a Chairperson and a Vice Chairperson, both of whom shall be members of the Board. The term of office of Chairperson and Vice Chairperson shall be one (1) year. Thereafter, from year to year, the Board shall designate one (1) of its members to act as Chairperson and one (1) to act as Vice Chairperson for one (1) year terms.
7. The office of Chairperson shall be filled and held alternately by a Board Member appointed by the Association and by a Board Member appointed by the Company. When a Board Member appointed by the Association is Chairperson, a Board Member appointed by the Company shall be Vice Chairperson, and vice versa. Both shall have a vote in connection with all actions taken by the Board. The Referee shall preside at meetings and hearings of the three (3) member Board.

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8. The three (3) member Board shall meet during the second week of February, May, and October each year in the city where the general offices of the Company are maintained (unless a different place and time of meeting is agreed upon by the Company and the Association), provided that at such time there are cases filed with the Board for their consideration. The same shall apply to the four (4) member Board, except that it shall meet approximately two (2) months prior to each three (3) member Board meeting date set by agreement of the Company and the Association. The meetings shall continue in session until all matters before it have been considered, unless otherwise mutually agreed upon.

C. JURISDICTION OF THE BOARD

1. The Board shall have jurisdiction over disputes between any employee covered by the Pilots' Agreement and the Company growing out of grievances or out of interpretation or application of any of the terms of the Pilots' Agreement. The jurisdiction of the Board shall not extend to proposed changes in hours of employment, rates of compensation, or working conditions covered by existing agreements between the parties hereto, or as subsequently executed.
2. The Board shall consider any dispute properly submitted to it by the President of the Association or by the Company, when such dispute has not been previously settled in accordance with the terms provided for in Section 16 (Grievances).

D. PROCEEDINGS BEFORE THE BOARD

1. All disputes properly submitted to the Board for consideration shall be addressed to the Members of the Board, including all papers and exhibits in connection therewith. Each case submitted shall show:
 - a. Question or questions at issue;
 - b. Statement of facts;
 - c. Position of employee or employees; and
 - d. Position of the Company.
2. When possible, joint submissions should be made, but if the parties are unable to agree upon a joint submission, then either party may submit the dispute and its position to the Board. No matter shall be considered by the Board that has not first been handled in accordance with the provisions of Section 16 (Grievances) and a decision thereon by the Company.
3. Upon receipt of notice of the submission of a dispute, the Chairman shall set a date for hearing, which shall be at the time of the next regular meeting of the Board, as provided in Subparagraph 17.B.7, or, if at least one (1) Board Member considers the matter of sufficient urgency and importance, then at such earlier date and at such place as the Chairperson and Vice Chairperson shall agree upon, but not more than fifteen (15) days after such request for meeting is made by at least one (1) of said Board Members, and the Chairperson shall give the necessary notices in writing of such meeting to the Board Members, the Referee, and to the parties to the dispute.
4. Employees covered by this Agreement may be represented at Board hearings by such person or persons as they may choose and designate, and the Company may be represented by such person or persons as it may choose and designate. Evidence may be presented either orally, or in writing, or both.
5. On request of any individual Board Member, the Board shall summon any witnesses who are employed by the Company and who may be deemed necessary by the parties to the dispute, or by

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either party, or by the Board itself, or by the Board Member appointed either by the Company or the Association.

6. The number of witnesses summoned at any one time shall not be greater than the number that can be spared from the operation without interference with the services of the Company.
7. The Board, whether composed as provided in Subparagraphs 17.B.2 or 17.B.3, shall be competent to hear the disputes properly submitted to it, and to decide said disputes properly submitted to it, and to decide said disputes by majority vote. Decisions of the Board so composed shall be final and binding upon the parties hereto and shall be rendered no later than thirty (30) days after the close of the hearing.

E. THE PANEL OF REFEREES (ARBITRATORS)

1. The Company and the Association have established the following panel of seven (7) potential Referees.
 - a. First: John LaRocco
 - b. Second: Joshua Javits
 - c. Third: Gerald Wallin
 - d. Fourth: Dana Eischen
 - e. Fifth: Edward Krinsky
 - f. Sixth: Gil Vernon
 - g. Seventh: Stephen Goldberg
2. The seven (7) Referees are designated in order. When the Board meets, the first named Referee shall serve, unless for any reason they are unable to do so, in which case the next Referees shall serve as alternates in that order. Once a Referee has rendered a decision as a Board Member, their name will rotate to the bottom of the list.
3. Referees may be removed from the panel at any time by mutual agreement of the parties. Either party may remove up to two (2) Referees from the panel during the term of this Agreement provided that each Referee to be removed has served on the panel for at least one (1) year and has heard and decided at least one case. The removal shall be made by written notice to the other party, and shall be effective upon receipt of such notice, unless a case is then pending before such Referee, in which case the removal shall become effective upon the date a final decision is issued in that case, or the case is otherwise finally resolved.
4. The parties may fill vacancies on the panel at any time by mutual agreement and will agree upon and attempt to maintain a list of four (4) alternates for this purpose. When a vacancy on the panel occurs, it will be filled by randomly selecting a name from the list of alternates. In the event there are no alternates available for whatever reason, either party may request that the National Mediation Board provide a list of seven (7) potential Referees. The Board will be asked to provide names of Referees who are members of the National Academy of Arbitrators, reside in the western United States, including Hawaii, and are experienced in airline industry labor arbitration. The parties will alternately strike names from the list until one (1) name remains. That Referee will be appointed to fill the vacancy on the panel.

F. GRIEVANCE MEDIATION/ARBITRATION

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Notwithstanding any provision of Section 16 (Grievances), or Section 17 (System Board), or any other provision of the current Pilots' Agreement to the contrary, the following rules and procedures for the disposition of grievances submitted for mediation/arbitration shall apply:

1. Composition of the Board. The Board shall consist of a single member who shall serve as "Mediator/Arbitrator" during the special meeting of the Board. The Mediator/Arbitrator shall be appointed by agreement of the Parties. In the event a Mediator/Arbitrator shall become unable or unwilling to complete his service on the Board, the Parties will meet promptly and agree to a replacement Mediator/Arbitrator.
2. Agenda. The Company and the Association shall promptly meet and agree upon an agenda for the meeting, which shall list all pending grievances and disputes that the Parties agree to submit to mediation/arbitration in the order that the disputes will be considered. Disputes involving the same or similar issues, or the same subject area or the same grievant may be grouped to be mediated at the same time.

The final agenda will be set not less than two weeks prior to the commencement of mediation. A copy of the agenda with a brief description of the matters at issue in each case will be provided to the Mediator/Arbitrator.

3. Meeting Schedule. The Mediator/Arbitrator, in consultation with the Parties, shall schedule an initial one (1) week session during which all grievances and disputes placed on the agenda by the Parties shall be submitted to mediation by the Mediator/Arbitrator. If all grievances on the agenda cannot be mediated during that session, the Mediator/Arbitrator shall schedule an additional session or sessions as required to complete the agenda.
4. Procedures for Individual Grievances. Pilots who have individual grievances, shall be notified of the approximate date and, if possible, time set for their grievances to be mediated and that the Association will represent the grievant unless they wish to select one of three (3) other options: (1) they may appear in person or by phone conference and represent themselves, or (2) they may appoint a Hawaiian pilot of their choice to represent them, provided the pilot agrees, or (3) they may permanently withdraw his grievance. In the event the grievant is represented by the Association, the grievant will be permitted to attend the mediation/arbitration session along with the Association representative should they wish to do so. The grievant will also be notified that any and all evidence, documentation, statements, arguments, etc., that they wish to be considered during mediation and, if necessary, for arbitration, must be submitted to the Board no later than the mediation session for the grievance. Similarly, any evidence, documentation, statements, arguments, etc., that the Company wishes to be considered must be submitted at that time.
5. Procedures for Group and MEC/LEC Grievances. The Company and the Association will each be represented by such person or persons as they may select. Each will also provide such evidence, documentation, statements, arguments, etc., as they may wish to be considered.
6. Rules During Mediation and Arbitration. Mediation sessions shall be conducted on an informal basis. Formal rules of evidence shall not apply except that the Mediator/Arbitrator may apply such rules of evidence as they shall deem necessary and proper to his consideration of any cases which must be resolved by them acting as Arbitrator.
7. Mediation Settlements. Any settlement made as the result of mediation shall be by voluntary mutual agreement of the grievant or the Association, as the case may be, and the Company. Grievants who appoint representatives or request representation by the Association shall grant such representative

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full authority to agree to a settlement or shall arrange to be immediately available to approve or reject a proposed settlement. All settlements shall be reduced to writing and promptly signed by the grievant or his representative and the Company or, in the case of group or MEC/LEC grievances, by the Association and the Company. Each written settlement agreement shall state whether or not the settlement shall constitute a precedent which may be cited and used to resolve future or other disputes of a similar nature.

8. Arbitration Decisions. Any grievances which are not settled after submission to the mediation process shall be resolved by the Mediator/Arbitrator acting as Arbitrator. The Arbitrator may issue an immediate oral decision at the close of the unsuccessful mediation phase; however, such decision will be confirmed in written form as soon as possible. Alternatively, the Arbitrator may take the case under advisement and issue his written decision as soon as possible after the close of the mediation session. It is anticipated that grievances submitted to arbitration will be decided on the basis of any evidence, documentation, statements, arguments, etc., that the Company, grievant, representative, or the Association has provided during mediation. Nothing additional may be introduced after the close of mediation by any of these parties except with the permission of, or at the request of, the Arbitrator. Decisions of the Arbitrator shall be final and binding on the grievant, the Association, and the Company in the same manner as any other decision of the System Board of Adjustment as provided by Section 17 (System Board) of the Pilots' Agreement.

G. GENERAL

1. The expenses and reasonable compensation of the Referees selected as provided herein shall be borne equally by the Company and the Association.
2. The time limits specified in Section 17 (System Board) may be extended by mutual agreement of the Company and the Association.
3. Nothing herein shall be construed to limit, restrict, or abridge the rights or privileges accorded either to the employees or to the employer, or to their duly accredited representatives, under the provisions of the Railway Labor Act, as amended.
4. The Board shall for a minimum period of five (5) years maintain a complete record of all matters submitted to it for its consideration and of all their findings and decisions.
5. The Company and the Association shall assume the compensation, travel expense, and other expenses of the Board Members selected by them.
6. Each of the parties hereto shall assume the compensation, travel expense, and other expenses of the witnesses called or summoned by it. So far as space is available, witnesses who are employees of the Company shall receive free transportation over the lines of the Company from the point of duty or assignment to the point at which they must appear as witnesses and return, to the extent permitted by law.
7. The Chairperson and the Vice Chairperson designated pursuant to Subparagraph 17.B.4, acting jointly, shall have the authority to incur such other expenses as in their judgment may be deemed necessary for the proper conduct of the business of the Board, and such expenses shall be borne one half (1/2) by each of the parties hereto. Board Members who are employees of the Company shall be granted necessary leaves of absence for the performance of their duties as Board Members. So far as space is available, Board Members shall be furnished free transportation over the lines of the Company for the purpose of attending meetings of the Board, to the extent permitted by law.

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8. It is understood and agreed that each and every Board Member shall be free to discharge their duty in an independent manner, without fear that their individual relation with the Company or with the employees may be affected in any manner by any action taken by them in good faith in their capacity as a Board Member.
9. The Board shall have the authority for the administration and interpretation of Section 17 (System Board).

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SECTION 18

SENIORITY

A. SENIORITY GENERAL

1. Seniority as a pilot shall be based upon the length of service as a pilot with the Company.
2. Seniority shall begin to accrue from the date a pilot is first employed by the Company as an airline pilot and shall continue to accrue during such period of employment. Pilots hired on the same day shall be placed on the Seniority List in accordance with the last four digits of their social security number, the employee having the lowest number given the higher position on the Seniority List.
3. Seniority shall govern all pilots in case of promotion and demotion, their retention in case of reduction in force or reduction in schedules, their re-employment after release due to reduction in force, their selection of vacancies and runs, and all other rights, privileges, and opportunities accorded to pilots under this Agreement.

B. SENIORITY DATE

1. Any pilot, once having established a Seniority date hereunder, shall not lose that date except as provided in this Agreement.
2. When a junior pilot is promoted over a senior pilot, by reason of the failure of the latter to qualify in their turn, the senior pilot shall continue to retain their position on the Pilots System Seniority List.

C. PILOTS' SYSTEM SENIORITY LIST

1. The Company shall post on its website a list of names of all pilots, arranged in the order of system Seniority. Such list shall be known as the Pilot System Seniority List and shall contain the names of all pilots entitled to Seniority, whether active or inactive, and the date of employment of each pilot indicating the Seniority to which the pilot is entitled. Such list shall thereafter be brought up to date as of January 1 and July 1 of each year and posted within thirty (30) days thereafter. Any changes from the preceding list shall be prominently noted.
2. A grievance based upon an error or omission of the Pilots' System Seniority List must be filed within thirty (30) days after the first posting on which such an error or omission is reflected, except that a pilot on vacation, furlough, or leave of absence may exercise this right within thirty (30) days following their return to active duty.

D. PROMOTION

1. The Company may give pilots an opportunity to qualify in any higher category at any time. Promotions to a higher category shall be in the order of seniority, subject to this Section, provided that pilots who have been given the opportunity to qualify in a higher category, and are unable to do so, shall not hold up the promotion of other pilots junior to them. Such cases shall be handled in accordance with Subparagraph 18.B.2.

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FURLOUGH AND RECALL

A. NOTICE OF FURLOUGH

1. A pilot shall receive not less than fourteen (14) calendar days advance notice in writing of any furlough, or shall be paid two (2) weeks pay in lieu thereof; except that a pilot who has completed their probationary period shall:
 - a. Receive not less than thirty (30) days advance notice in writing of any furlough; or
 - b. Be paid thirty (30) days' pay in lieu thereof; and
 - c. They shall not be issued more than one (1) furlough notice in any calendar month;
 - d. The pay provision shall not apply when conditions outside the Company's control render such notice impossible; such conditions as:
 - 1) War or foreign invasion;
 - 2) Strikes;
 - 3) Mandatory grounding of aircraft;
 - 4) Official state of emergency; or
 - 5) Act of God.
2. Prior to the posting of a Permanent Vacancy and/or Displacement Bulletin that reduces the total number of Permanent Vacancies, the Company shall offer a leave of absence to pilots in the category where the excess exists.
3. Upon Receipt of Furlough Notice
 - a. A pilot shall update their Standing Bid. That update shall include their:
 - 1) Equipment and Category preferences; and
 - 2) Recall preferences.
 - b. The preferences in Subparagraph 19.A.3.a shall be utilized to award any open or unfilled Permanent Vacancies in order of Seniority to recalled pilots.
 - c. The pilot shall also promptly file, in writing, with the Flight Department:
 - 1) The address to which they desire their Notice of Proposed Recall and/or Recall Notice sent;
 - 2) The phone number where they may be contacted; and
 - 3) Any other means of expeditiously receiving communications from the Company (e.g., e-mail address, alternate contact number, third party contact).
 - 4) It shall be the pilot's responsibility to advise the Company of any changes to this information.

B. CANCELLATION OF FURLOUGH NOTICE

1. Cancellation by the Company of a furlough notice prior to the effective date of the intended furlough, and in no case less than fourteen (14) calendar days prior to the effective date of the intended furlough, shall be permitted once in any twelve (12) consecutive month period.
2. A subsequent furlough cancellation within the original twelve (12) consecutive month period, or cancellation within fourteen (14) calendar days of the effective date of furlough, shall result in the affected pilots having the rights of recall under Subsection 19.D (Recall of Furloughed Pilots); except that:

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- a. They shall notify the Company of acceptance or refusal of recall upon receipt of such notice of cancellation; and
- b. They shall, upon accepting or being assigned recall under Subsection 19.D (Recall of Furloughed Pilot), be available for duty from the date of such acceptance.

C. SENIORITY STATUS OF FURLOUGHED PILOTS

1. A pilot furloughed by the Company due to reduction in force shall on return to duty be allowed, for Seniority purposes, all time accrued prior to such furlough; but shall not continue to accrue seniority during the period of such furlough.
2. It is understood that a furloughed pilot who accepts recall on a temporary basis, as hereinafter provided, while a more senior furloughed pilot remains on furlough, shall not improve their Seniority position with respect to such senior pilot or pilots.
3. A furloughed pilot shall retain their right to recall and all other Seniority rights provided them by this Agreement for a period of time equal to their:
 - a. Cumulative length of service with the Company plus four (4) years; but
 - b. Not less than six (6) years nor more than ten (10) years.

D. RECALL OF FURLOUGHED PILOTS

1. Notice of Proposed Recall
 - a. The Company shall notify furloughed pilots in order of Seniority as provided in Subparagraph 18.A.3.
 - b. Notification of Recall shall be by Company e-mail and certified/registered letter, to the most recent recall address provided by the pilot as required by Subparagraph 19.A.3.c and shall include the following information:
 - 1) The name, address, and Company phone number of the Company official to whom the pilot shall forward their reply;
 - 2) The Vacancy Notification Bulletin, or the anticipated Vacancies and the approximate dates of their Activation;
 - 3) A Standing Bid form for use by the pilot; and
 - 4) An explanation of available options and their consequences, as described in Subparagraph 19.D.3.
 - 5) In addition to the above procedures, the Chief Pilot may attempt to contact the pilot via telephone. If the Chief Pilot is able to satisfactorily determine the identity of the pilot (request HAL employee number, last Vacancy held prior to furlough, etc.), they may verbally provide directly to the pilot the information required in this Subparagraph 19.D.1.b. Such verbal notice shall constitute the date such notice was received by the pilot.
 - c. The pilot shall:
 - 1) Inform the Company official in Subparagraph 19.D.1.b.1) above, of the receipt of the Notice of Proposed Recall as expeditiously as possible;
 - 2) Respond in writing within the earlier of fourteen (14) days following receipt of the Notice of Proposed recall or twenty-one (21) days after such notice was sent.

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- a) Written response may be in the form of a letter or Company e-mail.
 - b) Failure to comply with this provision shall result in the pilot being automatically bypassed provided such option is available to the pilot; otherwise, the provisions of Subparagraph 19.D.5.c shall apply.
- 3) Submit a revision or confirmation of their Standing Bid or a notice of the pilot's intent to bypass recall pursuant to Subparagraph 19.D.3. If neither is included with their response, the pilot will be awarded a vacancy in accordance with their last standing bid on file.
2. All Vacancy Notification Bulletins shall be sent to all furloughed pilots in accordance with the provisions of Subsection 20.C (Vacancy Notification Bulletin).
3. A furloughed pilot must indicate on their Standing Bid any one of, or a prioritized listing of, the following:
 - a. The desired order of preference for Permanent Vacancies in accordance with Subparagraph 20.D.1.a.
 - b. Bypass Option. A pilot not desiring to accept recall may elect this option:
 - 1) A pilot preferencing for bypass is subject to being assigned recall in accordance with Subparagraph 19.D.5.
 - 2) Bypass is an automatic default option should a pilot not respond within the earlier of fourteen (14) calendar days following the receipt of the Notice of Proposed Recall or twenty-one (21) calendar days after such notice was sent.
 - 3) Such bypass election shall be limited to once per furlough provided that a bypassed pilot shall not be required to accept a subsequent recall within one (1) year, effective as of the date they originally elected the bypass option pursuant to Subparagraph 19.D.1.c.3). However, this bypass option shall not apply when a pilot is recalled pursuant to the provisions of Subparagraph 19.D.5 (Assignment of Furloughed Pilots).
4. Recall
 - a. All recalls shall be for periods of employment of ninety (90) days or greater.
 - b. A pilot must report within thirty (30) days of receipt of the Notice of Proposed recall.
 - c. Notification of recall shall be by Company e-mail and certified/registered letter to the most recent recall address provided by the pilot as required by Subparagraph 19.A.3.c.
 - d. The Company shall recall furloughed pilots in accordance with their Standing Bid preferences. If no preference can be satisfied, the pilot shall be bypassed.
 - e. All pilots, who have submitted a letter(s) of resignation while on furlough status, shall be eligible for recall and shall be recalled in accordance with Section 19 (Furlough and Recall).
5. Assignment of Furloughed Pilots
 - a. In the event a pilot is not eligible for bypass or an insufficient number of furloughed pilots desires to accept recall, the Company may assign such furloughed pilots in reverse order of Seniority; in which case, such pilots shall be required to report for duty not earlier than thirty (30) days following receipt of written notice;

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- b. Such written notice of assignment shall be provided to the pilot in accordance with Subparagraph 19.D.1 above. In addition, such written notice as provided herein shall specify:
 - 1) That the pilot is being assigned to return from furlough in reverse order of Seniority; and
 - 2) That failure to accept such assignment within twenty-one (21) calendar days of the written notice of assignment being sent shall result in their removal from the Seniority list.
 - c. A furloughed pilot who fails to accept such assignment or who fails to respond as provided herein to an assignment notice within twenty-one (21) calendar days of such notice being sent pursuant to the provisions of Section 19 (Furlough and Recall), shall be considered to have resigned from the Company's employ and shall lose all seniority rights. The Company will first make its best efforts to contact the pilot at the information provided in Subparagraph 19.A.3.c).
6. Minimum Pay for Recalled Pilots
- a. A pilot who accepts an offer of recall within the period specified herein shall receive a minimum of ninety (90) days minimum guarantee pay as provided in Section 3 (Compensation); and
 - b. Subject to the same conditions as outlined in Subparagraph 19.A.1.
7. Reinstatement of Furloughed Pilots
- a. A pilot recalled from furlough will be required to submit a Standing Bid, which will then be utilized to award any open or unfilled permanent vacancies in order of Seniority and numerical posting sequence. Such pilot will then be reinstated pursuant to the procedures in Subsection 20.D (Bidding for Vacancies and Bidding Restrictions).
 - b. If a pilot is not currently qualified in the permanent category vacancy awarded and utilized for reinstatement; such pilot may be required to fly in any equipment in which they are currently qualified until training and qualification for the permanent category vacancy/vacancies they hold at the time of reinstatement can be accomplished pursuant to Section 9 (Training).
 - c. Provided the pilot is not in training, they shall be guaranteed the same number of total scheduled days off as is contained in the line of flying to which their Seniority would have entitled them had they been so qualified. The pilot shall have the option of taking all such days off at the pilot's currently awarded Domicile or the pilot's former Domicile.
 - d. If training has not begun within ninety (90) days after reinstatement, such pilot shall be entitled to Bypass Pay as specified in Subsection 20.L (Bypass).

E. USE OF INTERIM PILOTS

- 1. During that period between the date on which a recall letter or Notice of Proposed Recall has been sent and the recall Vacancy has been filled by the return of a recalled pilot, the Company may utilize for interim flying a pilot junior to the pilot recalled, including a pilot newly hired.
- 2. A pilot utilized for such interim flying shall receive a minimum of one (1) week's pay, or they shall be compensated on the basis of days available for flight duty on a prorated basis, or for the hours actually flown by them, whichever of the three (3) is highest.

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3. Pilots will be offered interim flying in order of Seniority from among the furloughed pilots in accordance with their Standing Bid preferences and immediately available (within twenty-four (24) hours) for duty; however, no pilot shall be required to perform such interim flight duty.
4. Such interim pilot shall be promptly released from service when the recalled pilot reports for duty, and such interim pilot shall not be entitled to either the two (2) weeks' notice of furlough or the ninety (90) days minimum recall pay provided herein.
5. Whenever a recall is refused, the interim pilot being utilized shall be released from service unless a new recall letter is sent as indicated, in accordance with first sentence of Subparagraph 19.E.1.

F. FURLOUGH PAY

1. Any pilot who is furloughed shall receive furlough pay based on their total amount of active service as a pilot with the Company as follows:

Active Service	Furlough Pay
1 year	0.5 months
2 years	1.5 months
3 years	2.0 months
4 years	2.5 months
5 years	3.0 months
6 years	3.5 months
7 years	4.0 months
8 years	4.5 months

2. The rate of furlough pay shall be based on the pilot's last full month's pay prior to furlough, or the average of their last three (3) full months earnings, whichever is greater.
3. A pilot eligible for furlough pay shall receive such pay at their regular pay periods as if they were still employed. Such pay shall continue until all furlough pay credit is used; except, that if the pilot is recalled to active service, such furlough pay shall stop on the effective date of recall.
4. A pilot recalled by the Company, and who is later again furloughed, shall receive furlough pay for the period of time due pursuant to the above schedule, less the aggregate amount of furlough pay paid to them because of prior furloughs. A pilot so recalled shall:
 - a. Retain all unused furlough pay credits;
 - b. Accrue one-half (0.5) month furlough pay credit for each year of service to a maximum of four and one-half (4.5) months pay credit.
5. A pilot will not be eligible for or receive furlough pay while voluntarily employed by the Company in any position.
6. When pilots are furloughed due to conditions outside the Company's control, the pay provisions of this Section shall not apply; such conditions as:
 - a. War or foreign invasion;
 - b. Strikes;
 - c. Mandatory grounding of aircraft;

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- d. Official state of emergency; or
- e. Act of God.

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SECTION 20

FILLING OF VACANCIES

A. CATEGORY VACANCIES

1. The objective of this Section 20 (Filling of Vacancies) is to provide an orderly method of applying the principle of Seniority (as defined in Section 18 (Seniority)) to the filling of all category vacancies.
2. A pilot shall not perform any flying within the scope of this Agreement except by way of award or assignment to Category Vacancies created pursuant to the provisions of Section 20 (Filling of Vacancies), and all such Vacancies shall exist only at designated Domiciles.
3. All vacancies shall:
 - a. First, be categorized by status and equipment as follows:
 - 1) Captain B787
 - 2) Captain A330
 - 3) Captain A330F
 - 4) Captain B767
 - 5) Captain A321
 - 6) Captain B717
 - 7) First Officer B787
 - 8) First Officer A330
 - 9) First Officer A330F
 - 10) First Officer B767
 - 11) First Officer A321
 - 12) First Officer B717
 - b. Second, be in sufficient quantity to:
 - 1) Prescribe the minimum number of pilots required to staff the airline to operate in a safe, efficient, and economical manner;
 - 2) Have a sufficient number of pilots (exclusive of all supervisory pilots) assigned to each permanent and/or temporary Domicile to provide for all reasonably foreseeable contingencies relating thereto, including but not limited to:
 - a) Vacations;
 - b) Training;
 - c) Leaves of Absence (sick, maternity, and military); and
 - d) Provide reasonable working conditions for the pilots at each permanent and/or temporary Domicile.
 - 3) Satisfy the provisions of this Section.
 - c. Third, be posted for bid
 - 1) All primary and secondary vacancies, and displacements will be accomplished with a single (1) Vacancy Bid; and
 - 2) Covering all permanent and/or temporary vacancies at each permanent and/or temporary Domiciles in accordance with this Section 20 (Filling of Vacancies) and Section 21 (Preparation, Bidding, and Awarding of Runs).
 - d. Fourth, be filled by status, equipment and Domicile in accordance with this Section 20 (Filling of Vacancies) and Section 18 (Seniority).

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4. All monthly lines of flying at a permanent or temporary Domicile shall be filled from among the holders of Category Vacancies at that permanent or temporary Domicile in accordance with the provisions of:
 - a. Section 21 (Preparation, Bidding and Awarding of Runs); and
 - b. Section 22 (Scheduling Policy).
5. All written notices required by this Section 20 (Filling of Vacancies) shall be:
 - a. Sent by Company e-mail; or
 - b. Mailed to the pilot's home, as specified elsewhere in this Agreement; or
 - c. In the case of forty-eight (48) hour notices, the Company shall also provide the pilot with telephone notification.

B. CLASSIFICATION OF VACANCIES

1. All Category Vacancies shall be classified as either Permanent Vacancies or temporary Vacancies.
2. Permanent Vacancy: A Permanent Vacancy shall be any Vacancy which is anticipated to exist, or actually exists, for ninety (90) days or more at an existing or new permanent Domicile. Permanent Vacancies shall be either primary or secondary. A primary vacancy is one that is created as a result of initial (new) or added flying time in a category(-ies) at a Domicile, by acquisition of new equipment, retirement (early, disability or normal), death, resignation, a pilot's failure to qualify for an awarded Vacancy, sustained termination, or when the Company desires to increase staffing at any Domicile. A secondary vacancy is the Category Vacancy created by the holder of a Permanent Vacancy when they leaves to fill another Permanent Vacancy. All active pilots, supervisory pilots, and pilots on a leave of absence shall hold a Permanent Category Vacancy at a permanent Domicile.
3. Temporary Vacancy: Temporary Vacancies shall be classified as follows:
 - a. Type I - Temporary Upgrade Vacancy (1-62 days): A Type I Temporary Upgrade Vacancy is a vacancy that is anticipated to exist for sixty-two (62) or fewer days and is used to allow a pilot to temporarily upgrade to a higher Category than such pilot's permanent category (as specified in Subparagraph 20.A.3) in such pilot's permanently awarded equipment and Domicile. Type I Temporaries shall be posted within both the equipment and Domicile to which the vacancy(-ies) apply and will be available for bid by all pilots in that equipment and Domicile who are currently qualified to fill such Vacancy(-ies) and who are presently flying in a Category lower than the temporary Category posted for bid (see Subparagraph 20.D.2).
 - b. Type II - Temporary Category Vacancy (1-62 days): A Type II Temporary Category Vacancy is a Vacancy that is anticipated to exist for sixty-two (62) or fewer days and is used to allow a pilot to temporarily perform flight duty in a different category than such pilot's Permanent Category Vacancy (as specified in Subparagraph 20.A.1) within such pilot's permanent Domicile. Type II Temporaries shall be posted within the equipment and Domicile to which the Vacancy(-ies) apply and will be available for bid by all pilots in that Domicile who are currently qualified to fill such Vacancy(-ies) (see Subparagraphs 20.D.2 and 20.E.6).

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- c. Type III - Temporary Duty Vacancy (1-62) days: A Type III Temporary Duty Vacancy is a Vacancy that is anticipated to exist for sixty-two (62) or fewer days and is used to temporarily allow a pilot to perform flight duty in such pilot's permanent category Vacancy at a Domicile other than their own. Type III Temporaries shall be posted at a Domicile, by Category, for temporary duty, within that same Category, at another Domicile. Type III Temporaries shall be available for bid only by Currently Qualified pilots presently flying in the specified Category at the Domicile where the Temporary Vacancy is posted.
 - d. Type IV - Temporary Domicile Vacancy (1-92 days): A Type IV Temporary Domicile Vacancy is a Vacancy, at a temporary Domicile only, and is anticipated to exist for ninety-two (92) or fewer days. A Type IV Temporary Domicile Vacancy(-ies) is used to establish and staff a planned short-term temporary Domicile ninety-two (92) days or less, and to temporarily augment the pilot staffing at a short- or long-term temporary Domicile. Type IV Temporary Domicile Vacancy(-ies) shall be posted for bid system-wide and will be available for bid by all pilots who are aircraft qualified in the position posted for bid.
 - e. Type V - Temporary Domicile Vacancy (over ninety-two (92) days): A Type V Temporary Domicile Vacancy is a Vacancy, at a temporary Domicile only, that is anticipated to exist, or actually exists, for a period over ninety-two (92) days. A Type V Temporary Domicile Vacancy is used to establish and staff a long-term temporary Domicile (over ninety-two (92) days). Type V Temporaries shall be posted for bid system-wide and will be available for bid by all active pilots on the Hawaiian Pilot System Seniority List without regard to present or previous qualification status other than that set forth in Subparagraph 20.D.5.
4. Change of Classification and Extension
- a. Change of Classification: If a Type I, Type II, or Type III Temporary Vacancy has been filled either by award or assignment, for any portion of a month for five (5) months in any twelve (12) month period, or for fourteen (14) or more cumulative days per month for three (3) consecutive months, an additional Permanent Vacancy shall be created at the permanent Domicile where the temporary duty was performed in the Category of the Temporary Vacancy and such Permanent Vacancy(-ies) shall be posted for System-Wide Bid pursuant to the provisions of this Section 20 (Filling of Vacancies) on the first weekday following the day either condition of this Paragraph is attained.
 - b. Change of Classification: Except for the provisions of Subparagraph 20.B.4.c, whenever a Type IV Temporary Domicile Vacancy has been in existence for more than ninety-two (92) days, it shall become a Type V Temporary Domicile Vacancy at that temporary Domicile, and shall be posted for system-wide bid on the first weekday following the ninety-second (92nd) day after Activation pursuant to the provisions of this Section 20 (Filling of Vacancies).
 - c. Extension: Any Temporary Vacancy awarded or assigned pursuant to this Section 20 (Filling of Vacancies) may be extended, at Company option, for a period not to exceed an additional thirty-one (31) days due to unforeseen circumstances beyond the Company's control, and which were not a preplanned part of the vacancy. An extension of a pilot's vacancy will not alter the temporary classification of that vacancy, and the pilot filling such vacancy shall continue to receive expense allowances and Pay and Credit under the original terms of the award or assignment. An extension of a Type I, Type II, or Type III Temporary Vacancy shall not waive the provisions of Subparagraph 20.B.4.a.

C. VACANCY NOTIFICATION BULLETINS

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1. All Vacancy and/or Displacement Notification Bulletins will be distributed electronically per Subsection 26.BB (Electronic Communications) and in accordance with the provisions of this Section 20 (Filling of Vacancies). All Vacancies and/or displacements shall be announced in notification bulletins that shall be numbered consecutively throughout the year and shall contain the following information:
 - a. Permanent Vacancy and/or Displacement Notification Bulletins
 - 1) The total number of present Permanent Vacancies by Category and Domicile.
 - 2) The total number of Permanent Vacancies by Category and Domicile that will exist after the Permanent Vacancy and/or displacement process is completed.
 - 3) The number of new primary Vacancies by Category and Domicile and/or the number of canceled Vacancies by Category and Domicile.
 - 4) The Seniority number of the most junior pilot holding a Vacancy at all Domiciles in each Category.
 - 5) The closing date of the Permanent Vacancy and/or Displacement Notification Bulletin after which changes to a pilots Standing Bid will not be considered for awarding Vacancies.
 - 6) The effective date of the award shall be less than two hundred ten (210) days after the closing date that is specified in Subparagraph 20.C.1.a.5).
 - 7) The specific reason for the change in the number of Permanent Vacancy(-ies).
 - 8) The four (4) month window in which training associated with any awarded Categories must commence.
 - 9) The training shell lengths (estimated duration from the commencement of fleet-specific training through the completion of OE), as agreed to between the Company and the Association.
 - b. Temporary Vacancy Notification Bulletins
 - 1) The number of Temporary Vacancies by Category and Domicile.
 - 2) The type of Temporary Vacancy.
 - 3) The closing date of the notification bulletin.
 - 4) The effective date and expected duration of the Vacancy.
 - 5) The specific reason for the Vacancy(-ies).
 - 6) The fact that Standing Bids will not be used to award Temporary Vacancies. Individual bids must be submitted.
2. Permanent Vacancies: Notification bulletins announcing Permanent Vacancies and/or displacements shall be posted system-wide on any weekday (Monday through Friday) and shall close between 10:00 and 17:00 HST on any weekday (Monday through Friday) (excluding Company holidays) after the minimum posting period has been satisfied.
 - a. A Permanent Vacancy and/or Displacement Bulletin shall be posted upon the following triggering events:
 - 1) An aircraft type or operation assigned to any pilot Domicile to which that aircraft type was not assigned the previous month.
 - 2) No more than 12-months shall elapse between any two (2) vacancy bids.
 - 3) Pursuant to the provisions of Subparagraph 20.B.4.
 - b. The Company shall provide a minimum of sixty (60) days written notice to all pilots prior to establishing a new permanent category of flying at an existing permanent Domicile and before establishing a new permanent Domicile. Permanent Vacancies which are created by such new

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flying shall be posted for system-wide bid not later than the seventh (7th) day following such notification, and shall remain open for bid for a period of not less than thirty (30) days.

- c. Except for the provisions of Subparagraphs 20.E.1.d and 20.H.2, Permanent Vacancies that are created for any reason other than those specified in Subparagraph 20.C.2.b shall be posted for system-wide bid on any weekday for a minimum period of fourteen (14) days. Permanent Vacancy(-ies) bulletins shall be posted as far in advance of the effective date of such vacancy(-ies) as is reasonably possible, but not later than the twenty-fifth (25th) day of the month, as in Subparagraph 20.C.2.a.3), following the month in which the vacancy occurred.
3. Temporary Vacancies: Notification bulletins announcing Temporary Vacancies shall be posted, where required, on any weekday (Monday through Friday) for a minimum period of fourteen (14) days, and shall close between 10:00 and 17:00 HST on any weekday (Monday through Friday) (excluding Company holidays) as far in advance of the effective date as is reasonably possible. The Standing Bids shall not be used to award or assign temporary vacancies. Eligible pilots who preference for a Temporary Vacancy must submit a separate bid each time such Vacancies are announced.
 - a. In the event a Temporary Vacancy(-ies) arises out of unexpected circumstances within a Domicile and must be filled immediately, the Company may verbally advertise such Vacancy(-ies) to currently qualified pilots within the Domicile in order of seniority, and may issue an interim award to a pilot who accepts the Vacancy pending formal award of the Temporary Vacancy.
 - b. Pilots who accept such interim awards shall be Paid and Credited what they could have earned had they remained in their former Vacancy or what they earn in the new Category, whichever is greater. Minimum monthly guarantees shall not be prorated in the case of pilots who fill any such Vacancies for part of a month except as provided in Subsection 3.F (Profit Bonus Plan).

D. BIDDING FOR VACANCIES AND BIDDING RESTRICTIONS

1. Permanent Vacancies
 - a. Each pilot shall have on file with the Flight Operations Department in Honolulu, a completed Permanent Vacancy preference listing ("Standing Bid"). The Standing Bids shall be utilized to fill all permanent vacancies and to accomplish all displacements. The Standing Bids shall be in a form specified by the System Award and Assignment Committee and shall give the pilot's desired order of preference for permanent vacancies. A means will also be provided whereon a pilot who desires may list on their Standing Bid, by Category, a numerical or percentage position below which they do not wish to be considered in the bidding. A Standing Bid may be submitted at any time by notifying the office of the Director-Flight Operations, by Company mail, Company e-mail, U.S. mail, or by personal submission. Standing Bids submitted to the Director-Flight Operations during normal office hours shall have the date and time of submission stamped thereupon, and initialed by the receiving office in lieu of a computerized entry receipt. The Company will not honor Standing Bids that have not been received in the office of the Director-Flight Operations, prior to the closing date and time of the applicable Permanent Vacancy and/or Displacement Bulletin, regardless of the date it was submitted. A pilot who has attempted to file a Standing Bid other than in person should contact the office of the Director-Flight Operations, prior to the applicable closing date to confirm its receipt. A pilot's Standing Bid on file shall be canceled and replaced when they submit a new Standing Bid. The Company

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shall fill all Permanent Vacancies in order of Seniority and accomplish all displacements in accordance with the preferences as indicated on each pilot's most recent Standing Bid.

- b. If a pilot fails to have a Standing Bid on file or fails to preference enough Vacancies on their Standing Bid to accommodate such pilot's Seniority, then the Company shall consider them to be bidding for their current position. If such pilot's Seniority is insufficient to entitle them to such Vacancy, they shall be considered to be bidding in the highest paying Category to which such pilot's Seniority entitles them at their current Domicile. If such Domicile no longer exists, or such pilot's Seniority is insufficient to entitle them to a Vacancy at their current Domicile, then such pilot shall be considered to be bidding for the most senior Category they can hold as defined in Subparagraph 20.A.3 at another Domicile in the following ranking order of Domiciles:

- 1) Honolulu-based pilot: HNL, LAX, SFO, and SEA.
- 2) West Coast-based pilot: LAX, SFO, SEA, and HNL.

2. Temporary Vacancies

- a. Eligible Bidders for Type I and Type II Temporary Vacancies:
 - 1) Whenever a Type I Temporary Upgrade Vacancy is posted for bid, an aircraft qualified pilot in the same Domicile and equipment who is not currently qualified to fill the Vacancy shall have the right to bid on such temporary flying, and such pilot exercising that right shall be bypassed or trained pursuant to the provisions of Subparagraph 20.D.2.b.
 - 2) Whenever a Type II Temporary Category Vacancy is posted for bid, an aircraft qualified pilot in the same Domicile who is not Currently Qualified to fill the Vacancy shall have the right to bid on such temporary flying, and such pilot shall be bypassed or trained pursuant to the provisions of Subparagraph 20.D.2.b. The pilot must have attained aircraft qualification as the result of a Category Vacancy award or pursuant to the provisions of Subparagraph 20.D.2.b.
- b. If such pilot(s) is senior to the Currently Qualified pilot awarded or assigned the Temporary Vacancy, their bid shall constitute acceptance of an offer of training for the subject Category. The Company may elect to award and train such pilot for the Temporary Vacancy. However, the Company may, at its discretion, award the Temporary Vacancy to a currently qualified junior pilot as prescribed in Subparagraphs 20.B.3.a and 20.B.3.b. The senior pilot, if not trained pursuant to this Paragraph, shall not be paid Bypass Pay. Any pilot who receives qualification or upgrade training (other than recurrent training) as a result of this Paragraph may be required to bid on all Type I or Type II Temporary Vacancies posted in their Domicile in the higher Category in which they receive such training for thirteen (13) months following the completion of training. If such pilot fails to submit a bid when required by the Company pursuant to this Paragraph, then such pilot may be awarded any Type I or Type II Temporary Vacancy to which their Seniority would entitle them without benefit of submitting an actual bid.
- c. Unless their bidding is restricted due to the operation of Subparagraph 20.E.3, a pilot filling a Type I, Type II, Type III, or Type IV Temporary Vacancy shall not be excluded from bidding upon and being awarded other Vacancies system-wide which are posted during the time they are serving in such Temporary Vacancy. The Company may, however, require such pilot to remain in the Temporary Vacancy in which they are serving until expiration of the original period stated in their bid award, subject to Subparagraph 20.B.4.b.
- d. Unless their bidding is restricted due to the operation of Subparagraph 20.E.3, a pilot filling a Type V Temporary Vacancy shall not be excluded from bidding upon and being awarded other

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Vacancies system-wide that are posted during the time they is serving in such Temporary Vacancy. The Company may, however, require such pilot to remain in the Temporary Vacancy in which they are serving for ninety (90) days from the Activation date of such Vacancy, subject to Subparagraph 20.B.4.

3. A probationary pilot shall not be permitted to bid on any category vacancy below the Category of their initial Permanent Domicile Vacancy that would become effective during their Probationary Period.
4. If a pilot's bidding is restricted due to the operation of Subparagraph 20.E.3, they may bid upon and be awarded a Vacancy that has a published Effective Date after the expiration of their period of restricted bidding.
5. A pilot who has been awarded a Vacancy may continue to bid upon and be awarded other Vacancies that are posted for bid until the date their initial qualification training in the newly awarded Category begins.

E. AWARDING OF BIDS AND CONDITIONS UPON AWARD

1. The Company shall award or assign, pursuant to the provisions of this Section, displacements or Vacancies (primary, secondary, or temporary) to eligible pilots according to their Seniority and preference as listed on their Standing Bid or temporary bid, as applicable. The total number of Permanent Category Vacancies pursuant to Subparagraph 20.C.1.a.2) shall be awarded or assigned. All awards shall be distributed electronically per Subsection 26.BB (Electronic Communications) within four (4) business days after the closing date and time of the applicable Vacancy and or Displacement Notification Bulletin.
 - a. A Permanent Vacancy and/or Displacement Notifications Bulletin shall be awarded in the following manner:
 - 1) Beginning with the most senior pilot's Standing Bid, the pilot will, depending on order of bid preference:
 - a) Remain in current Category Vacancy; or
 - b) Be awarded a new Category Vacancy (either primary or secondary) as available or as such Vacancy becomes available during the awarding process.
 - c) Each time a secondary vacancy appears begin the award process again with the most senior pilot's Standing Bid to ensure that the most senior pilot is awarded their highest Standing Bid preference.
 - d) Displacement rights shall be provided to any pilot who is:
 - (1) Not awarded a higher order of bid preference than such pilot's current category vacancy according to their Standing Bid, and
 - (2) Is displaced from their present category vacancy.
 - b. In the event the Company makes a determination that the pilot, who is entitled to award of a Vacancy by reason of Seniority and bid preference is not Sufficiently Qualified (as defined in Subparagraph 2.A.72) to fill the Vacancy, the Company shall immediately furnish such pilot with a written explanation of the reasons.
 - 1) Such pilot(s) shall be held in excess and not be sent to training in the newly awarded Category Vacancy until Sufficiently Qualified, and shall not be entitled to Bypass pay or Effective Date pay until they are Sufficiently Qualified.

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- c. Pilots will possess the appropriate FAA Medical Certificate for the new Category prior to completion of any ground school.
 - d. The Company shall award or assign all Permanent Vacancies (primary or secondary) and accomplish all displacement actions concurrently by posting and awarding a Permanent Vacancy and/or Displacement Bulletin electronically per Subsection 26.BB (Electronic Communications).
 - e. Secondary Vacancies shall be awarded or assigned in all Categories at all Domiciles, except secondary Vacancies shall not be awarded or assigned in any Category or Domicile that is being reduced, and at which the Company has canceled Permanent Vacancies, until the desired number of Vacancies have been achieved.
 - f. The number of displacements in a Category and Domicile shall be reduced by the number of pilots in that Category and Domicile who have been awarded other Vacancies during the Permanent Vacancy and/or Displacement award process.
2. Award Bulletins. Bulletins announcing Vacancy awards will be assigned the same number with a letter suffix as contained on the Vacancy Notification Bulletin that announced the Vacancy. The expiration date of a training freeze incurred by a pilot pursuant to the provisions of Subparagraph 20.E.3 below shall be indicated adjacent to the pilot's name on the crew compliment attachment to a Vacancy Bulletin or Award Bulletin.
- a. If training is required for a successful bidder, the Company shall assign training slots to all Sufficiently Qualified pilots at the time of publication of the bid packet in the month following the publishing of the Award Bulletin.
3. Training Freeze. A pilot who has bid upon and been awarded a Category Vacancy requiring initial qualification or transition training, may at the Company's discretion be required to remain in such Vacancy for a period of twenty-four (24) consecutive months, provided the pilot commences such training. This freeze period shall begin on the Activation Date (first revenue Segment) or the originally published Effective Date of the bid, whichever comes first. Such pilot shall be eligible for a subsequent Vacancy award with a closing date after their freeze ends. The Company may elect to not freeze, or to release from a freeze, a pilot, provided it does so in seniority order of those pilots who bid for that particular Category Vacancy. The following training freeze exceptions apply:
- a. A First Officer who is within a freeze shall be eligible for a subsequent Captain upgrade award:
 - 1) At any time when upgrading in the same equipment type as the Category Vacancy that they currently occupy. Such pilot shall be subject only to any remaining portion of their existing First Officer freeze; or
 - 2) At any time when upgrading to a different equipment type as the Category Vacancy that they currently occupy, provided that the First Officer has previously served as a First Officer in that aircraft. In such case the First Officer shall be subject to a freeze in their new Captain Vacancy, the duration of which shall be the lesser of (a) their remaining freeze plus an additional twenty-four (24) months or (b) a total of thirty-six (36) months.
 - 3) If upgrading in a different aircraft type, when the Effective Date commences after any existing training freeze ends. Unless released early, such upgrading pilot will remain in their current Vacancy while still frozen. Any delay in training as a result of such freeze shall not trigger Bypass Pay per Subsection 20.L (Bypass). Such pilot shall be subject to a twenty-four (24) month training freeze in their new Captain Vacancy in accordance with this Subparagraph 20.E.3.

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- b. Notwithstanding any other provision to the contrary in this Subparagraph 20.E.3, a displaced pilot will not incur any training freeze in their new position. Additionally, a displaced pilot shall be released from any training freeze subsequently incurred to be awarded the position they were displaced from originally. However, a pilot that subsequently returns to the Category Vacancy that they were originally displaced from, shall be subject to any remaining portion of the original freeze ending on the original expiration date.
 - c. “New Equipment Release”: Any pilot, at least twenty-four (24) months past their original date of hire as a pilot, shall at any time be eligible for a Vacancy award in an aircraft type new to Hawaiian’s fleet. For purposes of this Subparagraph 20.E.3.c., an aircraft type shall be considered new to Hawaiian’s fleet during the first twenty-four (24) months following the first scheduled revenue flight of the new aircraft. Such pilot will be released from any current freeze to fulfill the new Vacancy award, but shall not be eligible for another New Equipment Release while frozen in such new equipment.
- 4. In the event a pilot attempting to qualify for a Vacancy ultimately fails to qualify, the Vacancy award, including Domicile, shall be cancelled and posted for bid as soon as possible in accordance with the applicable provision of this Section 20 (Filling of Vacancies).
 - 5. Whenever a probationary pilot completes their initial qualification training and is awarded or assigned other than a Permanent Vacancy, the Company shall designate a permanent Domicile for such pilot for the purposes of determining expense allowances and administering other rights provided for by this Agreement. The Company shall not change the designated permanent Domicile until such time as the pilot is actually awarded or assigned to a Permanent Vacancy.
 - 6. The Company may, during the awarding of a Type II Temporary Category Vacancy, bypass a qualified senior pilot and award the temporary position to an equally qualified junior pilot under the following conditions:
 - a. The junior pilot must have received their qualification training for the temporary position as the result of a Permanent Vacancy award or pursuant to the provisions of Subparagraph 20.D.2.a, and
 - b. An operational need exists for the bypassed pilot’s services in their Permanent Category Vacancy, and
 - c. The junior pilot is not holding a Permanent Category Vacancy in the same equipment as the bypassed pilot, and
 - d. Each month, or any portion of a month, that any pilot junior to the bypassed pilot(s) holds such Temporary Vacancy, each bypassed pilot shall be paid the hourly per diem rate of the bypassed pilot’s Permanent Category Vacancy or the hourly per diem rate of the Temporary Category Vacancy, whichever is greater, times the number of TAFB hours credited to the bypassed pilot(s), and
 - e. Each month, or any portion of a month, that any pilot junior to the bypassed pilot(s) holds such Temporary Vacancy, each bypassed pilot shall be paid the greater of the following:
 - 1) The number of Pay and Credit hours credited to the bypassed pilot times the bypassed pilot’s permanent category hourly rate, or times the temporary category hourly rate, whichever is greater; or

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- 2) For pilots on a monthly salary, the bypassed pilot's monthly salary, or the actual number of Pay and Credit hours (not to include minimum guarantee hours) credited to the bypassed pilot times the Temporary Category hourly rate or the minimum guarantee of the Temporary Category whichever is greater; or
 - 3) The minimum guarantee of the Temporary Category or the highest number of Pay and Credit hours credited to any pilot holding such Temporary Category vacancy junior to the bypassed pilot(s) times the Temporary Category hourly rate, whichever is greater.
7. The Company may require a pilot awarded (not assigned) a Type I, Type II, Type III, or Type IV Temporary Vacancy to cancel any voluntarily awarded vacation during the period of the original award.

F. INSUFFICIENT BIDDERS (ASSIGNMENT):

1. Whenever an insufficient number of pilots bid for a posted Vacancy(-ies), the Company may fill such Vacancy(-ies) by assigning pilots who did not bid for the posted Vacancy(-ies) according to the following procedures.
2. Permanent Vacancies. Such Vacancies shall be assigned in reverse order of Seniority to the most junior pilot(s) on the Pilots' System Seniority List, without regard to the Category(-ies) in which they are presently serving, or whether or not they have previously qualified for the Category to which they are being assigned. Pilots so assigned shall be provided with not less than thirty (30) days written notice in advance of the Effective Date of the assignment, and shall be entitled to a Company-paid move pursuant to the provisions of Subparagraph 5.H.1 and relocation and travel time free of duty pursuant to the provisions Subsection 5.I (Relocation Time).
3. Temporary Vacancies.
 - a. Type I - Temporary Upgrade Vacancy (1-62 days): Type I Temporary Upgrade Vacancies shall be assigned in reverse order of Seniority to the most junior pilot(s) presently flying in the Domicile and equipment to which the Vacancy applies in the following order:
 - 1) First, to pilots in both the Domicile and equipment who are currently qualified in the Category of the assignment;
 - 2) Second, to pilots in both the Domicile and equipment who are aircraft qualified in the Category of the assignment; and
 - 3) Pilots so assigned to such Vacancies may be Activated immediately upon notification.
 - b. Type II - Temporary Category Vacancy (1-62 days): Type II Temporary Category Vacancies shall be assigned in reverse order of seniority to the most junior pilot(s) as follows:
 - 1) First, to pilots in the Domicile to which the Vacancy(-ies) apply who are currently qualified to fill such Vacancy(-ies), then
 - 2) To pilots in the Domicile to which the Vacancy(-ies) apply who are aircraft qualified to fill such Vacancy(-ies), then
 - 3) To pilots system-wide who are currently qualified to fill such Vacancy(-ies), then
 - 4) To pilots system-wide who are aircraft qualified to fill such Vacancy(-ies).
 - 5) Pilots so assigned shall be provided with not less than seven (7) days written notice in advance of the effective date of the assignment, unless the Vacancy is located at the same Domicile at which the assigned pilot is presently serving, in which case the assignment may be Activated immediately upon notification.
 - c. Type III Temporary Duty Vacancy (1-62 days):

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- 1) Type III Temporary Duty Vacancies shall be assigned in reverse order of seniority to the most junior pilot(s), by Category, at the Domicile where the Vacancy is posted, that are currently qualified to fill such Vacancy(-ies).
- 2) Pilots so assigned shall be provided with not less than seven (7) days written notice in advance of the Effective Date of the assignment.
- d. Type IV Temporary Domicile Vacancy (1-92 days): Type IV Temporary Domicile Vacancies shall be assigned in reverse order of Seniority to the most junior pilot(s) in the following order:
 - 1) First to pilots system-wide who are currently qualified to fill such Vacancy(-ies),
 - 2) Second, to pilots system-wide who are aircraft qualified to fill such Vacancy(-ies).
 - 3) Pilots so assigned shall be provided with not less than seven (7) days written notice in advance of the Effective Date of the assignment unless the Vacancy is located at the same Domicile at which the assigned pilot is presently serving, in which case the assignment may be Activated immediately upon notification.
- e. Type V Temporary Domicile Vacancy (over 92 days):
 - 1) Such vacancy(-ies) shall be assigned in reverse order of seniority to the most junior pilot(s) on the Pilots' System Seniority List, without regard to present or previous qualification status other than that set forth in Subparagraph 20.D.5.
 - 2) Pilots so assigned shall be provided with not less than thirty (30) days written notice in advance of the Effective Date of the assignment and shall be entitled to relocation, travel time, and expenses pursuant to the provisions of Subparagraph 5.A.4 and Subsection 5.G (Travel and Temporary Lodging).
- f. Each pilot who is awarded or assigned to a Temporary Vacancy shall be Paid and Credited with the greater of what they could have earned had they remained in the Vacancy held by them prior to assignment or what they earned while filling the Vacancy.
- g. The originally posted duration of a Vacancy for which there are insufficient bidders shall be used in designating the expected duration of Vacancy for purposes of assignment.
- h. Notwithstanding anything to the contrary in this Section 20 (Filling of Vacancies), the Company shall not assign a pilot to any Temporary Vacancy if that pilot was trained in a Vacancy without benefit of an award pursuant to Subsection 18.D (Promotion).

G. ACTIVATION OF VACANCIES

1. Except as provided in Subparagraphs 20.G.2, 20.G.3, and 20.G.4 all Vacancies shall be Activated in accordance with their published Effective Dates, and the pilots who are awarded or assigned to fill Vacancies having the same published Effective Date will be Activated in such Vacancies in order of their Seniority.
2. Early Activation.
 - a. In the event a Vacancy must be filled earlier than the published Effective Date, such early Activation shall be offered in seniority order among the pilots holding the same earliest published Effective Date who have not yet been Activated.
 - b. If no pilot accepts the offer, the early Activation will be assigned to the most junior of the pilots so offered.
 - 1) If a displaced pilot is being early Activated involuntarily, the Company will:

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- a) Notify the Association and demonstrate an operational justification for the early Activation; and
- b) notify the affected pilot(s) of the need for early Activation and record the notification on the pilot's "Pilot Training Form"; and
- c) provide bypass pay until the Effective Date of the displacement Vacancy Bid or until such pilot is Activated, whichever is later.
- d) If a displaced pilot is deemed by the Company to be avoiding training after the Effective Date of the bid, despite the Company's best efforts to provide training to that pilot, the Company and the Association will meet to review the circumstances at issue and how to address them.

The following example shall serve as an example of bypass pay due for a displaced pilot who is involuntarily early Activated:

On April 4, more than one A330 Captain is displaced to the A321 Captain Category effective December 1. If the Company involuntary displaces a senior Captain prior to a junior Captain, then the senior Captain shall receive bypass pay until the later of: December 1 (the Effective Date) or the Activation of all other displaced junior Captains. (in the example above, if a displaced junior Captain appears to be avoiding training after the effective date of the bid, despite the Company's best efforts to provide training to the junior Captain(s), the parties will meet to review whether the Senior Captain is no longer eligible to receive such Bypass Pay.)

- c. If a displaced pilot is offered early Activation in seniority order and voluntarily accepts, the Company shall not be required to provide bypass pay until the Effective Date of the displacement Vacancy Bid.

3. Delay in Activation.

- a. If a pilot is not Activated to their awarded Vacancy as of the Effective Date, the pilot shall be paid in accordance with Subsection 20.M (Bypass), commencing on the Effective Date. Such compensation will not be less than their earned pay during such period, and it shall continue until the award is either Activated or the pilot has released themselves from said award, whichever occurs first.
- b. If the pilot has not been Activated to their awarded vacancy within sixty (60) days after the Effective Date, they may, at their option, either continue to receive Bypass Pay as specified herein or release themselves from said award and return to their former Domicile Category Vacancy, provided the Vacancy has not been eliminated. If their former Vacancy has been eliminated as a result of reduction, curtailment, or transfer of flying time, the pilot shall be entitled to the displacement rights provided in Subsection 20.I (Displacement Procedures), and relocation and travel time free of duty pursuant to the provisions of Section 5 (Expenses).

4. Overlapping Bid Activation

- a. The Company is not required to train a pilot on a previous Vacancy Award due to the pilot being awarded a different Category Vacancy in a subsequent Vacancy Award (i.e., no requirement to train a pilot that has not been trained in a Category held in a previous bid).

H. CANCELLATION OF VACANCIES

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1. Permanent Vacancies/Prior to Activation. When awarded or assigned Vacancies are cancelled prior to their Activation date, the order of cancellation of such vacancies in the affected Category at a Domicile shall be in reverse numerical order of the award bulletins for such Vacancies, regardless of the respective posted Effective Dates of such Vacancies.
 - a. In the event their awarded or assigned Vacancy is cancelled prior to its Activation date, the pilot shall retain their present Category Vacancy. Within fifteen (15) days after notification of such cancellation, such pilot may bump into any Vacancy they could have been awarded, which was awarded to a more junior pilot during the period of time between the date of the award or assignment of the cancelled Vacancy and the date of notification of such cancellation (including the Award Bulletin on which their cancelled bid award was posted). A pilot who has been bumped from their Activated Vacancy by a pilot whose bid award was cancelled shall be entitled to the displacement rights of Subsection 20.I (Displacement Procedures).
 - b. If a pilot moved to a Domicile in anticipation of Activation of their awarded or assigned Vacancy at such Domicile, which was subsequently cancelled prior to Activation, they shall be entitled to the moving expense, travel time, and relocation allowance, as provided by Subsections 5.G (Travel and Temporary Lodging), 5.H (Moving Expenses), and 5.I (Relocation Time) in connection with their return to their former Domicile or new Domicile, as determined in accordance with Subparagraph 20.H.1.a.
2. The Company may elect not to fill a primary Vacancy(-ies) created pursuant to Subparagraph 20.B.1 by posting a Cancellation of Vacancy(-ies) Notification Bulletin, if adequate staffing will exist after such cancellation. A Cancellation of Vacancy(-ies) Notification Bulletin shall be distributed via Company e-mail and posted electronically on any weekday for a period of fourteen (14) days.
3. Temporary Vacancies may be cancelled, by the Company, at any time as follows:
 - a. The Company will offer, in order of seniority by category, the reduction in Temporary Vacancy(-ies) to all pilots awarded or assigned the Temporary Vacancy(-ies) that are being reduced. If an insufficient number of pilots volunteer to have their Vacancy(-ies) canceled, then the Company shall cancel the Temporary vacancy(-ies) in reverse order of seniority, by Category. A pilot whose Vacancy is canceled as provided in this Paragraph shall retain their right to return to their permanent category vacancy pursuant to the provisions of Subparagraph 20.J.2.
 - b. A pilot who was holding a Temporary Vacancy that was canceled shall be returned at Company expense to either their permanent Domicile or to their new Domicile if they has been awarded or assigned to a new Vacancy at a different Domicile as follows:
 - 1) If a pilot who has been filling a Temporary Vacancy is to be returned to their former Domicile, they shall be accorded the same expense allowances and travel and transportation arrangements, including days off with pay, as originally required when they moved to the location of the canceled Vacancy.
 - 2) If a pilot moves to a Domicile other than the Domicile to which they was attached prior to filling the canceled Vacancy, they shall be entitled to a Company-paid move pursuant to the provisions of Section 5 (Expenses).

I. DISPLACEMENT PROCEDURES

1. Whenever Vacancies are being reduced at a Domicile, the Company will utilize the following procedures in the order presented to reduce the surplus Vacancies:

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- a. Cancel Type III Temporary Duty Vacancies in the affected Category(-ies) at the Domicile, as necessary, pursuant to the provisions of Subparagraph 20.H.3.
 - b. Cancel Type II Temporary Category Vacancies in the affected Category(-ies) at the Domicile, as necessary, pursuant to the provisions of Subparagraph 20.H.3.
 - c. Cancel Type I Temporary Upgrade Vacancies in the affected Category(-ies) at the Domicile, as necessary, pursuant to the provisions of Subparagraph 20.H.3.
 - d. Cancel permanent vacancies in the affected Category(-ies) at the Domicile, as required, and displace the pilots who were filling such vacancies, if necessary, as provided in Subparagraph 20.I.3.
2. Whenever Vacancies are being reduced at a temporary Domicile, the Company will utilize the following procedures in the order presented to reduce the surplus Vacancies:
 - a. Cancel Type IV Temporary Domicile Vacancies in the affected Category(-ies) at the Domicile, as necessary, pursuant to the provisions of Subparagraph 20.H.3.
 - b. Cancel Type V Temporary Domicile Vacancies in the affected Category(-ies) at the Domicile, as necessary, pursuant to the provisions of Subparagraph 20.H.3.
 3. A pilot may volunteer to be displaced from their current Category Vacancy in lieu of a junior pilot who would otherwise be involuntarily displaced from the same Category Vacancy.
 - a. After the awarding process has been completed and displacements are to occur, a pilot who has selected some or all of their standing bid preferences as eligible for voluntarily displacement, will only be awarded one of these Category Vacancies if they match up with the junior to-be-displaced pilot's available options per Subparagraph 20.I.4.a.
 - b. Notwithstanding Subparagraph 18.A.3, in the event multiple pilots volunteer for displacement, the most senior volunteer displacement pilot will be paired with the most senior to-be-displaced pilot on a "person-for-person" basis who matches his standing bid preferences which are eligible for voluntary displacement.
 - c. A pilot who has been voluntarily displaced shall be considered awarded.
 - d. A pilot who has been voluntarily displaced shall be considered frozen.
 - e. A pilot who is frozen, shall not be awarded a voluntary displacement.

Example: B767 First Officer:

Highest standing bid the pilot can hold

1. A330 First Officer
2. A330 First Officer
3. A330 First Officer
44. B717 First Officer
45. A330 First Officer
46. B717 First Officer

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Category reduced by three (3) pilots

- Pilot #44's first preference is B717 FO, however no pilot who has volunteered for displacement has preferenced B717 FO, so Pilot #44 will be displaced to B717 FO.
 - Pilot #45's first preference is A330 FO. Pilot #1 has a bid for this aircraft and will take the displacement in Pilot #45's place. Pilot #45 will remain in current Category.
 - Pilot #46's first preference is to B717 FO, however no pilot who has volunteered for displacement has this preference so Pilot #46 will be displaced to B717 FO.
4. Any pilot shall have displacement rights if such pilot is unable to hold their present Category Vacancy and Domicile and is not awarded or assigned a Category Vacancy and Domicile preference higher in priority on their Standing Bid than such pilot's present Category Vacancy and Domicile.
- a. Pilots with displacement rights shall be entitled to bump into any category at any Domicile, including their own, where a pilot junior to them holds a vacancy, including a vacancy awaiting Activation.
 - b. If the displaced pilot's new Vacancy is located at another Domicile, such pilot shall be entitled to a Company-paid move, travel expenses, and relocation time pursuant to the provisions of Section 5 (Expenses). If a pilot is displaced to a new Domicile that requires a move to or from Hawaii, such pilot shall be allowed, if desired, a ninety (90) day period immediately following notification of displacement in order to complete the sale of their former residence, prior to being Activated in their new Domicile. The pilot may be required to provide proof that their personal residence is being offered for sale. The Company, at its sole discretion, may extend the ninety (90) day period to allow the pilot to complete such sale. Such pilot may be trained in their new Vacancy during the ninety (90) day period or during any extensions thereof, and may be required to perform duty at their new Domicile, provided however, that such pilot's minimum days off while performing flight duty will be at their old Domicile. If such pilot is trained for their new Category Vacancy during the ninety (90) day period or any extension thereof, then days off during training while at the training site, shall be counted as part of such pilot's minimum days off for that month. The Company shall pay all travel, per diem, and hotel expenses while such pilot is away from their old Domicile performing duty for the Company.
 - c. If, as a result of exercising displacement rights, training is required, or the Vacancy is awaiting Activation, a pilot will remain in the category of their former vacancy until such time as the necessary training has been accomplished. If training for the new Vacancy has not begun at least forty-five (45) days prior to the originally published effective date of the displacement, such pilot shall be entitled to Bypass Pay as specified in Subsection 20.L (Bypass) in the unawarded category. Provided the pilot is not in training, they shall be guaranteed the same number of total scheduled days off as is contained in the line of flying to which their Seniority would have entitled them had they been so qualified. Such compensation shall not be less than their earned pay during such period and shall continue until such time as the pilot shall complete qualification training, and shall be allowed to exercise and implement their normal Domicile schedule selection rights. If, while awaiting training, the equipment type from which the pilot is displaced is no longer being flown at their Domicile, the displaced pilot may be required to function in the highest status in any equipment type on which they have been trained, and which is being flown at their Domicile.

J. VACATING AWARDED VACANCIES

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1. A pilot may vacate an awarded Vacancy only by hardship (as determined by mutual agreement between the Company and the HAL MEC), by its being discontinued, by their failure to qualify, death, retirement, resignation, sustained termination, or by being displaced or being the successful bidder on another Vacancy.
2. A pilot who fills their awarded or assigned Temporary Vacancy for the published expected duration or any portion thereof, and any extension as provided in Subparagraph 20.B.4.b, shall resume the Category Vacancy they filled immediately prior to such Temporary Vacancy or they shall assume such other Vacancy (including their Permanent Vacancy) which they bid and was awarded, or to which they was assigned in accordance with the provisions of this Section 20 (Filling of Vacancies).

K. OPENING AND CLOSING OF DOMICILES

1. The Company shall give at least sixty (60) days written notice before activating permanent vacancies at a new permanent Domicile and shall give at least fourteen (14) days written notice before activating temporary vacancies at a new Domicile.
2. The Company shall be able to designate temporary or permanent Domiciles anywhere within the fifty (50) United States. In the event a Domicile opened as a permanent Domicile is closed within one hundred eighty (180) days, it will be treated retroactively as a temporary Domicile (except for a Domicile within the state of Hawaii (excluding HNL)). Any pilot who moves to a Domicile that is closed within a one hundred eighty (180) day period will be moved to their new Domicile in accordance with the provisions of Section 5 (Expenses). In the event the Company desires to open any Domicile outside of the fifty (50) United States, prior written approval of the MEC must be obtained.
3. The Domicile airports are HNL, LAX, SFO, and SEA. In the event a Flight Grouping is scheduled to originate and/or terminate at an airport serving the Domicile other than these Domicile airports, the provisions of Subparagraph 5.A.5 shall apply.
4. In the event the Company plans to close a Domicile, the Company shall give the affected pilots written notice as far in advance as possible but in no case less than sixty (60) days' notice.
5. Any difficulties that arise as a result of a postponement of Domicile closure shall be resolved through provisions outlined in Section 16 (Grievances).

L. BYPASS

1. At its option, the Company may decline to provide training to a pilot who is awarded a Vacancy in a higher Category or who is displaced to a Vacancy in a lower Category. In such case, the Company will Pay and Credit the pilot on the basis of the bypassed Category rate. Such Bypass Pay will commence on the published Effective Date of the Vacancy award in the bypassed Category or upon a junior pilot's eligibility to receive pay at the rate for the higher, yet unactivated, Category Vacancy awarded to a more senior pilot via the same Vacancy bid award number and Effective Date. Such Bypass Pay will continue until the earlier of:
 - a. The pilot's Activation in the bypassed category; or
 - b. The pilot's Activation in a higher category than the bypassed category, or the Activation of their displacement to a Vacancy lower than the bypassed Category, as applicable.

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- c. Example No. 1 (“going up”): On June 1, a B717 First Officer is awarded a Vacancy as a B717 Captain effective September 1. On July 1, they are the successful bidder and is awarded a Vacancy as an A330 Captain, effective December 1.
 - 1) If the Company declines to train the pilot as a B717 Captain, then on September 1, they will begin to be paid at B717 Captain rates (for their B717 First Officer flying). Such Bypass Pay will continue until they are Activated as an A330 Captain, on or before December 1, at which time they will begin to be paid at A330 Captain rates.
 - 2) If the Company declines to train the pilot as an A330 Captain on or before December 1, then on December 1, they will begin to be paid at A330 Captain rates (for their B717 First Officer or B717 Captain flying, as applicable).
- d. Example No. 2 (“going down”): On June 1, an A330 Captain is displaced to B717 Captain, effective September 1. On July 1, that pilot is further displaced to B717 First Officer, effective December 1.
 - 1) If the Company declines to train the pilot as a B717 Captain, then they shall remain in the A330 Captain category and continue to be paid at A330 Captain rates until they are Activated as a B717 Captain or,
 - 2) If the Company continues to bypass them from B717 Captain training, until they are Activated as a B717 First Officer on December 1, whichever is later.
2. A pilot who is bypassed will be given the opportunity to qualify in the bypassed Category within one hundred eighty (180) days of such bypass, provided that they have not been awarded a Vacancy in a higher Category than the bypassed Category during the bypass period, or displaced to a Vacancy in a lower Category than the bypassed Category during the bypass period.
3. Written notice of such withholding from training (bypass) will be furnished promptly to each affected pilot, and if applicable, the Category Vacancies from which they have been withheld shall be awarded to other pilots in accordance with the provisions of Section 20.E (Awarding of Bids and Conditions Upon Awards).
4. A pilot eligible to receive Bypass Pay in a higher Category, who fails to qualify in such higher Category, shall not be paid Bypass Pay in such higher Category, effective on the date of failure to qualify.

M. ELECTION NOT TO TRAIN

1. The Company may choose not to award a new Category Vacancy to any pilot who, at the time of the Effective Date of the Vacancy Award, will be within twenty-four (24) months of the FAA mandatory retirement age.
 - a. The above provision shall not apply to a pilot who is awarded a different Category Vacancy in the same aircraft type (e.g., upgrading from a First Officer to a Captain), and
 - b. Shall not apply to Displacement Procedures (PWA Subsection 20.I).
 - c. Exception: The Company may not bypass a pilot within twenty-four (24) months of the date they reach the regulatory age limit for pilots unless the Company has bypassed all pilots holding a Category Vacancy Award to the same Category with:
 - 1) the same Effective Date,
 - 2) the same training requirements, and
 - 3) earlier mandatory retirement dates.

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- d. Such pilots shall have their payrates, in the accounting software in use, changed to reflect the payrate of the aircraft they would have otherwise been awarded on the Effective Date stated on the Vacancy Award Bulletin, but such pilot shall remain in the Category they held prior to the award.

N. SYSTEM AWARDS AND ASSIGNMENT COMMITTEE

1. A System Awards and Assignment Committee shall be established for the purpose of implementing the procedures relating to the filling of Vacancies as set forth in this Section 20 (Filling of Vacancies). The responsibilities of this committee shall include, but not necessarily be limited to, the following:
 - a. Promulgating and maintaining a clear, concise, and complete written statement of the rules, practices, and procedures governing the creation of Vacancies at Domiciles for bidding upon and awarding of assignment to such Vacancies and termination of existing or prospective Vacancies.
 - b. Preparation of recommendations relative to the opening or closing of pilot Domiciles or the addition of or discontinuance of Category(-ies) of flying at an existing Domicile.
 - c. Monitoring the award or assignment of all Category vacancies system-wide. Pilot members shall be notified of the date, time, and place of such awards and may be present at the award or assignment of each Vacancy.
 - d. Reviewing disputes that arise out of the administration of this Section and preparing recommendations as to the disposition of such disputes.
 - e. Ensuring that the displacement and bypass procedures set forth in Subsections 20.I (Displacement Procedures) and 20.L (Bypass), respectively, are correctly administered.
2. Composition of Committee
 - a. The system Awards and Assignment Committee shall be composed of not more than four (4) members, two (2) of whom shall be selected by the Company and two (2) of whom shall be selected by the pilots' MEC. The Company and the pilots may each select two (2) alternate members who may act for their respective primaries. Each party shall notify the other in writing of the selection of members and alternates, each of who shall continue to serve until replaced pursuant to further written notification.
 - b. Committee Chairman. The Company shall designate one (1) of its appointees as Chairman of the committee and shall keep all committee members currently informed of such appointment. The Chairman's duties shall include calling meetings, presiding at meetings, maintaining committee records and correspondence, and implementing committee actions. They shall carry out these duties in a manner fair and impartial to all interested parties, and shall consult with, and give full credence to, all committee members on any issues, however, the Chairman shall have full voting rights. Committee records shall be readily accessible to all committee members.
3. Committee Meetings
 - a. The Chairman may call a committee meeting at any time, with the approval of a majority of committee members. Fifty per cent (50%) of the committee members may call a meeting upon not less than ten (10) days prior written notice of the committee not joining in the request. The

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availability and convenience of each committee member shall be considered to the fullest practical extent in calling committee meetings.

- b. The compensation, travel, and other reasonable expenses, if any, of Company members of the committee which are incidental to the holding of meetings shall be borne by the Company; the compensation, travel, and other reasonable expenses, if any, of pilot members of the committee shall be borne by the Association, except that where air travel can be accomplished on Company aircraft, the Company shall provide each Association member with positive space business passes or cockpit observer authority for such purposes.
- c. The committee shall meet whenever it deems necessary to consider issues brought before it. Any two (2) members may call the committee into special session.
4. No decision or action of the committee shall in any way restrict or otherwise abridge the rights of any pilot to seek relief pursuant to the provisions of Section 16 (Grievances) as the result of any action of the Company.
5. No provision of the Awards and Assignment Policy (reached by accord or otherwise) shall be construed to supersede, amend, or negate any provisions of this Agreement.
6. The Company shall provide the members of the System Awards and Assignment Committee with such information as is necessary to clearly depict the scheduling plans of the Company and with such supporting information as may be necessary to enable the committee members to carry out their assigned responsibilities. Such supportive information shall include, but not necessarily be limited to, the provision of a monthly report of all Vacancies awarded or assigned, by name, Domicile, and Seniority number, and all vacancies terminated, together with the results of subsequent displacements occurring from the exercise of Seniority rights of those pilots who held terminated vacancies. The monthly report shall also include the following information:
 - a. A list of involuntarily assigned pilots by name and Seniority number, and the effective date of assignment.
 - b. Copies of each known change to the printed published flight schedule not less than thirty (30) days in advance of its effective date.
 - c. A summary of present contracts (excluding financial details) for all flying that is being conducted or is to be conducted pursuant to this Agreement. The effective date of each new contract and the expiration date shall be included.
 - d. A summary of all revenue flying accomplished by supervisory pilots system-wide, together with a statement of any consequent reallocation of Pay and Credit to other pilots.
7. A synopsis of pilot utilization results for the preceding month, including total block hours flown, Pay and Credit attributable to vacation, sick leave, ALPA leave, duty rigs, and the operation of Subsections 4.C (Minimum Pay and Credit), 4.D (Pay and Credit for Schedule Changes), and 4.E (Posting Requirements for Pay and Credit Time), and Subsection 10.B (Time Used to Determine Maximum Pay and Credit Time). If, during the seven (7) day period following the giving of notice of the opening or closing of a Domicile, the pilot members of the committee request a meeting to discuss such Domicile opening or closing, the Company shall so meet to discuss the matter prior to posting any proposed vacancies or displacement vacancies for bid.

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A. AWARDING OF RUNS

1. Each month, the holders of Category Vacancies at each Domicile shall be awarded a Monthly Run. The Flight Groupings for such runs shall be prepared, posted for bid, and awarded in accordance with the principles set forth in this Section 21 (Preparation, Bidding, and Awarding of Runs).

B. PREPARATION OF FLIGHT GROUPINGS FOR MONTHLY RUNS

1. Crew Planning will obtain monthly flight time projections from Network Planning and assure that:
 - a. The Flight Groupings have been prepared in such a way as to minimize the need for changing pilot schedules; and
 - b. A sufficient number of Category Vacancies are awarded (pursuant to the provisions of Section 20 (Filling of Vacancies)) in order to accommodate projected flying and provide an adequate Reserve.
2. It shall be the responsibility of Network Planning when contemplating a change in daily schedules to provide Crew Planning with information necessary to prepare the Flight Groupings for pilots' selection at least thirty (30) days prior to the effective day of such schedule change in order to meet the posting limitation provided in Subsection 21.D (Notification of Bidding Period for Monthly Runs).
3. One hundred percent (100%) of the known flying at each Domicile shall be used to construct the Flight Groupings for the pilots to preference on their Monthly Runs.
4. The criteria for preparation of monthly Flight Groupings are:
 - a. Flight Groupings will, where possible, be constructed so as to provide not less than forty-five (45) minutes between Round Trips for international flights and not less than twenty (20) minutes between Round Trips for interisland flights.
 - b. Flight Groupings shall be constructed so as to comply with Section 10 (Hours of Service).
 - c. Flight Groupings will usually contain maximum scheduled block hours for minimum Duty Period hours, consistent with the above criteria.
5. The following information shall be included on all Monthly Run Flight Groupings:
 - a. Flight numbers
 - b. Date and day of departure and arrival
 - c. Time of departure and arrival (GMT and Local Domicile Time)
 - d. Published block pay time for each segment
 - e. Beginning and end time of each Duty Period
 - f. Layover times (RON)
 - g. Total duty hours away from Domicile (including preflight and post-flight requirements).
 - h. A designation if it is to be operated with an augmented crew.
6. The Flight Groupings shall not be altered or changed between the time and date of posting of the Bidding Period and the date of the awarding of Monthly Runs.

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7. The Company will prepare the monthly Flight Groupings for submission to the MEC Scheduling Committee as early as possible but no later than 1200 hours HST on the 2nd of each month. The MEC Scheduling Committee may make amendments to these Flight Groupings that will not cause more than twenty-five hundredths of a percent (.25%) increase in pay in any Category. The finalized Flight Groupings will then be returned to the Company for review and approval. The Company shall not withhold approval provided all the provisions of this Section 21 (Preparation, Bidding, and Awarding of Runs) have been complied with.
8. The Company shall, prior to the opening of the Bidding Period, program the Preferential Bidding System (PBS) with the following:
 - a. Flight Groupings and Airport Reserve Groupings
 - b. Daily reserve requirements for Monthly Runs in accordance with Subsection 21.H (Minimum Reserve Number).
 - c. Inclusive dates and standard Pay and Credit (as outlined in each applicable section of this Agreement) for each individual pilot's:
 - 1) Vacation;
 - 2) Leaves of Absence (with or without pay); and
 - 3) Training (Ground school, Flight, and/or Simulator).
9. Notwithstanding the provisions of Subparagraph 21.B.8, and after the opening of the Bidding Period, the following procedures apply:
 - a. Pilots may trade their training schedules with the concurrence of the Training Department and the pilots involved.
 - b. The Company may cancel all or part of a pilot's training schedule from the PBS system, provided the pilot is notified of the change or cancellation at least forty-eight (48) hours prior to the closing of the Bidding Period.
 - 1) The Training Department must notify the pilot of the changes and receive a verifiable response from the pilot receiving such notification.
 - 2) A verifiable response from the pilot includes e-mail, return receipt mail, recorded telephone response, or any other certifiable means.
 - 3) The cancelled Pay and Credit time will be removed from the pilot's schedule and the pilot should submit a revised PBS bid to replace the cancelled training Pay and Credit time.
10. In the event, the Company fails to program PBS with the training schedule (described in Subparagraph 21.B.8.c) Pay and Credit prior to the opening of the Bidding Period, then the Company may, with pilot consent, insert, move, or extend a pilot's PBS training schedule under the following conditions:
 - a. The pilot must be notified of the change at least forty-eight (48) hours prior to the closing of the Bidding Period.
 - b. The Company shall not assign or require any pilot to attend such training; however,
 - c. The affected pilot(s) may voluntarily attend such training, and will be Paid and Credited the greater of:
 - 1) The value of the training period days, or

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- 2) For Flight Grouping(s) missed.
 - d. The Training Department must notify the pilot, by Company e-mail or telephone, of the changes and receive a response from the pilot receiving such notification. The pilot may submit a revised PBS bid, if desired.
 - e. In addition, any other request for pre-planned absences (e.g., union leave, military leave, Company Business, pop-up vacation, etc.) made after the opening of the Bidding Period will be accepted and entered into the PBS system by the PBS operator only after notification by Flight Division Administration or Director-Crew Scheduling.
 - f. Upon notification from the appropriate Company Division, the PBS operator will assume that all provisions of this Section have been complied with and enter the required changes to the PBS system. No changes will be made to the training schedule, or pre-planned absences accepted for entry into the PBS system, after forty-eight (48) hours prior to the closing of the Bidding Period.
11. Each month the Company will determine and designate which Flight Groupings will be available for bid by the pilots at each Domicile. Pilots at each Domicile may only bid and be awarded Flight Groupings that the Company has designated as available for bid at their Domicile.

C. PREFERENTIAL BIDDING SYSTEM PARAMETERS

1. Each pilot shall, in seniority, be awarded their preferences for the month.
 - a. The Preferential Bidding System shall not award Flight Grouping(s) during the period of an individual pilot's vacation, known leaves (with or without pay), ground school, flight training (except IOE training), or simulator training. However, the Preferential Bidding System will credit each affected pilot with a standard Pay and Credit, as outlined in each applicable Section of this Agreement for each individual pilot's vacation, leave (with or without pay), ground school, flight training, or simulator training.
 - b. PBS Bidding Limits

Federal Air Regulation Limits	PBS Bidding Limits
100 Flt hrs within 672 hrs	98 Flt hrs within 672 hrs
1,000 Flt hrs within 365 days	990 Flt hrs within 365 days
60 FDP hrs within 168 hrs	58 FDP hrs within 168 hrs
190 FDP hrs within 672 hrs	180 FDP hrs within 672 hrs
30 hrs of rest within 168 hrs	31 hrs of rest within 168 hrs

*The 30 hr rest buffer would apply when rest is applied in Domicile in accordance with FAR 117.25.b

2. A Bid Run shall be a Monthly Run that:

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- a. Has at least the published monthly ALV minus nine (-9) or more hours of Pay and Credit projected at the time of the award.
 - 1) Except that a pilot with less than the published ALV minus nine (-9), with eighteen (18) days of awarded Flight Groupings and pre known absences, excluding training blocks greater than six (6) days shall be a Bid Run pilot but shall receive less than MMG per Subparagraph 3.E.1a.
 - b. Contains a maximum of eighteen (18) work days in a month; except for the provisions of Subparagraph 10.G.2 (“one (1), two (2), or three (3) days off waiver”).
 - c. Has the minimum number of days off in a month as prescribed by Subparagraph 10.G.1, except for the provisions of:
 - 1) and
 - 2) Subparagraph 21.J.1 (“Return from LOA Proration”).
 - d. Consists of eighteen (18) or more days of training.
 - 1) Pilots with such Bid Runs shall be marked as ineligible bidders and shall not participate in the PBS process.
3. A Reserve Run shall be a Monthly Run that:
- a. May have projected Flight Groupings, but in any case, shall have less than the published monthly ALV minus nine (-9) hours of Pay and Credit time projected at the time of the award.
 - b. Except for the provisions of Subparagraph 10.G.2 (“one (1), two (2), or three (3) days off waiver”), shall contain a maximum of:
 - 1) Eighteen (18) work days in a thirty (30) day month; and
 - 2) Nineteen (19) work days in a thirty-one (31) day month.
 - c. Has the minimum number of days off in a month as prescribed by Subparagraph 10.G.1, except for the provisions of:
 - 1) Subparagraph 26.JJ (“Proration table”); and
 - 2) Subparagraph 21.J.2 (“Return from LOA proration”).

D. NOTIFICATION OF BIDDING PERIOD FOR MONTHLY RUNS

1. Bidding Period:
 - a. A bulletin announcing the Bidding Period for Monthly Runs shall be emailed to each pilot and posted on the Flight Division website no later than 1700 hours HST on the fourth (4th) day of each month.
 - b. The bulletin shall be posted and the Bidding Period shall remain open until 0800 hours HST on the eleventh (11th) day of each month.
 - c. Bids submitted after 0800 hours HST on the eleventh (11th) day of each month shall not be considered.
 - d. The bulletin shall also include:
 - 1) The inclusive dates of all individual pilot vacations,
 - 2) LOAs (with or without pay),

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- 3) Training (ground, flight or simulator),
- 4) All Flight Groupings for the month,
- 5) As accurate an estimate as possible of all flight time for the month,
- 6) The Average Line Value (ALV) bid construction limits,
 - a) The ALV must be between seventy-four (74) and eighty-four (84) hours; and
 - (1) If any pilot(s) are on furlough, the ALV shall be limited to between seventy-four (74) and eighty (80) hours.
- 7) The monthly ALV window, which shall be between the published ALV minus nine (-9) hours and the published ALV plus seven (+7) hours.
 - a) In no case shall the top end of the monthly ALV window exceed ninety (90) hours unless,
 - b) A pilot who preferences "Over Schedule" shall have a monthly ALV window between published ALV minus nine (-9) hours, and the published ALV plus twelve (+12) hours.
- 8) Initial thresholds for all bidders, which shall be set as follows:
 - a) Pilots bidding with no credit conditions: Threshold equals published ALV
 - b) Pilots bidding "Minimum Credit": Threshold equals halfway (1/2) between published ALV and published ALV minus nine (-9) hours.
- 9) Pilots bidding "Maximum Credit": Threshold equals halfway (1/2) between published ALV and published ALV plus seven (+7) hours. The Published Reserve Number (PRN) for each calendar day, which will be used only during the Bid Award process to establish the minimum number of reserves required for each calendar day in the bid month in each Category, and
- 10) The early, mid, and late RAP start time slots for the month.
 - a) Specific early, mid, or late RAP start time slots will be determined by the Company based on the needs of the service.

E. SUBMITTING OF BIDS

1. Bidding Period:
 - a. The Bidding Period for all Categories shall be from 1700 hours HST on the fourth (4th) day of each month until 0800 hours HST on the eleventh (11th) day of each month.
2. It shall be the responsibility of each pilot to submit a bid in a timely fashion.
3. A pilot shall submit a bid using PBS.
4. Should a pilot submit a bid and then elect to change it, they may do so by submitting a revised bid. The valid PBS bid submission confirmation bearing the latest date shall be honored.
5. Through the PBS bid submission process, any pilot may preference for specific Flight Groupings, specific Trips, days off, Guaranteed Days Off (GDO), work days, minimum or maximum Pay and Credit time, "Over Schedule" Pay and Credit time, Duty Period start, Duty Period end, layovers, and/or destinations. Pilots may also preference for Short Call Reserve, Long Call Reserve, and Mixed Reserve.
6. Notwithstanding any provision to the contrary, a pilot with at least seventy-five (75) hours of awarded vacation in such month, shall not be required to participate in the monthly bid. In this case, such pilot must advise Crew Planning of their election to opt out of such monthly bid prior to the closing of the monthly bid for that month and the pilot shall be awarded no Flight Groupings for that month.

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7. A pilot with awarded vacation in excess of the published monthly ALV window, shall be marked as an ineligible bidder and excluded from the monthly PBS bidding process.

F. STIPULATIONS OF AWARDING AND ASSIGNMENT OF MONTHLY RUNS

1. Bid and Reserve Runs shall be awarded through PBS, however PBS-awarded Reserve Runs may be modified prior to the final award in accordance with Subparagraph 21.G.1.c. In accordance with the terms of Section 21 (Monthly Bidding), a pilot may or may not be awarded their preferences.
2. A pilot shall be awarded a Monthly Run in their active Category Vacancy only.
3. All pilots are required to have a standing monthly bid on file in PBS.
4. In accordance with Subsection 21.K (Preferential Bidding System), all Monthly Runs shall be tentatively awarded to pilots utilizing PBS, subject to the approval of the MEC Scheduling Committee, in accordance with their Seniority, bid preferences, and parameters contained within Subsection 21.K (Preferential Bidding System). The MEC Scheduling Committee shall monitor all awards and resolve conflicts arising from the award process. The MEC Scheduling Committee must either approve the monthly award or state that it is withholding such approval. The MEC Scheduling Committee approval shall not be unreasonably withheld. The MEC Scheduling Committee shall only withhold its approval of a monthly award if that award substantially deviates from the parameters and procedures as contained in Subsection 21.K (Preferential Bidding System). In the event approval is withheld, the MEC Scheduling Committee may appeal their concerns directly to the PBS Work Group (PWG).
 - a. All Monthly Runs shall be posted by 1700 hours HST on the fifteenth (15th) day of each month.
 - b. Two (2) Practice Runs will occur during the process.
5. If a pilot is awarded a Monthly Run with no projected Pay and Credit time or less than seventy-five (75) hours of Pay and Credit time (e.g., Reserve Run, Mixed Reserve run), the first six (6) of such pilot's days off, in order of preference on that pilot's monthly bid, will be awarded as GDOs respecting Subparagraph 21.G.10.d.
6. Award of IRO Groupings
 - a. A First Officer who preferences for a Flight Grouping which has been designated to operate with an IRO crew, may be awarded such Flight Grouping as a First Officer or as an IRO. Alternatively, the Company may elect to award the Flight Grouping to two (2) Captains and one (1) First Officer if the Flight Grouping has been posted to be crewed by two (2) Captains or if there are no First Officers bidding for the Flight Grouping.
 - b. First Officers may bid for regular Flight Groupings or IRO Flight Groupings, however, in the case of insufficient qualified bidders for IRO Flight Groupings, an IRO will not be denied a higher bid preference in order to be awarded or assigned the IRO to an IRO Flight Grouping with a lower preference, or for which they have not preferred.
 - c. In any event, with respect to which pilot will be designated to act as Second in Command of an IRO Crew, Seniority will govern. The Second in Command will generally sit in the FO seat for Takeoff and Landing, with the other FO either in the cabin or cockpit jumpseat at the Captain's discretion.

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7. A pilot must have proof of their COVID-19 vaccination on file with the Company to be awarded, during the PBS process, any flying that requires proof of vaccination.
8. Interisland Airport Reserve Grouping(s)
 - a. Are available for bid through PBS as single calendar day Flight Groupings as follows:
 - 1) Not more than two (2) interisland Airport Reserve Groupings shall be created per calendar day.
 - a) One (1) Airport Reserve Grouping from 05:00 HST to 13:00 HST and one (1) Airport Reserve Grouping Crew from 13:00 HST to 21:00 HST.
 - b. Pilots awarded an interisland Airport Reserve Grouping on their PBS bids will not be awarded Flight Groupings on the next calendar day in which duty starts prior to sixteen (16) hours after the end of the awarded Airport Reserve Grouping.
9. Short Call Reserve
 - a. Awarded after the monthly PBS Bid Run process
 - b. Pilots may bid for early, mid, or late start times, as published per Subparagraph 21.D.1.d.10), for the RAP on the first day in their Reserve block(s).
 - 1) RAP start time slots will be awarded in seniority order of bid preferences.
 - 2) The Company will award a RAP for each subsequent day of Reserve in the pilot's Reserve block.
 - c. The minimum length of a reserve block on an individual pilot's Short Call Reserve Run in a given Month will correspond to the ratio of Flight Grouping durations that Month.

Example: If, in a given Month, sixty (60) percent of the Flight Groupings are two (2) day Flight Groupings, thirty (30) percent are three (3) day Flight Groupings, and ten (10) percent of the Flight Groupings are four (4) day Flight Groupings, then the number of two (2) day Reserve blocks that may occur on an individual pilot's Reserve Run will not exceed sixty (60) percent of the Reserve blocks on that Reserve Run. As well, in the above example, the number of three (3) day (or longer) Reserve blocks that occur on the individual pilot's Reserve Run will be at least thirty (30) percent of the Reserve blocks on that Reserve Run.

 - 1) Excluding the above ratio, single-day Reserve blocks shall only be awarded in special circumstances: for example, in between training periods, or between training and vacation.
10. Long Call Reserve (LCR)
 - a. Awarded after the monthly PBS Bid Run process
 - 1) A minimum of thirty percent (30%) (rounded) of all Reserve Runs in each Category shall be LCR.
 - a) Mixed Reserve pilots with LCR days shall not count towards the thirty percent (30%) of required LCR Reserve Runs each month.
 - 2) The length of Reserve blocks on an individual pilot's Long Call Reserve Run in a given month shall be a minimum of four (4) days on and a maximum of six (6) days on.
11. Mixed Reserve

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- a. Any Reserve pilot who has been awarded or assigned Flight Groupings during the bid award process in Subparagraph 21.F.9 shall be considered a Mixed Reserve Pilot for that month.

G. AWARDING AND ASSIGNING OF MONTHLY RUNS

1. The following process shall be used in the assignment and awarding of Monthly Runs in each Category:
 - a. First, all Bid Runs will be constructed via the PBS award process in accordance with Subsection 21.K (Preferential Bidding System), subject to the following parameters and processes:
 - 1) A PBS solution will not be published unless its ALV is between thirty (30) minutes below the published ALV and sixty (60) minutes above the published ALV.
 - a) If the PBS solution is not within this range, the Company must first adjust the credit window thresholds prior to limiting the number of minimum credit and maximum credit Bid Runs awarded.
 - (1) If the solution produces an ALV that is lower than the published ALV, the Company shall make adjustments in the following order:
 - (a) Adjust the Normal Credit Window threshold
 - (b) Adjust Maximum Credit Window threshold (Max Credit Threshold will not be lower than the Normal window threshold)
 - (c) Adjust Minimum Credit Window threshold (Min Credit Threshold will not be higher than the Normal window threshold)
 - (d) Limit the number of minimum credit Bid Runs awarded
 - (2) If the solution produces an ALV that is higher than the published ALV, the Company shall make adjustments in the following order:
 - (a) Adjust Normal credit window threshold
 - (b) Adjust Minimum Credit window threshold (Min Credit Threshold will not be higher than the Normal window threshold)
 - (c) Adjust Maximum Credit window threshold (Max Credit Threshold will not be lower than the Normal window threshold)
 - (d) Limit the number of maximum credit Bid Runs awarded
 - b) Pilots who have submitted a preference for “Minimum Credit” on their Monthly Runs shall only be assigned unawarded Flight Grouping(s) in reverse order of seniority after all other pilots have been assigned the maximum possible Pay and Credit time for the month.
 - 2) If the steps covered in the above Subparagraph 21.G.1.a.1) do not produce an ALV within the target window, the Company and Association (i.e., the PBS Working Group) will meet to determine mutually agreeable solutions to achieve the published Average Line Value.
 - b. Second, the Company shall award Reserve Runs via the PBS award process in Subsection 21.K (Preferential Bidding System), subject to the following parameters:
 - 1) The Company shall determine how many Mixed Reserve Runs will be awarded following the PBS Bid Run Award process.
 - a) The Company shall adjust the PBS parameters to ensure that the number of Long Call Reserve Runs awarded is no fewer than thirty (30) percent of all awarded Reserve Runs excluding Mixed Reserve Runs in the Category, as determined by the Company per Subparagraph 21.F.11 above.
 - 2) The top fifteen (15) percent (rounded) of awarded reserve pilots will not have a day off request denied during the PBS award process due to the Company’s requirement to staff to the PRN.

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- c. Third, following the PBS award process, the Company may then make any necessary manual adjustments to the PBS-awarded schedules of the awarded Reserve Run pilots, in inverse seniority order, to distribute reserve work days to the extent necessary to meet the PRN.
 - 1) The Company may not make manual adjustments to the top fifteen (15) percent (rounded) of awarded Reserve Run pilots.
 - 2) No Reserve Run pilot shall be denied a day off preference during the bid process to provide reserve staffing in excess of the PRN published by the Company.
- d. Fourth, any remaining Flight Groupings following the PBS award process that could not be constructed into an additional Bid Run line will be assigned, in seniority order, to pilots who have requested Mixed Reserve for that month.
 - 1) During the process of assigning possible Flight Groupings, the Company shall respect all awarded days off.
 - 2) The number of awarded Mixed Reserve Runs shall not exceed the number determined in PWA Subparagraph 21.G.1.b.1).
 - 3) Mixed Reserve Runs shall be built to the highest credit value possible in seniority order among pilots requesting Mixed Reserve.
Example: Two pilots request Mixed Reserve. The most senior pilot requesting Mixed Reserve will receive the maximum credit able to be included in a Monthly Run. The next pilot requesting Mixed Reserve will then be awarded as much credit as possible from the remaining Flight Groupings.
- e. Fifth, if after the process described above, all possible Flight Groupings have been awarded to pilots who have requested Mixed Reserve and additional Flight Groupings still remain, the Company shall assign all possible Flight Groupings to Reserve pilots in inverse seniority order.
 - 1) During the process of assigning any remaining Flight Groupings, the Company shall respect all awarded days off.
 - 2) The number of awarded Mixed Reserve Runs shall not exceed the number determined in PWA Subparagraph 21.G.1.b.1)
 - 3) The most junior pilot will be assigned the maximum amount of credit possible.
Example: After the process outlined directly above is complete, the Company will assign as many remaining Flight Groupings as possible to the most junior Reserve pilot, but no Flight Groupings may be placed on awarded days off. If a remaining Flight Grouping conflicts with the most junior Reserve pilot's awarded day off, that Flight Grouping will be assigned to the most junior Reserve pilot who does not have an awarded day off during the days the Flight Grouping operates.
- f. If at any point in the above processes, the maximum number of Mixed Reserve Runs specified in PWA Subparagraph 21.F.10.a.1).a) is reached, any remaining unawarded Flight Groupings will be published in open time.

H. MINIMUM RESERVE NUMBER (MRN)

- 1. Once the Bid Award process is complete, the Minimum Reserve Number (MRN) for each calendar day will be determined for the month. The MRN shall be calculated as follows:
 - a. The net reserve number for a given calendar day is the number of awarded Reserve pilots for that day, minus the number of uncovered Flight Groupings in open time operating that day.
 - b. The MRN is the net reserve number for that day, reduced by one for every fifty (50) eligible bid pilots in that Category, rounded up to the next multiple of fifty (50).

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Example: There are 15 net reserves following the Bid Award process on a given day, in a Category with 80 eligible bid pilots. The next multiple of 50 above 80 is 100, so the net reserve number will be reduced by two. The MRN will be 13 for that day.

- 1) The net reserve number will not be reduced and the MRN will equal the net reserve number on the following named holidays:
 - a) New Year's Day
 - b) Easter Sunday
 - c) Memorial Day
 - d) Independence Day
 - e) Labor Day
 - f) Thanksgiving Day
 - g) Christmas Eve
 - h) Christmas Day
2. Reserve coverage for each day in the month will be determined by subtracting the number of uncovered Flight Groupings in open time that are operating on a given day from the number of available reserves on that day, and comparing the resulting number of net reserves to the MRN for that day.
 - a. If the number of net reserves exceeds the MRN, the reserve grid on that day will have net positive reserve coverage and be considered "green."
 - b. If the number of net reserves is equal to or less than the MRN, the reserve grid on that day will be "black."

I. PBS DISPUTE

1. In the event a pilot believes that an error or mis-award may have occurred in an award made by the Preferential Bidding System, the pilot may file an inquiry or application for a remedy.
2. Any such inquiry or application must be forwarded by the pilot to the MEC Scheduling Committee. In order to be considered, the inquiry or application must be received by the MEC Scheduling Committee not later than the fourth (4th) day after the day the bid award in question was published.
3. In the event that a pilot inquiry results in the removal of an IOE Flight Grouping from the published bid award of a Check Airmen and such Flight Grouping is re-awarded to a Line Captain, such Flight Grouping shall be assigned to a First Officer in accordance with Subsection 22.G (Unassigned Flying Assignment Process).

J. RETURN FROM LOA PRORATION

1. Any pilot returning from authorized military leave of absence, authorized leave of absence, sick leave, or special assignment that has not been awarded a Monthly Run shall be awarded a new Monthly Run with prorated days off (in accordance with Subsection 26.JJ (Table of Prorated Absences)), prepared by Crew Scheduling.

K. PREFERENTIAL BIDDING SYSTEM

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1. The Company and Association agree that the goals of the PBS System, listed in no particular order, are to generate bid awards that are safe, provide adequate schedule coverage that protects the Company's operation, are cost effective, and enhance the pilot group's quality of life.
2. PBS Work Group
 - a. The PBS Work Group (PWG) will be comprised of the Senior Director of Pilot Planning or their designee, one additional Company representative, the MEC Scheduling Committee Chairperson, and another pilot representative designated by the MEC. Additional Company and/or pilot representatives may be added to the PWG as necessary by mutual agreement between the Company and ALPA.
 - b. The PWG will be responsible for ensuring that PBS is operated effectively; the parties' goals are achieved; Subsection 21.K (Preferential Bidding System) is applied fairly; and disputes, if any, are minimized and resolved. Decision-making within the PWG, and proposed solutions to issues, will be by consensus. Should consensus not be reached, the issue may be appealed to the Vice President of Flight Operations in accordance with Subparagraph 21.K.2.c.
 - c. Disputes arising from the monthly awards will be presented to and resolved by the PWG. Any unresolved disputes may be appealed to the Vice President Flight Operations. Should the Association disagree with the outcome of the appeal on the basis of an alleged violation of the PWA, ALPA retains the right to the grievance process pursuant to the provisions of Section 16 of the Agreement.
 - d. The PWG will meet not less than semi-annually (or more frequently, if necessary) to discuss matters regarding the PBS monthly awards, vendor, and servers.
3. PBS Modifications
 - a. When it becomes necessary to modify an aspect of the PBS bidding process or business specifications (e.g., bidding options, the bidder interface, the bid award logic, hardware and software requirements, and the database, etc.), such modification will not be implemented until it has been tested to the satisfaction of the System Administrator, with participation by, and in consultation with, the MEC Scheduling Committee.
 - b. The PBS vendor will not be changed without consultation with the Association. However, if the Company desires to change vendors, or the current vendor substantially modifies the existing PBS system, the parties will first meet to discuss amendments to this Subsection 21.K (Preferential Bidding System) or to adopt these changes.
4. PBS Administration
 - a. The Company will designate a PBS system administrator. The system administrator, with participation by and in consultation with the MEC Scheduling Committee, will finalize monthly bid awards utilizing the PBS system in accordance with the limitations of the PWA, the provisions of Subparagraphs 21.K.4.b through 21.K.4.g and the objectives specified in Subparagraph 21.K.1.
 - b. The system administrator may, at their option, produce a Bid Run solution that uses the following tools:
 - 1) fill to threshold.

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- 2) Unstack, to a maximum published stack height of ten percent (10%) of the Bid Runs (or three percent (3%) of the Bid Runs in a Category in a Domicile with ten (10) or more daily departures, in the Category, provided that no pilot:
 - a) within the most senior fifty percent (50%) of Bid Runs is unstacked in a Category in a Domicile with ten (10) or more daily departures.
 - b) within the most senior thirty percent (30%) of Bid Runs is unstacked in a Category in a Domicile with less than ten (10) daily departures.
 - c) within the most senior ninety percent (90%) of Bid Runs is awarded a Bid Run through “Secondary line generation” (SLG).
 - 3) force priority stack date on SLG.
 - c. The system administrator may, at their option, produce a Bid Run solution that uses the following settings:
 - 1) a priority stack date, for a date that falls on a holiday.
 - 2) a parameter for minimum reserves in accordance with Subsection 21.I (Minimum Reserve Number) of the PWA.
 - d. The system administrator may, with consent of the PWG, produce a Bid Run solution that uses the following tools:
 - 1) unstack, beyond the limitations of Subparagraph 22.K.4.b.2),
 - 2) shuffle to threshold.
 - e. The system administrator will use the following tools with the consent of the PWG:
 - 1) Shuffle,
 - 2) max trip substitution.
 - f. The System Administrator, with the consent of the PWG, will determine the settings for the following parameters:
 - 1) max iterations;
 - 2) max swap depth;
 - 3) max passes.
 - g. The System Administrator, with the consent of the PWG, will determine whether or not to set the priority stack date for a date that does not fall on a holiday.
5. PBS Definitions
- a. “Denial mode” means a process in PBS that:
 - 1) is performed after PBS is unable to award a pilot a Bid Run consistent with their bid preferences, Seniority, their known absences, the FARs, and the PWA;
 - 2) is utilized after shuffle and prior to SLG, and
 - 3) ignores, one at a time, a pilot’s preference(s) to avoid flying a specified Flight Grouping or a Flight Grouping with specified criteria (e.g., number of Duty Periods in a Flight Grouping, departure time of Flight Grouping, number of flight Segments per Duty Period) or their preference to avoid flying on a specified day, in an effort to award them a Bid Run.
 - b. “Fill to threshold” means a tool in PBS that:
 - 1) is utilized prior to denial mode, and
 - 2) continues to award Flight Groupings to each pilot’s line, if possible, until such line is at or above the threshold.

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- c. “Force priority stack date on SLG means a tool in PBS that ensures a pilot who is awarded a Bid Run during the SLG process is awarded a Flight Grouping that is scheduled to operate on the specified priority stack date.
- d. “Holiday” means any of the following days:
 - 1) New Year’s Day
 - 2) Easter
 - 3) Memorial Day
 - 4) Independence Day
 - 5) Labor Day
 - 6) Thanksgiving Day
 - 7) Christmas Eve
 - 8) Christmas Day
- e. “Holiday Month” means a month that contains a holiday as defined in Subparagraph 21.K.5.d.
- f. “Max iteration” means a parameter in PBS that limits the number of iterations PBS attempts when constructing a Bid Run.
- g. “Max passes” means a parameter in PBS that limits the number of attempts by PBS to award Bid Runs to all pilots in a Category.
- h. “Max reserves” means a parameter in PBS that sets the maximum number of Reserve pilots in a Category allowed on a day or days.
- i. “Max swap depth” means a parameter in PBS that limits the number of Flight Groupings that may be moved among Bid Runs and/or open time in an effort to comply with a pilot’s bid preference.
- j. “Max trip substitution” means a tool in PBS that permits multiple combinations of Flight Groupings to be tested on a pilot’s line that match specific bid preferences in an attempt to construct a Bid Run for the pilot.
- k. “Maximum stack height” means a parameter in PBS that limits a stack after all pilots in the Category are awarded a Bid Run.
- l. “Minimum reserve” means a parameter in PBS that sets the minimum number of Reserve pilots in a Category allowed on a day or days.
- m. “PBS” or “Preferential Bid System” means the bidding system utilized by the Company that enables a pilot to bid for and be awarded an initial Bid Run, based upon:
 - 1) their bid preferences,
 - 2) their Seniority,
 - 3) their known absences,
 - 4) programmed award logic,
 - 5) FARs,
 - 6) the PWA, and
 - 7) Company policy.
- n. “Priority stack date” means a designated date that is unstacked before PBS unstacks any other date.

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- o. “Secondary line generation” (SLG) means the final PBS process, used after shuffle and denial mode, that ignores a pilot’s bid preferences in an attempt to construct a Bid Run for the pilot.
- p. “Shuffle” means a tool in PBS that:
 - 1) is utilized after PBS is initially unable to award a pilot a Bid Run which complies with their higher priority bid preference(s),
 - 2) removes a Flight Grouping(s) which had been awarded in accordance with such bid preference(s) and searches for combinations of Flight Grouping(s) which comply with their lower priority bid preference(s), and
 - 3) is utilized prior to denial mode.
- q. “Shuffle to threshold” means a tool in PBS that utilizes shuffle in an attempt to construct a Bid Run for a pilot that is at or above the threshold.
- r. “Stack” means the number of Flight Groupings on a given day within a bid month that remain in open time after a particular PBS “run” (i.e., an individual PBS solution, not necessarily the monthly bid award).
- s. “System Administrator” means the person designated by the Company who will have the authority to manage the bid award process in accordance with the FARs, PWA, Company Policy and the objectives specified in Subparagraph 21.K.1.
- t. “Threshold” means the target credit value for each Bid Run determined by the Company in each Category in a bid period.
- u. “Unstack” means a tool in PBS that assigns Flight Groupings to pilots in such a way as to prevent a stack that is greater than the maximum stack height.

L. GENERAL

- 1. On the second Monday in February each year, the Company and the pilot members of the MEC Scheduling Committee shall meet to review the schedule block-to-block Segment times as compared to the actual block-to-block Segment times for the previous year to determine realistic average schedule times. Additionally, whenever the Company or the pilot members of the MEC Scheduling Committee desire to review the schedule block-to-block Segment times, a meeting between the Company and members of the MEC Scheduling Committee shall be held within ten (10) days to determine realistic average schedule times.

SECTION 22

SCHEDULING POLICY

A. SCHEDULING POLICY

1. The purpose of the scheduling policy is to promulgate a clear, concise, and complete written statement of the rules, practices, and procedures relative to the scheduling of pilots, and to ensure that all provisions of the Agreement shall be fairly and equitably implemented and uniformly applied to all pilots.
2. The success of the airline depends upon it providing good service by means of an efficient and economical operation. Its pilots are entitled to the best working conditions this Agreement and the Scheduling Policy can provide.
3. Where any rule or provision is not clear, its interpretation and application shall be consistent with the following three (3) principles:
 - a. Neither party shall adopt strained or unreasonable interpretations to evade a duty or an obligation, or to accomplish a purpose that could not otherwise be accomplished.
 - b. Company representatives should recognize that economy and expediency themselves do not justify a departure from applicable rules.
 - c. Except as otherwise provided in this Agreement, a pilot's schedule shall not be changed (including recall or the cancellation of a scheduled day off) when the exercise of reasonable resourcefulness and diligence could or would have prevented such change.
4. The Chief Pilot is responsible for the scheduling of pilots pursuant to the provisions of the PWA.
5. Individual pilots are responsible for obtaining their schedules from Crew Scheduling as set forth in this Section.

B. SCHEDULING PROTESTS

1. When a pilot questions the legality of a flight schedule assigned them by Crew Scheduling, they shall so notify the Scheduling Clerk, after which the following procedure shall be implemented:
 - a. The Scheduling Clerk receiving the verbal protest will immediately review the protested flight schedule with the Director–Crew Scheduling (or designee) in an attempt to resolve the issue.
 - b. In the absence of the Director–Crew Scheduling (or designee), the Scheduling Clerk will contact one of the following management officials in the order listed:
 - 1) Chief Pilot, or
 - 2) Director–Flight Operations; or
 - 3) Vice-President of Flight Operations
 - c. If it is determined that such protested flight schedule is:
 - 1) Legal, the pilot will accept and comply with the protested flight schedule unless relieved therefrom by Crew Scheduling.
 - 2) Illegal, the management official contacted shall promptly relieve the pilot from the protested flight schedule.
 - d. If the pilot is not relieved from the protested assignment and still feels the assignment is illegal, they should file a Scheduling Clarification Request (SCR).

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- 1) SCRs should: :
 - a) Be filed as soon as possible; preferably within seventy-two (72) hours;
 - b) But, not more than seven (7) calendar days after completion of the protested flight schedule.
 - c) Be copied to the Pilots' Scheduling Committee as well as to the pilot for their own records.
- e. The Chief Pilot will make every reasonable effort to investigate the circumstances and legalities of the protested assignment and report in writing to the pilot within seven (7) calendar days after receiving the SCR.
- f. The purpose of filing Scheduling Clarification Requests is to reduce the need for filing grievances and to improve the quality of pilot scheduling.
 - 1) Non-compliance with the seventy-two (72) hour or seven (7) calendar day time limits for submission of an SCR shall in no way affect the pilot's right to grieve any scheduling action by the Company;
 - 2) Nor shall it constitute a modification of the time limits established for filing a grievance as prescribed by Section 16 (Grievances).

C. RESERVES

1. Interisland Airport Reserve:

- a. Airport Reserve pilots must be reasonably available at the airport. Likewise, they should be given a reasonable amount of time in order to perform their preflight duties, generally not less than one (1) hour prior to planned departure. A suitable rest facility will be provided for the exclusive use of the Airport Reserve Crew.
- b. Airport Reserve pilots shall not be required to standby in the pilot lounge provided that they keep Crew Scheduling advised of their whereabouts and are readily contactable by Crew Scheduling at a phone designated by the Airport Reserve pilot or by the pilot's cell phone, or other electronic communication device accessible to Crew Scheduling.
- c. Airport Reserve pilots shall be scheduled to commence a flight assignment(s) within their originally scheduled Airport Reserve Grouping, and be scheduled to complete the flight assignment(s) no later than twelve (12) hours after the start of their Airport Reserve Grouping.
 - 1) A flight assignment is completed when such pilot is released from all duty at their Domicile.
 - 2) If, for any reason, an interisland Airport Reserve pilot has not been released from duty at their Domicile by the end of such pilot's assigned Airport Reserve Grouping, then
 - a) The pilot shall be entitled to the provisions of Subsection 4.D (Pay and Credit for Schedule Changes);
 - b) Such entitlement starts at the end of the assigned RAP and continues until such pilot is released from duty.
- d. Airport Reserve pilots shall not be required to depart their Domicile on any Flight Grouping that is scheduled or rescheduled to return to such pilot's Domicile beyond the end of their assigned Airport Reserve Grouping plus four (4) hours.

2. Short Call Reserve:

- a. Pilots on Short Call Reserve shall only be assigned to Flight Groupings with a report time within fourteen (14) hours.

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- b. Short Call Reserve pilots shall only be contacted by Crew Scheduling during their assigned RAPs.
 - 1) The Company will refrain from notifying pilots of a flight assignment during the WOCL unless required by their respective reporting time.
- c. Short Call Reserve pilots must check out with Crew Scheduling, by telephone, prior to leaving the airport after the completion of their last flight assignment.
- d. In the event a Short Call Reserve pilot fails to acknowledge an assignment or contact Crew Scheduling pursuant to the above provisions of Subparagraph 22.C.2:
 - 1) Crew Scheduling will attempt to contact the pilot by making no more than two (2) separate telephone calls.
 - 2) If the pilot cannot be contacted, the flight will be assigned pursuant to the provisions of the UFAP in Subparagraph 22.G.2.
- e. Crew Scheduling shall document all verbal confirmations of a pilot's flight schedule by annotating the Online Scheduling Access Program.
- f. If a Reserve Availability Period (RAP) is assigned or awarded though Subparagraph 21.F.9.b.1), the Company shall not change the time of the RAP on the first day of a block of Reserve days, but may change future RAP times within that block of Reserve days. (Example: Pilot is awarded an early RAP start on Day-1 of a three-day block of Reserve, and 0800-2000 RAPs for the remaining two days. The pilot's Day-1 early RAP shall not be changed, but during their Day-1 RAP Crew Scheduling can change the pilot's Day-2 RAP to 1000-2200, and change the pilot's Day-3 RAP to 1200-2400.)
 - 1) Short Call Reserve RAPs shall be twelve (12) hours or less.
- g. Pilots on a Short Call Reserve RAP shall be on-call for flight duty only during their scheduled RAP, but shall not be required to standby at home, provided:
 - 1) They keep Crew Scheduling advised of their whereabouts;
 - 2) Are readily contactable by Crew Scheduling; and
 - 3) Are in a position to report for duty within their respective reporting time.
- h. After being notified of an assigned Flight Grouping, a Short Call Reserve shall make every reasonable effort to report for flight duty in an expeditious manner to keep the departure of the flight as close to on time as possible.
- i. The duty hour limitations specified in Subsection 10.D (Duty Periods) shall apply to a pilot on Short Call Reserve when utilized for flight duty.
- j. A pilot on a Short Call Reserve RAP may be released from their RAP at any time, at Company discretion.
- k. In addition, interisland Short Call Reserve pilots shall:
 - 1) Have their flight assignments considered published for Pay and Credit (per Subsection 4.B) at the time of notification. Such assignments must include the assigned Flight Grouping, and all required information contained in Subparagraph 22.K.3 shall be made available to the pilot.
 - 2) Report for flight duty within two (2) hours after receiving notice of a flight assignment;
 - 3) Shall not be required to report for duty earlier than 0500 HST following:

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- a) A single day off; or
 - b) Group of consecutive days off.
 - 4) Shall not be scheduled for a Duty Period ending later than 1900 HST on days preceding:
 - a) Scheduled single day(s) off, or
 - b) Vacation of seven (7) days or more.
 - 5) As an exception to Subparagraphs 22.C.2.k.3) and 22.C.2.k.4), may be scheduled, but not rescheduled or reassigned, provided:
 - a) the Duty Period ends prior to 2200 HST on a day preceding a scheduled single day off, and
 - b) that such pilots shall not be required to report for duty earlier than 0730 HST following such scheduled single day off.
 - 6) For a multiple-day Flight Grouping, be scheduled/assigned (including additional callouts) to complete their first Duty Period within their originally scheduled RAP.
 - 7) For a single-day Flight Grouping, be scheduled/assigned (including additional callouts assigned within the RAP) to be returned to Domicile the same calendar day.
 - a) If, for any reason, an interisland Reserve pilot has not been released from duty at their Domicile by the end of the calendar day, then
 - (1) The pilot shall be entitled to the provisions of Subsection 4.D (Pay and Credit for Schedule Changes);
 - (2) Such entitlement starts at the end of the assigned RAP and continues until such pilot is released from duty.
 - 8) Not be required to depart their Domicile on any Flight Grouping that is:
 - a) Scheduled or rescheduled to return to such pilot Domicile beyond the end of that calendar day; or
 - b) Does not begin a Rest Period (as prescribed by Subsection 10.E (Rest Periods)) within their RAP.
1. In addition, International Short Call Reserve pilots shall:
- 1) Have their flight assignments considered published for Pay and Credit (per Subsection 4.B) at the time of notification. Such assignments must include the assigned Flight Grouping, and all required information contained in Subparagraph 22.K.3 shall be made available to the pilot.
 - 2) Report for flight duty within three (3) hours after receiving notice of a flight assignment;
 - 3) Commence their flight duty assignment within their originally scheduled RAP.
 - 4) Shall not be required to report for duty earlier than 0530 LDT (Local Domicile Time) following:
 - a) Scheduled day(s) off;
 - b) Vacation; or
 - c) ALPA leave.
 - 5) Shall not be scheduled to complete a Duty Period later than 2400 LDT on days preceding:
 - a) Scheduled day(s) off; or
 - b) Vacation.
 - 6) A flight assignment is completed when such pilot is:
 - a) Released from all duty at their Domicile, or
 - b) When such pilot is provided a Rest Period prescribed by Subsection 10.E (Rest Periods).
3. Long Call Reserve (LCR):

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- a. An LCR must be phone available twenty-four (24) hours a day on their Long Call Reserve days until after acknowledging an assignment.
 - b. An LCR must either contact Crew Scheduling or electronically self-notify to acknowledge their assignment within two (2) hours of initial notification. If the pilot will be out of contact for longer than two (2) hours, they shall notify Crew Scheduling in advance with the length of time they are expected to be out of contact.
 - 1) In the event a Long Call Reserve pilot fails to acknowledge an assignment or contact Crew Scheduling pursuant to the above provisions of Subparagraph 22.C.3:
 - a) Crew Scheduling will attempt to contact the pilot by making no more than two (2) separate telephone calls.
 - b) If the pilot cannot be contacted, the flight will be assigned pursuant to the provisions of the UFAP in Subparagraph 22.G.1.
 - c. An LCR shall not receive notification less than fourteen (14) hours prior to the report time for a flight assignment or Short Call Reserve RAP
 - 1) Notification consists of one-way voice contact or voice message.
 - 2) Once acknowledgement of an assignment occurs, the LCR pilot is no longer required to be phone available and shall report for the assignment given.
 - 3) The Company and Association may evaluate and mutually agree to acceptable electronic notification methods in the future.
 - d. An LCR shall not be notified or assigned greater than twenty-four (24) hours prior to the Flight Grouping report time.
 - e. An LCR on the first day of their Long Call Reserve block shall not be given a flight assignment or Short Call Reserve RAP with a report time at their Domicile prior to 14:00 LDT (Local Domicile Time)
 - 1) An LCR shall not be assigned a Short Call Reserve RAP that exists on the first day of a block of Long Call Reserve days.
 - f. A pilot with a Long Call Reserve Run can be converted to a Short Call RAP no more than eight (8) times per pilot during a month (example: one phone call from Crew Scheduling may change 8 LCR days to 8 Short Call Reserve RAPs, or Crew Scheduling may make multiple separate phone calls converting 5 single LCR days to 5 Short Call Reserve RAPs);;
 - 1) The company shall convert pilots to Short Call RAPs in inverse seniority order of LCRs, and
 - 2) Each LCR day converted to a Short Call RAP shall pay one (1) hour of pay no credit above the LCR Minimum Monthly Guarantee, and
 - 3) Interisland Airport Reserve Groupings shall not be assigned to a LCR pilot, even if such LCR pilot has been converted to Short Call Reserve.
4. Mixed Reserve:
- a. A Mixed Reserve Pilot on a reserve day, who has an awarded Flight Grouping the following day(s), may have their schedule modified by the Company, subject to the following conditions:
 - 1) Modifications must be made due to the needs of Reserve coverage.
 - 2) Notification of the modification must occur on a reserve day.
 - 3) Such pilots may be assigned a different Flight Grouping than they had been awarded, or may be assigned a Flight Grouping that starts during that reserve day and which conflicts with, and requires removal from, an awarded Flight Grouping.

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- a) Additionally, the new Flight Grouping can carry outside the Footprint of the originally awarded Flight Grouping, into additional Reserve days or ADOs (subject to Subsection 10.G (Minimum Days off in Domicile) of the PWA), however it may not carry into GDOs.
- 4) Such pilots will be pay protected for the greater of Flight Grouping Pay and Credit subject to Subparagraph 4.B.4 of the PWA.
- b. A Mixed Reserve pilot may not have their schedule modified if the Flight Grouping they have been awarded is not preceded by a Reserve day, unless the new Flight Grouping starts after the original Flight Grouping's report time. The pilot may be offered such a modification, but is not required to accept the modification.

D. RESERVE SCHEDULING

- 1. Reserve Dashboard:
 - a. The Company shall maintain an automated dashboard, visible to any pilot, that shows all Reserves in a bid month, and their current status including:
 - 1) Current status (RAP w/hours, off, LCR, SCR, assigned Flight Grouping, flying Flight Grouping HXXXX)
 - 2) Hours flown
 - 3) Days of availability
 - 4) Position in the callout bucket
 - 5) Fly Me Preferences
- 2. Aggressive Pickup:
 - a. A Reserve pilot may pick up a Flight Grouping in open time provided that:
 - 1) The Flight Grouping been in open time for at least forty-eight (48) hours.
 - 2) The Flight Grouping doesn't exceed the Online Scheduling Access Program limits in Subparagraph 22.I.9.b.
 - 3) If the Flight Grouping will carry into a day off, it cannot create an availability conflict due to FAR or PWA rest illegalities with the pilot's next block of Reserve availability, unless approved at Company discretion.
 - 4) Aggressive pickups may not leave single Reserve day(s) in a Reserve block unless approved by the Company.
 - 5) Aggressive pickup of a Flight Grouping will not be allowed later than report time for the Flight Grouping minus fourteen hours (R-14).
 - b. A Flight Grouping that has been aggressively picked up may be swapped for another Flight Grouping that overlaps the same days (e.g., 2-day may be swapped for a 3-day that starts a day earlier or the same day as the 2-day)
 - 1) Swapping with less than sixteen (16) hours to the earliest report time for the Flight Grouping may not be honored if the swap would result in decreasing the number of Reserve flight assignments or result in earlier departures being uncovered.
 - c. Once picked up, the Flight Grouping may not be dropped.
 - d. Flight Groupings are picked up for Pay and Credit, inclusive of the MMG, per the provisions of Subsection 4.C (Minimum Pay and Credit).
- 3. Fly Me Preference:

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- a. A Reserve pilot, except Mixed Reserve, may select Fly Me Preference days.
 - 1) Specific Fly Me Preference days can be updated at any time via app/website, up until the start of the calendar day prior.
- b. A Reserve pilot who has a Fly Me Preference will move to the top of their respective bucket for assignment of Flight Groupings.
- c. If multiple Fly Me Preference pilots within a bucket are eligible for a specific Flight Grouping, Bucket Assignment Order will be used for purposes of the flight assignment.
- d. A Fly Me Preference may not be honored if it would result in decreasing the number of reserve flight assignments or result in earlier departures being uncovered.

Example: There are two LCR pilots in the four-or-more day bucket. One LCR pilot has five days of reserve availability, 40 hours of projected credit for the month, and has submitted a "Fly Me" preference. The other LCR pilot has four days of reserve availability, 30 hours of projected credit for the month, and no "Fly Me" preference. Open time for that day has two Flight Groupings: a four-day Flight Grouping departing at 1000 LDT and a five-day Flight Grouping departing at 2200 LDT. In this case, honoring the first LCR pilot's "Fly Me" preference would cause that pilot to receive the four-day Flight Grouping. This would reduce the number of flight assignments to reserve pilots that day, as the remaining reserve pilot would have only four days of availability to cover the remaining five-day Flight Grouping. In this case, the "Fly Me" preference would not be honored, so the four-day-availability LCR pilot could be assigned the four-day Flight Grouping, and the five-day-availability LCR pilot could then subsequently be awarded the five-day Flight Grouping.

4. Reserve Callout Order :
 - a. All Reserve pilots shall be divided into "buckets" based on the number of days they have remaining in their current block of Reserve days.
 - b. In addition, there shall be a Landing Currency/Consolidation of Skills (LCCS) bucket:
 - 1) Reserve Run pilots notified per Subparagraph 22.J.11.a shall be placed in the LCCS bucket.
 - 2) Reserves who require consolidation of skills per FAR 121.434 and are within sixty (60) days of the one-hundred and twenty (120) day maximum may be placed in LCCS bucket.
 - c. In each month every Category shall have a LCCS bucket and then one (1), two (2), three (3), and four (4)-or-more day buckets. As needed, the number of buckets may be adjusted by mutual agreement between the Company and Association.
 - d. Within each bucket, excluding the LCCS bucket, the order of callout shall be determined by using the Bucket Assignment Order (BAO):
 - 1) First, a Mixed Reserve pilot on LCR days.
 - 2) Second, a LCR pilot who has a Fly Me Preference for that day
 - 3) Third, a LCR pilot
 - 4) Fourth, a Mixed Reserve pilot on SCR days
 - 5) Fifth, a Short Call Reserve Pilot with a Fly Me Preference for that day.
 - 6) Sixth, a Short Call Reserve pilot
 - 7) In the event there are multiple Reserve pilots that have the same bucket order priority, (e.g., three Short Call Reserve pilots with a Fly Me Preference for a given day), the call out order shall then further be based upon the projected credit value each pilot has at the

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time of callout or notification. Such pilots shall be listed starting with the lowest credit and ending with the highest credit.

- a) If more than one (1) pilot has the same amount of credit (e.g., 0 hours, 25 hours, etc.), then the published order shall be in inverse seniority order.
- e. Uncovered Flight Groupings assigned utilizing the Reserve portion of the UFAP shall be assigned in the following order, subject to the assignment meeting the legalities and requirements of the PWA and the FARs:
 - 1) First, to the pilot in the LCCS bucket who is legal for the Flight Grouping, and closest to losing their qualification status
 - a) Pilots in the LCCS bucket due to the need for landing currency shall not be assigned a Flight Grouping where the open position is the IRO.
 - 2) Second, to the first pilot, per the BAO, in the bucket that matches the number of days covered by the Flight Grouping (e.g., two-day (2-day) Flight Grouping shall be assigned to the first pilot in the 2-day Bucket), and is legal for the Flight Grouping.
 - a) If there are no Reserves available in the bucket that matches the number of days covered by the Flight Grouping, the first pilot in the bucket covering one (1) additional day, respecting all relevant legalities and eligibilities, including RAPs, will be assigned the Flight Grouping (e.g., for a 2-day Flight Grouping when no pilots are in the 2-day Bucket, the first pilot in the 3-day Bucket shall be used). The Company will continue to utilize this process until it is able to cover the Flight Grouping.
 - 3) A Flight Grouping assigned via the bucket covering the longest Flight Grouping in a Category shall always be assigned to the first legal pilot in that bucket regardless of the number of Reserve days remaining in such pilot's block of Reserve days (e.g., a 4-day Flight Grouping shall be assigned to the first pilot in the 4-day Bucket, even if such pilot has six (6) days remaining in their block, while the second pilot in the 4-day Bucket has only four (4) days remaining in their block).
 - 4) An LCR pilot(s) may be skipped, and a Short Call Reserve pilot utilized, for a one-day (i.e., calendar day measured by LDT) Flight Grouping.
- f. Reserve pilots may be skipped assignment of a Flight Grouping, or a Reserve pilot may be assigned and later removed from a Flight Grouping, if another Reserve pilot can protect an on-time departure, reduce a delay, or avoid a cancellation.
 - 1) If assigned and later removed, a Reserve pilot shall be entitled to the Pay and Credit associated with the first Duty Period of the assigned Flight Grouping.
 - 2) The Company must notify Reserve pilots in proper order specified in Subparagraph 22.D.4, but is not required to wait for callbacks or acknowledgment (e.g., electronic means)
 - 3) This process shall only be used in rare circumstances, when the urgent assignment of a Reserve pilot is necessary to protect a departure.
5. Automatic Early Release:
 - a. A Short Call Reserve pilot will automatically be released from their RAP when they have four (4) hours left in their RAP on a day prior to a day off.
 - b. Pilots on LCR will automatically be released from their Long Call Reserve at 0900LDT on a day prior to a day off.
6. Reserve Day Trades
 - a. Short Call Reserve pilots may only trade Reserve days with other Short Call Reserve pilots.

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- 1) Such trades may result in single Reserve days at Company discretion.
 - b. LCR pilots may only trade Reserve days with other LCR pilots and must maintain Reserve blocks of no less than four (4) days, and no greater than six (6) days.
 - c. If a Reserve pilot trades a Guaranteed Day Off (GDO) with another Reserve pilot, the GDO moves with the trade. (e.g., a pilot trades a GDO for a moveable day off loses that GDO and the other pilot gains it.)
7. IROP Interisland Airport Reserve Grouping
- a. The Company may create one (1) additional interisland Airport Reserve Grouping (in addition to the two in Subparagraph 21.F.8.a.1) per Category, per day, due to irregular operations (e.g., weather, mechanical, misconnects, crew availability, etc.), provided:
 - 1) Such interisland Airport Reserve Grouping is limited to a maximum of eight (8) hours starting no earlier than 0500LDT and ending no later than 2100LDT.
 - 2) Such interisland Airport Reserve Grouping(s) may be assigned to a Short Call Reserve pilot only after unsuccessfully being offered via Subparagraph 22.G.2.d (Over 75) and Subparagraph 22.G.2.e and Subparagraph 22.G.2.f (voluntary recall);
 - a) If a Short Call Reserve pilot is assigned such interisland Airport Reserve Grouping, they shall be paid above their Minimum Monthly Guarantee per Subsection 4.N (Over 75).

E. RECALL

1. A pilot shall not be recalled for Reserve duty.
2. Recall from days off:
 - a. Involuntary recall (junior manning) from days off:
 - 1) Shall not alter a pilot's entitlement to the minimum days off in Domicile applicable to the pilot's current Monthly Run
 - 2) That causes a pilot's projected minimum days off to fall below the minimum, shall have such minimum days off replaced as prescribed by Subparagraph 10.G.3 (Replacement Days Off).

F. ASSIGNMENT TO FLIGHT DUTY

1. Interisland Pilots may be assigned to flight duty periods beginning prior to 0430 HST "Earlies" subject to the limitations below:
 - 1) No more than two (2) consecutive Earlies; and
 - 2) No more than four (4) Earlies in any month.
2. A pilot assigned flight duty shall receive notification of their flight schedule prior to departure on their first segment. Such notification will include all information prescribed by Subsection 22.K (Daily Flight Schedule History).
3. The Company shall not require any pilot to exceed ninety (90) hours of pay and credit in any month.

G. UNASSIGNED FLYING ASSIGNMENT PROCESS (UFAP)

1. The UFAP and the Online Scheduling Access Program (22.I) shall be the sole methods of assigning/awarding a Flight Grouping not awarded during the Section 21 PBS Bid Process.

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- a. All uncovered known flying shall immediately be published in open time.
 - 1) The following exceptions allow for known flying to not be published in open time and be assigned outside the provisions of the UFAP:
 - a) For the Captain's seat:
 - (1) Manufacturer or Lessor aircraft acceptance or return flights requiring special training or qualifications.
 - (a) Positioning the aircraft to or from the location of this flight (e.g., flying the plane back to a Hawaiian maintenance base shall not be considered part of the special qualification requirements unless the maneuvers and procedures requiring such qualification are to be performed during that flight.
 - (2) In-flight maintenance procedures that, per the Manufacturer, require special training or qualifications to complete.
 - (3) In-flight maintenance procedures that, per an Accepted or Approved Hawaiian Airlines manual, require the pilot in command to have special training or qualifications to complete.
 - (4) Any Special Flights as defined by Subsection 26.D (Special Flights).
 - (5) A Flight Grouping that previously was awarded to an LCA, for the purposes of conducting IOE, who was subsequently removed from the Flight Grouping.
 - (a) Such Flight Grouping shall only be assigned to a qualified LCA on a Reserve Run, respecting the applicable Subparagraphs in Subsection 22.C (Reserves).
 - b) For the First Officer's seat
 - (1) Manufacturer or Lessor aircraft acceptance or return flights requiring both pilots to be specially trained or qualified.
 - (a) Positioning the aircraft to or from the location of this flight (e.g., flying the plane back to a Hawaiian maintenance base shall not be considered part of the special qualification requirements unless the maneuvers and procedures requiring such qualification are to be performed during that flight.
 - (2) In-flight maintenance procedures that, per the Manufacturer, require both pilots to be specially trained or qualified.
 - (3) In-flight maintenance procedures that, per an Accepted or Approved Hawaiian Airlines manual, require that both pilots have special training or qualifications to complete.
- 2. The Company may remove Flight Groupings from open time and assign them via the UFAP, subject to the Online Scheduling Access Program Limits as defined in Subparagraph 22.I.9.b, as follows:
 - a. First, the Company may, at any time prior to the operation of a Flight Grouping, remove the Flight Grouping from open time and immediately initiate the "recall" process in Subparagraph 22.G.2.e and Subparagraph 22.G.2.f for the Flight Grouping.
 - 1) A Flight Grouping, once removed and subject to recall, may not be placed back in open time or awarded/assigned by means other than the recall process.
 - b. Second, to reassignment of a Bid Run pilot per Subparagraph 22.J.2;
 - 1) Such reassignment shall only occur during the phone notification to the Bid Run pilot of the cancellation (including equipment substitution), illegality, or misconnect of their awarded Flight Grouping (Example: A330 equipment substitution for A321, where the A321 pilot is notified of the substitution but there is no reassignment made, such A321 pilot is now PAYP and cannot be reassigned).
 - c. Third, by assignment to a Reserve Run pilot utilizing the process in Subparagraph 22.D.4.

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- d. Fourth, it shall be offered to a Reserve Run pilot who has opted to give up days off (pay for such Flight Grouping(s) in addition to guarantee per Subsection 4.N (Over 75)) in seniority order. A day off that is given up will not be replaced.
- e. Fifth, to Bid Run and Reserve Run pilots volunteering for recall, in seniority order who are legal in all respects to accept the award without having to be removed from a Flight Grouping(s) or Reserve day(s) (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)).
- f. Sixth, to Bid Run and Reserve Run pilots volunteering for recall in seniority order, who are legal to accept the award, but must be removed from a Flight Grouping(s) or Reserve day(s) to ensure contractual and FAR legality (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)).
- g. Seventh, to Bid Run and Reserve Run pilots volunteering for recall in seniority order, who are legal to accept the award, but must be removed from a vacation day (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)). The pilot's vacation time will be credited back to the pilot's vacation bank (unless the vacation has been pre-paid), subject to all rules in the PWA regarding vacation accrual and use, including without limitation, Subsection 6.D (Minimum Vacation).
- h. Eighth, to I/E pilots volunteering for recall in seniority order, who are legal in all respects to accept the award without having to be removed from an I/E assignment (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)).
- i. Ninth, to I/E pilots volunteering for recall in seniority order, who are legal to accept the award, but must be removed from an I/E assignment to ensure contractual and FAR legality (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)).
- j. Tenth, to recalled Bid Run pilots ("junior-manning") in reverse order of seniority who are legal to accept the award, without having to be removed from a Flight Grouping(s) or Reserve day to ensure all contractual and FAR legality (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)). Not to exceed ninety (90) hours Pay and Credit without pilot consent.
- k. Eleventh, to recalled pilots ("junior-manning") in reverse order of seniority who are legal to accept the award, but must be removed from a Flight Grouping(s) or Reserve day, to ensure all contractual and FAR legality (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)); provided that no Reserve Run pilot is involuntarily recalled on a Guaranteed Day Off (GDO). Not to exceed ninety (90) hours Pay and Credit without pilot consent.
 - 1) Unless specifically stated otherwise, the above provisions will apply "in Domicile" first and then to any Domicile.
- l. Rules for a passenger-Category pilot operating an aircraft in Freight Operations:
 - 1) A passenger-Category pilot will operate under all work rules governing passenger-Category flying
 - 2) A passenger-Category pilot cannot be junior assigned a Freight Flight Grouping
 - 3) A passenger-Category reserve pilot on a Reserve day cannot be assigned a Freight Flight Grouping

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3. A pilot must have proof of their COVID-19 vaccination on file with the Company to be awarded, via the UFAP (including recall), any flying that requires proof of a COVID-19 vaccination.

H. RETURN TO DOMICILE

1. After coordinating with Crew Scheduling, a pilot, at their option, shall be allowed, but not required, to Deadhead back to their Domicile early, if at the end of their scheduled flying, they have no further flight assignments other than their scheduled Deadhead. Such pilot shall:
 - a. Be Paid and Credited as if they Deadheaded as originally scheduled.
2. Such pilot shall be available to be scheduled in accordance with the UFAP only after Subparagraph 22.G.2.e and before Subparagraph 22.G.2.f, until such time as the pilot was originally scheduled to return, at which time such limitation shall be removed.

I. ONLINE SCHEDULING ACCESS PROGRAM

1. Drop: On a first-come, first-served basis, Bid Run pilots may drop Flight Groupings from their schedules into open time if, at the time of the request:
 - a. The request time is greater than report time for the Flight Grouping minus sixteen hours (R-16), and
 - b. All the days in the Flight Grouping are green (per Subsection 21.H (Minimum Reserve Number)), and
 - c. Their Pay and Credit for the month shall not go below fifty (50) hours.
2. Add: Notwithstanding the provisions of Subparagraphs 22.G.2.e, and 22.G.2.f, pilots desiring additional Pay and Credit time shall request Flight Groupings via the Online Scheduling Access Program ("the Program") as follows:
 - a. After the bid award is published, Bid Run pilots may request Flight Groupings that are in open time. All such requests will be processed in real time on a first-come, first-served basis, via the program once the open time window for that month commences.
 - b. Reserve Run pilots may aggressive pick-up Flight Groupings in accordance with the provisions of Subparagraph 22.D.2.
3. Swap: Pilots may drop a Flight Grouping(s) from their current schedule in exchange for a Flight Grouping(s) from open time.
 - a. Bid Run pilot swaps shall be approved if, at the time of the request the report time for the dropped Flight Grouping is greater than sixteen hours (R-16) in the future.
 - 1) Swapping with less than sixteen (16) hours to the earliest report time for the Flight Grouping may be honored if the swap would not result in decreasing the number of reserve flight assignments and not result in earlier departures being uncovered.
 - b. Reserve Run pilot swaps are only allowed per Subparagraph 22.D.2.b.
 - c. The swap will not bring the pilot below fifty (50) hours of Pay and Credit.

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- d. All the days in the Flight Grouping are green (per Subsection 21.H (Minimum Reserve Number))
 - 1) However, if the cumulative net coverage of all Flight Grouping days being dropped is greater than the cumulative net coverage of all Flight Grouping days being acquired, the swap will be approved regardless of the color of the days covered by the Flight Grouping being dropped.

Example 1: A pilot has a three-day Flight Grouping, with coverage on each day of -2, -2, and +1. The pilot requests to swap for a three-day Flight Grouping with coverage on each day of -1, -5, and -1. This swap would be approved, as the cumulative net coverage of the original Flight Grouping (-3) is greater than the cumulative net coverage of the requested Flight Grouping (-7).

Example 2: A pilot has a three-day Flight Grouping, with coverage on each day of -2, -2, and +1. The pilot requests to swap for a three-day Flight Grouping with coverage on each day of -1, -3, and +3. This swap would be denied, as the cumulative net coverage of the original Flight Grouping (-3) is less than the cumulative net coverage of the requested Flight Grouping (-1).

Example 3: A pilot has a three-day Flight Grouping, with coverage on each day of -2, -2, and +1. The pilot requests to swap for a two-day Flight Grouping with coverage on each day of -1, and -5. This swap would be approved, as the cumulative net coverage of the original Flight Grouping (-3) is greater than the cumulative net coverage of the requested Flight Grouping (-6).

Example 4: A pilot has two (2) two-day Flight Groupings, with daily coverage of -2 and -2 on the first Flight Grouping and -1 and 0 on the second Flight Grouping. The pilot requests to swap those two Flight Groupings for a five-day Flight Grouping with coverage on each day of -1, -2, -3, -3, and -3. This swap would be approved, as the cumulative net coverage of the original Flight Grouping (-5) is greater than the cumulative net coverage of the requested Flight Grouping (-12).

- 4. Trades: May not bring either pilot below thirty-seven and one-half (37.5) hours.
 - a. Two-sided Trade: (2) Bid Run pilots may exchange Flight Groupings from their schedules. Such trades shall be approved, if at the time of the request:
 - 1) The earliest report time for either Flight Grouping is greater than sixteen hours (R-16) in the future.
 - b. One-Sided Trade: One (1) Bid Run pilot may pick up a Flight Grouping from another Bid Run pilot (with their concurrence) for no Flight Grouping in return. Such one-sided trades shall only be allowed through an online trade board on a first-come, first-served basis. The intent of this provision is to allow a pilot to drop a Flight Grouping that they would otherwise not be able to drop due to minimum staffing. It is not intended for senior pilots to bid for Flight Groupings in order to drop them to junior pilots who could not otherwise hold them. If the MEC feels at any time that this provision is being abused, it may at its sole discretion direct that this function of the Program be disabled.
 - 1) The earliest report time for the Flight Grouping is greater than sixteen hours (R-16) in the future.

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- c. Segment Trade: Bid Run pilots may trade individual segments of a Flight Grouping with another Bid Run pilot. If such original Flight Grouping provided a hotel room, such room shall be provided to the pilot operating the returning segment of the Flight Grouping unless otherwise agreed by the pilots. In the event the pilot scheduled to operate the return Segment elects not to stay at the crew hotel, such pilot shall provide Crew Scheduling with a contact telephone number. A Segment trade on its own shall not generate payment of a rig (e.g., MDG, Trip Rig, etc.) for either pilot.
 - 1) The earliest report time for either Flight Grouping is greater than sixteen hours (R-16) in the future.
 - 2) To the extent that a Segment Trade transactions result in a pilot's Flight Grouping starting or terminating away from their Domicile, such pilot is responsible for any additional transportation needed for positioning to or from the Flight Grouping on their own time.
 - d. In Domicile Close in Trade: Pilots may trade a Flight Grouping with another pilot up to report time of the Flight Grouping minus three hours (R-3) of the earliest reporting Flight Grouping.
 - 1) Reserve Run pilots must comply with the additional restriction in Subparagraph 22.D.6.a.
 - e. Jetway Trade: Pilots may trade a Segment with another pilot that may be initiated up until report time of the Segment minus three hours (R-3) of the earliest reporting Segment, as long as the original pilot remains in position until the replacement pilot arrives for a face-to-face handoff at report time. A Segment trade on its own shall not generate payment of a rig (e.g., MDG, Trip Rig, etc.) for either pilot.
- 5. Pop-up Vacation: Requests for pop-up vacation pursuant to Subsection 6.I (Pop-Up Vacation) of the Agreement shall be processed via the Program. Such requests shall be considered on a first-come first-served basis. All such requests shall be awarded, up until two (2) days prior to the first day requested, if all the days covered by the request are green (per Subsection 21.H (Minimum Reserve Number)). Such pop-up vacation shall be paid on a Flight Groupings-missed basis or at four and seventeen hundredths (4.17) hours per day for a Reserve day.
 - 6. Trade Board: The Program shall provide pilots with the opportunity to openly post requests for trip trades online on the Trade Board. A pilot who wishes to agree to trade shall be able to initiate the trade online through the Trade Board.
 - 7. Subparagraph 10.G.2 Waiver: Pilots shall be able to execute online through the Program their option to waive all minimum days off per Subparagraph 10.G.2 of the PWA.
 - 8. Pay Protected Days (PAYP):
 - a. Pilots may utilize the Online Scheduling Access Program for additional Pay and Credit on top of PAYP days.
 - 1) The PAYP Pay and Credit shall be retained by the pilot.
 - b. Pay and Credit shall be per Subsection 4.R (PAY PROTECT)
 - 9. General provisions of the Online Scheduling Access Program
 - a. Unless otherwise provided in the Agreement, requests for any transaction pursuant to Subsection 22.I (Online Scheduling Access Program) shall be denied if:
 - 1) Such request does not conform to the FARs or applicable provisions of the PWA, or

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- 2) A pilot does not have proof of their COVID-19 vaccination on file with the Company, and the flying requires the pilot to have a COVID-19 vaccination.

b. Transactions conducted via the Program:

- 1) Online Scheduling Access Program Limits:

*The 30 hr rest buffer would apply when rest is applied in Domicile in accordance with FAR 117.25.b

Federal Air Regulation Limits	Online Scheduling Limits
100 Flt hrs within 672 hrs 117.23.b.1	98 Flt hrs within 672 hrs
1000 Flt hrs within 365 days 117.23.b.2	990 Flt hrs within 365 days
60 FDP hrs within 168 hrs 117.23.c.1	58 FDP hrs within 168 hrs
190 FDP hrs within 672 hrs 117.23.c.2	180 FDP hrs within 672 hrs
30 hrs of rest within 168 hrs 117.25.b	31 hrs of rest within 168 hrs

- c. All add, drop, swap, and trade requests will be submitted through the Online Scheduling Access Program. In the event that the Online Scheduling Access Program is not working, or is incapable of handling the type of transaction requested, a pilot may call the Online Access Scheduling Program Crew Scheduling Desk.
- d. If Crew Scheduling denies an add, swap, or trade request they must include one of the following reasons in the denial notes (if denial caused by FAR or PWA illegality, the actual illegality will be listed):
- Flight Grouping was awarded to another pilot who requested the Flight Grouping prior to yourself, or
 - FAR illegality (i.e., 100/672, 30/7, 60/168), or
 - PWA illegality (i.e., domicile rest), or
 - Insufficient Reserves on dates.
- e. Inadvertent Publication of a Flight Grouping:
- If a Flight Grouping is inadvertently published in open time, the Company is permitted to remove the Flight Grouping from open time only if such removal is done within one (1) hour of the inadvertent publishing.
 - If a Flight Grouping request shows “pending” or “processing” in the Online Scheduling Access Program at the time of removal from open time, the Company will make its best effort to verbally notify the pilot of the Flight Grouping removal and their request denial.
 - If the Company denies a pilot’s Online Scheduling Access Program request involving an inadvertently published Flight Grouping after it has been published for more than one (1)

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hour or more, the first pilot to have requested the inadvertently published Flight Grouping shall receive Pay Protection for the Flight Grouping.

- 3) If an inadvertently published Flight Grouping is awarded via the Online Scheduling Access Program the pilot shall receive Pay Protection if subsequently removed from the Flight Grouping.

f. Regarding Pending de-qualification status:

- 1) The Company will ensure that no pilot will be precluded (except per Subparagraph 22.I.10) from executing any functions of the Online Scheduling Access Program as a result of a pending de-qualification issue (including, but not limited to, any FAR issue related to a pending line check, medical certification, or landing currency). In such circumstances, the Online Scheduling Access Program will protect and hold the request as “pending” and flag it for prompt attention by Crew Scheduling. The Company will then manually approve all Online Scheduling Access Program actions that are otherwise permissible under the PWA. All crew schedulers will be authorized and directed to promptly grant approval overrides in these circumstances.
- 2) The Company will make its best efforts to establish and implement a long-term solution that allows for automatic processing of such requests without the need for action by the crew scheduler.

10. Online Scheduling Access Program usage for NQ Pilots:

- a. NQ Pilots may utilize the Online Scheduling Access Program for any schedule changes prior to Flight Grouping removal due to NQ Pilot status.
- b. NQ Pilots may not utilize the Online Scheduling Access Program for schedule changes affecting the period prior to their scheduled NQ Training after email notification of NQ Pilot status and Flight Grouping removal during the seventy-two (72) hour window.
- c. NQ Pilots may utilize the Online Scheduling Access Program, at any time, for schedule changes affecting the remainder of the month after their scheduled NQ Training.

11. The Company shall share analytics with the Association on a monthly basis, including any reductions(s) in the number of error code exceptions that hold for manual processing, server uptimes, and any improvements or changes to the system.

J. IRREGULARITIES

1. Changes in pilot schedules.

- a. The Segments of any Bid or Reserve Run pilot may be changed to accommodate the requirements of the daily flight schedule.
- b. The originally scheduled daily departure and arrival times, as they appear on the Monthly Run of a Bid Run pilot or assigned for a Reserve Run pilot, may be extended pursuant to the provisions of Subsection 4.D (Pay and Credit for Schedule Changes).

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- c. Pay and Credit shall be as specified in Subsection 4.D (Pay and Credit for Schedule Changes).
- d. In the event of cancellations or other irregularities, as much advance notice as possible will be provided to enable the pilot to:
 - 1) Obtain proper rest in preparation for the flight, and
 - 2) Report within the proper time limitations.
- 2. Cancellation of (including equipment substitution), illegality for, or misconnection within a published Flight Grouping.
 - a. If a Bid Run pilot's published Flight Grouping or Segments are cancelled for any reason (including equipment substitution), or if that pilot is illegal to take a Flight Grouping or Segment due to a previous delay, or if they miss a connection within a Flight Grouping:
 - 1) The Company may schedule the pilot for a make-up Flight Grouping or Segment(s) only at the time of notification of the cancellation, illegality for, or misconnection, so long as at least part of the make-up Flight Grouping or Segment(s) occurs within the Footprint of the originally scheduled Flight Grouping. In no event may the number of work days exceed the provisions of Subparagraph 21.C.2.b.
 - 2) Pay and Credit for such schedule change(s) shall be:
 - a) The actual time flown or the time scheduled to be flown, whichever is greater; or
 - b) The scheduled time of the cancelled Segment(s) or the Pay and Credit time for any make-up Segment(s) assigned by the Company, whichever is greater; or
 - c) The minimum daily guarantee; or
 - d) The greater of Subparagraph 22.J.2.a.2).a), 22.J.2.a.2).b), or 22.J.2.a.2).c).
 - e) Paid and Credited in accordance with the provisions of Subsection 4.D (Pay and Credit for Schedule Changes).
 - 3) Pay and credit for schedule changes that occur partially outside the Footprint of the original scheduled Flight Grouping shall be calculated per Subparagraph 22.J.2.a.2), and, in addition, the pilot shall receive minute-for-minute pay no-credit for the portion of the make-up Flight Grouping or Segment(s) which falls outside the Footprint of the originally scheduled Flight Grouping.
 - b. The Company must compensate a Reserve Run pilot, in accordance with Subsection 4.D (Pay and Credit for Schedule Changes) for any assigned (verbal or written) Flight Grouping that is cancelled.
- 3. Emergency In Domicile Reassignment (EIDR)
 - a. Shall only apply to A321, A330, and B787.
 - b. EIDR may only be assigned to a pilot within three (3) hours of scheduled departure time for the reassigned flight.
 - c. A pilot with a hardship can appeal to the Chief Pilot (or designee) who will give due regard to the pilot's circumstances.
 - d. The Company will strive to assign an EIDR that returns the pilot to their Domicile within twenty-four (24) hours after the pilot's originally scheduled Footprint.
 - e. In the case of Reserve pilots, the existing terms of the PWA shall apply.

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- f. The Company may not reassign a pilot into a vacation day without the pilot's consent, in accordance with Subparagraph 6.K.6.
 - 1) If the pilot consents to the reassignment, any impacted vacation days shall be redeposited in the pilot's vacation bank.
- g. A Reassignment that results in a pilot dropping below minimum days off pursuant to Subparagraph 10.G.1. will have those days off replaced pursuant to Subparagraph 10.G.3.
- h. The Company shall notify the Association immediately any time an ODR occurs within an EIDR.
- i. Within four (4) days following an EIDR, the Company shall provide an email report to the Hawaiian Airlines Master Executive Council Chairperson (or designee.) The email report shall contain, but not be limited to, the following:
 - 1) the date and time of the EIDR, and
 - 2) the affected Flight Grouping(s) and pilot(s), and
 - 3) the circumstances necessitating the EIDR, and
 - 4) the time at which the Company became aware of the need, and
 - 5) Pay and Credit for the pilot(s), if an ODR occurs within the assigned EIDR.
- 4. Emergency In-Domicile Reassignment from Deadhead to Operate (EIDRDO) must only occur as a necessary measure to protect against delays and cancellations to ensure on time performance.
 - a. The Company shall utilize the UFAP up until three (3) hours prior to the scheduled departure time of the reassigned flight Segment prior to making an EIDRDO.
 - b. Subparagraph 22.J.4 shall apply to Bid Run pilots only. In the case of Reserve pilots, the existing terms of the PWA apply.
 - c. An EIDRDO may only be assigned to a pilot within three (3) hours of scheduled departure time of the reassigned flight Segment.
 - d. The EIDRDO reassigned flight Segment must be the same routing (i.e. HNL-OGG) as the originally scheduled Deadhead Segment.
 - e. The EIDRDO reassigned flight Segment shall not be scheduled to depart earlier than the originally scheduled Deadhead departure time unless the pilot consents to an earlier departure.
 - f. This Subparagraph 22.J.4 only applies to the A321, A330, and B787 Categories.
 - g. If a pilot is not expecting to utilize the originally scheduled Deadhead, the pilot is required to notify Crew Scheduling of such intent through a procedure to be determined by the Company. A pilot who notifies Crew Scheduling of such intent shall not be assigned an EIDRDO, unless the pilot consents to the EIDRDO.
 - h. The Company will provide an email report to the Hawaiian Airlines Master Executive Council Chairperson (or designee) for each EIDRDO within four (4) days of the occurrence. The email will contain, but not be limited to the following:
 - 1) the date and time of EIDRDO,
 - 2) the affected Flight Grouping(s) and pilot(s),
 - 3) the circumstances necessitating the EIDRDO

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5. Out of Domicile Reassignment

- a. A reassigned pilot shall be eligible for minute-for-minute (MFM) pay in Subparagraph 4.D.2.b.4) of the PWA when the pilot's release from duty in the pilot's Domicile occurs later than the end of the Footprint of their originally scheduled Flight Grouping plus eighteen (18) hours.
- b. If an International Reserve pilot has a scheduled day off impacted by a Reassignment, the provisions of Subparagraph 4.D.2.b.4) and Subparagraph 22.J.5 shall apply as if the pilot were an International Bid Run pilot.
- c. The Company may not reassign a pilot into a vacation day without the pilot's consent, in accordance with Subparagraph 6.K.6.
 - 1) If the pilot consents to the reassignment, any impacted vacation days shall be redeposited in the pilot's vacation bank.
- d. A Reassignment that results in a pilot dropping below minimum days off pursuant to Subparagraph 10.G.1 will have those days off replaced pursuant to Subparagraph 10.G.3.
- e. If, as a result of a Reassignment of any part of a Flight Grouping ("Grouping #1"), the pilot must be removed from a subsequent scheduled Flight Grouping ("Grouping #2"), then the pilot shall receive:
 - 1) for any directly impacted segment(s), the greater of:
 - a) the Reassignment Pay and Credit (i.e., the reassigned segment from Grouping #1); or
 - b) the original Pay and Credit (i.e., the directly impacted segment(s) from Grouping #2);and
 - 2) full Pay and Credit for the remaining segment(s) of Grouping #2.
- f. Once a pilot arrives at the pilot's Domicile, the pilot shall be immediately released from all further duty, unless:
 - 1) The Out of Domicile Reassignment occurs during the first Duty Period of a Flight Grouping, and
 - 2) The Out of Domicile Reassignment only contains Interisland Flying and/or Interisland Deadheading prior to the pilot's arrival and transit through Domicile, and
 - 3) The reassigned pilot does not transit their Domicile more than once during the first Duty Period of the Flight Grouping, and
 - 4) No Reserve pilot in Category is available in the pilot's Domicile (e.g., the Reserve pilot is able to report for a flight assignment in Domicile to replace the Out of Domicile Reassignment pilot without causing the Delay of a flight).

6. Delayed Flights (pilot at their Domicile):

- a. Whenever possible, a pilot, at their Domicile, will be removed from any delayed Flight Grouping or Segment(s) that would cause the pilot to be removed from another Flight Grouping on their Bid Run.
- b. A pilot, at their Domicile, who has reported to the airport for their Flight Grouping:
 - 1) Will be removed from the Flight Grouping, if the first Segment is or will be, delayed more than eight (8) hours from its originally scheduled departure time; however,
 - 2) If the pilot requests and uses a suitable single room hotel accommodation or single day hotel room located at the airport (at Company expense) during the delay, such pilot will be

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removed from the Flight Grouping, if the first Segment is or will be, delayed more than ten (10) hours from its originally scheduled departure time.

- 3) The pilot will be removed from the Flight Grouping as soon as possible; however, such notification must comply with Subparagraph 10.E.5.
- c. A pilot, at their Domicile, who has not reported to the airport for their Flight Grouping will be removed from the delayed Flight Grouping dependent on the newly projected duty time of the first Duty Period in accordance with the schedule below:

<u>Duty Time</u>	<u>Removal from Flight Grouping</u>
Less than 8 hours	12-hour delay
8 to 10 hours	10-hour delay
More than 10 hours	8-hour delay

- 1) The length of delay (in the above schedule) is based on the originally scheduled departure time.
 - d. Such delayed pilot, at their Domicile, may only be used to fly their original delayed Flight Grouping. Any other flying utilizing this pilot may be accomplished only pursuant to the provisions of Subsection 22.G (Unassigned Flying Assignment Process) and/or Subsection 22.E (Recall).
 - e. The provisions of Subparagraph 22.J.6 are in addition to and not offset by any other provisions of the Agreement that require the Company to remove a pilot from their Flight Grouping. Other provisions of the Agreement include, but are not limited to, Guaranteed Days off (GDO).
7. When an airplane is ferried to replace a disabled aircraft:
 - a. The regular crew of the disabled aircraft will utilize the replacement aircraft to continue with their originally scheduled Flight Grouping, provided existing regulations and agreements permit.
 - b. The ferry crew will remain with the disabled aircraft to ferry it to the base or to fly a Segment(s) as directed by Dispatch.
 8. Consolidation of Flights.
 - a. When two flights are consolidated, the flight number used on the consolidated flight determines the operating crew.
 - b. If the flight numbers are changed:
 - 1) The flight will be offered in seniority by Category to the senior pilots;
 - 2) And if the senior crewmembers refuse; then, the flight is assigned by Category to the junior pilots.
 9. The Company agrees that any pilot in transition from a Reserve Run month to a Bid Run the next month shall:
 - a. If such pilot is required to fly any Segments that infringed upon their Bid Run, be Paid and Credited for the Bid Run Flight Groupings missed or for what they actually flew, whichever is greater.

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- b. If such infringement reduces the pilot's days off below the minimum required by Subparagraph 10.G.1, then the following will occur:
 - 1) Such minimum days off must be replaced in that same month.
 - 2) The assignment of replacement days off shall be as prescribed by Subparagraph 10.G.3.
 - 3) Application of Subparagraph 10.G.3 shall not cause the pilot to be Paid and Credited for the month with less time than they were awarded on their original Bid Run.

10. IRO Reserves

- a. In the event it becomes necessary to cover the IRO crew position for a Flight Grouping subject to the provisions of this Section 22 (Scheduling Policy), the award or assignment will be made in accordance with the provisions of this Section 22 (Scheduling Policy) from among those First Officers who would otherwise be available for the award or assignment. Should there be no such available and qualified First Officers, the Company may assign a Captain in accordance with the provisions of this Section 22 (Scheduling Policy).

11. NQ Pilot Scheduling

- a. The Company shall notify a pilot within twenty-one (21) days of becoming an NQ pilot due to FAR 121.439 (Pilot Qualification: Recent Experience).
 - 1) At which time, Reserve Run pilots shall be placed in the landing currency/consolidation of skills bucket per Subparagraph 22.D.4 for assignment via the UFAP.
 - 2) Bid Run pilots, with at least forty-eight (48) hours notice, may be removed from a Flight Grouping and assigned simulator training within the Footprint of the Flight Grouping they are scheduled to operate, in order to retain qualifications per FAR 121.439 (Pilot Qualification: Recent Experience).
- b. A pilot whose qualification status lapses due to their FAA medical certification shall not have the NQ Pilot scheduling procedures in this Subparagraph applied to their Bid Run or Reserve Run.
- c. A pilot whose qualification status lapses due to a failure to complete their CQDL shall be removed from service without pay, unless the failure to complete was not within the pilot's control.
- d. A pilot who is deemed to be an NQ Pilot on the first day of the upcoming calendar month shall have their upcoming month's Bid Run or Reserve Run modified within the last seventy-two (72) hours prior to the start of the bid month ("72-hour window"), as follows:
 - 1) An NQ Pilot with no NQ Training previously scheduled, or being assigned during the 72-hour window:
 - a) May be removed from all Flight Groupings, however they shall be removed from each Flight Grouping no later than ninety-six (96) hours prior to the report time for each such Flight Grouping;
 - b) Shall be removed from all Reserve days with NQ PayP per Subsection 4.Q (NQ PAY PROTECTION).
 - 2) An NQ Pilot with NQ Training scheduled during the month shall be removed from all Flight Groupings or Reserve days prior to the NQ Training with NQ PayP per Subsection 4.Q (NQ PAY PROTECTION).
 - 3) Flight Groupings or Reserve days after scheduled NQ Training shall not be removed.
 - 4) Removed Flight Groupings shall immediately be made available as open time in the Online Scheduling Access Program.
 - 5) Reserve pilots shall not have existing days off moved during this process.

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- 6) Pilots shall be sent email notification during the 72-hour window of their NQ Pilot status and any NQ PayP removal.
 - 7) NQ PayP cannot subsequently be removed or replaced with any Flight Groupings other than those required as part of NQ training.
 - 8) An NQ pilot that is a Reserve Run pilot, that completes NQ training in accordance with Subsection 9.R (NQ Training) to regain qualification/currency, may have subsequent Reserve days restored.
- e. A pilot who has NQ Training published on their Bid Run will not be entitled to any Premium Pick-Up Pay for Flight Groupings that commence after the 72-hour window and are then subsequently removed with NQ PayP during the 72-hour window.

K. PREMIUM PICK-UP PAY (PPU)

1. A pilot shall be eligible for Premium Pick-up Pay, per Subsection 4.P (Premium Pick-up Pay), when they add a Flight Grouping using the Online Scheduling Access Program that has been coded by the Company as being a Premium Pick-up Pay Flight Grouping. A Premium Pick-up Pay Flight Grouping shall only be published in the Online Scheduling Access Program greater than seventy-two (72) hours in advance of the Flight Grouping report time.
 - a. Once the Company has coded a Flight Grouping as Premium Pick-up Pay, the Company is prohibited from removing the Premium Pick-up Pay except in the following:
 - 1) A Flight Grouping that is picked up and coded to receive Premium Pick-up Pay and then subsequently traded to another pilot will lose its Premium Pick-up Pay coding. If a Segment or Segments of the Flight Grouping are traded to another pilot, those Segments will no longer have a Premium Pick-up Pay coding, although the Segments retained by the pilot who originally picked up the Flight Grouping will still be coded to receive Premium Pick-up Pay.
 - 2) A pilot who picks up a Flight Grouping that is coded to receive Premium Pick-up Pay shall not be entitled to the Premium Pick-up Pay if the pilot is removed from a Premium Pick-up Pay Flight Grouping for Sick Leave, Vacation, ALPA Flight Pay Loss, Emergency Leave, Military Leave, NQ PayP per Subparagraph 22.I.10, and any other removal initiated by the pilot. In those cases, the pilot shall be Paid and Credited per the current PWA language pertaining to those Sections. However, if such Flight Grouping is removed from the pilot's schedule by the Company, for any reason other than those listed in this Subparagraph, the Premium Pick-up Pay coding shall remain.
 - b. Premium Pick-up Pay shall be calculated after the completion of the Flight Grouping so as to be applied to the correct "greater of" provision per Section 4.
 - c. A pilot who adds a Flight Grouping that is coded for Premium Pick-up Pay may subsequently swap (per Subparagraph 22.H.3) for another Flight Grouping that is also coded for Premium Pick-up Pay, and shall receive Premium Pick-up Pay for the new Flight Grouping.

L. DAILY FLIGHT SCHEDULE HISTORY (DFSH)

1. The Company shall be responsible for the creation of the DFSH..
2. A separate DFSH will be issued for each aircraft fleet.

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- a. Each DFSH will include all flights that departed on the previous calendar day (local departure time) for that specific fleet of aircraft (e.g. B717, A321, A330, B787)
3. Further, the DFSH will include the following:
 - a. Date;
 - b. Type of Equipment;
 - c. Flight Number;
 - d. Each pilot assigned to Flight Grouping(s) to which assigned;
 - e. Names of all pilot and their respective positions;
 - f. Names of all pilots "Deadheading" under Company orders;
 - g. The time of arrival for all Segments
 - h. How the Flight Grouping was assigned:
 - 1) Bid Run
 - 2) Reserve (LCR, Short Call)
 - 3) OV75
 - 4) Recall
 - 5) Reassignment
 - i. Changes made pursuant to the provisions of:
 - 1) Subsection 4.D (Pay and Credit for Schedule Changes);
 - 2) Subsection 21.J (Modification of Awards).
4. The Daily Flight Schedule History will be posted not later than 1800 LDT (Local Domicile Time) on the day following the day on which the schedule was flown. For the purposes of this Subparagraph 22.K.4, "posting" shall mean the distribution through e-mail copy to:
 - a. Hawaiian Airlines Pilot's Flight Crew Information System (ALPA electronic bulletin board);
 - b. MEC Office;
 - c. Hawaiian Airlines Flight Division Website.
5. The DFSH shall be available for printout by individual pilots.

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SECTION 23

UNION SECURITY

A. COLLECTIVE BARGAINING SERVICE CHARGE

1. Each employee of the Company covered by this Agreement who fails to voluntarily acquire or maintain membership in the Association shall be required, as a condition of continued employment, beginning thirty (30) days after the effective date of this Agreement or thirty (30) days after the completion of their probationary period, whichever is later, to pay to the Association each month a service charge as a contribution for the administration of this Agreement and the representation of such employee. The service charge for the first month shall be in an amount equal to the Association's regular and usual monthly dues, and for each month thereafter.
2. If any employee of the Company covered by this Agreement becomes delinquent in the payment of their service charges or membership dues, the Association shall notify such employee by registered mail, return receipt requested, copy to the Vice President-Flight Operations of the Company, that they are delinquent in the payment of such service charge or membership dues as specified herein and is subject to discharge as an employee of the Company. Such letter shall also notify the employee that they must remit the required payment within a period of fifteen (15) days or be discharged.
3. If, upon the expiration of the fifteen (15) day period, the employee still remains delinquent, the Association shall certify in writing to the Vice President-Flight Operations, copy to the employee, that the employee has failed to remit payment within the grace period allowed and is therefore to be discharged. The Vice President-Flight Operations shall thereupon take proper steps to discharge such employee from the service of the Company.
4. A grievance by an employee who is to be discharged as a result of an interpretation or application of the provisions of Section 23 (Union Security) shall be subject to the following procedures:
 - a. An employee who believes that the provisions of Section 23 (Union Security) have not been properly interpreted or applied as it pertains to them may submit their request for review in writing within five (5) days from the date of their notification by the Vice President-Flight Operations, as provided in Subparagraph 23.A.3. The request must be submitted to the Vice President-Flight Operations, or their designee, who will review the grievance and render their decision in writing not later than five (5) days following receipt of the grievance.
 - b. The Vice President-Flight Operations, or designee, shall forward their decision to the employee, with a copy to the Association. Said decision shall be final and binding on all interested parties unless appealed as hereinafter provided. If the decision is not satisfactory to either the employee or the Association, then either may appeal the grievance within ten (10) days from the date of the decision directly to a neutral Referee who may be agreed upon by the Company and the Association within ten (10) days thereafter. In the event the parties fail to agree upon a neutral Referee within the specified period, either the Company or the Association may request the National Mediation Board to name such neutral Referee. The decision of the neutral Referee shall be final and binding on all parties to the dispute. The fees and charges of such neutral Referee shall be borne equally by the Company and the Association.
5. During the period a grievance is being handled under the provisions of Section 23 (Union Security) and until final award by the Vice President-Flight Operations, their designee or the neutral Referee, the employee shall not be discharged from the Company nor lose any Seniority rights because of non-compliance with the terms and provisions of Section 23 (Union Security).

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- a. An employee discharged by the Company under the provisions of Subsection 23.A (Collective Bargaining Service Charge) shall be deemed to have been discharged for cause within the meaning of the terms and provisions of Section 23 (Union Security).
- b. It is agreed that the Company shall not be liable for any time or wage claims of any employee discharged by the Company pursuant to a written order by an authorized Association representative under the terms of Subsection 23.A (Collective Bargaining Service Charge).
- c. The Association agrees to indemnify and hold harmless against any suits, claims, and liabilities that arise out of, or by reason of, any action taken by the Company pursuant to a written order by an authorized Association representative under the terms of Section 23 (Union Security).

B. CHECK-OFF DUES, SERVICE CHARGES, INSURANCE, AND ASSESSMENTS

1. Check-Off Dues

- a. The Company agrees to deduct from the pay of each employee covered by the PWA, and remit to the Association upon such deduction, membership dues, assessments by the Association, assessments by the Hawaiian MEC, premiums for insurance provided by the Association, and service charges uniformly levied, in accordance with the Constitution and By-Laws of the Association, all as prescribed by the Railway Labor Act, as amended, provided such employee voluntarily executes authorization on a form, to be supplied by the Association, herein called "Check-off Form." Check-off forms duly executed will be delivered to the Benefits Department.
- b. The Company will provide the Association with a computerized statement in suitable electronic form at the time of each deduction under a Check-off Form, detailing for each pilot who executed a Check-off Form for their deductions dues, separately showing dues, service charges, insurance premiums, and specific assessments.

2. Deductions authorized by Check-off Forms will begin on the first day of the month following receipt of such Check-off Forms. An example of such Check-off Form is as follows:

FORM FOR CHECK-OFF OF DUES, ASSESSMENTS BY THE ASSOCIATION AND THE HAWAIIAN MEC, AND SERVICE CHARGES

To Hawaiian Airlines, Inc.

I, _____, hereby authorize and direct Hawaiian Airlines, Inc., to deduct from my pay such monthly dues (1.90% as of Jan 1, 2015, or such other amount as may be set by the Association), periodic assessments by the Association, periodic assessments by the Hawaiian MEC, and service charges as are now or may hereafter be established in accordance with the Constitution and By-Laws of the Association, and as defined in Section 23 (Union Security) for remittance to the Air Line Pilots Association, International. I agree that this authorization will be irrevocable for one year from the date hereof or until termination of the check-off agreement between Hawaiian Airlines, Inc., and the Association, whichever occurs sooner. If the check-off agreement is terminated, this authorization will be automatically terminated. In the absence of a termination of the check-off agreement, this authorization may be revoked, effective as of any anniversary date of the signing hereof by written notice given by me to Hawaiian Airlines, Inc., and the Association by

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registered mail, return receipt requested, during the ten days immediately preceding any such anniversary.

This form does not revoke an existing check-off form unless and until it has been duly executed by the employee.

ALPA Number: _____ Payroll Number: _____

Employee Address: _____

Employee Signature: _____

Location: _____ Date: _____

3. The PWA will not be construed to revoke or cancel any Check-off Form executed prior to the effective date of the PWA.
4. No deductions of dues, assessments, or service charges will be made from the wages of any pilot who has executed a Check-off Form and who has been transferred to a job not covered by the PWA, who is on furlough, or who is on leave without pay. Upon return to work within a classification covered by the PWA, whether by transfer, termination, or leave without pay, or recall from furlough, deductions will be automatically resumed provided the pilot has not revoked the assignment in accordance with the other appropriate provisions of this Section and the Railway Labor Act, as amended.
5. A pilot who has executed a Check-off Form and whose employment is terminated will be deemed to have automatically revoked the assignment. If he is reemployed, further deductions of dues and assessments, or service charges, will be made only upon execution and receipt of a new Check-off Form.
6. Collections of any back dues, assessments by the Association and HAWAIIAN MEC, insurance premiums, or service charges owed at the time of starting deductions for any employee, and collection of dues missed because the pilot's earnings were not sufficient to cover the payment of dues, assessments by the Association and Hawaiian MEC, premiums, or service charges for a particular pay period will be the responsibility of the Air Line Pilots Association and will not be subject to payroll deductions.
7. Deductions of dues, assessments by the Association and Hawaiian MEC, insurance premiums, and service charges will be made from each paycheck, provided there is a balance in the paycheck sufficient to cover the amount after all other deductions authorized by the pilot or required by law have been satisfied. In the event of termination of employment, the obligation of the Company to collect dues, assessments by the Association and Hawaiian MEC, and service charges will not extend beyond the monthly period in which their last day of work occurs.

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SECTION 24

INSURANCE

A. BASIC COVERAGE

1. The Company shall provide a program of Basic Life Insurance and Basic Accidental Death and Dismemberment Insurance in accordance with the following schedule:
 - a. Basic Life Insurance \$100,000
 - b. AD&D Insurance \$250,000
2. These benefits shall be on a twenty-four hour (24-hour) basis including coverage while acting in the capacity of a crewmember for Hawaiian Airlines, Inc., and shall continue in full force and effect up to age sixty-five (65), including pilots on medical retirement or who are eligible for disability benefits under the Hawaiian Airlines, Inc. Pilots' Voluntary Employee Beneficiary Association Disability and Survivors' Benefits Plan ("D&S VEBA").
3. A pilot, at their sole option, may waive all the Basic Life Insurance in excess of fifty thousand dollars (\$50,000.00) provided by the Company. Said waiver must be submitted in writing on a form provided by the Company and signed by both the employee and their beneficiary. Such signatures must be notarized or witnessed by the Plan Administrator.
4. When a pilot flies freight that requires a waiver of FAR test flights, or airworthiness ferry flights, the Company shall provide them with two hundred fifty thousand dollars (\$250,000) of additional AD&D coverage for the duration of the flight.

B. OPTIONAL COVERAGE

1. The Company shall make available the option of purchasing \$150,000 additional life insurance and \$150,000 additional AD&D Insurance in increments no less than ten thousand dollars (\$10,000) each.
2. The Company will utilize its best efforts to provide one hundred thousand dollars (\$100,000) additional optional life insurance and \$100,000 additional optional AD&D at the same or lesser rates as the coverage described above. However, whatever the rates are, the additional optional insurance shall be made available. If the Company procures rates for either the present or additional optional insurance at a lesser rate than the current rate, the Company will charge pilots the lesser rate for that optional insurance.
3. The Company shall make available life insurance coverage for dependents of pilots according to the following amounts:

Spouse:	\$5,000
Children:	\$2,000 each

 - a. Such dependent life insurance shall be provided at pilot expense.
 - b. Children are covered for the first six (6) months of life for one hundred dollars (\$100). Thereafter, they are covered up to their nineteenth (19th) birthday, or up to age twenty-three (23) if a full-time student, in accordance with the above amount.
4. Rates for coverage described above will be distributed to the pilots by written communication as soon as they become available.

C. BENEFITS FOR RETIRED PILOTS

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SECTION 24

INSURANCE

1. The Company shall provide twenty-five thousand dollars (\$25,000) in the Basic Life Insurance for pilots who retire on or after their Normal Retirement Date. For purposes of Subsection 24.C (Benefits for Retired Pilots), "Normal Retirement Date" shall be defined as the first calendar month in which the pilot reaches age sixty (60). Once each year on the anniversary of the pilot's retirement date, the amount of life insurance shall be reduced by three thousand dollars (\$3,000). However, in no event will such retiree life insurance be less than ten thousand dollars (\$10,000).
2. Pilots granted Disability Retirement under the Retirement Plan for Pilots of Hawaiian Airlines, Inc. or who are granted disability benefits under the D&S VEBA shall retain their Basic Life Insurance and Basic Accidental Death and Dismemberment Insurance in the amounts in effect as of the date of retirement, which shall continue in full force and effect to age sixty-five (65), at which time the amount of Basic Life Insurance shall be reduced to twenty-five thousand dollars (\$25,000) and the Basic Accidental Death and Dismemberment shall cease. Thereafter, once each year on the anniversary of the Disability Retirement date or the date of disability for pilots who are granted disability benefits under the D&S VEBA, the amount of life insurance shall be reduced by three thousand dollars (\$3,000). However, in no event will such retiree life insurance be less than ten thousand dollars (\$10,000).
3. Pilots granted voluntary Early Retirement may, at their expense, purchase from the Company twenty-five thousand dollars (\$25,000) of Basic Life Insurance at rates that the Company is then currently paying. This Basic Life Insurance is available to a pilot only until the pilot's sixtieth (60th) birthday.
4. The Company shall continue to provide the medical, dental, drug, and vision coverage, as is provided active pilots under Subsection 24.F (Health Insurance Benefits), in effect as of (a) the date disability benefits are granted under the D&S VEBA, or (b) the date of Disability Retirement, Deferred Retirement or Normal Retirement under the Retirement Plan for Pilots of Hawaiian Airlines, Inc. and such pilot's spouse until age sixty-five (65), at which time the Company shall provide coverage which, when coordinated with Medicare benefits, shall maintain the benefits to which the pilot would have been entitled had they not retired. Eligible dependent children of retired pilots shall also be provided medical, dental, drug, and vision coverage that was in effect on the date of the pilot's retirement. A pilot who attains age sixty-five (65) prior to April 1, 2017 will pay twenty percent (20%) of the premium, with the pilot contribution limited each year to the maximum dollar cap applicable to active pilots as set forth in the 2010 Pilots Working Agreement. Notwithstanding the foregoing sentence, no pilot who has already retired as of April 1, 2005, will be required to make such a pilot contribution.
5. Effective November 1, 1979, the Company shall make, at the pilot's expense, the medical, dental, drug, and vision coverage in effect as of the date of retirement for pilots granted voluntary Early Retirement and such pilot's spouse, until age sixty-five (65), at which time the Company shall provide, at the pilot's expense, coverage which, when coordinated with Medicare benefits, shall maintain the benefits to which the pilot would have been entitled had they not retired.
6. Eligibility for normal or disability retiree medical benefits for pilots hired after January 14, 2010 shall be limited to retirees meeting at least one (1) of the following criteria:
 - a. retirement at age sixty (60) or higher, with at least ten (10) years of service; or
 - b. retirement at age sixty-five (65).
7. Effective as of April 1, 2017, a pilot and the pilot's spouse and dependent children shall continue to receive medical coverage in effect under the plan covering active pilots until the pilot reaches age sixty-five (65) (or Medicare eligibility age, if later). When a pilot reaches age sixty-five (65) (or Medicare eligibility age, if later), participation in the medical plan covering active pilots shall cease for the pilot, pilot's spouse, and dependent children.

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8. Effective as of April 1, 2017, pilots and their dependents should refer to the Pilots' Post-Medicare Health Plan Letter of Agreement, establishing a voluntary employees' beneficiary association ("VEBA"), administered by the Association, and the VEBA plan documents, for any post-Medicare retiree medical benefits.

D. DISABILITY AND SURVIVOR BENEFITS: HAWAIIAN AIRLINES, INC. PILOTS' VOLUNTARY EMPLOYEE BENEFITS ASSOCIATION DISABILITY AND SURVIVORS' BENEFITS PLAN ("D&S VEBA")

1. The following provisions shall be effective with respect to pilots who become disabled on or after June 1, 2005.
2. Disability benefits shall be provided under the Hawaiian Airlines, Inc. Disability & Survivors' Voluntary Employee Beneficiary Association Plan ("D&S VEBA"), which is a voluntary employees' beneficiary association within the meaning of Section 501(c)(9) of the Internal Revenue Code
3. The Company will pay the actuary's fees and the cost of administering the D&S VEBA. Investment advisory and management fees will be paid by the D&S VEBA Trust. Any calculations involving retirement benefits will be done by the Actuary for the Retirement Plan for Pilots of Hawaiian Airlines, Inc., as per current practice, or by the Company.
4. Funding of the Plan
 - a. Contributions for Plan Years beginning before January 1, 2024. The Company shall contribute to the D&S VEBA \$1,350,000 per full calendar year, with such amount to be adjusted annually on each January 1 beginning with January 1, 2006 (but not below \$1,350,000) in proportion to the number of active pilots who are covered by the D&S VEBA (using the number of active pilots as of January 1, 2005 as the baseline and the number of active pilots covered by the D&S VEBA as of January 1 of each succeeding year to determine the adjustment for that year). Notwithstanding the foregoing, the Company contribution for 2005 shall equal \$1,350,000 multiplied by a fraction, the numerator of which is the number of days in 2005 after May 31, 2005 (i.e., 214) and the denominator of which is 365. The D&S VEBA contribution for 2005 will be made no later than June 1, 2005. Company contributions for succeeding years will be made no later than the first business day after January 15th of each year. To the extent the actuary for the D&S VEBA determines that less than \$1,350,000 per year is required to provide benefits under the D&S VEBA, in lieu of contributing the excess amount to the D&S VEBA, such excess may be used as the Association directs. To the extent the actuary for the D&S VEBA determines that more than \$1,350,000 per year is required to provide benefits under the D&S VEBA, the Company will contribute in addition to the \$1,350,000, fifty percent (50%) of the additional contributions, up to total combined Company/Association annual contributions of \$1.7 million (prorated for 2005 based on the effective date of the Agreement).
 - b. Contributions for Plan Years Beginning on or after January 1, 2024. Within sixty (60) days of the conclusion of each calendar year, the Company shall contribute to the D&S VEBA Trust an amount equal to the Annual Plan Expenses for that year, minus seventy-five percent (75%) of Investment Gains from the D&S VEBA Trust over that same period if applicable. If the foregoing seventy-five percent (75%) of Investment Gains equals or exceeds the Annual Plan Expenses, the Company shall not have any funding obligation for that year.
 - c. Company Funding Obligation Limits

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- 1) The Company's Annual Obligation shall not exceed the Original Plan Calculation.
 - 2) In the event that the Annual Obligation exceeds the Original Plan Calculation, resulting in an Excess Liability, and there is a positive balance in the NCDSA, then the D&S VEBA Trust will be funded from the NCDSA by a contribution equal to the lesser of the Excess Liability or the positive balance in the NCDSA.
- d. Notional Company D&S Account
- 1) Commencing with the 2024 calendar year, the Company will track the annual difference between the Original Plan Calculation and its Annual Obligation. This annual difference will accumulate in the NCDSA over a 10-year rolling period.
 - 2) If in any given year, the Original Plan Calculation exceeds the annual Obligation, such excess shall be added to the NCDSA. If in any given year, the Annual Obligation exceeds the Original Plan Calculation, the difference shall be deducted from the NCDSA. Except that the balance of the NCDSA shall not be less than \$0.00 (zero dollars).
5. General Provisions of the D&S VEBA
- a. The D&S benefit ceases upon the pilot reaching the then-applicable Federal Aviation Administration ("FAA") mandatory retirement age.
 - b. The only offset will be the workers' compensation offset described at Article 3.5(a) of the D&S Plan.
 - c. The Company shall make contributions to the Hawaiian Airlines, Inc. Pilots' 401(k) Plan on behalf of each pilot who is approved for benefits under the D&S VEBA Plan in an amount equal to two times (2x) the contribution amount listed in PWA Subparagraph 25.B.3 (e.g., 2 x 16% = 32%) multiplied by the pilot's D&S Plan benefit. Such contributions shall continue for the duration of the pilot's disability. The 401(k) Plan shall be amended to permit such contribution.
 - d. The Company will make the contributions referenced in PWA Subparagraph 24.D.5.c as soon as administratively feasible, but no later than sixty (60) days from the conclusion of each month.
 - e. The general provisions of the D&S VEBA plan listed in 24.D.5.a, 24.D.5.b, 24.D.5.c, and 24.D.5.d do not apply to Grandfathered Pilots.
 - f. Definition of terms used in PWA Subparagraph 24.D
 - 1) "Active Service" means those periods during which the Employee is in active payroll status with the Company, including those periods during which the Employee has been (i) granted a leave of absence from the Company to perform Association business, (ii) granted sick, maternity, parental, or military leave under the PWA, (iii) granted a leave of absence during which, pursuant to the PWA or other agreement, they remain eligible for the benefits or distributions contemplated by this Subparagraph 24.D (including, but not limited to, a pilot on a Permanent Enhanced Surfer Leave who is considered an "active employee" per Subparagraph A.9.a of LOA 20-08), (iv) granted a leave of absence during which, under this Subparagraph 24.D and/or pursuant to statute, they remain eligible for

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the benefits or distribution contemplated by this Subparagraph 24.D (including, but not limited to, a pilot on leave under the Family and Medical Leave Act or the Uniformed Services Employment and Reemployment Rights Act) or (v) transferred under PWA Subsection 8.A to serve in a non-flying or supervisory duty status (i.e., Management Pilot).

- 2) “Annual Obligation” means the Company’s annual obligation for Annual Plan Expenses plus 401(k) contributions referenced in PWA Subparagraph 24.D.5.c.
 - 3) “Annual Plan Expenses” means an amount equal to the amount actually paid from the D&S VEBA Trust during a given calendar year for (i) benefit payments and (ii) all reasonable and necessary expenses related to the administration, operation, and maintenance of the D&S VEBA Plan, including, but not limited to, the following: trustee fees, custodial fees, recordkeeper fees, third party administrator fees, investment advisor fees, legal fees, and the expenses related to the annual audit and Internal Revenue Service and Department of Labor filings, fiduciary liability insurance, fidelity bond, and claims adjudication.
 - 4) “Employee” means any individual with Active Service in the employ of the Company as a pilot, who is listed on the Pilots System Seniority List.
 - 5) “Excess Liability” refers to those circumstances, if any, when the Annual Obligation exceeds the Original Plan Calculation.
 - 6) “Grandfathered Pilots” refers to any pilots receiving a disability benefit under the D&S VEBA Plan as of March 2, 2023, or who have filed an application for such a benefit prior to March 2, 2023.
 - 7) “Investment Gains” means, for the year at issue, the value of the D&S VEBA Trust on December 31, minus the value of the D&S VEBA Trust on January 1, minus any contributions made during the year, and plus any benefit payments paid during the year. If investment experience results in a loss, then the Investment Gains are \$0.00 (zero dollars) for the year at issue.
 - 8) “Notional Company D&S Account” (“NCDSA”) means the annual difference between the Original Plan Calculation and its Annual Obligation which, commencing with the 2024 calendar year, the Company will track. This annual difference will accumulate in the NCDSA over a 10-year rolling period.
 - 9) “Original Plan Calculation” means \$4,687.50 multiplied by the number of active pilots on January 1 of each year (e.g. 1,000 pilots = \$4,685,500).
- g. The Association shall be responsible for the design of the D&S VEBA, provided that to the extent required by applicable law, such design shall be subject to the Company’s consent (which shall not be unreasonably withheld). The terms of the D&S VEBA are set forth in the D&S VEBA attached hereto as Appendix D. To the extent that D&S VEBA trust funds are insufficient to pay all promised benefits, each pilot’s disability benefit shall be reduced pro rata.
- h. The D&S VEBA shall be administered by the Retirement Board.

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E. DEATH BENEFITS

1. In the event of the death, before reaching age sixty-five (65), of a pilot covered hereunder, the Company shall provide the surviving spouse and dependents, as long as they remain eligible under the applicable master policy, the medical, drug, vision, and dental plan(s) in effect as of the date of the pilot's death for a period of two (2) months commencing on the first day of the month following the date of the pilot's death. Effective April 1, 2017, in the event death occurs after age sixty-five (65), the pilot's surviving spouse and dependents should refer to the Pilots' Post-Medicare Health Plan Letter of Agreement for any medical benefits.
2. Thereafter, the surviving spouse and eligible dependents of a pilot who: (a) was a participant in the D&S VEBA as of April 1, 2017 and not on the Pilot System Seniority List as of that date; or (b) retired prior to April 1, 2017, may continue the aforementioned coverage at their expense at rates equal to the lesser of those being paid by the Company for active employees or for post-Medicare age retirees.

F. HEALTH INSURANCE BENEFITS

1. A pilot and the pilot's spouse and dependent children shall continue to receive medical coverage in effect under the plan covering active pilots until the pilot reaches age sixty-five (65) (or Medicare eligibility age, if later). When a pilot reaches age sixty-five (65) (or Medicare eligibility age, if later), participation in the medical plan covering active pilots shall cease for the pilot, pilot's spouse, and dependent children.
2. Effective March 2, 2023, in the event the amount paid by a pilot, either on their behalf, or on behalf of one (1) or more of their dependents, exceeds four thousand dollars (\$4,000) with respect to a single person's incident/illness, the pilot shall be reimbursed for one hundred percent (100%) of eligible medical expenses for the person, for that year in accordance with the provisions set forth below, not to exceed eighty thousand dollars (\$80,000).
 - a. Eligibility. A pilot is eligible for reimbursement of eligible medical expenses if they are enrolled in a Company health insurance plan or a participant in the Pilots' Post-Medicare Health Plan, and incurs eligible medical expenses in excess of the applicable amount identified above and:
 - 1) is on the Pilot System Seniority List; or
 - 2) is retired. A retired pilot may submit stop loss claims for new incidents or illnesses for up to five (5) years from their retirement date, or February 1, 2021, whichever is later. Thereafter, no stop loss claims for new incidents or illnesses can be submitted by or will be reimbursed to the retired pilots. Claims arising from an incident or illness for which a stop loss claim was initially filed prior to the new claim cut-off date will continue to be processed as provided under the Stop Loss Program Clarifications Letter of Agreement effective February 1, 2016. Effective for retirements on and after April 1, 2017, a pilot must enroll in Medicare Part A, Part B, Part D, and a Medicare Supplemental Insurance Policy ("Medigap Policy") upon reaching age sixty-five (65) (or Medicare eligibility age, if later). If a pilot fails to enroll in Medicare Part A, Part B, Part D, and a Medigap Policy upon reaching age sixty-five (65) (or Medicare eligibility age, if later), no stop loss claims for new incidents or illnesses can be submitted by, or will be reimbursed to, the retired pilot.
 - b. Eligible medical expenses shall include:
 - 1) Items covered under the Company-sponsored health insurance plan in which the pilot is enrolled; and
 - 2) Items covered under IRS Publication 502, or any subsequent amendments thereto, that are not expressly excluded by the IRS as reimbursable expenses.

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- c. Eligible medical expenses shall not include:
 - 1) Expenses covered by dental insurance, with the exception of temporomandibular joint disorder, and dental services that are deemed “medically necessary” medical services as defined by the American Medical Association; and
 - 2) Expenses not otherwise covered by Subparagraph 24.F.1.b.
 - d. Pilot Responsibilities. To receive benefits under this Stop Loss Program, the eligible pilot must:
 - 1) Submit appropriate documentation to support the claim and eligibility for reimbursement.
 - 2) Claims for reimbursement must be submitted within three hundred sixty-five (365) days from the date on which the health insurance plan under which the pilot is enrolled issues its final denial of the pilot’s health insurance claim.
 - e. Company Responsibilities. The Company will make every reasonable effort to promptly process a pilot’s claim for reimbursement upon complete submission of the claim. In the event the claim is not paid or denied within ninety (90) days of the pilot’s submission, the Company will notify the pilot and the Chairman of the Association’s Master Executive Council regarding the status of the pilot’s claim.
3. Effective June 1, 2005, the Company shall provide medical coverage, including drug and vision care programs (“Health Care Plan(s)”) available under the Hawaii Medical Service Association Preferred Provider Plan (PPP 548, Drug Y, Vision CS). (The chart provided at the end of Section 24 (Insurance) of this Agreement is intended for informational purposes only. In case of any difference between the chart and the HMSA PPP plan described in this paragraph, the provisions of the plan will control). The Kaiser Health Plan) will continue to be available as an alternative to the HMSA PPP where available.
- a. A pilot participating in an HMO alternative plan will pay the same monthly contribution as a pilot participating in the HMSA PPP.
 - b. For eligible and medically necessary services rendered outside the State of Hawaii, HMSA will pay benefits based on eligible charges for the same or substantially similar services rendered in the State of Hawaii.
 - c. When the eligible charge for a covered service rendered outside the State of Hawaii is less than the provider’s actual charge for that service, HMSA may increase benefits to pay the average percentage of charges paid by HMSA for the same or similar services rendered in the State of Hawaii.
4. A pilot will make the following contributions, by way of payroll reduction, towards the cost of their health care plan as set forth below:
- a. 20% of the premium.
5. The Company will provide the Association with such information as the Company is provided by the carriers relative to annual plan information reports and summaries, subject to legal restrictions.
6. There will be a four-tiered system applied to employees based on eligibility. Those four tiers are: Employee Only, Employee + Spouse, Employee + Child(ren), and Family. Eligible dependents are defined as spouse and unmarried dependent children under age nineteen (19) or under age twenty-four (24) if a full-time student.

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7. Effective January 1, 2001, the lifetime maximum limitation under the HMSA PPP Plan shall be five million dollars (\$5,000,000) with an annual renewal of \$10,000 implemented on a prospective basis.
8. The percentage cap in this Section shall not in any way affect those benefits contained in Subsections 24.C (Benefits for Retired Pilots) and 24.E (Death Benefits).
9. Effective June 1, 2005 the Company-provided health coverage will include acupuncture and chiropractic coverage, if available.
10. Effective January 1, 1994, the Company will offer a Medical Waiver Program. Such program shall be available to all pilots and their dependents covered by a medical plan sponsored by the Company (active, retired, or otherwise covered). Upon meeting eligibility requirements in the program and a pilot elects to waive medical plan coverage through the Company, the pilot would be eligible for annual taxable payments as follows:
 - a. \$500 for single coverage
 - b. \$1,000 for an employee with one (1) eligible dependent
 - c. \$1,500 for family coverage.
11. The Company will establish guidelines for the Medical Waiver Program.
12. The Company shall make available a premium conversion plan (in accordance with Code Section 125) that will allow eligible pilots to pay for medical contributions on a pre-tax basis. Pilots are also eligible to participate in a Health Care Expense Account which allows reimbursement on a tax-free basis for eligible medical, prescription drug, vision, and dental expenses not paid for by insurance, up to a maximum of two thousand six hundred dollars (\$2,600) per year (indexed annually by the IRS). Pilots are also eligible to participate in a Dependent Care Assistance Account that allows reimbursement on a tax-free basis of eligible expenses, such as day care for their dependent children up to a maximum of five thousand dollars (\$5,000) per year, or two thousand five hundred dollars (\$2,500) for married individuals filing separately.
13. The vision benefit coverage for lenses, frames, and contacts shall be as follows:
 - a. One hundred percent (100%) of lenses for glasses.
 - b. Forty dollars (\$40.00) for frames.
 - c. Forty-five dollars (\$45.00) for contact lenses.
14. The Company shall provide the following dental coverage as provided by the Hawaii Dental Service and Delta Dental of California for pilots and their eligible dependents at a cost of \$15 per month:
 - a. One hundred percent (100%) of Usual Customary and Reasonable (UCR) fees for:
 - 1) Examination (once every twelve (12) months)
 - 2) Bitewing x-rays (two (2) x-rays every six (6) months)
 - 3) Other x-rays
 - 4) Prophylaxis (once every six (6) months)

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- 5) Palliative Treatment
 - b. Seventy percent (70%) UCR (seventy-five percent (75%) effective January 1, 2003) for:
 - 1) Stannous Fluoride (once every twelve (12) months through age seventeen (17))
 - 2) Restorative Dentistry
 - 3) Oral Surgery
 - 4) Endodontics
 - 5) Periodontics
 - c. Sixty percent (60%) UCR for:
 - Orthodontia for dependent children with a lifetime maximum of one thousand five hundred (\$1,500) per case.
 - d. Fifty percent (50%) UCR for:
 - 1) Prosthodontics-Bridges, partial and full dentures
 - 2) Crowns and gold restorations
 - e. There shall be no maximum dental benefit for a covered individual.
15. A pilot who has been on a leave of absence due to sickness, injury, or disability for a period greater than six (6) years and is no longer on the Pilots' System Seniority List as of April 1, 2017, will continue to receive medical coverage under the 2010 Pilots Working Agreement.
16. A pilot who terminated employment with the Company prior to April 1, 2017 due to Normal Retirement or Disability Retirement will continue to receive medical coverage under the 2010 Pilots' Working Agreement.
17. The Company shall continue to provide, for furloughed pilots, the medical coverage in effect under the plan covering active pilots for a period of up to sixty (60) days. Thereafter, such coverage may be extended at pilot expense for as long as they remain on the Pilots' System Seniority List and make current payment of premiums as they become payable. Payment for coverage hereunder must be received by the Company no later than the twentieth (20th) of the month prior to the month covered.
18. The cost of reasonable and necessary medical expenses incurred as a result of an occupational illness or injury shall be provided by the Company in accordance with the Workers' Compensation Law of the State of Hawaii, or the State of their Domicile, whichever provides the better benefit.
19. Application of Excise Tax. If the Company and the Association determine that an excise tax, as defined in Code Section 4980I ("Excise Tax"), will apply to any of the health plans offered to pilots under this Agreement (and thus becomes an "Affected Plan"), the Company and the Association agree that changes to the Affected Plan(s) will be made to the minimum extent necessary to avoid application of the Excise Tax, and the pilots will directly benefit from the savings to the Company, if any, associated with those changes based on the principles as further agreed in subparagraph 24.F.18.
- a. Lack of Certainty. The Company and the Association agree that the lack of regulation or governmental guidance with regard to the application or calculation of the Excise Tax make it difficult at this time for either party to agree to a method of calculating the Excise Tax, to a method or process to follow to mitigate or eliminate the Excise Tax, to any minimum necessary changes to the health plans which would cause the Company to avoid the responsibility for the Excise Tax, and to determine how to calculate and apply the resulting savings to the Company for the benefit of the pilot group.

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- b. Process to Follow. The Company and the Association agree that within ninety (90) days of the Company determining that the Excise Tax may apply to an Affected Plan, the parties will enter into a Letter of Agreement that describes the following:
 - 1) the changes needed to the Affected Plan to the minimum extent necessary to avoid the Excise Tax;
 - 2) the manner in which the savings, if any, to the Company, due to those changes, will be calculated; and
 - 3) the method for distributing those savings to the pilot group.
 - c. The parties may agree to an extension of the process described in Subparagraph 24.F.18.b.
 - d. Actuarial Support. The Association may be supported by an actuary(ies) of its choosing in performing any of its responsibilities under this Subparagraph F.18. The Company will pay the reasonable fees and expenses of the Association's actuary(ies), up to \$30,000 per year, for services related to the negotiation of the minimum changes necessary to an Affected Plan's benefits in order to avoid the Excise Tax.
 - e. Process to Resolve Disputes. At any time after one hundred twenty (120) days of the period described in Subparagraph 24.F.18.b, or if the Company and the Association determine that they cannot agree on changes to an Affected Plan which mitigate or eliminate the Excise Tax, then the parties may agree to have the dispute mediated, or if the parties do not or cannot agree to mediation, the matter will be submitted to an arbitrator for binding arbitration in accordance with the procedures set forth in Section 16 (Grievances) of this Agreement.
20. Other Medical Plan Offerings: Pilots will be eligible to participate in other medical plans offered by the Company (e.g., Healthy Living) at terms established by the Company.

G. ACTIVE HEALTH REIMBURSEMENT ACCOUNT (ACTIVE HRA) AND POST MEDICARE HEALTH PLAN (PMHP)

- 1. Establishment of Active HRA and PMHP
 - a. As soon as administratively feasible following the effective date of this Agreement, the Company shall design and establish an active health reimbursement account plan ("Active HRA")
 - b. The Company shall make contributions as set forth in Subparagraph 24.G.3 to either the Active HRA or to the retiree-only health reimbursement account plan ("the Hawaiian Airlines, Inc. Pilot Post-Medicare Health Plan" or "PMHP"), each of which shall be a voluntary employees' beneficiary association ("VEBA") under Section 501(c)(9) of the Internal Revenue Code (the "Code").
 - c. The Active HRA shall provide reimbursement of all eligible medical expenses permitted under Code Section 213(d) incurred by an active pilot, the pilot's spouse, and/or the pilot's eligible dependents. The Company shall provide the Association with a list of such eligible expenses with respect to the Active HRA prior to the commencement of each plan year. The PMHP shall provide reimbursement of all eligible medical expenses permitted under Code Section 213(d) incurred by a retired pilot, the pilot's spouse, and/or the pilot's eligible dependents

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- d. All reasonable and necessary expenses related to the establishment, administration, operation, and maintenance of the Active HRA and the PMHP shall be paid by the Company, including but not limited to the following: trustee fees, custodial fees, recordkeeper fees, third party administrator fees, investment advisor fees, legal fees, and the expenses related to the annual audit and IRS and DOL filings, fiduciary liability insurance, fidelity bond, claims adjudication, fiduciary compensation and expenses, plan communications, and plan website. Billings for reimbursement with respect to the PMHP will be submitted by the Association to the Company Benefits Department on a quarterly basis.

2. PMHP

- a. Amounts allocated to pilot accounts in the PMHP shall be credited with investment gains and losses realized from PMHP investments, as selected by the Association.
- b. Contributions to the PMHP shall never revert to the Company or the Association.
- c. Retiree medical benefits for pilots (a) who are eligible for disability benefits under the D&S VEBA on or after April 1, 2017, or (b) who retire at Normal Retirement, Early Retirement, Deferred Retirement, or Disability Retirement, on or after April 1, 2017, shall, upon meeting the requirements defined in the PMHP Plan Document, be eligible for and be reimbursed for eligible medical, dental, drug, and vision expenses through the PMHP.
- d. Notwithstanding the eligibility requirements defined in the PMHP Plan Document, in the event of a pilot's death, the pilot's surviving spouse shall be eligible to receive benefits under the PMHP for eligible medical expenses incurred by the surviving spouse and/or any eligible dependent of the pilot. If the pilot dies without a surviving spouse, or if the surviving spouse dies prior to the exhaustion of the PMHP balance, each of the pilot's surviving children who, immediately prior to the pilot's death, was a dependent of the pilot, shall become eligible to receive benefits under the PMHP. The provisions of Subparagraph 24.G.2.h.4) apply regardless of whether the pilot met the eligibility requirements of Subparagraph 24.G.2.h.2) prior to death. A "spouse" and a "dependent" shall be defined as provided in the PMHP Plan Document.
- e. Once a pilot meets the eligibility requirements for the PMHP, the pilot will remain a participant in the plan, and is eligible to receive forfeiture allocations through the plan year of the pilot's death. After a pilot's death, the pilot's surviving spouse and eligible dependents shall be eligible under the PMHP as provided in Subparagraph 24.G.2.h.4).
- f. A pilot who does not meet the eligibility requirements contained in the PMHP Plan Document at the time of termination of service from the Company (other than death or disability) will automatically forfeit his or her PMHP account and the account shall be reallocated per capita to the remaining accounts of all participants in the PMHP.
- g. In the event a pilot dies without a surviving spouse and without any surviving dependents, the pilot's PMHP account shall automatically be forfeited and reallocated per capita among the remaining accounts of all participants in the PMHP.
- h. Each pilot's PMHP account shall be used to reimburse the pilot for out-of-pocket expenses incurred by the pilot, the pilot's spouse, and/or the pilot's eligible dependents for qualified medical expenses as defined under IRS Code Section 213(d).

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- 1) Reimbursements for eligible medical expenses incurred by the pilot may begin on the date the pilot reaches age sixty-five (65) (or Medicare eligibility age, if later).
 - 2) Reimbursements for eligible medical expenses incurred by the pilot's spouse may begin on the earlier of: (1) the date the pilot reaches age sixty-five (65) (or Medicare eligibility age, if later), or (2) the date the spouse reaches age sixty-five (65) (or Medicare eligibility age, if later).
 - 3) Reimbursements for eligible medical expenses incurred by the pilot's dependent child may begin on the date the pilot reaches age sixty-five (65) (or Medicare eligibility age, if later).
 - 4) In the event of a pilot's death, the surviving spouse and/or dependent children may immediately begin receiving reimbursements from the PMHP, with reimbursements continuing until the earliest of: (1) the date the individual dies; (2) the date the individual no longer satisfies the definition of dependent child; or (3) the exhaustion of the PMHP account balance.
 - 5) Reimbursements under the PMHP continue as long as there are adequate funds in the individual PMHP account balance.
- i. The Association shall be solely responsible for the design, operation, and administration of the PMHP. The Company's sole responsibility is to make the contributions to the PMHP pursuant to Subparagraph 24.G.3 and to pay administrative expenses with respect to the PMHP pursuant to Subparagraph 24.G.1.d.
 - j. A pilot who is a participant in the PMHP shall continue to be eligible to participate in the Stop Loss Program under Subparagraph 24.F.1 of the Pilots' Working Agreement after retirement, but only if the pilot enrolls in Medicare Part A, Part B, Part D, and a Medicare Supplemental Insurance Policy (Medigap) upon reaching age sixty-five (65) (or Medicare eligibility age, if later). If a pilot fails to enroll in Medicare Part A, Part B, Part D, and a Medigap Policy upon reaching age sixty-five (65) (or Medicare eligibility age, if later), no stop loss claims for new incidents or illnesses will be reimbursed to the retired pilot.
 - k. The PMHP shall not sponsor or select specific medical, dental, vision or drug plans, programs or benefits, but is merely a funding vehicle for reimbursement of out-of-pocket expenses incurred by a pilot, spouse, or eligible dependent for qualified medical care.
3. Employer Contributions
- a. The Company shall make a contribution of \$5,000 to the PMHP for each pilot hired after April 1, 2017. This Company contribution shall be made to the PMHP no later than thirty (30) days after the date a pilot completes IOE (as defined in Section 9XX of the Pilots Working Agreement).
 - b. The Company shall contribute a notional amount of \$2,500 to the Active HRA or a funded amount of \$2,500 to the PMHP on behalf of each pilot on or before the February 15 that follows each annual enrollment period beginning on or after January 1, 2023, except with respect to a pilot who has made an election at open enrollment that such contribution should instead be made to the Hawaiian Airlines, Inc. Pilots' 401(k) Plan, as set forth in Subparagraph 24.G.3.d.

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- c. The notional or funded amount set forth above shall be allocated to the Active HRA on behalf of any pilot who at the relevant open enrollment period has elected to be covered by a Company-provided medical plan, and to the PMHP on behalf of any pilot who at the relevant open enrollment period has opted out of Company-provided medical coverage.
- d. During each annual enrollment period beginning on or after January 1, 2023, each pilot may irrevocably elect to have the \$2,500 Company contribution set forth above allocated to the Hawaiian Airlines, Inc. Pilots' 401(k) Plan instead of the Active HRA or the PMHP. Such contribution shall be made to the Hawaiian Airlines, Inc. Pilots' 401(k) Plan no later than the March 15 immediately following the election.
- e. Any Active HRA notional account balance held by a pilot as of December 31 shall be forfeited and an equivalent amount will be contributed to the PMHP on behalf of such pilot no later than April 1.
- f. Any Active HRA notional account balance held by a pilot upon death, retirement or termination of employment with the Company shall be forfeited and an equivalent amount will be contributed to the PMHP on behalf of such pilot (or the spouse and dependents of such pilot in the event of death) on the first pay period following death, retirement or termination; provided, however, that no such equivalent amount will be contributed to the PMHP on behalf of a pilot who terminates employment prior to such pilot's initial regular annual enrollment period.
- g. Except as set forth in this Subparagraph 24.G.3, the Company shall not be required to make any contributions to the Active HRA or the PMHP.

H. GENERAL

- 1. The Company shall furnish the Association at its Home Office (7950 Jones Branch Drive Suite 400S Mclean, VA 22102) with copies of all insurance policies, plans, documents, and trusts pursuant to which benefits are provided hereunder, and any amendments thereto, within thirty (30) days of (1) the effective date of the institution or modification of the benefit or coverage in question, or (2) the effective date of the agreement to provide or modify such benefit or coverage, whichever is the first to occur. If the Company is unable to comply with such a request because of any State or Federal law requiring filing or approval by an agency of the State or Federal Government, the Company shall furnish the Association with a copy of the document filed pending compliance with the above. Receipt by the Association of any such document shall in no way indicate approval of or consent to such document by the Association.
- 2. Each pilot who is a participant in the Group Insurance Plan shall be entitled to designate a beneficiary who shall have the full legal right to the benefits of the plan in the event of the death of such pilot.
- 3. The modifications described herein shall apply to all deaths, disabilities, and changes occurring on or after the effective date of this Agreement and the cost of such modification shall be borne by the Company, except as specifically indicated to the contrary herein.
- 4. Any benefits being paid as of the effective date of this Agreement shall remain in effect unchanged.
- 5. The Company will seek bids for optional insurance from any insurance carrier ALPA submits to the Company. The Company shall solicit bids on the above-mentioned insurance and report to the

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Association within sixty (60) days of the signing of the new labor agreement. If such insurance carriers provide rates lower than those other ones available, the Company shall provide additional optional insurance at those lower rates.

6. If such insurance carriers provide rates lower than those other ones available, the Company shall provide additional optional insurance at those lower rates.
7. The Company will solicit bids for equal or better medical or dental insurance than that currently covered by HMSA or HDS. They will institute such new medical or dental insurance coverage only with the express consent of the Association.

I. HEALTHCARE: FOREIGN DESTINATIONS

1. For routes to foreign destinations, the Company will address health concerns which include providing lists of qualified medical providers in the area and advisories as to insurance coverage and payment for services. Additionally, the Company will designate service providers and pay for any inoculations/vaccinations required or recommended by the U.S. Centers for Disease Control if a pilot elects to receive such inoculations/vaccinations.
2. The Company shall ensure that pilots who become ill or injured while away at foreign destinations will receive necessary medical attention. The Company shall provide a means whereby the pilot need not pay any such costs up-front. However, the pilot shall be responsible for reimbursing the Company any payments that are subsequently reimbursed by the pilot's insurance plan or that the pilot would have been responsible for under their insurance plan.

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RETIREMENT

A. THE HAWAIIAN AIRLINES PILOTS' RETIREMENT PROGRAM

1. The Hawaiian Airlines Pilots' Retirement Program consists of the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (the "401(k) Plan") and the Retirement Plan for Pilots of Hawaiian Airlines, Inc. (the "Retirement Plan"). All pilots shall participate in the 401(k) Plan. The Retirement Plan was formerly the principal retirement plan for all pilots but, in accordance with the agreements reached in the 2005 Pilots' Working Agreement and the 2017 Pilots' Working Agreement, participation in the Retirement Plan shall be limited as provided below.
2. Contributions to and participation in the 401(k) Plan and the Retirement Plan shall be as described below based upon the inclusion of that pilot in one of the following Groups:
 - Group A: Pilots on the Pilots' System Seniority List as of January 1, 2006 (including, but not limited to, pilots who were on furlough on that date) and who were age 50 or older as of July 1, 2005.
 - Group B: Pilots on the Pilots' System Seniority List as of January 1, 2006 (including, but not limited to, pilots who were on furlough on that date) and who were under age 50 as of July 1, 2005.
 - Group C: Pilots hired after June 30, 2005.
3. Maintenance of Qualified Plan Status: The Company shall maintain the Retirement Plan and the 401(k) Plan as tax-qualified plans within the meaning of Code section 401 and shall comply with IRS Revenue Procedure 2016-37, and all subsequent IRS guidance with respect to maintaining tax-qualified status for individually designed retirement plans. If the Company believes that an amendment to either plan is required by law, the procedure set forth in Subsection 25.E (Retirement) shall apply.

B. THE HAWAIIAN AIRLINES, INC. PILOTS' 401(k) PLAN

1. Pilots shall participate and contributions shall be made to the 401(k) Plan as follows:
 - Group A: Pilots in this group shall be eligible to make Salary Deferral contributions, Designated Roth contributions, Voluntary after-tax contributions, Rollover contributions, Designated Roth rollover contributions, and to share in any other Company contributions as may be agreed by the parties.
 - Group B: Pilots in this group shall be eligible to make Salary Deferral contributions, Designated Roth contributions, Voluntary after-tax contributions, Rollover contributions, Designated Roth rollover contributions, and to receive Target Benefit contributions (see Subparagraph 25.B.2) through March 31, 2017 and to share in any other Company contributions as may be agreed by the parties.
 - Group C: Pilots in this group shall be eligible to make Salary Deferral contributions, Designated Roth contributions, Voluntary after-tax contributions, Rollover contributions, Designated Roth rollover contributions, and to receive Defined Contribution contributions (see Subparagraph 25.B.3), and to share in any other Company contributions as may be agreed by the parties.
2. 401(k) Plan – Target Benefit Contributions (Group B pilots)

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From January 1, 2008 through March 31, 2017, the Target Benefit formula is intended to replicate as closely as possible benefits that would have been earned had the Retirement Plan not been frozen.

- a. Vesting. All eligible pilots shall be fully vested at all times in their Target Benefit account.
- b. Timing/Frequency of Company Contributions. Target Benefit contributions shall be deposited to each eligible pilot's account no later than the fifteenth (15th) calendar day of the month following the month in which the pilot is paid the Compensation with respect to which the contribution is made.
- c. Allocation and Distribution of Target Benefit Contributions
 1. Aggregate Company Contribution for Target Contributions. The Company shall contribute to the 401(k) Plan an aggregate amount that will be sufficient to meet the projection for funding each eligible pilot's Target Benefit at a level that will equate to one hundred percent (100%) of the benefit that would have been earned at retirement had the Retirement Plan not been frozen, as determined by the Plan actuary, up to a maximum aggregate contribution of nineteen and four tenths percent (19.4%) of Group B pilots' Compensation.
 2. Amount of Target Benefit contributions. The amount of each Target Benefit contribution shall be based on an individual target percentage of each pilot's Compensation calculated for each pilot as provided in the Target Benefit Assumptions and Methodology (TBAM) document, which is fully incorporated by reference into this Agreement, and attached hereto as Appendix A (as revised by Letter of Agreement on January 30, 2012). This individual target percentage shall be subject to change from time-to-time based on the Target True-Up Process set forth below (see Subparagraph 25.B.2.d).
- d. The True-Up Process. The Target Benefit percentages shall be modified as appropriate using the Target Benefit methodology referenced in Appendix A hereto as of January 1 and July 1 of each year and shall be applied effective on the same dates. Actual and up-to-date staffing and crew complement information shall be utilized when calculating Target Benefit contribution percentages.
- e. Investment Direction of Target Benefit Contributions. All investments of Target Benefit contributions shall be self-directed by the individual pilot.
- f. 415(c) Limits. Any Target Benefit contribution amounts actually made to the 401(k) Plan that are in excess of the maximum limits imposed by the Internal Revenue Code ("IRC") shall be treated in accordance with the applicable provisions of the 401(k) Plan.
- g. Effective April 1, 2017, the Company will no longer make Target Benefit contributions to Group B pilots, and Group B pilots shall instead receive lump sum cash payments as described in Subsection 25.F (Lump Sum Cash Payments to Group B Pilots) and Defined Contribution contributions as described in Subparagraph 25.B.3.
3. 401(k) Plan – Defined Contribution contributions
 - a. Contribution Amount The Company shall make contributions to pilots' 401(k) accounts in an amount equal to the following percentages of Compensation: (i) fifteen percent (15%) for

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Compensation earned from April 1, 2017 through March 1, 2023; (ii) sixteen percent (16%) for Compensation earned from March 2, 2023 through December 1, 2026; and (iii) seventeen percent (17%) for Compensation earned on and after December 2, 2026.

- b. Automatic Enrollment. Pilots who are not making elective contributions to the 401(k) Plan shall be automatically enrolled in the 401(k) Plan with a six percent (6%) pre-tax elective deferral contribution at the time of being hired. They shall begin to receive their Defined Contribution contributions following their first pay check. Pilots will be able to opt-out of automatic enrollment through procedures adopted by the 401(k) Plan. The Retirement Board shall determine the timing and frequency of automatic enrollment.
 - c. Vesting. All Company contributions to the 401(k) Plan shall be one hundred percent (100%) vested at all times.
 - d. Annual Election. During each annual enrollment period beginning on or after January 1, 2023, each pilot may irrevocably elect to have the \$2,500 Company PMHP or Active HRA contribution set forth in Subsection 24.G.3.b allocated to the 401(k) Plan instead of the Active HRA or the PMHP, in accordance with Subsection 24.G.3.d.. Such contribution shall be made to the 401(k) Plan no later than the March 15 immediately following the election.
4. Timing of Company Contributions. Company contributions shall be deposited into each pilot's account no later than the fifteenth (15th) business day following the date that the pilot is paid Compensation with respect to which the contribution is made.
5. 401(k) Plan - General Provisions
- a. Amendment and Incorporation by Reference. The 401(k) Plan may be amended from time to time with the mutual agreement of the Company and the Association. The 401(k) Plan shall be amended in accordance with this Section 25 (Retirement) of the CBA to reflect changes made to the Agreement. The 401(k) Plan, as amended, shall be maintained by the Company, and when executed shall be fully incorporated as part of this Agreement and attached hereto as Appendix B.
 - b. Administrative Costs
 - 1. The Company shall pay all the administrative costs of the 401(k) Plan, including by way of illustration, not limitation: actuarial fees, recordkeeping fees, loan fees, brokerage account fees, fees or charges to process domestic relations orders, fees for discrimination testing, legal fees, attorneys' fees and costs, court costs, any expenses associated with communications with Plan participants, or the development and distribution of enrollment forms to pilots, costs associated with Company personnel, and computer time or materials used in the administration of the Plan as it is constituted under this Agreement.
 - 2. The Company also shall pay all the costs associated with the "Employer Contribution Account" in the 401(k) Plan, including the costs and fees of an independent appraiser or independent fiduciary, to the extent required by law, and to determine the fair market value of Company stock in the event the stock is no longer readily tradable on an established securities market. In such an event, the appraisal or fiduciary determination shall be accomplished not more than once per year, no later than the last working day in

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the calendar year, and all puts for that year shall be based on that year's appraisal or fiduciary determination.

- i. 401(k) Plan Brokerage Option.
- ii. A brokerage option shall be included in the 401(k) Plan subject to the requirements and restrictions of Employee Retirement Income Security Act of 1974 ("ERISA") and the service provider. A pilot may elect to have all of his contributions, whether employee or employer contributions, invested in the Brokerage Option.
- iii. The investments shall be limited to publicly traded securities on one of the major registered U.S. exchanges or mutual funds registered under the Investment Company Act of 1940. Investments shall be restricted to securities which would not result in a loss in excess of a participant's or beneficiary's account balance and to investments which would not cause the Plan to engage in a prohibited transaction under ERISA. Investments shall be subject to any restrictions required by the service provider.
- c. 404(c) Plan. The 401(k) Plan shall comply with the requirements of ERISA Section 404(c) so that the plan fiduciaries, including the Retirement Board, shall be relieved of liability for any losses which are the direct and necessary result of investment instructions given by participants or beneficiaries.
- d. Excess 401(a)(17) and 415 Contributions. If under the terms of the 401(k) Plan, the Company cannot contribute to a pilot's account the full amount to which the pilot is entitled under this Subsection 25.B (Hawaiian Airlines, Inc. Pilots' 401(k) Plan) due to any limitation imposed by IRC Section 401(a)(17) or 415(c), those amounts in excess of the IRC limits shall instead be paid to the pilot in cash, subject to all applicable tax and other withholdings.
- e. Investment Education. The Company shall coordinate with the ALPA MEC Retirement & Insurance Committee and the plan vendor (currently Empower) to provide investment education seminars (unless otherwise agreed by the parties) no less often than annually, at no cost to the Association or the pilots.
- f. Compensation. Compensation for purposes of determining contributions to the 401(k) Plan shall be as defined in the 401(k) Plan document (as restated January 1, 2015).
- g. Plan Accounting. After allocation, all contributions, whether employee or employer contributions, shall be separately accounted for (e.g., Company Target Benefit Plan contributions and Company Defined Contribution contributions) within the 401(k) Plan.
- h. All investments of Defined Contribution contributions shall be self-directed by the individual pilot within available plan options.
- i. 415(c) Limits. Any annual additions made to the 401(k) Plan that are in excess of the maximum limits imposed by the IRC will be reduced by first returning any after-tax contributions made to a pilot's account during the plan year, then by returning any pre-tax or Roth elective contributions made to a pilot's account during the plan year, and finally by deducting any Company contributions made to a pilot's account during the plan year, subject to Subparagraph 25.B.5.d.

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C. THE RETIREMENT PLAN FOR PILOTS OF HAWAIIAN AIRLINES, INC.

The Retirement Plan, as amended from time to time with the mutual agreement of the Company and the Association, is incorporated as part of this Agreement, and attached hereto as Appendix C.

1. Group A and B pilots eligible. A pilot who is hired after June 30, 2005 shall not participate in the Retirement Plan. Group A and B pilots shall continue to be eligible to participate in the Retirement Plan as provided further in this Subsection 25.C (Retirement Plan for Pilots of Hawaiian Airlines, Inc.) of the Agreement.
2. Retirement Plan Partial Freeze. Effective as of January 1, 2008, benefits under the Retirement Plan shall be frozen (i.e., final average earnings and credited service shall not increase on or after January 1, 2008, except that Final Average Earnings shall be subject to the provisions of Subparagraphs 25.C.6 and 25.C.7) and Vested Service shall continue to accrue for Group A and B pilots. Notwithstanding the preceding sentence, any Group A pilot, i.e., a pilot who was a participant in the Retirement Plan on July 1, 2005 and was age 50 or older on that date (including, but not limited to, pilots who were on furlough on that date), shall continue to accrue benefits under the Retirement Plan until the pilot retires.
3. Disability Retirement Benefits. Disability Retirement benefits shall no longer be provided under the Retirement Plan with respect to any pilot (including Group A pilots) who becomes/became disabled (within the meaning of Subsection 7.3 of the Retirement Plan) on or after June 1, 2005. Notwithstanding the foregoing sentence, any pilot who became disabled (within the meaning of Subsection 7.3 of the Retirement Plan) prior to June 1, 2005, and his survivors, shall continue to be provided Disability Retirement benefits under the terms of the Retirement Plan in effect before June 1, 2005.
4. Payment Processing Procedures. The Company shall adopt the following procedures to ensure that pilots shall receive monthly retirement benefits under the Retirement Plan no later than the month following the month in which they retire.
 - a. Three (3) months prior to the date of normal retirement, or the announced date of early or Disability Retirement (to the extent Disability Retirement is available), if known, the Company shall process the necessary documents for forwarding to the paying agent(s).
 - b. When calculating initial retirement benefits for a pilot, the Company shall use the most accurate and current payroll information available. Pension entitlement shall be adjusted to reflect actual earnings as soon as possible after the pilot's retirement date.
 - c. A married pilot who has not provided the Company with a choice of retirement options as required by the Retirement Plan shall receive benefits based on the assumption that the survivor benefits payable to their spouse shall be fifty percent (50%) of the pilot's entitlement (before adjustment for survivor benefits) as required by ERISA.
5. Vacation Credits and Calculation of Retirement Plan Benefits
 - a. A pilot retiring on or after Normal Retirement who has vacation remaining to his credit shall have such vacation's dollar value taken into consideration in the determination of his Final Average Earnings for purposes of the Retirement Plan only to the extent that the

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consideration of such vacation does not cause a decrease in the Member's Final Average Earnings. The salary to be used in the valuation thereof shall be the salary in effect on his last day of active service. The number of days of vacation remaining as of the pilot's last day of active service, plus the days equal to the accrual on said vacation, shall be added to the end of their thirty-six (36) month period for purposes of determining Final Average Earnings and a similar amount of days subtracted from the beginning of the thirty-six (36) month period. The Earnings to be added to the end would be based on the pilot's salary as of their last day of active service. The Earnings to be subtracted from the front end of the thirty-six (36) months shall be taken from the pilot's pay record. If a pilot's benefit was frozen prior to their Normal Retirement Date, the dollar value of the vacation described in this paragraph shall be based on the pay rates in effect on the freeze date (i.e., January 1, 2008.) However, notwithstanding the foregoing, the vacation payment to the pilot at termination of employment for vacation earned, but not received, shall continue to be based on the pay rates at the time of his termination of employment, pursuant to Subsection 6.M (Voluntary Vacation Cash-out) of this Agreement.

- b. A pilot retiring on Early Retirement who has vacation remaining to his credit may elect to take such vacation prior to retirement. If a pilot retiring on Early Retirement who has vacation remaining to his credit elects to take payment for such accrued vacation, such payment shall not be included in the computation of either credited service or Final Average Earnings under the Retirement Plan.
 - c. A pilot retiring on Disability Retirement after becoming disabled on or before May 31, 2005, who has vacation remaining to their credit, may elect to take such vacation prior to exhaustion of their compensable sick leave. If a pilot retiring on Disability Retirement after becoming disabled on or before May 31, 2005 elects to receive payment for accrued vacation after their compensable sick leave is exhausted, such payment shall be considered payment upon termination and shall not be used in the computation for credited service, but shall be used in the computation for Final Average Earnings to the extent the consideration of such vacation does not cause a decrease in a pilot's Final Average Earnings.
6. Retirement Plan Credit for Certain Sick Leave. A pilot retiring on or after Normal Retirement who has a minimum of two hundred and twenty-five (225) hours of sick leave remaining to their credit shall have such credits converted into Credited Service as defined in Subsection 4.1 of the Retirement Plan (utilizing seventy-five (75) hours per month) for purposes of determining his Normal Retirement pension in accordance with Subsection 8.1(a) of the Retirement Plan. If a pilot's benefit was frozen prior to their Normal Retirement Date, the additional credited service described in this Paragraph shall be added to extend their credited service beyond the original freeze date of January 1, 2008 (e.g., if the pilot's sick leave converted into four (4) months of credited service, their credited service would extend through April 30, 2008).
7. No Termination of the Retirement Plan. The Company shall not terminate or spin-off the Retirement Plan.
8. IRC Section 401(a)(17) Limits. Effective January 1, 2002, the amount of earnings considered in calculating a participant's accrued benefit under the Retirement Plan shall not exceed the two hundred thousand dollar (\$270,000 for 2017) compensation limit as specified in IRC section 401(a)(17), as adjusted from time to time in accordance with that section. The Company shall pay from its general assets a monthly benefit to any retired pilot affected by the compensation limit (described in the preceding sentence) equivalent to the difference between the pilot's actual

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monthly Retirement Plan benefit and the monthly Retirement Plan benefit the pilot would have received absent the compensation limit.

9. Pre-Retirement Death Benefits

- a. Group A Pilots. Group A pilots shall be governed by Section 10 of the Retirement Plan as in effect on August 1, 2006.
- b. Group B Pilots. Subsection 10.1 of the Retirement Plan shall be amended to provide that Final Average Earnings thereunder shall be determined as of an active Group B pilot's date of death. The death benefit so calculated shall be reduced by such pilot's Target Benefit contributions account value as of their date of death. To effect such reduction, the Target Benefit contributions account value shall be converted to a monthly annuity using (i) the Applicable Mortality Table (as defined in the Retirement Plan) (based upon the surviving spouse's age at the pilot's date of death) and the Applicable Interest Rate (as defined in the Retirement Plan) if the Pilot has a surviving spouse eligible for death benefits under Subsection 10.1 of the Retirement Plan or (ii) the longest potential payout period and the Applicable Interest Rate (as defined in the Retirement Plan) if the pilot is survived only by non-spousal dependents eligible for death benefits under Subsection 10.1 of the Retirement Plan.

10. Retirement Plan Actuarial Assumptions

- a. The Company will contribute to the Retirement Plan an amount not less than the minimum required contribution determined using reasonable actuarial methods and assumptions, where such assumptions and methods are not prescribed under the IRC.
- b. Methods and assumptions prescribed under the IRC as of January 14, 2010 are:
 - Actuarial cost method (Unit Credit)
 - Mortality table (RP-2000 projected with annual improvements)
 - Interest rates (Segment rates for Target Normal Cost, eight and twenty-five hundredths percent (8.25%) for Target Liability)
 - Applicable expenses included in the Target Normal Cost
- c. The assumptions and methods, where not prescribed, will (subject to annual review), be chosen by the Company and the Actuary, in consultation with the Association.
- d. The Company recognizes its responsibility for the pension plan liabilities and acknowledges that its funding policy should not treat the minimum required contribution as a standard or default contribution amount. Funding decisions will be made at a level the Company reasonably determines is appropriate based on the following factors: the Plan's ongoing liability requirements, the Plan's future ability to pay in full all accrued benefits to all Pilot Participants, the Company's business plan, and the Company's financial condition at such time as decisions are made. Consistent with the foregoing sentence, for Plan Years in which the Plan is not fully funded, the Company, in consultation with its Actuary will establish an appropriate contribution plan designed to improve the funding level of the Plan. The

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Company will also maintain a funding level such that statutory restrictions on the accrual of benefits will be avoided.

- e. At semiannual meetings of the Retirement Board, the Company will provide to the Board a briefing that includes the following information: 1) the investment performance of the Plan assets; 2) the asset allocation of the Plan assets and any anticipated changes in the Plan's asset allocation strategy; 3) a review of the most recent Actuarial Valuation Report and the funded status of the Plan; and 4) the Company's anticipated funding plan for the then current Plan Year, taking into account the factors in the immediately preceding Subparagraph 25.C.10.d.
- f. If Congress should pass any additional funding relief that may be available to the Plan, the Company shall consult with the Retirement Board in advance of any election to utilize such relief.

D. THE RETIREMENT BOARD

- 1. Establishment. There shall be established a Retirement Board (hereinafter referred to as the "Board") for the purpose of hearing, determining, and resolving all disputes which may arise out of the application, interpretation, or administration of the Retirement Plan, the 401(k) Plan, and the Disability & Survivors VEBA ("D&S VEBA"), or with respect to the Trustee or Trustees or Insuring Companies utilized in connection therewith (hereinafter, the "Benefit Programs").
- 2. Composition. The Board shall consist of four (4) members; the Company shall select two (2) members, and the Association shall select two (2) members. One (1) of the Association-appointed members of the Retirement Board may be a retired pilot. The Company shall establish its own rules for the selection of the members of the Board to be selected by it and the Association shall likewise establish its own rules for the selection of the members of the Board to be selected by it. The Company shall also select one (1) alternate member who may act for either of the two (2) members of the Board appointed by the Company in the event of the absence or inability to act of one (1) of such members, and the Association shall likewise select one (1) alternate member who may act for either of the two (2) members of the Board appointed by the Association in the event of the absence or inability to act of one (1) of such members. Either the Company or the Association at any time may remove a member appointed by it and may select a member to fill any vacancy among the members selected by it. Both the Company and the Association shall, in writing, notify each other respectively concerning such selections, which shall continue until further written notice.
- 3. Quorum and Voting. Three (3) members of the Board shall constitute a quorum for the transaction of business. At all Board meetings, Company members present shall be entitled to one (1) vote each and Association members present shall be entitled to one (1) vote each. If at any such meeting two (2) Company members are not present, the Company member present may cast two (2) votes and if two (2) Association members are not present, the Association member present may cast two (2) votes.
- 4. Subcommittees. The Board shall have the authority to appoint subcommittees from among the members of the Board to handle any problem within the jurisdiction of the Board. Such subcommittee(s) shall report exclusively to the Board.
- 5. Expenses. The compensation, travel, and other reasonable living expenses, if any, of members of the Board selected by the Company which are incidental to the holding of such meetings and

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- performing functions of the Board, shall be paid by the Company. The compensation, travel, and other reasonable living expenses, if any, of members of the Board selected by the Association that are incidental to the holding of such meetings and performing of the Board, shall be paid by the Association.
6. Decisions. All decisions and actions taken by the Board shall be by the affirmative vote or agreement of not less than three (3) members and shall be in writing. All decisions of the Board shall be final and binding upon the Company, the Association, and any other person having an interest in, under, or derived from the Retirement Plan or the Disability Plan.
 7. Disputes
 - a. If the Retirement Board shall fail to agree on any matter or dispute coming before it, it shall, within ten (10) days from the date of such failure to agree, designate an Impartial Referee. If the Retirement Board does not agree upon the selection of an Impartial Referee within such ten (10) day period, then either the Company or the Association may apply to the National Mediation Board (NMB) for the designation by the NMB of an Impartial Referee. The matter or dispute shall be submitted to such Board sitting with the Impartial Referee who shall act as Chairman during the proceedings pertaining to such matter. Such Impartial Referee shall have one (1) vote. Three (3) affirmative votes shall be required to render a decision or determination on matters coming before the Board sitting together with the Impartial Referee.
 - b. The compensation and expenses of the Impartial Referee and expenses incident to the conduct of the proceedings coming before the Board shall be shared equally between the Company and the Association.
 8. Meetings. Meetings of the Board may be called by mutual agreement of the members at any time without notice or by any two (2) members of the Board upon thirty (30) days' notice to the other members of the Board. Such meetings shall be conducted at the Company's offices unless otherwise agreed to by the members of the Board.
 9. Powers of the Retirement Board
 - a. The Board shall determine all disputes that may arise out of the application, interpretation, or administration of the Benefit Programs, or concerning participation in or benefits under the Benefit Programs, with respect to the pilots covered thereby. The Board shall have full power to affirm, reverse, or otherwise modify any decision or administrative action or proposed action that gave rise to any dispute.
 - b. The Board shall have no power to add to, or subtract from, or modify any terms of any Plan or the Pilots Working Agreement.
 - c. The Board shall have the power to establish rules of procedure for the conduct of its business and of hearings before it, which rules shall not be inconsistent with the provisions of this Agreement.
 - d. The Retirement Board shall be responsible for determining the investment options under the 401(k) Plan. The Retirement Board shall review the transaction fees for the 401(k) Plan brokerage account to ensure that those fees are reasonable. The Company shall use its best

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efforts to reach agreement with the plan vendor that there shall be no annual fee for the brokerage account.

10. Review Functions of the Retirement Board

The Board shall have the following rights and review functions:

- a. To examine, during normal business hours, all books, records, reports, regulations, and procedures relative to the Benefit Programs, including, but not limited to, Trustee and insuring company instruments, amendments, annual reports filed with the Department of Labor and Internal Revenue Service, Actuarial, Trustees' and insuring companies' reports, for the Benefit Programs, the Trust Funds, and VEBA accounting, and related data.
- b. The Company, the Trustee, and the Insuring Company, as the case may be, shall furnish to the pilot members of the Board and the Association all records and material set forth in Subparagraph 25.D.10.a within thirty (30) days from the date on which such material may have been prepared or compiled; and in any case, annual reports filed with the Department of Labor and Internal Revenue Service, Actuarial Reports, Trustees' and insuring companies' reports for the Benefit Programs shall be furnished to the pilot members of the Board and the Association not less frequently than once each year. The pilot members of the Board may request and shall be entitled to receive additional material and data relating to the foregoing.
- c. The Retirement Board shall review the status and administration of the Benefit Programs, and in the appropriate case make recommendations to the Company, the Association, the Trustees, and Insuring Companies and the members thereon. The Board shall prepare periodic reports with respect to its functions, actions, and decisions and supply the same to the Company and the Association.

11. Reliance on Information

The Board and any members thereof shall be entitled to rely upon the correctness of any information furnished by the Company and the Association. Neither the Board nor any of its members, nor the Association, nor any officers or other representatives of the Company shall be liable because of any act or failure to act on the part of the Board, or any of its members, except that nothing herein shall be deemed to relieve any such individual from liability for his own fraud or bad faith.

E. PROCEDURES FOR APPROVAL, ACCESS, AND MODIFICATIONS TO THE RETIREMENT PROGRAM

Time for Providing Plan Amendments. Plan amendments and/or new plan documents to implement the provisions of this Agreement with respect to the Retirement Plan and the 401(k) Plan shall be provided for review and approval by the Association, with a minimum approval period of ninety (90) days.

F. LUMP SUM CASH PAYMENTS TO GROUP B PILOTS

1. Effective April 1, 2017, the Company shall no longer be required to make Target Benefit Contributions to Group B Pilots as provided in Subparagraph 25.B.2. In lieu of the Target Benefit Contributions, the Company shall make non-elective employer Defined Contributions to

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the 401(k) Plan for each eligible Group B pilot pursuant to Subparagraph 25.B.3 and pay to each eligible Group B pilot a lump sum cash payment calculated in accordance with Subparagraph 25.F.3.

2. From July 1, 2016 and continuing through March 31, 2017 (the “Interim Period”), the Company shall continue to make Target Benefit Contributions to the 401(k) Plan pursuant to the terms of Subparagraph 25.B.2.
3. The Company shall pay Group B pilots a lump sum cash payment, as described in this Subparagraph 25.F.3, as follows:
 - a. Present Value Lump Sum
 1. Step 1. Calculation of Retirement Age Lump Sum. The Company shall calculate a Retirement Age Lump Sum for all Group B pilots as of July 1, 2016. The Retirement Age Lump Sum shall equal the difference (not less than zero (0)) between the amount reflected on Line 12 (Lump Sum Value) and the amount reflected on Line 13 (Value of Notional Account) in the Segal file “Hawaiian Pilot Target Plan Information_Jan2016Val_15%_v2.xlsx,” with adjustments for pilots over age sixty (60) as of April 1, 2017 to reflect assumed retirement as of the last day of the month immediately preceding April 1, 2017.
 2. Step 2. Present Value. The Retirement Age Lump Sum, which represents retirement age values at a future date, shall be adjusted to present value as of the end of the Interim Period, using the pre-retirement assumptions currently used for the Target Benefit Contributions in the 401(k) Plan. This adjusted value shall be referred to as the Present Value Lump Sum (“PVLS”).
 3. Step 3. Adjustments to PVLS. The PVLS shall be subject to adjustment as a result of Target Benefit Contributions made by the Company during the Interim Period. For those pilots in Group B who receive a Target Benefit Contribution greater than fifteen percent (15%) during the Interim Period, the PVLS will be reduced by the notional Target Benefit Contribution amount above fifteen percent (15%) of Valuation Pay.
 4. Restoration Payments. For any Group B pilot who receives an Annual Contribution Percent of less than fifteen percent (15%) during the Interim Period (as indicated on the Segal file “Hawaiian Pilot Target Plan Information_Jan2016Val_15%_v2.xlsx”), the Company shall make a payment, if any, equal to fifteen percent (15%) of Valuation Pay minus the Target Benefit Contribution that was made to the notional account during the Interim Period.
 5. The PVLS and Restoration Payments shall be paid as soon as practicable, but no later than May 1, 2017.
 6. Form of Payment. The PVLS and Restoration Payments shall be paid as a lump sum payment to the pilot, not subject to elective deferrals, and excluded from Compensation for purposes of the fifteen percent (15%) Defined Contribution contribution in the 401(k) Plan.
 7. The Company shall gross-up the PVLS and Restoration Payments by multiplying these payments by one and two tenths (1.2).

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

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HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 26

GENERAL

A. UNIFORMS

1. The Company shall consider the recommendations of the pilots before any change in the style, color, or material of uniforms is made and a reasonable effort to reach agreement between the Pilots Uniform Committee and the Company shall be made. Before any change in uniforms is made, sufficient notice shall be given to allow for reasonable wear of existing uniforms.

B. PILOT LIABILITY

1. A pilot or a pilot's estate shall not be required to pay the cost of any repair or replacement of any Company aircraft, equipment, insignia, or emblems unintentionally lost or damaged. Further, a pilot shall not be charged for the original issue of such items. However, failure to return Company property in a timely manner will result in pay being withheld for the purpose of covering the cost of any unreturned item(s).

C. COPY OF THE AGREEMENT

1. The Company shall, within sixty (60) days after the signing of this Agreement, provide free of charge, electronic access on the Flight Division website and loaded onto each pilot's EFB, a copy of the Agreement, all Letters of Agreement, including medical and dental, and the Retirement Plan.
2. All future Letters of Agreement shall be incorporated into the Agreement as revised pages. ALPA shall provide the Company with the revised pages after the Letter of Agreement is fully executed and the Company shall, within sixty (60) days after receiving such revised pages, provide free of charge, each pilot with a copy of such revised pages electronic access on the Flight Division website and loaded on to each pilot's EFB.

D. SPECIAL FLIGHTS

1. A pilot may refuse to fly any flight that requires waiver of FARs covering hazardous materials.
2. The following flights may be flown only by check airmen, supervisory pilots, or pilots jointly designated by the Company and the MEC's Central Air Safety Committee:
 - a. Test flights following "D" checks or greater.
 - b. Test flights as specified by the HAL Standard Practice Manual as amended.
 - c. Acceptance flights for new or used aircraft.
 - d. Engine-out ferry flights.
3. Any pilot may be assigned to fly an airworthiness Ferry Flight that has been duly released by a qualified Maintenance Inspector.
4. A pilot shall not be required to ferry an aircraft with one (1) or more engines inoperative or which is not airworthy. A pilot shall not ferry an aircraft who has not been trained and qualified to perform such flights.

E. PERSONNEL FILES.

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1. Right to Inspect Files. A single master personnel file shall be maintained on each pilot in the employ of the Company in the Flight Operations Office and shall contain all progress reports, all written orders issued to them affecting a change of station or status, copies of all reports and orders issued concerning their pilot status, all summary records of practice, training and flight checks, and any other supervisory reports involving said pilot. A single training file may be maintained on each pilot at the Training Division and shall contain all records associated with training, including grades received on all examinations and instructor evaluations involving said pilot. All orders to pilots assigning them to special duties shall be in writing. A pilot's personnel file and training file shall be open for inspection by said pilot on request to the Chief Pilot or their designee. Nothing herein shall prevent the Company from maintaining duplicate files.
2. A pilot must receive a copy of any written information of a derogatory, negative, or adverse nature being placed in their file. If they do not receive a copy of such material, it shall not be used, nor shall the Company contend that it may be used, in any action against the pilot.

F. PILOT INDEMNIFICATION IN LEGAL ACTIONS

1. The Company shall, at its own expense, provide adequate legal representation for any pilot named as a defendant or subpoenaed as a witness in any legal proceedings arising out of such pilot's performance of their duties with the Company; and shall provide suitable bond or shall otherwise indemnify such pilot or their estate against any money judgment or award rendered against them.

G. INTERLINE/PASS PRIVILEGES.

1. The essential components of Subsection 26.G (Interline/Pass Privileges) are:
 - a. A ticketing system which is fast and simple.
 - b. Aggressive interline agreements.
 - c. Employee, Family, and companion travel.
2. The Company shall seek passes and/or reduced fare privileges to the maximum extent permitted by law and/or interline agreements, for both active and retired Hawaiian Airlines pilots and their eligible dependents as well as survivors of deceased pilots. Pilots shall receive all benefits permitted by interline agreements with various foreign and domestic carriers.
3. The Company shall provide free unlimited space available transportation privileges on all flights operated by Hawaiian Airlines, Inc., including charters, with the exception of military air charters, for both active and retired Hawaiian Airlines pilots and their eligible dependents, as well as eligible survivors of deceased pilots with ten (10) or more years of service, whether or not such pilots died while in active service with the Company.
4. Pilots shall retain all travel privileges and benefits in effect and available to pilots as of January 14, 2010 under the Company Pass Policy which were formerly controlled by the Employee Pass Policy Committee ("EPPC"). Such privileges, including but not limited to boarding priority, shall not be reduced without the consent of the Association. Henceforth, if the Company provides an improved travel benefit after January 14, 2010 to any other employee group, it shall provide the same or equivalent benefit to pilots.

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5. A pilot on furlough from Hawaiian Airlines shall have the pass privileges provided in Subparagraph 26.G.2 on Hawaiian Airlines for sixty (60) days from the date of such pilot's furlough. The Company agrees that exceptions to this policy will not be unreasonably or arbitrarily withheld.
6. Pilot travel status while participating in the Hawaiian Airlines Inc. Voluntary Employee Beneficiary Association Disability and Survivors' Benefits (D&S VEBA) Plan.
 - a. Within two (2) years of a pilot's date of disability, as defined in the D&S VEBA Plan, there will be no change to the pilot's priority, i.e., the pilot will travel as an active employee for non-revenue travel.
 - b. After the initial two (2) year period in Subparagraph 26.G.6.a, such pilot's status for the purpose of non-revenue travel will be to that of a retiree, based on their years of service and age consistent with standard retiree travel benefits.
 - c. For the purposes of seeking medical treatment, a pilot covered by Subparagraph 26.G.5.b, (and their single eligible travel dependent as necessary), may be granted non-revenue travel at the same priority as if they were an active employee, provided such pilot's name remains on the Pilots' System Seniority List in accordance with Subsection 11.C (Leave of Absence Due to Sickness or Injury) of the PWA. A pilot wishing to utilize this provision must make such a request to the Chief Pilot and provide supporting documentation as needed, with as much advance notice as possible. The Company will not deny such reasonable request.

H. BANK DIRECT DEPOSITS

1. Upon request, the Company shall have the Bank of Hawaii, or such other bank the Company may designate, arrange to direct deposit the paycheck of any pilot to the bank of their choice. Such deposit shall be sent to the pilot's account within twenty-four (24) hours of the last payroll working day prior to the seventh (7th) and twenty-second (22nd) of each month for the preceding month. Timely receipt and crediting to the pilot's account, however, is beyond the control of both the Company and the Bank.
2. The above pay day amendments shall become effective the later of ninety (90) days from the effective date of this Agreement or ninety (90) days prior to first day of the month in which the change will be made. In either case, the Company shall notify all pilots ninety (90) days prior to the month during which the change will be made to the seventh (7th) and the twenty-second (22nd).
3. When a holiday and weekend align such that there would be less than the twenty-four to thirty-six (24-36) hours necessary to process the pilot payroll between the close of the bid month and the crew payroll banking deadline, the Company may process crew payroll utilizing scheduled pay hours rather than actual pay hours for the last two (2) days of the bid month in accordance with the following:
 - a. The Company shall reconcile any difference between scheduled and actual pay hours as soon as possible after the close of the bid month and shall make any necessary adjustments in the next scheduled paycheck (or subsequent paychecks as necessary in the case of Subparagraph 26.H.3.d.).

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- b. The Company shall provide written notice to the Association of their intent to utilize these procedures as soon as possible in the calendar year, and shall also notify pilots of their intent to utilize these procedures via the monthly bid letter for that given month.
 - c. The Company shall provide each pilot whose paycheck is affected by this process a separate notification of the amount of any necessary adjustment.
 - d. The maximum negative adjustment to any given paycheck shall be five hundred dollars (\$500). In the event that the total necessary adjustment exceeds five hundred dollars (\$500), such total adjustment shall be made over subsequent paychecks in increments of five hundred dollars (\$500) or less until collected in full. This payment plan only applies to adjustments covered under Subparagraph 26.H.3.
4. Mailing - If a pilot does not have direct deposit, except for pilots with a residence on Oahu, paychecks will be express mailed to the pilot's permanent Domicile or to the pilot's home address as specified in Subparagraph 26.M.2 if so requested by the pilot.

I. NEW EQUIPMENT

- 1. Equipment other than B717, A321, B767, B787, or A330 shall not be flown in revenue operations until an agreement has been signed covering the rates of pay, rules and working conditions of such other equipment. Parties agree to meet to negotiate such rates of pay, rules and working conditions within two (2) weeks after written notification by the Company of intent to acquire new equipment, unless mutually agreed to extend this time limit.
- 2. In the event the Parties have not previously agreed upon an hourly pay rate and work rules for any new equipment, the Parties agree to submit the question of such hourly rate and work rules to a mutually acceptable arbitrator for determination thirteen (13) months prior to projected delivery of the first such aircraft. Such arbitrator shall accept the "U.S. Industry Standard" for such aircraft and comparable aircraft as the baseline for consideration and shall render a decision within thirty (30) days.

J. RECORDING OF PILOT PERFORMANCE

- 1. No recording system or data transmitting (including "ACARS") device shall be used to record pilot performance parameters. Further, the Company shall not use any information gathered from any type of recording or data transmitting device installed in an aircraft in any discipline or discharge actions.

K. OPERATIONAL PROCEDURES RECOMMENDATIONS

- 1. The Company shall consider written recommendations made to it by the Hawaiian Airlines Pilots Operations Committee and the Safety Committee when discussing changes in airport arrival and departure procedures and minimums at any airport served by the Company.

L. LOUNGES

- 1. The Company shall provide separate lounge, locker room, and restroom (with shower and MEC office at Honolulu) for the exclusive use of the pilots at each pilot Domicile. The adequacy of all such facilities shall be mutually agreed to between the Company and the MEC.

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2. Notwithstanding the provisions of Subparagraph 26.L.1, the Company shall, for Domiciles in the state of Hawaii (excluding Honolulu), only, in lieu of a pilot lounge, mail all Company correspondence directly to each pilot's home address.
3. The Company will ensure remedial cleaning and repair, periodic maintenance, monthly service, semi-annual service, and bi-annual service is performed per clarification letter "Cleaning Schedule A."

M. COMPANY IDENTIFICATION

1. A Company laminated identification card, with photograph, shall be issued to each pilot. Such identification shall at least show the pilot's date of hire, payroll number, and indicate that they are a pilot, in addition to any other information required by Company regulation.

N. DISCRIMINATION

1. There shall be no discrimination between employees covered by this Agreement because of race, sex, creed, color, age, or national origin.

O. MERGE OR CONSOLIDATE

1. The Company shall notify the Association promptly in writing, upon the Company's filing of notice with the SEC, Department of Transportation, or other governmental agency, of its intent to merge or consolidate. Either the Association or the Company may request an opening of the Agreement under Section 5, Title I of the Railway Labor Act, as amended, for the purpose of negotiating labor protection clauses only, by submitting an opener within fifteen (15) days from the date of said written notice of intent to merge or consolidate.

P. RELEASE OF INFORMATION

1. Any time information is requested by any government agency, the pilot(s) involved shall be advised upon release of such information.

Q. OPERATIONS/SAFETY MEETINGS

1. Periodically, but not less than each six (6) months, safety and operating procedures will be reviewed at a meeting(s) between the Company and the Pilots' Operations and Safety Committee.

R. MEMORANDA

1. Pilots shall be copied on all memoranda relative to operational methods and procedures involving aircraft flight and ground operations.

S. INTENTIONALLY LEFT BLANK

T. ENTITLEMENT PROVISIONS

1. The Company shall furnish retiring Hawaiian Airlines pilots, or, if deceased, their eligible dependents, a list of entitlements available under the terms and provisions of this Agreement and any other information as stipulated by the Retirement Board.

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U. COCKPIT OBSERVER AUTHORITY (JUMPSEAT)

1. All procedures (issues of status and priority) with respect to any new policy implemented, or existing policy that becomes modified, will be determined solely by the ALPA Jumpseat Committee, after consultation with the Company. The ALPA Jumpseat Committee will insure all guidelines and procedures comply with all Federal Regulations.
2. The Company will not implement new policies or modifications to the current policy without first consulting with the ALPA Jumpseat Committee.
3. Pilots shall be authorized Cockpit Observer Authority (Jumpseat) in Hawaiian Airlines aircraft on a space available basis. Requests for such authority shall be processed on a “first-come, first-served” basis. When two (2) pilots make a simultaneous request for such authority on the same flight, the more senior pilot’s request shall be honored. Hawaiian Airlines pilots shall have displacement rights over all other space available authorized Cockpit Observers. The Captain on each flight shall have the authority to authorize any jumpseat user within the provisions set forth in the applicable Federal Air Regulations. Such authority shall not be used to circumvent any provisions of this Agreement or established Company policy regarding eligibility and priority. The ALPA Jumpseat Committee will develop the guidelines and procedures to be used to insure all Federal Regulations are complied with.
4. The Company will authorize each pilot’s request for Cockpit Observer Authority (Jumpseat) on all other carriers and will support such pilot’s requests for such transportation with all other carriers.
5. CASS: The parties have agreed to use their best efforts to implement Hawaiian Airlines participation in the Cockpit Access Security System at the earliest possible time. To this end it is agreed that:
 - a. The Company will support the capital cost of System development and installation of up to fifty thousand dollars (\$50,000) and an annual maintenance cost up to fifteen thousand dollars (\$15,000) per year.
 - b. In the event of costs beyond these amounts, the Hawaiian Airlines MEC shall be responsible for securing additional necessary funding.
 - c. The Company and ALPA shall review and agree to final cost estimates and an implementation schedule for the program based on those estimates.
6. To the extent permitted by the Federal Air Regulations, pilots furloughed by the Company will be allowed for one (1) year after their layoff dates to utilize jumpseat privileges on Company aircraft. The Company will also assist such pilot in obtaining jumpseat authorization on other airlines.

V. FREE TRANSPORTATION FOR ALPA STAFF MEMBERS

1. The Company shall provide free transportation over its routes for Association staff members for the purpose of conducting business with the Company, subject to appropriate government approval. All ALPA travel, including Hawaiian Airline pilots, is positive space P1BW/F2 (or equivalent).

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W. COMPANY ORDERS

1. All orders to pilots involving promotions, demotions, furloughs, and leaves of absence shall be stated in writing, except that temporary duty of Captains, First Officers shall not be construed as requiring a written order other than the necessary flight forms.

X. PILOT PAY RECORDS

1. The Company shall, within thirty (30) days after the close of each calendar year, forward to the Association's comptroller and the MEC Chairman a complete list of all pilots employed during the year. The list shall include each pilot's payroll number, and total gross earnings for the year. Additionally, such list shall show the pilot's status, active or inactive, and, if inactive, the date such pilot was placed on furlough and the subsequent recall date, if applicable.

Y. ADDITIONAL CREWMEMBER SEATING

1. Whenever an IRO or an ER crew is scheduled on a given flight Segment, a First Class seat or two (2) First Class seats, respectively, shall be reserved and maintained for the exclusive use of the cockpit crew for crew rest purposes. Such crew rest seat(s) shall be located:
 - a. In the case of the A330 when the LDMCR is inoperative or not installed, in the two (2) First Class seats located in the last middle row of seats in First Class. One seat shall be provided for each additional pilot in either an IRO crew or an ER crew (e.g. 1 seat for a 3-pilot crew, 2 seats for a 4-pilot crew).
 - b. In the B787 when the Overhead Flight Crew Rest Facility (OFCR) is inoperative, the following procedure is available for a maximum of one (1) flight Segment:
 - 1) If the FDP or Flight Time required to operate the flight on its normal schedule and routing necessitates, the Company may provide up to two (2) bunks in the Overhead Flight Attendant Rest Facility (OFAR). The two (2) bunks will be labeled "alternate pilot bunks", and a laminated briefing card (with appropriate FOM sections) will be supplied to inform the flight attendants of the required policies during pilot usage (noise levels, temperature control, etc.).
 - 2) If the time of discovery of the maintenance item causing the deferral of the OFCR is within ninety (90) minutes of scheduled departure, the restriction of one (1) flight Segment provided in 26.Z.1.b may be extended for one (1) additional flight Segment.
 - c. If both the B787 Overhead Flight Crew Rest Facility ("OFCR") and the Overhead Flight Attendant Rest Facility ("OFAR") are inoperative, then the two (2) standalone/outboard First Class seats located in the last row of seats in First Class shall be utilized. One seat shall be provided for each additional pilot in the Augmented crew (e.g., 1 seat for a 3-pilot crew, 2 seats for a 4-pilot crew).
 - d. In two-aisle aircraft, in the last, middle row of seats in First Class; provided, however, that in the B787, the standalone/outboard first class seat(s) in the last row of First Class seats shall instead be reserved.
 - 1) Should the Company reconfigure the 787 LOPA, as described on 06/12/2020, or acquire B787 with a different LOPA, the two parties shall meet and negotiate the proper rest location on the B787 with a different LOPA. If the two parties cannot come to agreement

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on the location of the reserved First Class seats, then flights without an operable OFCR and/or OFAR shall not be permitted.

- 2) In the A330, when seat 3C is needed by an air marshal, the alternate crew rest seat shall be seat 3G.
 - e. On single aisle aircraft, such seat(s) shall be a window seat in the last row of seats in First Class.
 - f. In the case of an aircraft with a single class of service, two adjacent crew rest seats shall be reserved for each crew rest position. Such seats shall be located in the last row of the most forward section of the passenger cabin. One such seat shall be a window seat.
 - g. In the case of a and b of this paragraph, and to the extent that there are additional available empty seats after all other passengers have been accommodated, the Company will make every reasonable effort to assure that there is an additional empty seat next to the pilot crew-rest seat.
 - h. At the Captain's discretion, even on a full flight, a cockpit jumpseater may occupy either a cockpit jumpseat or the First Class seat assigned to the IRO crew. For all purposes, the IRO crew seat shall be considered a part of the flight crew's seating.
2. Layovers.
- a. In the event that Federal Aviation Regulations and the provisions of this Agreement will permit a grouping to be crewed either through the use of IRO Crew or a non-augmented crew with a layover, the Company will determine crew configuration. However, in such case, the Scheduling Committee may request that the relative costs of both crew configurations be analyzed. A meeting will be held promptly between the Vice President of Flight Operations (or designee) and the Committee. The relative costs shall be determined by considering hotel, per diem, and Deadheading expense, and total Pay and Credit. Provided the cost difference is within the range established by Subparagraph 21.B.7, the Scheduling Committee may determine which of the two (2) crew configurations will be scheduled for the grouping.

Z. APPLICABILITY

1. All paragraphs in this Agreement apply to all pilots unless the paragraph specifies otherwise. If a paragraph specifies international flying or international pilot, then that paragraph applies to international pilots only. If a paragraph specifies interisland flying or interisland pilots, then that paragraph applies to interisland pilots only.

AA. PILOT BOARD MEMBER

1. The Company agrees to include on its Board of Directors, one (1) person nominated by the Hawaiian Airlines Pilot MEC, pursuant to the terms contained in Subparagraph 5 of the 1996 Restructuring Agreement.

BB. ELECTRONIC COMMUNICATIONS

1. Official Company Bulletins and information, including, but not limited to, Vacancy Notification Bulletins, Monthly Award Bulletins, and furlough Notice Bulletins, shall be distributed to all pilots electronically (via Company e-mail) per the applicable timeline

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requirements set forth in the PWA. Such bulletins shall simultaneously be posted to the Company website.

CC. ESTABLISHMENT OF AN OPERATIONS LIAISON COMMITTEE

1. The Company agrees to appoint three (3) people to the Operations Liaison Committee of which at least one (1) will be the COO or CEO of the Company. ALPA agrees to appoint three (3) people to the Operations Liaison Committee of which at least one (1) will be the Master Executive Council Chairperson. The first meeting of the committee shall be held on the second Tuesday in October of 1994. At that meeting the Company and ALPA shall each select one (1) of their respective members to be designated as Co-Chairpersons. Future meetings will be convened within ten (10) days after notice by either Co-Chairperson to the other Co-Chairperson that a meeting is desired, provided the Committee shall not be required to convene more than six (6) times in any calendar year or more than once in any calendar month.

DD. PBS PROJECT MANAGER

1. The Company will appoint a PBS Project Manager to facilitate the implementation of the PBS system.

EE. ECONOMIC STABILIZATION GUIDELINES

1. Should the Federal Government institute any form of wage review or controls with reporting requirements, the parties to this Agreement shall meet and jointly prepare and submit any and all reports to be filed with the government.
2. Should any portion of this collective bargaining agreement be deferred or cutback by action of the Federal Government, the parties shall meet within ten (10) working days and attempt to allocate the monetary equivalent of the disallowed wages and benefits in a manner that would result in government approval. If agreement on reallocation prior to submission to the government is not reached within fifteen (15) working days, the parties agree to submit the unresolved matters of reallocation to final and binding arbitration.

FF. EMPLOYEE COORDINATING COMMITTEE

1. The parties hereto have agreed to the formation and activation of an Employee Coordinating Committee (hereinafter referred to as the "Committee"), comprised of the Chairman of the Board, the President, and the Department Heads of each employee group represented on the Committee, and not more than two (2) MEC-designated representatives of each employee group; and it is agreed that the Committee will meet no less than monthly, at which meetings the members will be briefed relative to present position, goals, plans, and objectives of the Company. Department Head officials who are members of the Committee as set forth above will attend all such meetings. The Chairman of the Board and the President of the Company will attend such meetings whenever possible, but not less than quarterly. The Committee may also, through the Chairman of the Board, invite an outside member(s) of the Board of Directors to attend such meetings. The first meeting of the Committee will be held on or before March 31, 1984.
2. The designated representatives of employee groups serving on the Committee shall have an opportunity to present economic and operations problems and concerns to the Company

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along with recommended courses of action and goals, and the Company agrees to give full and fair consideration to such issues.

GG. TURBOJET RESTRICTIONS INTO MOLOKAI

1. The Company hereby establishes five (5) operational procedures applicable to revenue producing Segments into Molokai.
 - a. Turbojet landings limited to Runway Five (5) only.
 - b. Turbojet maximum VRef speed correction not more than fifteen (15) knots.
 - c. Turbojet dry runway operation based on the following reports from Molokai Airport personnel:
 - 1) Standing water on runway not more than twenty-five percent (25%) of runway surface area.
 - 2) Precipitation of anything less than RAIN (R).
 - d. Turbojet weather minimums: MDA 1360' (906' HAA) and visibility three (3) miles.
 - e. Turbojet not authorized for night operation. Night operation means any flying done between sunset plus twenty-four (24) minutes and sunrise minus twenty-four (24) minutes.
 - f. Recognizing the economic penalties imposed by these procedures, it is agreed that Segments canceled because of the limitation of these procedures shall be considered as Segments canceled due to weather.

HH. PBS SOFTWARE REVISIONS AND/OR HARDWARE MODIFICATIONS

1. All revisions or modifications to the PBS program software/hardware will be evaluated and approved by the Company and the Association prior to implementation to produce preferential bid awards.

II. DAYS OFF PRORATION

1. A Reserve Run pilot off line flying for training, bid vacation, relocation days, or all leaves (e.g., sick, military, ALPA, etc.) in any month shall have their days off prorated between the period of the month such pilot is off line flying and the period of the month such pilot is available for line flying.
2. The prorated days off due such pilot for the portion of the month such pilot is available for line flying presented in the table below are calculated by:
 - a. Subtracting the number of days in the training, vacation, relocation, or leave period from the total number of days in the month; and
 - b. Multiplying the remainder by a factor as determined below:
 - 1) Reserve Run Pilots:

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- a) International .40 in any month
- b) Interisland .40 in any month

c. Any decimal value shall be rounded up to the next whole number.

JJ. TABLE OF PRORATED ABSENCES

INTERNATIONAL & INTERISLAND RESERVE					
30-Day			31-Day		
Abs	Off	GDO	Abs	Off	GDO
0	12	6	0	12	6
1	12	6	1	12	6
2	12	6	2	12	6
3	11	6	3	12	6
4	11	6	4	11	6
5	10	5	5	11	6
6	10	5	6	10	5
7	10	5	7	10	5
8	9	5	8	10	5
9	9	5	9	9	5
10	8	4	10	9	5
11	8	4	11	8	4
12	8	4	12	8	4
13	7	4	13	8	4
14	7	4	14	7	4
15	6	3	15	7	4
16	6	3	16	6	3
17	6	3	17	6	3
18	5	3	18	6	3
19	5	3	19	5	3
20	4	2	20	5	3
21	4	2	21	4	2
22	4	2	22	4	2
23	3	2	23	4	2
24	3	2	24	3	2
25	2	1	25	3	2
26	2	1	26	2	1
27	2	1	27	2	1
28	1	1	28	2	1
29	1	1	29	1	1
30	0	0	30	1	1
			31	0	0

- If there is any dispute regarding the number of prorated days off a pilot is entitled to, the formula is controlling authority not the table.

KK. FLIGHT OPERATIONS QUALITY ASSURANCE (FOQA)

- The parties will establish a mutually agreeable Flight Operations Quality Assurance Program (see the Flight Operations Quality Assurance Letter of Agreement).

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LL. REST FACILITIES

1. General
 - a. Rest facilities will receive a deep cleaning at the same schedule as the aircraft cabin, however said cleaning shall occur no less than once every two (2) months.
2. A330 Rest Facilities:
 - a. For flights regularly scheduled to exceed eight (8) and twelve (12) hours of flight time, respectively, one (1) or two (2) passenger seat(s) shall be provided per paragraph 26.Y.1 “Additional Crewmember Seating.”
 - b. Pilots on flights regularly scheduled to exceed twelve (12) hours of flight time shall be provided comfortable and quiet sleeping quarters for the use of each crewmember while not on flight deck duty which meets the requirement of FAA Advisory Circular 117-1 dated 09-19-12. Except for when the A330 LDMCR is inoperative, a reclining seat, whether in the cockpit or cabin, shall not satisfy the requirements of this provision. Pilots on flights regularly scheduled as an IRO or ER crew shall be provided fresh linen, blankets, and first class pillows.
 - c. Lower Deck Mobile Crew Rest Facility:

Whenever the Lower Deck Mobile Crew Rest Facility is installed in the aircraft, the two (2) bunks which meet the FAA requirement for sleeping quarters shall be permanently designated as pilot bunks. The pilot bunks shall be restricted for use of operating or Deadheading flight deck crewmembers in the case of flights requiring an augmented cockpit crew, or, in any case, to pilots on the Hawaiian Airlines System Seniority List as authorized by the Captain. Such facility shall be installed on flights requiring an IRO crew if operationally feasible.
 - d. Single or Double Flight Crew Rest Facility:

Whenever a permanent Single or Double Crew Rest Facility is installed, such facility shall be restricted for the sole use of flight deck crewmembers or other pilots authorized to jumpseat in accordance with Section 26.U of the PWA when authorized by the Captain.
 - e. Seats Authorized for Takeoff and Landing:

Any seats located within a Flight Crew Rest Facility that are approved for takeoff and landing shall be limited to pilots on the Hawaiian Airlines Seniority List except as authorized by the Captain.
3. B787 Overhead Flight Crew Rest Facility
 - a. For flights regularly scheduled to exceed eight (8) and twelve (12) hours of flight time, respectively, one (1) or two (2) passenger seat(s) shall be provided per paragraph 26.Y.1. “Additional Crewmember Seating.”
 - b. Pilots on flights regularly scheduled as an IRO or ER crew shall be provided comfortable and quiet sleeping quarters for the use of each crewmember while not on flight deck duty which meets the requirement of FAA Advisory Circular 117-1 dated 09-19-12. Except for when the

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B787 Overhead Flight Crew Rest Facility is inoperative, a reclining seat, whether in the cockpit or cabin, shall not satisfy the requirements of this provision.

- c. All B787 aircraft departing a Domicile, or an outstation with an IRO or ER crew, shall be provisioned with no less than four (4) prepackaged bedding packets that shall include:
 - 1) One (1) Twin size cloth sheet
 - 2) One (1) Twin size blanket of suitable heft
 - 3) One (1) Standard sized (20in x 26in) pillow and case or
Two (2) First Class pillows (minimum of 17in x 17in)
- d. The bedding packets as described above shall be used only within the confines of the B787 Overhead Flight Crew Rest Facility.
- e. B787 Overhead Flight Crew Rest Facility shall be restricted for the sole use of flight deck crewmembers and, when authorized by the captain, pilots on the Hawaiian Airlines System Seniority list. Additionally, pilots not on the Hawaiian Airlines System Seniority list, when occupying a jumpseat in accordance with 26.U of the PWA, with the Captain's authorization, may use the B787 Overhead Flight Crew Rest Facility.
- f. Seats Authorized for Takeoff and Landing:

Any seats located within a B787 Overhead Flight Crew Rest Facility that are approved for takeoff and landing shall be limited to pilots on the Hawaiian Airlines System Seniority List and, when authorized by the captain, pilots not on the Hawaiian Airlines System Seniority list.

MM. FEDERAL FLIGHT DECK OFFICER (FFDO) TRAINING

- 1. A pilot scheduled to attend FFDO initial training or a five (5) year requalification training period ("RTP") shall timely submit a request, with supporting documentation and/or training verification, to have the necessary days designated as a pre-known absence. Requests for training days which fall within the reduced vacation periods specified in Subparagraph 6.E.a. shall only be awarded if available. If the pilot scheduled to attend FFDO training is notified of this training event after the commencement of the monthly Bidding Period, the pilot and the Company shall make reasonable efforts to accommodate the FFDO training dates as long as the training does not conflict with a published Company training period. A pilot may elect to be paid using accrued but unused vacation, on a day-for-day basis, for absences related to aforementioned FFDO training.

NN. PROFESSIONAL STANDARDS

- 1. In the interest of providing the highest standards of professionalism and safety among the pilots of Hawaiian Airlines and to insure that all pilots are treated fairly, consistently, and effectively, the Company and the Association have agreed to the following procedures for the resolution of cockpit conflicts. A cockpit conflict is defined as a conflict which arises between pilots and/or other Hawaiian Airlines employees in an operations environment that hinders smooth line operations or prevents one (1) or more employees from completing their job in a professional manner.
 - a. Complete confidentially regarding the Professional Standards Committee meetings will be maintained.

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- b. If one (1) of the parties involved in the dispute is a non-ALPA member, the Professional Standards Committee will coordinate any attempts at a resolution with the appropriate committee or official as necessary.
- c. Hawaiian Airlines' traditional authority and responsibilities shall not in any way be altered by the terms of this Subsection 26.NN (Professional Standards).
- d. The Company or ALPA shall not call upon or subpoena any member of the Professional Standards Committee in any subsequent disciplinary procedures. For the purposes of this Subsection 26.NN (Professional Standards) any member of the Professional Standards Committee who is a party to, or witness to, any issue before the Professional Standards Committee until such issue is resolved.
- e. When a professional standards problem arises, whatever the source of the problem that precipitates the cockpit conflict, and it is brought to the attention of the Professional Standards Committee, the Committee will act as follows:
 - 1) The individuals involved will be encouraged to discuss the matter privately in a forthright and reasoned manner, in an attempt to settle their dispute in a no-fault manner. The meeting site should be in a quiet area outside the airplane environment.
 - 2) Should this fail, the local Professional Standards Committee members will elicit both sides of the story, generally by telephone, and counsel both parties at a peer level. Again, agreement to resolve the dispute will be the objective.
 - 3) Should this fail, the pilots involved will be invited to a local Professional Standards Committee meeting. After each pilot has had the opportunity to present their view on the matter, the Committee will seek a commitment from the parties to end the conflict and work together in the future constructively and without dissension.
 - 4) Should one (1) of the pilots refuse to participate and the issue remains unresolved, the Professional Standards Committee will advise the Local Executive Council (LEC) and the LEC will take any action it deems appropriate.
- f. Professional Standards problems (as defined in Subparagraph 26.NN.1) brought to the attention of the Company may, at the Company's discretion, be referred to the Professional Standards Committee for possible resolution.
 - 1) The outcome of any problem referred to the Professional Standards Committee shall be reported to the Company. If the problem has not been successfully resolved by the Professional Standards Committee within a reasonable period of time, not to exceed sixty (60) days, the Company may take any action, within the framework of the Pilots' Working Agreement, it deems necessary to resolve the issue (such action will be implemented within thirty (30) days following the written notification of an unsuccessful resolution).

OO. HEALTH

- 1. For routes to foreign destinations, the Company will address health concerns which include lists of qualified medical providers in the area and advisories as to insurance coverage and payment for services. Additionally, the Company will designate service providers and pay for any inoculations/vaccinations required or recommended by the U.S. Centers for Disease Control if a pilot elects to receive such inoculations/vaccinations.

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2. If the United States Federal government or a United States Federal regulatory entity makes COVID-19 vaccinations mandatory for pilots, those pilots, for scheduling purposes, who have not already obtained and provided proof of a COVID-19 vaccination, shall self-report and provide proof of vaccination to the Company (similar to the manner in which they report their first-class medical requirement).
3. If another government entity or customer requires pilots to get an additional dose(s) of a COVID-19 vaccine (a “booster”), and that booster also requires pilots to take FAA-mandated time away from work, the parties agree to meet and confer to resolve this issue.

PP. DATA COLLECTION AND FATIGUE RISK MANAGEMENT

1. Unless otherwise agreed, a data collection effort will only be initiated to provide support for a planned Fatigue Risk Management System (FRMS) FAA regulatory submission (application or an exemption to FAR 117 as referred to in Section 10.C.3.). Such planned FRMS must be specific in nature including, but not limited to, the FAR in question. The purpose of the planned FRMS will be stated to the Fatigue Risk Management Team (FRMT) in advance of any data collection effort.
2. The FRMT is a technical body consisting of no more than two members appointed by the Association and two members appointed by the Company. The FRMT will:
 - a. Advise the Company on matters related to managing the risk of pilot fatigue and operations conducted under a FRMS, and
 - b. Administer data collection efforts to be conducted by the Company.
3. A data collection effort must:
 - a. Require no onerous, excessive, or unsafe efforts by participants,
 - b. Bear a reasonable relationship to the Company’s current or planned operations or FAA/PWA flight and duty time rules or regulations, and
 - c. Not be inappropriate or unjustified.
4. A data collection effort may address any of the following:
 - a. Patterns of sleep
 - b. Alertness
 - c. Cognitive performance
 - d. Cumulative fatigue
 - e. Mood
 - f. Circadian rhythm disruption
 - g. Quality of crew rest facilities
 - h. Rest prior to, during, and following select Flight Groupings
 - i. Other matters as determined by the FRMT
5. The Company will solicit the voluntary participation of pilots in data collection efforts. No disciplinary or retaliatory action will be taken against a pilot who chooses not to participate. After consultation with the FRMT, the Company may terminate a pilot’s participation in the data collection at any time if the Company, the FRMT, or any participating scientists, consultants, or advisers determine it is not in the best interest of the pilot to continue participation.

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6. When a pilot is asked to participate in an effort, they will be provided an Information Sheet that will describe the nature of the data collection effort, its length and scope, and the procedures and requirements of participation. The Information Sheet will also describe how data from the effort will be managed, along with any risks, discomforts and inconveniences associated with participating and each participant's rights as a member of the effort.
7. A pilot who completes a data collection effort in a Flight Grouping will receive \$150 for that Flight Grouping. Commencing in 2019 this amount will be increased by 3% annually.
8. A pilot may withdraw from participating in a data collection effort at any time. A pilot who withdraws from a data collection effort prior to the completion of the Flight Grouping will not receive any payment. Failure of a pilot to complete all required documentation of a data collection effort will be considered to be withdrawal from such effort.
9. A pilot who alters his schedule after he has begun participation such that he no longer has a schedule appropriate for participation in the data collection effort will not receive payment.
10. A pilot who agrees to participate in the study will be briefed by Company personnel or any participating scientists, consultants or advisers on the nature and requirements of the data collection effort and will be permitted to ask questions regarding the study. Such pilot will be provided with an appropriate Participant Consent Form.
11. A pilot who participates in a data collection effort will be assigned a participant number/code to be associated with the data collection effort, and all collected data will be de-identified in any reports or publications. Neither the Company or the Association will have access to identified data.
12. A pilot who participates in a data collection effort will be provided a summary of the results of his personal data upon request.
 - a. The Company will ensure that participating scientists, consultants, or advisers do not forward identified data or individual information to any other individual or entity except as may be required by law or court order,
 - b. The Company will give notice to the ALPA FRMT members and MEC Chairman prior to responding to litigation discovery seeking identified data or individual information, and
 - c. May share de-identified data within FAA and/or industry-based studies.
 - d. Data derived from a participant who does not complete a data collection effort will be destroyed.
 - e. If any of the provisions contained in this Paragraph inadvertently omit or fail to comply with FAA requirements in place, the parties will meet to discuss mutually agreeable terms and/or appropriate action.

QQ. COMMUTER POLICY

1. Pilots are expected to exercise prudent judgment and planning to avoid commuting problems, and are responsible for reporting for their flight assignment with sufficient time and with adequate rest prior to beginning scheduled duty. It is expected that a pilot will rarely utilize the provisions of this Commuter Policy.

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2. A pilot must attempt to commute on a minimum of two (2) consecutive scheduled flights (HA or OAL), with adequate time between them (e.g., scheduled to depart from different ends of the same airport). If, because of flight cancellations, delays, lack of available seating (cabin or jumpseat), or delays beyond the commuter's control (diversion, etc.), the pilot will be unable to arrive prior to the scheduled report time, Crew Scheduling shall be notified immediately.
 - a. Only one (1) scheduled flight is required if:
 - 1) The flight is scheduled to arrive prior to the pilot's report time, and
 - 2) The pilot has a confirmed ticket on an OAL, or
 - 3) The flight is operated by HA, and
 - a) At twenty-four (24) hours prior to the flight's scheduled departure:
 - (1) The pilot was confirmed for the jumpseat, or
 - (2) The flight had more open seats available than the pilot's standby ranking on the non-rev list.
3. Upon request of the Chief Pilot, the pilot should be prepared to provide supporting documentation that they were present for the commuting flight(s).
4. Pilots who commute by other means (e.g., automobile, train, bus, etc.) shall also be covered under this policy for unforeseen events, provided they notify Crew Scheduling as soon as such events become known, and their scheduled report time is no longer possible. Examples of such events include but are not limited to severe unforecasted weather conditions, traffic, vehicular accidents, and mechanical breakdowns.
5. Pilots utilizing the Commuter Policy who arrive at their domicile after the first Segment of their Flight Grouping has departed, or another pilot has been assigned to cover the Flight Grouping, or the start of their Reserve Availability Period has commenced, shall be subject to any of the following, at the discretion of a Crew Scheduling Duty Manager:
 - a. Placed back onto the pilot's originally scheduled Flight Grouping if the Flight Grouping passed through the pilot's Domicile, or
 - b. Assigned to any Flight Grouping (including Interisland Airport Reserve) by mutual agreement between the pilot and the Crew Scheduling Duty Manager, or
 - c. Removed from the scheduled Flight Grouping or Reserve Availability Period.
6. The pilot will not receive Pay and Credit for scheduled Segments that are not flown due to the utilization of the Commuter Policy.
7. A commuting pilot who complies with the requirements of this policy shall not be subject to discipline based on missed assignments unless there is evidence of a pattern of inadequate planning by the pilot. The Chief Pilot may discuss patterns of missed assignments with the pilot in an effort to resolve such issues by identifying the source problem and to assist in developing alternative commuting strategies. Repeated missed assignments may be considered when evaluating whether there is evidence of a pattern of inadequate planning by the pilot.

RR.SIDA BADGE

1. The Company shall sponsor pilots who wish to obtain or maintain a SIDA badge.

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2. The Company shall bear the fees and/or costs associated with obtaining or maintaining a SIDA badge; however, with exception to the temporary SIDA CBT DL pay provisions in Paragraph D above, no pilot pay will be associated with obtaining or maintaining a SIDA badge.

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SECTION 27

FREIGHT OPERATIONS

A. FREIGHT OPERATION:

1. Unless specifically modified or waived in this Section 27, all provisions of the PWA shall apply to the Freight Operation specifically contemplated in this Section 27.
2. All flying and duty limits contemplated in this Section 27 must be accomplished under FAR 117, unless this Section 27 is otherwise more restrictive.

B. FREIGHT OPERATION MODIFICATIONS: The Subsections below are changes or modifications to Sections and/or Subsections of the PWA in order to incorporate the Freight Operation, or refer to the applicable Section(s) and/or Subsection(s) of the PWA that remain controlling.

1. SECTION 1: RECOGNITION, SCOPE, AND JOB SECURITY

- a. Refer to PWA Section 1

2. SECTION 2: DEFINITIONS

- a. Refer to PWA Subsection 2.A.
- b. The following terms as used in Section 27 of this Agreement shall be construed as follows:
 - 1) DELAYED FREIGHT FLIGHT:
 - a) The PWA Subparagraph 2.A.15 Definition of Delay shall not apply to this Section 27 Freight Operations.
 - b) Delay exists if and only if:
 - (1) The delay in the departure time is the only change, and such delay shall not result in the Freight Pilot arriving in their Domicile or their Gateway City more than twenty-four (24) hours past the originally scheduled arrival time, or
 - (2) prior to the scheduled arrival time of the delayed flight extending twenty-four (24) hours past the Footprint of the originally scheduled FFG, the Freight Pilot is assigned to Deadhead to their Gateway City in the most expeditious manner possible.
 - 2) EXTENDED RANGE CREW: Means a four-person flight crew consisting of one (1) Captain, one (1) type-rated First Officer and two (2) additional First Officers. The Company may, in its discretion, choose to staff an Extended Range Crew with two (2) Captains and two (2) First Officers.
 - 3) FREIGHT FLIGHT GROUPING (FFG): means a number of flight Segments, Deadheads, ground transportation, Freight Reserve Availability Periods ("FRAPs") or Freight Airport Reserve Periods ("FARPs"), grouped together in such a manner that one (1) Freight Pilot can complete the grouping within the flight time and/or duty time limitations set forth in this Agreement and applicable FARs.
 - 4) FREIGHT RESERVE AVAILABILITY PERIOD (FRAP): Shall be built into an FFG of no less than two (2) days in length, and may occur either in Domicile or away from Domicile, and is a period of time when a Freight Pilot is not in a Duty Period but must be available to report upon notice for a Duty Period, and shall have a length of a maximum of twelve (12) hours.
 - 5) FREIGHT AIRPORT RESERVE PERIOD (FARP) or FREIGHT AIRPORT RESERVE: where a Freight Pilot remains in a Duty Period at the Freight Airport Reserve Facilities, and a Freight Pilot must check into the airport facility first to pre-flight the aircraft, and shall have a length of a maximum of eight (8) hours.
 - 6) FREIGHT PILOT: a pilot holding a Freight Operation Category Vacancy.
 - 7) GATEWAY CITY: an airport selected from the published list in Subparagraph 27.B.21.a.2, that serves as an alternative airport to a Freight Pilot's Domicile, for the starting and ending point for a Freight Flight Grouping.
 - 8) INTERMEDIATE STOP:

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- a) Freight Pilots scheduled for three (3) hours or more ground time (block in to block out) at an airport other than their point of departure or destination shall be provided:
 - (1) A clean and climate-controlled area with seating for each Freight Pilot scheduled to be there, and
 - (2) on-site restroom, and
 - (3) access to hot and cold potable running water, and
 - (4) access to restaurant facilities or Company reimbursed/provided transportation (actual reasonable expenses) to and from restaurant facilities. Vending machines, or access to vending machines, shall not be considered adequate.
 - b) Should any of the items listed above become unavailable, it shall not constitute a reason to discontinue service or cancel an FFG. If any of the items above are not available when service to that airport initially starts, service to that airport may be started provided that within ninety (90) days of start-up the items shall be available.
 - 9) INTERNATIONAL RELIEF OFFICER (IRO): Means a First Officer who has voluntarily been qualified and is thereafter required to maintain the qualifications (including First Class medical certificate) required by the Federal Aviation Regulations to provide enroute relief for the Captain or First Officer. Current IRO designation shall be a qualification required for the award of IRO Freight Flight Groupings (or FFGs) as part of the monthly PBS bid award. IRO will not be a separate Category Vacancy.
 - 10) IRO CREW: Means a crew consisting of a Captain and First Officer augmented by a currently qualified Captain or an International Relief Officer.
 - a) A Freight Pilot who is receiving IOE (not a recurrent line check) may not be included as one of the three (3) members of an IRO crew.
 - b) IRO crewmembers must be on the Hawaiian Airlines Pilots' System Seniority List.
 - c) The IRO Crew provisions of this Agreement shall apply whenever the Company augments a two-person cockpit crew with one (1) additional crewmember on any given flight Segment for any reason (e.g. FAR or contract compliance, or Company convenience).
 - 11) LONG CALL RESERVE or LONG CALL RESERVE PILOT (LCRP): A Freight Pilot required to be phone available twenty-four (24) hours a day starting at 0001 LDT on their Long Call Reserve days until assigned an FFG.
 - 12) LONG CALL RESERVE RUN: Means a Monthly Run that, at the time it is awarded, has (18) Long Call Reserve days in the month and receives a minimum monthly guarantee of seventy (70) hours.
 - 13) TIME AWAY FROM BASE or DOMICILE (TAFB): Means all time beginning when a pilot checks-in for a Freight Flight Grouping until completion of the same Freight Flight Grouping either in Domicile or their Gateway City.
 - 14) TRIP RIG: Means the greater of one (1.00) hour of Pay and Credit for each three and one half (3.5) hours of the duration a Freight Flight Grouping:
 - a) Is scheduled; or
 - b) The actual duration of the Freight Flight Grouping (TAFB as defined in Subparagraph 27.B.2.b.12).
3. SECTION 3: COMPENSATION
- a. Refer to PWA Section 3
4. SECTION 4: MISCELLANEOUS PAY PROVISIONS
- a. Refer to PWA Subsection 4.A
 - b. PAY AND CREDIT

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- 1) During each Duty Period, Freight Pilots, including Freight Pilots utilized as an “IRO Crew,” shall be Paid and Credited for the actual time flown or the time scheduled to be flown, whichever is greater on a Segment basis.
 - 2) Such Pay and Credit shall be at the rates for the equipment originally scheduled or the equipment flown, whichever is greater.
 - 3) If equipment other than the equipment originally scheduled is substituted on any Segment(s), the Freight Pilots shall be Paid and Credited for any time lost at the rates applicable to the highest paying equipment, scheduled or substituted, in which they are qualified. For example:
 - a) A330 Freight Pilots shall be Paid and Credited no less than the respective A330 rates for the time flown.
 - 4) The foregoing (Subparagraphs 27.B.4.b.1), 27.B.4.b.2), and 27.B.4.b.3)) shall apply to:
 - 5) The published monthly schedule of a Bid Run Freight Pilot;
 - 6) The published daily flight schedule of a Long Call Reserve Freight Pilot;
 - 7) The published schedule of a Long Call Reserve Freight Pilot who has been assigned to fly after the daily flight schedule has been published.
 - 8) Except for an Enroute Stop, or stops, the monthly schedule of a Freight Pilot shall be considered published on the earlier of:
 - a) The date awarded under Section 21 (Preparation, Bidding, and Awarding of Runs), or
 - b) The time the daily flight schedule is printed, and that time shall:
 - (1) Be stated on the daily flight schedule, but
 - (2) Be no later than as specified in Subparagraph 22.E.4.
- c. MINIMUM PAY AND CREDIT
- 1) Freight Pilots:
 - a) Who report for flight duty shall be Paid and Credited the greater of:
 - (1) Trip Rig equal to one (1.00) hour of Pay and Credit time for each three and one half (3.5) hours of the greater of the scheduled duration or actual duration of the Freight Flight Grouping (TAFB as defined in Subparagraph 27.B.2.b.12)); or
 - (2) “Subparagraph 27.B.4.b.1) Greater of Provisions”:
 - (a) Actual time flown; or
 - (b) Time scheduled to be flown.
 - (3) At no point in time shall a Freight Pilot receive less than the Minimum Flight Grouping Credit (MFGC) hours multiplied by the number of calendar days encompassed by the FFG.
 - (a) MFGC shall be calculated as follows:
 - i. Upon Entry Into Service (EIS) of the first Freight Operation aircraft, MFGC shall be 4.7 hours; and
 - ii. Between EIS + 12 months and EIS + 43 months MFGC shall be 5.0 hours; and
 - iii. At EIS + 44 months and beyond, MFGC shall remain at 5.0 hours unless the formula below triggers a change:
 - i. If the Freight Operation Block Hour (BH) to Freight Operation Flight Cycle (FC) ratio (BH:FC) equals 4.75 or greater for a period of 6 consecutive months, the MFGC shall be changed to 5.25 hours; or
 - ii. If the BH:FC ratio equals 5.0 or greater for a period of 6 consecutive months the MFGC shall be changed to 5.5 hours.
 - iv. An audit shall be conducted every three (3) months, starting at EIS plus forty-two (42) months, to determine if the BH:FC formula returns a result that would cause the MFGC to be increased. If the MFGC is increased it will do so in the second month following the completion of

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- the audit (e.g. the audit performed in April would generate a change in the bid packet published in May, containing the FFG's for June's flying).
- v. Once the MFGC is increased due to triggers from the BH:FC formula above, it will not be reduced, regardless of future ratio changes.
 - b) Voluntarily awarded a Freight Flight Grouping at other than their Domicile shall have their Pay and Credit time commence at the time such Freight Pilot:
 - (1) Reports for duty at their Domicile or their Gateway City, and
 - (2) Shall continue until their release from duty:
 - (a) At such Freight Pilot's own Domicile or their Gateway City, whichever is earlier.
 - 2) Shall have pay hours credited to them for a Segment(s) published but not flown (as provided for by other Sections of this Agreement) included to determine the Freight Pilot's total Pay and Credit for the entire Duty Period.
- d. PAY AND CREDIT FOR SCHEDULE CHANGES
- 1) The published schedule of any Freight Pilot may be changed subject to:
 - a) Subparagraphs 27.B.4.d.1) through 27.B.4.d.6); and
 - b) Flight time and duty time limitations of Section 27.B.10 (Hours of Service).
 - 2) Limitations past the Footprint in Subparagraph 27.B.22.L.2.a.3)
 - 3) Limitations past the Footprint in Subparagraph 27.B.22.L.2.b.4)
 - 4) Pay and Credit for schedule changes of a Freight Pilot shall be the greater of:
 - a) The original schedule shall be Paid and Credited the greater of the actual or scheduled time for any Segments flown, on a segment basis, and the scheduled time for any Segments not flown; or
 - b) Paid and Credited the greater of the actual or scheduled time for any rerouted Segments flown, on a segment basis, plus the greater of the actual or scheduled time for any Segments flown from the original schedule, on a segment basis, plus any Pay and Credit for Deadheading.
 - 5) If a Freight Pilot's Segment(s) is delayed, such Freight Pilot will fly that Segment(s) or any remaining portion of the Freight Flight Grouping provided it:
 - a) Can be accomplished within the provisions of Section 27.B.10 (Hours of Service); and
 - b) Does not cause such Freight Pilot to be delayed more than twenty-four (24) hours past the originally scheduled arrival time.
 - 6) If a Freight Pilot flying a voluntarily awarded Freight Flight Grouping at a Domicile other than their own, becomes eligible for DIRT pay, such DIRT pay calculations will terminate upon release from duty at:
 - a) The Freight Pilot's own Domicile or their Gateway City, whichever is earlier.
 - 7) Delay in Return to Domicile (DIRTD).
 - a) If a Freight Pilot arrives in their Domicile or their Gateway City after the end of the scheduled original Footprint due to Delay, Diversion, Reassignment, or any other reason; and
 - b) The time of the actual release from all duty at their Domicile or their Gateway City is more than twelve (12) hours later than the originally scheduled release from all duty at their Domicile or their Gateway City (12-hour Threshold); then
 - c) In addition to Subparagraph 4.D.2.b and provided the 12-hour Threshold is exceeded, the Freight Pilot shall be paid (but not credited) at their normal hourly rate, the greater of:
 - (1) Twenty-five (25) percent of the greater of all time actually flown or scheduled to be flown, on a segment basis, for each actual or scheduled Segment beginning with the first rescheduled (Rerouted) Segment; or

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- (2) One (1) hour of pay (no credit) for each six (6) hours the Freight Pilot has remained away from their Domicile or their Gateway City beyond the originally scheduled release from duty at their Domicile or their Gateway City; excluding, any originally scheduled time such Freight Pilot would have been away from their Domicile or their Gateway City performing duty for the Company (Eligible TAFB).
 - d) Eligible TAFB is equal to Actual TAFB minus All Originally Scheduled TAFB.
 - e. POSTING REQUIREMENTS FOR PAY AND CREDIT TIME
 - 1) Refer to PWA Subsection 4.E
 - f. PILOT BANK
 - 1) A pilot with a Pilot Bank credit balance shall be paid at their current hourly rate for the balance of the credit time remaining in their Pilot Bank on their next regular paycheck after Activation to the Freight Operations Category.
 - g. ALPA FLIGHT PAY LOSS
 - 1) Refer to PWA Subsection 4.G
 - h. JURY DUTY
 - 1) Refer to PWA Subsection 4.H
 - i. COMPANY BUSINESS
 - 1) Refer to PWA Subsection 4.I
 - j. MONTHLY ACCOUNTING REPORTS
 - 1) Refer to PWA Subsection 4.J
 - k. MEC ACCOUNTING
 - 1) Refer to PWA Subsection 4.K
 - l. PAY ERRORS
 - 1) Refer to PWA Subsection 4.L
 - m. SEGMENT CREDIT
 - 1) Does not apply to Section 27 Freight Operations
 - n. RECALL PAY
 - 1) Refer to PWA Subsection 4.N
 - o. IRO/EXTENDED RANGE CREW OVERRIDE PAY
 - 1) Refer to PWA Subsection 4.O
5. SECTION 5: EXPENSES
- a. HOURLY EXPENSE ALLOWANCE
 - 1) Freight Pilots shall receive an hourly expense allowance to cover meals, laundry, and incidental expenses for each hour or portion thereof that a Freight Pilot is on their Freight Flight Grouping. The hourly rate paid to Freight Pilots will be as follows:
 - a) Freight Pilot rate:
 - (1) At \$2.50 per hour and prorated for fractions of an hour.
 - (2) Per diem increases negotiated by the IAM or AFA in amending their current agreements or changes made during their contract terms will be used to increase the Freight Pilot rates in Subparagraphs 27.B.5.a.1)a)(1).
 - 2) If a Freight Pilot transits their Domicile during anFFG, their hourly allowance and Trip Rig will continue until such time as they are released from duty at the end of the duration of their Freight Flight Grouping.
 - 3) A Freight Pilot, when on flying or ground training assignments at their Permanent Domicile, will receive each day the hourly allowance shown in Subparagraph 27.B.5.a.1), commencing when they are required to report for training (or when they actually report, whichever is later) and ending when they are released from training sessions that day. When training is conducted away from their Permanent Domicile, the Freight Pilot will receive the hourly allowance stipulated in Subparagraph 27.B.5.a.1) for that period of

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time beginning when the Freight Pilot departs their Permanent Domicile or their Gateway City and ending when the Freight Pilot arrives back at their Permanent Domicile or their Gateway City.

- 4) The hourly expense allowance provided in Subparagraph 27.B.5.a.1) shall commence when a Freight Pilot departs their Permanent Domicile or their Gateway City for temporary duty at another Permanent Domicile, or for duty at a Temporary Domicile, and shall continue until such time as the Freight Pilot returns to their Permanent Domicile or their Gateway City after release from such duty. All Freight Pilots shall have a minimum of twenty-four (24) hours free of all duty immediately following transfer between Domiciles. If travel time is extended for personal reasons, it is understood that hourly expenses for this extended travel time will not be paid. A Freight Pilot shall not receive hourly expense allowance for days of vacation while serving at a Temporary Domicile.
 - 5) When a Freight Pilot's scheduled Freight Flight Grouping originates out of one airport and terminates at another airport serving their Domicile, the following "Transfer Times" will be used to increase the Duty Period, Deadhead Pay and Credit time, and per diem due such Freight Pilot pursuant to Subparagraph 27.B.5.c.5):
 - a) Airports Transfer Times
 - b) LAX-BUR 1.17 hours
 - c) LAX-ONT 2.00 hours
 - d) LAX-PMD 2.00 hours
 - e) SEA-BFI 0.83 hours
 - f) SFO-OAK 1.00 hours
 - g) SFO-SJC 1.00 hours
 - 6) Freight Pilots on a foreign Freight Flight Grouping shall be provided an hourly expense allowance pursuant to the provisions below:
 - a) Allowance is intended to cover the cost of meals, laundry, tips, and other incidental expenses.
 - 7) The Company shall arrange for and bear the costs of:
 - a) Suitable lodging; and
 - b) Transportation between the airport and hotel for duty purposes.
 - 8) The hourly rate shall be paid to Freight Pilots:
 - a) When a Freight Pilot's "block-in to block-out" time at the foreign destination is four (4) or more hours; and
 - b) Shall be calculated at:
 - (1) The hourly rate specified in Subparagraph 27.B.5.a.1)(a) or 27.B.5.a.1)(b) for the Duty Period:
 - (a) Prior to "block-in" at the foreign destination; and
 - (b) After "block-out" from such foreign destination.
 - c) The greater of the hourly rate specified in Subparagraphs 27.B.5.a.1)(a) and 27.B.5.a.1)(b) or a rate equivalent to seventy percent (70%) of the US State Department's "Maximum Travel Per Diem Allowances for Foreign Areas" published for that foreign destination and in effect at the time of such layover for the period:
 - (1) Beginning at "block-in" at the foreign destination; and
 - (2) Ending at "block-out" from such foreign destination.
- b. LODGING
- 1) In addition to the hourly expense allowances provided in Subsection 27.B.5.a (Hourly Expenses Allowance):
 - a) The Company shall furnish suitable single room hotel accommodations (where available) in a suitable location for Freight Pilots:
 - (1) Scheduled to layover at a location for five and one-half (5.5) or more hours; or

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- (2) While on any required rest periods during an FFG, even if the required rest period occurs in Domicile.

Examples:

4-day FFG in CVG Domicile with Company-furnished hotel in Domicile for required rest period in CVG on Day 2 and Day 3:

Day 1= CVG-RIV

Day 2= RIV-AFW-CVG

Day 3= CVG-AFW-CVG

Day 4= CVG-EWR-CVG

2-day FFG in CVG Domicile with Company furnished hotel in Domicile for required rest period after FRAP on Day 1:

Day 1= FRAP 0600-1800 in CVG

Day 2= FRAP 0600-1800 in CVG

- b) If the Company does not provide hotel accommodations, the Captain shall:
- (1) Obtain suitable lodging for the crew; and
 - (2) Claim reasonable actual lodging expense on their expense account form supported by hotel receipts.
- 2) The Company shall maintain and distribute to Freight Pilots a list of approved suitable hotel accommodations at each station where Freight Pilots layover.
- a) The Company shall submit the hotel list to the MEC for approval each January and July.
- (1) The list shall:
 - (a) Include the hotel's name, location, distance, and reasonable travel time from the airport of all such facilities.
 - b) The Hotel Accommodations and Dispute Resolution Document will determine the criteria for the following:
 - (1) Guidelines for considering the suitability of hotel accommodations, the selection thereof, and
 - (2) the process by which disputes concerning hotel accommodations will be resolved.
- 3) As part of the hotel sourcing negotiations, the Company shall make its best efforts to secure no-cost to the Company hotel points for the Freight Pilots.
- 4) Suitable hotel accommodations shall include (but not limited to):
- a) Availability of non-fast food type restaurant facilities.
 - b) Open on a twenty-four (24) hour basis; or
 - c) Located within ten (10) minutes walking distance from the hotel.
 - d) If such non-fast food type restaurant facilities are not available, the Captain:
 - (1) Shall obtain transportation for the crew to and from suitable non-fast food type restaurant facilities; and
 - (2) Will be reimbursed for such transportation expense.
- 5) In addition to other provisions of this section:
- a) A Freight Pilot voluntarily awarded a Freight Flight Grouping originating at other than their Domicile shall be provided with hotel accommodations (at Company expense) in any Domicile (including their own) to accomplish the Freight Pilot's flight duties and for any required rest period within the Footprint of a Freight Flight Grouping.
 - b) Freight Pilots holding Type III, IV, or V Temporary Vacancies shall be provided suitable hotel accommodations any time such pilots are scheduled (pursuant to Company orders) to remain at their Permanent Domicile for five and one-half (5.5) or more hours, and for any required rest period within the Footprint of a Freight Flight Grouping.

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- c) Freight Pilots awarded Type IV or V Temporary Vacancies that desire to live at a place other than the designated hotel may do so subject to the following:
 - (1) The Company will pay them an amount equal to the cost of a room where they would have been lodged; and
 - (2) The Company may subtract cancellation charges and taxes (if any) from the cost of lodging provided the hotel arrangements (made by the Company on behalf of the Freight Pilot) were made prior to the Freight Pilot notifying the Company of their desire to make other arrangements.
- 6) Freight Pilots holding Type V Temporary Vacancies shall continue to maintain their lodging rights while on vacation.
- c. TRANSPORTATION
 - 1) When hotel accommodations are required in accordance with Subparagraph 27.B.5.b.1)a), the Company shall pay the cost of transportation to and from the hotel to the airport or training site, as applicable. (One taxi or ride-hailing service (non-carpooling) per Freight Pilot crew each way, unless suitable transportation is available, hotel bus, etc.)
 - 2) The Company will provide clean, safe, reliable, and secure transportation for Freight Pilots. Items to be used when determining suitability of transportation vendor(s) contracted with, include but are not limited to:
 - a) Schedule
 - (1) Roll times based on projected traffic, specific to time and day of the week
 - b) Clean and presentable shuttle,
 - c) Equipped with efficient AC and heat
 - d) Safe
 - e) Seat for each Freight Pilot/crewmember (size of crew),
 - f) Size of shuttle sufficient for crew size, luggage and travel time,
 - g) Seatbelts for each Freight Pilot/crewmember,
 - h) Training program and drug policy for drivers
 - i) Reliable
 - j) Reputable, established, experienced,
 - k) On-time,
 - l) Insurance
 - 3) Any dispute of this Subparagraph 27.B.5.c.2) will be resolved using the Dispute Resolution Process contained in the Hotel Accommodation and Dispute Resolution Document.
 - 4) In the event a Freight Pilot's Freight Flight Grouping originates at one airport and terminates at another airport at their Domicile, the Freight Pilot shall be furnished transportation one way between one airport and the other at the Freight Pilot's option. A Freight Pilot assigned to a schedule involving this type of operation shall advise the Company prior to the start of the schedule, the one direction they desire such transportation during the period they are assigned to that schedule. When transportation does not leave within thirty (30) minutes after the completion of the Duty Period, then the Freight Pilot may use any other available means of ground transportation between one airport and the other and may claim reimbursement for expenses for such transportation, with receipts, on the regular Company expense account form and said Freight Pilot shall be reimbursed therefor. Further, they shall be Paid and Credited Deadhead time and per diem, based on the applicable one way transfer time, listed in Subparagraph 27.B.5.a.6) or objectively determinable travel times (e.g., Google maps), and the Freight Pilot shall also be entitled to claim reimbursement for any parking expenses, with receipts, incurred at other than their Domicile airport on the regular Company expense account form, and

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said Freight Pilot shall be reimbursed one hundred percent (100%) of such parking expense therefor.

- 5) When a Freight Pilot is scheduled to originate and terminate a Freight Flight Grouping at an airport serving their Domicile other than the Domicile airport, as defined in Subparagraph 20.K.3, they shall receive a mileage allowance of fifteen cents (\$0.15) per mile for the round-trip driving distance between the Domicile airport and the airport at which the Freight Flight Grouping originates and terminates. Further, they shall be paid per diem based on the applicable round trip Transfer Time listed in Subparagraph 27.B.5.a.6) and the Freight Pilot shall also be entitled to claim reimbursement for any parking expenses, with receipts, incurred at such airport on the regular Company expense account form, and said Freight Pilot shall be reimbursed one hundred percent (100%) of such parking expense therefore.
- 6) Whenever a Freight Pilot is required to travel between any Domicile to originate or terminate a voluntarily awarded Freight Flight Grouping(s), the Company shall provide and arrange positive space travel to/from the location of such Freight Flight Grouping(s) and the Freight Pilot's Domicile or their Gateway City.
- 7) The Freight Pilot may elect to end the FFG without returning to Domicile:
 - a) The Company shall provide transportation to the Freight Pilot's Gateway City.
 - b) However, when requested by a Freight Pilot, the Company may provide transportation to a Gateway City that is not the Freight Pilot's designated Gateway City, at Company discretion.
- 8) The transportation to and from the Gateway City is the lesser Pay and Credit of:
 - a) to the Freight Pilot's Domicile, or
 - b) to the Freight Pilot's Gateway City.
- d. SPECIAL ASSIGNMENTS
 - 1) Refer to PWA Subsection 5.D
- e. UNIFORMS
 - 1) Refer to PWA Subsection 5.E
- f. PARKING
 - 1) The Company shall make every reasonable effort to provide or arrange free parking for pilots at their Domicile or Gateway City. Should free parking space not be available, the Company will pay the pilot, upon presentation of a receipt, any excess over five dollars (\$5.00) that the employee has to pay monthly. If the employee requests, they may pay through payroll deduction.
 - 2) If a pilot does not claim parking expense at their domicile, such pilot may claim parking expense at one other location and the Company shall reimburse such pilot the excess over five (\$5.00) dollars that such pilot has to pay monthly to a maximum of what such pilot's parking expense would have been had they parked at their Domicile or Gateway City. In addition to any other reimbursable parking expense, a pilot assigned a flight or reserve duty at a domicile other than their own may claim monthly parking expense at the assigned domicile.
 - 3) For any month that the provision of Subparagraph 27.B.5.1.2) is in effect, the payments specified in Subparagraph 27.B.5.f.1) and Subparagraph 27.B.5.f.2) shall not apply.
 - 4) Upon request, the Company shall provide a letter verifying that the Freight Pilot requires parking at the Freight Pilot's Domicile or Gateway City airport.
- g. TRAVEL AND TEMPORARY LODGING
 - 1) Unless a pilot is displaced or changes their official residence on record with the Company that complies with 27.B.5.h.3), this Section is waived for a Freight Category Vacancy award. If displaced or physically moving: Refer to PWA Subsection 5.G.

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h. MOVING EXPENSES

- 1) The Company shall pay for the following moves for a pilot holding a Freight Category Vacancy award:
 - a) All non-voluntary moves, including all Freight Pilots assigned a Type V Temporary Domicile Vacancy after a minimum of six (6) months of duty at such Temporary Domicile*.
 - b) All Displacement moves.
- 2) The Company, over the course of a Freight Pilot's career, shall pay for:
 - a) one (1) physical move to a Freight Operations Domicile, and
 - b) one (1) physical move to the state of Hawaii from a Freight Operations Domicile.
- 3) The move(s) in Subparagraph 27.B.5.h.2) must be either:
 - a) from a location within the state of Hawaii to a location within two-hundred (200) miles of the Freight Operations Domicile, or
 - b) from a location within two-hundred (200) miles of the Freight Operations Domicile to the state of Hawaii.
- 4) *A Freight Pilot assigned a Type V Temporary Domicile Vacancy who exercises their right to a Company-paid move pursuant to the provisions of Subsection 5.H shall be treated for all purposes as though the Temporary Domicile were their Permanent Domicile.
- 5) The Company shall pay actual moving expenses for household goods and effects up to a maximum of one thousand five hundred (1,500) cubic feet or fifteen thousand (15,000) pounds, if substantiated by properly receipted bills, for shipping, insurance for declared value, drayage, packing and unpacking, indicating the number of cubic feet of household goods or effects being handled. The Company may, at its option, prescribe or control the shipment from the time of packing at the point of departure to the time of unpacking at the point of arrival. If for any reason the Company has not delivered the household goods within thirty (30) days from the time of packing, the Company shall pay thirty dollars (\$30.00) per day for each adult and child over twelve (12) years of age and fifteen dollars (\$15.00) per day for each child under twelve (12) years of age until the pilot is notified that their household goods are available for pickup. Necessary storage of up to thirty (30) days will be authorized at origin and/or destination.
- 6) If such Freight Pilot uses their personal automobile(s) for transportation to the new Vacancy, the Company will pay an allowance of twenty cents (\$0.20) per mile for the shortest American Automobile Association highway mileage between the pilot's former Domicile and their new Domicile. In cases where personal automobiles must be transferred by ocean (or air) shipping for all or part of the move, the Company shall pay all reasonable and actual costs of such transfer for up to two (2) automobiles.
- 7) Freight Pilots who move pursuant to Subsection 27.B.5.h (Moving Expenses) shall have two (2) years to complete a move. This two (2) year period shall commence following the Freight Pilot's first required duty at their new Domicile. This time may be extended by mutual written agreement between the pilot and the Company.
- 8) A Freight Pilot who is not afforded a paid move from a Domicile shall be permitted to transport household goods and personal effects free of charge on Company aircraft on a space available basis. In the event that space is not available on Company aircraft, the Company will make every reasonable effort to secure free or reduced rate carriage by another carrier.
- 9) A Freight Pilot recalled from a furlough to a Domicile other than that from which they were furloughed shall be moved from their residence to the new Domicile at Company expense as provided in Subparagraph 5.H.1. In no event shall the Company's liability for moving expenses be greater than the cost of moving from the Domicile from which the Freight Pilot was furloughed to the Domicile to which they are recalled.

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- 10) A Freight Pilot who has been assigned by the Company to a different Domicile and who is then furloughed for a period of ninety (90) days or more at the new location within four (4) months from the date of such assignment, shall, at that time, if the Freight Pilot so requests, have the Company pay their moving expenses, as outlined in Subparagraph 5.H.1, back to the Domicile from which the Freight Pilot was assigned or another location of their choice, whichever is less.
- i. RELOCATION TIME
 - 1) Unless a pilot is displaced or physically moving between Domiciles, this Section is waived for a Freight Category Vacancy award. If displaced or physically moving: Refer to PWA Subsection 5.I.
- j. MISCELLANEOUS EXPENSES
 - 1) Refer to PWA Subsection 5.J
- k. EXPENSE REIMBURSEMENT CLAIMS
 - 1) Refer to PWA Subsection 5.K
- l. FREIGHT PILOT COMMUTER FLIGHT ALLOWANCE:
 - 1) A Freight Pilot may book up to four (4) one-way tickets between their Gateway City and Domicile per month (e.g., 4 tickets from SFO-CVG, or 2 tickets from DEN-CVG and 2 tickets from CVG-DEN per month).
 - a) The Freight Pilot must request to book their flight no less than twenty-four (24) hours prior to the scheduled departure of the requested commuter flight.
 - b) The Freight Pilot may request any flight of their choosing and, if an economy seat is available, the Company shall book that flight at the time the Company receives the request.
 - (1) The Company may, at its discretion, book a seat in a class higher than economy.
 - (2) If there are two (2) flights leaving and arriving within three (3) hours of each other, the Company has discretion to purchase a seat on either flight dependent on price, as long as the alternative flight still arrives in Domicile with sufficient time for the pilot to comply with their scheduled report time.
 - c) This commuter flight allowance is on a per month basis with no rollover capability from month-to-month (i.e., the 4 one-way tickets must be used each month or they are lost).
 - d) The Company has discretion to offer an incentive program for unused one-way ticket(s) on a monthly basis.
 - (1) Such incentive program shall have a published incentive value that shall not be changed on more than a quarterly basis.
 - (2) When the incentive program is offered, it shall be offered to all Freight Pilots for that month.
 - (a) Any such incentive payments shall be paid to a Freight Pilot on no less than a quarterly basis.
 - 2) If the Company does not implement or elects not to utilize this Freight Pilot Commuter Flight Allowance program to purchase flights:
 - a) In lieu of the four (4) one-way tickets per month, the Company shall pay each Freight Pilot one-thousand dollars (\$1000) per month across the entire Freight Operation (i.e., cannot be offered or elected on an individual pilot basis).
- m. FREIGHT PILOT COMMUTER HOTEL ALLOWANCE:
 - 1) A Freight Pilot shall receive up to two (2) Company paid hotel room nights per month at the Company designated Crew Hotel(s) in Domicile.
 - a) There must be a room available at the Company's contract rate.
 - b) The Freight Pilot shall call the Crew Hotel(s) in Domicile, or by other means by mutual agreement between the Company and the Association, to request and book such hotel room and it will be direct billed to the Company.

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- c) Such hotel rooms shall only be utilized by the Freight Pilot they are allotted to, and must be utilized in connection with an FFG (e.g., the night before an FFG, the night between two different FFGs, or the night after the completion of an FFG).
- 2) This commuter hotel allowance is on a per month basis with no rollover capability from month-to-month (i.e., the 2 hotel room nights must be used each month or they are lost).

6. SECTION 6: VACATION

- a. THE CALENDAR YEAR
 - 1) Refer to PWA Subsection 6.A
- b. VACATION ACCRUAL
 - 1) Refer to PWA Subsection 6.B
- c. NON-ACCRUAL ON LEAVE
 - 1) Refer to PWA Subsection 6.C
- d. MINIMUM VACATION TO BE USED
 - 1) Refer to PWA Subsection 6.D
- e. POSTING OF VACATION LINES
 - 1) Refer to PWA Subsection 6.E
- f. BIDDING AND AWARDING OF VACATION PERIODS
 - 1) Refer to PWA Subsection 6.F
- g. REMAINING VACATION PERIODS
 - 1) Refer to PWA Subsection 6.G
- h. VACATION USE ON MILITARY LEAVE
 - 1) Refer to PWA Subsection 6.H
- i. ADDITIONAL VACATION PERIODS
 - 1) In addition to Subsection 6.F (Bidding and Awarding of Vacation Periods), during any calendar month that the needs of the service will permit, a Freight Pilot shall, on request, be granted a vacation. Additional vacation periods may be granted with the approval of the Company. Any vacation granted under this Paragraph shall be vacation accumulated to the Freight Pilot in excess of their awarded bid vacation unless otherwise approved by the Company. Freight Pilots granted vacation periods pursuant to the provisions of this Paragraph shall be Paid and Credited for such vacation pursuant to the provisions of Subsection 6.J (Vacation Debits and Credits).
 - 2) In the administration of PWA Subparagraph 27.B.6.i.1), an additional vacation period ("Pop Up") shall be granted by Company discretion which should not be unreasonably withheld (e.g., the additional vacation period is considered to have at least the minimum number of free and clear reserves if the number of available Long Call Reserves exceeds the number of FFGs in open time operating that day by at least two (2) unless this would not sufficiently cover the potential open flying).
 - a) LCRPs on the first day of a multi-day block will not be considered as free and clear (i.e., not counted towards the "at least two" above.)
 - 3) An additional vacation period shall be denied if the request is within forty-eight (48) hours of the scheduled report time of the FFG.
 - 4) In the case of a Freight Pilot requesting a vacation pursuant to this Subparagraph 27.B.6.i (Additional Vacation Periods) who has insufficient remaining vacation time in their bank: the Company may, with the Freight Pilot's concurrence, grant such a vacation provided that the Freight Pilot's monthly Pay and Credit shall be reduced by the difference between any remaining vacation used and the credit value of the missed FFG or, in the case of Long Call Reserve days, by a value of three and eighty-nine hundredths (3.89) hours per day. Notwithstanding any provision to the contrary, in the event that a Freight Pilot's monthly Pay and Credit is reduced pursuant to this Paragraph to less than the

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contractual minimum monthly guarantee, such hours shall constitute the Freight Pilot's revised minimum monthly guarantee for that month.

- j. VACATION DEBITS AND CREDITS
 - 1) Refer to PWA Subsection 6.J
- k. GENERAL
 - 1) Refer to PWA Subsection 6.K
- l. VACATION DONATION
 - 1) Refer to PWA Subsection 6.L
- m. VOLUNTARY VACATION CASH-OUT
 - 1) Refer to PWA Subsection 6.M
- n. UNUSED VACATION PAYOUT
 - 1) Refer to PWA Subsection 6.N

7. SECTION 7 DEADHEADING

a. DEADHEADING PILOTS

- 1) Freight Pilots, when "Deadheading" under orders from the Company, shall be paid all out-of-pocket expenses incident thereto and shall receive "Company Business" passes for the flight.
- 2) Freight Pilots Deadheading on HAL flights for two (2) hours or more shall be ticketed P0A2/F0 with First Class charges waived, thereby allowing the Freight Pilot to be seated in First Class/Business Class immediately following the last Revenue First Class Passenger (not including interline or HAL employee upgrades). The last Revenue First Class/Business Class Passenger shall be deemed to be any passenger traveling under an arrangement by which the Company derives revenue or economic value.
- 3) If more than one (1) crewmember is Deadheading on the same flight, then the boarding priority will be pilots currently flying as Captain first, then all other crewmembers, in order of seniority by Company date of hire.
- 4) A Freight Pilot may be scheduled to Deadhead up to sixteen (16) hours when performing no other duty for the Company.
- 5) For the purpose of Subsection 27.B.7.a, Duty Periods shall start one (1) hour before the scheduled departure time of the Deadheading flight and end at the block-in time of the Deadheading flight.
- 6) A Freight Pilot voluntarily awarded a Flight Grouping(s) or Freight Flight Grouping that originates at a Domicile other than such Freight Pilot's Domicile shall receive Deadhead Pay and Credit for any travel between Domiciles to originate or terminate such Flight Grouping(s) or FFG.
- 7) The Company shall pre-assign aisle seats to Deadheading Freight Pilots who have not been provided a First Class seat.
- 8) If a Freight Pilot is required to Deadhead in a non-aisle seat that is not located in First Class, the Freight Pilot shall receive an additional fifty percent (50%) pay for the Deadhead flight. A Freight Pilot may not reseat themselves to obtain such fifty percent (50%) additional pay. To receive the additional pay, the Freight pilot must provide supporting documentation on non-aisle seat compliance, including but not limited to the date, flight number, the seat occupied, and a narrative of the event.
- 9) When a Freight Pilot is scheduled to Deadhead for a Duty Period of ten (10) hours or more, the Freight Pilot shall be ticketed in Business or First Class.
- 10) Notwithstanding the above, if a Freight Pilot is scheduled for a Duty Period of ten (10) hours or more, with a combination of Deadheading block time of two (2) hours or more followed by a flight assignment (in the same Duty Period), the Freight Pilot shall be ticketed in Business Class or First Class Seating, unless there are no carriers operating over that route(s) within the required time frame who operate with the flight so

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configured, or First and Business Class are fully booked, provided the Company makes a reasonable effort to obtain such booking sufficiently in advance of the Deadhead travel.

b. **DEADHEAD PAY AND CREDIT**

1) Refer to PWA Subsection 7.B

c. **RETURN TO DOMICILE**

1) Refer to PWA Subsection 7.C

8. **SECTION 8**

a. Refer to PWA Section 8

9. **SECTION 9 TRAINING**

a. Refer to PWA Section 9

10. **SECTION 10 HOURS OF SERVICE**

a. **MAXIMUM MONTHLY PAY AND CREDIT TIME.**

1) The flight duty and rest requirements of Federal Aviation Regulation ("FAR") Part 117 supersede all flight duty and rest requirements listed in Section 10 of the PWA, unless specifically excepted in this Section 27.

2) Federal Aviation Regulation Limits:

a) If a Freight Pilot is awarded/assigned a Bid Run or Freight Flight Grouping that would cause such Freight Pilot to be in violation of any flight time, flight duty period, or rest limitation as defined by the Federal Aviation Regulations Part 117, then the Company will relieve such Freight Pilot from enough flight time or duty necessary to comply with such Federal Aviation Regulation Part 117 and Pay and Credit the Freight Pilot the scheduled time for all such Segment(s).

b. **FAR TIME LIMITS**

1) The flight time limitations and required rest periods for pilots set forth in Federal Air Regulations Part 117 in force and effect on the date this Agreement is signed shall continue in effect for the Company's Freight Operations.

2) Prior to submitting a Fatigue Risk Management system (FRMS) application or an exemption to FAR 117 to the FAA for approval, the Company will obtain ALPA's consent. Such consent will not be unreasonably withheld and, if withheld, will be based solely on the merits of the FRMS or exemption application.

a) Disagreements regarding any matter in Section 27.B.10.b.3 above must be resolved, including, if necessary, through an expedited grievance/arbitration process, before the Company may submit an FRMS application to the FAA. Both parties will abide by the arbitration decision.

c. **DUTY PERIODS**

1) Each Duty Period shall commence at the time a Freight Pilot is to report for duty or their actual reporting time, whichever is later, and shall continue until the applicable maximum duty hours have elapsed pursuant to FAR 117 (Table B & Table C or until interrupted by a rest period as stipulated in Subsection 27.B.10.D (Rest Periods).

d. **REST PERIODS**

1) Freight Pilot Rest Periods:

a) If the Rest Period exceeds nine (9) hours for a regular crew or ten (10) hours for an IRO Crew or Extended Range Crew the Company may, at their discretion, limit the Rest Period in the hotel to nine (9) hours for a regular crew or ten (10) hours for an IRO Crew or Extended Range Crew.

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- b) Rest Period is defined as time in the hotel (door-to-door), when hotel is required, uninterrupted by the Company.
- c) In case of any interruption by the Company, the Freight Pilot shall have the option of extending their Rest Period after the interruption, for a period of time equal to the Rest Period for which they were originally entitled.
- e. FREIGHT PILOT REPORTS FOR DUTY AND THEN RELEASED
 - 1) If a Freight Pilot reports for duty, and is released and is later called back for duty, with less time off than the Rest Periods prescribed in Subsection 27.B.10.d (Rest Periods), the total time from their first reporting for duty to their release from duty at the completion of their day's Duty Period shall be considered a Duty Period for the purpose of this Paragraph.
- f. MINIMUM DAYS OFF IN DOMICILE
 - 1) Except for the days off provisions of Subparagraph 9.B.9 ("Training proration"); Subparagraph 6.K.10 ("Vacation proration"); and Subparagraph 27.B.10.f.4) ("Two days off waiver") each month all Freight Pilots shall have the minimum number of days off in their Domicile awarded on their Bid or Long Call Reserve Run as prescribed below:
 - 2) Bid Run Pilots:
 - a) Fourteen (14) calendar days off in a thirty (30) day month; and
 - b) Fifteen (15) calendar days off in a thirty-one (31) day month.
 - 3) Long Call Reserve Pilots (LCRP):
 - a) LCRPs shall not be involuntarily assigned an FFG that causes the LCRP to exceed ninety (90) hours of credit in a month.
 - b) Eighteen (18) Long Call Reserve days per month:
 - (1) Shall be constructed as nine (9) consecutive day blocks, may be bid back to back for eighteen (18) continuous Long Call Reserve days.
 - 4) Any Freight Pilot, at the Freight Pilot's sole option, may during the PBS monthly bidding process, waive one (1), or two (2), of their applicable minimum days off per month in order to increase their Pay and Credit time.
 - 5) Replacement Days(s) Off:
 - a) If a Bid or Long Call Reserve Run Freight Pilot's schedule is impacted due to junior-manning (Subparagraph 27.B.22.g.3).h), which causes the Freight Pilot's projected minimum days off to fall below the minimum prescribed in Subparagraph 27.B.10.f.2) and 27.B.10.f.3), then the following will occur:
 - b) Such minimum days off must be replaced in that same month; except that if a day off that is within seven (7) days of the end of the current month is changed, the replacement day off may be in the following month, but only with the Freight Pilot's concurrence.
 - c) The assignment of replacement days off shall be as follows:
 - (1) The Freight Pilot and Crew Scheduling will, at the time the infringement occurs, mutually designate a replacement day(s); or
 - (2) If the Freight Pilot and Crew Scheduling are unable to reach agreement on the replacement day(s) off; the Freight Pilot shall select:
 - (a) Three (3) days, if a single scheduled day off is lost, or
 - (b) Three (3) periods, if two (2) or more days off are lost; and
 - (c) Crew Scheduling shall immediately grant one (1) of the days or periods, as applicable, that the Freight Pilot has selected.
 - d) Application of Subparagraph 27.B.10.f (Minimum Days Off in Domicile) shall not cause the Freight Pilot to be Paid and Credited for the month with less time than the Freight Pilot was awarded on their original Bid Run or Long Call Reserve Run.
 - g. FREIGHT PILOT AT CONTROLS AT TERMINAL POINTS AND/OR INTERMEDIATE STOPS

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- 1) Freight Pilots who are required to remain at the controls of an aircraft with one (1) or more engines running at terminal points or Intermediate Stops shall be considered in a Duty Period involving Flight Time Pay and Credit.
- h. CREW MEALS
 - 1) The Company shall strive to provide meals that are nutritious and healthy.
 - 2) The Company shall evaluate the ability to allow Freight Pilots to order their required meals via an automated portal.
 - 3) No less than once a quarter, the Crew Meal Committee Chairman or committee member shall meet with Catering Manager to ensure the following:
 - 4) For Freight Pilots:
 - a) Water and coffee will be made available on all flights.
 - b) The makeup of the cockpit snack box includes:
 - (1) one and one half (1.5) liters of water per Freight Pilot, and
 - (2) variety of canned beverages, and
 - (3) fresh fruit, and
 - (4) snacks.
 - c) Crew meals shall be equivalent to the Passenger Operations requirement, as available at the location for other freight carriers.
 - d) A Freight Pilot scheduled for a Duty Period greater than eight (8) hours and not scheduled for an Intermediate Stop of three (3) hours or greater, shall be provided a crew meal.
 - e) Crew meals shall be boarded on all flight Segments scheduled for over four (4) hours non-stop or when any portion of the Duty Period, exclusive of report and debrief exceeds six (6) consecutive hours with the scheduled time on the ground at any point, one and one-half (1.5) hours or less.
 - f) Flights longer than eight (8) hours require two (2) crew meals, flights longer than twelve (12) hours require three (3) crew meals, for each Freight Pilot.
 - g) A crewmember that is Deadheading shall receive the food service provided to the seating class that the Freight Pilot is ticketed in.
 - h) In Domicile for the night sort operation on nights when food is not otherwise available (cafeteria closed), crew meals shall be provided.
 - i) For all Freight Airport Reserve Periods scheduled in excess of four (4) hours, crew meals (e.g., includes meals provided on aircraft) will be provided if a cafeteria or other restaurant facility is not available and open during that time (e.g., cafeteria at hub, restaurant in hotel).
 - 5) Problem resolution process
 - a) If a Freight Pilot encounters a problem with the distribution or quality of a crew meal (either a standard highest class of service meal or a meal designated for Freight Pilots), they shall fill out a Dispute of Crew Meals (DCM) form and send it to the Association's Crew Meal Committee within thirty (30) days following the incident in dispute.
 - b) Upon receipt of a DCM submission, the Association's Crew Meal Committee will work to address the issue internally or escalate the issue to the attention of the Catering Manager. The Company shall, no less than monthly, respond to all open escalated issues.
 - c) If, after two (2) consecutive months, an escalated issue(s) is not resolved to the satisfaction of both parties, the issue will be addressed by the MEC Chairman and the

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VP of Flight Operations or his or her designee, no less than fifteen (15) days after an initial request for a meeting.

- (a) If the MEC Chairman and the VP of Flight Operations are unable to resolve an escalated issue(s) within thirty (30) days of the initial request for a meeting, the Association may submit the issue as a PWA Section 16 grievance within ninety (90) days of that outcome, or the issue will be deemed resolved.

11. SECTION 11 LEAVES OF ABSENCE

- a. Refer to PWA Section 11.

12. SECTION 12 SICK LEAVE

a. SICK LEAVE ACCRUAL

- 1) Refer to PWA Subsection 12.A

b. SICK LEAVE PAY, CREDIT, AND DEBIT

- 1) "Hours" (for purposes of Section 12 (Sick Leave)) means pay hours compensable at the current pay rate (specified in Section 3 (Compensation)) for the Freight Pilot involved.
- 2) Compensable sick leave is based upon fitness to fly.
 - a) Routine dental or medical appointments do not constitute actual sickness within the meaning of this section.
 - b) The Company may require proof that a Freight Pilot was actually sick or disabled; in which event the Company shall:
 - (1) Pay the cost of an office visit to secure a doctor's certificate; but
 - (2) Not pay for the cost of any diagnostic service rendered during such visit.
- 3) A Freight Pilot shall not be allowed to make up sick leave that has been charged to them.
- 4) Prior to the opening of the monthly Bidding Period, a Freight Pilot on known sick leave shall:
 - a) Not be awarded any Freight Flight Groupings during the period of the known sick leave; however, such Freight Pilot shall be awarded Freight Flight Groupings during any portion of the month such Freight Pilot is not on sick leave;
 - b) Be Paid and Credited and their sick leave accrual debited by three (3) hours for each day of the sick leave period; and
 - c) Have days off prorated in accordance with the provisions of Section 26.JJ (Table of Prorated Absences).
- 5) For long-term sick leave (one (1) or more calendar months) a Freight Pilot shall have the option of being Paid and Credited and their sick leave debited by either:
 - a) Minimum monthly guarantee as described in Subsection 3.E (Minimum Monthly Guarantee); or
 - b) Any amount up to one hundred (100) hours of Pay and Credit.
- 6) After the awarding of the Monthly Runs, a Freight Pilot utilizing sick leave and awarded:
 - a) A Bid Run, shall be Paid and Credited what they normally could have earned for any published Segments missed on their Monthly Run, and their sick leave accrual shall be debited accordingly.
 - b) A Long Call Reserve Pilot, shall be Paid and Credited for any portion of a published Freight Flight Grouping missed, and their sick leave accrual shall be debited accordingly. For each work day missed on sick leave without published Freight Flight

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Groupings, a Long Call Reserve Pilot shall be Paid and Credited, and their sick leave accrual shall be debited as follows:

(1) At a rate of three and eighty-nine hundredths (3.89) hours per work day missed with the following exception:

(a) If a LCRP is sick and notifies the Company after 04:00 LDT on a Long Call Reserve day and the sick leave is for more than one (1) day, they shall not be charged sick leave for the first day.

c. NOTIFICATION OF AVAILABILITY

1) It shall be the responsibility of a Freight Pilot returning from sick leave to notify the Company that they are available for duty not later than 0900 LDT of the day prior to their return to duty, excluding the provision in 27.B.12.b.6.b.(1)(a).

2) When notification is made after 0900 LDT, such Freight Pilot returning to duty shall be Paid and Credited, and their sick leave accrual debited (when applicable), in accordance with Subparagraph 27.B.12.b (Sick Leave Pay, Credit, and Debit) for the following day.

3) Charges against a Freight Pilot's sick leave shall not be made for any day(s) after a Freight Pilot has notified the Company of their availability for duty:

a) Notification shall be in accordance with Subparagraph 27.B.12.c.1);

4) If a Freight Pilot is on sick leave for any portion of a Freight Flight Grouping:

a) Such Freight Pilot shall be Paid and Credited, and their sick leave accrual debited, for the remainder of the Freight Flight Grouping; unless

b) A Freight Pilot who calls in well before the completion of the original FFG shall be placed on a makeup FFG that contains FRAPs for the remainder of the original FFG.

(1) If the original FFG transits the Domicile, the Freight Pilot may rejoin their original FFG at Company discretion.

d. SICK LEAVE RECORDS

1) Refer to PWA Subsection 12.D

13. SECTION 13 PHYSICAL STANDARDS AND PHYSICAL EXAMINATIONS

a. Refer to PWA Section 13

14. SECTION 14 WORKERS' COMPENSATION & OCCUPATIONAL INJURY BENEFITS

a. Refer to PWA Section 14

15. SECTION 15 PAY BENEFITS TO MISSING PILOTS

a. Refer to PWA Section 15

16. SECTION 16 GRIEVANCES

a. Refer to PWA Section 16

17. SECTION 17 SYSTEM BOARD

a. Refer to PWA Section 17

18. SECTION 18 SENIORITY

a. Refer to PWA Section 18

19. SECTION 19 FURLOUGH AND RECALL

a. Refer to PWA Section 19

20. SECTION 20 FILLING OF VACANCIES

a. CATEGORY VACANCIES

1) Refer to PWA Subsection 20.A

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b. CLASSIFICATION OF VACANCIES

- 1) Refer to PWA Subsection 20.B

c. VACANCY NOTIFICATION BULLETINS

- 1) Refer to PWA Subsection 20.C

d. BIDDING FOR VACANCIES AND BIDDING RESTRICTIONS

- 1) Refer to PWA Subsection 20.D

e. AWARDING OF BIDS AND CONDITIONS UPON AWARD

- 1) The Company shall award or assign, pursuant to the provisions of this Section, displacements or Vacancies (primary, secondary, or temporary) to eligible pilots according to their Seniority and preference as listed on their Standing Bid or temporary bid, as applicable. The total number of Permanent Category Vacancies pursuant to Subparagraph 20.C.1.a.2) shall be awarded or assigned. All awards shall be distributed electronically per Subsection 26.BB (Electronic Communications) within four (4) business days after the closing date and time of the applicable Vacancy and or Displacement Notification Bulletin.
- 2) A Permanent Vacancy and/or Displacement Notifications Bulletin shall be awarded in the following manner:
 - a) Beginning with the most senior pilot's Standing Bid, the pilot will, depending on order of bid preference:
 - b) Remain in current Category Vacancy; or
 - c) Be awarded a new Category Vacancy (either primary or secondary) as available or as such Vacancy becomes available during the awarding process.
 - d) Each time a secondary Vacancy appears begin the award process again with the most senior pilot's Standing Bid to ensure that the most senior pilot is awarded their highest Standing Bid preference.
 - e) Displacement rights shall be provided to any pilot who is:
 - (1) Not awarded a higher order of bid preference than such pilot's current Category Vacancy according to their Standing Bid, and
 - (2) Is displaced from their present Category Vacancy.
 - f) In the event the Company determines that the pilot, who is entitled to award of a Vacancy by reason of Seniority and bid preference is not Sufficiently Qualified (as defined in Subparagraph 2.A.72) to fill the Vacancy, the Company shall immediately furnish such pilot with a written explanation of the reasons.
 - (1) Such pilot(s) shall be held in excess and not be sent to training in the newly awarded Category Vacancy until Sufficiently Qualified, and shall not be entitled to Bypass pay or Effective Date pay until they are Sufficiently Qualified.
 - g) Pilots will possess the appropriate FAA Medical Certificate for the new Category prior to completion of any ground school.
 - h) The Company shall award or assign all Permanent Vacancies (primary or secondary) and accomplish all displacement actions concurrently by posting and awarding a Permanent Vacancy and/or Displacement Bulletin electronically per Subsection 26.BB (Electronic Communications).
 - i) Secondary Vacancies shall be awarded or assigned in all Categories at all Domiciles, except secondary Vacancies shall not be awarded or assigned in any Category or Domicile that is being reduced, and at which the Company has canceled Permanent Vacancies, until the desired number of Vacancies have been achieved.
 - j) The number of displacements in a Category and Domicile shall be reduced by the number of pilots in that Category and Domicile who have been awarded other Vacancies during the Permanent Vacancy and/or Displacement award process.
- 3) Award Bulletins. Bulletins announcing Vacancy awards will be assigned the same number with a letter suffix as contained on the Vacancy Notification Bulletin that announced the

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Vacancy. If training is required for a successful bidder, the Award Bulletin will include the expected date, duration, and location of the training, subject to revision by the Company. The expiration date of a training freeze incurred by a pilot pursuant to the provisions of Subparagraph 27.B.20.e.4) or 27.B.20.e.6) below shall be indicated adjacent to the pilot's name on the crew compliment attachment to a Vacancy Bulletin or Award Bulletin.

- 4) Freight Freeze. A Freight Pilot shall be "frozen" for a period of one (1) year, commencing upon the pilot's Activation in the Freight Category. This freeze period shall begin on the Activation Date (first revenue Segment) or the originally published Effective Date of the bid, whichever comes first. Such Freight Pilot shall be eligible for a subsequent Vacancy award with a closing date after their freight freeze ends. The Company may elect to not freeze, or to release from a freeze, a Freight Pilot, provided it does so in seniority order of those Freight Pilots who bid for that particular Category Vacancy. The following freight freeze exceptions apply:
 - a) A First Officer who is within a freight freeze shall be eligible for a subsequent Captain upgrade award:
 - (1) At any time when upgrading in the same equipment type as the Category Vacancy that they currently occupy. Such pilot shall be subject only to any remaining portion of their existing First Officer freight freeze; or
 - (2) At any time when upgrading to a different equipment type as the Category Vacancy that they currently occupy, provided that the First Officer has previously served as a First Officer in that aircraft. In such case the First Officer shall be subject to a freeze in their new Captain Vacancy, the duration of which shall be the lesser of (a) their remaining freight freeze plus an additional twelve (12) months or (b) a total of twenty-four (24) months.
 - (3) If upgrading in a different aircraft type, when the Effective Date commences after any existing freight freeze ends. Unless released early, such upgrading pilot will remain in their current Vacancy while still frozen. Any delay in training as a result of such freeze shall not trigger Bypass Pay per Subsection 20.M (Bypass). Such pilot shall be subject to a twenty-four (24) month training freeze in their new Captain Vacancy in accordance with Subparagraph 27.B.20.e.6).
 - b) Notwithstanding any other provision to the contrary in this Subparagraph 27.B.20.e.4), a displaced pilot will not incur any freight freeze in their new position. Additionally, a displaced pilot shall be released from any freight freeze subsequently incurred to be awarded the position they were displaced from originally. However, a pilot that subsequently returns to the Category Vacancy that they were originally displaced from, shall be subject to any remaining portion of the original freeze ending on the original expiration date.
- 5) Training Freeze. A pilot who has bid upon and been awarded a Category Vacancy requiring initial qualification or transition training, may at the Company's discretion be required to remain in such Vacancy for a period of twenty-four (24) consecutive months, provided the pilot commences such training. This freeze period shall begin on the Activation Date (first revenue Segment) or the originally published Effective Date of the bid, whichever comes first. Such pilot shall be eligible for a subsequent Vacancy award with a closing date after their freeze ends. The Company may elect to not freeze, or to release from a freeze, a pilot, provided it does so in seniority order of those pilots who bid for that particular Category Vacancy. The following training freeze exceptions apply:
 - a) A First Officer who is within a freeze shall be eligible for a subsequent Captain upgrade award:
 - (1) At any time when upgrading in the same equipment type as the Category Vacancy that he or she currently occupies. Such pilot shall be subject only to any remaining portion of their existing First Officer freeze; or

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- (2) At any time when upgrading to a different equipment type as the Category Vacancy that he or she currently occupies, provided that the First Officer has previously served as a First Officer in that aircraft. In such case the First Officer shall be subject to a freeze in their new Captain Vacancy, the duration of which shall be the lesser of (a) their remaining freeze plus an additional twenty-four (24) months or (b) a total of thirty-six (36) months.
- (3) If upgrading in a different aircraft type, when the Effective Date commences after any existing training freeze ends. Unless released early, such upgrading pilot will remain in their current Vacancy while still frozen. Any delay in training as a result of such freeze shall not trigger Bypass Pay per Subsection 20.M (Bypass). Such pilot shall be subject to a twenty-four (24) month training freeze in their new Captain Vacancy in accordance with this Subparagraph 27.B.20.e.5).
- b) Notwithstanding any other provision to the contrary in this Subparagraph 27.B.20.e.5), a displaced pilot will not incur any training freeze in their new position. Additionally, a displaced pilot shall be released from any training freeze subsequently incurred to be awarded the position he or she was displaced from originally. However, a pilot that subsequently returns to the Category Vacancy that they were originally displaced from, shall be subject to any remaining portion of the original freeze ending on the original expiration date.
- 6) “New Equipment Release”: Any pilot, at least twenty-four (24) months past their original date of hire as a pilot, shall at any time be eligible for a Vacancy award in an aircraft type new to Hawaiian’s fleet. For purposes of this Subparagraph 27.B.20.e.6), an aircraft type shall be considered new to Hawaiian’s fleet during the first twenty-four (24) months following the first scheduled revenue flight of the new aircraft. Such pilot will be released from any current freeze to fulfill the new Vacancy award, but shall not be eligible for another New Equipment Release while frozen in such new equipment.
- 7) In the event a pilot attempting to qualify for a Vacancy ultimately fails to qualify, the Vacancy award, including Domicile, shall be cancelled and posted for bid as soon as possible in accordance with the applicable provision of this Section 20 (Filling of Vacancies).
- 8) Whenever a probationary pilot completes their initial qualification training and is awarded or assigned other than a Permanent Vacancy, the Company shall designate a permanent Domicile for such pilot for the purposes of determining expense allowances and administering other rights provided for by this Agreement. The Company shall not change the designated permanent Domicile until such time as the pilot is actually awarded or assigned to a Permanent Vacancy.
- 9) The Company may, during the awarding of a Type II Temporary Category Vacancy, bypass a qualified senior pilot and award the temporary position to an equally qualified junior pilot under the following conditions:
 - a) The junior pilot must have received their qualification training for the temporary position as the result of a Permanent Vacancy award or pursuant to the provisions of Subparagraph 20.D.2.a, and
 - b) An operational need exists for the bypassed pilot’s services in their Permanent Category Vacancy, and
 - c) The junior pilot is not holding a Permanent Category Vacancy in the same equipment as the bypassed pilot, and
- 10) Each month, or any portion of a month, that any pilot junior to the bypassed pilot(s) holds such Temporary Vacancy, each bypassed pilot shall be paid the hourly per diem rate of the bypassed pilot’s Permanent Category Vacancy or the hourly per diem rate of the Temporary Category Vacancy, whichever is greater, times the number of TAFB hours credited to the bypassed pilot(s), and

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- 11) Each month, or any portion of a month, that any pilot junior to the bypassed pilot(s) holds such Temporary Vacancy, each bypassed pilot shall be paid the greater of the following:
 - (1) The number of Pay and Credit hours credited to the bypassed pilot times the bypassed pilot's permanent category hourly rate, or times the temporary category hourly rate, whichever is greater; or
 - (2) For pilots on a monthly salary, the bypassed pilot's monthly salary, or the actual number of Pay and Credit hours (not to include minimum guarantee hours) credited to the bypassed pilot times the Temporary Category hourly rate or the minimum guarantee of the Temporary Category whichever is greater; or
 - (3) The minimum guarantee of the Temporary Category or the highest number of Pay and Credit hours credited to any pilot holding such Temporary Category vacancy junior to the bypassed pilot(s) times the Temporary Category hourly rate, whichever is greater.
 - 12) The Company may require a pilot awarded (not assigned) a Type I, Type II, Type III, or Type IV Temporary Vacancy to cancel any voluntarily awarded vacation during the period of the original award.
 - f. INSUFFICIENT BIDDERS (ASSIGNMENT):
 - 1) Refer to PWA Subsection 20.F
 - g. ACTIVATION OF VACANCIES
 - 1) Refer to PWA Subsection 20.G
 - h. CANCELLATION OF VACANCIES
 - 1) Refer to PWA Subsection 20.H
 - i. DISPLACEMENT PROCEDURES
 - 1) Refer to PWA Subsection 20.I
 - j. VACATING AWARDED VACANCIES
 - 1) Refer to PWA Subsection 20.J
 - k. OPENING AND CLOSING OF DOMICILES
 - 1) Refer to PWA Subsection 20.K
 - l. WEST COAST DOMICILES
 - 1) Refer to PWA Subsection 20.L
 - m. BYPASS
 - 1) Refer to PWA Subsection 20.M
 - n. ELECTION NOT TO TRAIN
 - 1) Refer to PWA Subsection 20.N
 - o. SYSTEM AWARDS AND ASSIGNMENT COMMITTEE
 - 1) Refer to PWA Subsection 20.O
21. SECTION 21 PREPARATION, BIDDING & AWARDING OF RUNS
- a. AWARDING OF RUNS
 - 1) Each month, the holders of Category Vacancies at each Domicile shall be awarded a Monthly Run. The Freight Flight Groupings for such runs shall be prepared, posted for bid, and awarded in accordance with the principles set forth in this Section 27.B.21 (Preparation, Bidding, and Awarding of Runs).
 - 2) Bid Run and Long Call Reserve Run Freight Pilots must select a Gateway City listed below:
 - a) Gateway Cities (predicated upon CVG being the only Domicile):
 - (1) CVG, ORD, CLT, ATL, LGA, EWR, PHL, DFW, DTW, DCA, MSP, BOS, IAH, DEN, MCO, IAD, MIA, BWI, LAS, JFK, SLC, FLL, LAX, PHX, SEA, SFO, TPA, AUS, and RSW.
 - (2) The Company may remove a listed Gateway City if there is a material reduction in the flight frequency.

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- (3) The Company and Association may modify this list of Gateway Cities through mutual agreement.
- (4) A Freight Pilot's Domicile shall be their default Gateway City unless they select a different Gateway City:
 - (a) A Freight Pilot may change their selected Gateway City for each bid month;
 - i. If the Freight Pilot wishes to change their selected Gateway City, they must do so during the monthly bidding process.
- b. PREPARATION OF FLIGHT GROUPINGS FOR MONTHLY RUNS
 - 1) The Chief Pilot will obtain monthly flight time projections from the Economic Control Division and, together with the Manager of Crew Scheduling, assure that:
 - a) The Freight Flight Groupings have been prepared in such a way as to minimize the need for changing Freight Pilot schedules; and
 - b) A sufficient number of Category Vacancies are awarded (pursuant to the provisions of Section 27.B.20 (Filling of Vacancies)) in order to accommodate projected flying and provide an adequate Reserve.
 - 2) It shall be the responsibility of the Economic Control Division when contemplating a change in daily schedules to provide the Chief Pilot and the Manager of Crew Scheduling with information necessary to prepare the Freight Flight Groupings for Freight Pilots' selection at least thirty (30) days prior to the effective day of such schedule change in order to meet the ten (10) days posting limitation provided in Subsection 27.B.21.e (Notification of Bidding Period for Monthly Runs).
 - 3) One hundred percent (100%) of the known flying at each Domicile shall be used to construct the Freight Flight Groupings for the Freight Pilots to preference on their Monthly Runs.
 - 4) The criteria for preparation of monthly Freight Flight Groupings are:
 - a) Freight Flight Groupings will, where possible, be constructed so as to provide not less than forty-five (45) minutes between Round Trips.
 - b) Freight Flight Groupings shall be constructed so as to comply with Section 27.B.10 (Hours of Service).
 - c) Freight Flight Groupings will usually contain maximum scheduled block hours for minimum Duty Period hours, consistent with the above criteria.
 - d) FFGs of only one (1) day shall not contain either a FRAP or a FARP.
 - e) Forty (40) percent of the FFGs published in the monthly bid packet will be six (6) or greater days in length.
 - f) Sixty (60) percent of the FFGs published in the monthly bid packet shall be four (4) or greater days in length (inclusive of the six-day (6-day) FFGs above).
 - g) FFGs do not have to start or end in Domicile:
 - (1) If the FFG does not commence or cease at the Freight Pilot's Domicile:
 - (a) The Company is responsible for providing the Freight Pilot transportation, to include Pay and Credit, to or from the Freight Pilot's selected Gateway City.
 - (b) The Freight Pilot's transportation from the Gateway City and return to the Gateway City is part of the Freight Pilot's FFG.
 - (c) FFGs shall be initially built from the Freight Pilot's Domicile and then subsequently changed to the Gateway City upon being awarded to the Freight Pilot.
 - (d) Credit shall be changed to reflect actual Deadhead routing upon award, which may then be paid below minimum monthly guarantee ("MMG").
 - h) The Company commits itself to using its best effort to create FFGs that help facilitate commutable schedules for Freight Pilots while maintaining operational efficiency.
 - i) The Association may waive the requirements in Subparagraphs 27.B.21.b.4)e) and 27.B.21.b.4)f) of this Section during the FFG review process.

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- 5) The following information shall be included on all Monthly Run Freight Flight Groupings:
 - a) Flight numbers
 - b) Date and day of departure and arrival
 - c) Time of departure and arrival (GMT and Local Domicile Time)
 - d) Published block pay time for each Segment
 - e) Beginning and end time of each Duty Period
 - f) Layover times (RON)
 - g) Total duty hours away from Domicile (including preflight and post-flight requirements).
 - h) A designation if it is to be operated with an augmented crew.
- 6) The Freight Flight Groupings shall not be altered or changed between the time and date of posting of the Bidding Period and the date of the awarding of Monthly Runs.
- 7) The Company will prepare the monthly Freight Flight Groupings for submission to the Pilot Scheduling Committee as early as possible but no later than 1200 hours HST on the 4th of each month. The Pilot Scheduling Committee may make amendments to these Freight Flight Groupings that will not cause more than twenty-five hundredths of a percent (.25%) increase in pay in any Category. The finalized Freight Flight Groupings will then be returned to the Company for review and approval. The Company shall not withhold approval provided all the provisions of this Section 27.B.21 (Preparation, Bidding, and Awarding of Runs) have been complied with.
- 8) The Company shall, prior to the opening of the Bidding Period, program the Preferential Bidding System (PBS) with the following:
 - a) Freight Flight Groupings.
 - b) Inclusive dates and standard Pay and Credit (as outlined in each applicable section of this Agreement) for each individual Freight pilot's:
 - (1) Vacation;
 - (2) Leaves of Absence (with or without pay); and
 - (3) Training (Ground school, Flight, and/or Simulator).
- 9) Notwithstanding the provisions of Subparagraph 27.B.21.b.8), and after the opening of the Bidding Period, the following procedures apply:
 - a) Freight Pilots may trade their training schedules with the concurrence of the Training Department and the pilots involved.
 - b) The Company may cancel all or part of a Freight Pilot's training schedule from the PBS system, provided the Freight Pilot is notified of the change or cancellation at least forty-eight (48) hours prior to the closing of the Bidding Period.
 - (1) The Training Department must notify the Freight Pilot of the changes and receive a verifiable response from the Freight Pilot receiving such notification.
 - (2) A verifiable response from the Freight Pilot includes e-mail, return receipt mail, recorded telephone response, or any other certifiable means.
 - (3) The cancelled Pay and Credit time will be removed from the Freight Pilot's schedule and the Freight Pilot should submit a revised bid to replace the cancelled training Pay and Credit time. The bid may be submitted by computer, FAX, or telephone.
- 10) In the event, the Company fails to program the PBS with the training schedule (described in Subparagraph 27.B.21.b.8)) Pay and Credit prior to the opening of the Bidding Period, then the Company may, with Freight Pilot consent, insert, move, or extend a Freight Pilot's PBS training schedule under the following conditions:
 - a) The Freight Pilot must be notified of the change at least forty-eight (48) hours prior to the closing of the Bidding Period.

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- b) The Company shall not assign or require any Freight Pilot to attend such training; however,
 - c) The affected Freight Pilot(s) may voluntarily attend such training, and will be Paid and Credited the greater of:
 - (1) The value of the training period days, or
 - (2) For Freight Flight Grouping(s) missed.
 - d) The Training Department must notify the Freight Pilot, by Company e-mail or telephone, of the changes and receive a response from the Freight Pilot receiving such notification. The Freight Pilot may submit a revised bid, if desired. The bid may be submitted by computer, FAX, or telephone.
 - e) In addition, any other request for pre-planned absences (e.g., union leave, military leave, Company Business, pop-up vacation, etc.) made after the opening of the Bidding Period will be accepted and entered into the PBS system by the PBS operator only after notification by Flight Division Administration or Director-Crew Scheduling.
 - f) Upon notification from the appropriate Company Division, the PBS operator will assume that all provisions of this Section have been complied with and enter the required changes to the PBS system. No changes will be made to the training schedule, or pre-planned absences accepted for entry into the PBS system, after forty-eight (48) hours prior to the closing of the Bidding Period.
- 11) Each month the Company will determine and designate which Freight Flight Groupings will be available for bid by the Freight Pilots at each Domicile. Freight Pilots at each Domicile may only bid and be awarded Freight Flight Groupings that the Company has designated as available for bid at their Domicile.
- c. **PREFERENTIAL BIDDING SYSTEM PARAMETERS**
- 1) Each Freight Pilot shall, in seniority, be awarded their preferences for the month.
 - a) The preferential bidding system shall not award Freight Flight Grouping(s) during the period of an individual Freight Pilot's vacation, known leaves (with or without pay), ground school, flight training (except IOE training), or simulator training. However, the preferential bidding system will credit each affected Freight Pilot with a standard Pay and Credit, as outlined in each applicable Section of this Agreement for each individual Freight Pilot's vacation, leave (with or without pay), ground school, flight training, or simulator training.
 - b) PBS bidding limits
- *The 30 hr rest buffer would apply when rest is applied in Domicile in accordance with FAR 117.25.b

Federal Air Regulation Limits	PBS Bidding Limits
100 Flt hrs within 672 hrs 117.23.b.1	98 Flt hrs within 672 hrs
1,000 Flt hrs within 365 days 117.23.b.2	990 Flt hrs within 365 days
60 FDP hrs within 168 hrs 117.23.c.1	58 FDP hrs within 168 hrs
190 FDP hrs within 672 hrs 117.23.c.2	180 FDP hrs within 672 hrs
30 hrs of rest within 168 hrs 117.25.b	31 hrs of rest within 168 hrs

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- 2) A Bid Run shall be a Monthly Run that:
 - a) Has seventy-five (75) or more hours of Pay and Credit projected at the time of the award.
 - (1) Except that a Freight Pilot with less than seventy-five (75) hours, with sixteen (16) days of awarded Freight Flight Groupings and pre known absences, excluding training blocks greater than six (6) days shall be a Bid Run Freight Pilot but shall receive less than MMG per Subparagraph 3.E.1.a.
 - b) Has the minimum number of days off in a month as prescribed by Subparagraph 27.B.10.f.2), except for the provisions of:
 - (1) Subparagraph 21.J.2 (“Return from LOA proration”).
 - c) Consists of sixteen (16) or more days of training.
 - (1) Freight Pilots with such Bid Runs shall be marked as ineligible bidders and shall not participate in the PBS process.
- 3) A Long Call Reserve Run shall be a Monthly Run that:
 - a) Shall contain a maximum of:
 - (1) Eighteen (18) work days in a month;
 - b) Has the minimum number of days off in a month as prescribed by Subparagraph 27.B.10.f.3), except for the provisions of:
 - (1) Subparagraph 6.K.10 (“Vacation proration”);
 - (2) Subparagraph 9.B.9 (“Training proration”); and
 - (3) Subparagraph 21.J.2 (“Return from LOA proration”).
- d. MONTHLY RUN BIDDING OPTIONS
 - 2) A Freight Pilot shall have at least the following options when bidding for their Monthly Run after the preferential bidding system is operational:
 - (1) The standard Bid Run construction limits shall be a minimum of seventy-five (75) hours and a maximum of the buffer limits in Subparagraph 27.B.21.c.1)b).
 - (2) Any Freight Pilot may also preference for specific Freight Flight Groupings, specific Trips, days off, Guaranteed Days Off (GDO), work days, minimum or maximum Pay and Credit time, Duty Period start, Duty Period end, layovers, and destinations.
 - (3) All Freight Pilots who preference for “minimum” Pay and Credit time on their Monthly Runs shall be awarded a Bid Run with no additional FFG’s than those needed to meet the minimum of seventy-five (75) hours of Pay and Credit.
- e. NOTIFICATION OF BIDDING PERIOD FOR MONTHLY RUNS
 - 1) Freight Flying
 - a) A bulletin announcing the Bidding Period for Monthly Runs shall be posted at each Domicile and emailed to each Freight Pilot no later than 1700 hours HST on the sixth (6th) day of each month.
 - b) The bulletin shall be posted and the Bidding Period shall remain open until 0800 hours HST on the thirteenth (13th) day of each month for Captains and the fifteenth (15th) of each month for First Officers.
 - c) Bids submitted after 0800 hours HST on the thirteenth (13th) day of each month for Captains and the fifteenth (15th) of each month for First Officers shall not be considered.
 - d) The bulletin shall also state the inclusive dates of all individual Freight Pilot vacations, LOAs (with or without pay), training (ground, flight or simulator), all Freight Flight Groupings for the month, as accurate an estimate as possible of all flight time for the month.
- f. SUBMITTING OF BIDS
 - 1) Refer to PWA Subsection 21.F

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- g. AWARDING AND ASSIGNMENT OF MONTHLY RUNS
 - 1) Bid and Long Call Reserve Runs shall be awarded through the preferential bidding system.
 - 2) A Freight Pilot shall be awarded a Monthly Run in their active Category Vacancy only.
 - 3) All Freight pilots are required to have a standing monthly bid on file in the Preferential Bidding System.
 - 4) In accordance with Subsection 21.K (Preferential Bidding System), all Monthly Runs shall be tentatively awarded to Freight Pilots utilizing the preferential bidding system, subject to the approval of the Pilots' Scheduling Committee, in accordance with their Seniority, bid preferences, and parameters contained within Subsection 21.K (Preferential Bidding System). The Pilots' Scheduling Committee shall monitor all awards and resolve conflicts arising from the award process. The Pilot Scheduling Committee must either approve the monthly award or state that it is withholding such approval. The Pilot Scheduling Committee approval shall not be unreasonably withheld. The Pilot Scheduling Committee shall only withhold its approval of a monthly award if that award substantially deviates from the parameters and procedures as contained in Subsection 21.K (Preferential Bidding System). In the event approval is withheld, the Pilot Scheduling Committee may appeal their concerns directly to the PBS Work Group (PWG).
 - a) All Monthly Runs shall be posted by 1200 hours HST on the fourteenth (14th) day of each month for Captains and the sixteenth (16th) of each month for First Officers.
 - 5) If a Freight Pilot does not preference for GDOs during the monthly bidding process and is awarded a Monthly Run with no projected Pay and Credit time or less than seventy (70) hours of Pay and Credit time (Long Call Reserve Run), six (6) of such Freight Pilot's days off will be awarded as GDO.
 - 6) Award of IRO Freight Flight Groupings
 - a) A First Officer who preferences for a Freight Flight Grouping which has been designated to operate with an IRO Crew, may be awarded such Freight Flight Grouping as a First Officer or as an IRO (provided they are currently qualified as an IRO). Alternatively, the Company may elect to award the Freight Flight Grouping to two (2) Captains and one (1) First Officer if the Freight Flight Grouping has been posted to be crewed by two (2) Captains or if there are no IRO-qualified First Officers bidding for the Freight Flight Grouping.
 - b) IRO-qualified First Officers may bid for regular Freight Flight Groupings or IRO Freight Flight Groupings, however, in the case of insufficient qualified bidders for IRO Freight Flight Groupings, an IRO will not be denied a higher bid preference in order to be awarded or assigned the IRO to an IRO Freight Flight Grouping with a lower preference, or for which they have not preferred.
 - c) Two IRO-qualified FOs may be awarded the same IRO Freight Flight Grouping.
 - d) In any event, with respect to which Freight Pilot will be designated to act as Second in Command of an IRO Crew, Seniority will govern. The Second in Command will generally sit in the FO seat for Takeoff and Landing, with the other FO either in the cabin or cockpit jumpseat at the Captain's discretion.
 - 7) A Freight Pilot must have proof of their COVID-19 vaccination on file with the Company to be awarded, during the Preferential Bidding System ("PBS") process, any flying that requires proof of vaccination.
- h. PBS DISPUTE
 - 1) Refer to PWA Subsection 21.H
- i. DAILY RESERVE CREW STAFFING ESTIMATE
 - 1) Does not apply to Freight Operation
- j. MODIFICATION OF AWARDS

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- 1) Refer to PWA Subsection 21.J
- k. PREFERENTIAL BIDDING SYSTEM
 - 1) Refer to PWA Subsection 21.K
- l. GENERAL
 - 1) Refer to PWA Subsection 21.L

22. SECTION 22 SCHEDULING

- a. SCHEDULING POLICY PURPOSE
 - 1) Refer to PWA Subsection 22.A
- f. IMPLEMENTING THE SCHEDULING POLICY
 - 1) Refer to PWA Subsection 22.B
- g. RESPONSIBILITY FOR PILOT SCHEDULING
 - 1) Refer to PWA Subsection 22.C
- h. SCHEDULING PROTESTS
 - 1) Refer to PWA Subsection 22.D
- i. DAILY FLIGHT SCHEDULE (DFS), Form HAL 165
 - 1) Refer to PWA Subsection 22.E
- j. CONTACTING OF CREW SCHEDULING DIVISION
 - 1) All Freight pilots are required to maintain a telephone at their principal residence. It shall be the responsibility of the Freight pilot to keep the Company informed of their current telephone number.
 - 2) Bid Run Freight Pilots:
 - a) Not on a Freight Flight Grouping because the Freight Flight Grouping was cancelled, are responsible for contacting Crew Scheduling between 1430-1630 LDT the day before each day the cancelled Freight Flight Grouping was originally scheduled, to verify if the Company has scheduled a make-up Freight Flight Grouping.
 - 3) Long Call Reserve Run Freight Pilots:
 - a) Twenty (20) hour report to Domicile and/or twelve (12) hour report to their Gateway City
 - (1) LCRPs must either contact Crew Scheduling or electronically self-notify to acknowledge their assignment within two (2) hours of initial contact. If the Freight Pilot will be out of contact for longer than two (2) hours, they shall notify Crew Scheduling in advance with the length of time they are expected to be out of contact.
 - b) LCRPs during their Long Call Reserve days may “add” an FFG by utilizing the Online Scheduling Access Program within twenty-four (24) hours prior to the FFGs scheduled report time
 - c) A LCRP must be phone available twenty-four (24) hours a day on their Long Call reserve days until assigned an FFG.
 - d) An LCRP on the first day of their Long Call Reserve block shall not be assigned an FFG with a report time prior to 20:00 LDT (Local Domicile Time) or 12:00 local time at their Gateway City.
 - e) LCRPs must either report to their Domicile or their Gateway City at Company’s request
 - (1) A Freight Pilot will be notified at time of assignment where to report
 - f) Once assigned an FFG, an LCRP is not required to remain available for contact in the twenty (20) hours prior to the scheduled report time to their Domicile, or twelve (12) hours prior to the scheduled report time to their Gateway City.
 - g) Upon completion of an FFG, a LCRP shall immediately be placed back on Long Call reserve, except that a Freight Pilot shall be released from all Long Call Reserve

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- obligation when the Freight Pilot completes the FFG on the last day of a Long Call Reserve block.
- h) A LCRP is released at 04:00 LDT (Local Domicile Time) on their last day of Long Call Reserve, provided no FFG assignment has been made by that time.
 - 4) In the event a Bid or Long Call Reserve Run Freight Pilot fails to contact Crew Scheduling pursuant to the provisions of Subparagraphs 27.B.22.f:
 - a) Crew Scheduling will attempt to contact the Freight Pilot by making no more than two (2) separate telephone calls.
 - b) If the Freight Pilot cannot be contacted, the flight will be assigned pursuant to the provisions of Subparagraph 27.B.22.g.3).
 - 5) Crew Scheduling shall document all verbal confirmations of a Freight Pilot's flight schedule by annotating the sign-in sheet with:
 - a) The time of the verification, and
 - b) The initials of the Crew Scheduling Clerk receiving the verifications.
 - k. OPEN TRIP SCHEDULING LIST (OTSL)
 - 1) Is established and maintained daily by the Company, for each Domicile by Category.
 - 2) Governs the scheduling of:
 - a) Long Call Reserve Pilots on work days, and
 - b) Freight Airport Reserve Pilots on work days, and
 - c) A Freight Pilot in a FRAP, and
 - d) Bid Run and Long Call Reserve Pilots volunteering to work on a day off
 - (1) No minimum required days off in Domicile once the month commences (excludes junior-manning in Subparagraph 27.B.22.h.2)).
 - e) All Freight Pilots assigned any Freight Flight Grouping that becomes available or are added after the Monthly Runs are awarded to Bid Run Freight Pilots.
 - 3) Freight Pilots on the OTSL are assigned or awarded a Freight Flight Grouping(s) as follows:
 - a) First, Freight Airport Reserves utilized as needed, then,
 - b) Second, to LCRPs if adequate time to report for the FFG
 - (1) Callout Order:
 - (a) First, by number of days of availability, using a consistent methodology published by the Company
 - (b) Second, in reverse order of seniority
 - (c) The Company may deviate from this callout order for the purpose of travel time between Gateway City and the airport in which the LCRP is required. This deviation can only be applied to an individual Freight Pilot once in a month.
 - c) Third, to Freight Pilots in a FRAP
 - (1) Callout Order:
 - (a) First, by number of days of availability among Freight Pilots within a FRAP in the same location, using a consistent methodology published by the Company
 - (b) Second, in reverse order of seniority among Freight Pilots within a FRAP in the same location
 - d) Fourth, to Freight Pilots on a day off (100% pay)
 - e) Fifth, to LCRPs on a day off for "Over 70" guarantee
 - f) Sixth, to Freight Pilots volunteering for recall (200% pay) on a day off with no FFG removal
 - g) Seventh, to Freight Pilots volunteering for recall (200% pay) who must be removed from an FFG for legality

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- h) Eighth, junior manning (200% pay) of Freight Pilots in reverse seniority order
 - i) Ninth, to passenger pilots volunteering for recall (100% Pay & Credit and 100% pay) without having to be removed from a Flight Grouping
 - j) Tenth, to passenger pilots volunteering for recall (100% Pay & Credit and 100% pay) who must be removed from a Flight Grouping
 - k) The Company shall not exercise the provision in Subparagraph 22.G.3.h by junior manning a passenger-Category pilot to the assignment of a FFG
- 4) Long Call Reserve Pilots may:
 - a) Volunteer to work on a day off.
 - (1) The day off will not be replaced.
 - (2) No minimum required days off in Domicile once the month commences (excludes junior-manning in Subparagraph 27.B.22.h.2)).
 - (3) Pay and Credit for the assigned Freight Flight Groupings(s) shall be in addition to the Freight Pilot's seventy (70) hour minimum monthly guarantee; whereas, credit for the assigned Freight Flight Grouping shall be added to the Freight Pilot's cumulative time for the month.
- 5) During normal operations, an effort will be made to schedule available OTSL Freight Pilots, in seniority order, for Freight Flight Groupings containing the maximum pay time with the minimum Duty Period duration each day. In cases where the Freight Flight Groupings differ greatly in Duty Period duration, but do not differ greatly in pay time, the senior Freight Pilot should be assigned the Freight Flight Grouping with the shorter Duty Period.
- 6) Return to Domicile
 - a) After coordinating with Crew Scheduling, a Freight Pilot, at their option, shall be allowed, but not required, to Deadhead back to their Domicile early, if at the end of their scheduled flying, the Freight Pilot has no further flight assignments other than their Deadhead schedule. Such Freight Pilot shall:
 - (1) Be Paid and Credited as if they Deadheaded as originally scheduled,
 - (2) Be available to be scheduled in accordance with the OTSL only after Subparagraph 27.B.22.g.3)g) and before Subparagraph 27.B.22.g.3)h), until such time as the Freight Pilot was originally scheduled to return, at which time such limitation shall be removed.
- 7) A Freight Pilot must have proof of their COVID-19 vaccination on file with the Company to be awarded, through the Open Trip Scheduling List ("OTSL") process (including recall), any flying that requires proof of a COVID-19 vaccination.
- 8) Rules for a Freight Pilot flying a Flight Grouping in Passenger Operations:
 - a) A Freight Pilot will operate under all work rules in PWA Section 27 (Freight Operation) governing freight-Category flying, except:
 - (1) If a Freight Pilot is performing Passenger Operations as a result of assignment via PWA Subparagraph 22.G.3.k.1), the Freight Pilot will operate under the work rules governing Passenger-Category Operations.
 - b) The most senior Passenger Category pilot who was legal and available to fly the Flight Grouping shall be paid two hundred percent (200%) (Flying Out Of Domicile Settlement HAL 13-13GG)
- h. RECALL AND ASSIGNMENT
 - 1) A Freight Pilot shall not be recalled for Long Call Reserve duty.
 - 2) Recall from days off:
 - a) Shall not alter a Freight Pilot's entitlement to the minimum days off in Domicile applicable to the Freight Pilot's current Monthly Run if such recall was the result of junior-manning.

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- b) That results in a Freight Pilot being unavailable or illegal to fly any other Freight Flight Grouping(s) on their schedule, shall be Paid and Credited the greater of:
 - (1) The Freight Flight Grouping(s) missed, or
 - (2) The Freight Flight Grouping flown.
- c) That causes a Freight Pilot's projected minimum days off to fall below the minimum, as the result of junior-manning, shall have such minimum days off replaced as prescribed by PWA Subparagraph 27.B.10.f.5). (Replacement Days Off).
- 3) Assignment to flight duty.
 - a) A Freight Pilot assigned flight duty shall receive written notification of their flight schedule. Such notification will include all information prescribed by Subsection 22.E (Daily Flight Schedule).
- i. SCHEDULING PILOTS FOR FREIGHT RESERVE AVAILABILITY PERIODS
 - 1) A Freight Pilot on a Freight Reserve Availability Period (FRAP) shall:
 - a) Be a Freight Pilot awarded or assigned a FRAP within the Footprint of their FFG. If a Freight Reserve Availability Period (FRAP) is assigned or awarded through PBS, the Company may change this FRAP at any time up until publishing the Daily Flight Schedule.
 - b) Be scheduled for a FRAP of twelve (12) hours or less.
 - c) Be listed on the DFS in their Callout Order, and identified as a "two-hour (2-hour), reserve.
 - d) Be on-call for flight duty only during their scheduled FRAP, but shall not be required to standby at home, provided:
 - (1) They keep Crew Scheduling advised of their whereabouts;
 - (2) Are readily contactable by Crew Scheduling; and
 - (3) Are in a position to report for duty within their respective reporting time.
 - e) Make every reasonable effort to report for flight duty in an expeditious manner to keep the departure of the flight as close to on time as possible.
 - f) Be limited to the duty hour limitations specified in Subsection 27.B.10.d (Duty Periods) when utilized for flight duty.
 - g) Be released from their FRAP at any time at Company discretion.
 - 2) In addition to Subparagraph 27.B.22.f.3) Long Call Reserve Pilots shall:
 - a) Have their flight assignments considered as published:
 - (1) When printed on the DFS; or
 - (2) Upon verbal notification from the Company of the Freight Flight Grouping assigned after such Freight Pilot is called to report for duty; such verbal notification:
 - (a) Shall be provided prior to the Freight Pilot's departure on their first Segment;
 - (b) Contains information required by Subparagraphs 22.E.1 and 22.E.3; and
 - (c) Entitles the Freight Pilot to the Pay and Credit provisions of Subsection 27.B.4.b (Pay and Credit) for their assigned flight Duty Period.
 - b) Report for flight duty within twenty (20) hours to their Domicile and/or twelve (12) hours to their Gateway City
 - c) LCRPs must either contact Crew Scheduling or electronically self-notify to acknowledge their assignment within two (2) hours of initial contact. If the pilot will be out of contact for longer than two (2) hours, they shall notify Crew Scheduling in advance with the length of time they are expected to be out of contact.
 - d) An LCRP on the first day of their Long Call Reserve block shall not be assigned an FFG with a report time at their Domicile prior to 20:00 LDT (Local Domicile Time) or 12:00 local time in their Gateway City.
 - e) LCRPs must either report to their Domicile or their Gateway City at the Company's request

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- (1) A Freight Pilot will be notified at the time of assignment where to report.
- f) Once assigned an FFG, an LCRP is not required to remain available for contact in the twenty (20) hours prior to the scheduled report time to their Domicile, or twelve (12) hours prior to the scheduled report time to their Gateway City.
- g) Upon completion of an FFG, a LCRP shall immediately be placed back on Long Call Reserve, except that a Freight Pilot shall be released from all reserve obligation when the Freight Pilot completes the FFG on the last day of a Long Call Reserve block.
- h) A LCRP is released at 04:00 LDT (Local Domicile Time) on their last day of Long Call Reserve, provided no FFG assignment has been made by that time.
- i) LCRPs during their Long Call Reserve days may “add” an FFG by utilizing the Online Scheduling Access Program within twenty-four (24) hours prior to the FFGs scheduled report time
- 3) The following shall apply to a Freight Airport Reserve Period (FARP):
 - a) A Freight Pilot shall not be reassigned to a FARP more than four (4) times per month.
 - b) Freight Airport Reserve pilots must be available to report to the aircraft within thirty (30) minutes from the Freight Airport Reserve Period duty room, or fifteen (15) minutes to the hotel lobby (if used in lieu of Freight Airport Reserve Period duty room). Likewise, they must check in at the airport facility to perform their preflight duties at the start of their FARP.
 - c) A Freight Airport Reserve Period duty room will be provided for the use of the Freight Pilots assigned a FARP.
 - d) Freight Airport Reserve pilots shall not be required to standby in the Freight Airport Reserve Period duty room provided that they keep Crew Scheduling advised of their whereabouts and are readily contactable by Crew Scheduling at a phone designated by the Freight Airport Reserve pilot or by the Freight Pilot’s cell phone, pager, or other electronic communication device accessible to Crew Scheduling and are able to report to the aircraft within thirty (30) minutes
 - e) A Freight Airport Reserve Period will end upon the earliest of: (a) Crew Scheduling notification of release from Freight Airport Reserve, (b) pickup from the hotel for a Freight Flight Grouping, or (c) eight (8) hours after the commencement of the Freight Airport Reserve Period.
- 4) In addition to Subparagraph 27.B.22.i.1), Reserve Freight Pilots in a Freight Reserve Availability Period (FRAP) shall:
 - a) Have their flight assignments considered as published:
 - (1) When printed on the DFS; or
 - (2) Upon written notification from the Company of the assigned Freight Flight Grouping; such written notification:
 - (a) Shall be provided prior to the Freight pilot’s departure on their first Segment;
 - (b) Contains information required by Subparagraphs 22.E.1 and 22.E.3; and
 - (c) Entitles the Freight Pilot to the Pay and Credit provisions of Subsection 27.B.4.b (Pay and Credit) for their assigned flight Duty Period.
 - b) Report for flight duty within two (2) hours after receiving notice of a flight assignment;
 - (1) The two (2) hours of report time will include the hotel transportation to the airport facility.
 - c) Commence their flight duty assignment within their originally scheduled FRAP.
 - d) Shall not be required to report for duty earlier than 0530 LDT (Local Domicile Time) following:
 - (1) Scheduled day(s) off;
 - (2) Vacation; or

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- (3) ALPA leave.
- e) Shall not be scheduled to complete a Duty Period later than 2400 LDT on days preceding:
 - (1) Scheduled day(s) off; or
 - (2) Vacation.
- f) A flight assignment is completed when such Freight Pilot is:
 - (1) Released from all duty at their Domicile or their Gateway City, or
 - (2) When such Freight Pilot is provided a Rest Period prescribed by Subsection 27.B.10.e (Rest Periods).
- j. TRADING OF FLIGHT ASSIGNMENTS
 - 1) Refer to PWA Subsection 22.J
- k. ONLINE SCHEDULING ACCESS PROGRAM
 - 1) Drop: On a first-come, first-served basis, Crewmembers may drop Freight Flight Groupings from their schedules into open time if, at the time of the request, the minimum number of free and clear reserves exist. A day is considered to have at least the minimum number of free and clear reserves if the number of available Long Call Reserves exceeds the number of FFGs in open time operating that day by at least two (2);
 - (1) LCRPs on the first day of a multi-day block will not be considered as free and clear—i.e., not counted towards the “at least two (2)” above
 - (2) Their Pay and Credit for the month shall not go below fifty (50) hours.
 - 2) Add: Notwithstanding the provisions of Subparagraphs 27.B.22.g.3), Freight Pilots desiring additional Pay and Credit time shall request Freight Flight Groupings via the Automated Scheduling Program (“the Program”) as follows:
 - a) After the bid award is published, Bid Run pilots may request Freight Flight Groupings that are in open time. All such requests will be processed in real time on a first-come, first-served basis, via the program, except that any FFGs that are in open time prior as of 0900 LDT the day before the Freight Flight Grouping operates shall be award by the Program.
 - 3) Swap: Crewmembers may drop a Freight Flight Grouping(s) from their current schedule in exchange for a Freight Flight Grouping(s) from open time. Such swaps shall be approved if, at the time of the request, the minimum number of free and clear reserves exist. A day is considered to have at least the minimum number of free and clear reserves if the number of available Long Call Reserves exceeds the number of FFGs in open time operating that day by at least two (2);
 - a) LCRPs on the first day of a multi-day block will not be considered as free and clear—i.e., not counted towards the “at least two (2)” above
 - b) A swap will not bring the pilot below fifty (50) hours of Pay and Credit.
 - 4) Trades: May not bring either pilot below thirty-seven and one-half (37.5) hours.
 - a) Trade: Two (2) crewmembers may exchange Freight Flight Groupings from their schedules.
 - b) One-Sided Trade: One (1) crewmember may pick up a Freight Flight Grouping from another crewmember (with their concurrence) for no Freight Flight Grouping in return. Such one-sided trades shall only be allowed through an online trade board on a first-come, first-served basis. The intent of this provision is to allow a Freight Pilot to drop a Freight Flight Grouping that they would otherwise not be able to drop due to minimum staffing. One-Sided trades from a Bid Run pilot to Long Call Reserve Run pilot shall not be approved. It is not intended for senior Freight Pilots to bid for Freight Flight Groupings in order to drop them to junior Freight Pilots who could not otherwise hold them. If the MEC feels at any time that this provision is being abused, it may at its sole discretion direct that this function of the Program be disabled.

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- c) Trade Segments: Freight Pilots may trade individual Segments of a FFG with another Freight Pilot. The hotel room for such FFG shall be provided to the Freight Pilot operating the returning Segment of the Freight Flight Grouping unless otherwise agreed by the Freight Pilots. In the event the Freight Pilot scheduled to operate the return Segment elects not to stay at the crew hotel, such Freight Pilot shall provide Crew Scheduling with a contact telephone number.
 - d) Trade Board: The Program shall provide Freight Pilots with the opportunity to openly post requests for trip trades online on the Trade Board. A Freight Pilot who wishes to agree to trade shall be able to initiate the trade online through the Trade Board.
- 5) Pop-up Vacation: Requests for pop-up vacation pursuant to Subsection 27.B.6.i (Additional Vacation Periods) of the Agreement shall be processed via the Program. Such requests shall be considered on a first-come first-served basis along with requests for dropped Freight Flight Groupings. All such requests shall be awarded if the minimum staffing requirements will be met at the time of the award. Such pop-up vacation shall be paid on a Freight Flight Groupings-missed basis for Bid Run pilots and at three and eighty-nine hundredths (3.89) hours per day for Long Call Reserve Run pilots.
- 6) Subparagraph 27.B.10.f.2) Waiver: Freight Pilots shall be able to execute online through the Program their option to waive any number of days off per Subparagraph 27.B.10.f.2) of the PWA once the month begins.
- 7) General provisions of the Online Scheduling Program
- a) Unless otherwise provided for in the Agreement, requests for any transaction pursuant to Subsection 27.B.22.k shall be denied if:
 - (1) Such request does not conform to the FARs or applicable provisions of the PWA, or
 - (2) A Freight Pilot does not have proof of their COVID-19 vaccination on file with the Company, and the flying requires the pilot to have a COVID-19 vaccination.
 - b) Transactions conducted via the Program:
 - (1) Online Scheduling Access Program Limits:

Federal Air Regulation Limits	Online Scheduling Limits
100 Flt hrs within 672 hrs 117.23.b.1	98 Flt hrs within 672 hrs
1000 Flt hrs within 365 days 117.23.b.2	990 Flt hrs within 365 days
60 FDP hrs within 168 hrs 117.23.c.1	58 FDP hrs within 168 hrs
190 FDP hrs within 672 hrs 117.23.c.2	180 FDP hrs within 672 hrs
30 hrs of rest within 168 hrs 117.25.b	31 hrs of rest within 168 hrs

*The 30 hr rest buffer would apply when rest is applied in Domicile in accordance with FAR 117.25.b

- (2) that result in Freight Flight Groupings being dropped into open time are subject to staffing availability such that at the time of the request the minimum number of free and clear reserves exist. A day has the minimum of free and clear reserves

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if the number of available Long Call Reserves exceeds the number of FFGs in open time operating that day by at least two (2).

(a) LCRPs on the first day of a multi-day block will not be considered as free and clear—i.e., not counted towards the “at least two (2)” above

(3) made after publishing of the DFS on which that Freight Flight Grouping operates must have the prior concurrence of Crew Scheduling.

c) Inadvertent Publication of a Freight Flight Grouping

(1) If a Freight Flight Grouping is inadvertently published in open time, the Company is permitted to remove the FFG from open time only if such removal is done within one (1) hour of the inadvertent publishing.

(a) If a Freight Flight Grouping request shows “pending” or “processing” in the Online Scheduling Access Program at the time of removal from open time, the Company will make its best effort to verbally notify the Freight Pilot of the Freight Flight Grouping removal and their request denial.

(2) If the Company denies a Freight Pilot’s Online Scheduling Access Program request involving an inadvertently published Freight Flight Grouping after it has been published for more than one (1) hour or more, the first Freight Pilot to have requested the inadvertently published Freight Flight Grouping shall receive pay protection for the Freight Flight Grouping.

(3) If an inadvertently published Freight Flight Grouping is awarded via the Online Scheduling Access Program the Freight Pilot shall receive pay protection if subsequently removed from the Freight Flight Grouping.

8) The Company shall share analytics with the Association on a monthly basis, including any reductions(s) in the number of error code exceptions that hold for manual processing, server uptimes, and any improvements or changes to the system.

1. IRREGULARITIES

1) Changes in Freight Pilot Schedules.

a) The Segments of any Bid or Long Call Reserve Run Freight Pilot may be changed to accommodate the requirements of the Daily Flight Schedule (DFS).

b) The originally scheduled daily departure and arrival times, as they appear on the Monthly Run of a Bid Run Freight Pilot or on the DFS for a Long Call Reserve Run Freight Pilot, may be extended pursuant to the provisions of Subsection 27.B.4.d (Pay and Credit for Schedule Changes).

c) Changes made prior to the publishing of the DFS must appear on the printed DFS.

d) Pay and Credit shall be:

(1) As specified in Subsection 27.B.4.d (Pay and Credit for Schedule Changes); and

e) In the event of cancellations or other irregularities, as much advance notice as possible will be provided to enable the Freight Pilot to:

(1) Obtain proper rest in preparation for the flight, and

(2) Report within the proper time limitations.

2) Changes within a published Freight Flight Grouping.

a) If a Bid Run Freight Pilot’s published Freight Flight Grouping or Segments are changed for any reason:

(1) The Company may schedule the Freight Pilot for another Freight Flight Grouping, FRAP, FARP, or Segment(s) any time, so long as it occurs within the Footprint of the originally scheduled Freight Flight Grouping, and

(2) Pay and Credit for such schedule change(s) shall be:

(a) The actual time flown or the time scheduled to be flown, whichever is greater; or

(b) The scheduled time of the cancelled Segment(s) or the Pay and Credit time for any other Segment(s) assigned by the Company, whichever is greater; or

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- (c) 27.B.4.c.1).a).(3); or
- (d) The greater of Subparagraph 27.B.22.1.2)a)(2)(a), or 27.B.22.1.2)a)(2)(b), or 27.B.22.1.2)a)(2)(c).
- (e) Paid and Credited in accordance with the provisions of Subsection 27.B.4.d (Pay and Credit for Schedule Changes).
- (3) A Freight Pilot may be reassigned past the Footprint of the originally scheduled FFG under the following parameters:
 - (a) For a reassignment or assignment that causes the Freight Pilot to operate past the original FFG Footprint (this does not apply to a Delayed Freight Flight).
 - (b) The Company shall utilize all available Freight Pilots in a FRAP in the location at issue prior to reassigning or assigning another Freight Pilot past the original Footprint of their FFG.
 - (c) A Freight Pilot may not be involuntarily reassigned or assigned past the original FFG Footprint more than once per month, with a maximum of one (1) day off lost per month.
 - (d) If the reassignment or assignment extends more than two (2) hours past the original FFG Footprint the Freight Pilot receives an additional two (2) hours of pay.
 - (e) If the assignment causes the loss of a day off:
 - 1 Assignment may not exceed twenty-four (24) hours past the original FFG Footprint, and
 - 2 Freight Pilot receives an additional four (4) hours pay for the lost day off.
- (4) Assignment from a FRAP that causes the Freight Pilot to operate more than two (2) hours past the original FFG Footprint (this does not apply to a Delayed Freight Flight)
 - (a) Freight Pilot may not be involuntarily assigned from a FRAP past the original FFG Footprint more than once per month, with a maximum of one (1) day off lost per month.
 - (b) If the assignment extends more than two (2) hours past the original FFG Footprint the Freight Pilot receives an additional two (2) hours of pay.
 - (c) If the assignment causes the loss of a day off:
 - 1 Assignment may not exceed twenty-four (24) hours past the original FFG Footprint, and
 - 2 Freight Pilot receives an additional four (4) hours pay for the lost day off.
- b) The published monthly schedule of a Long Call Reserve Run Freight Pilot:
 - (1) May be added to or have any Freight Flight Grouping(s) cancelled, prior to printing of the DFS, without penalty to the Company; however,
 - (2) The Company must compensate the Freight Pilot, in accordance with Subsection 27.B.4.d (Pay and Credit for Schedule Changes) for:
 - (a) Any Segment(s) printed on the DFS and subsequently cancelled; or
 - (b) Any assigned (verbal or written) Freight Flight Grouping cancelled after printing of the DFS.
- 3) Delayed Flights (Freight Pilot at their Domicile):
 - a) Whenever possible, a Freight Pilot, at their Domicile, will be removed from any delayed Freight Flight Grouping or Segment(s) that would cause the Freight Pilot to be removed from another Freight Flight Grouping on their Bid Run.
 - b) A Freight Pilot, at their Domicile, who has reported to the airport for their Freight Flight Grouping:
 - (1) Will be removed from the Freight Flight Grouping, if the first Segment is or will be, delayed more than eight (8) hours from its originally scheduled departure time; however,

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- (2) If the Freight Pilot requests and uses a suitable single room hotel accommodation or single day hotel room located at the airport (at Company expense) during the delay, such Freight Pilot will be removed from the Freight Flight Grouping, if the first Segment is or will be, delayed more than ten (10) hours from its originally scheduled departure time.
- (3) The Freight Pilot will be removed from the Freight Flight Grouping as soon as possible.
- c) A Freight Pilot, at their Domicile, who has not reported to the airport for their Freight Flight Grouping will be removed from the delayed Freight Flight Grouping dependent on the newly projected duty time of the first Duty Period in accordance with the schedule below:

<u>Duty Time</u>	<u>Removal from Flight Grouping</u>
Less than 8 hours	12-hour delay
8 to 10 hours	10-hour delay
More than 10 hours	8-hour delay

- (1) The length of delay (in the above schedule) is based on the originally scheduled departure time.
- d) The provisions of Subparagraph 27.B.22.1.3) are in addition to and not offset by any other provisions of the Agreement that require the Company to remove a Freight Pilot from their Freight Flight Grouping. Other provisions of the Agreement include, but are not limited to, Guaranteed Days off (GDO).
- 4) Delayed Flights (Freight Pilot not in their Domicile)
 - a) A delay shall not result in the Freight Pilot arriving in their Domicile or their Gateway City more than twenty-four (24) hours past the originally scheduled arrival time, unless:
 - (1) Prior to the scheduled arrival time of the delayed flight extending twenty-four (24) hours past the Footprint of the originally scheduled FFG, the Freight Pilot is assigned to Deadhead to their Gateway City in the most expeditious manner possible.
- 4) When an airplane is ferried to replace a disabled aircraft:
 - a) The regular crew of the disabled aircraft will utilize the replacement aircraft to continue with their originally scheduled Freight Flight Grouping, provided existing regulations and agreements permit.
 - b) The ferry crew will remain with the disabled aircraft to ferry it to the base or to fly a Segment(s) as directed by Dispatch.
- 5) Consolidation of Flights.
 - a) When two flights are consolidated, the Trip number used on the consolidated Trip determines the operating crew.
 - b) If the Trip numbers are changed:
 - (1) The flight will be offered in seniority by Category to the senior crewmembers;
 - (2) And if the senior crewmembers refuse; then, the flight is assigned by Category to the junior crewmembers.
- 6) The Company agrees that any Freight Pilot in transition from a Long Call Reserve Run month to a Bid Run the next month shall:
 - a) If such Freight Pilot is required to fly any Segments that infringed upon their Bid Run, be Paid and Credited for the Bid Run Freight Flight Groupings missed or for what they actually flew, whichever is greater.
 - b) If such infringement reduces the Freight Pilot's days off below the minimum required by Subparagraph 27.B.10.f.2), then the following will occur:

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- (1) Such minimum days off must be replaced in that same month.
 - (2) The assignment of replacement days off shall be as prescribed by Subparagraph 27.B.10.f.5).
 - (3) Application of Subparagraph 27.B.10.f.5) shall not cause the Freight Pilot to be Paid and Credited for the month with less time than they were awarded on their original Bid Run.
- 7) IRO Reserves
 - a) In the event it becomes necessary to cover the IRO crew position for a FFG subject to the provisions of this Section 27.B.22 (Scheduling Policy), the award or assignment will be made in accordance with the provisions of this Section 27.B.22 (Scheduling Policy) from among those First Officers who would otherwise be available for the award or assignment and who are currently IRO-qualified. Should there be no such available and qualified First Officers, the Company may assign a Captain in accordance with the provisions of this Section 27.B.22 (Scheduling Policy).
- m. POST DFS CREATION PERIOD FOR BID RUN PILOTS
 - 1) Freight Flight Groupings that are placed into open after 13:51 LDT shall be available at 14:00 LDT.
 - 2) A Freight Flight Grouping that is in open time at, or is added to open time after, 14:00 LDT the day prior to the commencement of the Freight Flight Grouping, shall be awarded or assigned on a “first-come, first-served” basis.
 - a) An “add” request, that meets all contractual and FAR requirements, will be awarded up until five (5) hours prior to the commencement of the first Duty Period of the Freight Flight Grouping.
 - b) A “swap” request, that meets all contractual and FAR requirements, will be honored up until five (5) hours prior to the commencement of the first Duty Period of the Freight Flight Grouping being added or the Freight Flight Grouping being dropped, whichever is earlier.
 - (1) If the Freight Flight Grouping that is being dropped originates in the Window (the Window for the purposes of this subparagraph is defined as 14:00 LDT on the day prior to the Freight Flight Grouping operates, until 23:59 LDT on the first day of the Freight Flight Grouping), the scheduler shall check the scheduled FRAPs for the day it originates to confirm legal and available reserves exist during the affected FRAP.
 - (2) If a Freight Flight Grouping being dropped as part of a “swap” request, requires the utilization of more than one (1) Freight Pilot in a FRAP because existing FRAPs do not coincide with the Footprint of the dropped Freight Flight Grouping:
 - (3) The swap will be approved if:
 - (a) There are legal and available Freight Pilots in a FRAP for each affected FRAP; and
 - (b) Both Freight Pilots in FRAPs to be utilized are not the sole Freight Pilots (exclusive of Freight Airport Reserve Pilots) currently available in their respective FRAPs.
 - (4) If the Freight Flight Grouping that is being dropped originates outside the Window, the scheduler shall check the minimum number of free and clear reserves for the day. A day shall have the minimum number of free and clear reserves if the number of available Long Call Reserves exceed the number of FFG’s in open time operating that day by at least two (2).
 - (a) LCRPs on the first day of a multi-day block will not be considered as free and clear—i.e., not counted towards the “at least two (2)” above.

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- 3) All add and swap requests will be submitted through the Online Scheduling Access Program. Requests will then be manually processed by Crew Scheduling in the order received.
 - a) If Crew Scheduling denies a request, they must include one of the following reasons in the denial notes (denial caused by FAR or PWA illegality, the actual illegality will be listed):
 - (1) Freight Flight Grouping was awarded to another Freight Pilot who requested the Freight Flight Grouping prior to yourself, or
 - (2) FAR illegality (i.e., 100/672, 30/7, 60/168), or
 - (3) PWA illegality, or
 - (4) Insufficient reserves on dates (for requests outside the Window), or
 - (5) Insufficient reserves for specific FRAP (for requests inside the Window).
- 4) The Company may, at any time after 14:00 LDT the day prior to the operation of a Freight Flight Grouping, remove the Freight Flight Grouping from the open time pot and immediately initiate the “recall” process for the Freight Flight Grouping.
- 5) A Freight Flight Grouping, once removed and subject to recall, may not be placed back in open time or awarded/assigned by means other than the recall process.

23. SECTION 23 UNION SECURITY

- a. Refer to PWA Section 23

24. SECTION 24 INSURANCE

- a. Refer to PWA Section 24

25. SECTION 25 RETIREMENT

- a. Refer to PWA Section 25

26. SECTION 26 GENERAL

- a. UNIFORMS
 - 1) Refer to PWA Subsection 26.A
- b. PILOT LIABILITY
 - 1) Refer to PWA Subsection 26.B
- c. COPY OF THE AGREEMENT
 - 1) Refer to PWA Subsection 26.C
- d. SPECIAL FLIGHTS
 - 1) Refer to PWA Subsection 26.D
- e. PERSONNEL FILES
 - 1) Refer to PWA Subsection 26.E
- f. PILOT INDEMNIFICATION IN LEGAL ACTIONS
 - 1) Refer to PWA Subsection 26.F
- g. INTERLINE/PASS PRIVILEGES
 - 1) Refer to PWA Subsection 26.G
- h. BANK DIRECT DEPOSITS
 - 1) Refer to PWA Subsection 26.H
- i. NEW EQUIPMENT
 - 1) Refer to PWA Subsection 26.I
- j. RECORDING OF PILOT PERFORMANCE
 - 1) Refer to PWA Subsection 26.J
- k. OPERATIONAL PROCEDURES RECOMMENDATIONS
 - 1) Refer to PWA Subsection 26.K
- l. LOUNGES

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- 1) The Company shall provide a Freight Pilot lounge, that may be shared with another airline, for the use of Freight Pilots at each Freight Pilot Domicile with greater than fifty (50) Freight Pilots. The adequacy of all such facilities shall be mutually agreed to between the Company and the MEC.
- 2) The Company will ensure remedial cleaning and repair, periodic maintenance, monthly service, semi-annual service, and bi-annual service is performed per clarification letter "Cleaning Schedule A."
- 3) Freight Airport Reserve Facilities:
 - a) The Company will provide (or share with another airline) a designated Freight Airport Reserve Period duty room for pilots that is comfortable, clean, quiet, free from public access, and of adequate size with suitable amenities.
 - b) Thirty (30) minute report to aircraft from Freight Airport Reserve Period duty room
 - c) The Freight Airport Reserve Period duty room amenities will include:
 - (1) Adequate number of lounge-sleeper chairs:
 - (2) A large screen television with cable reception or equivalent:
 - (3) Free high-speed internet wi-fi access
 - d) A separate sleeping room, single occupancy (for shared facilities), for each pilot on a Freight Airport Reserve Period shall be away from noise and have a temperature-controlled ventilation system and ability to block out light. The sleeping room will contain a lay-flat type bed(s) with provisions for clean cotton linens (to include pillows and blankets of adequate height).
 - e) Freight Airport Reserve Periods may be served at a hotel that meets the standards of Subparagraph 27.B.26.1.3) for the Freight Airport Reserve Facilities:
 - (1) Fifteen (15) minute report to hotel lobby
 - (2) Freight Airport Reserve Period hotel must only meet the requirements of the Freight Airport Reserve Facilities
- m. COMPANY IDENTIFICATION
 - 1) Refer to PWA Subsection 26.M
- n. DISCRIMINATION
 - 1) Refer to PWA Subsection 26.N
- o. MERGE OR CONSOLIDATE
 - 1) Refer to PWA Subsection 26.O
- p. RELEASE OF INFORMATION
 - 1) Refer to PWA Subsection 26.P
- q. OPERATIONS/SAFETY MEETINGS
 - 1) Refer to PWA Subsection 26.Q
- r. MEMORANDA
 - 1) Refer to PWA Subsection 26.R
- s. INTENTIONALLY LEFT BLANK
- t. ENTITLEMENT PROVISIONS
 - 1) Refer to PWA Subsection 26.T
- u. COCKPIT OBSERVER AUTHORITY (JUMPSEAT)
 - 1) Refer to PWA Subsection 26.U
- v. FREE TRANSPORTATION FOR ALPA STAFF MEMBERS
 - 1) Refer to PWA Subsection 26.V
- w. COMPANY ORDERS
 - 1) Refer to PWA Subsection 26.W
- x. PILOT PAY RECORDS
 - 1) Refer to PWA Subsection 26.X
- y. ADDITIONAL CREWMEMBER SEATING

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- 1) Whenever an IRO or an ER crew is scheduled on a given flight Segment, a First Class seat or two (2) First Class seats, respectively, shall be reserved and maintained for the exclusive use of the cockpit crew for crew rest purposes. Such crew rest seat(s) shall not be located in the cockpit.
- z. APPLICABILITY
 - 1) Refer to PWA Subsection 26.Z
- aa. PILOT BOARD MEMBER
 - 1) Refer to PWA Subsection 26.AA
- bb. ELECTRONIC COMMUNICATIONS
 - 1) Refer to PWA Subsection 26.BB
- cc. ESTABLISHMENT OF AN OPERATIONS LIAISON COMMITTEE
 - 1) Refer to PWA Subsection 26.CC
- dd. PBS PROJECT MANAGER
 - 1) Refer to PWA Subsection 26.DD
- ee. ECONOMIC STABILIZATION GUIDELINES
 - 1) Refer to PWA Subsection 26.EE
- ff. EMPLOYEE COORDINATING COMMITTEE
 - 1) Refer to PWA Subsection 26.FF
- gg. TURBOJET RESTRICTIONS INTO MOLOKAI
 - 1) Refer to PWA Subsection 26.GG
- hh. PBS SOFTWARE REVISIONS AND/OR HARDWARE MODIFICATIONS
 - 1) Refer to PWA Subsection 26.HH
- ii. DAYS OFF PRORATION
 - 1) Refer to PWA Subsection 26.II
- jj. TABLE OF PRORATED ABSENCES
 - 1) Refer to PWA Subsection 26.JJ
- kk. FLIGHT OPERATIONS QUALITY ASSURANCE (FOQA)
 - 1) Refer to PWA Subsection 26.KK
- ll. REST FACILITIES
 - 1) General
 - a) Rest facilities will receive a deep cleaning no less than once every two (2) months.
 - 2) Freight Aircraft Rest Facilities:
 - a) Must comply with Part 117 rest facility specifications
 - b) Shall be provisioned with no less than four (4) prepackaged bedding packets that shall each include:
 - (1) One (1) Twin size cloth sheet
 - (2) One (1) Twin size blanket of suitable heft
 - (3) One (1) Standard sized (20in x 26in) pillow and case
 - a) Shall be restricted for the sole use of flight deck crewmembers and, when authorized by the captain, pilots on the Hawaiian Airlines System Seniority list. Additionally, pilots not on the Hawaiian Airlines System Seniority list, when occupying a jumpseat in accordance with 26.U of the PWA, with the Captain's authorization, may use the Freight Aircraft Rest Facility.
 - a) Seats Authorized for Takeoff and Landing: Any seats located within a Freight Aircraft Rest Facility that are approved for takeoff and landing shall be limited to pilots on the Hawaiian Airlines Seniority List except as authorized by the Captain.
- mm. "FLEX CAPS"
 - 1) Refer to PWA Subsection 26.MM
- nn. FEDERAL FLIGHT DECK OFFICER (FFDO) TRAINING
 - 1) Refer to PWA Subsection 26.NN
- oo. PROFESSIONAL STANDARDS

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

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FREIGHT OPERATIONS

- 1) Refer to PWA Subsection 26.OO
- pp. HEALTH
 - 1) Refer to PWA Subsection 26.PP
- qq. DATA COLLECTION AND FATIGUE RISK MANAGEMENT
 - 1) Refer to PWA Subsection 26.QQ
- rr. COMMUTER POLICY
 - 1) Refer to PWA Subsection 26.RR
- ss. INTERNATIONAL FREIGHTER AIRCRAFT FLYING
 - 1) The Company may utilize aircraft that are configured for freight-only operations for flights outside the United States and its territories, however the two (2) parties shall meet and confer concerning such operations only if not to a previously (within ten (10) years) or currently served International Flying destination.
- tt. PASSENGER CONFIGURED AIRCRAFT ASSIGNED TO THE FREIGHT OPERATION
 - 1) Passenger configured aircraft flown by Freight Pilots should occur, only temporarily, for the purposes of irregular operations
 - a) A passenger configured aircraft (regardless of a/c tail number) shall not be utilized in Freight Operations by Freight Pilots greater than thirty (30) cumulative days within a one-hundred eighty (180) day period without the consent of the Association.
- uu. FREIGHTER AIRCRAFT CREW COMPLEMENT
 - 1) Freighter aircraft shall always be operated by a minimum of two (2) pilots.

C. FREIGHT OPERATION FUTURE MODIFICATIONS:

- 1. LOAs, MOUs, and Grievance Settlements shall address the question on whether this Section 27 is affected by any change(s).

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 28

PRIOR AGREEMENTS

A. PRIOR AGREEMENTS

This Agreement shall supersede and take precedence over all Agreements, Supplemental Agreements, Amendments, Letters of Agreement, Memorandum of Understandings, and similar documents between the parties prior to the effective date of this Agreement except for the following, which shall remain in effect concurrently with this Agreement:

Agreement	Date
Flight Operations Quality Assurance Program (FOQA)	October 2009
Military Leave Agreement	January 2010
Korean Air Code Sharing	May 2010
China Airlines Code Sharing	July 2013
Japan Airlines Joint Venture	April 2019
Pay Error	June 2022

B. INTERIM SECTIONS

1. The Company and the Association will create Interim Sections to facilitate the implementation of this Agreement.

C. The Letters of Agreement listed in Subsection 28.A are located in their entirety in Appendix A.

HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 28

PRIOR AGREEMENTS

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HAWAIIAN AIRLINES 2023 PILOTS AGREEMENT

SECTION 29

DURATION

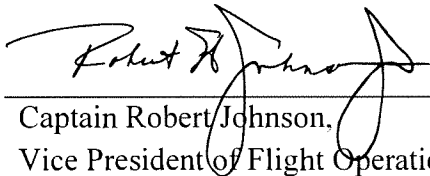
A. DURATION OF AGREEMENT

1. This Agreement shall become effective March 2, 2023 and shall remain in full force and effect until March 2, 2027 and shall renew itself without change until each succeeding March 2nd thereafter unless written notice of intended change is served in accordance with Section 6, Title 1 of the Railway Labor Act, as amended, by either Party hereto at least two hundred and seventy (270) days prior to March 2nd, 2027 or at two hundred and seventy (270) days prior to March 2nd in any year thereafter.
2. Once such notice has been served, the Parties agree that they shall meet for the purpose of commencing negotiations not later than thirty (30) days after such notice is given. During this early open period, the Parties shall meet a minimum of six (6) days (two three-day sessions) per calendar month.

IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 2nd of March 2023.

FOR HAWAIIAN AIRLINES, INC.:

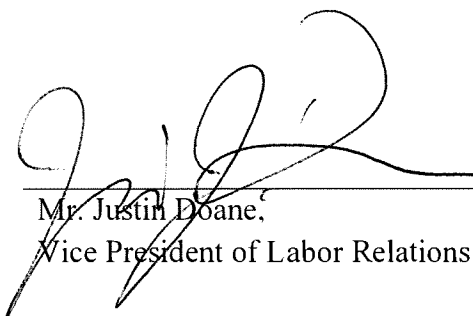
FOR THE AIR LINE PILOTS
ASSOCIATION,
INTERNATIONAL:



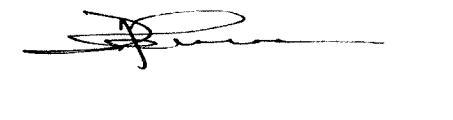
Captain Robert Johnson,
Vice President of Flight Operations



Captain Jason Ambrosi,
President of the Air Line Pilots
Association, International



Mr. Justin Doane,
Vice President of Labor Relations



Captain Lawrence Payne,
Chairman, HAL Master Executive
Council

LETTER OF AGREEMENT
Between
THE AIRLINE PILOTS
In the service of
HAWAIIAN AIRLINES, INC.
As represented by
THE AIR LINE PILOTS ASSOCIATION, INTERNATIONAL

FLIGHT OPERATIONS QUALITY ASSURANCE PROGRAM

THIS LETTER OF AGREEMENT is made and entered into in accordance with the provisions of Title II of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC. (hereinafter referred to as "the Company" or "Hawaiian Airlines") and the AIRLINE PILOTS in the service of Hawaiian Airlines, Inc. as represented by the Air Line Pilots Association, International (hereinafter referred to as "The Association" or "ALPA").

WITNESSETH:

WHEREAS, it is the intent of the parties to implement a Flight Operations Quality Assurance Program (FOQA) to analyze data for the sole purpose of enhancing safety, and

WHEREAS, the Federal Aviation Administration (FAA), has implemented FAR 13.401 that ensures FOQA data from carriers participating in an approved program will not be used to undertake any enforcement action against an air carrier or its employees, and

WHEREAS, the parties agree that it is appropriate to initiate a trial FOQA program given the above assurance and that such trial program will terminate eighteen months from the date of implementation of the program, unless it is mutually agreed to make this FOQA program a permanent program.

Now, THEREFORE, it is mutually agreed as follows:

A. DEFINITIONS:

1. "Aircraft Condition Monitoring System" or "Quick Access Recorder (QAR)" means any quick-access recorder that captures flight data onto any removable optical disk or any equivalent system.
2. "Cockpit Voice Recorder" is any device, equipment or system which monitors or records a pilot's voice while he or she is on an aircraft.
3. "Collected Data" is data which has been recorded and removed from an aircraft via a data collection device or method for use in the FOQA program.
4. "De-identified Data" means any FOQA data that exists following the deletion and destruction of any data that could in any way be used to identify specific crew members.
5. "Flight Data Recorder" is any device, equipment or system which collects, transmits or records in-flight data, whether installed to monitor pilot, aircraft component, or aircraft performance, or as a consequence of performance of some other function.

6. "FOQA Gatekeeper" is an ALPA member appointed by the Hawaiian Airlines Master Executive Council (HAL MEC), who alone has been authorized as the sole individual to have access to FOQA information which would allow the identification of a crew member associated with collected data, as well as sole authorization to retrieve such information from the computer to view Identifying Data before de-identification, or to obtain the identity of crew members after an Operational Exceedance Event, or to contact such crew members to obtain additional information for use by the FOQA program. The HAL MEC will also appoint an alternate FOQA Gatekeeper who, in coordination with the FOQA Gatekeeper, shall perform the duties of the FOQA Gatekeeper pursuant to this paragraph in the event the FOQA Gatekeeper is unavailable.
7. "FOQA Monitoring Team" (FMT) means a committee composed of the FOQA Program Manager, the Vice President of Flight Operations, a Chief Pilot, the Fleet Captain of each aircraft fleet, the ALPA Central Air Safety Committee Chairman, the ALPA Gatekeeper, the Safety Department FOQA Analyst, a Maintenance & Engineering Department representative and a Flight Operations Engineering representative. This Team will review aggregate trend data to identify safety concerns and provide recommendations to stakeholders. Decision making within the FMT will be conducted on a consensus basis.
8. "FOQA Program" is a program designed to enhance flight safety through controlled analysis of recorded flight data information.
9. "FOQA Program Manager" - The Director of Safety will serve as the FOQA Program Manager and is responsible for the overall management, administration, security and maintenance of the FOQA program.
10. "FOQA Steering Committee" (FSC) is chaired by the Director of Safety and serves as the advisory group for the FOQA program. Members of this committee include the following: Senior Vice President of Operations, the Vice President of Flight Operations, the Vice President of Maintenance & Engineering, the Senior Fleet Captain, and the Air Line Pilots Association Master Executive Council Chairman. The FSC will normally meet semi-annually.
11. "Identified Data" is any recorded or collected flight data prior to removal of all identifying data.
12. "Identifying Data" is any data or combination of data which allows recorded or collected flight data to be associated with a specific crew member.
13. "Information" is any data transmitted, recorded or collected by use of a flight data recorder, cockpit voice recorder or any other recording device. The term "Information" shall further include tapes, transcripts, reports, papers, memos, statements, studies, charts, graphs or any other description, analysis or compilation of data collected by any such equipment.
14. "Operational Exceedance Event" - An event, as determined by recorded data, indicating that an aircraft was in a situation outside of the normal agreed-upon flight operations envelope tolerances.
15. "Operational Routine Event" - An event in routine operation of statistical interest.

16. "Safety Department FOQA Analyst" is a company safety department representative tasked with review of processed de-identified FOQA data returned to Hawaiian Airlines by the vendor. The FOQA Analyst does not have access to identifying data except as provided by the ALPA Gatekeeper.

B. FOQA PROGRAM:

1. The design, implementation, and operation of a FOQA program shall be by mutual agreement between the Company and the Air Line Pilots Association. Any variation from the agreed-upon FOQA program shall require the mutual agreement of the parties prior to implementation. The parties shall mutually agree in writing to an implementation date for the FOQA program. The agreed upon implementation date shall be used to determine the duration of the FOQA Program trial period provided for in paragraph G. herein.
2. The FMT shall establish necessary policies and procedures to ensure compliance with the provisions of this agreement.
3. The design of the FOQA program shall maintain the confidentiality and anonymity of individual crew members.
4. Any violation of the requirements of the agreed-upon FOQA program, or the terms herein, shall be cause for an immediate suspension of all FOQA data collection until such time as a review of the violation has been conducted between the parties. In the event of such suspension, any collected data which has not yet been de-identified shall be destroyed. The suspension will continue until such time as the parties are satisfied that the problem has been rectified. Notwithstanding the forgoing, if a party feels that its interests are no longer protected as set forth in this document, the program may be terminated and all identified data shall be immediately destroyed pursuant to Paragraph G.3 herein below.
5. At a minimum, the FOQA program at Hawaiian Airlines will record, examine and monitor the exceedances listed in FAA Advisory Circular AC120-82, Appendix II.
6. The establishment of the limits which define an exceedance will be determined by the Company's Flight Standards and Training Department. Such exceedance limits shall be subject to review and require approval of the FOQA Monitoring Team.

C. SCOPE

1. Sufficient de-identified data shall be maintained to fulfill the requirements of the agreed-upon FOQA program. All de-identified data, and analyses of such data, shall be made available upon request to the parties including the HAL MEC.
2. There shall be continual evaluation of exceedance values by the parties and all changes, deletions, or additions will be approved by the FMT.
3. The FAA will be provided the opportunity to review de-identified, trend analysis and corrective action plans on company property during regularly scheduled briefings as provided for in AC 120-82.

D. DATA RETENTION AND SECURITY:

1. Identifying data shall be removed from identified data as soon as possible, and shall be destroyed no later than fourteen (14) calendar days from the date of retrieval of the data by the Company.
2. All FOQA information identified, or de-identified, is Hawaiian Airlines proprietary information and shall be treated as confidential. No information obtained from or by use of this program shall be released except as stated in paragraphs D. 3 through D.6.
3. Any employee/agent who has contact with any identified data used in this FOQA program shall be prohibited from divulging any identifying data to any individual other than the designated FOQA Gatekeeper. In the event any employee/agent divulges any identifying data to any individual other than the designated FOQA Gatekeeper, such employee/agent shall immediately be removed from contact with any FOQA data, identified or de-identified, at least until such time as an investigation on such divulgence is concluded and the parties are satisfied that the situation is adequately resolved. Nothing in this Paragraph precludes either party from exercising the provisions of Paragraph B.4 above.
4. Except as required pursuant to Paragraph D.5, the release of identified data without expressed written consent of both parties is strictly prohibited. If either party discovers an unauthorized release they shall immediately notify the other party. The unauthorized release shall be immediately investigated and corrective action taken to protect all crewmembers, the Company, and the Association, and to prevent additional release of data and/or Information. It is expressly understood that the timely investigation of an unauthorized release of data as set forth in this paragraph shall be conducted prior to either party's demand for termination of the FOQA Program as set forth in paragraph B.4 of this agreement.
5. In the event either party is requested or required (by oral question, interrogatories, requests for information or documents, subpoena, civil investigative demand, or similar process) to disclose any identified data or de-identified data, that party will promptly notify the other party of such request or requirement and an appropriate protective order shall be sought. If a party is compelled by court order to disclose identified data or de-identified data that party may disclose only such of the identified data or de-identified data as is required by law and such disclosure shall be limited to the party compelling disclosure.
6. Except as required under Paragraph D.5, the release of de-identified data to a third party is not authorized without the express approval of both the FOQA Manager and the FOQA Gatekeeper, except that such approval is not required in the case of the FAA pursuant to paragraph C.3 above. In any case, the FMT shall be advised of and provided a copy of any de-identified data released to any third party.
7. Only the FOQA Gatekeeper shall be issued a Crypto Card which allows access to identified data. It is the FOQA Gatekeeper's responsibility to safeguard this Crypto Card and the password associated with that card.

E. DATA USE:

1. The sole contact with any flight crew member associated with a specific exceedance event shall be through the designated FOQA Gatekeeper.

2. Only the ALPA designated FOQA Gatekeeper shall be able to identify the individual crew members associated with any specific data.
3. Any notes, memoranda or other documents used by the designated "FOQA Gatekeeper" in any contact with any flight crew member concerning a specific FOQA event shall be considered "identified data" for purposes of this agreement and shall be "de-identified" in accordance with paragraph D.1 above.
4. At a minimum, the FOQA program may be used for evaluating the following areas, including without limitation:
 - a. Aircraft performance
 - b. Aircraft systems performance
 - c. Crew performance
 - d. Company procedures
 - e. Training programs
 - f. Training effectiveness
 - g. Aircraft design
 - h. ATC system operation
 - i. Airport operational issues
 - j. Meteorological issues
5. The Company shall not use information obtained from a FOQA program, in whole or in part, for discipline or discharge against a pilot.
6. The Company shall not use information obtained from a FOQA program to investigate alleged pilot misconduct.
7. Information obtained from a FOQA program shall not be used as a basis, in whole or in part, to require a pilot's submission to a non-recurrent proficiency or line check.
8. Any additional areas of evaluation outside of values routinely recorded by the FOQA program which the parties may desire to include in the FOQA program must be mutually agreed upon by the FOQA Monitoring Team and the Association prior to implementation.

F. FLIGHT PAY LOSS

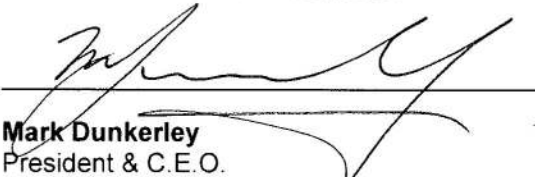
1. Notwithstanding anything to the contrary in the Pilot Work Agreement, the following paragraph shall apply only in the case of pilot representatives involved in the FOQA program. The Company shall provide 20 hours of ALPA Leave at Company expense per month for the sole use of pilot representatives involved in the FOQA program. Whenever possible, the planned schedule for the normal requirements for the FOQA Gatekeeper(s) involved in the FOQA program shall be coordinated and established prior to the monthly schedule bid awards. If, at company request, due to FOQA program requirements, a pilot representative's involvement is scheduled after the monthly bid award, such pilot shall, coverage permitting, be displaced from all or a portion of his or her schedule and provided ALPA flight pay loss at no cost to the Association while functioning in this capacity. In the case of work performed on such pilot's day off, he or she will be paid five (5:00) hours per day at the pilot's flight pay rate. Such five (5:00) hours shall be paid to a reserve pilot in addition to the 75 hour minimum guarantee and such day off shall not be replaced. Pilot representatives shall be reimbursed for applicable per diem expenses, including hotel, meals and transportation, when out of domicile.

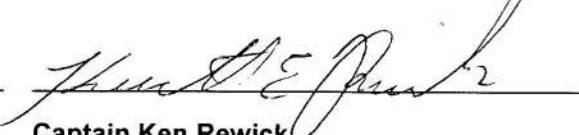
G. **TERM OF AGREEMENT**

1. This Letter of Agreement shall become effective as of the date of signing and shall continue in effect until 0001 hours on the first day of the eighteenth (18th) month following the implementation date of this FOQA program, and then and thereafter this Letter of Agreement shall be deemed null and void and will have no further effect.
2. Notwithstanding the foregoing, and provided that the Association and the Company mutually agree that satisfactory specific pilot protective provisions have been enacted and included in the FARs, and subsequent to the review and approval of the Association, this Letter of Agreement shall remain in full force and effect and shall continue to run concurrently with the Pilots' Collective Bargaining Agreement, unless changed in accordance with the provisions of the Railway Labor Act.
3. Notwithstanding any of the foregoing, either the Association or the Company may cancel this Letter of Agreement in accordance with Paragraph B.4 above or by failure of the FARs or other legislation to maintain the proper pilot protective provisions to the satisfaction of the Company and the Association, by serving upon the other party a written notice of its desire to cancel this Letter of Agreement. On the thirtieth (30) day following service of the written notice, this Letter of Agreement shall be deemed null and void and will have no further effect.

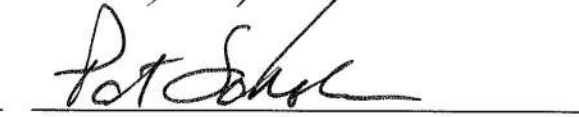
IN WITNESS WHEREOF, the parties have signed this Agreement this 15th day of ~~September~~^{November}, 2009.

FOR HAWAIIAN AIRLINES, INC.:

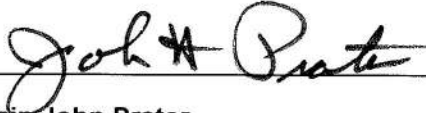

Mark Dunkerley
President & C.E.O.
Hawaiian Airlines, Inc.
Date: 10/1/09


Captain Ken Rewick
Vice President Flight Operations
Hawaiian Airlines, Inc.
Date: 10/01/2009


Charles Nardello
Senior Vice President Operations
Hawaiian Airlines, Inc.
Date: 10/1/09


Pat Sakole
Senior Director Safety & Compliance
Hawaiian Airlines, Inc.
Date: 10/01/09

FOR THE AIRLINE PILOTS IN THE
SERVICE OF HAWAIIAN AIRLINES, INC.:



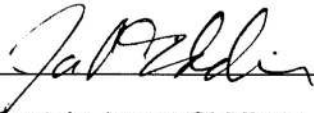
Captain John Prater
President
Air Line Pilots Association, Intl.

Date: 11/15/09



Captain Eric Sampson
Chairman
Hawaiian Airlines Master Executive Council

Date: 10/1/2009



Captain James Giddings
Negotiating Committee Chairman
Hawaiian Airlines Master Executive Council

Date: 10/1/2009



Captain Jeffrey Jones
Central Air Safety Committee Chairman
Hawaiian Airlines Master Executive Council

Date: 10/1/2009



January 14, 2010

Captain Eric Sampson
Chairman
ALPA HAL Master Executive Council
3375 Koapaka Street, Suite 2-238-8
Honolulu, HI 96819

RE: Military Leave Notification

Dear Captain Sampson:

This letter is intended to reflect and summarize the recent discussions between representatives of the Company and the Association concerning notification of planned leaves.

Consistent with USERRA and Company Policy, pilots shall notify the Company of any planned military leave of absence as soon as such leave requirement is known.

Effective the first bid period consistent with the provisions below if the pilot provides the Company with notification of such military leave prior to the 4th of the month prior to the month in which the military leave is to be taken, at the pilot's request, the Company will designate no fewer than four days within the leave period(s) as "minimum days off in domicile" per Section 10.G. The Company may, at its discretion, approve more than four days. Alternatively, the pilot may elect to take military leave without pay.

Either the Company or the Association may terminate this "military leave notification" agreement at any time by written notice to the other party.

If this correctly reflects your understanding, please sign and date where indicated and return one (1) copy of this letter to my office.

Sincerely,

Captain Ken Rewick
Vice President Operations

Dated: January 14, 2010

Signed:

Captain Eric Sampson
Chairman
ALPA Hawaiian Airlines Master Executive Council

Dated: January 14, 2010

LETTER OF AGREEMENT

between

HAWAIIAN AIRLINES, INC.

and

THE AIRLINE PILOTS

in the service of

HAWAIIAN AIRLINES, INC.

as represented by

THE AIR LINE PILOTS ASSOCIATION, INTERNATIONAL

KOREAN AIR CODE SHARING

THIS LETTER OF AGREEMENT is made and entered into in accordance with the Railway Labor Act, as amended, by and between Hawaiian Airlines, Inc. ("Hawaiian" or the "Company") and the Airline Pilots in the Service of Hawaiian Airlines, Inc., as represented by the Air Line Pilots Association ("ALPA" or the "Association"), and jointly hereinafter referred to as the "Parties."

WHEREAS, the Association has filed a grievance concerning the Company's code sharing agreement with Korean Air (the "Code Sharing Agreement"), which permits the Company to place its designator code on Korean Air flights between Incheon, South Korea and Honolulu, Hawaii and between Incheon, South Korea and other cities in Asia (the "Code Share Routes"), and which permits Korean Air to place its designator code on Company flights within the Hawaiian Islands and between Hawaii and the continental United States;

WHEREAS, the Parties wish to resolve that grievance and establish a framework that may be used for resolving future disputes involving code sharing agreements on routes that are not currently served by the Company; and

WHEREAS, in the event of a dispute over a future code sharing agreement, the Parties preserve their respective arguments under the existing terms of the Hawaiian Airlines Pilots' Working Agreement (the "Pilots' Agreement").

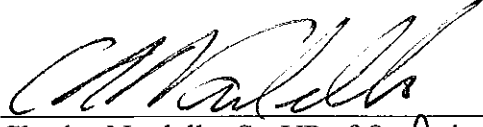
NOW, THEREFORE, the Parties agree as follows:

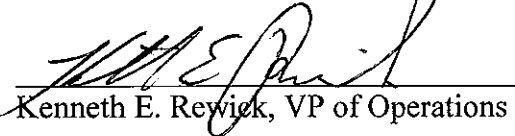
1. Notwithstanding anything to the contrary contained in Section 1.B. of the Pilots' Agreement, the Company shall be permitted to engage in the Code Sharing Agreement for a period of six (6) months.
2. At the conclusion of that six (6) month period, the Company and the Association shall meet on a quarterly basis, at the Association's request, to review the financial and operating results of the Code Sharing Agreement. The Company shall provide the Association and the Association's economic and legal advisors, under a commercially standard confidentiality agreement, its best available financial and operating information concerning the Code Sharing Agreement.
3. During these quarterly meetings, the Parties will discuss whether it would be profitable for the Company to fly a Code Share Route with its own aircraft. If it can be predicted with reasonable certainty that the Company can begin flying a Code Share Route with its own aircraft and, taking into account the revenues earned from passengers connecting to the Company's network, (a) operate the Code Share Route profitably on an annual basis for the fourth year of Company operation based on the Company's standard flight profitability measurement including standard allocation of corporate overhead expenses and invested capital and (b) recover its cumulative investment including start-up losses on the Code Share Route within a period of seventy (70) months, there will be a presumption that the Company should fly the Code Share Route with its own aircraft.
4. If a dispute arises as to whether this presumption has been reached, that dispute shall be subject to final and binding, expedited arbitration before the ALPA-Hawaiian System Board of Adjustment sitting with Donald Munroe as the neutral member (or, in his absence, with another neutral member jointly selected by the Parties).
5. Once it has been agreed or determined by arbitration that the presumption has been reached, the Parties shall meet within ninety (90) days to discuss the following options: (a) that the Code Sharing Agreement be extended without Company operation on the Code Share Route; (b) that the Company should begin flying the Code Share Route with its own aircraft, or (c) that the Code Sharing Agreement for the Code Share Route be discontinued.
6. If there is no agreement on option 5(a) above, then the Company must either: (a) at the next regularly scheduled meeting of the Board of Directors, seek and obtain Board approval to commence flying the Code Share Route with the Company's own aircraft within a further six (6) month period of time; or (b) discontinue the Code Sharing Agreement for the Code Share Route or in its entirety.
7. If any other dispute arises under this Letter of Agreement, that dispute shall be subject to final and binding, expedited arbitration before the ALPA-Hawaiian System Board of Adjustment sitting with Donald Munroe as the neutral member (or, in his absence, with another neutral member jointly selected by the Parties).

8. This Letter of Agreement shall be effective as of May 18, 2010 and shall remain in effect concurrently with the Pilots' Agreement and in accordance with Section 28, Duration.

IN WITNESS WHEREOF, the Parties hereto have signed this **LETTER OF AGREEMENT** as of this 18th day of May, 2010.

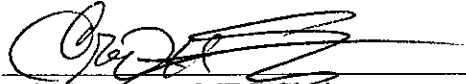
For Hawaiian Airlines, Inc.


Charles Nardello, Sr. VP of Operations


Kenneth E. Rewick, VP of Operations

For the Air Line Pilots Association,
International


John Prater, President


Eric Sampson, MEC Chairman


James Giddings, Negotiations Chairman

LETTER OF AGREEMENT
Between
HAWAIIAN AIRLINES, INC.
And
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIR LINE PILOTS ASSOCIATION

CHINA AIRLINES CODE SHARING

THIS LETTER OF AGREEMENT is made and entered into in accordance with the Railway Labor Act, as amended, by and between Hawaiian Airlines, Inc. ("Hawaiian" or the "Company") and the Airline Pilots in the Service of Hawaiian Airlines, Inc., as represented by the Air Line Pilots Association ("ALPA" or the "Association"), and jointly hereinafter referred to as the "Parties."

WHEREAS, the Company intends to enter into a code sharing agreement with China Airlines (the "China Airlines Code Sharing Agreement"), which permits the Company to place its designator code on China Airlines flights between Taiwan and Honolulu, between Taiwan and other points in Asia, and between Australia and New Zealand, and which permits China Airlines to place its designator code on Company flights within the Hawaiian Islands, between Taiwan and Hawaii, and between Hawaii and the continental United States; and

WHEREAS, the Parties wish to resolve any dispute over the China Airlines Code Sharing Agreement through the framework established in the Korean Air Code Share Letter of Agreement dated May 18, 2010; and

WHEREAS, in the event of a dispute over a future code sharing agreement, the Parties preserve their respective arguments under the existing terms of the Hawaiian Airlines Pilots' Working Agreement (the "Pilots' Agreement").

NOW, THEREFORE, the Parties agree as follows:

1. Under the China Airlines Code Sharing Agreement the Company may permit a passenger to book under the HA or HA* code an itinerary on a China Airlines aircraft only if it operates between Taipei, Taiwan (TPE) and Honolulu (HNL) between Auckland, New Zealand (AKL) and Brisbane (BNE) or Sydney (SYD), Australia, or between TPE and other points in Asia. In each calendar quarter, however, the number of flights scheduled to be operated by China Airlines between TPE and HNL on which a passenger may book passage under the HA or

HA* code will not exceed the number of flights scheduled to be operated in that market by the Company. "Scheduled" for this purpose means offered for sale to the public via the OAG and similar services.

2. For purposes of this Letter of Agreement, a "Code Share Related Market" is a set of two or more airports between which passengers may book itineraries that include a segment operated by China Airlines using the HA or HA* code as described in paragraph 1. above.

Examples:

- (i) A passenger may book an itinerary under the Company designator code from Bangkok (BKK) via TPE to HNL, flying on a China Airlines aircraft for the BKK-TPE segment and either a Company aircraft or a China Airlines aircraft for TPE-HNL. BKK-HNL and BKK-TPE are each a Code Share Related Market.
 - (ii) A passenger may book an itinerary under the Company designator code from BNE via AKL to HNL, flying on China Airlines aircraft for the BNE-AKL segment and Company aircraft for AKL-HNL. BNE-HNL and BNE-AKL are each a Code Share Related Market.
3. On a quarterly basis, the Company shall present to ALPA an analysis of the profitability of using Company aircraft to fly in Code Share Related Markets identified by ALPA, provided that each Code Share Related Market identified by ALPA is one in which there is a per flight average, computed over the preceding quarter, of at least one hundred and twenty (120) passengers on a flight segment flown to or from HNL whose itinerary includes a particular flight on a China Airlines aircraft (*e.g.* BKK-TPE) that was booked under the HA or HA* code. The Company will provide to ALPA, on a confidential basis, information necessary to determine whether the passenger threshold has been met in any Code Share Related Market in any quarter.
4. "Profitability" under paragraph 3 above means that it can be predicted with reasonable certainty that the Company can begin flying with its own aircraft between two airports in a Code Share Related Market, at least one of which is not then served by the Company, and, taking into account the revenues, if any, earned from passengers connecting to the Company's network, (a) operate such flight in the Code Share Related Market profitably on an annual basis for the fourth year of Company operation based on the Company's standard flight profitability measurement including standard allocation of corporate overhead expenses and investment capital and (b) recover its cumulative investment including start-up losses on the Code Share Related Market within a period of seventy (70) months. The Company's analysis may also take into account the impact, if any, of initiating service in the Code Share Related Market on the Company's existing market (*e.g.*, in evaluating BKK-HNL, the Company may consider the impact of

BKK-HNL service on the Company's TPE-HNL flight, and may reduce its projection of the profits for the BKK-HNL service by the extent to which such service is projected to reduce the profitability of the TPE-HNL service). ALPA shall enter into a commercially standard confidentiality agreement covering any information provided in such analysis or provided under paragraph 3 above.

5. If a dispute arises as to whether a Code Share Related Market satisfies the passenger threshold in paragraph 3, above, or the profitability test in paragraph 4 above, that dispute shall be subject to final and binding, expedited arbitration before the ALPA-Hawaiian System Board of Adjustment sitting with Donald Munroe as the neutral member (or, in his absence, with another neutral member jointly selected by the Parties).
6. If a Code Share Related Market satisfies the profitability test in paragraph 4 above, the Parties shall meet within ninety (90) days to discuss the following options: (a) that the Code Sharing Agreement continue without Company operation in the Code Share Related Market; (b) that the Company should begin service in the Code Share Related Market with its own aircraft, or (c) that the Company should cease placing the HA or HA* code on the China Airlines segment of the Code Share Related Market (e.g. BKK-TPE).
7. If there is no agreement on option 6(a) above, then the Company must either: (a) at the next regularly scheduled meeting of the Board of Directors, seek and obtain Board approval to commence service in the Code Share Related Market with the Company's own aircraft within a further six (6) month period of time; or (b) within the same period cease placing the HA or HA* code on the China Airlines segment of the Code Share Related Market.
8. If any other dispute arises under this Letter of Agreement, that dispute shall be subject to final and binding expedited arbitration before the ALPA-Hawaiian System Board of Adjustment sitting with Donald Munroe as the neutral member (or, in his absence, with another neutral member jointly selected by the Parties).
9. This Letter of Agreement shall be effective as of the date of execution stated below, and shall remain in effect concurrently with the Pilots' Agreement and in accordance with Section 28, Duration.
10. This Letter of Agreement applies only to the China Airlines Code Sharing Agreement and not to any other code sharing agreement and it may apply to future code sharing agreements only to the extent that the Parties agree.

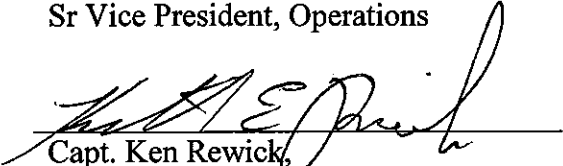
IN WITNESS WHEREOF the Parties hereto have signed this **CHINA AIRLINES
CODE SHARING LETTER OF AGREEMENT** as of this 8 day of July, 2013.

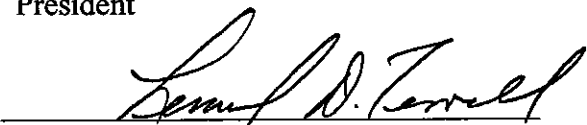
FOR HAWAIIAN AIRLINES, INC.

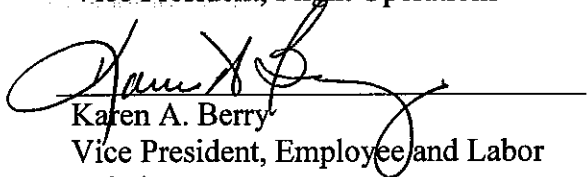
FOR THE
AIR LINE PILOTS ASSOCIATION,
INTERNATIONAL


Charles Nardello
Sr Vice President, Operations


Capt. Lee Moak
President


Capt. Ken Rewick
Vice President, Flight Operations


Capt. Lem Terrell
MEC Chairman


Karen A. Berry
Vice President, Employee and Labor
Relations


Capt. James Giddings
Negotiations Chairman

Letter of Agreement
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

19-3 JAPAN AIRLINES JOINT VENTURE

THIS LETTER OF AGREEMENT ("LOA") is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC. (hereinafter referred to as the "Company") and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the "Association").

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules and working conditions for the Company's pilots ("Pilot Working Agreement" or "PWA") effective April 1, 2017, amendable July 1, 2022, and

WHEREAS, the PWA does not currently reference a Joint Venture as an exception to the requirements of Section One, but the parties agree their interests align with respect to future growth of Company flying as part of the Japan Airlines Joint Venture,

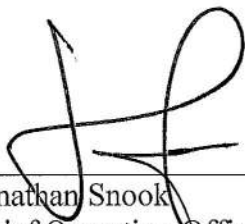
NOW THEREFORE the Company and Association agree as follows:

1. This Letter of Agreement ("LOA") shall govern the Joint Venture between the Company and Japan Airlines Co., Ltd. ("JAL Joint Venture"). Implementation of the terms of this LOA are contingent on the approval by the U.S. Department of Transportation of antitrust immunity for the JAL Joint Venture.
2. "Joint Venture" for purposes of this LOA means the business relationship between the Company and Japan Airlines Co., Ltd. ("JAL") in which the revenues or the costs and revenues of flights within the JAL Joint Venture are shared between the air carrier partners, as typified by the business relationship between the Company and JAL that is embodied in the JAL Joint Venture Agreement.
3. Trunk Route Flying
 - a. "Trunk Routes" for purposes of this LOA means flights between Japan and the Hawaiian Islands.
 - b. The Base ASM Ratio for the JAL Joint Venture shall be 43%/57%, with the numerator representing Hawaiian Airlines' scheduled ASMs for Trunk Routes

- v. HA* passengers traveling on JL flights
 - 1. On Trunk Routes
 - 2. On routes beyond and behind Trunk Routes
 - vi. JL* passengers traveling on HA flights
 - 1. On Trunk Routes
 - 2. On routes beyond and behind Trunk Routes
 - d. The Company will share the information described below, upon execution of a commercially standard confidentiality agreement, with the Scope Review Committee Chairman, the MEC Chairman, ALPA Economic & Financial Analyst and ALPA Legal Counsel.
 - i. The Joint Venture revenue sharing formula when it is finalized; and
 - ii. on an annual basis, the Revenue Share Statement or similarly titled document prepared in accordance with Section 8.1.1 of the JAL Joint Venture Agreement.
 - e. The Company will provide all the above listed information in hard copy or PDF format.
6. With the exception of current PWA provisions regarding freight operations or aircraft, the JAL Joint Venture Agreement will not include all-freighter operations.
7. In the event of a lawful primary strike against the Company by Hawaiian pilots, JAL will not operate any HA or HA* itineraries during the strike.
8. Any and all disputes concerning alleged violation of this LOA shall be resolved by final and binding arbitration. The Company and its Affiliates specifically agree to arbitrate any grievance permitted under the Railway Labor Act filed by the Association alleging violation of this LOA on an expedited basis directly before the System Board of Adjustment sitting with a neutral member. All provisions of the Railway Labor Act shall bind the Arbitrator. The dispute shall be heard expeditiously no later than thirty (30) days following the submission to the System Board and decided expeditiously no later than sixty (60) days after submission, unless the parties agree otherwise in writing. The parties agree to abide by any lawful arbitration award that is issued. The parties further expressly agree that any violation of this LOA shall constitute irreparable injury for which no adequate remedy at law exists.
9. This LOA reflects the parties' complete agreement on the subject of the JAL Joint Venture. In the event of a conflict between this LOA and Section One of the PWA, the terms of this LOA shall control.

IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 3 of June 2019.

FOR HAWAIIAN AIRLINES, INC.:

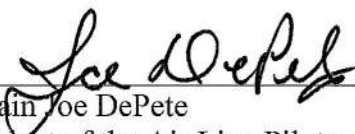


Jonathan Snook
Chief Operating Officer



Christopher Cox
Senior Director Employee Labor
Relations

FOR THE
AIRLINE PILOTS ASSOCIATION,
INTERNATIONAL:



Captain Joe DePete
President of the Air Line Pilots
Association, International



Captain Lawrence Payne
Chairman, HAL Master Executive
Council



Captain Douglas Grant
Chairman, HAL Negotiating
Committee

Letter of Agreement
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

22-05 Pay Error

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association” or “ALPA”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”), effective April 1, 2017, and

WHEREAS, the parties agreed to execute this LOA as part of an agreement to settle the HAL-007-22GG (Untimely Pay Error Corrections) grievance, and

WHEREAS, in connection with this settlement, the parties agreed to develop and implement a collaborative process designed to improve the pilot pay process and proactively address pay errors, and

WHEREAS, transparent and clear communication and procedures between the parties on payroll matters is necessary in order to achieve this goal.

NOW, THEREFORE, the Company and Association agree as follows:

A. PWA Subsection 4.L shall be changed to read:

L. PAY ERRORS

1. Pilots with specific pay errors or general pay questions shall utilize the Company-created email address and/or online form to report all specific pay errors and ask general pay questions. This Company-created email address and/or online form shall constitute a single point of contact for the Company for pilot payroll matters.
 - a. To trigger a specific pay error notification to the Company, a pilot must include the following information in the report:
 - 1) Either the dollar or hour amount in question, or
 - a) Example: “I am missing 37.5 hours from my May 22nd paycheck.”

- 2) A detailed account of the cause of the error.
 - a) Example: "I flew a PPU Flt grouping on Oct 2nd (H3102) and was not paid any premium pay."
 - b) Example: "I am owed DIRT pay for the 23hrs and 14min delay on grouping H5000 that I flew on May 23."
 - 3) The preferred means to receive pay correction among the options outlined in Subparagraph 4.L.2.b below (e.g., paycheck delivered to the Crew Center or sent via FedEx, etc.)
 - 4) If the pilot follows the instructions in either Subparagraph 4.L.1.a.1) or 4.L.1.a.2), as well as in Subparagraph 4.L.1.a.3) above, the Company shall make payment as described in Subparagraph 4.L.2.b below within three (3) working days if the pay error claim exceeds \$500.00.
 - a) "Working day" is defined as Monday-Friday, excluding national and state holidays.
 - b. General questions on pay or paychecks that do not trigger the three (3) working day pay correction requirement:
 - 1) Example: "I flew extra hours last month, why is my paycheck not equal to the number of hours I flew?"
 - 2) For general questions of this type, the Company shall provide the pilot with a response and answer within five (5) working days.
 - a) The payroll single point of contact shall provide responses (as required) to the pilot to address any subsequent concerns stemming from the original general question within no more than two (2) working days, until either:
 - (1) the Association Pilot Pay Joint Committee ("PPJC") member(s) (or the Association, if the PPJC is no longer in existence) determines that a pay error occurred that requires Company payment pursuant to Subparagraph 4.L.2.b below (subject to referral to the alternative dispute resolution ("ADR") process if Company PPJC members (or the Company, if the PPJC is no longer in existence) contest the determination under subparagraph 4.L.3.d.), or
 - (2) the PPJC (the Association and Company if the PPJC is no longer in existence) reaches an agreement that a pay error did not occur.
2. Payment of pay error claim:
- a. When paying a pay error claim, the Company shall send a communication to the pilot explaining:
 - 1) the pay error, and
 - 2) how the error will be rectified, and
 - 3) that in the case of an undisputed overpayment, how the overpayment shall be deducted from the next paycheck, and
 - 4) information about pay codes used to process the pay error payment, when paid via a separate check or paid via a regular paycheck.
 - b. For a pay error claim that:

- 1) Results in a payment of \$500.00 or less
 - a) The payment shall be made in the next regular paycheck following the specific pay error claim.
 - (1) Should a specific pay error claim be received within seven (7) working days or less of a regular paycheck, the payment shall be made in the subsequent regular paycheck.
- 2) Results in a payment of greater than \$500.00 and less than half (½) of the pilot's gross wages on the paycheck:
 - a) The payment must be sent (or delivered to the Crew Center) within three (3) working days from receipt of a specific pay error claim pursuant to Subparagraph 4.L.1.a above.
 - b) The impacted pilot may choose from the following payment methods:
 - (1) Pay the amount on the next paycheck (per 4.L.2.b.1)a).(1)); or
 - (2) Send a check via FedEx to the pilot's address on file with the Company; or
 - (3) Hand deliver a check to the Crew Center.
- 3) Results in a payment of greater than \$500 and greater than half (½) of the pilot's gross wages on the paycheck:
 - a) Payment must be sent (or delivered to the Crew Center) within three (3) working days from receipt of a specific pay error claim pursuant to Subparagraph 4.L.1.a above.
 - b) The impacted pilot may choose from the following payment methods:
 - (1) Direct deposit (which may not immediately be available due to Bank of Hawaii processing times);
 - (2) Place the amount on the next paycheck (per 4.L.2.b.1)a).(1));
 - (3) Send a check via FedEx to the pilot's address on file with the Company; or
 - (4) Hand deliver a check to the Crew Center.

Pay Error Claim Payment Method Chart

Pay error claim amount	Method of correction
\$500 or less	Next regular paycheck
Greater than \$500 and less than 50% of gross wages for a pay period **payment will be sent 3 working days from submission of specific error claim	Pilot Choice: Via either next check, or FedEx to address on file, or manual check to Crew Center

Greater than \$500 and more than 50% of gross wages for a pay period **payment will be sent 3 working days from submission of specific error claim ***direct deposits may not be immediately available after transfer due to bank processing times	Pilot Choice: Via either direct deposit, or on next check, or FedEx to address on file, or manual check to Crew Center
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3. Procedures in the event a payroll error correction payment made pursuant to Subparagraph 4.L.2 above is determined to be in error, and overpayment collection is required:
 - a. Determination of overpayment shall be completed within thirty (30) days of the pay error correction.
 - b. If undisputed, the negative adjustment shall occur on the next paycheck after overpayment is determined.
 - c. The Company's communication to the pilot explaining the payroll error correction overpayment process shall include the following:
 - 1) A detailed accounting that demonstrates the overpayment.
 - 2) The pay codes associated with the overpayment and upcoming negative adjustment.
 - d. If the PPJC (the Association and the Company, if the PPJC is no longer in existence) is unable to agree on the overpayment the matter will be resolved through the ADR process.
- B. The current practice of collecting overpayments identified by the Company, outside of the pay error process as described in Paragraph A of this LOA, remains unchanged (*e.g.*, the Company will work with the pilot to establish a reasonable repayment schedule and the thirty (30) day time limit above does not apply).
- C. Duration
 - a. This Pay Error Letter of Agreement shall become effective on the date of signature and shall remain in full force and effect concurrently with the PWA effective April 1, 2017 to July 1, 2022, as provided in Section 28 (Duration).

IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 1st day of July 2022.

FOR HAWAIIAN AIRLINES, INC.:

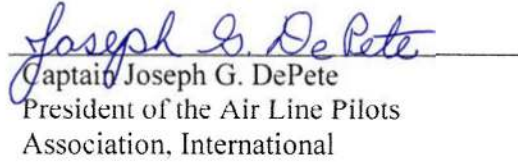


Captain Robert Johnson
Vice President of Flight Operations

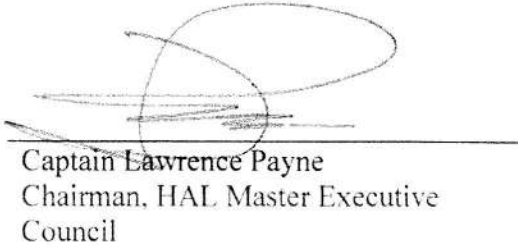


Mr. Justin Doane
Vice President of Labor Relations

FOR THE
AIRLINE PILOTS ASSOCIATION,
INTERNATIONAL:



Captain Joseph G. DePete
President of the Air Line Pilots
Association, International



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

LETTER OF AGREEMENT
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

23-01 JOINT IMPLEMENTATION COMMITTEE

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIRLINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”), effective March 2, 2023; and

WHEREAS, various sections and paragraphs of the new PWA come into effect at different times; and

WHEREAS, the parties agree that an organized and efficient process must be used to manage this; and

WHEREAS, the parties agree that certain Interim Sections of the PWA will be needed.

NOW, THEREFORE, the Company and Association agree as follows:

- A. A Joint Implementation Committee (“JIC”) shall be established to oversee the process of implementing the various Sections of the new PWA.
 - 1. The JIC shall consist of two (2) members from the Company and two (2) members from the Association.
 - 2. The JIC shall be the tasked with implementation of the transition from 2017 PWA language to 2023 PWA language.
 - 3. The JIC shall jointly, via a consensus decision, decide any disagreements regarding the implementation of the new 2023 PWA language and any Interim Sections.
- B. FREIGHT OPERATIONS
 - 1. This LOA applies to Freight Operations.

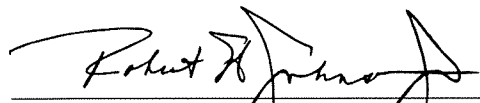
C. DURATION

1. This Joint Implementation Committee Letter of Agreement shall become effective on the date of signature and shall remain in full force and effect concurrently with the PWA effective March 2, 2023 to March 2, 2027, as provided in Section 28 (Duration).

IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 2nd day of March 2023.

FOR HAWAIIAN AIRLINES, INC.:

FOR THE AIRLINE PILOTS
ASSOCIATION, INTERNATIONAL:



Captain Robert Johnson
Vice President, Flight Operations



Captain Jason Ambrosi
President of the Air Line Pilots
Association, International



Mr. Justin Doane
Vice President, Labor Relations



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

1 LETTER OF AGREEMENT
2 between
3 HAWAIIAN AIRLINES, INC.
4 and
5 THE AIRLINE PILOTS
6 in the service of
7 HAWAIIAN AIRLINES, INC.
8 as represented by
9 THE AIR LINE PILOTS ASSOCIATION
10

11 **23-02 Contract Ratification Signing Bonuses**

12
13 **THIS LETTER OF AGREEMENT (“LOA”)** is made and entered into in accordance with the
14 provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES,
15 INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the
16 Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as
17 the “Association”).
18

19 **WHEREAS**, the Company and the Association are parties to a collective bargaining agreement
20 setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’
21 Work Agreement” or “PWA”), effective upon ratification; and
22

23 **WHEREAS**, the parties have agreed to a signing bonus to be paid to pilots, eligible under this
24 LOA, to acknowledge the ratification of the 2023 PWA; and
25

26 **WHEREAS**, pay rates under the new PWA will be effective on March 2, 2023, provided that the
27 2023 PWA is ratified by Association members no later than February 15, 2023; and
28

29 **WHEREAS**, the parties have determined a uniform and consistent approach for determining the
30 amount of the signing bonus for each Pilot eligible for them under this LOA, as well as an
31 efficient and straightforward process for their calculation, verification, and distribution; and
32

33 **WHEREAS**, the parties wish to clearly explain the methodology for the calculation, verification,
34 and distribution of these contract ratification signing bonuses.
35

36 **NOW, THEREFORE**, it is mutually agreed:
37

38 A. Terms
39

- 40 1. A Contract Ratification Signing Bonus (“SB”) means the amount of money paid to each
41 Pilot eligible for the SB under this LOA.
42
43 2. “Eligible Pilots” who will receive the SB under this LOA include those Hawaiian
44 Airlines Pilots who:
45

- a. are on the Hawaiian Pilots' System Seniority List on March 1, 2023, and
 - b. have one of the following status designations as of that date:
 - i. Active ("A"),
 - ii. Air Line Pilots Association ("ALPA"),
 - iii. Executive ("EXEC"), and
 - iv. Military Leave of Absence ("MLOA").
 - c. "Eligible Pilots" under this LOA also includes those Hawaiian Airlines Pilots who retire or die between January 16, 2023 (the date on which the MEC approved the PWA and authorized membership ratification pursuant to the MEC Policy Manual) and March 1, 2023 ("Effective Period").
 - i. For an Eligible Pilot who dies during the Effective Period, the SB payment will be made to the eligible Pilot's estate.
3. SBs for each Eligible Pilot shall be calculated as follows: two hundred fifty and one half (250.5) hours multiplied by the difference between the Eligible Pilot's pay rate on March 2, 2023 and the Eligible Pilot's pay rate on March 1, 2023.
- Example: An A330 Captain with 12 years of longevity has a pay rate of \$337.75 on March 1, 2023, which increases to a pay rate of \$392.00 on March 2, 2023, when the new PWA becomes effective. The SB for that pilot would be the difference between those two rates (\$392.00 - \$337.75 = \$54.25) multiplied by 250.5 hours, which equates to \$13,589.63.*
4. SBs for each Eligible Pilot, excluding those Eligible Pilots who separate or die prior to the date on which the Company makes the SB payment, shall be considered "compensation" under the Pilots' 401(k) Plan and any other qualified or non-qualified retirement benefit plans sponsored by Hawaiian Airlines in which the Eligible Pilot participates in, or is eligible to participate in, in accordance with the terms of that plan and applicable law.
- a. There will not be a special election for the amount of employee contributions to the Pilots' 401(k) Plan to be taken from SBs.

B. Payment Timing and Process

1. SBs will be paid as soon as practicable following the ratification of the 2023 PWA, but no later than May 22, 2023.

- 1 a. Applicable federal, state, and local taxes, as well as Association dues will be
2 withheld from the SB payment.
3
- 4 2. The Company will cooperate with the Association to provide the information needed by
5 the Hawaiian Master Executive Council (“MEC”) to verify Eligible Pilots and the
6 Company’s calculation of their SBs.
7
- 8 a. The necessary information shall include, but will not be limited to:
9
- 10 i. A copy of the Hawaiian Pilots’ System Seniority List on March 1, 2023,
11
12 ii. A copy of the March 1, 2023 pay rates for each Eligible Pilot,
13
14 iii. A copy of the March 2, 2023 pay rates for each Eligible Pilot, and
15
16 iv. A copy of the Company’s projected SB amounts for each Eligible Pilot based on
17 the methodology defined in Subparagraph A.3 of this LOA.
18
- 19 b. The Company shall provide this necessary information within fifteen (15) days of
20 the 2023 PWA’s ratification.
21
- 22 c. If an Eligible Pilot’s SB calculation is discovered to be incorrect, the Company
23 agrees to make the correction no later than sixty (60) days after being given written
24 notice (email notice also sufficient) of the need for a correction.
25
- 26 i. Any corrections to SB payments must be brought to the Company’s attention no
27 later than ninety (90) days after the SB payment.
28
- 29 d. The parties agree to meet and confer regarding the resolution of any matters that
30 arise regarding the Company’s performance under this LOA.
31
- 32 i. The parties further agree that any disputes that cannot be resolved by conference
33 between the parties as to the Company’s obligations under this LOA will be
34 addressed pursuant to the PWA grievance procedure.
35

36 C. Freight Operations

37
38 This LOA applies to Freight Operations.
39

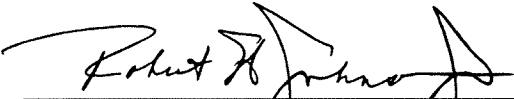
40 D. Duration

41
42 This Letter of Agreement will become effective on March 2, 2023, contingent on the
43 ratification of 2023 PWA no later than February 15, 2023, and will remain in effect
44 concurrent with the 2023 PWA.
45

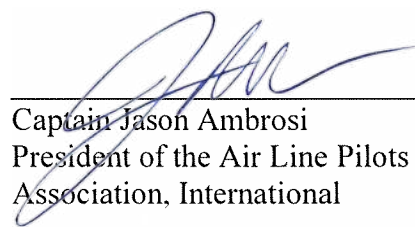
1 **IN WITNESS WHEREOF**, the parties hereto have signed this **LETTER OF AGREEMENT**
2 executed this 2nd of March, 2023.

3
4
5 For Hawaiian Airlines, Inc.

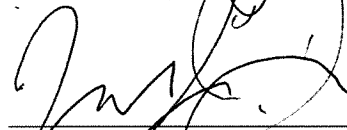
For the Air Line Pilots Association,
International

6
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10
11 Captain Robert H. Johnson
12 Vice President, Flight Operations



13 Captain Jason Ambrosi
14 President of the Air Line Pilots
15 Association, International

16 

17 Mr. Justin Doane
18 Vice President, Labor Relations



19 Captain Lawrence Payne
20 Chairman, HAL Master Executive Council
21

LETTER OF AGREEMENT
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

23-03 ULTRA LONG CALL RESERVE

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilot Working Agreement” or “PWA”), effective March 2, 2023; and

WHEREAS, both parties seek to offer more flexibility in the assignment of open Flight Groupings during the OTSL/UFAP process; and

WHEREAS, both parties understand there may be unforeseen consequences to the implementation of an Ultra Long Call Reserve system.

NOW, THEREFORE, the Company and Association agree as follows:

A. ANNOUNCEMENT OF ULTRA LONG CALL RESERVE FOR MONTH

1. The Company shall publish in the monthly bid packet, for each Category, if there will be Ultra Long Call Reserve (ULCR) pilots, and the methodology for requesting Ultra Long Call Reserve.
2. The Company must offer at least one (1) Ultra Long Call Reserve Run for both Categories (CA and FO) in at least one (1) aircraft fleet (e.g., may offer ULCR in A330 for 3 months, then A321 the following 3 months).

B. AWARDING AND ASSIGNING OF ULTRA LONG CALL RESERVE RUNS

1. After the completion of the Bid Run awards, and prior to the publishing of Reserve Run awards, the Company shall perform the following process in each Category:

- a. The Company will follow its current process for building Reserve Runs and compliance with the DRSN/MRN including awarding of the Ultra Long Call Reserves.
2. Ultra Long Call Reserve shall consist of twenty (20) days of Reserve as follows:
 - a. It shall be constructed in ten (10) day Reserve blocks, and may be bid consecutively for one twenty (20) day Reserve block.
 - b. The Minimum Monthly Guarantee (MMG) for an Ultra Long Call Reserve shall be seventy-five (75) hours.

C. NOTIFICATION WINDOW

1. An Ultra Long Call Reserve pilot shall have a minimum of twenty-four (24) hours notification prior to being required to report for a Flight Grouping.
2. An Ultra Long Call Reserve pilot shall have a maximum of thirty-five (35) hours notification prior to being required to report for a Flight Grouping.
3. Notification consists of one-way voice contact or voice message (or TBD electronic means).
4. Acknowledgement of a Flight Grouping assignment must happen within four (4) hours after receiving the notification (e.g. notification of a flight 25-hours prior to report time, the pilot must acknowledge by 21-hours prior to the report time).

D. OPEN TRIP SCHEDULING LIST (OTSL)/UNCOVERED FLYING ASSIGNMENT PROCESS ("UFAP")

1. All ULCC Reserve pilots shall be divided into "buckets" based on the number of days they have remaining in their current block of Reserve days.
2. Any uncovered Flight Groupings will be assigned during the OTSL/UFAP process to the first ULCR pilot in the bucket that matches the number of days covered by the Flight Grouping (e.g., two-day (2-day) Flight Grouping shall be assigned to the first ULCR pilot in the 2-day bucket).
 - a. Bucket Assignment Order (BAO) shall be based upon the projected credit value each pilot within a specific bucket has at the time of call out or notification. Pilots shall be listed in the appropriate call out order within their respective buckets starting with the lowest credit and ending with the highest credit. The pilot with the lowest credit value that is legal for the Flight Grouping within each bucket shall be assigned first, respecting all relevant legalities and eligibilities, including RAPs.
 - b. If there are multiple Flight Groupings that match a specific bucket, the highest credit Flight Grouping will be assigned first.

- c. If there are no Reserves available in the bucket that matches the number of days covered by the Flight Grouping, the first ULCR pilot in the bucket covering one (1) additional day will be assigned the Flight Grouping (e.g., for a 2-day Flight Grouping when no pilots are in the 2-day bucket, the first pilot in the 3-day bucket shall be used). The Company will continue to utilize this process until it is able to cover the Flight Grouping.
- d. A Flight Grouping assigned via the bucket covering the longest Flight Grouping in a Category shall always be assigned to the first ULCR pilot in that bucket regardless of the number of Reserve days remaining in such pilot's block of Reserve days (e.g., a 3-day Flight Grouping shall be assigned to the first pilot in the 3-day bucket, even if such pilot has six (6) days remaining in their block, while the second pilot in the 3-day bucket has only three (3) days remaining in their block).

E. AUTOMATIC EARLY RELEASE

- 1. Pilots on Ultra Long Call Reserve will automatically be released from ULCR at 2359 LDT on the day prior to their last day of Ultra Long Call Reserve block (e.g. last day of ULCR is Friday, the pilot would be released from ULCR at 2359 LDT on Thursday).

F. MIXED RESERVE

- 1. Mixed Reserve pilots may also be ULCR for their remaining Reserve days but shall not count as the one required ULCR in the Category (it must be in addition to the one required).

G. FREIGHT OPERATIONS

- 1. This LOA does not apply to Freight Operations.

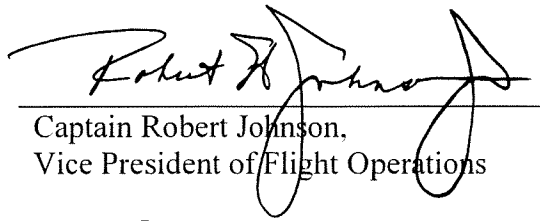
H. DURATION

- 1. This Ultra Long Call Reserve 23-03 Letter of Agreement shall become effective upon execution and shall continue in full force and effect for a period of at least six (6) calendar months. After such period, either party may terminate this LOA by providing the written notification of such intent to terminate. If this LOA is not terminated pursuant to this paragraph, then it shall continue in full force and effect concurrently with the PWA.

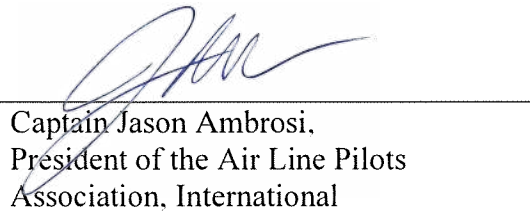
IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 2nd day of March 2023.

FOR HAWAIIAN AIRLINES, INC.:

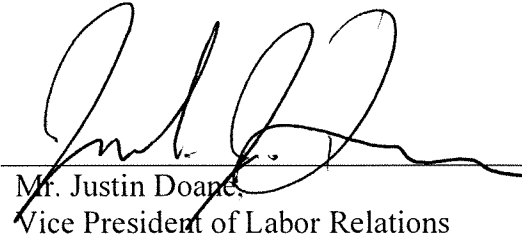
FOR THE
AIRLINE PILOTS ASSOCIATION,
INTERNATIONAL:



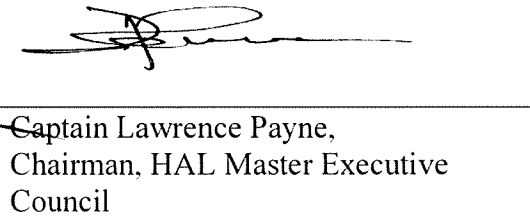
Captain Robert Johnson,
Vice President of Flight Operations



Captain Jason Ambrosi,
President of the Air Line Pilots
Association, International



Mr. Justin Doane,
Vice President of Labor Relations



Captain Lawrence Payne,
Chairman, HAL Master Executive
Council

LETTER OF AGREEMENT
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

23-04 IOE WAIVER FOR FREIGHT OPERATIONS

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIRLINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”), effective March 2, 2023; and

WHEREAS, PWA 9.H.1.d requires a Freight Pilot to conduct their IOE within the Freight Operation, and

WHEREAS, the parties agree that IOE can be conducted in passenger or non-freight operations on a temporary basis until enough freighter aircraft are in revenue service.

NOW, THEREFORE, the Company and Association agree as follows:

A. FREIGHT OPERATION IOE

1. PWA 9.H.1.d shall be waived until June 1st, 2024.

B. FREIGHT OPERATIONS

1. This LOA applies to Freight Operations.

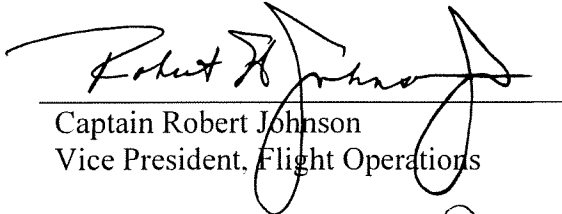
C. DURATION

This IOE Waiver for Freight Operations Letter of Agreement shall become effective on the date of signature and shall remain in full force and effect concurrently with the PWA effective March 2, 2023 to March 2, 2027, as provided in Section 28 (Duration).

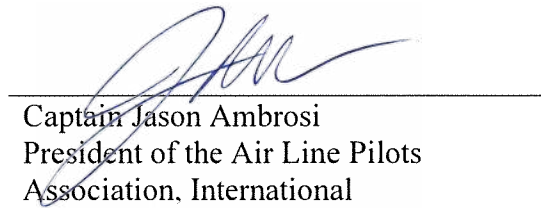
IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 2nd day of March 2023.

FOR HAWAIIAN AIRLINES, INC.:

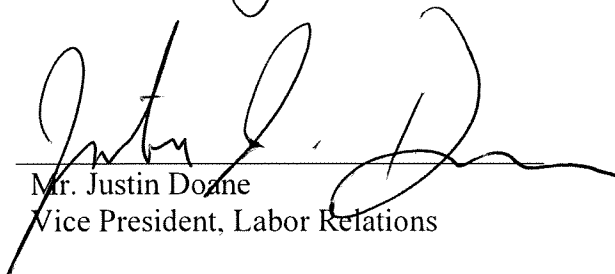
FOR THE AIRLINE PILOTS
ASSOCIATION, INTERNATIONAL:



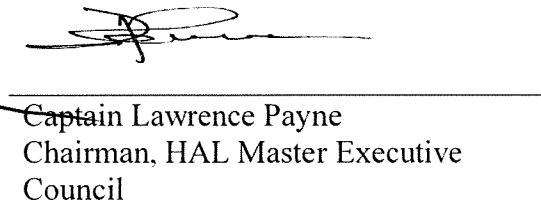
Captain Robert Johnson
Vice President, Flight Operations



Captain Jason Ambrosi
President of the Air Line Pilots
Association, International



Mr. Justin Doane
Vice President, Labor Relations



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

LETTER OF AGREEMENT
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

23-05 IOE WAIVER FOR RAR OPERATIONS

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIRLINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”), effective March 2, 2023; and

WHEREAS, the Company is beginning A321 operations to Rarotonga, Cook Islands (RAR); and

WHEREAS, Paragraph 9.H.1.c states that fleets operating to a foreign destination require IOE to include at least one Flight Grouping to a foreign destination; and

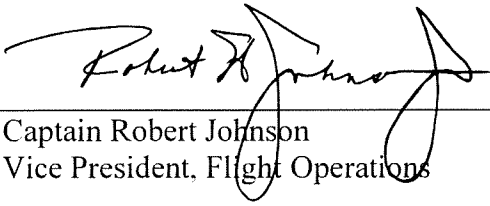
WHEREAS, there will be a limited number of Airbus 321 flights to Rarotonga, and as such limited opportunities to provide foreign IOE to pilots qualifying in the fleet.

NOW, THEREFORE, the Company and Association agree as follows:

- A. Paragraph 9.H.1.c shall be waived for the A321 while Rarotonga is the sole foreign destination served by the A321.
- B. This LOA does not apply to Freight Operations.
- C. This IOE Waiver for RAR Operations Letter of Agreement shall become effective on the date of signature and shall remain in full force and effect concurrently with the PWA effective March 2, 2023 to March 2, 2027, as provided in Section 28 (Duration).

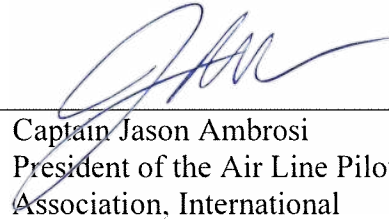
IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 2nd day of March 2023.

FOR HAWAIIAN AIRLINES, INC.:

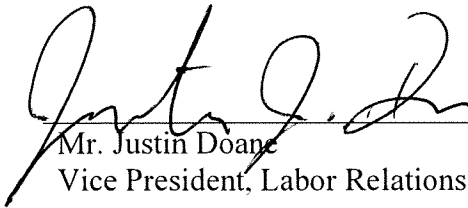


Captain Robert Johnson
Vice President, Flight Operations

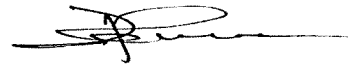
FOR THE AIRLINE PILOTS
ASSOCIATION, INTERNATIONAL:



Captain Jason Ambrosi
President of the Air Line Pilots
Association, International



Mr. Justin Doane
Vice President, Labor Relations



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

LETTER OF AGREEMENT
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

23-06 VACATION BANK and PILOT BANK PAYOUTS

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIRLINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”), effective March 2, 2023; and

WHEREAS, the new PWA language prevents a pilot from carrying any vacation bank balances in excess of their applicable annual vacation accrual into the next year, and

WHEREAS, the parties wish to cash out vacation bank balances over the limits shortly after the signing of a new PWA, and

WHEREAS, language pertaining to Pilot Banks has been removed from the PWA, and

WHEREAS, as such, Pilot Bank balances must be paid out.

NOW, THEREFORE, the Company and Association agree as follows:

A. VACATION BANK:

1. Amounts in excess of a pilot’s applicable annual vacation amounts listed in Subparagraph 6.B.1 of the 2017 PWA shall be paid out as follows:
 - a. On Tuesday, February 28th, at 0800 HST, the Company shall stop processing any vacation requests for a period of up to forty-eight (48) hours.
 - b. A computation shall be performed for each pilot to ascertain the amount of vacation hours in their vacation bank that is in excess of their applicable annual vacation amount, excluding any awarded yet un-taken vacation in 2023.

- c. If the amount of vacation hours in a pilot's vacation bank is below their applicable annual vacation amount (including any awarded yet un-taken vacation in 2023), no changes will be made.
- d. If the amount of vacation hours in a pilot's vacation bank is above their applicable annual vacation amount, all such vacation hours above their annual vacation amount (excluding any awarded yet un-taken vacation in 2023) shall be moved from their vacation bank to a Temporary Frozen Vacation Bank account in their name.

Example A: On December 31, 2022, a pilot had 30 hours in their vacation bank, with 87 hours of additional earned vacation available to use in 2023. The pilot so far only has 21 vacation days (63 hours) either used or scheduled in 2023, with the remaining 8 days (24 hours) from the 2023 allotment unused. The original 30 hours from Dec. 31, 2022 would be placed in the Temporary Frozen Vacation Bank, while the 24 unused hours for 2023 may either be used in 2023 or cashed out at the end of the year.

Example B: On December 31, 2022, a pilot had 30 hours in their vacation bank, with 87 hours of additional earned vacation available to use in 2023. The pilot has either used or scheduled 35 days (105 vacation hours) in 2023. The remaining 12 hours would be placed in the Temporary Frozen Vacation Bank.

B. PILOT BANKS:

1. Pilots will have their Pilot Bank adjusted to account for any over ninety (90) credit amounts accrued during the February bid month. Pilot requests for bank debits to bring them up to ninety (90) hours of Pay and Credit will not be honored for the bid month of February, payable on the March 7th paycheck.

C. PAYMENT:

1. On the May 22nd pay date, pilots will receive an additional payment, which will include any amount in their Temporary Frozen Vacation Bank, as well as any amount in their Pilot Bank. Such payment shall be made at the pilot's effective pay rate at the time of payment.

D. FREIGHT OPERATIONS

1. This LOA applies to Freight Operations

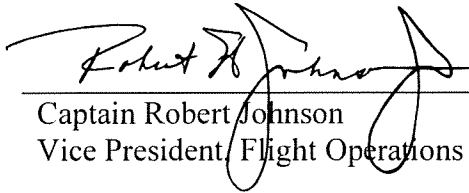
E. DURATION

1. This Vacation and Pilot Bank Payout Letter of Agreement shall become effective on the date of signature and shall remain in full force and effect concurrently with the PWA effective March 2, 2023 to March 2, 2027, as provided in Section 28 (Duration).

IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 2nd day of March 2023.

FOR HAWAIIAN AIRLINES, INC.:

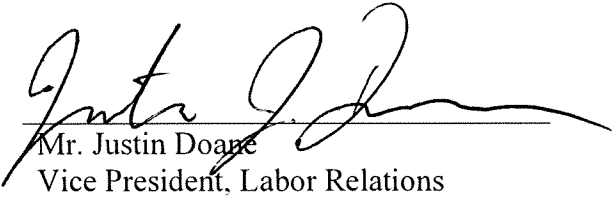
FOR THE AIR LINE PILOTS
ASSOCIATION, INTERNATIONAL:



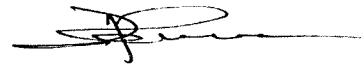
Captain Robert Johnson
Vice President, Flight Operations



Captain Jason Ambrosi
President of the Air Line Pilots
Association, International



Mr. Justin Doane
Vice President, Labor Relations



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

LETTER OF AGREEMENT
Between
THE AIRLINE PILOTS
In the service of
HAWAIIAN AIRLINES, INC.
As represented by
THE AIR LINE PILOTS ASSOCIATION, INTERNATIONAL

LOA 23-07 Flight Operations Quality Assurance Program

THIS LETTER OF AGREEMENT ("LOA") is made and entered into in accordance with the provisions of Title II of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC. (hereinafter referred to as "the Company" or "Hawaiian Airlines") and the AIRLINE PILOTS in the service of Hawaiian Airlines, Inc. as represented by the Air Line Pilots Association, International (hereinafter referred to as "The Association" or "ALPA").

WHEREAS, the parties intend to modify the existing Flight Operations Quality Assurance Program ("FOQA") implemented in November 2009 to analyze data for the sole purpose of enhancing safety; and

WHEREAS, the Federal Aviation Administration ("FAA"), has implemented Federal Aviation Regulation ("FAR") 13.401 to ensure that FOQA data, from carriers participating in an approved program, will not be used to undertake any enforcement action against an air carrier or its employees.

NOW, THEREFORE, the Company and Association agree as follows:

A. DEFINITIONS:

1. "Aircraft Condition Monitoring System" or "Quick Access Recorder ("QAR")" means any quick-access recorder that captures flight data onto any removable memory card or equivalent system to include data transfer via electronic means.
2. "Cockpit Voice Recorder" is any device, equipment, or system that monitors or records a pilot's voice while he or she is on an aircraft.
3. "Chief Pilot" is one of the management personnel required for 14 Code of Federal Regulations ("CFR") Part 121 operations. The System & Operations Chief Pilot serves in this role for the Company.
4. "Collected Data" is data that has been recorded and removed from an aircraft, via a data collection device or method, for use in the FOQA program.
5. "De-identified Data" means any FOQA data that exists following the deletion and destruction of any data that could in any way be used to identify specific crew members.
6. "Director of Operations" is one of the management personnel required for 14 CFR Part 121 operations. The Vice President of Flight Operations serves in this role for the Company.

7. "Director of Safety" is one of the management personnel required for 14 CFR Part 121 operations. The Managing Director of Safety and Security Operations serves in this role for the Company.
8. "Flight Data Recorder" is any device, equipment, or system that collects, transmits, or records in-flight data, whether installed to monitor pilot, aircraft component, or aircraft performance, or is related to the performance of some other function.
9. "FOQA Committee Chairman" is an ALPA member appointed by the Hawaiian Airlines Master Executive Council ("HAL MEC"), who:
 - a. attends all FOQA Trend Review Team ("FTRT") meetings; and
 - b. is a FOQA Gatekeeper; and
 - c. has Administrator access to the FOQA software program; and
 - d. will be invited to participate in the New Pilot Indoc FOQA briefings.
10. "FOQA Gatekeepers" are ALPA members (typically one for each fleet) appointed by the HAL MEC, who alone are solely authorized to have access to FOQA information for the following purposes:
 - a. to identify a crew member associated with collected data, and
 - b. to retrieve information from the computer to view Identifying Data before de-identification, and
 - c. to obtain the identity of crew members after an Operational Exceedance Event, and
 - d. to contact such crew members to obtain additional information for use by the FOQA program, and
 - e. to participate in the ALPA onboarding day for new hires, and
 - f. to coordinate with the Pilot Safety Action Program ("PSAP"), and
 - g. to build crew lounge informational slideshows.

Each "FOQA Gatekeeper" reports to the HAL MEC FOQA Committee Chairman, who in turn, reports to the HAL MEC Central Air Safety Committee Chairman.

"FOQA Trend Review Team" ("FTRT") is a committee composed, at a minimum, of the FOQA Program Manager, the Vice President of Flight Operations, Chief Pilots, Tech Managers and Fleet Training Managers of each aircraft, the ALPA Central Air Safety Committee Chairman, the FOQA Committee Chairman, ALPA Gatekeepers, Directors of Flight Standards, Directors of Flight Training, Manager of Flight Ops Policy, and the Manager, Operations Safety Programs. This Team will review aggregate trend data to identify safety concerns and provide recommendations to stakeholders. Decision-making within the FTRT shall be conducted on a majority consensus basis.

11. "FOQA Program" is a program designed to enhance flight safety through controlled analysis of recorded flight data information.
12. "FOQA Program Manager" is the person responsible for the overall management, administration, security, and maintenance of the FOQA Program. The Director of Safety will serve in this role for the Company.

13. "FOQA Steering Committee" ("FSC") is a committee, jointly chaired by the Director of Safety, and the HAL MEC FOQA Committee Chairman, that serves as the advisory group for the FOQA Program. Members of this committee include the Director of Operations, the Director of Safety, the Director of Standards, the HAL MEC Central Air Safety Chairman, the HAL MEC FOQA Committee Chairman, and the HAL MEC Chairman. Decision-making within the FSC shall be conducted on a majority consensus basis. The FSC will normally meet annually, and an agenda and minutes shall be utilized for each meeting.
14. "Identified Data" is any recorded or collected flight data prior to removal of all Identifying Data.
15. "Identifying Data" is any data or combination of data, which may allow recorded or collected flight data to be associated with a specific crew member. Exception: Data or information removed from a Company aircraft exclusively for conducting predictive and investigative maintenance analysis, and life cycle and reliability tracking of the various mechanical and electronic components on that aircraft shall not constitute Identifying Data given the terms of this LOA, which restrict its use for this purpose.
16. "Information" is any data transmitted, recorded, or collected by use of a flight data recorder, cockpit voice recorder, or any other recording device. The term "Information" shall further include tapes, transcripts, reports, papers, memoranda, statements, studies, charts, graphs, or any other description, analysis, or compilation of data collected by any such equipment.
17. "Operational Exceedance Event" is an event, as determined by recorded data, indicating that an aircraft was in a situation outside of the normal flight operations envelope tolerances.
18. "Operational Routine Event" is an event of statistical interest during routine operation.
19. "Safety Department FOQA Analyst and/or Manager" is a Company Safety Department representative tasked with review of processed de-identified FOQA data returned to Hawaiian Airlines by the vendor. The FOQA Analyst and/or Manager shall not have access to Identifying Data.

B. FOQA PROGRAM:

1. Any variation from the agreed-upon FOQA Program specifications as provided for in this LOA shall require the mutual agreement of the parties prior to implementing such change.
2. The FTRT shall establish necessary policies and procedures to ensure compliance with this Agreement's provisions.
3. The design of the FOQA Program shall maintain the confidentiality and anonymity of individual crew members.
4. Any violation of the requirements of the agreed-upon FOQA Program, or the terms herein, shall be cause for an immediate suspension of all identification/use of data under the FOQA Program until such time as a review of the violation has been conducted between the parties. In the event of such suspension, any collected data which has not yet been de-identified shall be destroyed. The suspension will continue until such time as the parties are satisfied that the problem has been rectified. Notwithstanding the foregoing, if a party feels that its interests are no longer protected, as set forth in this document, the program may be terminated pursuant to Paragraph G of this LOA, at which time all Identified Data shall be immediately destroyed pursuant to Paragraph D.

5. At a minimum, the FOQA Program at Hawaiian Airlines will record, examine, and monitor the exceedances listed in FAA Advisory Circular ("AC") 120-82, Appendix II.
6. The establishment of the limits that define an exceedance will be determined by the Company's Directors of Standards. Such exceedance limits shall be subject to review and comment by the FOQA Program Manager and the ALPA Gatekeeper.
7. Crew contact regarding an exceedance of a limit shall be jointly reviewed by the FOQA Program Manager and the ALPA Gatekeeper. The ALPA Gatekeeper shall retain the final decision on whether a crew contact will be required for an exceedance of a limit.
 - a. The main purpose of a crew contact is to determine why the event in question occurred. A crew contact shall serve no other purpose except to determine the reason for the event and report those facts to the FOQA Trend Review Team. The crew contact should cite the data on the flight that defined the event followed by asking about what led up to it. In the event an exceedance was so great as solely determined by the CASC and FOQA Committee Chairman, the FOQA Committee Chairman may elect to advise the Crew during the Crew Contact to submit a ASAP. Submission of an ASAP by the pilots however remains completely voluntary.

C. SCOPE

1. Sufficient De-identified Data shall be maintained to fulfill the requirements of the agreed-upon FOQA Program. All De-identified Data, and analyses of such data, shall be made available to the parties, including the HAL MEC, upon request.
2. There shall be continual evaluation of exceedance values by the parties, and all changes, deletions, or additions will be approved by the FOQA Program Manager and the ALPA Gatekeeper.
3. The FAA, will be provided the opportunity to review de-identified trend analysis and corrective action plans on Company property during regularly scheduled briefings, as provided for in AC 120-82.

D. DATA RETENTION AND SECURITY:

1. Identifying Data shall be removed from Identified Data as soon as possible, and shall be destroyed no later than thirty (30) calendar days from the date the vendor returns processed data to the Company. The media on which Identifying Data is stored or recorded must be destroyed in one of the following ways:
 - a. Paper, film, or other hard copy media must be shredded or destroyed, such that the Identifying Data cannot be read or reconstructed, and
 - b. Electronic media must be cleared, purged, or destroyed consistent with National Institute of Standards and Technology ("NIST") Special Publication 800-88, such that identifying information cannot be retrieved.
2. Data or information removed from a Company aircraft exclusively for conducting predictive and investigative maintenance analysis, and life cycle and reliability tracking of the various mechanical and electronic components on that aircraft shall not identify any specific pilot who

operated the aircraft being studied. Consistent with this restriction, the Company shall not release any additional data or information that would allow a specific pilot to be identified.

- a. The Company will not use or disclose this aircraft-generated data for any purpose or reason that is contrary to the standards and principles stated in this LOA.
3. All FOQA information identified, or de-identified, is Hawaiian Airlines proprietary information and shall be treated as confidential. No information obtained from or by use of this FOQA Program shall be released, except as stated in Subparagraphs D.3 through D.6.
4. Any employee/agent who has contact with any Identified Data used in this FOQA Program shall be prohibited from divulging any Identifying Data to any individual other than the designated FOQA Gatekeeper.
 - a. In the event any employee/agent divulges any Identifying Data to any individual other than the designated FOQA Gatekeeper, such employee/agent shall immediately be removed from contact with any FOQA data, identified or de-identified, at least until the parties are able to independently investigate such divulgence and are mutually satisfied that the situation has been adequately addressed.
 - b. The Association's investigation shall be led by the Chairman of the Central Air Safety Committee ("CASC"), the Chairman of the FOQA Committee, and one additional Association member appointed by the MEC Chairman (or more, if it is necessary to replace the CASC and/or FOQA Chairmen because they are implicated in the investigation).
 - c. Nothing in this Paragraph D precludes either party from exercising the provisions of Subparagraph B.4 above.
5. Except as approved pursuant to Subparagraph D.5 of this Agreement, or required pursuant to Subparagraph D.6, the release of Identified Data without expressed written consent of both parties is strictly prohibited.
 - a. If either party discovers an unauthorized release, they shall immediately notify the other party. The parties shall then immediately and independently investigate any unauthorized release to determine the source and extent of the violation, and, as warranted, take corrective action to protect all crewmembers, the Company, and the Association, and to prevent additional release of data and/or Information.
 - b. The Association's investigation shall be led by the CASC, the Chairman of the FOQA Committee, and one (1) additional Association member appointed by the MEC Chairman (or more, if it is necessary to replace the CASC and/or FOQA Chairman for this purpose because they are implicated in the unauthorized release).
 - c. It is expressly understood that the timely investigation of an unauthorized release of data as set forth in this Paragraph D of this Agreement shall be conducted prior to either party's demand for termination of the FOQA Program, as set forth in Subparagraph B.4.
6. The Aviation Safety Action Program ("ASAP") Event Review Committee ("ERC"), after accepting an ASAP report may request specific FOQA data, from the FOQA Gatekeeper, for a reported flight.
 - a. Requests may only be made if the ERC unanimously agrees that the relevant FOQA information would be beneficial to the investigation of the ASAP report.
 - b. The FOQA data received by the ERC will not be included in the ASAP report.
 - c. No accepted ASAP report will be excluded from the program based on any FOQA data received.

7. In the event either party is requested or required (by oral question, interrogatories, requests for information or documents, subpoena, civil investigative demand, or similar process) to disclose any Identified Data or De-identified Data, that party will promptly notify the other party of such request or requirement, and an appropriate protective order shall be sought. If a party is compelled by court order to disclose Identified Data or De-identified Data, that party may disclose only the Identified Data or De-identified Data that is required by law, and such disclosure shall be limited to the party compelling disclosure.
8. Except as required under Subparagraph D.6 of this Agreement, the release of non-aggregated De-identified Data to a third party (excluding data removed from an aircraft exclusively for maintenance purposes) is not authorized without the express approval of both the FOQA Program Manager and the FOQA Committee Chairman, except that such approval is not required in the case of the FAA pursuant to Subparagraph C.3 above. In any case, the FTRT shall be advised of, and provided a copy of, any aggregated De-identified Data released to any third party.
9. Only the FOQA Gatekeepers shall be provided access to Identified Data. It is the FOQA Gatekeeper's responsibility to safeguard this access and any password(s) associated with that access.

E. DATA USE:

1. The sole contact with any flight crew member associated with a specific exceedance event shall be through the designated FOQA Gatekeepers.
 - a. Crew Contact requests, generated by the Company, shall be at the ALPA Gatekeeper's discretion.
2. Only the ALPA-designated FOQA Gatekeepers shall be able to identify the individual crew members associated with any specific data.
3. Any notes, memoranda, or other documents used by the designated FOQA Gatekeepers, in any contact with any flight crew member concerning a specific FOQA event, shall be considered "Identified Data" for purposes of this agreement, and shall be "de-identified" in accordance with Subparagraph D.1 of this Agreement.
4. At a minimum, the FOQA program may be used for evaluating the following areas, including without limitation:
 - a. Operational Safety
 - b. Aircraft Performance
 - c. Aircraft Systems Performance
 - d. Crew Performance
 - e. Company Procedures
 - f. Training Programs
 - g. Training Effectiveness
 - h. Aircraft Design
 - i. ATC System Operation
 - j. Airport Operational Issues
 - k. Meteorological Issues

5. The Company shall not use information obtained from a FOQA Program, in whole or in part, to discipline or discharge a pilot.
6. The Company shall not use information gathered and retained for the purpose of conducting predictive and investigative maintenance analysis, and life cycle tracking of various mechanical and electronic components, in whole or in part, to discipline or discharge a pilot.
7. The Company shall not use information obtained from a FOQA Program, in whole or in part, to investigate alleged pilot misconduct. This includes using third party open source information, such as internet flight tracking websites, to investigate an event that the Company became aware of solely due to the FOQA program.
8. Information obtained from a FOQA Program shall not be used as a basis, in whole or in part, to require a pilot's submission to a non-recurrent proficiency or line check.
9. Any additional areas of evaluation outside of values routinely recorded by the FOQA Program, which the parties may desire to include in the FOQA Program, must be mutually agreed upon by the FOQA Program Manager and the ALPA Gatekeeper prior to implementation.
10. Nothing in this agreement shall be construed to preclude the use of De-identified Data for the purpose of safety Promotions/Animations.

F. FLIGHT PAY LOSS ("FPL")

1. Notwithstanding anything to the contrary in the Pilot Work Agreement the following paragraph shall apply only in the case of pilot representatives involved in the FOQA program:
 - a. The Company shall, on a monthly basis, provide the Association up to thirty (30) hours of FPL, for each operation (i.e. Passenger or Freight) and aircraft fleet (e.g. A321 (A321, A321neo, A321LR are considered the same fleet), A330, B787, B717) requiring a FOQA Gatekeeper doing work during that month. If, at company request, due to FOQA program related duties, a pilot representative's involvement is required, with concurrence of the VP of FLT OPS, such additional FPL hours in exceedance of the aforementioned thirty (30) hours shall be provided at no cost to the Association.
 - b. Whenever possible, the planned schedule for the normal requirements for the FOQA Gatekeeper(s) involved in the FOQA program shall be coordinated and established prior to the monthly schedule bid awards. If, at Company request, due to FOQA program related duties, a pilot representative's involvement is scheduled after the monthly bid award, such pilot shall, coverage permitting, be displaced from all or a portion of their schedule and provided ALPA flight pay loss at no cost to the Association while functioning in this capacity. In the case of work performed on such pilot's day off, they will be paid either three (3) hours or six (6) hours per day at the pilot's hourly flight pay rate. Such three (3) or six (6) hours shall be paid to a reserve pilot in addition to the seventy-five (75) hour minimum guarantee and such day off shall not be

replaced. Pilot representatives shall be reimbursed for applicable per diem expenses, including hotel, meals and transportation, when out of domicile.

- c. FPL for FOQA Gatekeeper(s), Committee Chairman(-men), or other pilot(s) designated by the HAL MEC Chairman to attend meetings required by the FOQA Implementation and Operations Plan, shall be paid by the Association.
- d. FPL for FOQA Gatekeeper(s) to conduct the required duties in the FOQA Implementation and Operations Plan and the duties listed in Subparagraph A.10 of this Agreement shall be paid by the Association.

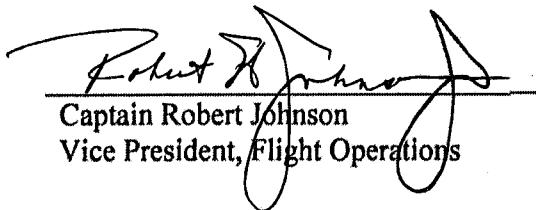
G. TERM OF AGREEMENT

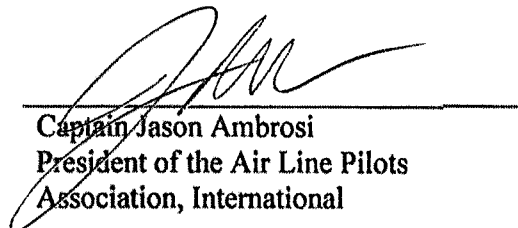
This LOA shall become effective as of the date of signing and be in effect concurrently with the PWA, except that either party may cancel the LOA upon written notice to the other party. Such cancellation shall become effective sixty (60) days after such cancellation notice is given, provided that prior to such cancellation becoming effective, the parties shall meet and discuss the reasons for the pending cancellation and determine what changes, if any, can be made to this LOA to avoid cancellation. In any case, modifications to this LOA shall be agreed to in writing by the parties. In the event of cancellation, this LOA shall become null and void and have no further effect.

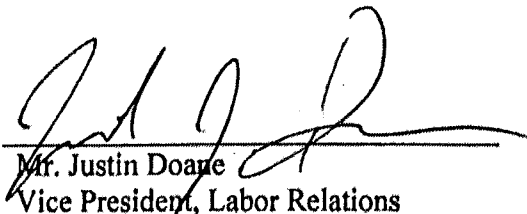
IN WITNESS WHEREOF, the parties have signed this Agreement this 15 day of June 2023

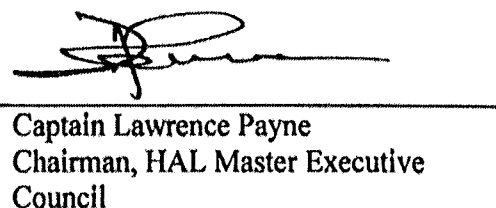
FOR HAWAIIAN AIRLINES, INC.:

FOR THE AIR LINE PILOTS
ASSOCIATION, INTERNATIONAL:


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23-08 Updated Contract Clarification Request Process

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC. (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”), effective upon ratification; and

WHEREAS, the Company and the Association mutually benefit from the Company answering all Contract Clarification Requests (“CCR”) by pilots in a timely manner because this improves the quality and efficiency of the overall operation and reduces the need for filing grievances; and

WHEREAS, the parties also mutually benefit from a transparent CCR process because that ensures the parties remain informed about the status of each CCR and Company response; and

WHEREAS, the parties want the PWA to reflect the above-mentioned agreement on an updated CCR process.

NOW, THEREFORE, it is mutually agreed:

A. Updated CCR Process

1. The parties agree that eConnect is an approved electronic CCR system that enables pilots to file written CCRs on both scheduling and non-scheduling PWA compliance questions, including pay error issues. The Company agrees to maintain this system in collaboration with the Association. The Company may change the CCR system in the future with mutual agreement from the Association, which shall not be unreasonably withheld.
 - a. This electronic CCR system shall constitute the single point of contact for the Company for pilot PWA clarification requests.

- b. This electronic CCR system shall also constitute methods to address other requests as designated in the PWA, LOAs, or settlement agreements between the parties.
 - c. Except for inquiry and claim processes specifically defined within the PWA, other LOAs, or settlement agreements between the parties, this LOA shall govern the protocol for the filing and processing of clarification requests.
- 2. The electronic CCR system (or via email if the CCR system is unable to perform this function) shall also send copies of CCRs and the Company's response(s)/answer(s) to the respective committee within the HAL MEC committee structure (e.g., training questions to the HAL MEC Training Committee; scheduling questions to the HAL MEC Scheduling Committee; freight operations questions to the HAL MEC Freight Committee; pay error questions to the HAL MEC Pay Committee).
 - 3. The Company will continue to collaborate with the Association as it transitions subject matter from the current email system (SCR) to the CCR system (eConnect). If either party identifies changes that are needed to ensure the system meets the requirements and standards of this LOA, those changes must also be mutually agreed-upon. Neither party shall unreasonably withhold agreement for any requested changes.
- B. Subsection 26.SS (Contract Clarification Requests) shall be added to the PWA with the following provisions:

SS. CONTRACT CLARIFICATION REQUESTS

- 1. A Contract Clarification Request ("CCR") is a request submitted by a pilot asking for clarification of a topic related to the PWA. If the Company responds to a question that is not related to the PWA, that response will not modify this definition.
- 2. If a pilot wants to ask the Company for clarification about a topic related to the PWA, including those involving pay errors (Subparagraph 4.K), scheduling (Subparagraph 22.B), or freight operations (Section 27), the pilot should file a CCR using the electronic system that shall be provided by the Company for this purpose.
 - a. To expedite its timely resolution, a CCR should include the following information in the request:
 - i. A detailed fact pattern;
 - ii. A reference to the PWA provision that is in question.
- 3. The deadlines for the filing and processing of inquiries or claims that have specific timelines defined for them in the PWA, LOAs, or settlement agreements between the parties (e.g., pay error reports, preferential bidding system, deadhead aisle/window claims, etc.) will continue to be governed by PWA, LOAs, or settlement agreements.
- 4. For clarification requests that are not governed by 26.SS.3, the Company shall answer the pilot's CCR within seven (7) days of its electronic submission. If the Company requires

more time to investigate a CCR, it shall notify the HAL MEC Chair (or their designee) in writing that it will take additional time to answer the question. The Company shall also notify the pilot of any such extension. Such notification shall explain the reasoning such additional time is needed.

- a. If the Company has not answered a pilot's CCR within seven (7) days of its submission, and did not yet inform the HAL MEC Chair that it requires additional time to answer per Subparagraph 26.SS.4, the Company will send a notice to both the MEC Chair and the Vice President of Flight Division for awareness.
 - b. If the Company has required additional time per Subparagraph 26.SS.4, it shall answer a pilot's CCR within fourteen (14) days of its submission.
 - 1) The Company may ask the MEC Chair in writing for an additional seven (7) days (for a total of twenty-one (21) days) to answer a CCR. The MEC Chair may approve or disapprove such request. The MEC Chair will not unreasonably deny such a request if the complexity of the question and the Company's reasoning for needing such additional time is reasonable.
5. If a pilot is not satisfied with their CCR response, he or she may send a request that the Company and the respective HAL MEC committee (e.g., Training Committee, Scheduling Committee, etc.) meet to discuss potential resolution of the matter. If the matter is not resolved through this process, the pilot may send a follow-up request to have the Company and the Grievance Committee meet to discuss potential resolution of the matter.
 6. If a pilot files a CCR, the time limits contained in Section 16 (Grievances) shall commence when the Company answers the CCR, unless the Company agreed to delay the start of the time limit on a case-by-case basis.
 7. Not filing a CCR shall in no way affect the pilot's right to grieve any Company action.
- C. Subsection 22.B shall be revised as follows:
1. Subparagraph 22.B.1.d shall be changed to read: "If the pilot is not relieved from the protested assignment and still feels the assignment is illegal, they should file a Contract Clarification Request ("CCR") pursuant to Subsection 26.SS."
 2. Subparagraph 22.B.1.e shall be deleted.
 3. Subparagraph 22.B.1.f shall be deleted.
- D. Freight Operations
1. This LOA applies to Freight Operations.

2. The following provision shall be added to the PWA as Subparagraph 27.B.26.vv:

vv. CONTRACT CLARIFICATION REQUESTS

1) Refer to PWA Subsection 26.SS

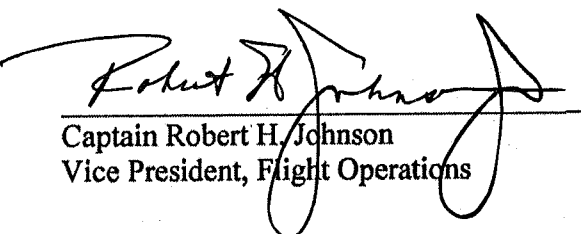
E. Duration

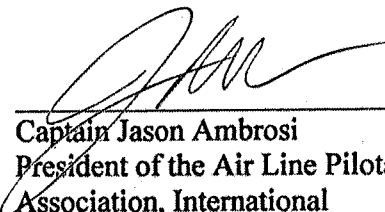
This Letter of Agreement shall become effective on the date of signature and shall remain in full force and effect concurrently with the PWA effective March 2, 2023 to March 2, 2027, as provided in Section 29 (Duration).

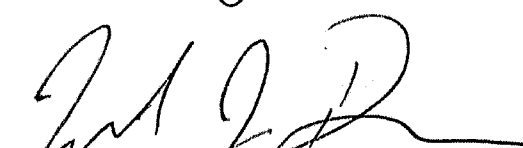
IN WITNESS WHEREOF, the parties hereto have signed this **LETTER OF AGREEMENT** executed this 15 of June 2023.

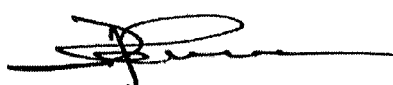
For Hawaiian Airlines, Inc.

For the Air Line Pilots Association,
International


Captain Robert H. Johnson
Vice President, Flight Operations


Captain Jason Ambrosi
President of the Air Line Pilots
Association, International


Mr. Justin Doane
Vice President, Labor Relations


Captain Lawrence Payne
Chairman, HAL Master Executive Council

Letter of Agreement
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

23-09 Category Activation

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules and working conditions for the Company’s pilots (“Pilot Working Agreement” or “PWA”) effective March 2, 2023, and

WHEREAS, there has existed a long-standing practice, and

WHEREAS, the two parties agree that the long-standing practice should be memorialized.

NOW, THEREFORE, the Company and Association agree as follows:

Subparagraph 2.A.2 of the Pilots’ Working Agreement shall be changed to read:

- B. ACTIVATED/ACTIVATION: Means the release of a pilot to line flying in an awarded or assigned Vacancy as the result of the pilot being:
1. Trained,
 2. Qualified, and
 3. Performing duty for the Company in the Category of such Vacancy (e.g., flying a revenue Trip, serving a Reserve Availability Period, performing crewing, or performing Company Business.)

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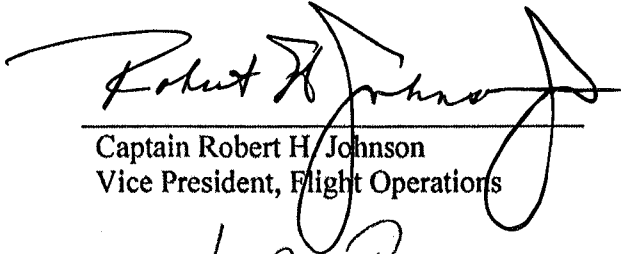
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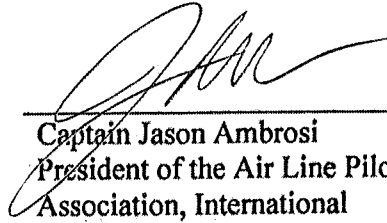
IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 15 of
June 2023.

FOR HAWAIIAN AIRLINES, INC.:

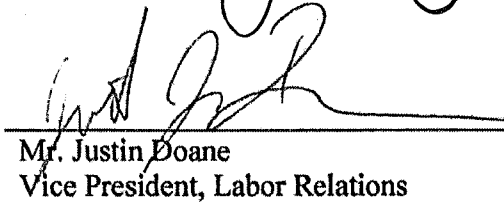
FOR THE
AIRLINE PILOTS ASSOCIATION,
INTERNATIONAL:



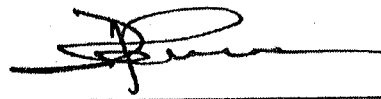
Captain Robert H. Johnson
Vice President, Flight Operations



Captain Jason Ambrosi
President of the Air Line Pilots
Association, International



Mr. Justin Doane
Vice President, Labor Relations



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

Letter of Agreement
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

23-10 Training and Freight

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”), effective March 2, 2023, and

WHEREAS, the parties identified a need to address the qualifications required to be an Evaluator Pilot, and

WHEREAS, the parties addressed the pay structure to include a daily rate for Line Check Airman (“LCA”) and the order of callout for open Initial Operating Experience (“IOE”) groupings for LCAs, and

WHEREAS, the Long Call Reserve and Proration Table for the Freight Operations needed to be modified, and

WHEREAS, clarification was needed on the assignment protocol for IOE flight groupings that had previously been assigned to an LCA or EP who is no longer attached to that grouping,

NOW, THEREFORE, the Company and Association agree as follows:

A. Subparagraph 9.K.2.b shall be changed to read:

- b. Evaluator Pilot (EP) – Excluding Subparagraph 9.M.1.a, must hold the Category Vacancy (in this instance, only the Pilot status and type of equipment apply) in which they instruct or evaluate and have at least two (2) years of active service as a line pilot. An EP must be a Captain, have a minimum of five hundred (500) hours of Pilot-in-Command (PIC) time at Hawaiian Airlines, and if instructing or evaluating pilots in an aircraft, have a minimum of three hundred (300) hours of PIC time in the type of aircraft at Hawaiian Airlines. The requirement to have three hundred (300) hours of PIC time does not apply during the first two (2) years of operation of a new fleet type measured from the date of the first revenue flight.
 - 1) Provided all other qualifications are met, and subject to the limitations in Subsection 9.L (Loss of Medical for Instructor and Evaluator Pilots) below, an EP may continue in their

present position after the loss of an FAA Medical Certificate, however they may not occupy an aircraft control seat.

- 2) The requirement of five hundred (500) hours of PIC, and three hundred (300) hours of PIC time in the type of aircraft at Hawaiian Airlines in Subparagraph 9.K.2.b may be waived if the following requirements are met:
 - a) have at least one hundred (100) hours of PIC in the type of aircraft at Hawaiian Airlines, and
 - b) have been a qualified Instructor Pilot for a period of at least two (2) years, of which one (1) year immediately preceding the application to be an EP must have been as a Full Flight Simulator Instructor Pilot in the type of aircraft, and
 - c) mutual agreement between the Company and the Association of the utilization of this provision (Subparagraph 9.K.2.b.2)
- B. Subparagraph 9.H.3.d shall be changed to read:
- d. The LCA shall be paid three hundred dollars (\$300) per each day of the Flight Grouping or fifty dollars (\$50) per block hour of the Flight Grouping, whichever is greater.
Example: 3-day HND with 16 block hours, the LCA would receive nine hundred dollars (\$900)
Example: 3-day JFK with 20:30 block hours, the LCA would receive one thousand and twenty-five dollars (\$1,025)
- C. Subparagraph 9.N.2.d shall be changed to read:
- d. MT I/E pilots will submit preferences between the fifteenth (15th) and the twenty-second (22nd) two (2) months prior. The schedules for MT I/E pilots shall be published on the ninth (9th) of the month prior.
- D. Subparagraph 27.B.2.b.7) shall be changed to read:
- 7) GATEWAY CITY: an airport selected from the published list in Subparagraph 27.B.21.a.2, that serves as an alternative airport to a Freight Pilot's Domicile, for the starting and ending point for a Freight Flight Grouping and for the purposes of travel to training. (Subparagraph 9.S.8)
- E. Subparagraph 9.S.8.b shall read:
- b. Training Travel Deviation
 - 1) Location: The pilot may choose to depart from a location other than their Domicile if airfare cost is less than the airfare (determined by HA cost) to/from the pilot's Domicile at time of booking. In addition, the deviation must allow the pilot to legally complete their next assignment. Subparagraph 7.A.6-8 does not apply to a training travel Deviation. The pilot must provide notice five (5) days prior to their first travel day. DH Pay and/or Credit will be calculated in accordance with Subparagraph 9.S.8.a. from the pilot's Domicile and the travel must occur on the scheduled training travel days.
 - 2) Non-utilization: If the pilot is not going to utilize the travel to training, the pilot should notify the Company to cancel their segment(s) five (5) days prior to their first travel day. The pilot is entitled to all pay provisions as if the pilot had traveled on the scheduled travel training day(s) to/from their Domicile.
- F. Subparagraph 9.B.13 shall read:
- a. The Company will determine the available CQ slots for a given month.

- b. By the fifteenth (15th) day, two (2) months prior to the training month, pilots being scheduled for CQ will be sent an email by the Company notifying the pilot that they may bid for their CQ slot during the CQ bidding window.
- c. The CQ bidding window will be from 1600 HST on the fifteenth (15th) day two (2) months prior to the CQ month, until 1000 HST on the twenty second (22nd) day two (2) months prior to the training month.
- d. A CQ pilot will be able to bid for as many CQ slots as are available by indicating first preference, second, etc., on the "Simulator Preference Form." A pilot not indicating enough preferences may be assigned a CQ slot.
- e. The CQ bidding deadline will be 1000 HST on the twenty second (22nd) day two (2) months prior to the training month. CQ awards will appear in the bid packet on the fourth (4th) of the month prior to the training month.
- f. If an awarded CQ assignment is not completed for any reason (e.g., removed, sick, cancelled, etc.), the Company may assign CQ within the footprint of any published Groupings or assignments within the CQ eligibility window, including Reserve.

G. Subparagraph 27.B.10.f.3).b) shall be changed to read:

b) Eighteen (18) Long Call Reserve days per month:

- (1) Shall be constructed as no less than six (6) consecutive day blocks, and may be bid back-to-back for eighteen (18) continuous Long Call Reserve days, except:
 - i. in the event of less than eighteen (18) days but more than nine (9) days of availability due to proration, the LRC reserve block shall be limited to a minimum of five (5) days, or
 - ii. in the event of less than ten (10) days of availability due to proration, the LRC reserve block shall be limited to a single block of days.

H. Subparagraph 27.B.26.II shall be changed to read:

II. DAYS OFF PRORATION

- 1. A Long Call Reserve Pilot off line flying for training, bid vacation, relocation days, or all leaves (e.g., sick, military, ALPA, etc.) in any month shall have their days off prorated between the period of the month such pilot is off line flying and the period of the month such pilot is available for line flying.
- 2. A Bid Run pilot off line greater than ten (10) days for training in any month shall have their days off prorated between the period of the month such pilot is off line flying and the period of the month such pilot is available for line flying.
- 3. The prorated days off due such pilot for the portion of the month such pilot is available for line flying presented in the table below are calculated by:
 - a. Subtracting the number of days in the training, vacation, relocation, or leave period from the total number of days in the month; and
 - b. Multiplying the remainder by a factor as determined below:
 - 1) Bid Run Pilots:
 - a) 31-day month .48
 - b) 30-day month .46
 - 2) Long Call Reserve Pilots:
 - a) Any month .40

c. Any decimal value shall be rounded up to the next whole number.

I. Subparagraph 27.B.26.JJ shall be changed to read:

Freight Long Call Reserve					
30-Day			31-Day		
Abs	Off	GDO	Abs	Off	GDO
0	12	6	0	13	6
1	12	6	1	12	6
2	12	6	2	12	6
3	11	6	3	12	6
4	11	6	4	11	6
5	10	5	5	11	6
6	10	5	6	10	5
7	10	5	7	10	5
8	9	5	8	10	5
9	9	5	9	9	5
10	8	4	10	9	5
11	8	4	11	8	4
12	8	4	12	8	4
13	7	4	13	8	4
14	7	4	14	7	4
15	6	3	15	7	4
16	6	3	16	6	3
17	6	3	17	6	3
18	5	3	18	6	3
19	5	3	19	5	3
20	4	2	20	5	3
21	4	2	21	4	2
22	4	2	22	4	2
23	3	2	23	4	2
24	3	2	24	3	2
25	2	1	25	3	2
26	2	1	26	2	1
27	2	1	27	2	1
28	1	1	28	2	1
29	1	1	29	1	1
30	0	0	30	1	1
		0	31	0	0

Freight Bid Run			
30-Day		31-Day	
Abs	Off	Abs	Off
0	14	0	15
1	14	1	15
2	13	2	14
3	13	3	14
4	12	4	13
5	12	5	13
6	12	6	12
7	11	7	12
8	11	8	12
9	10	9	11
10	10	10	11
11	9	11	10
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15	7	15	8
16	7	16	8
17	6	17	7
18	6	18	7
19	6	19	6
20	5	20	6
21	5	21	5
22	4	22	5
23	4	23	4
24	3	24	4
25	3	25	3
26	2	26	3
27	2	27	2
28	1	28	2
29	1	29	1
30	0	30	1
		31	0

J. Subparagraph 9.H.7 shall be inserted as follows:

7. A pilot awaiting OE, that is delayed greater than eighteen (18) days after completion of their simulator training, may be assigned to a simulator crewing/training period at management discretion with the following restrictions:
 - a. Seventy-two (72) hours' notice is required prior to the crewing/training period; and
 - b. Simulator crewing shall not include evaluation events; and
 - c. No greater than one (1) crewing/training period assignment every seven (7) days, except;
 - 1) The pilot may volunteer for additional crewing/training periods within seven (7) days.

K. Subparagraph 22.G.1.a shall be changed to read:

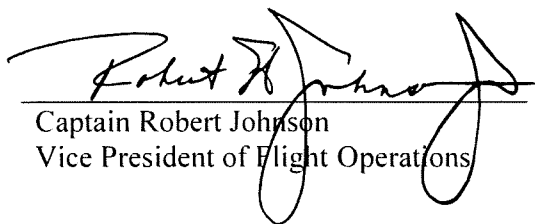
- a. All uncovered known flying shall immediately be published in open time.
 - 1) The following exceptions allow for known flying to not be published in open time and be assigned outside the provisions of the UFAP:
 - a) For the Captain's seat:
 - (1) Manufacturer or Lessor aircraft acceptance or return flights requiring special training or qualifications.
 - (a) Positioning the aircraft to or from the location of this flight (e.g., flying the plane back to a Hawaiian maintenance base shall not be considered part of the special qualification requirements unless the maneuvers and procedures requiring such qualification are to be performed during that flight).
 - (2) In-flight maintenance procedures that, per the Manufacturer, require special training or qualifications to complete.
 - (3) In-flight maintenance procedures that, per an Accepted or Approved Hawaiian Airlines manual, require the pilot in command to have special training or qualifications to complete.
 - (4) Any Special Flights as defined by Subsection 26.D (Special Flights).
 - (5) A Flight Grouping awarded or assigned for the purpose of conducting IOE to an LCA who was subsequently removed from the Flight Grouping due to sick call or illegality (FAR or PWA).
 - (a) Such Flight Grouping shall be assigned or awarded in the following order:
 1. First, assigned to a qualified LCA on a Reserve Run, respecting the applicable subparagraphs in Subsection 22.C (Reserves),
 2. Second, offered to qualified LCAs in seniority order for one hundred percent (100%) Pay and Credit,
 3. Third, offered to qualified LCAs in seniority order who are legal in all respects to accept the award without having to be removed from a Flight Grouping(s) or Reserve day(s) (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)),
 4. Fourth, offered to qualified LCAs in seniority order who are legal to accept the award, but must be removed from a Flight Grouping(s) or Reserve day(s) to ensure contractual and FAR legality (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)).
 - (6) A Flight Grouping that was assigned/awarded to an EP (per Subsection 9.N or Subsection 9.O), for the purposes of conducting IOE, but that no longer has an EP, shall be assigned/awarded to a new eligible pilot as follows:
 - (a) First, to an LCA pilot on a Reserve Run, respecting the applicable Subparagraphs in Subsection 22.C (Reserves).
 - (b) Second, to an EP pilot on a UTP.

- (c) Third, to an LCA pilot on a Bid Run volunteering for one hundred percent (100%) pay and credit, in seniority order who is legal in all respects to accept the award without having to be removed from a Flight Grouping(s).
- (d) Fourth, to an EP volunteering for one hundred percent (100%) pay and credit, in seniority order who is legal in all respects to accept the award without having to be removed from a Flight Grouping(s).
- (e) Fifth, to an LCA pilot on a Reserve Run who has opted to give up days off (pay for such Flight Grouping(s) in addition to guarantee per Subsection 4.N (Over 75)) in seniority order. A day off that is given up will not be replaced.
- (f) Sixth, to an LCA pilot volunteering for recall, in seniority order who is legal in all respects to accept the award without having to be removed from a Flight Grouping(s) or Reserve day(s) (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)).
- (g) Seventh, to an EP pilot volunteering for recall, in seniority order who is legal in all respects to accept the award without having to be removed from a scheduled training event (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)).
- (h) Eighth, to an LCA pilot volunteering for recall in seniority order, who is legal to accept the award, but must be removed from a Flight Grouping(s) or Reserve day(s) to ensure contractual and FAR legality (two hundred percent (200%) pay per Subsection 22.E (Recall) and Subsection 4.M (Recall Pay)).

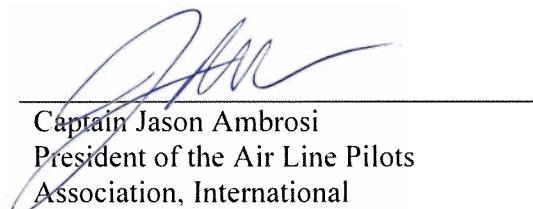
L. This LOA will become effective on the date of signature and shall remain in full force and effect concurrently with the PWA effective March 2, 2023 to March 2, 2027, as provided in Section 29 (Duration).

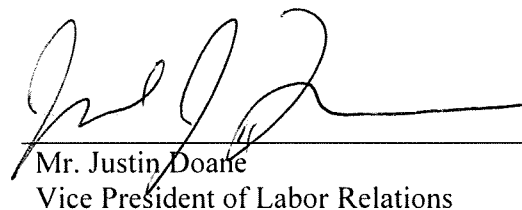
IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 29th day of August 2023.

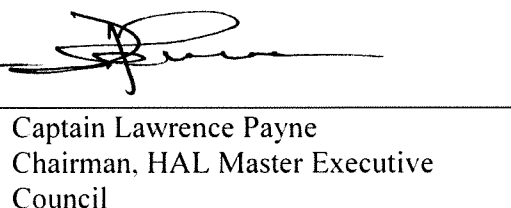
FOR HAWAIIAN AIRLINES, INC.:


Captain Robert Johnson
Vice President of Flight Operations

FOR THE
AIR LINE PILOTS ASSOCIATION,
INTERNATIONAL:


Captain Jason Ambrosi
President of the Air Line Pilots
Association, International


Mr. Justin Doane
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23-11 Freight Implementation and Deadhead Operations

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilot Working Agreement” or “PWA”), effective March 2, 2023, and

WHEREAS, due to the scheduled operating hours of the new Freight Operation it necessitated the ability to conduct IOE on “red-eye” Segments, and

WHEREAS, both parties saw a need to change the timeline for booking travel to and from training, and the ability to schedule pilots for IOE without returning them to Domicile first, and

WHEREAS, the Company saw a need to Deadhead a Freight Pilot on a freight aircraft to reduce the delay of a departure, while both parties agree that the reduction of costs shall not be a reason to utilize freight aircraft to Deadhead Freight Pilots, and

WHEREAS, both parties saw a need to allow a Long Call Reserve Freight Pilot the ability to utilize the Freight Pilot Commuter Allowance, and

NOW, THEREFORE, the Company and Association agree as follows:

A. IOE during Red-eye Flights

1. Subparagraph 9.H.4 shall be changed to read:
 - a. Flight Groupings containing an un-augmented “red-eye” Segment or Flight Groupings that include destinations not listed as “Approved IOE Segments” in that Month’s Notification of Bidding Period for Monthly Runs Bulletin shall not be utilized for conducting IOE.
 - 1) Subparagraph 9.H.4 shall not apply to Freight Operations

B. Travel to and from Simulator (both Students and IE pilots)

1. Subparagraph 9.S.8.b shall read:

- a. Travel to training on a non-Hawaiian Airlines flight shall be booked, and pilot notified, no later than ten (10) days prior to the pilot's first travel day.
2. Subparagraph 9.S.8.c shall read:
 - a. Travel from training on a non-Hawaiian Airlines flight shall be booked, and pilot notified, no later than five (5) days prior to the pilot's return travel day.
3. Paragraph E of LOA 23-10 Training and Freight shall be changed to read:
 - b. Training Travel Deviation
 - 1) Location: The pilot may choose to depart from a location other than their Domicile if airfare cost is less than the airfare (determined by HA cost) to/from the pilot's Domicile at time of booking. In addition, the deviation must allow the pilot to legally complete their next assignment. Subparagraph 7.A.6-8 does not apply to a training travel Deviation. The pilot must provide notice fourteen (14) days prior to their first travel day. DH Pay and/or Credit will be calculated in accordance with Subparagraph 9.S.8.a. from the pilot's Domicile and the travel must occur on the scheduled training travel days.
 - 2) Non-utilization: If the pilot is not going to utilize the travel to training, the pilot should notify the Company to cancel their segment(s) fourteen (14) days prior to their first travel day. The pilot is entitled to all pay provisions as if the pilot had traveled on the scheduled travel training day(s) to/from their Domicile.

C. Deadheading Greater than 5.5 hours on OAL

1. Subparagraph 7.A.8.a.7) (to be added after the existing language) "If an aisle or window seat in the next highest product are not available, the pilot shall be assigned an aisle, then window, seat in the highest class."
2. Pilots may waive deadhead provisions as long as they are provided clear, mutually agreed information (ALPA-approved script) regarding their contractual right for a Deadhead, and such waiver is recorded for potential verification at a later date.

D. IOE

1. Subparagraph 9.H.7 shall read:
 - b. The Company is not required to Deadhead pilots in training back to their Domicile between completion of simulator training and their first IOE Flight Grouping, or FAM flight, if there are less than four (4) calendar days between the conclusion of simulator training and the IOE Flight Grouping. If a pilot is scheduled for two (2) consecutive IOE Flight Groupings beginning and ending in a Domicile other than their current Domicile, and less than four (4) calendar days off exist between the ending of the first Flight Grouping and the beginning of the second Flight Grouping, the Company is not required to Deadhead the pilot back to their current Domicile between IOE Flight Groupings.
 - 1) Upon Completion of IOE, the pilot will either be activated in the Category or, if the pilot qualifies for a move, the pilot shall be Deadheaded back to Domicile.
 - 2) Pilots shall be provided hotel, per diem, and transportation during the time period away from Domicile, as well as the three (3) hours per day required per PWA Subparagraph 9.C.1.c, as they are still in their training period.

E. Emergency Deadheading Freight Pilot on Freight Aircraft (EDFA)

1. Subsection 7.D shall read:
 - a. The Company may Deadhead a Freight Pilot on a freight aircraft only if the Freight Pilot:
 - 1) is unable to be in position utilizing commercial flights and/or ground transportation to operate a freight flight, and
 - 2) will be Deadheading from a freight location to another freight location, and
 - 3) is assigned the EDFA within six (6) hours of its departure.
 - b. Shall only be used when time is of the essence, and the freight aircraft is the only possible option to get the Freight Pilot in position to operate the freight flight with the least possible delay beyond the original scheduled departure time.
 - c. Shall not be used if an LCRP is available to cover the FFG at issue.
4. If an HA Jumpseater is projected to be bumped from the flight, the Jumpseater shall be notified of their removal from the flight immediately after the EDFA assignment.
5. No more than two (2) Freight Pilots may Deadhead on the same freight aircraft at the same time.
6. Deadheading Freight Pilots shall be provided an appropriate (equal to the operating crew) crew meal.

F. INDOC

1. A new hire pilot shall be provided hotel, per diem, and transportation (between the hotel and the training facility) during the INDOC portion of their training period regardless of their awarded Domicile and the location of such INDOC training (e.g., a new hire pilot domiciled in HNL shall receive a hotel in HNL during this INDOC period).

G. Boarding Priority Chart MOU

1. See attached

H. Freight MFGC

1. Section 27.B.4.c.1).a).(3) shall be changed to read:
 - b. At no point in time shall a Freight Pilot receive less than the Minimum Flight Grouping Credit (MFGC) hours multiplied by the number of calendar days encompassed by the FFG.
 - 1) MFGC shall be calculated as follows:
 - a) Upon Entry Into Service (EIS) of the first Freight Operation aircraft, MFGC shall be 4.7 hours; and
 - b) Between EIS + 6 months and EIS + 23 months MFGC shall be 5.0 hours; and
 - c) Between EIS +24 months and EIS +43 months MFGC shall be 5.25 hours
 - d) At EIS + 44 months and beyond, MFGC shall remain at 5.25 hours unless the formula below triggers a change:
 - (1) If the BH:FC ratio equals 5.0 or greater for a period of 6 consecutive months the MFGC shall be changed to 5.5 hours.
 - e) An audit shall be conducted every three (3) months, starting at EIS plus forty-two (42) months, to determine if the BH:FC formula returns a result that

would cause the MFGC to be increased. If the MFGC is increased it will do so in the second month following the completion of the audit (e.g. the audit performed in April would generate a change in the bid packet published in May, containing the FFG's for June's flying.)

- f) Once the MFGC is increased due to triggers from the BH:FC formula above, it will not be reduced, regardless of future ratio changes.

I. PAX Scheduling Policy

- 1. The two parties shall meet to integrate the new Passenger Scheduling procedures (UFAP) into Freight Operations.

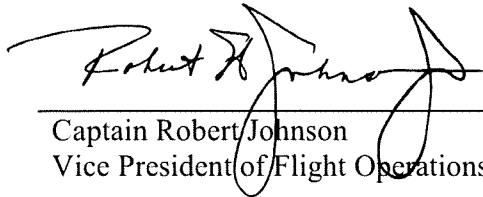
J. Freight Pilot Commuter Flight Allowance

- 1. PWA Subparagraph 27.B.5.1.1) shall read:
 - a) A Bid Run Freight Pilot must request to book their flight no less than twenty-four (24) hours prior to the scheduled departure of the requested commuter flight.
 - b) An LCRP must request to book their flight no less than three (3) hours after receiving the FFG assignment from Crew Scheduling while on LCR.
 - c) The Freight Pilot may request any flight of their choosing and, if an economy seat is available, the Company shall book that flight at the time the Company receives the request.
 - (1) The Company may, at its discretion, book a seat in a class higher than economy.
 - (2) If there are two (2) flights leaving and arriving within three (3) hours of each other, the Company has the discretion to purchase a seat on either flight dependent on price, as long as the alternative flight still arrives in Domicile with sufficient time for the pilot to comply with their scheduled report time.
 - d) This commuter flight allowance is on a per month basis with no rollover capability from month-to-month (i.e., the four (4) one-way tickets must be used each month or they are lost).
 - e) The Company has discretion to offer an incentive program for unused one-way ticket(s) on a monthly basis.
 - (1) Such incentive program shall have a published incentive value that shall not be changed on more than a quarterly basis.
 - (2) When the incentive program is offered, it shall be offered to all Freight Pilots for that month.
 - (a) Any such incentive payments shall be paid to a Freight Pilot on no less than a quarterly basis.

- K. This LOA will become effective on the date of signature and shall remain in full force and effect concurrently with the PWA effective March 2, 2023 to March 2, 2027, as provided in Section 29 (Duration).

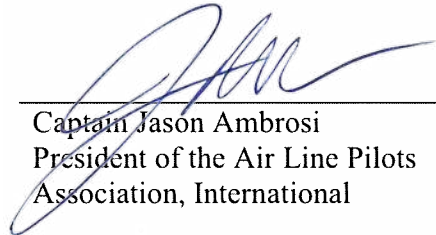
IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 11 day of October 2023. 19th

FOR HAWAIIAN AIRLINES, INC.:

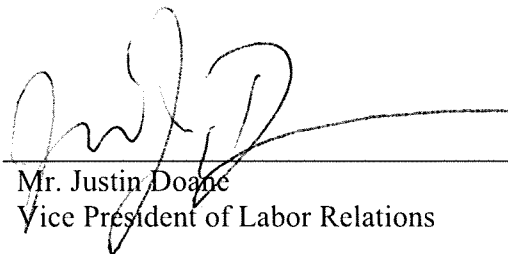


Captain Robert Johnson
Vice President of Flight Operations

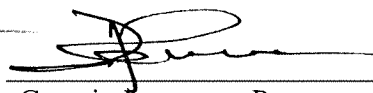
FOR THE
AIR LINE PILOTS ASSOCIATION,
INTERNATIONAL:



Captain Jason Ambrosi
President of the Air Line Pilots
Association, International



Mr. Justin Doane
Vice President of Labor Relations



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

Memorandum of Understanding
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIR LINE PILOTS ASSOCIATION

M23-04 Boarding Priority Chart

THIS Memorandum of Understanding (“MOU”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”) effective March 2, 2023, and

WHEREAS, pursuant to PWA Subparagraph 26.G.4, the Boarding Priority Chart (“BPC”) cannot be altered in such a way as to reduce the pilot group’s pass travel privileges/benefits without the consent of the Association, and

WHEREAS, the boarding priority position formally designated to Hawaiian Airlines Chairman/Board Members/Officers traveling on Company business is no longer being utilized by those employees, and

WHEREAS, the Company has requested that the Association consent to utilizing that vacated boarding priority position for its Managing Directors travelling on Company business.

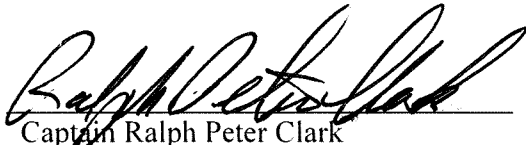
NOW, THEREFORE, the Company and Association agree as follows:

1. The BPC be modified to grant Hawaiian Airlines employees with the title of Managing Director, who are traveling on Company business, the following boarding priorities:

OLD Code	NEW Code	Description
PMDA	11F	HA Managing Directors on Company Business (confirmed in Business/First)
P1AW/F1	31/F3	HA Managing Directors on Company Business (confirmed in Main Cabin)
P1AS	50/F3	HA Managing Directors on Company Business (space available)

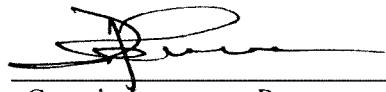
IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 11th day of October 2023.

FOR HAWAIIAN AIRLINES, INC.:



Captain Ralph Peter Clark
System Chief Pilot

FOR THE
AIR LINE PILOTS ASSOCIATION,
INTERNATIONAL:



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

Letter of Agreement
between
HAWAIIAN AIRLINES, INC.
and
THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

23-13 Unused Vacation Payout

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”), effective March 2, 2023, and

WHEREAS, both parties saw a need to change the date in PWA Subparagraph 6.D.1 to simplify the process for payroll.

NOW, THEREFORE, the Company and Association agree as follows:

A. PWA Subparagraph 6.D.1 shall be changed to read:

1. Each year, pilots shall be required to take a minimum of one (1) week’s (seven (7) days) vacation. Unused vacation shall be paid to the pilot on the January 22nd paycheck in the following year utilizing the pilot’s hourly pay rate as of December 31st of the previous year (e.g., hourly pay rate on December 31, 2024 shall be utilized for the payment on January 22, 2025).

- B.** This LOA will become effective on the date of signature and shall remain in full force and effect concurrently with the PWA effective March 2, 2023 to March 2, 2027, as provided in Section 29 (Duration).

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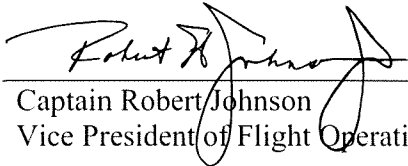
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IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 27th day of
December 2023.

FOR HAWAIIAN AIRLINES, INC.:

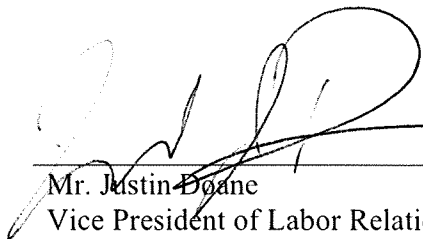
FOR THE
AIR LINE PILOTS ASSOCIATION,
INTERNATIONAL:



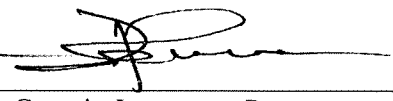
Captain Robert Johnson
Vice President of Flight Operations



Captain Jason Ambrosi
President of the Air Line Pilots
Association, International



Mr. Justin Doane
Vice President of Labor Relations



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

Letter of Agreement
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HAWAIIAN AIRLINES, INC.
as represented by
THE AIRLINE PILOTS ASSOCIATION

24-01 Freight Pilot IOE

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilot Working Agreement” or “PWA”) effective March 2, 2023, and

WHEREAS, due to delays in aircraft delivery, many pilots have been waiting extended periods of time to complete their training, and

WHEREAS, the alignment of the standard operating procedures (“SOPs”) between the Passenger 330s and Freight 330s now allows for freight pilots, who have waited an extended period of time to complete their training, to complete their IOE on the Passenger 330s.

NOW, THEREFORE, the Company and Association agree as follows:

A. FREIGHT OPERATION IOE

1. PWA Subparagraph 9.H.1.d shall be waived for the duration of this LOA.

B. FREIGHT OPERATIONS

1. This LOA applies to Freight Operations.

C. DURATION

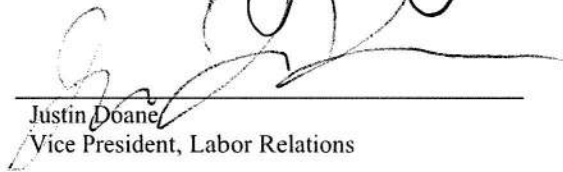
1. This LOA shall become effective on the date of signature and shall remain in full force and effect until October 1, 2024.

IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 30th of April 2024.

FOR HAWAIIAN AIRLINES, INC.:



Captain Robert H. Johnson
Vice President, Flight Operations



Justin Doane
Vice President, Labor Relations

FOR THE
AIRLINE PILOTS ASSOCIATION,
INTERNATIONAL:



Captain Jason Ambrosi
President of the Air Line Pilots
Association, International



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

Letter of Agreement
between
HAWAIIAN AIRLINES, INC.
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THE AIRLINE PILOTS
in the service of
HAWAIIAN AIRLINES, INC.
as represented by
THE AIR LINE PILOTS ASSOCIATION

24-02 Minimum Reserve Number Modification

THIS LETTER OF AGREEMENT (“LOA”) is made and entered into in accordance with the provisions of the Railway Labor Act, as amended, by and between HAWAIIAN AIRLINES, INC (hereinafter referred to as the “Company”) and the air line pilots in the service of the Company, as represented by the AIR LINE PILOTS ASSOCIATION (hereinafter referred to as the “Association”).

WHEREAS, the Company and the Association are parties to a collective bargaining agreement setting forth the rates of pay, rules, and working conditions for the Company’s pilots (“Pilots’ Working Agreement” or “PWA”) effective March 2, 2023; and

WHEREAS, the parties had not anticipated all possible staffing scenarios when contemplating the language regarding the calculation of the Minimum Reserve Number (“MRN”); and

WHEREAS, it was in the best interest of both parties to modify how the MRN shall be calculated going forward.

NOW, THEREFORE, the Company and Association agree as follows:

Subsection 21.H shall be changed to read:

H. MINIMUM RESERVE NUMBER (MRN)

1. Once the Bid Award process is complete, the Minimum Reserve Number (MRN) for each calendar day will be determined for the month. The MRN shall be calculated as follows:
 - a. The net reserve number for a given calendar day is the number of awarded Reserve pilots for that day, minus the number of uncovered Flight Groupings in open time operating that day.
 - b. The MRN shall be the lesser of the net reserve number or the PRN for that day, reduced by one for every fifty (50) eligible bid pilots in that Category, rounded up to the next multiple of fifty (50).

Example: The PRN for a given day is 18. There are 15 net reserves following the Bid Award process on the same given day, in a Category with 80 eligible bid pilots. The next multiple of 50 above 80 is 100, so the net reserve number will be reduced by two. The MRN will be 13 for that day.

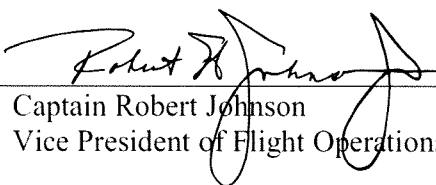
Example: The PRN for a given day is 18. There are 22 net reserves following the Bid Award process on the same given day, in a Category with 80 eligible bid pilots. The next multiple of the 50 above 80 is 100, so the PRN will be reduced by two, and the MRN will be 16 for that day.

- 1) On the following named holidays, the MRN shall not be reduced by the formula in Subparagraph 21.H.1.b, and shall instead be equal to the lesser of the net reserve number or the PRN:
 - a) New Year's Day
 - b) Easter Sunday
 - c) Memorial Day
 - d) Independence Day
 - e) Labor Day
 - f) Thanksgiving Day
 - g) Christmas Eve
 - h) Christmas Day
2. Reserve coverage for each day in the month will be determined by subtracting the number of uncovered Flight Groupings in open time that are operating on a given day from the number of available reserves on that day, and comparing the resulting number of net reserves to the MRN for that day.
 - a. If the number of net reserves exceeds the MRN, the reserve grid on that day will have net positive reserve coverage and be considered "green."
 - b. If the number of net reserves is equal to or less than the MRN, the reserve grid on that day will be "black."

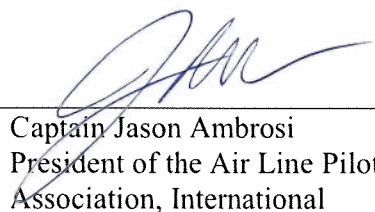
IN WITNESS WHEREOF, the parties hereto have signed this Agreement on this 23 of August 2024.

FOR HAWAIIAN AIRLINES, INC.:

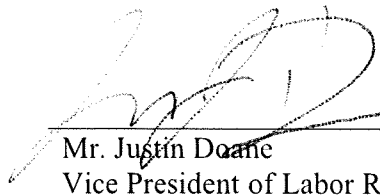
FOR THE
AIR LINE PILOTS ASSOCIATION,
INTERNATIONAL:



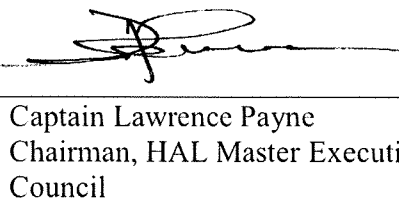
Captain Robert Johnson
Vice President of Flight Operations



Captain Jason Ambrosi
President of the Air Line Pilots
Association, International



Mr. Justin Doane
Vice President of Labor Relations



Captain Lawrence Payne
Chairman, HAL Master Executive
Council

**RETIREMENT PLAN FOR PILOTS OF
HAWAIIAN AIRLINES, INC.**

(2015 Restatement)

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ARTICLE 1 ESTABLISHMENT OF PLAN

Effective June 1, 1949, Hawaiian Airlines, Inc. established a Retirement Income Plan for its eligible employees. Benefits under the Plan for Pilot employees had been funded under Group Annuity Contract No. GA-9006 issued to the Company by the Prudential Insurance Company of America.

Effective March 20, 1963, said Retirement Income Plan, formerly embodied in the provisions of Contract 9006, was amended and restated in its entirety, with respect to employees in the employ of the Company on that date who were classified as Pilots and who were not receiving annuity payments, and as to future employees of the Company classified as Pilots, and as to all benefits for which such employees are entitled under the Retirement Income Plan.

Effective January 1, 1971 Contract 9006 was amended to provide for the cancellation of all retirement income benefits credited thereunder before March 20, 1963 to the employees described above. All amounts arising as a result of such cancellation were transferred to a new deposit administration Group Annuity Contract No. GA-9102 issued to the Company by Prudential. All benefits under the Retirement Income Plan, as amended and restated, was provided under Contract 9102.

Effective March 1, 1975, the Plan was renamed the Retirement Plan for Pilots of Hawaiian Airlines, Inc. and amended and restated in its entirety to meet the requirements of the Employee Retirement Income Security Act of 1974, as amended.

The Plan was amended and restated in its entirety as of January 1, 1994, which restatement was amended from time to time thereafter. The Plan was amended and restated in its entirety as of January 1, 1997, which restatement was amended from time to time thereafter. The Plan was amended and restated in its entirety effective January 1, 2007 to reflect certain collectively bargained changes to the Plan, including the freeze of Plan benefit accruals for certain pilots. This restatement was amended from time to time thereafter.

Effective as of January 1, 2015, the Plan is hereby amended and restated in its entirety to incorporate all prior amendments and amendments required by changes in the laws and regulations affecting the Plan. All such amendments shall be effective on the applicable effective date of such laws with respect to employees in the employ of the Company on or after the effective date who are classified as Pilots and with respect to future employees of the Company classified as Pilots.

Effective March 1, 1975, the Variable Plan, which had been in effect since May 1, 1956, was terminated. A valuation of the Variable Plan's assets was made as of March 31, 1975. On the basis of this valuation, an index of change was developed by a comparison of the market value of the assets as of December 31, 1974. This index of change was used to adjust the Pilots' Contribution Accounts as well as determining a new annuity unit value for those retired under this Plan.

The trustee continued to pay the Variable Plan pensions through July 1975 in the same amount as were being paid in June 1975. The Retired Members had their Variable Plan pension paid from Prudential beginning August 1, 1975. The amount of the Variable Plan pension payable to eligible Retired Members on August 1, 1975 was the amount which would have been paid to each such Member on July 1, 1975 based on the December 31, 1974 annuity unit value, adjusted by the index of changes as mentioned above. The amount of each such annuity was expressed in terms of Annuity Units of Variable Annuity determined by multiplying the dollar amount of such August 1, 1975 payment by the Annuity Units Per Dollar for August 1, 1975. The number of Annuity Units per Dollar for August 1975 was equal to \$1.00 divided by the Annuity Unit Value applicable to annuity payments made in such month. "Annuity Unit Value" is described in the following paragraph. The amount of each subsequent monthly Variable Plan pension payment was equal to the product of the number of Annuity Units constituting such monthly payment and the Annuity Unit Value applicable to annuity payments in such month. (The dollar amount of each such payment fluctuates each month as the Annuity Unit Value fluctuates in dollar value).

The Annuity Unit Value is based on the effective investment results, including market value changes and dividends, less investment expenses and taxes and an assumed investment result, of an investment fund composed primarily of common stocks. The method of valuing this Annuity Unit Value is determined in accordance with the group annuity contract or contracts issued by Prudential to the Company.

The assets supporting the Variable-Plan which are not transferred to purchase pensions for those retired and vested as Pilots, and are not transferred as Pilot contributions, remained with the trustee and are used as part of the assets of this Plan.

ARTICLE 2 DEFINITIONS

Whenever used in the Plan, the following terms shall have the respective meanings as set forth below unless otherwise expressly provided herein:

2.1 "Accrued Pension Benefit" shall mean the Member's accrued benefit determined at any date by applying the Member's Final Average Earnings and his Credited Service to the benefit formula described in Section 8.1.

2.2 "Actuarial Equivalent" shall mean the amount and form of benefit that is mathematically equivalent in value to a given amount and form of benefit on the basis of the assumptions set forth in the Plan or the Exhibits to the Plan. Notwithstanding any other Plan provisions to the contrary, the Applicable Mortality Table used for purposes of adjusting any benefit or limitation under Section 415(b)(2)(B), (C), or (D) of the Code as set forth in Section 8.8 of the Plan and the Applicable Mortality Table used for purposes of satisfying the requirements of Section 417(e) of the Code as set forth in this Section 2.2 shall be the table prescribed in Revenue Ruling 2001-62. Effective as of January 1, 2008 (and subject to any transitional rules required by applicable regulations or other guidance), the amount of lump sum payments shall be determined using the Applicable Mortality Table and the Applicable Interest Rate.

2.3 "Actuary" shall mean a member of the Society of Actuaries, or a firm, one or more members of which is a member of the Society of Actuaries, appointed to perform calculations and valuations required under this Plan.

2.4 "Additional Company Contributions" shall mean the additional company contributions made by the Company on behalf of the Member as provided in Section 5.1(b).

2.5 "Affiliated Company" shall mean the Company and any corporation which is a member of a controlled group of corporations (as defined in Section 414(b) of the Code) which includes the Company; any trade or business (whether or not incorporated) which is under common control (as defined in Section 414(c) of the Code) with the Company; any organization (whether or not incorporated) which is a member of an affiliated service group (as defined in Section 414(m) of the Code) which includes the Company; and any other entity required to be aggregated with the Company pursuant to regulations under Section 414(o) of the Code.

2.6 "Alternate Payee" shall mean any spouse, former spouse, child, or other dependent of a Member who is recognized by a Qualified Domestic Relations Order as having the right to receive all, or a portion of, the benefits payable under the Plan with respect to such Member.

2.7 "Annuity Starting Date" shall mean the first day of the first period for which an amount is payable as an annuity or any other form.

2.8 "Applicable Interest Rate" shall mean the interest rate prescribed by the Secretary of the Treasury for January of the Plan Year of distribution, as described in Section 417(e)(3)(C) of the Code.

2.9 "Applicable Mortality Table" shall mean the table prescribed by the Secretary of the Treasury, as described in Section 417(e)(3)(B) of the Code.

2.10 "Association" shall mean the Air Line Pilots Association, International.

2.11 "Basic Agreement" shall mean the collective bargaining agreement entered into between the Company and the Association effective January 15, 2010, any amendment thereto, and any subsequent collective bargaining agreement entered into between the Company and the Association.

2.12 "Break in Eligibility Service" shall mean the first to occur of (i) a Period of Severance in excess of five years or (ii) failure to receive Earnings from the Company as a Pilot while on a leave of absence for sickness or injury in excess of six years. At the date when such Break in Eligibility Service occurs, the Member shall be regarded as having incurred a one-year Break in Eligibility Service. Thereafter, the Member shall incur an additional one year Break in Eligibility Service for each 12 consecutive months of severance.

2.13 "Break in Vested Service" shall mean a Period of Severance of at least 12 consecutive months. At the date when such Break in Vested Service occurs, the

Member shall be regarded as having incurred a one-year Break in Vested Service. Thereafter, the Member shall incur an additional one year Break in Vested Service for each 12 consecutive months of severance.

2.14 “**Code**” shall mean the Internal Revenue Code of 1986 and amendments thereto.

2.15 “**Company**” shall mean Hawaiian Airlines, Inc., any subsidiary, affiliate, or successor thereto and any surviving corporation resulting from any merger or consolidation of Hawaiian Airlines, Inc. with any other corporation.

2.16 “**Continuous Service**” shall mean the latest period of uninterrupted full-time employment with the Company in any capacity including furlough and authorized leave of absence granted by the Company.

2.17 “**Contract 9102**” shall mean Group Annuity Contract No. GA9102, as amended, issued to the Company by Prudential.

2.18 “**Credited Service**” shall mean the periods for which Credited Service is granted pursuant to Section 4.1.

2.19 “**Deferred Retirement Date**” shall mean (i) the date upon which retirement occurs for a Member who continues in Service with the Company after his Normal Retirement Date, and (ii) in the case of a Member who dies while continuing Service after his Normal Retirement Date, the date of his death.

2.20 “**Disability**” shall mean the inability to fly as a Pilot as more fully described in Section 7.3. Effective as of June 1, 2005, disability retirement benefits shall no longer be provided under the Plan with respect to any Pilot who becomes/became Disabled (within the meaning of Section 7.3) after such date.

2.21 “**Disability Retirement Date**” shall mean the date on which a Member qualifies for retirement under the conditions set forth in Section 7.3.

2.22 “**Domestic Relations Order**” shall mean any judgment, decree, or order (including approval of a property settlement agreement) that (i) relates to the provision of child support, alimony payments, or marital property rights to a spouse, former spouse, child, or other dependent of a Member and (ii) is made pursuant to a state domestic relations law (including a community property law).

2.23 “**Early Retirement Date**” shall mean the date selected by the Member as provided in Section 7.2.

2.24 “**Earnings**” shall mean the regular gross remunerations paid to the Member as a Pilot by the Company as reported on Treasury Form W-2. However, Earnings shall not include Company-reimbursed expenses and any amounts contributed by the Company towards this Plan or any other employee benefit plan maintained by the Company; provided that Earnings shall include any salary reductions authorized by the Member and are not includible in the Member’s gross income under Section 125;

402(e)(3); 402(h); 403(b); and effective as of January 1, 2001, Section 132(f)(4) of the Code. Effective November 1, 1989, Earnings shall include Company reimbursed meal pay as reported on Treasury Form W-2. Notwithstanding any other provision of the Plan to the contrary, except with respect to Grandfathered Members and as provided in Sections 8.10 and 10.1, Earnings shall not include any amount paid or credited on or after the Freeze Date.

Effective January 31, 1996, for purposes of calculating the amount of benefits under Sections 5.1(b), 8.1 through 8.7, and 10.1 and Final Average Earnings, described in Section 2.28, Earnings shall be calculated as if the wage rates established in Section 3 of the Agreement between the Association and the Company effective September 1, 1993 (the "Book Rates"), remained in effect throughout the entire period that the 1996 Pilots Agreement remains in effect without regard to the revisions to the Book Rates adopted in the 1996 Pilot Agreement between the Association and the Company.

Annual Earnings of each Member taken into account for determining benefits provided under the Plan for any Plan Year shall not exceed the annual compensation limit in effect under Section 401(a)(17) of the Code, as adjusted for cost-of-living in accordance with Section 401(a)(17)(B) of the Code.

If a determination period consists of fewer than 12 months, the annual Earnings limit shall be an amount equal to the otherwise applicable annual compensation limit multiplied by a fraction, the numerator of which shall be the number of months in the short determination period and the denominator of which shall be 12.

The annual Earnings of each Member taken into account in determining benefit accruals in any determination period beginning after December 31, 2001, shall not exceed \$200,000. "**Annual Earnings**" means Earnings during the Plan Year or such other consecutive 12-month period over which Earnings are otherwise determined under the Plan (the "determination period"). This \$200,000 limit on annual Earnings shall be adjusted for cost-of-living increases in accordance with Section 401(a)(17)(B) of the Code. The cost-of-living adjustment in effect for a calendar year shall apply to annual Earnings for the determination period that begins with or within such calendar year.

2.25 "Eligible Spouse" shall mean the wife or husband of a Member. Effective June 26, 2013, "Eligible Spouse" means a person (including a person of the same sex) who is lawfully married, including a common law marriage, to a Member under the law of any domestic or foreign jurisdiction having the legal authority to sanction such marriage.

2.26 "Employee" means any common law employee of the Company.

2.27 "ERISA" shall mean the Employee Retirement Income Security Act of 1974, as amended, and all rules, rulings, and regulations thereunder.

2.28 "Final Average Earnings" shall mean the average of the highest consecutive 36 months of Earnings, excluding months of less than full normal earnings due to leaves without Earnings, work stoppage, or Disability retirement, during the last 120 months preceding a Pilot's retirement date or his date of death, as the case may be. This

monthly average shall be annualized. If a Pilot has less than 36 months of Earnings, his average shall be based on all of his Earnings. A Pilot who retires having completed a partial Month of Service shall have all such time credited to the Final Average Earning calculation and the first month of the 36 month Final Average Earning period shall be prorated to provide a full 36 month period. Notwithstanding any other provision of the Plan to the contrary, Final Average Earnings shall not increase after the Freeze Date with respect to any Member other than a Grandfathered Member or as provided in Sections 8.10 and 10.1(d).

2.29 "Former Member" shall mean any person who has been a Member and whose Service with the Company has terminated and who has no further remaining interest in or under the Plan.

2.30 "Freeze Date" shall mean January 1, 2008.

2.31 "Funding Agent" shall mean Prudential or such other organizations appointed under the provisions of Section 13 of the Plan.

2.32 "Grandfathered Member" shall mean a Member of the Plan who is on the Company's pilot system seniority list on January 1, 2006 (including, but not limited to, a Pilot who was on furlough on that date) and who is age 50 or older as of July 1, 2005.

2.33 "Hour of Service" shall mean:

(a) Each hour for which the Employee is paid, or entitled to payment, for the performance of duties for the Company. These hours shall be credited to the Employee for the computation period in which the duties are performed; and

(b) Each hour for which the Employee is paid, or entitled to payment, by the Company on account of a period of time during which no duties are performed (regardless of whether the Employee shall have ceased to be an Employee) due to vacation, holiday, illness, incapacity (including disability), layoff, jury duty, military duty, or leave of absence. Hours under this paragraph shall be calculated pursuant to Section 2530.200b-2 of the Department of Labor Regulations which are incorporated herein by this reference; and

(c) Each hour for which back pay, without regard to mitigation of damages, has been awarded or agreed to by the Company. The same Hours of Service shall not be credited both under subparagraph (a) or subparagraph (b), whichever shall be applicable, and also under this subparagraph (c). The hours shall be credited to the Employee for the computation period or periods to which the award or agreement pertains rather than the computation period in which the award, agreement, or payment is made.

Hours of Service shall be credited for employment with other members of an affiliated service group (within the meaning of Section 414(m) of the Code), a controlled group of corporations (within the meaning of Section 414(b) of the Code), or a group of trades or businesses under common control (within the meaning of Section 414(c) of the Code), of

which the Company is a member, and any other entity required to be aggregated with the Company pursuant to Section 414(o) of the Code and the regulations thereunder.

Hours of Service shall also be credited for any individual considered an Employee under Section 414(n) of the Code or Section 414(o) of the Code and the regulations thereunder.

2.34 "Inactive Member" shall mean any person who transferred to another position with the Company so that he no longer is classified as a Pilot.

2.35 "Investment Manager" shall mean such person chosen in accordance with Section 13.2(f).

2.36 "Member" shall mean any Pilot who qualifies for membership in Section 3, and any Inactive Member, Retired Member, or Terminated Vested Member who is not a Former Member. Notwithstanding any other provision of the Plan to the contrary, no New Pilot shall become a Member in the Plan.

2.37 "Minimum Pension" shall mean the amounts determined under Section 8.1(b). Notwithstanding any other provision of the Plan to the contrary, the Minimum Pension of a Member (other than a Grandfathered Member, the vacation and sick leave credit rules provided in Section 8.10, and interest accumulation under Section 8.1(b)(2)(iii)) shall not increase after the Freeze Date.

2.38 "Month of Service" shall mean a month during which a Pilot receives Earnings.

2.39 "New Pilot" means a Pilot hired after June 30, 2005.

2.40 "Normal Retirement Date" shall mean the Member's 60th birthday.

2.41 "Normal Retirement Pension" shall mean the Pension payable upon the Member's Normal Retirement Date.

2.42 "Pension" shall mean any benefit payable hereunder in a series of payments.

2.43 "Period of Severance" means a continuous period of time during which the Employee is not employed in any capacity by the Company. Such period begins on the date the Employee retires, quits, or is discharged, including layoff or furlough, or if earlier, the 12 month anniversary of the date on which he was otherwise first absent from Service.

2.44 "Pilot" shall mean an Employee who is defined as a "Pilot" in the Basic Agreement in effect from time to time between the Company and the Association and who is listed on the Pilot system seniority list as of the effective date of the Plan and thereafter.

2.45 "Plan" shall mean the Retirement Plan for Pilots of Hawaiian Airlines, Inc., as set forth herein and any amendments hereto.

2.46 "Plan Administrator" shall mean the Company, or its designee.

2.47 "Plan Year" shall mean the 12 month period commencing on a January 1st and terminating on the succeeding December 31st.

2.48 "Prior Plans" shall mean the "Fixed Annuity Plan for Pilots of Hawaiian Airlines, Inc.," as amended through February 28, 1975, and the "Trust Annuity Plan for Pilots of Hawaiian Airlines, Inc.," as amended through February 28, 1975.

2.49 "Prudential" shall mean The Prudential Insurance Company of America.

2.50 "Qualified Domestic Relations Order" shall mean a domestic relations order that satisfies the requirements of Section 414(p) of the Code.

2.51 "Retired Member" shall mean a Member or Eligible Survivor (Section 10.1) receiving benefits under the Plan.

2.52 "Retirement Board" shall mean the Retirement Board established pursuant to the Basic Agreement.

2.53 "Service" shall mean the period of time when an Employee is employed by the Company as an Employee in any capacity. Service does not include periods of time on layoff or furlough for which the Pilot is not compensated, except as provided in Section 4.2(b)(4) and Section 4.5.

2.54 "Terminated Vested Member" shall mean any person who has been a Member and whose employment with the Company has terminated, but whose retirement benefits are vested and payment deferred to a later date.

2.55 "Trust Fund" shall mean all of the assets held by the Trustee under the Plan.

2.56 "Trustee" shall mean the Trustee of the Trust Fund and any successor Trustee or Trustees selected in accordance with Section 13.

2.57 "Variable Plan" shall mean the Trust Annuity Plan for Pilots of Hawaiian Airlines, Inc. which was terminated as of March 1, 1975.

2.58 "Vested Service" shall mean the periods as defined in Section 4.2.

2.59 "Year of Eligibility Service" shall mean a 12 month period measured from the date an Employee first performs an Hour of Service. If the Employee is classified as a Pilot, he shall be credited with a Year of Eligibility Service if he is credited with at least 400 Hours of Service during such initial 12 month period. If a Pilot does not complete a Year of Eligibility Service during such initial 12 month period, then the computation-period shall be the Plan Year. If a Pilot fails to satisfy this Hours of Service requirement, he shall nevertheless complete one Year of Eligibility Service after he accumulates 12 Months of Service.

If the Employee is not classified as a Pilot, he shall be credited with a Year of Eligibility Service if he is credited with at least 1,000 Hours of Service during such initial 12 month period. If such Employee does not complete a Year of Eligibility Service during such initial 12 month period, then the computation-period shall be the Plan Year.

Certain additional definitions applicable to a specific Section or Exhibit are set forth in such Section or Exhibit.

ARTICLE 3 MEMBERSHIP

3.1 ELIGIBILITY FOR MEMBERSHIP

(a) Each Member of the Plan as of December 31, 2006 shall continue his membership in accordance with the provisions of this restated Plan.

(b) Each other Pilot shall become a Member of the Plan on the first day of the month following his completion of a Year of Eligibility Service and his being classified as a Pilot, provided that (i) no Pilot shall commence membership after December 31, 2007 and (ii) no New Pilot shall be eligible to become a Member of the Plan at any time.

3.2 DESIGNATION OF BENEFICIARY. Except as provided in this Section 3.2, a Pilot's beneficiary shall be his surviving spouse. If the Member is not married or if the Member wishes to designate a beneficiary other than his spouse, he may do so on a form prescribed by the Retirement Board. Such a designation of a beneficiary other than a spouse shall not be effective unless consented to by the Member's spouse in a written instrument (a) in which the spouse acknowledges the effect of such election and (b) witnessed by an authorized representative of the Plan or a notary public. Such written consent shall not be required if it is established to the satisfaction of the authorized representative of the Plan that such consent may not be obtained because there is no spouse, the spouse cannot be located, or such other circumstances as Treasury Regulations may prescribe. If a Member fails to make any designation or the person so designated shall not survive the Member, or the legal entity so designated shall no longer be in existence or shall be legally incapable of receiving benefits hereunder, beneficiary shall mean the estate of the Member.

3.3 BREAK IN ELIGIBILITY SERVICE. If an Employee has a Break in Eligibility Service prior to becoming eligible for membership, he shall commence a new eligibility period. Such period shall be computed from the first date on which the Employee completes an Hour of Service next following the computation period in which the Break of Eligibility Service occurred.

3.4 TERMINATION OF MEMBERSHIP, REHIRE, OR CHANGE IN STATUS.

(a) Membership shall not be terminated by leaves of absence, military leaves of absence, or furlough, except as otherwise specifically provided in the Plan. Membership shall terminate upon the death of a Member or whenever a Member ceases to have any right to a benefit under the Plan.

(b) Subject to Sections 2.24, 4.1, 8.1, and 10.1(d), in the event a Member terminates his Service, incurs a Break in Eligibility Service, and subsequently recommences his Service as a Pilot with the Company, he shall immediately resume his active membership hereunder.

(c) In the event an Employee, who was not initially classified as a Pilot later becomes a Pilot, such Employee shall commence membership hereunder immediately upon the change in his classification, provided he has completed one Year of Eligibility Service. If a Member ceases to be classified as a Pilot, his active membership hereunder shall terminate and he shall resume his active membership immediately upon his reclassification as a Pilot.

Notwithstanding the prior two sentences, in no case may an Employee (other than a Grandfathered Member) commence or resume active membership in the Plan after December 31, 2007.

ARTICLE 4 SERVICE RULES

4.1 CREDITED SERVICE. "**Credited Service**" shall mean the sum of (a) and (b) below:

(a) Credited Service prior to March 1, 1975:

For a Member as of February 28, 1975, Credited Service shall mean his period of Continuous Service as a Pilot prior to March 1, 1975, but excluding:

(1) Service before the completion of a Year of Eligibility Service, and

(2) Periods of furlough, or authorized leaves of absence, except as provided for in Section 5.4, if such period of furlough or authorized leave of absence is less than 12 months in duration.

(b) Credited Service on and after March 1, 1975:

A Member shall accrue one month of Credited Service for each Month of Service. Effective January 1, 1988, an active Member shall continue to accrue Credited Service after his Normal Retirement Date. No Member shall accrue any Credited Service prior to his date of membership or while engaged in flying covered by the Supplemental Agreement covering the Company's Logair operation prior to January 1, 1978.

Notwithstanding any other provision of the Plan to the contrary, no Member (other than a Grandfathered Member or as provided in Section 8.10) shall accrue any Credited Service on or after the Freeze Date.

4.2 VESTED SERVICE. Vested Service shall be the sum of (a) and (b) below, subject to the provisions of Section 6.2(b).

(a) Vested Service prior to March 1, 1975:

For a Member as of February 28, 1975, or a Pilot who was not a Member on that date, his period of Continuous Service prior to March 1, 1975 shall be counted as Vested Service.

(b) Vested Service on and after March 1, 1975:

(1) For purposes of determining a Pilot's Vested Service, he shall receive credit for the aggregate of all periods of Service commencing with his first day of employment or reemployment and ending on the date a Break in Vested Service begins, except for periods of Service that may be disregarded pursuant to Section 4.2(b)(2). The first day of employment or reemployment is the first day the Pilot performs an Hour of Service in any capacity for the Company. A Pilot shall also receive Vested Service for any Period of Severance of less than 12 consecutive months. Fractional periods of a year shall be expressed in terms of months, with a period of Service in any month counting as one month of Vested Service and 12 months of Vested Service counting as one year of Vested Service.

(2) If a Pilot incurs five or more consecutive one-year Breaks in Vested Service, his pre-break Vested Service shall count in vesting of the Company-provided accrued benefit only if either:

(i) he had any nonforfeitable interest in the Company-provided accrued benefit at the time of separation from Service, or

(ii) upon returning to Service the number of consecutive one-year Breaks in Vested Service is less than the greater of (i) his Vested Service accrued prior to such break in service or (ii) five.

(3) A Pilot shall also receive Vested Service credit in accordance with the provisions of this Section 4.2 for the following employment as a Leased Employee deemed to be an Employee as provided in Sections 414(n) or (o) of the Code. For this purpose, a "**Leased Employee**" means any person (other than an employee of the recipient), who, pursuant to an agreement between the recipient and any other person ("**Leasing Organization**"), has performed services for the recipient (or for the recipient and related persons determined in accordance with Section 414(n)(6) of the Code) ("**Recipient Employer**") on a substantially full-time basis for a period of at least one year, and such services are performed under primary direction or control by the Recipient Employer. Contributions or benefits provided a Leased Employee by the Leasing Organization that are attributable to services performed for the Recipient Employer shall be treated as provided by the Recipient Employer. A Leased Employee shall not be considered an employee of the recipient if such employee is covered by a plan described in Code Section 414(n)(6).

(4) A Pilot shall also receive Vested Service credit in accordance with the provisions of this Section 4.2 for period of layoffs or furlough, regardless of whether the Member is receiving Earnings during this time, provided that such period of layoff or furlough does not exceed 12 months.

4.3 LIMITATION ON CREDITED SERVICE OR VESTED SERVICE. No computation of Credited Service or Vested Service shall permit any duplication of Credited Service or of Vested Service, nor more than one year of Credited Service or Vested Service in respect of any Plan Year.

4.4 MATERNITY/PATERNITY LEAVE. Effective January 1, 1985, a Pilot absent from work for any period by reason of pregnancy, the birth of a child, or the placement of a child with him in connection with his adoption of such child for a period beginning immediately following such birth or placement shall be granted service credit (for vesting and eligibility purposes only) equal to the lesser of such period or 12 months. If the Pilot does not return to employment with the Company after such 12-month period, the following 12-consecutive month period shall be regarded as neither a year of Eligibility Service or a year Vested Service nor a one-year of Break in Eligibility Service or a one-year Break in Vested Service. Under no circumstances shall a Pilot be granted Credited Service under this Section 4.4.

4.5 MILITARY SERVICE. Notwithstanding any provision of this Plan to the contrary:

(a) Contributions, benefits, and service credit with respect to qualified military service shall be provided in accordance with Section 414(u) of the Code;

(b) Effective as of January 1, 2007, if a Member dies while performing qualified military service (as defined in Section 414(u) of the Code), the survivors of the Member shall be entitled to any additional benefits (other than benefit accruals relating to the period of qualified military service) provided under the Plan had the Member resumed and then terminated employment on account of death; and

(c) Effective for Plan Years beginning after December 31, 2008, Section 414(u)(12) shall apply to the Plan if a Member performing qualified military service (as defined in Section 414(u) of the Code) receives differential wage payments (as defined in Section 3401(h) of the Code).

4.6 CERTAIN LEAVES OF ABSENCE. Notwithstanding any provision of this Plan, if a Pilot (i) incurred five consecutive one-year Breaks in Vested Service that ended in 1995 or 1996 due to a Company-approved leave of absence to fly for another airline and (ii) returned to active employment with the Company as a Pilot on the fifth anniversary of the commencement of such leave of absence, such Pilot's pre-break Vested Service and Credited Service shall count in the vesting and computation of the Pilot's Company-provided accrued benefit.

ARTICLE 5 CONTRIBUTIONS

5.1 NO CONTRIBUTIONS BY MEMBER; ADDITIONAL COMPANY CONTRIBUTIONS.

(a) No Contributions by Members. No Member contributions may be made under this amended and restated Plan and no Member contribution accounts made prior to the date of this amended and restated Plan remain under the Plan.

(b) Amount of Additional Company Contributions. On and after March 20, 1963, the Company shall contribute on behalf of each Member an amount equal to the sum of:

(1) 4% of the portion of his Earnings for each month which is not in excess of \$400 and

(2) 8% of the portion, if any, of his Earnings for each month which is in excess of \$400.

(c) Notwithstanding any other provision of the Plan to the contrary, a Member (other than a Grandfathered Member) shall not accrue any Additional Company Contributions on or after the Freeze Date.

5.2 INTEREST CREDITED ON ADDITIONAL COMPANY CONTRIBUTIONS.

Interest at the applicable rate specified below shall be credited on Additional Company Contributions under Section 5.1(b) made under the Plan from the January 1 following the date on which each contribution was made to the first day of the month in which occurs (a) the due date of the Member's first Pension payment, (b) the Member's death, or (c) the date the Member elects the return of his contributions, whichever event is first to occur:

(1) 2% per annum compounded annually on contributions made before June 1, 1956,

(2) 2-1/4% per annum compounded annually on contributions made on and after June 1, 1956 but before June 1, 1960, and

(3) 3% per annum compounded annually on contributions made on and after June 1, 1960.

Notwithstanding the foregoing, in no case shall interest be credited at a rate or rates be lower than the minimum, if any, required by the Secretary of the Treasury of the United States under ERISA.

5.3 COMPANY CONTRIBUTIONS.

(a) The Company shall make contributions to the Funding Agent in such amounts inclusive of the amounts required under accepted actuarial principles to fund all the benefits under the Plan as determined by an actuary selected in accordance with Section 17. The actuarial methods and assumptions used by the Actuary shall be those stated in Section 25C11 of the Basic Agreement, as amended from time to time and incorporated herein.

(b) (1) The Company shall make every effort to make monthly contributions equal to one-twelfth of the annual contribution recommended by the Actuary which shall be the normal cost plus an amount to fund the unfunded actuarial liability over a period of 20 years. However, in no event shall the monthly contribution be less than 10% of the active Members' Earnings. The payment of the 10% of the active Members' Earnings shall be made by January 15 of a Plan Year (based on the December payroll for the prior Plan Year) and then again by the 15th of each succeeding month based on the previous month's payroll. With respect to January, February, and March of each year, unless a Plan Actuary's report has been issued indicating that the monthly 10% payments would exceed the Actuary's recommended contribution, monthly payments shall be placed in an escrow account. By no later than March 31st, the amounts so escrowed shall be contributed to the Plan, except to the extent that the Plan Actuary's report has already been issued indicating that the amounts transferred would exceed the Actuary's recommended contribution for the Plan Year. If the Actuary's report issued by this date indicates that the amounts to be transferred would exceed the Actuary's recommended contribution, any excess amounts shall be returned to the Company. The monthly payments of 10% of Member's Earnings shall continue for the remainder of the Plan Year until the Actuary's recommended contribution for the Plan Year is satisfied.

(2) If the Company fails to contribute one-twelfth of the annual contribution recommended by the Actuary for three consecutive months, then the Retirement Board may request a meeting with the Company's financial officer to discuss the delinquency.

(3) If the Company does not pay one-twelfth of the annual contribution recommended by the Actuary each month, then the Company shall have until March 31 following the Plan Year to contribute any amount necessary to pay this recommended contribution. The annual contribution may be greater than the amount required to meet the minimum funding requirements of Section 412 of the Code.

(c) The Company shall not seek any waiver from the minimum funding standard pursuant to Section 412 of the Code without the prior written consent of the Association.

(d) Any forfeiture arising from a Member's termination of employment or death or for any reason prior to the termination of the Plan shall be used to reduce any Company contribution required pursuant to paragraph (b) above and shall not increase any benefits otherwise payable hereunder.

(e) The Company shall have no right, title, or interest in the contributions made by it to the Funding Agent and no part of the assets of the Plan shall revert to the Company except that, after satisfaction of all liabilities of the Plan as set forth in Section 15.2, such amount remaining as the result of an erroneous actuarial calculation may revert to the Company.

The Company's contributions are conditioned upon deductibility of such contributions under Section 404 of the Code. If, and to the extent, the deduction for any contribution by the Company is disallowed by the Internal Revenue Service, the disallowed portion of the contribution shall be returned to the Company as soon as practicable, but in no event later than one year after the date of the final disallowance of the contribution, including the final resolution of any appeals before the Internal Revenue Service or the courts. In the case of a contribution which is made by the Company by a mistake of fact, such contribution shall be returned to the Company as soon as practicable after the discovery of such mistake, but in no event later than one year after such contribution was made.

(f) The Company shall send copies of the cover letter transmitting the monthly contribution to the Funding Agent to the Pilot Members of the Retirement Board, the Actuary, and the Association.

5.4 ASSOCIATION BUSINESS. In the event a Member shall, by the authorization of the Association, render services to the Association, the Company shall contribute the amount of such contributions for such period on behalf of the Company and the Member. The Association shall reimburse the Company therefor.

ARTICLE 6 VESTING

6.1 ADDITIONAL COMPANY CONTRIBUTIONS. A Member shall have an immediate and fully vested right in contributions made pursuant to Section 5.1, which are included as part of the vested benefits in Section 6.2 and are not in addition to the benefits described in Section 8.1.

6.2 VESTING BENEFITS.

(a) A Member shall be 100% vested in the benefits provided on his behalf by Company contributions when:

- (1) he shall have attained age 50 or
- (2) he shall have completed at least five years of Vested Service.

(b) In the event a Member, upon termination of Employment, elects to make a withdrawal of his Additional Company Contributions with interest, as described in Section 11.2, he shall not forfeit his accrued vested benefit by reason of such withdrawals. His accrued vested benefit shall be reduced by the pension value of his withdrawal calculated by accumulating the amount of his withdrawal with 5% interest compounded annually to his Normal Retirement Date and converted into an annual

pension by multiplying the accumulated withdrawal by the applicable factor set forth in Exhibit C. Effective January 1, 2000, in determining such reduction, the withdrawal amount shall be converted to a pension using the following assumptions if the use of such assumptions would produce a larger remaining accrued vested benefit:

Interest assumption: The annual rate of interest on 30-year Treasury securities for the fourth calendar month preceding the commencement of the distribution.

Mortality assumption: the mortality rate determined from the table prescribed by the Secretary of the Treasury under Section 417(e)(3)(A)(ii)(I) of the Code.

(c) The Minimum Pension described in Section 8.1 (b) does not apply in the event of a vested termination, if a Member's Service terminates before he is eligible to retire under Section 7.2.

(d) No amendment or modification to the Plan which would affect (directly or indirectly) a Member's vested and non-forfeitable rights to benefits shall be permitted unless:

(1) the vested non forfeitable rights of such Member are not less than such rights computed under the Plan without regard to such amendment or modification, and

(2) if each Member who has at least three Years of Service may elect irrevocably to have his vested and non-forfeitable rights under the Plan determined without regard to such amendment or modification, the period of election to begin no later than the date the amendment or modification is adopted and end no earlier than the latest of:

(i) the date which is 60 days after the date the amendment or modification is adopted,

(ii) the date which is 60 days after the date the amendment becomes effective, or

(iii) the date which is 60 days after the date the Member receives written notice of the amendment or modification.

6.3 "CASH-OUT" OF THE VESTED ACCRUED BENEFIT. Subject to Section 7.6, the Plan shall distribute the Actuarial Equivalent value of the entire vested interest of a Terminated Vested Member or a Retired Member in his Accrued Pension Benefit. The Member may elect a single sum distribution of benefits attributable to his Additional Company Contributions under Section 5.1(b). Such distribution shall be made only on account of termination of employment. Notwithstanding any other provisions of this Plan, if a Member's entire Accrued Pension Benefit is cashed out in accordance with Section 7.6(a)(3), Service performed by the Member for which his benefits have been

cashed out shall be disregarded in determining his Accrued Pension Benefit and Credited Service under the Plan should he be rehired, except as provided in Section 6.4.

6.4 "BUY-BACK" RIGHTS. In the event a Member has previously been "cashed out" in accordance with Section 6.2(b) and Section 6.3, and he is rehired, he shall be able to elect to repay the full amount of such distribution described in Section 6.2(b) and Section 6.3 with interest on the sum of the amounts previously withdrawn compounded annually at the rate of 5% per annum, or as otherwise determined in accordance with regulations of the United States Treasury Department. Upon such repayment the Accrued Pension Benefit of such Member shall be recomputed by taking into account Credited Service previously so disregarded, except to the extent provided in Section 4.2(b)(2). This "buyback" right shall apply only in the case of a Member who:

- (a) resumes employment and is covered under the Plan, and
- (b) repays the full amount within five years of reemployment covered by the Plan of the amount distributed with interest at the rate as determined above.

ARTICLE 7 ELIGIBILITY FOR PENSION

7.1 ELIGIBILITY TO RETIRE AND RECEIVE A NORMAL PENSION. A Member shall be eligible to retire and receive a Normal Pension determined in accordance with Section 8.1 beginning as of the 60th anniversary of his date of birth. Such day shall be referred to as his "**Normal Retirement Date**".

7.2 ELIGIBILITY TO RETIRE AND RECEIVE AN EARLY PENSION. A Member who has completed ten years of Vested Service and who terminates within the 20 year period preceding his Normal Retirement Date for any reason other than death or Disability retirement in accordance with Section 7.3, shall be eligible to retire and receive an Early Pension determined in accordance with Section 8.2 beginning as of the date he so retires. Such day shall be referred to as his "**Early Retirement Date**." Such Member may elect to defer the receipt of his Early Pension until a later date, but in no event beyond his Normal Retirement Date.

7.3 ELIGIBILITY TO RETIRE AND RECEIVE A DISABILITY PENSION.

(a) A Member who becomes Disabled as defined below shall be eligible to retire and receive a "**Disability Pension**" determined in accordance with Section 8.3. A Disabled Member's Disability Retirement Date shall be the later of:

- (1) the date his application for such Disability Pension is received by the Company (such application to be made on a form provided by the Company) or
- (2) the date on which his compensable sick leave expires.

(b) A Member may elect a Disability Retirement Date as of the date his application is received by the Company. In the case of such an election, there shall be no requirement that the electing Member's compensable sick leave must have expired.

(c) For all purposes of this Plan, a Member shall be deemed to be "**Disabled**" if:

(1) his disability consists of physical unfitness or incompetency due to accident, sickness, or natural deterioration and is such that it precludes him from continuing in employment with the Company as a Pilot, and

(2) he is likely to remain so disabled as determined by the Retirement Board based on the opinion of a qualified physician.

(d) Effective as of January 1, 2001, a Pilot shall be ineligible for a Disability Pension if he:

(1) becomes injured while engaged in the commission of a felony (as such would be defined under the laws of the United States or the states or territories thereof).

(2) is disabled because of an intentionally self-inflicted injury, provided such injury is not the result of an underlying and disabling medical or psychiatric disorder.

(3) becomes disabled while serving in the armed forces of any country or as a result of war or an act of war, declared or undeclared, unless related to the performance of Service for the Company.

(4) becomes disabled while on a leave of absence and is employed with another employer which provides a disability retirement benefit or a long-term disability benefit.

(e) Notwithstanding the foregoing, no Pilot shall be eligible to retire and receive a Disability Pension determined in accordance with Section 8.3 if he becomes/became disabled (within the meaning of this Section 7.3) after June 1, 2005.

7.4 DEFERRAL OF NORMAL RETIREMENT PENSION.

(a) A Member may defer commencement of his Pension up to his Required Beginning Date (as defined in Exhibit E); provided however, that retirement benefits shall not accrue after a Member has terminated Service. A Member who wishes to defer his Normal Retirement Pension shall give written notice to the Company and the Retirement Board 60 days prior to his Normal Retirement Date of his request to defer retirement benefits.

(b) A Member who has deferred commencement of his Normal Retirement Pension and subsequently wishes to commence payment prior his Required Beginning Date shall give written notice to the Company and the Retirement Board 60 days prior to his new commencement of benefits date.

7.5 NOTICE OF RETIREMENT AND PAYMENT PROCESSING PROCEDURES.

(a) A Member shall give written notice to the Company and to the Retirement Board 120 days prior to the date of his intended normal retirement and 60 days prior to the date of his intended early retirement unless he is physically incapable of such action, in which case the Retirement Board shall take such action on behalf of such Member.

(b) The Company shall adopt the following procedures to ensure that Members shall receive monthly retirement benefits under the Plan no later than the month following the month in which they retire.

(1) Three months prior to a Member's Normal Retirement Date of normal retirement, or the announced date of early or disability retirement (to the extent disability retirement is available), if known, the Company shall process the necessary documents for forwarding to the paying agent(s).

(2) When calculating initial Pension benefits for a Member, the Company shall use the most accurate and current payroll information available. Pension entitlement shall be adjusted to reflect actual earnings as soon as possible after the Member's retirement date.

(3) A Member who has not provided the Company with a choice of retirement options as required by the Plan shall receive benefits based on the assumption that the survivor benefits payable to his/her spouse shall be fifty percent (50%) of the Member's entitlement (before adjustment for survivor benefits) as required by ERISA.

7.6 DISTRIBUTION RULES. The following rules apply to all distributions or withdrawals under the Plan.

(a) (1) If (i) either the value of a Member's vested Accrued Pension Benefit (herein "benefits") exceeds \$1,000 but does not exceed \$5,000 or there are remaining payments to be made with respect to a particular distribution option that previously commenced and (ii) the benefits are immediately distributable, the Member and the Member's spouse (or where either the Member or the spouse has died, the survivor) must consent to any distribution of such benefits. The consent of the Member and his spouse shall be obtained in writing within the 180-day period ending on the Annuity Starting Date. The Company shall notify the Member and his spouse of the right to defer any distribution until the Member's benefits are no longer immediately distributable and the consequences of failing to defer. Such notification shall (i) include a general description of the material features and an explanation of the relative values of the optional forms of benefit available under the Plan in a manner that would satisfy the notice requirements of Section 417(a)(3) of the Code and (ii) be provided no less than 30 days and no more than 180 days prior to the Annuity Starting Date. However, distribution may commence less than 30 days after the notice described in the preceding sentence is given, provided the distribution is one to which Sections 401(a)(11) and 417 of the Code do not apply, the Company clearly informs the Member that the Member has a right to a period of at least 30 days after receiving the notice to consider the decision of

whether or not to elect a distribution (and, if applicable, a particular distribution option), and the Member after receiving the notice affirmatively elects a distribution.

(2) Notwithstanding Section 7.6(a)(1), only the Member need consent to the commencement of a distribution in the form of a Qualified Joint and Survivor Annuity while the benefits are immediately distributable. Neither the consent of the Member nor his spouse shall be required to the extent that a distribution is required to satisfy Section 401(a)(9) or 415 of the Code.

(3) If the present value of a Member's vested benefits does not exceed \$1,000, the Member shall automatically receive a distribution of the value of the entire vested portion thereof. For purposes of this Section 7.6(a)(3), if the value of a Member's vested benefits is zero, the Member shall be deemed to have received a distribution thereof.

(4) Benefits are "**immediately distributable**" if any part thereof could be distributed to the Member (or surviving spouse) before the Member attains, or would have attained if deceased, the his Normal Retirement Date.

(b) (1) Unless the Member elects otherwise, distribution of benefits shall begin no later than the 60th day after the latest of the close of the Plan Year in which (i) the Member attains age 65 (or his Normal Retirement Date, if earlier), (ii) occurs the tenth anniversary of the year in which the Member commenced participation in the Plan, or (iii) the Member terminates Service with the Company. Notwithstanding the foregoing, the failure of a Member and the Eligible Spouse to consent to a distribution while a benefit is immediately distributable (within the meaning of Section 7.6(a)(4)) shall be deemed to be an election to defer commencement of payment of any benefit sufficient to satisfy this Section 7.6(b)(1).

(2) A Member may request that the payment to him of benefits under the Plan commence at a date later than the latest date provided under Section 7.6(b)(1), provided that the payment of benefits commences by the Required Beginning Date, as defined in Exhibit E. This request must be made by submitting to the Company a written statement, signed by the Member, that describes the benefit and the date on which the Member requests payment to commence. The Company shall not grant this request if such request would cause death benefits payable under the Plan with respect to the Member to be more than "incidental" within the meaning of the applicable Treasury Regulations.

(c) The requirements of Exhibit E shall apply to any distribution of a Member's benefits and shall take precedence over any inconsistent provisions of the Plan.

**ARTICLE 8
AMOUNT OF PENSION**

8.1 AMOUNT OF NORMAL PENSION.

(a) The monthly amount of "***Normal Pension***" payable to an eligible Member who retires shall be equal to one-twelfth of the sum of 2.4% of his Final Average Earnings for each of the first 25 years of Credited Service plus 1% of such Final Average Earnings for each of the next five years of Credited Service with a maximum of 30 years; provided, however, that the monthly amount of his Normal Pension shall not be less than one-twelfth of his Minimum Pension as described in Section 8.1(b). The monthly amount of normal benefit shall be equal to the greater of the monthly amount of the Normal Pension as calculated under Section 8.1(a) or the monthly amount of Early Pension under Section 8.2. Notwithstanding any other provision of the Plan to the contrary, the Normal Pension of a Member (other than a Grandfathered Member, the vacation and sick leave credit rules provided in Section 8.10, and interest accumulation under Section 8.1(b)(2)(iii)) shall not increase on or after the Freeze Date.

(b) A Minimum Pension calculated as if the Prior Plans, as in effect on February 28, 1975, had continued without change, and shall be the sum of (1) plus (2) below.

(1) The pension from the Fixed Plan shall be the greater of:

(i) 1.5% of Final Average Earnings multiplied by Credited Service not in excess of 30 years, or

(ii) \$15,000 multiplied by the ratio of his years of Service (not in excess of ten) to ten.

(2) The pension from the Variable Plan shall be determined as follows:

(i) The number of annuity units accrued to February 28, 1975 shall be multiplied by the annuity unit value as of March 31, 1975, which is \$7.368.

(ii) Next, the annual benefit determined in (i) above shall be reduced by the Pension value of the Member's contributions made under the Variable Plan prior to March 19, 1963, which were transferred to Prudential in accordance with Section 5.4(a). The Pension value of the contributions shall be calculated by dividing the value of such contributions as of March 31, 1975 by the factor in Exhibit B, based on the Member's age as of March 31, 1975.

(iii) Beginning March 1, 1975, there shall be an additional amount of Pension which can be provided at the date of retirement by assuming a Company contribution of 8% of a Member's Earnings. Each December 31 the accumulation at the prior December 31 shall be adjusted by the ratio of the Standard and Poor's 500 Stock Index at the date of valuation to the corresponding Index at the prior December 31, and to this shall be added the assumed Company contribution for

the year; provided, however, that effective January 1, 2012, the reference to the Standard and Poor's stock index shall be changed to the Vanguard Institutional Index Fund. This accumulation shall be converted to a Pension at the date of retirement by dividing the annuity factor shown in Exhibit B based on the Member's age at his date of retirement. Notwithstanding the foregoing, the total accumulation calculated using the variable plan account formula in this subsection (iii) shall not be less than the sum of the yearly 8% assumed Company contributions at the Member's annuity starting date with respect to which distribution of the entire vested benefit under this subsection (iii) commences.

(iv) As of each December 31, the annual Pension calculated in (ii) above shall also be adjusted by the change in the Standard and Poor's 500 Stock Index, described in (iii), and further divided by 1.03. The adjustment as of December 31, 1975 shall use the Index as of March 31, 1975 as a point of reference and shall be divided by 1.0225.

(3) In no event shall the annual pension under Section 8.1(b) be greater than 60% of Final Average Earnings for a Member with Credited Service of 25 years or less, and no more than the percentage stipulated below for a Member with Credited Service of more than 25 years:

<u>Years of Credited Service</u>	<u>Percentage of Final Average Earnings</u>
26	61%
27	62
28	63
29	64
30	65

(4) Notwithstanding any other provision of the Plan to the contrary, the Minimum Pension of a Member (other than a Grandfathered Member, the vacation and sick leave credit rules provided in Section 8.10, and interest accumulation under Section 8.1(b)(2)(iii)) shall not increase on or after the Freeze Date.

8.2 AMOUNT OF EARLY PENSION. The amount of "**Early Pension**" payable to any eligible Member shall be determined as follows:

(a) If his Early Retirement Date is on or after the attainment of his 50th birthday, such early retirement Pension shall be equal to one-twelfth of the greater of:

(1) His Normal Pension as provided in Section 8.1(a) based on Credited Service to his Early Retirement Date, reduced by one-fourth of 1% for each month his Early Retirement Date precedes his Normal Retirement Date, or

(2) The Minimum Pension as provided in Section 8.1(b) based on Credited Service to his Early Retirement Date, with the Pension benefit under Section 8.1(b)(1) reduced by one-fourth of 1% for each month his Early Retirement Date precedes his Normal Retirement Date. The Pension benefit under Section 8.1(b)(2)

shall be actuarially reduced using the reduction factors, as shown in Exhibit A, Column 2.

(b) If his Early Retirement Date is prior to his 50th birthday, such early retirement Pension shall be equal to one-twelfth of:

(1) His Normal Pension as provided in Section 8.1(a) based on Credited Service to his Early Retirement Date, multiplied by the applicable factor in Exhibit A, Column 1, or

(2) The Minimum Pension as provided in Section 8.1(b) based on Credited Service to his Early Retirement Date, with the Pension benefit under Section 8.1(b)(1) multiplied by the applicable factor in Exhibit A, Column 1. The Pension benefit under Section 8.1(b)(2) shall be actuarially reduced using the reduction factors, shown in Exhibit A, Column 2.

8.3 AMOUNT OF DISABILITY PENSION. The monthly amount of Disability Pension payable to any eligible Member shall be one-twelfth of the greater of the amounts determined as follows:

(a) 50% of the average of the Member's previous 12 full months of Earnings during his employment with the Company provided the Member has ten years of Service. If a Member has less than ten years of Service, his benefit shall be as follows:

<u>Full Years of Service</u>	<u>Percentage of Earnings</u>
10+	50%
9	45
8	40
7	35
6	30
5	25
4	20
3	15
2	10
Less than 2	0

(b) If his Disability Retirement Date is on or after the attainment of his 50th birthday, such Disability Pension shall be equal to one-twelfth of the greater of:

(1) His Normal Pension as provided in Section 8.1(a) based on Credited Service to his Disability Retirement Date, reduced by one-eighth of 1% for each month his Disability Retirement Date precedes his Normal Retirement Date, or

(2) The Minimum Pension as provided in Section 8.1(b) based on Credited Service to his Disability Retirement Date with the pension benefit under Section 8.1(b)(1)(i) reduced by one-fourth of 1% for each month his Disability Retirement Date precedes his Normal Retirement Date, and the Minimum Pension described in Section 8.1(b)(1)(ii) shall be unreduced. The pension benefit under

Section 8.1(b)(2) shall be actuarially reduced using the reduction factors as in effect on February 28, 1975, shown in Exhibit D, Column 2.

(c) If his Disability Retirement Date is prior to his 50th birthday, such Disability Pension shall be equal to the greater of:

(1) His Normal Pension as provided in Section 8.1(a) based on Credited Service to his Disability Retirement Date, multiplied by the applicable factor in Exhibit D, Column 1, with respect to the period that his Disability Retirement Date precedes his 50th birthday, or

(2) The Minimum Pension as provided in Section 8.1(b) based on Credited Service to his Disability Retirement Date, with the pension under Section 8.1(b)(1)(i) multiplied by the applicable factor in Exhibit A, Column 1, and the Minimum Pension described in Section 8.1(b)(1)(ii) shall be reduced by one-fourth of 1% for each month his Disability Retirement Date precedes his 50th birthday. The Pension benefit under Section 8.1(b)(2) shall be actuarially reduced using the reduction factors as in effect on February 28, 1975, shown in Exhibit D, Column 2, or

(3) \$15,000 multiplied by the ratio of his years of Service (not in excess of ten) to ten.

(d) (1) Effective January 1, 1992, Disability retirement benefits under this Section 8.3 and Section 8.5 shall be qualified disability benefits pursuant to Section 411(a)(9) of the Code. Accordingly, the Disability Pension payable to a Member on or after January 1, 1992 pursuant to this Section 8.3 and Section 8.5 shall be the lesser of (i) the amount determined by Section 8.3(a), (b), or (c) or (ii) the amount such Member would be provided if he had separated from service at his Normal Retirement Date. For the sole purpose of determining under this Section 8.3(d) the amount that such Member would be provided if he had separated from service at his Normal Retirement Date, such amount shall be calculated (i) by imputing Service and Credited Service he would have been credited with if he had continued in employment to his Normal Retirement Date, (ii) by assuming his Earnings for the twelve full months during his employment prior to his Disability would have remained unchanged until his Normal Retirement Date, and (iii) without reduction to reflect payment prior to his Normal Retirement Date.

(2) This Section 8.3(d) shall not reduce in any way any Member's accrued benefit as of July 31, 1992 (the date of the execution of the amendment to the Plan by the Company and the Association that implemented this provision for a qualified disability benefit).

(e) Effective as of June 1, 2005, a Disability Pension under this Section 8.3 shall not be payable to any Pilot who becomes/became Disabled (within the meaning of Section 7.3) after such date.

8.4 RECOVERY FROM DISABILITY. If a Member who is receiving a Disability pension recovers and is able to return to Service as a Pilot, his Disability pension shall stop as of the date he returns to Service. Subject to Sections 2.24, 4.1, 8.1, and 10.1(d),

he shall also be immediately eligible to participate in the Plan without any waiting period. His Credited Service shall include his Credited Service up to the date of disability but exclude the period of time he received his Disability Pension.

8.5 MINIMUM DISABILITY PENSION. If the Member is entitled to a Social Security disability insurance benefit, the minimum Disability Pension under Section 8.3 shall be \$1,000 per month. If the Member ceases to be entitled to the Social Security disability insurance benefit at any time prior to his Normal Retirement Date, his monthly Disability Pension thereafter shall be only the benefit, if any, to which he would be entitled under Section 8.3. In the event a Member becomes eligible for a Social Security disability insurance benefit while receiving benefits under Section 8.3, he shall receive the greater of the benefit under Section 8.3 or \$1,000 per month.

8.6 EFFECTIVE DATE OF MINIMUM PENSIONS. The Minimum Pensions described above in Section 8.1, 8.2, 8.3, and 8.5 shall become payable to those Members retiring on or after March 1, 1977. Notwithstanding any other provision of the Plan to the contrary, the Minimum Pension of a Member (other than a Grandfathered Member, the vacation and sick leave credit rules provided in Section 8.10, and interest accumulation under Section 8.1(b)(2)(iii)) shall not increase on or after the Freeze Date.

8.7 AMOUNT OF DEFERRED RETIREMENT PENSION. If a Member retires on a Deferred Retirement Date, the amount of his deferred retirement Pension shall be computed pursuant to Section 8.1 based upon his Credited Service and Earnings (including, effective January 1, 1988, Service and Earnings credited subsequent to his Normal Retirement Date) as of his Annuity Starting Date. Notwithstanding any other provision of the Plan to the contrary, the deferred retirement pension of a Member (other than a Grandfathered Member, the vacation and sick leave credit rules provided in Section 8.10, and interest accumulation under Section 8.1(b)(2)(iii)) shall not increase on or after the Freeze Date.

8.8 BENEFIT LIMITATIONS

(a) As required by ERISA, the maximum amount of yearly retirement income which may be paid to a Member under this Plan may not exceed the limitations contained in Section 415(b) of the Code taking into account the special rule contained in Section 415(b)(9). In the event that the Member's accrued annual retirement income under the Plan on December 31, 1986, exceeds the current maximum benefit described above, the Member nevertheless shall be entitled to the amount of annual retirement income to which he would otherwise have been entitled under the provisions of this Section 8.8(a) as in effect on December 31, 1986. If the Member also participated in more than one defined benefit plan maintained by the Company, the maximum amount of yearly retirement income determined for him shall apply on a pro rata basis between such plans. Effective for limitation years beginning on or after January 1, 2000, Section 415(e), as in effect as of December 31, 1999, shall cease to apply.

(b) In the event that the yearly retirement income payable to a retired Member absent the limitations of Section 8.8(a) would be greater than his yearly retirement income after application of such limitations, the yearly retirement income otherwise payable following his retirement shall be increased for each limitation year

following his retirement to reflect, as appropriate with respect to him, any increase in such limitation.

(c) Effective for limitation years ending after December 31, 2001, benefit increases resulting from the increase in the limitations of Section 415(b) of the Code shall be provided to all current and former Members (with benefits limited by Section 415(b) of the Code) who have an Accrued Benefit under the Plan immediately prior to the effective date of this Section 8.8(c) (other than an Accrued Benefit resulting from a benefit increase solely as a result of the increases in limitations under Section 415(b) of the Code).

(d) Effective for limitation years beginning on or after July 1, 2007, this Section 8.8 shall be administered in accordance with the regulations under Section 415 of the Code that apply to such limitation years.

For limitation years beginning on or after July 1, 2007, an employee's Earnings for a limitation year shall also include compensation paid by the later of 2-1/2 months after the employee's severance from employment with the Company or the end of the limitation year that includes the date of the employee's severance from employment with the Company, if the payment is regular compensation for services during the employee's regular working hours or compensation for services outside the employee's regular working hours (such as overtime or shift differential); commissions, bonuses, or other similar payments; and absent a severance from employment, the payments would have been paid to the employee while the employee continued in employment with the Company. Any payments not described above shall not be considered compensation if paid after severance from employment, even if they are paid by the later of 2-1/2 months after the date of severance from employment or the end of the limitation year that includes the date of severance from employment.

Effective for limitation years beginning after December 31, 2008, Section 414(u)(12) shall apply to the Plan if an employee performing qualified military service (as defined in Section 414(u) of the Code) receives differential wage payments (as defined in Section 3401(h) of the Code).

For limitation years beginning on or after July 1, 2007, an employee's Earnings for any limitation year shall not exceed the Section 401(a)(17) compensation limit that applies to that limitation year. If the limitation year is not the calendar year, then the Section 401(a)(17) compensation limit that applies to such limitation year shall be the Section 401(a)(17) compensation limit in effect for the respective calendar year in which such limitation year begins.

8.9 SUSPENSION OF RETIREMENT INCOME.

(a) If a Member who is receiving or entitled to retirement income payments under the Plan is employed in ERISA Section 203(a)(3)(B) service, payment of the suspendable amount of his retirement income shall be suspended until he subsequently terminates such service. Payment of the suspendable amount shall resume no later than the first day of the calendar month following the calendar month in which the Member ceases to be employed in ERISA Section 203(a)(3)(B) service.

(b) A Member who retired on an Early Retirement Date and who is employed in ERISA Section 203(a)(3)(B) service prior to attainment of his Normal Retirement Date shall upon such employment have his prior Credited Service credited in accordance with the terms of this Plan. However, the amount of the retirement income subsequently payable to such a Member shall be actuarially adjusted to reflect the retirement income received prior to his restoration to ERISA Section 203(a)(3)(B) service.

(c) No retirement income shall be suspended under this Section 8.9 unless the Member is notified, by personal delivery or certified mail, during the first calendar month in which the Plan withholds payments, that all or a portion of his retirement income is suspended. Such notification shall contain a description of the specific reasons why such payments are being suspended, a general description of this Section 8.9, a copy of this Section 8.9, and a statement that the applicable Department of Labor regulations may be found in the Code of Federal Regulations §2530.203-3. Such notification shall also inform the Member that he may request pursuant to the Plans' claim procedure set forth in Section 13.5 a review of the decision to suspend his retirement income payments.

(d) A Member receiving retirement income payments must notify the Company of any employment with the Company or an Affiliated Company. The Company may request from such a Member reasonable information for the purpose of verifying such employment or lack thereof. A Member may request pursuant to the Plan's claims procedure set forth in Section 13.5 a determination of whether specific employment shall constitute ERISA Section 203(a)(3)(B) service.

(e) For purposes of this Section 8.9:

(1) "**ERISA Section 203(a)(3)(B) service**" means (i) completion during a calendar month of 40 or more Hours of Service (as defined in 29 C.F.R. 2530.200b-2(a)(1) and (2)) with the Company, or (ii) if the Plan has not for any purpose determined or used the actual number of such Hours of Service, receipt of payment from the Company for any Hours of Service performed on each of eight or more days (or separate work shifts) in a calendar month.

(2) The term "**suspendable amount**" means an amount equal to the portion of the Member's monthly retirement income derived from Company contributions to the Plan.

8.10 SPECIAL VACATION AND SICK LEAVE CREDIT RULES.

(a) A Grandfathered Member retiring on or after his Normal Retirement Date who has vacation remaining to his credit shall have such vacation's dollar value taken into consideration in the determination of his Final Average Earnings only to the extent that the consideration of such vacation does not cause a decrease in such Member's Final Average Earnings. The salary to be used in the valuation thereof shall be that in effect on his last day of active Service. The number of days of vacation remaining as of such Member's last day of active Service, plus the days equal to the accrual on said vacation, shall be added to the end of his 36 month period for purposes of Final Average Earnings and a similar amount of days subtracted from the beginning of the 36 months.

The Earnings to be added to the end of the 36 month period shall be based on Earnings as of the last day of active Service. The Earnings to be subtracted from the front end of the 36 month period shall be taken from such Member's pay record. If a Member's benefit was frozen prior to his Normal Retirement Date, the dollar value of the vacation described in this Section 8.10(a) shall be based on the pay rates in effect on the Freeze Date.

(b) A Member retiring on an Early Retirement Date who has vacation remaining to his credit and elects to take payment of such accrued vacation shall not have such vacation included in the computation of either Credited Service or Final Average Earnings.

(c) For a Member retiring on a Disability Retirement Date who, after becoming Disabled on or before May 31, 2005, elects to receive payment for accrued vacation after his compensable sick leave is exhausted, such payment shall be considered payment upon termination and shall not be used in the computation for Credited Service but shall be used in the computation for Final Average Earnings to the extent the consideration of such vacation does not cause a decrease in a Member's Final Average Earnings.

(d) A Member retiring on or after his Normal Retirement Date who has a minimum of 225 hours of sick leave remaining to his credit shall have such credits converted into Credited Service (utilizing 75 hours per month) for purposes of determining his Pension in accordance with Section 8.1(a). If a Member's benefit was frozen prior to his Normal Retirement Date, the additional Credited Service described in this Section 8.10(d) shall be added to extend his Credited Service beyond the original Freeze Date (e.g., if his sick leave converted into 4 months of Credited Service, his Credited Service would extend through April 30, 2008).

ARTICLE 9 PAYMENT AND OPTIONAL FORMS OF BENEFITS

9.1 NORMAL FORM OF PENSION. Except as otherwise specifically provided, a Member's Pension shall be paid in equal monthly payments, commencing on the Member's Normal Retirement Date, Early Retirement Date, Disability Retirement, or Deferred Retirement Date, whichever is applicable, and continuing thereafter for life, with the last payment on the first day of the month in which his death occurs with provision for survivors benefits or a refund in accordance with Section 10. However, such Member who does not have a Spouse may elect to have his benefit paid out in one of the optional forms of benefits described in Section 9. Any such election must be made within the 180-day period ending on the Annuity Starting Date. If the Member has a Spouse, his normal form of Pension shall be a Qualified Joint and Survivor Annuity, unless the Member and spouse elect an optional form of benefit as described below.

9.2 ELIGIBILITY FOR ELECTION OF OPTIONAL FORM OF BENEFIT.

(a) In lieu of the normal form of Pension specified in Section 9.1, a Member may elect to have his monthly benefits payable to him on a basis other than the normal

form, by making a Qualified Election. Such optional form of benefit shall be the Actuarial Equivalent of the normal form of Pension otherwise payable.

(b) An election not to take his benefit in the normal form shall be made by Qualified Election. A “**Qualified Election**” shall mean a Member’s election, designation, or waiver made in accordance with this Section 9.2(b) and in the form and manner prescribed by the Retirement Board.

(1) Not less than 30 days nor more than 180 days prior to the Member’s Annuity Starting Date, the Company shall furnish the Member with a written explanation of the Member’s normal form of benefit. This explanation shall describe (i) the terms and conditions of a Qualified Joint and Survivor Annuity; (ii) the Member’s right to make and the effect of an election to waive the Qualified Joint and Survivor Annuity; (iii) the rights of a Member’s Spouse; (iv) the right to make, and the effect of, or revocation of a previous election to waive the Qualified Joint and Survivor Annuity; and (v) the relative values of the various optional forms of benefits under the Plan.

(2) The Member may, within the 180-day period ending on the Annuity Starting Date, make a Qualified Election to waive such normal form of payment and elect an optional form of benefit provided under Section 9.2. The Spouse of the Member must consent in writing to such election of an optional form and must acknowledge the effect of such election. If a beneficiary other than the Spouse is designated, the Spouse must acknowledge the designation of such specific beneficiary, which may not be changed without the written consent of such Spouse. A Member’s waiver of the Qualified Joint and Survivor Annuity shall not be effective unless the election designates a form of benefit payment which may not be changed without the consent of the Spouse. If the Annuity Starting Date is prior to the Member’s Normal Retirement Date, and the Member waives the Qualified Joint and Survivor Annuity, the Spouse must also consent to such Annuity Starting Date. No consent obtained under this provision shall be valid unless the Member has received the written explanation described in this Section. The Spouse’s consent to a Qualified, Election must be witnessed by a notary public or a Plan representative.

The Annuity Starting Date for a distribution in a form other than a Qualified Joint and Survivor Annuity may be less than 30 days after receipt of the written explanation described in the preceding paragraph provided (i) the Member has been provided with information that clearly indicates that the Member has at least 30 days to consider whether to waive the Qualified Joint and Survivor Annuity and elect (with spousal consent) to a form of distribution other than a Qualified Joint and Survivor Annuity; (ii) the Member is permitted to revoke any affirmative distribution election at least until the Annuity Starting Date, or if later, at any time prior to the expiration of the seven-day period that begins the day after the explanation of the Qualified Joint and Survivor Annuity is provided to the Member; and (iii) the Annuity Starting Date is a date after the date that the written explanation was provided to the Member.

(3) Notwithstanding this consent requirement, if the Member warrants to the Retirement Board that such written consent may not be obtained because there is no Spouse or the Spouse cannot be located, a waiver without spousal consent shall be deemed a Qualified Election.

(4) A Qualified Election under this Section 9 shall be valid only with respect to the Spouse who consented to the Qualified Election (or in the event of a deemed Qualified Election, with respect to a Spouse who cannot be located shall be effective only as to such Spouse). Additionally, a revocation of a prior waiver may be made by a Member without the consent of the Spouse at any time during the 180-day election period ending on the Annuity Starting Date, but any subsequent waiver shall again be subject to the foregoing rules. The number of revocations and subsequent waivers shall not be limited during any applicable election period.

(c) For purposes of this Section 9, the term "**Spouse**" shall mean the person to whom a Member is married on the first day of the first period with respect to which an amount is received as an annuity, or in the case of a Member who dies prior to the first day of such period, the person to whom the deceased Member is married on the date of death, as defined in Section 10.4(a). To the extent required under a Qualified Domestic Relations Order, a former Spouse shall be treated as a Spouse.

(d) For purposes of this Section 9, the term "**Qualified Joint and Survivor Annuity**" shall mean an unreduced Pension for the life of the Member with a 50% survivor annuity for the life of the spouse commencing on the first day of the month following the Member's death.

9.3 JOINT AND SURVIVOR ANNUITY OPTION. In accordance with Section 9.2, a Member may elect a contingent annuitant with respect to his benefits, in which case the payments provided for shall be actuarially adjusted accordingly. If this option is elected within one year preceding the Normal Retirement Date or the date of retirement, whichever is earlier, evidence of good health of the Member satisfactory to the Retirement Board must be provided. In no event shall election of this option reduce the monthly benefit to the retiring Pilot to less than 50% of the benefit he would receive if the benefit were paid in the normal form. The joint and survivor benefit is an immediate annuity for the life of the Member with a Survivor annuity after the death of the Member for the life of the contingent annuitant that is equal to 50%, 66 2/3%, 75% or 100% of the benefit payable during the Member's life. The benefits payable under this option are the Actuarially Equivalent of the normal form of benefit. If the contingent annuitant is not the Member's Spouse, then the availability of a percentage option may be limited by the MDIB rule in Treasury Regulation Section 1.401(a)(9)-6, Q&A2(c).

In accordance with Section 9.2, a Member who has an Eligible Spouse may elect to have his benefit paid in the form of a Qualified Optional Survivor Annuity. A "**Qualified Optional Survivor Annuity**" shall mean an immediate annuity (i) for the life of the Member with a survivor annuity for the life of the Eligible Spouse to whom he/she is married at his Annuity Starting Date that is 75% of the amount of the benefit payable during the joint lives of the Member and the Eligible Spouse, and (ii) that is the Actuarial Equivalent of a single life annuity for the life of the Member, or if greater, any optional form of benefit.

9.4 LEVEL INCOME OPTION. In accordance with Section 9.2, a Member may elect a level income option so as to retire on a "level income basis" providing increased monthly payments from his retirement to either age 62 or age 65 with provisions for reduced payments thereafter to the extent that such method of payment may be

reasonably calculated to provide, together with Social Security benefits, level income. Such optional benefit shall be the Actuarial Equivalent of the benefit payable in the event such optional form of Pension had not been elected. Such option shall not be subject to revocation or change after benefit payments commence. If this option is elected less than one year preceding the Normal Retirement Date or actual retirement, whichever is earlier, evidence of good health of the Member satisfactory to the Retirement Board must be provided.

9.5 LIFE ANNUITY OPTION. In accordance with Section 9.2, a Member may elect to convert the actuarial value of his Normal Retirement Benefit (including the value of his refund payments until his Additional Company Contributions with interest shall have been repaid) to a retirement benefit in a greater amount which shall be payable for the Member's life only. In such case, no death benefit shall be payable.

9.6 PERIOD CERTAIN OPTION. In accordance with Section 9.2, a Member may elect to convert the actuarial value of his Normal Retirement Benefit into a benefit in a different amount, but with provisions for the continuance of payments for either five, ten, or 15 years certain and life thereafter and with additional provision for commutation of future payments, if any, in case of death. If this option is elected within one year preceding the Normal Retirement Date or the date of retirement, whichever is earlier, evidence of good health of the Member satisfactory to the Retirement Board must be provided.

9.7 EXERCISE OF OPTION. Optional forms of retirement benefits in order to be elected effectively shall be applied for on written application forms furnished by the Retirement Board and signed by the Member and delivered to the Retirement Board prior to actual retirement of the Member, and must otherwise comply with the provision hereinbefore set forth with respect to the right to optional retirement benefits. Before any benefits are paid, the Member must supply the Retirement Board with all required information the Retirement Board deems necessary for the payment of benefits.

9.8 RETIREMENT BOARD RULES. The Retirement Board shall have the power to formulate administrative rules with respect to the election of, and payments under, any such optional forms of payment, which rules, however, shall not be inconsistent with the provisions of the Plan.

9.9 CONDITIONS APPLICABLE TO OPTIONAL FORM OF BENEFIT. The election of and payment under any option effected pursuant to the provisions of this Section 9 shall be subject to the following conditions:

(a) Payments under any option under the terms of which monthly payments are to be made shall be payable as of the first day of each month. The first such payment shall be made as of the first day of the month coincident with or next following the Member's date of actual retirement under the Plan and the last such payment shall be the payment due as of the first day of the month in which occurs the death of the last person entitled to benefit payments under such option.

(b) If the contingent annuitant designated by the Member under Section 9.3 should die prior to the Member's Normal Retirement Date or Early Retirement Date, the

option elected by him shall be canceled automatically and monthly Pension of the normal form and amount shall be applicable to such Member upon his retirement hereunder, unless prior to his actual retirement date, a new election shall have been made in accordance with the provisions of this Section 9.

(c) If the Joint and Survivor Annuity option under Section 9.3 shall have been made effective in respect to a Member whose actual retirement has been deferred beyond his Normal Retirement Date, Pension payments shall commence under such option, notwithstanding the schedule commencement date thereof, as of the first day of the month next following the month in which the Member (i) retires, or (ii) dies, whichever first occurs, payable in the latter event as if the Member had retired hereunder on the day preceding the date of his death.

9.10 NO PAYMENT UNTIL EMPLOYMENT TERMINATED. Except as required by Section 401(a)(9) of the Code, under no circumstances shall payment of benefits commence prior to actual termination of employment with the Company.

9.11 DIRECT ROLLOVERS.

(a) To the extent required by Section 401(a)(31) of the Code, a Member may elect to have any portion or all of an "eligible rollover distribution" that is equal to at least \$500 paid directly to an "eligible retirement plan" specified by the Member in a direct rollover, subject to the Qualified Election requirements under Section 9.2(b).

(b) For purposes of this Section 9.11, the following definitions shall apply:

(1) **Eligible rollover distribution:** An eligible rollover distribution is any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary or for a specified period of ten years or more; any distribution to the extent such distribution is required under Section 401(a)(9) of the Code; any hardship distribution described in Section 401(k)(2)(B)(i)(IV) of the Code; the portion of any distribution that is not includible in gross income (determined without regard to the exclusion for net unrealized appreciation with respect to employer securities); and any other distribution that is reasonably expected to total less than \$200 during a year.

A distribution shall not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income. However, such portion may be transferred only to an individual retirement account or annuity described in Section 408(a) or (b) of the Code, or to a qualified defined contribution plan described in Section 401(a) or 403(a) of the Code that agrees to separately account for amounts so transferred, including separately accounting for the portion of such distribution which is includible in gross income and the portion of such distribution which is not so includible.

(2) **Eligible retirement plan:** An eligible retirement plan is an individual retirement account described in Section 408(a) of the Code, an individual retirement annuity described in Section 408(b) of the Code, an annuity plan described in Section 403(a) of the Code, or a qualified trust described in Section 401(a) of the Code, that accepts the distributee's eligible rollover distribution. However, in the case of an eligible rollover distribution to the surviving spouse, an eligible retirement plan is an individual retirement account or individual retirement annuity.

An eligible retirement plan shall also mean an annuity contract described in Section 403(b) of the Code and an eligible plan under Section 457(b) of the Code which is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or political subdivision of a state and which agrees to separately account for amounts transferred into such plan from this Plan. The definition of eligible retirement plan shall also apply in the case of a distribution to a surviving spouse, or to a spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Code.

Notwithstanding the foregoing, if a rollover is subject to Section 402(c)(11) of the Code, an "eligible retirement plan" must be an individual retirement plan described in clause (i) or (ii) Section 402(c)(8)(B) established for the purposes of receiving the distribution on behalf of an individual who is a designated beneficiary (as defined by Section 401(a)(9)(E) of the Code) of the Employee or former Employee and who is not the surviving spouse of the Employee or former Employee.

(3) **Distributee:** A distributee includes an Employee or former Employee. In addition,

(i) the Employee's or former Employee's surviving spouse and the Employee's or former Employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Code, shall also be a distributee with regard to the interest of the spouse or former spouse, and

(ii) an individual who is a designated beneficiary (as defined by Section 401(a)(9)(E) of the Code) of the Employee or former Employee and who is not the surviving spouse of the Employee or former Employee shall also be a distributee with regard to the interest of such individual.

To the extent provided in rules prescribed by the Secretary of the Treasury, a trust maintained for the benefit of one or more designated beneficiaries shall be treated in the same manner as a trust designated beneficiary.

(4) **Direct rollover:** A direct rollover is a payment by the Plan to the eligible retirement plan specified by the distributee.

(c) If a beneficiary (other than the Member's spouse) is considered to be a "designated beneficiary" as set forth in Section 401(a)(9)(E) of the Code, such beneficiary may establish a specific IRA (an "***inherited IRA***") into which all or a portion of a death benefit distribution (to which such non-spouse designated beneficiary is

entitled) can be transferred directly as a direct rollover, provided that such a distribution shall not be eligible for such rollover to the extent it is a required minimum distribution under Section 401(a)(9) of the Code. Such a nonspouse rollover shall be subject to the requirements of Section 402(c)(11) of Code.

ARTICLE 10 DEATH AND SURVIVORS' BENEFITS AND BENEFICIARY DESIGNATION

10.1 DEATH PRIOR TO RETIREMENT.

(a) In the event of the death of a Member, other than an Inactive Member, prior to the commencement of his retirement benefits, his "Eligible Survivors," as defined in Section 10.4 below, shall be entitled to receive a monthly benefit equal to the applicable percentage of such Member's Final Average Earnings:

- (1) If death occurs prior to age 50
 - 40% while there are three or more Eligible Survivors
 - 35% while there are two Eligible Survivors
 - 30% while there is one Eligible Survivor
- (2) If death occurs at or after age 50
 - 40% while there are two or more Eligible Survivors
 - 35% while there is one Eligible Survivor

In the case of a surviving spouse, the benefit under this Section 10.1(a) shall not be less than the benefit payable to such spouse under the Qualified Preretirement Survivor Annuity of Section 10.6.

(b) Such applicable percentage benefit shall also be payable to the Eligible Survivors of a Terminated Vested Member who terminated his employment with the Company after becoming eligible for an Early Pension and whose death occurs prior to the commencement of his retirement benefits.

(c) The benefit determined in accordance with the above schedules shall be adjusted effective with the first day of the month following a reduction in the number of Eligible Survivors. In the event that an Eligible Survivor is a spouse, benefits shall be payable for his or her lifetime. In the event the Eligible Survivor is a Dependent, benefits shall be payable until the Dependent attains the age specified in Section 10.4.

(d) This Section 10.1(d) shall apply to a Member who was on the Company's Pilot system seniority list as of January 1, 2006 (including, but not limited to, a Member who was on furlough on that date), whose benefit under this Plan was frozen on the Freeze Date, and who as of his death was an active Member in the Hawaiian Airlines,

Inc. Pilots' 401(k) Plan. Such a Member's Final Average Earnings for purposes of Section 10.1(a) shall be determined as of his date of death to include Earnings after the Freeze Date. The death benefit so calculated shall be reduced by the value of his Target Benefit Account in the Hawaiian Airlines, Inc. Pilots' 401(k) Plan as of his date of death. To effect such reduction, the value of his Target Benefit Account shall be converted to a monthly annuity using the Applicable Mortality Table (based upon the surviving spouse's age at the Member's date of death) and the Applicable Interest Rate if such Member has a surviving spouse eligible for death benefits under this Section 10.1 or (ii) the longest potential payout period and Applicable Interest Rate if such Member is survived only by non-spousal dependents eligible for death benefits under Section 10.1. Notwithstanding the foregoing, any benefit hereunder shall not exceed the "Incidental" death benefit permitted under the Code.

10.2 DEATH WHILE RECEIVING DISABILITY BENEFITS. In the event of the death of a Pilot who is receiving Disability benefits from the Plan, or who is eligible to receive Disability benefits except that his Company-paid sick leave has not expired, a benefit of 50% of the deceased Pilot's Disability Pension shall be payable to his Eligible Survivors. In the event that there are two or more Eligible Survivors, an additional one-twelfth of such deceased Pilot's benefits shall be payable until the number of Eligible Survivors reduces to one or until the Pilot would, if living, have attained age 65, whichever occurs first. In the event that an Eligible Survivor is a spouse, benefits shall be payable for his lifetime. Upon the death of the Eligible Spouse, benefit payments shall cease. Effective as of June 1, 2005, benefits under this Section 10.2 shall not be payable in connection with any Pilot who becomes/became Disabled (within the meaning of Section 7.3) after such date.

10.3 DEATH AFTER NORMAL OR EARLY RETIREMENT. In the event of the death of a Pilot after normal or early retirement, a benefit equal to 50% of the deceased Pilot's benefit as described in Section 8.1 or 8.2 shall be payable to his Eligible Survivors. In the event that there are two or more Eligible Survivors, an additional one-twelfth of such deceased Pilot's benefits shall be payable until the number of Eligible Survivors reduces to one or until the Pilot would, if living, have attained age 65, whichever comes first. In the event that an Eligible Survivor is a spouse, benefits shall be payable for her lifetime.

10.4 DEFINITION OF ELIGIBLE DEPENDENTS AND SURVIVORS. The eligible dependents and survivors of a Pilot, "Eligible Survivor(s)," are defined as follows:

- (a) His spouse who, at the time of his Disability, retirement or death:
 - (1) is his legally married spouse, and
 - (2) is not legally separated from him, and
 - (3) has been married to him for at least one year, except that if benefits become payable within one year following the marriage, benefits shall be paid if it is established that the Pilot was in good health at the time of such marriage.

(b) His natural or legally adopted child, stepchild, or child related to him by blood or marriage who, at the time of his Disability, retirement or death:

(1) is under the age of 19 years (or under the age of 23 years if the child is enrolled as a full-time student in an educational institution), except that the eligibility of a child who is mentally or physically incapacitated shall continue beyond such age 19 or age 23 so long as the child remains incapacitated, dependent, unmarried, and is not engaged in normal, full-time employment;

(2) receives more than 50% of his support from the Pilot;

(3) is unmarried; and

(4) is not engaged in full-time employment.

(c) Miscellaneous eligibility requirements for dependents shall include the following:

(1) In the event that a Pilot marries while on Disability benefit status or after his Normal Retirement Date or Early Retirement Date, his spouse shall not be considered to be an eligible dependent or survivor until or unless the Pilot returns to the active Service of the Company as a Pilot.

(2) Children conceived or adopted while a Pilot is on Disability benefit status, or after his Normal Retirement Date or Early Retirement Date, shall not be considered to be dependents or survivors until or unless the Pilot returns to the active Service of the Company as a Pilot.

(3) Benefit payments to a Pilot's surviving children shall be continued while they are eligible even though the surviving spouse remarries.

10.5 PROOF OF DEATH. No death benefit shall be payable until the Retirement Board has received proof of death in a form satisfactory to it.

10.6 QUALIFIED PRERETIREMENT SURVIVOR ANNUITY.

(a) In the case of a Member who terminated his employment with the Company after becoming eligible for an Early Pension and whose death occurs prior to the commencement of his retirement benefit, this Section 10.6 shall apply in lieu of the prior sections of this Section 10 if the Qualified Preretirement Survivor Annuity results in a larger monthly payment to such Member's surviving spouse. The surviving Eligible Spouse of a Terminated Vested Member who terminated his employment with the Company before becoming eligible for an Early Pension and whose death occurs prior to the commencement of his retirement benefit shall be entitled to a Qualified Preretirement Survivor Annuity.

(b) For purposes of this Section 10.6, "**Qualified Preretirement Survivor Annuity**" means a survivor annuity for the life of the surviving spouse of the Member under which the payments to the surviving Eligible Spouse are not less than the

amounts that would be payable as a Qualified Joint and Survivor Annuity under Section 9 if:

(1) In the case of a Member who dies after the date on which he attained his earliest retirement age under the Plan, such Member had retired with an immediate Qualified Joint and Survivor Annuity (as defined in Section 9) on the day before his date of death, or

(2) In the case of a Member who dies on or before the date on which he would have attained his earliest retirement age under the Plan, he had separated from Service on his date of death, survived to and retired on the earliest date on which he could have retired under the Plan with an immediate Qualified Joint and Survivor Annuity (as defined in Section 9), and then died the next day. Such survivor annuity shall commence to be paid as of the month in which the Member would have attained his earliest retirement age under the Plan.

(c) If a Member who is vested in all or a portion of his accrued benefit dies prior to commencement of distribution of his accrued benefit, his surviving Eligible Spouse shall receive a Qualified Preretirement Survivor Annuity on the first day of the month following the date on which the Member would have reached his earliest retirement date had he survived (if death occurred before the earliest retirement date) or on the first day of the first month following the date of death if such age was already achieved. If the present value of the Qualified Preretirement Survivor Annuity as of the date of the commencement of payment does not exceed \$1,000, the Plan may at its option distribute such value in a lump sum rather than paying such value in the form of an annuity.

(d) The Plan shall fully subsidize the cost of providing the Qualified Preretirement Survivor Annuity.

(e) Upon the death of the Eligible Spouse, benefit payments shall cease.

10.7 DISTRIBUTION TO MINOR OR INCOMPETENT

If any individual to whom a benefit is payable under the Plan is a minor, or if the Plan Administrator determines that any individual to whom a benefit is payable under the Plan is incompetent to receive such payment or to give a valid release thereof, then the Plan Administrator may direct that such distribution be paid to the legal guardian, or if none, to a parent of such minor or incompetent, or a responsible adult with whom the minor or incompetent resides, or to a custodian for a minor under the Uniform Transfers to Minors Act (or other statutes of similar relevance), if permitted by the laws of the state in which the minor or incompetent resides. Payment to the legal guardian, parent or custodian of a minor beneficiary shall fully discharge the Trustee, the Plan Administrator, the Company, the Retirement Board, and the Plan from liability on account thereof.

10.8 LOCATION OF MEMBER OR BENEFICIARY UNKNOWN. If a Member or beneficiary who is entitled to a distribution cannot be located and the Plan Administrator has made reasonable efforts to locate the Member or beneficiary, then the Member's or beneficiary's Accrued Pension Benefit shall be forfeited and used as set forth in Section

5.3(d). If the Member or beneficiary makes a claim for the Accrued Pension Benefit (such claim shall be made in accordance with the Plan Administrator's procedures at such time) subsequent to the forfeiture, then the Plan Administrator shall cause the Accrued Pension Benefit to be reinstated, without adjustment for earnings from the date of the forfeiture.

10.9 LIMITATIONS APPLICABLE IF THE PLAN'S ADJUSTED FUNDING TARGET ATTAINMENT PERCENTAGE IS LESS THAN 80 PERCENT OR IF THE COMPANY IS IN BANKRUPTCY

(a) Limitations Applicable If the Plan's Adjusted Funding Target Attainment Percentage Is Less Than 80 Percent, But Not Less Than 60 Percent. Notwithstanding any other provisions of the Plan, if the Plan's adjusted funding target attainment percentage for a Plan Year is less than 80 percent (or would be less than 80 percent to the extent described in Section (a)(2) below) but is not less than 60 percent, then the limitations set forth in this Section (a) apply.

(1) 50 Percent Limitation on Single Sum Payments, Other Accelerated Forms of Distribution, and Other Prohibited Payments. A Member or beneficiary is not permitted to elect, and the Plan shall not pay, a single sum payment or other optional form of benefit that includes a prohibited payment with an annuity starting date on or after the applicable Section 436 measurement date, and the Plan shall not make any payment for the purchase of an irrevocable commitment from an insurer to pay benefits or any other payment or transfer that is a prohibited payment, unless the present value of the portion of the benefit that is being paid in a prohibited payment does not exceed the lesser of:

(i) 50 percent of the present value of the benefit payable in the optional form of benefit that includes the prohibited payment; or

(ii) 100 percent of the PBGC maximum benefit guarantee amount (as defined in Section 1.436-1(d)(3)(iii)(C) of the Treasury Regulations).

The limitation set forth in this Section (a)(1) does not apply to any payment of a benefit which under Section 411(a)(11) of the Code may be immediately distributed without the consent of the Member. If an optional form of benefit that is otherwise available under the terms of the Plan is not available to a Member or beneficiary as of the annuity starting date because of the application of the requirements of this Section (a)(1), the Member or beneficiary is permitted to elect to bifurcate the benefit into unrestricted and restricted portions (as described in Section 1.436-1(d)(3)(iii)(D) of the Treasury Regulations). The Member or beneficiary may also elect any other optional form of benefit otherwise available under the Plan at that annuity starting date that would satisfy the 50 percent/PBGC maximum benefit guarantee amount limitation described in this Section (a)(1), or may elect to defer the benefit in accordance with any general right to defer commencement of benefits under the Plan.

(2) Plan Amendments Increasing Liability for Benefits. No amendment to the Plan that has the effect of increasing liabilities of the Plan by reason of increases in benefits, establishment of new benefits, changing the rate of benefit accrual, or changing the rate at which benefits become nonforfeitable shall take effect in a Plan Year if the adjusted funding target attainment percentage for the Plan Year is:

- (i) Less than 80 percent; or
- (ii) 80 percent or more, but would be less than 80 percent if the benefits attributable to the amendment were taken into account in determining the adjusted funding target attainment percentage.

The limitation set forth in this Section (a)(2) does not apply to any amendment to the Plan that provides a benefit increase under a Plan formula that is not based on Earnings, provided that the rate of such increase does not exceed the contemporaneous rate of increase in the average wages of Members covered by the amendment.

(b) Limitations Applicable If the Plan's Adjusted Funding Target Attainment Percentage Is Less Than 60 Percent. Notwithstanding any other provisions of the Plan, if the Plan's adjusted funding target attainment percentage for a Plan Year is less than 60 percent (or would be less than 60 percent to the extent described in Section (b)(2) below), then the limitations in this Section (b) apply.

(1) Single Sums, Other Accelerated Forms of Distribution, and Other Prohibited Payments Not Permitted. A Member or beneficiary is not permitted to elect, and the Plan shall not pay, a single sum payment or other optional form of benefit that includes a prohibited payment with an annuity starting date on or after the applicable Section 436 measurement date, and the Plan shall not make any payment for the purchase of an irrevocable commitment from an insurer to pay benefits or any other payment or transfer that is a prohibited payment. The limitation set forth in this Section (b)(1) does not apply to any payment of a benefit which under Section 411(a)(11) of the Code may be immediately distributed without the consent of the Member.

(2) Shutdown Benefits and Other Unpredictable Contingent Event Benefits Not Permitted to Be Paid. An unpredictable contingent event benefit with respect to an unpredictable contingent event occurring during a Plan Year shall not be paid if the adjusted funding target attainment percentage for the Plan Year is:

- (i) Less than 60 percent; or
- (ii) 60 percent or more, but would be less than 60 percent if the adjusted funding target attainment percentage were redetermined applying an actuarial assumption that the likelihood of occurrence of the unpredictable contingent event during the Plan Year is 100 percent.

(3) Benefit Accruals Frozen. Benefit accruals under the Plan shall cease as of the applicable Section 436 measurement date. In addition, if the Plan is required to cease benefit accruals under this Section (b)(3), then the Plan is not permitted to be amended in a manner that would increase the liabilities of the Plan by reason of an increase in benefits or establishment of new benefits.

(c) Limitations Applicable If the Company Is In Bankruptcy. Notwithstanding any other provisions of the Plan, a Member or beneficiary is not permitted to elect, and the Plan shall not pay, a single sum payment or other optional form of benefit that includes a prohibited payment with an annuity starting date that occurs during any period in which the Company is a debtor in a case under title 11, United States Code, or similar Federal or State law, except for payments made within a Plan Year with an annuity starting date that occurs on or after the date on which the Plan's enrolled actuary certifies that the Plan's adjusted funding target attainment percentage for that Plan Year is not less than 100 percent. In addition, during such period in which the Company is a debtor, the Plan shall not make any payment for the purchase of an irrevocable commitment from an insurer to pay benefits or any other payment or transfer that is a prohibited payment, except for payments that occur on a date within a Plan Year that is on or after the date on which the Plan's enrolled actuary certifies that the Plan's adjusted funding target attainment percentage for that Plan Year is not less than 100 percent. The limitation set forth in this Section (c) does not apply to any payment of a benefit which under Section 411(a)(11) of the Code may be immediately distributed without the consent of the Member.

(d) Provisions Applicable After Limitations Cease to Apply.

(1) Resumption of Prohibited Payments. If a limitation on prohibited payments under Section (a)(1), Section (b)(1), or Section (c) applied to the Plan as of a Section 436 measurement date, but that limit no longer applies to the Plan as of a later Section 436 measurement date, then that limitation does not apply to benefits with annuity starting dates that are on or after that later Section 436 measurement date.

(2) Resumption of Benefit Accruals. If a limitation on benefit accruals under Section (b)(3) applied to the Plan as of a Section 436 measurement date, but that limitation no longer applies to the Plan as of a later Section 436 measurement date, then benefit accruals shall resume prospectively and that limitation does not apply to benefit accruals that are based on service on or after that later Section 436 measurement date, except as otherwise provided under the Plan. The Plan shall comply with the rules relating to partial years of participation and the prohibition on double proration under Department of Labor regulation 29 CFR Section 2530.204-2(c) and (d).

(3) Shutdown and Other Unpredictable Contingent Event Benefits. If an unpredictable contingent event benefit with respect to an unpredictable contingent event that occurs during the Plan Year is not permitted to be paid after the occurrence of the event because of the limitation of Section

(b)(2), but is permitted to be paid later in the same Plan Year (as a result of additional contributions or pursuant to the enrolled actuary's certification of the adjusted funding target attainment percentage for the Plan Year that meets the requirements of Section 1.436-1(g)(5)(ii)(B) of the Treasury Regulations), then that unpredictable contingent event benefit shall be paid, retroactive to the period that benefit would have been payable under the terms of the Plan (determined without regard to Section (b)(2)). If the unpredictable contingent event benefit does not become payable during the Plan Year in accordance with the preceding sentence, then the Plan is treated as if it does not provide for that benefit.

(4) Treatment of Plan Amendments That Do Not Take Effect.

If a Plan amendment does not take effect as of the effective date of the amendment because of the limitation of Section (a)(2) or Section (b)(3), but is permitted to take effect later in the same Plan Year (as a result of additional contributions or pursuant to the enrolled actuary's certification of the adjusted funding target attainment percentage for the Plan Year that meets the requirements of Section 1.436-1(g)(5)(ii)(C) of the Treasury Regulations), then the Plan amendment must automatically take effect as of the first day of the Plan Year (or, if later, the original effective date of the amendment). If the Plan amendment cannot take effect during the same Plan Year, then it shall be treated as if it were never adopted, unless the Plan amendment provides otherwise.

(e) Notice Requirement. The Plan Administrator shall provide the notice required by Section 101(j) of ERISA, which require the Plan Administrator to provide a written notice to Members and beneficiaries within 30 days after certain specified dates if the Plan has become subject to a limitation described in Section (a)(1), Section (b), or Section (c).

(f) Methods to Avoid or Terminate Benefit Limitations. See Section 436(b)(2), (c)(2), (e)(2), and (f) of the Code and Section 1.436-1(f) of the Treasury Regulations for rules relating to employer contributions and other methods to avoid or terminate the application of the limitations set forth in Sections (a) through (c) for a Plan Year. In general, the methods a plan sponsor may use to avoid or terminate one or more of the benefit limitations under Sections (a) through (c) for a Plan Year include employer contributions and elections to increase the amount of Plan assets which are taken into account in determining the adjusted funding target attainment percentage, making an employer contribution that is specifically designated as a current year contribution that is made to avoid or terminate application of certain of the benefit limitations, or providing security to the Plan.

(g) Special Rules.

(1) Rules of Operation for Periods Prior to and After Certification of Plan's Adjusted Funding Target Attainment Percentage.

(i) In General. Section 436(h) of the Code and Section 1.436-1(h) of the Treasury Regulations set forth a series of presumptions that apply

[1] before the Plan's enrolled actuary issues a certification of the Plan's adjusted funding target attainment percentage for the Plan Year and

[2] if the Plan's enrolled actuary does not issue a certification of the Plan's adjusted funding target attainment percentage for the Plan Year before the first day of the 10th month of the Plan Year (or if the Plan's enrolled actuary issues a range certification for the Plan Year pursuant to Section 1.436-1(h)(4)(ii) of the Treasury Regulations but does not issue a certification of the specific adjusted funding target attainment percentage for the Plan by the last day of the Plan Year). For any period during which a presumption under Section 436(h) of the Code and Section 1.436-1(h) of the Treasury Regulations applies to the Plan, the limitations under Sections (a) through (c) are applied to the Plan as if the adjusted funding target attainment percentage for the Plan Year were the presumed adjusted funding target attainment percentage determined under the rules of Section 436(h) of the Code and Section 1.436-1(h)(1), (2), or (3) of the Treasury Regulations. These presumptions are set forth in Section g(1)(ii) through (iv).

(ii) Presumption of Continued Underfunding Beginning First Day of Plan Year. If a limitation under Section (a), (b), or (c) applied to the Plan on the last day of the preceding Plan Year, then, commencing on the first day of the current Plan Year and continuing until the Plan's enrolled actuary issues a certification of the adjusted funding target attainment percentage for the Plan for the current Plan Year, or, if earlier, the date Section (g)(1)(iii) or Section (g)(1)(iv) applies to the Plan:

[1] The adjusted funding target attainment percentage of the Plan for the current Plan Year is presumed to be the adjusted funding target attainment percentage in effect on the last day of the preceding Plan Year; and

[2] The first day of the current Plan Year is a Section 436 measurement date.

(iii) Presumption of Underfunding Beginning First Day of 4th Month. If the Plan's enrolled actuary has not issued a certification of the adjusted funding target attainment percentage for the Plan Year before the first day of the 4th month of the Plan Year and the Plan's adjusted funding target attainment percentage for the preceding Plan Year was either at least 60 percent but less than 70 percent or at least 80 percent but less than 90 percent, or is described in Section 1.436-1(h)(2)(h) of the Treasury Regulations, then, commencing on the first day of the 4th month of the current Plan Year and continuing until the Plan's enrolled actuary issues a certification of the adjusted funding target attainment percentage for the Plan for the current Plan Year, or, if earlier, the date Section (g)(1)(iv) applies to the Plan:

[1] The adjusted funding target attainment percentage of the Plan for the current Plan Year is presumed to be the Plan's

adjusted funding target attainment percentage for the preceding Plan Year reduced by 10 percentage points; and

[2] The first day of the 4th month of the current Plan Year is a Section 436 measurement date.

(iv) Presumption of Underfunding On and After First Day of 10th Month. If the Plan's enrolled actuary has not issued a certification of the adjusted funding target attainment percentage for the Plan Year before the first day of the 10th month of the Plan Year (or if the Plan's enrolled actuary has issued a range certification for the Plan Year pursuant to Section 1.436-1(h)(4)(ii) of the Treasury Regulations but has not issued a certification of the specific adjusted funding target attainment percentage for the Plan by the last day of the Plan Year), then, commencing on the first day of the 10th month of the current Plan Year and continuing through the end of the Plan Year:

[1] The adjusted funding target attainment percentage of the Plan for the current Plan Year is presumed to be less than 60 percent; and

[2] The first day of the 10th month of the current Plan Year is a Section 436 measurement date.

(2) Plan Termination and Other Special Rules.

(i) Plan Termination. The limitations on prohibited payments in Section (a)(1), Section (b)(1), and Section (c) do not apply to prohibited payments that are made to carry out the termination of the Plan in accordance with applicable law. Any other limitations under this Section of the Plan do not cease to apply as a result of termination of the Plan.

(ii) Exception to Limitations on Prohibited Payments Under Certain Frozen Plans. The limitations on prohibited payments set forth in Sections (a)(1), (b)(1), and (c) do not apply for a plan year if the terms of the plan, as in effect for the period beginning on September 1, 2005, and continuing through the end of the plan year, provide for no benefit accruals with respect to any Members. This Section 5.13(g)(2)(ii) shall cease to apply as of the date any benefits accrue under the plan or the date on which a plan amendment that increases benefits takes effect.

(iii) Special Rules Relating to Unpredictable Contingent Event Benefits and Plan Amendments Increasing Benefit Liability. During any period in which none of the presumptions under Section (g)(1) apply to the Plan and the Plan's enrolled actuary has not yet issued a certification of the Plan's adjusted funding target attainment percentage for the Plan Year, the limitations under Section (a)(2) and Section (b)(2) shall be based on the inclusive presumed adjusted funding target attainment percentage for the Plan, calculated in accordance with the rules of Section 1.436-1(g)(2)(iii) of the Treasury Regulations.

(3) Special Rules Under PRA 2010.

(i) Payments Under Social Security Leveling Options.

For purposes of determining whether the limitations under Section (a)(1) or (b)(1) apply to payments under a social security leveling option, within the meaning of Section 436(j)(3)(C)(i) of the Code, the adjusted funding target attainment percentage for a Plan Year shall be determined in accordance with the "Special Rule for Certain Years" under Section 436(j)(3) of the Code and any Treasury Regulations or other published guidance thereunder issued by the Internal Revenue Service.

(ii) Limitation on Benefit Accruals. For purposes of determining whether the accrual limitation under Section (b)(3) applies to the Plan, the adjusted funding target attainment percentage for a Plan Year shall be determined in accordance with the "Special Rule for Certain Years" under Section 436(j)(3) of the Code (except as provided under Section 203(b) of the Preservation of Access to Care for Medicare Beneficiaries and Pension Relief Act of 2010, if applicable).

(4) Interpretation of Provisions. The limitations imposed by this Section of the Plan shall be interpreted and administered in accordance with Section 436 of the Code and Section 1.436-1 of the Treasury Regulations.

(h) Definitions. The definitions in the following Treasury Regulations apply for purposes of Sections (a) through (g): Section 1.436-1(j)(1) defining adjusted funding target attainment percentage; Section 1.436-1(j)(2) defining annuity starting date; Section 1.436-1(j)(6) defining prohibited payment; Section 1.436-1(j)(8) defining Section 436 measurement date; and Section 1.436-1(j)(9) defining an unpredictable contingent event and an unpredictable contingent event benefit.

(i) Effective Date. The rules in Sections (a) through (h) are effective for Plan Years beginning after December 31, 2007.

ARTICLE 11 TERMINATION AND WITHDRAWAL

11.1 WITHDRAWAL OF CONTRIBUTIONS. No Member may withdraw the contributions made in his behalf in accordance with Section 5.1(b), while in the employ of the Company.

11.2 WITHDRAWAL ON TERMINATION OF EMPLOYMENT. In the event of termination of employment for any reason other than death or retirement (including retirement upon Disability), a Member shall be entitled and may elect to withdraw his Additional Company Contributions with interest, as described in Sections 5.1 and 5.2. The Pension value of withdrawn contributions shall be determined in accordance with Section 6.2(b).

If a Member elects to make withdrawal(s) and if the total value of such Member's accrued benefit exceeds \$1,000, no such withdrawal shall be made unless consented to by the Member's spouse in a written instrument (a) in which the spouse acknowledges the effect of such withdrawal, and (b) witnessed by an authorized representative of the Plan or a notary public.

11.3 OPTION ON TERMINATION OF EMPLOYMENT. A Member who shall have vested rights, as provided in Section 6.2, may upon termination of employment elect not to withdraw his Additional Company Contributions, as described in Section 5.1(b), but to receive his full deferred retirement income' based upon the amount of benefits accrued to him to the date of termination of his employment (subject to Section 6.2). Such benefits shall be available to him at Normal Retirement Date as a normal retirement benefit unless such Member shall have elected early retirement, as provided in Section 8.2. Except as otherwise required by ERISA or the Code, all options and elections under this Section 11.3 shall be made at the time of termination of employment or within 90 days thereafter.

ARTICLE 12 TRUST FUND

12.1 TRUSTEE. The Trustee shall be selected and appointed as provided in Section 13. An appropriate Trust Agreement shall be executed by the Company and agreed to by the Trustee, such Trust Agreement to be consistent with the provisions of this Plan and approved by the Association. The Trust Agreement shall provide for the establishment of the Trust Fund which shall hold the assets of the Plan for the exclusive benefit of the Members and their beneficiaries. A copy of such Trust Agreement shall be delivered to the Association.

12.2 PLAN TO GOVERN. Any action taken by the Company or the Retirement Board or direction of the Company or the Retirement Board to the Trustee under the Trust Agreement with respect to termination of the Plan or modification or amendment of the Trust Agreement, or otherwise, shall be consistent with such terms and procedures, if any, as are provided under this Plan.

12.3 INVESTMENT POLICY. Except to the extent otherwise provided in this Plan or in the Trust Agreement, the Trustee shall have full discretionary powers of investment. The Trustee shall be limited to investing in securities which are legal for Trustees under the laws of any State of the United States but the Trustee shall not invest in stocks or other securities of HA Holdings, the Company, or any of subsidiary of HA Holdings or the Company. The Trustee shall, within the requirements of its administrative procedures and except as otherwise provided in this Section 12, promptly invest investment income and other receipts as they are received with regard to investment conditions existing at that time.

12.4 VALUATION OF FUND. In valuing the Trust Fund, the assets thereof shall be valued by the Trustee at their cost and market values in accordance with its usual methods of determining such values. The market value of each asset shall be the market value at the close of the last day of the month on which securities were traded on the New York Stock Exchange.

12.5 STATEMENTS AND REPORTS. The Trustee shall send copies of the annual trustee's report directly to the Company, the Retirement Board, the Association, and the Actuary.

ARTICLE 13 ADMINISTRATION

13.1 FIDUCIARIES OF THE PLAN AND THEIR RESPONSIBILITIES: IN GENERAL. The Named Fiduciary of this Plan is the Company. The Company shall have the responsibility of controlling and managing the operation of the Plan, except to the extent that specific responsibilities are given to the Association under this Plan or the Trust Agreement.

The Trustees, any Investment Manager(s) who may be appointed in accordance with Section 13.2(f), and the Funding Agents shall have the responsibility of managing, controlling, and investing the assets of the Plan.

13.2 RESPONSIBILITIES OF THE COMPANY AND THE ASSOCIATION.

(a) **Contributions.** The Company shall make contributions to the Trust Fund and the Funding Agents in accordance with the requirements of Section 5 of the Plan.

(b) **Funding Policy.** The Company shall establish a funding policy for the Plan. Such policy shall be established annually in consultation with the Plan's Actuary, taking into account the Plan's projected short-term and long-term cash needs, the Plan's income needs, and prospects for future growth of assets and security of assets. The funding policy shall be annually transferred by the Company to the Funding Agents and to the Association for guidance in their investment policies.

(c) **Advisors.** The Company may employ one or more persons to render it advice with regard to any responsibility which the Company has under this Plan.

(d) **Trustee.** The Company, with the approval of the Association, may remove the Trustee and substitute another Trustee in its place. On removal of the Trustee, another Trustee shall be appointed within 60 days of removal.

(e) **Removal of the Funding Agent.** The Company, with the approval of the Association, may remove any Funding Agent and may substitute another qualified insurance company or Trustee in its place. On removal of any Funding Agent, another Trustee or insurance company shall be appointed within 60 days of removal.

(f) **Investment Manager.** The Company with the approval of the Association may appoint an Investment Manager or Managers to manage all or part of the assets of the Plan. Any Investment Manager so appointed shall meet the requirements of Section 3(38) of the ERISA. The Company may direct that all or part of the assets of the Plan held by the Trustee are subject to the direction of an Investment Manager, and such Manager may have the power to manage, acquire, or dispose of Plan assets to the extent designated by the Company.

(g) Additional Funding Agents. With respect to any Plan assets now held by a Trustee or Funding Agent for the Plan, the Company, with the approval of the Association, may appoint any additional Funding Agents (trustees or insurance companies) as it finds necessary or appropriate for the management of the assets of this Plan and may direct the transfer of Plan assets from one Funding Agent to another.

(h) Limit on Delegation. The Company shall not delegate or allocate any of its fiduciary responsibilities to any of its directors, officers, or employees. The fiduciary duties and responsibilities of the Company are to be carried out by the directors, officers, and employees on behalf of the Company and not as individual fiduciaries. Any services provided by the Company for the Retirement Board are by the Company alone and not by its directors, officers, or employees in an individual capacity.

13.3 TRUSTEE. The Trustee shall, pursuant to the Trust Agreement, manage and control the assets of the Plan held by it, except to the extent (if any) that authority to manage, acquire, and dispose of assets is delegated to one or more Investment Managers pursuant to Section 13.2.

13.4 ADMINISTRATION - PRUDENTIAL. Contract 9102 may provide for the allocation of amounts received by Prudential thereunder solely to its general account or solely to one or more of its separate accounts (including separate accounts maintained for the collective investment of assets of qualified retirement plans) or to its general account and one or more of such separate accounts. The Company may appoint Prudential as an Investment Manager to the extent that amounts held by Prudential under Contract 9102 shall be deemed Plan assets under ERISA and the rules and regulations thereunder. Prudential, under Contract 9102, shall have exclusive responsibility for the investment and management of any amounts held under Contract 9102 subject to the right of the Company to specify how assets under Contract 9102 are to be allocated among the accounts provided for in Contract 9102, provided that the insurance company may be given responsibility for determining the allocation of amounts among the various such separate accounts provided for in Contract 9102. The assets of the Plan may be invested and reinvested without distinction between principal and income, in shares of stock (whether common or preferred) or other evidences of ownership, bonds, debentures, notes, or other evidences of indebtedness, and obligations unsecured or secured by mortgages or other liens on real or personal property wherever situated (including any partnership interest) in property real or personal, foreign or domestic, and any rights, warrants, and options to acquire any of the foregoing except any investment of any kind in the name of Hawaiian Airlines, Inc. or any subsidiary, affiliate, and/or successor, and provided that such investment does not result in a prohibited transaction as defined in Section 406 of ERISA or Section 4975 of the Code.

13.5 CLAIMS AND CLAIMS REVIEW PROCEDURE. The procedure for claiming benefits under the Plan shall be as follows:

(a) A person may file a claim for benefits under this Plan by written notice to the Retirement Board together with such documents and information as the Retirement Board may require. The notice shall be mailed or delivered to the following address:

Pilots Retirement Board
c/o Employee Benefits Division
Hawaiian Airlines, Inc.
P. O. Box 30008
Honolulu, HI 96820

(b) (1) If a claim is denied in whole or in part, the Retirement Board shall give the claimant written notice of such denial within a reasonable period of time, but not later than 90 days after receipt of the claim, unless the Retirement Board determines that special circumstances require an extension of time for processing the claim. If the Retirement Board determines that an extension of time for processing is required, written notice of the extension shall be furnished to the claimant prior to the termination of the initial 90-day period. In no event shall such extension exceed a period of 90 days from the end of such initial period. The extension notice shall indicate the special circumstances requiring an extension of time and the date by which the Retirement Board expects to render the benefit determination.

(2) The Retirement Board shall provide the claimant with written or electronic notification of any adverse benefit determination. Such notice shall set forth in a manner calculated to be understood by the claimant (i) the specific reason or reasons for the adverse determination, (ii) reference to the specific Plan provisions on which the determination is based, (iii) a description of any additional material or information necessary to perfect the claim and an explanation of why such material or information is necessary, and (iv) a description of the review procedure described in paragraph (c) hereof, including a statement of the claimant's right to bring a civil action under Section 502(a) of the Act following an adverse benefit determination on review.

(c) (1) The claimant or his authorized representative may then appeal the adverse benefit determination to the Retirement Board by filing written notice of such appeal with the Retirement Board within 60 days after receipt of the notification of the adverse benefit determination. The claimant or his authorized representative (i) may submit written comments, documents, records, and other information relating to the claim for benefits and (ii) shall be provided, upon request and free of charge, reasonable access to, and copies of, all documents, records, and other information relevant to the claimant's claim for benefits.

(2) The Retirement Board's review of the claimant's appeal shall take into account all comments, documents, records, and other information submitted by the claimant or his representative relating to the claim without regard to whether such information was submitted or considered in the initial benefit determination. The Retirement Board in its discretion may hold a hearing on the claimant's appeal.

(3) The Retirement Board shall make its determination on such appeal within a reasonable period of time, but not later than 60 days after receipt of the claimant's request for review by the Retirement Board, unless the Retirement Board determines that special circumstances (such as the need to hold a hearing) require an extension of time for processing the claim. If the Retirement Board determines that an extension of time for processing is required, written notice of the extension shall be furnished to the claimant prior to the termination of the initial 60-day period. In no event

shall such extension exceed a period of 60 days from the end of such initial period. The extension notice shall indicate the special circumstances requiring an extension of time and the date by which the Retirement Board expects to render a determination on review.

(4) The Retirement Board shall provide the claimant with written or electronic notification of its benefit determination on review. In the case of any adverse determination, the notification shall set forth in a manner calculated to be understood by the claimant (i) the specific reason or reasons for the adverse determination, (ii) reference to the specific Plan provisions on which the determination is based, (iii) a statement that the claimant is entitled to receive, upon request and free of charge, reasonable access to, and copies of, all documents, records, and other information relevant to the claimant's claim for benefits, and (iv) a statement of the claimant's right to bring an action under Section 502(a) of ERISA.

13.6 DISCRETION OF THE COMPANY AND THE RETIREMENT BOARD. The Company and the Retirement Board, in their sole and absolute discretion, respectively, shall construe and interpret the terms and provisions of the Plan, and any issue arising out of, relating to, or resulting from the administration and operation of the Plan, which such construction or interpretation shall be final and binding on all persons, entities, and parties, including, without limitation, any Employee, Member, beneficiary, Alternate Payee, or successors or assigns thereto. When making a determination or calculation, the Company and the Retirement Board shall, in their sole and absolute discretion, be entitled to rely upon information furnished by Members, third party administrators, Trustees, beneficiaries, Alternate Payees, Employees, or other individuals acting on their behalf.

13.7 FIDUCIARY CAPACITY. Any person may serve in more than one fiduciary capacity with respect to this Plan.

13.8 RELIANCE, INDEMNIFICATION, AND BONDING. The officers and directors of the Company, the Association, and the members of the Retirement Board shall be entitled to rely upon all tables, valuations, certificates, and reports furnished by any duly appointed actuary, accountant, Funding Agent, Trustee, and/or Investment Manager and upon all opinions given by any duly appointed legal counsel. The officers and directors of the Company, the Association, and members of the Retirement Board shall be bonded to the extent required by federal law. The Company shall provide the necessary fiduciary liability insurance coverage for the members of the Retirement Board and each other fiduciary of the Plan who is not otherwise appropriately insured.

13.9 RETIREMENT BOARD PROVISIONS INCORPORATED. The provisions of Section 25D of the Basic Agreement are hereby incorporated into the Plan.

ARTICLE 14 MISCELLANEOUS

14.1 EXCLUSIVE BENEFIT OF MEMBERS. The Plan and the Trust shall be administered for the exclusive benefit of the Members and their beneficiaries and shall not be used for, or diverted to, any other purposes.

14.2 NON-ALIENATION OF BENEFITS. A Member's interest in the Plan, or that of his beneficiary, may not be assigned or alienated by voluntary or involuntary assignment. Any attempt by a Member or beneficiary to assign or alienate his interest under the Plan, or any attempt to subject his interest to attachment, execution; garnishment, or other legal or equitable process, shall be void. This does not preclude the Trustee from complying with (a) any Qualified Domestic Relations Order, (b) Federal tax levies and executions on Federal tax judgments, or (c) any offset of a Member's interest under the Plan against an amount the Member is ordered to pay due to a judgment or settlement described in Code Section 401(a)(13)(C).

14.3 MEDIUM OF PAYMENT. All payments provided to be made hereunder shall be in lawful money of the United States.

14.4 MAILING ADDRESS. It shall be the duty of each Member and, after his death, of his beneficiary, to keep the Company advised at all times of their correct mailing addresses.

14.5 INCOMPETENCY. In the event that it shall be found that any person entitled to receive benefit payments hereunder is unable to care for his affairs because of illness or accident, any payment due (unless a prior claim therefor shall have been made by a duly qualified conservator, guardian or other legal representative) may, at the discretion of the Retirement Board, be paid to spouse, parent, child, brother, or sister of such person, or to any other person deemed by the Retirement Board to be maintaining or responsible for the maintenance of such person. Any such payment shall be a payment for the account of such person and shall be a complete discharge of any liability under the Plan therefor.

14.6 CONDITION OF EMPLOYMENT NOT AFFECTED BY PLAN. The establishment and maintenance of the Plan shall not confer any legal rights upon any Pilot to the continuation of his employment with the Company.

14.7 GOVERNING LAW. This Plan shall be construed, administered, and governed in all respects under applicable federal law, and to the extent that federal law is inapplicable, by the laws of the State of Hawaii.

14.8 GENDER AND NUMBER. Except as otherwise indicated by the context, any masculine terminology used herein shall also include the feminine, and the definitions of any term in the singular shall include the plural.

14.9 SEVERABILITY. If any provision of this Plan shall be held by a court of competent jurisdiction to be invalid or unenforceable, the remaining provisions hereof shall continue to be fully effective.

14.10 HEADINGS. Section headings are for convenient reference only and shall not be deemed to be part of the substance of this instrument or in any way to enlarge or limit the contents of any Section.

14.11 WRITTEN ACTION NOT REQUIRED. Notwithstanding anything in this Plan to the contrary, in any instance where an action by a Member, the Plan Administrator, or

any other person is required to be in writing, such action may be satisfied in such manner as the Plan Administrator may prescribe, including, without limitation, electronic or telephonic methods, but only to the extent permitted by applicable law.

ARTICLE 15 AMENDMENT AND DURATION, TERMINATION AND MERGER

15.1 AMENDMENT AND DURATION OF THE PLAN. The Company expects the Plan to be permanent, but since future conditions affecting the Company cannot be anticipated or foreseen, the Company reserves the right to amend or terminate the Plan at any time, subject to Association approval. However, the obligations of the Company under the Plan, including the obligation to make contributions as herein provided in this Plan, shall continue in full force and effect concurrently with the Basic Agreement presently in effect and shall renew itself without change with each succeeding Basic Agreement executed thereafter, unless written notice of intended change or cancellation is served in accordance with Section 6, Title I, of the Railway Labor Act, as amended, by either the Company or the Association. Any modification, change, termination, spin-off, or discontinuance of all or any part of this Plan, not affected by the foregoing provision may and shall be effected only by the Company and the Association.

15.2 TERMINATION OF THE PLAN AND DISTRIBUTION THEREUNDER. Upon the full or partial termination of the Plan or upon complete discontinuance of Company contributions under the Plan, the Member's Accrued Pension Benefit shall become 100% vested and non-forfeitable and the assets of the Plan shall be distributed in accordance with Title IV of ERISA. Any residual assets of the Plan remaining after the distribution in accordance with Title IV of ERISA shall be returned to the Company, provided all liabilities of the Plan to Members, their surviving spouses, or their beneficiaries have been satisfied.

15.3 MERGER OF THE PLAN. In the event of a merger, absorption, pooling of interests, or any other form of corporate reorganization, such successor organization shall assume all actuarial liabilities of this Plan as a condition to such action. The Plan may not merge or consolidate with, or transfer or segregate its assets or liabilities to, any other plan unless each affected Member would, if the successor plan would then be terminated, receive a benefit immediately after the merger, consolidation, transfer, or segregation which is equal to or greater than the benefit he would have been entitled to receive immediately before the merger, consolidation, transfer or segregation, if the Plan would then have been terminated.

ARTICLE 16 RECAPTURE OF CERTAIN PAYMENTS

In the event that the Plan is terminated under Title IV of ERISA, the Trustee, upon direction from the Pension Benefit Guaranty Corporation, shall be authorized to recover for the benefit of the Plan from a Member the "recoverable amount" (as defined in Section 4045 of ERISA) of all payments from the Plan to him which commenced within the three year period immediately preceding the time the Plan is terminated.

ARTICLE 17 ACTUARY

17.1 APPOINTMENT AND DUTIES. The Company shall appoint an individual who is a member of the Society of Actuaries; firm of independent actuaries, one or more of whose members is a member of the Society of Actuaries; or a corporation employing one or more members of the Society of Actuaries to perform the duties of the Actuary herein specified and such other duties in connection with the administration of the Plan as may be conferred upon him or it by the Company or Retirement Board and are not contrary to the provisions, of the Plan. In determining actuarial equivalents and actuarial reserves permitted or required to be determined under the Plan, there shall be used the assumptions then currently in use for valuing the Plan.

17.2 REMOVAL. The Company shall have the right at any time to remove the Actuary then acting, to appoint a successor or successors, and to fill vacancies in the office of the Actuary. The appointment of any new Actuary selected by the Company shall be subject to Retirement Board approval.

17.3 REPORT. The annual actuarial report shall be presented by March 31st of each Plan Year to the Retirement Board, the Company, and the Association.

ARTICLE 18 TRANSFERS OF EMPLOYEES

18.1 TRANSFERS TO NON-PILOT POSITIONS. If a Member is transferred to another position within the Company so that he no longer is classified as a Pilot, he shall become an Inactive Member and shall be conditionally vested in his Accrued Pension Benefit as of the date of such transfer. His Accrued Pension Benefit while he was an active Member in the Plan and his contributions with interest may, at his option, be transferred to the appropriate retirement plan for the employee group to which he has been transferred. These transferred Accrued Pension Benefit and contributions with interest will be considered to have been made as of the date he is officially transferred to the non-Pilot position. If he subsequently leaves the Company before he has completed a total of five years of Vested Service as an Employee of the Company, he will forfeit his conditional vesting under this Plan. If he leaves the Company after five or more years of Vested Service, then he shall be vested in his Accrued Pension Benefit under this Plan according to the vesting schedule in Section 6.2.

18.2 TRANSFERS TO PILOT POSITIONS. If an Employee is transferred from another position within the Company and becomes classified as a Pilot, his employment with the Company prior to his transfer will be considered as Service for eligibility and vesting under this Plan. If he leaves the Company and has completed at least five years of Vested Service, he will be vested under this Plan according to the vesting schedule in Section 6.2.

If an Employee described in this Section 18.2 transfers back to a classification of a non-Pilot, then he will be vested in his Accrued Pension Benefit under this Plan as determined by his total Service with the Company.

ARTICLE 19 APPROVAL UNDER THE CODE

The Plan is intended to meet the requirements of Section 401(a) of the Code as now in effect or hereafter amended. Any modification or amendment to the Plan may be made retroactive, as is necessary or appropriate to establish and maintain such qualification in accordance with the provisions of the Code then in effect.

ARTICLE 20 EXEMPTION FROM TOP HEAVY RULES

This Plan qualifies under Section 416(i)(4) of the Code for an exemption from the "top-heavy" requirements of Sections 416 of the Code.

ARTICLE 21 QUALIFIED DOMESTIC RELATIONS ORDERS

21.1 QUALIFIED DOMESTIC RELATIONS ORDERS. The Plan Administrator shall comply with all Qualified Domestic Relations Orders received by it and shall pay benefits in accordance with the applicable requirements of such Qualified Domestic Relations Orders. The Plan Administrator shall establish reasonable procedures to determine the qualified status of Domestic Relations Orders and to administer distributions under Qualified Domestic Relations Orders, with such procedures subject to the approval of the Retirement Board.

21.2 NOTICE AND DETERMINATION. The Plan Administrator shall promptly notify the Member and each Alternate Payee of the receipt of a Domestic Relations Order and of the Plan's procedures (as described in Section 21.3) for determining whether a Domestic Relations Order is a Qualified Domestic Relations Order. The Plan Administrator shall, within a reasonable period of time after receipt of a Domestic Relations Order, determine whether the Domestic Relations Order is a Qualified Domestic Relations Order and notify the Member and each Alternate Payee of its determination. The notices provided for in this Section shall be mailed by certified mail, return receipt requested, to the addresses specified in the Domestic Relations Order, or, if the Domestic Relations Order fails to specify an address, then to the last address of the Member or Alternate Payee known to the Plan Administrator.

21.3 PROCEDURES FOR DETERMINATION. Upon the receipt of a Domestic Relations Order, the Plan Administrator shall review such Domestic Relations Order, or cause such Domestic Relations Order to be reviewed, to determine whether it is a Qualified Domestic Relations Order. If the Domestic Relations Order satisfies each and every requirement set forth in Section 414(p) of the Code, then the Plan Administrator shall make a determination that the Domestic Relations Order is a Qualified Domestic Relations Order, and the Plan Administrator shall provide notice of such determination in accordance with the requirements for notice provided in Section 21.4. If the Domestic Relations Order fails to satisfy one or more requirements set forth in 414(p) of the Code, the Plan Administrator shall notify the Member and any Alternate Payee of the reasons such Domestic Relations Order would not be a Qualified Domestic Relations Order. Each Alternate Payee shall be permitted to designate a representative for receipt of

copies of notices which are sent to the Alternate Payee with respect to a Domestic Relations Order received by the Plan Administrator and pertaining to the Alternate Payee.

21.4 PROCEDURES FOR PERIOD DURING WHICH DETERMINATION IS BEING MADE. During any period in which the issue of whether a Domestic Relations Order is a Qualified Domestic Relations Order is being determined (by the Plan Administrator, the Retirement Board, a court of competent jurisdiction, or otherwise), the Plan Administrator shall direct the Trustee to segregate in a separate account(s) in the Plan the amounts which would have been payable to the Alternate Payee during such period if the Domestic Relations Order had been determined to be a Qualified Domestic Relations Order.

(a) If within 18 months the Domestic Relations Order (or modification thereof) is determined to be a Qualified Domestic Relations Order, the Plan Administrator shall notify the Trustee and/or the Funding Agent to pay the separated amounts, (plus any interest thereon) to the Alternate Payee entitled thereto.

(b) If within 18 months:

(1) it is determined that the Domestic Relations Order is not a Qualified Domestic Relations Order, or

(2) the issue as to whether such Domestic Relations Order is a Qualified Domestic Relations Order is not resolved,

then the Plan Administrator shall notify the Trustee to pay the segregated amounts (plus any interest thereon) to the person or persons who would have been entitled to such amounts if there had been no Domestic Relations Order.

(c) Any determination that a Domestic Relations Order is a Qualified Domestic Relations Order which is made after the close of the 18-month period shall be applied prospectively only.

21.5 TREATMENT OF FORMER SPOUSE AS SURVIVING SPOUSE. To the extent provided in any Qualified Domestic Relations Order, the former spouse of a Member shall be treated as a surviving spouse of such Member.

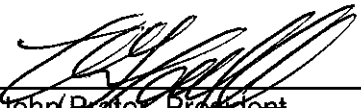
IN WITNESS WHEREOF, the parties hereto have signed this Plan on this 31st
day of December, 2015.

FOR HAWAIIAN AIRLINES, INC.

By 
Its

By SVP. HR
Its

FOR THE AIR LINE PILOTS
ASSOCIATION, INTERNATIONAL

By 
~~John Prater, President~~
Captain Tim Canoll, President

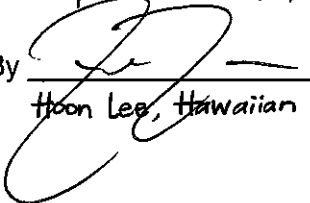
By 
Hoon Lee, Hawaiian MEC, Chairman

EXHIBIT A

RETIREMENT PLAN FOR PILOTS OF HAWAIIAN AIRLINES, INC. EARLY RETIREMENT FACTORS FOR PILOTS

(Factors are to be applied to the pension earned to Early Retirement Date)

<u>Early Retirement</u> <u>Age</u>	<u>Years Early</u>	<u>Column 1</u> <u>Fixed Plan</u>	<u>Column 2</u> <u>Variable Plan</u>
30	30	.1985	.2075
31	29	.2102	.2152
32	28	.2226	.2234
33	27	.2359	.2322
34	26	.2500	.2416
35	25	.2652	.2517
36	24	.2814	.2625
37	23	.2988	.2741
38	22	.3175	.2865
39	21	.3376	.2998
40	20	.3591	.3140
41	19	.3823	.3292
42	18	.4074	.3454
43	17	.4344	.3627
44	16	.4636	.3812
45	15	.4953	.4011
46	14	.5296	.4223
47	13	.5669	.4450
48	12	.6075	.4696
49	11	.6517	.4960
50	10	.7000	.5245
51	9	.7300	.5555
52	8	.7600	.5893
53	7	.7900	.6256
54	6	.8200	.6655
55	5	.8500	.7088
56	4	.8800	.7565
57	3	.9100	.8087
58	2	.9400	.8664
59	1	.9700	.9300
60	0	1.0000	1.0000

Interest-Fixed Plan 5% below age 50
Variable Plan 3%

Mortality-Wyatt 1965 Projected Annuity Table

EXHIBIT B

ANNUITY FACTORS TO CALCULATE MINIMUM PENSION BENEFIT

Age	Factor
40	7.00
41	7.22
42	7.44
43	7.68
44	7.92
45	8.17
46	8.43
47	8.70
48	8.98
49	9.27
50	9.58
51	9.90
52	10.23
53	10.58
54	10.94
55	11.32
56	11.72
57	12.14
58	12.58
59	13.04
60	13.66

Interest: 3%

Wyatt 1965 Projected Annuity Table

EXHIBIT C

CONVERSION FACTORS TO CALCULATE WITHDRAWN CONTRIBUTIONS

(Based on Rev. Ruling 76-47 dated January 28, 1976)

1. The conversion factor when the normal form of benefit is a single life annuity commencing at age 60, which is the normal retirement age, is 9%.
2. 9% is to be multiplied by the appropriate actuarial adjustment factor for certain forms of annuity as shown below:

	<u>Normal Form of Annuity</u>	<u>Actuarial Adjustment Factor</u>
a.	Single Life Annuity	1.0
b.	50% Joint and Survivor Annuity	
	<u>Age of Beneficiaries</u>	
	20 or more years* older than Member	.98
	15-19 years older than Member	.96
	10-14 years older than Member	.95
	5-9 years older than Member	.92
	0-4 years older than Member	.88
	0-4 years younger than Member	.88
	5-9 years younger than Member	.84
	10-14 years younger than Member	.82
	15-19 years younger than Member	.79
	20 or more years younger than Member	.78

* years means completed whole years

EXHIBIT D

RETIREMENT PLAN FOR PILOTS OF HAWAIIAN AIRLINES, INC. DISABILITY RETIREMENT FACTORS FOR PILOTS

(Factors are to be applied to the minimum pension earned to Disability Retirement Date)

<u>Disability Retirement Age</u>	<u>Years Early</u>	<u>Column 1 Fixed Plan</u>	<u>Column 2 Variable Plan</u>
30	30	.2411	.2075
31	29	.2552	.2152
32	28	.2703	.2234
33	27	.2864	.2322
34	26	.3036	.2416
35	25	.3220	.2517
36	24	.3418	.2625
37	23	.3629	.2741
38	22	.3856	.2865
39	21	.4099	.2998
40	20	.4361	.3140
41	19	.4643	.3292
42	18	.4947	.3454
43	17	.5275	.3627
44	16	.5630	.3812
45	15	.6014	.4011
46	14	.6431	.4223
47	13	.6884	.4450
48	12	.7377	.4696
49	11	.7914	.4960
50	10	.8500	.5245
51	9	.8650	.5555
52	8	.8800	.5893
53	7	.8950	.6256
54	6	.9100	.6655
55	5	.9250	.7088
56	4	.9400	.7565
57	3	.9550	.8087
58	2	.9700	.8664
59	1	.9850	.9300
60	0	1.0000	1.0000

Interest-Fixed Plan 5% below age 50
Variable Plan 3%

Mortality-Wyatt 1965 Projected Annuity Table

EXHIBIT E

DISTRIBUTION REQUIREMENTS

Section 1. General Rules.

(a) Effective Date. The provisions of this Exhibit E shall apply for purposes of determining required minimum distributions for calendar years beginning with the 2003 calendar year.

(b) Precedence. The requirements of this Exhibit E shall take precedence over any inconsistent provisions of the Plan.

(c) Requirements of Treasury Regulations Incorporated. All distributions required under this Exhibit E shall be determined and made in accordance with the Treasury regulations under Section 401(a)(9) of the Internal Revenue Code.

(d) TEFRA Section 242(b)(2) Elections. Notwithstanding the other provisions of this Exhibit E, other than Section 1(c), distributions may be made under a designation made before January 1, 1984, in accordance with Section 242(b)(2) of the Tax Equity and Fiscal Responsibility Act (TEFRA) and the provisions of the Plan that relate to Section 242(b)(2) of TEFRA.

Section 2. Time and Manner of Distribution.

(a) Required Beginning Date. The Member's entire interest shall be distributed, or begin to be distributed, to the Member no later than the Member's Required Beginning Date.

(b) Death of Member Before Distributions Begin. If the Member dies before distributions begin, the Member's entire interest shall be distributed, or begin to be distributed, no later than as follows:

(1) If the Member's surviving spouse is the Member's sole designated beneficiary, then distributions to the surviving spouse shall begin by December 31 of the calendar year immediately following the calendar year in which the Member died, or by December 31 of the calendar year in which the Member would have attained age 70-1/2, if later.

(2) If the Member's surviving spouse is not the Member's sole designated beneficiary, then distributions to the designated beneficiary shall begin by December 31 of the calendar year immediately following the calendar year in which the Member died.

(3) If there is no designated beneficiary as of September 30 of the year following the year of the Member's death, the Member's entire interest shall be distributed by December 31 of the calendar year containing the fifth anniversary of the Member's death.

(4) If the Member's surviving spouse is the Member's sole designated beneficiary and the surviving spouse dies after the Member but before distributions to the surviving spouse begin, this Section 2(b) other than Section 2(b)(1), shall apply as if the surviving spouse were the Member.

For purposes of this Section 2(b) and Section 5, distributions are considered to begin on the Member's Required Beginning Date (or, if Section 2(b)(4) applies, the date distributions are required to begin to the surviving spouse under Section 2(b)(1)). If annuity payments irrevocably commence to the Member before the Member's Required Beginning Date (or to the Member's surviving spouse before the date distributions are required to begin to the surviving spouse under Section 2(b)(1)), the date distributions are considered to begin is the date distributions actually commence.

(c) Form of Distribution. Unless the Member's interest is distributed in the form of an annuity purchased from an insurance company or in a single sum on or before the Required Beginning Date, as of the first distribution calendar year distributions shall be made in accordance with Sections 3, 4, and 5 of this Exhibit E. If the Member's interest is distributed in the form of an annuity purchased from an insurance company, distributions thereunder shall be made in accordance with the requirements of Section 401(a)(9) of the Code and the Treasury regulations. Any part of the Member's interest which is in the form of an individual account described in Section 414(k) of the Code shall be distributed in a manner satisfying the requirements of Section 401(a)(9) of the Code and the Treasury regulations that apply to individual accounts.

Section 3. Determination of Amount to be Distributed Each Year.

(a) General Annuity Requirements. If the Member's interest is paid in the form of annuity distributions under the Plan, payments under the annuity shall satisfy the following requirements:

(1) the annuity distributions shall be paid in periodic payments made at intervals not longer than one year;

(2) the distribution period shall be over a life (or lives) or over a period certain not longer than the period described in Section 4 or 5;

(3) once payments have begun over a period certain, the period certain shall not be changed even if the period certain is shorter than the maximum permitted;

(4) payments shall either be nonincreasing or increase only as follows:

(i) by an annual percentage increase that does not exceed the annual percentage increase in a cost-of-living index that is based on prices of all items and issued by the Bureau of Labor Statistics;

(ii) to the extent of the reduction in the amount of the Member's payments to provide for a survivor benefit upon death, but only if the beneficiary whose life was being used to determine the distribution period described in Section 4 dies or is no longer the Member's

beneficiary pursuant to a qualified domestic relations order within the meaning of Section 414(p) of the Code;

(iii) to provide cash refunds of employee contributions upon the Member's death; or

(iv) to pay increased benefits that result from a Plan amendment.

(b) Amount Required to be Distributed by Required Beginning Date. The amount that must be distributed on or before the Member's Required Beginning Date (or, if the Member dies before distributions begin, the date distributions are required to begin under Section 2(b)(1) or (2)) is the payment that is required for one payment interval. The second payment need not be made until the end of the next payment interval even if that payment interval ends in the next calendar year. Payment intervals are the periods for which payments are received, e.g., bi-monthly, monthly, semi-annually, or annually. All of the Member's benefit accruals as of the last day of the first distribution calendar year shall be included in the calculation of the amount of the annuity payments for payment intervals ending on or after the Member's Required Beginning Date.

(c) Additional Accruals After First Distribution Calendar Year. Any additional benefits accruing to the Member in a calendar year after the first distribution calendar year shall be distributed beginning with the first payment interval ending in the calendar year immediately following the calendar year in which such amount accrues.

Section 4. Requirements For Annuity Distributions That Commence During Member's Lifetime.

(a) Joint Life Annuities Where the Beneficiary Is Not the Member's Spouse. If the Member's interest is being distributed in the form of a joint and survivor annuity for the joint lives of the Member and a nonspouse beneficiary, annuity payments to be made on or after the Member's Required Beginning Date to the designated beneficiary after the Member's death must not at any time exceed the applicable percentage of the annuity payment for such period that would have been payable to the Member using the table set forth in Q&A-2 of Section 1.401(a)(9)-6 of the Treasury regulations. If the form of distribution combines a joint and survivor annuity for the joint lives of the Member and a nonspouse beneficiary and a period certain annuity, the requirement in the preceding sentence shall apply to annuity payments to be made to the designated beneficiary after the expiration of the period certain.

(b) Period Certain Annuities. Unless the Member's spouse is the sole designated beneficiary and the form of distribution is a period certain and no life annuity, the period certain for an annuity distribution commencing during the Member's lifetime may not exceed the applicable distribution period for the Member under the Uniform Lifetime Table set forth in Section 1.401(a)(9)-9 of the Treasury regulations for the calendar year that contains the annuity starting date. If the annuity starting date precedes the year in which the Member reaches age 70, the applicable distribution period for the Member is the distribution period for age 70 under the Uniform Lifetime Table set forth in Section 1.401(a)(9)-9 of the Treasury regulations plus the excess of 70 over the

age of the Member as of the Member's birthday in the year that contains the annuity starting date. If the Member's spouse is the Member's sole designated beneficiary and the form of distribution is a period certain and no life annuity, the period certain may not exceed the longer of the Member's applicable distribution period, as determined under this Section 4(b), or the joint life and last survivor expectancy of the Member and the Member's spouse as determined under the Joint and Last Survivor Table set forth in Section 1.401(a)(9)-9 of the Treasury regulations, using the Member's and spouse's attained ages as of the Member's and spouse's birthdays in the calendar year that contains the annuity starting date.

Section 5. Requirements For Minimum Distributions Where Member Dies Before Date Distributions Begin.

(a) Member Survived by Designated Beneficiary. If the Member dies before the date distribution of his interest begins and there is a designated beneficiary, the Member's entire interest shall be distributed, beginning no later than the time described in Section 2(b)(1) or (2), over the life of the designated beneficiary or over a period certain not exceeding:

(1) unless the annuity starting date is before the first distribution calendar year, the life expectancy of the designated beneficiary determined using the beneficiary's age as of the beneficiary's birthday in the calendar year immediately following the calendar year of the Member's death; or

(2) if the annuity starting date is before the first distribution calendar year, the life expectancy of the designated beneficiary determined using the beneficiary's age as of the beneficiary's birthday in the calendar year that contains the annuity starting date.

(b) No Designated Beneficiary. If the Member dies before the date distributions begin and there is no designated beneficiary as of September 30 of the year following the year of the Member's death, distribution of the Member's entire interest shall be completed by December 31 of the calendar year containing the fifth anniversary of the Member's death.

(c) Death of Surviving Spouse Before Distributions to Surviving Spouse Begin. If the Member dies before the date distribution of his interest begins, the Member's surviving spouse is the Member's sole designated beneficiary, and the surviving spouse dies before distributions to the surviving spouse begin, this Section 5 shall apply as if the surviving spouse were the Member, except that the time by which distributions must begin shall be determined without regard to Section 2(b)(1).

Section 6. Definitions.

(a) Designated Beneficiary. The individual who is designated as the beneficiary under Section 3.2 of the Plan and is the designated beneficiary under Section 401(a)(9) of the Internal Revenue Code and Section 1.401(a)(9)-1, Q&A4, of the Treasury regulations.

(b) Distribution calendar year. A calendar year for which a minimum distribution is required. For distributions beginning before the Member's death, the first distribution calendar year is the calendar year immediately preceding the calendar year which contains the Member's Required Beginning Date. For distributions beginning after the Member's death, the first distribution calendar year is the calendar year in which distributions are required to begin pursuant to Section 2(b).

(c) Life expectancy. Life expectancy as computed by use of the Single Life Table in Section 1.401(a)(9)-9 of the Treasury regulations.

(d) Required Beginning Date. April 1 of the calendar year following the calendar year in which the Member attains age 70-1/2.

(e) 5% Owner. A Member shall be treated as a 5% owner for purposes of this Exhibit E if such Member is a 5% owner as defined in Section 416(i) of the Code (determined in accordance with Section 416 but without regard to whether the Plan is top-heavy) at any time during the Plan Year ending with or within the calendar year in which such owner attains age 66-1/2 or any subsequent Plan Year. Once distributions have begun to a 5% owner under this Exhibit E, they must continue to be distributed even if the Member ceases to be a 5% owner in a subsequent year.

EXHIBIT F

RETIREMENT PLAN FOR PILOTS OF HAWAIIAN AIRLINES, INC.
OTHER ANNUITY FACTORS

Unless otherwise specifically set forth in the Plan or other Exhibits, the following actuarial assumptions shall be utilized for the purpose of determining the Actuarial Equivalent:

1. Rate of Interest: 6.5% per annum, compounded annually
2. Mortality: UP-1984, ages set forward 1 year

HAWAIIAN AIRLINES, INC.

PILOTS' 401(K) PLAN

(2007 Restatement)

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APPENDIX 1 – MINIMUM DISTRIBUTION REQUIREMENTS

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HAWAIIAN AIRLINES, INC.
PILOTS' 401(K) PLAN

WHEREAS, Hawaiian Airlines, Inc. established a savings plan, effective September 1, 1990, known as the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (the "Plan") to enable the employees of Hawaiian Airlines, Inc. who are covered by a collective bargaining agreement with the Air Line Pilots Association, International to make tax-deferred salary reduction contributions; and

WHEREAS, the Plan has been amended from time to time and must be amended to reflect changes agreed to by collective bargaining;

NOW THEREFORE, it is hereby agreed that effective as of May 1, 2007, the Hawaiian Airlines, Inc. Pilots' 401(k) Plan is amended and restated in its entirety to read as herein provided.

ARTICLE 1
NAME AND PURPOSE

1.1 NAME. The Plan shall be known as the Hawaiian Airlines, Inc. Pilots' 401(k) Plan.

1.2 PURPOSE.

(A) Provision for Participants' Economic Security. The purpose of the Plan is to receive contributions on behalf of Participants and to assist Participants in providing for their future economic security.

(B) Qualification as Profit Sharing Plan With a Cash or Deferred Arrangement. The Plan is intended to qualify as a profit sharing plan under Section 401(a) of the Code, including a cash or deferred arrangement under Section 401(k) of the Code.

(C) Exclusive Benefit of Participants. The Plan and the Trust shall be administered for the exclusive benefit of the Participants and their Beneficiaries and shall not be used for or diverted to any other purposes.

ARTICLE 2
DEFINITIONS

For the purposes of this Plan, unless the context requires otherwise, the following words and phrases, when used herein with initial capital letters, shall have the meanings indicated.

2.1 ACCOUNTS. With respect to any Participant, the aggregate of all of the accounts established and maintained on his behalf under the Plan, which accounts may include a Salary Deferral Account, Roth Deferral Account, Target Benefit Account, Defined Contribution Account, Regular Rollover Account, Roth Rollover Account, Employer Stock Contribution Account, and Voluntary After Tax Contribution Account.

2.2 ACTUAL DEFERRAL PERCENTAGE (ADP). For a specified group of participants (either Highly Compensated Employees or Non-highly Compensated Employees) for a Plan Year, the average of the ratios (calculated separately for each Participant in such group) of (i) the amount of Employer contributions actually paid over to the Trust on behalf of such Participant for the Plan Year to (ii) the Participant's Statutory Compensation for such Plan Year. Employer contributions on behalf of any Participant shall include any Elective Deferrals (other than Catch-up Contributions) made pursuant to the Participant's deferral election (including Excess Elective Deferrals of Highly Compensated Employees), but excluding (i) Excess Elective Deferrals of Non-highly Compensated Employees that arise solely from Elective Deferrals made under this Plan or other plans of the Employer and (ii) Elective Deferrals that are taken into account in the Actual Contribution Percentage test (provided the ADP test is satisfied both with and without exclusion of these elective deferrals). For purposes of computing Actual Deferral Percentages, an Employee who would be a Participant but for the failure to make Elective Deferrals shall be treated as a Participant on whose behalf no Elective Deferrals are made.

2.3 ALTERNATE PAYEE. Any spouse, former spouse, child, or other dependent of a Participant who is recognized by a Qualified Domestic Relations Order as having a right to receive all, or a portion of, the benefits payable under the Plan with respect to such Participant.

2.4 ASSOCIATION. The Air Line Pilots Association, International.

2.5 AVERAGE ACTUAL DEFERRAL PERCENTAGE. The average (expressed as a percentage) of the Actual Deferral Percentages of the Participants in a group.

2.6 BENEFICIARY. Any person designated by a Participant in accordance with Article 9 to receive any sums payable hereunder if such Person survives the Participant.

2.7 CATCH-UP CONTRIBUTIONS. Elective Deferrals made to the Plan that are in excess of an otherwise applicable Plan limit and that are made by a Participant who is aged 50 or over by the end of his taxable year. An otherwise applicable Plan limit is a limit in the Plan that applies to Elective Deferrals without regard to Catch-up Contributions, such as the limits on Annual Additions, the dollar

limitation on Elective Deferrals under Section 402(g) of the Code (not counting Catch-up Contributions), and the limit imposed by the Actual Deferral Percentage test under Section 401(k)(3) of the Code. Catch-up Contributions for a Participant for a taxable year may not exceed the dollar limit on Catch-up Contributions under Section 414(v)(2)(B)(i) of the Code for the taxable year. The dollar limit on Catch-up Contributions under Section 414(v)(2)(B)(i) of the Code is \$5,000 for taxable years beginning in 2006 and later years. After 2006, the \$5,000 limit shall be adjusted by the Secretary of the Treasury for cost-of-living increases under Section 414(v)(2)(c) of the Code. Catch-up Contributions shall not be subject to the limits on Annual Additions, shall not be counted in the Actual Deferral Percentage test, and shall not be counted in determining the minimum allocation under Section 416 of the Code (but Catch-up Contributions made in prior years shall be counted in determining whether the Plan is top-heavy).

2.8 CODE. The Internal Revenue Code of 1986, as amended, and all rules, rulings, and regulations thereunder.

2.9 COMPENSATION. The total amount of compensation paid to a Participant by the Employer during a Plan Year as reflected on the Form W-2 filed by the Employer with respect to such Participant for the Plan Year plus any Elective Deferrals authorized by the Participant under this Plan and any amount that is contributed by the Employer pursuant to a Elective Deferral agreement and is not includible in the Participant's gross income under Section 125, 132(f)(4), 402(e)(3), 402(h)(1)(B), and 403(b). Notwithstanding the foregoing, Compensation shall not include cash profit bonus payments.

For Plan Years beginning before January 1, 1995, the Compensation of each Participant taken into account for determining all benefits provided under the Plan for any Plan Year shall not exceed \$200,000 (hereinafter the "\$200,000 limitation"). For each such Plan Year, this limitation shall be adjusted by the Secretary of the Treasury at the same time and in the same manner as under Section 415(d) of the Code, except that the dollar increase in effect on January 1 of any calendar year shall be effective for the Plan Year beginning in such calendar year and the first adjustment to the \$200,000 limitation shall be effective on January 1, 1990.

For Plan Years beginning on or after January 1, 1995 and before January 1, 2002, the annual Compensation of each Participant taken into account for determining all benefits provided under the Plan for any Plan Year shall not exceed \$150,000, as adjusted for increases in the cost-of-living in accordance with Section 401(a)(17)(B) of the Code. The cost-of-living adjustment in effect for a calendar year shall apply to any determination period beginning in such calendar year.

For Plan Years beginning after December 31, 2001, the annual Compensation of each Participant taken into account in determining allocations in any determination period shall not exceed \$200,000 ("EGTRRA Limit"). Annual Compensation means Compensation during the Plan Year or such other consecutive 12-month period over which compensation is otherwise determined under the Plan (the "determination period"). This EGTRRA Limit on annual Compensation shall be adjusted for cost-of-living increases in accordance with Section 401(a)(17)(B) of the Code. The cost-of-living adjustment in effect for a calendar year shall apply to annual Compensation for the determination period that begins with or within such calendar year.

If a determination period contains fewer than 12 months, then the annual Compensation limit shall be an amount equal to the otherwise applicable annual Compensation limit multiplied by a fraction, the numerator of which is the number of months in the short determination period and the denominator of which is 12.

Effective December 12, 1994, for each period a Participant is in qualified military service as defined in Section 414(u) of the Code, the Participant shall be deemed to have received compensation at the rate the Participant would have received but for such period of qualified military service, or if such rate is not reasonably ascertainable, on the basis of the Participant's average rate of compensation during the 12 month period immediately preceding the period of qualified military service (or if shorter, the period of employment immediately preceding qualified military service).

2.10 DEFERRED RETIREMENT DATE. The date a Participant actually retires from active employment with the Employer if such date is beyond his Normal Retirement Date.

2.11 DEFINED CONTRIBUTION ACCOUNT. The separate account maintained for each Participant on the Plan's records reflecting his interest in assets attributable to any Defined Contributions allocated to such Participant, as adjusted pursuant to Section 7.5.

2.12 DEFINED CONTRIBUTIONS. Contributions to the Plan by the Employer pursuant to Section 4.5.

2.13 DISABILITY RETIREMENT DATE. The date when the Employee first fails to pass an FAA medical examination that results in the loss of his license to fly as an airline pilot because of accidental bodily injury or any sickness or disease, including natural deterioration.

2.14 DOMESTIC RELATIONS ORDER. Any judgment, decree, or order (including approval of a property settlement agreement) that (i) relates to the provisions of child support, alimony payments, or marital property rights to a

spouse, former spouse, child, or other dependent of a Participant, and (ii) is made pursuant to state domestic relations law (including a community property law).

2.15 EARLY RETIREMENT DATE. The first day of the calendar month in which occurs a Participant's 55th birthday.

2.16 ELECTIVE DEFERRALS. Any Employer contributions made to the Plan at the election of the Participant in lieu of cash Compensation. With respect to any taxable year, a Participant's Elective Deferrals shall be the sum of all Employer contributions made on behalf of such Participant pursuant to an election to defer under any qualified cash or deferred arrangement described in Section 401(k) of the Code, any salary reduction simplified employee pension described in Section 408(k)(6) of the Code, any SIMPLE IRA plan described in Section 408(p) of the Code, any plan described under Section 501(c)(18) of the Code, and any employer contributions made on behalf of a participant for the purchase of an annuity contract under Section 403(b) of the Code pursuant to a salary reduction agreement. For years beginning after 2006, the term "Elective Deferrals" shall include Salary Deferrals and Roth Deferrals. Elective Deferrals shall not include any deferrals properly distributed as excess annual additions.

2.17 EMPLOYEE. Any Person employed by the Employer as a pilot and who is on the Hawaiian Airlines, Inc. System Seniority List.

2.18 EMPLOYER. Hawaiian Airlines, Inc. and any successor corporation.

2.19 EMPLOYER STOCK CONTRIBUTION ACCOUNT. The separate account maintained for each Participant on the Plan's records reflecting his interest in assets attributable to Employer Stock Contributions allocated to him, as adjusted pursuant to Section 7.5.

2.20 EMPLOYER STOCK CONTRIBUTIONS. Contributions to the Plan by the Employer pursuant to Section 4.4.

2.21 EMPLOYER STOCK. Shares of voting common stock of HA Holdings, Inc., which shares constitute "employer securities" as defined in Section 409(1) of the Code. Employer Stock that is listed on the American Stock Exchange and regularly traded thereon shall be valued by the Trustee at the closing price thereon determined as of the end of the trading day on which such value is to be determined.

2.22 ERISA. The Employee Retirement Income Security Act of 1974, as amended, and all rules, rulings, and regulations thereunder.

2.23 EXCESS CONTRIBUTIONS. With respect to any Plan Year the excess of (i) the aggregate amount of contributions actually taken into account in computing the Actual Deferral Percentage of Highly Compensated Employees for such Plan Year over (ii) the maximum amount of such contributions permitted by the Actual Deferral Percentage test (determined by hypothetically reducing contributions made on behalf of Highly Compensated Employees in order of the Actual Deferral Percentages, beginning with the highest of such percentages).

2.24 EXCESS ELECTIVE DEFERRALS. Those Elective Deferrals of a Participant that either (i) are made during the Participant's taxable year and exceed the dollar limitation under Section 402(g) of the Code (including, if applicable, the dollar limitation on Catch-up Contributions defined in Section 414(v) of the Code) for such year or (ii) are made during a calendar year and exceed the dollar limitation under Section 402(g) of the Code (including, if applicable, the dollar limitation on Catch-up Contributions defined in Section 414(v) of the Code) for the Participant's taxable year beginning in such calendar year, counting only Elective Deferrals made under this Plan and any other plan, contract, or arrangement maintained by the Employer. Excess Elective Deferrals shall be treated as Annual Additions under Section 8.4(A) of the Plan, unless such amounts are distributed no later than the first April 15 following the close of the Participant's taxable year.

2.25 HIGHLY COMPENSATED EMPLOYEE. Any Employee who:

(a) was a 5% owner (as defined in Section 416(i)(1) of the Code) at any time during the Plan Year or the preceding Plan Year or

(b) for the preceding Plan Year (i) had Statutory Compensation in excess of \$80,000 and (ii) was in the top-paid group of Employees for such preceding Plan Year. (Such \$80,000 shall be as adjusted pursuant to Section 415(d) of the Code, except that the base period shall be the calendar quarter ending September 30, 1996.)

The determination of who is a Highly Compensated Employee (including the determinations of the number and identity of employees in the top-paid group and the Statutory Compensation that is considered) shall be made in accordance with Section 414(q) of the Code and Notice 97-45.

A former Employee shall be treated as a Highly Compensated Employee if he was a Highly Compensated Employee (i) when he separated from service or (ii) at any time after attaining age 55.

For these purposes, the "determination year" shall be the Plan Year and the "look-back year" shall be the 12-month period immediately preceding the determination year.

2.26 HOUR OF SERVICE. The sum of --

(a) Each hour for which an employee is directly or indirectly paid, or entitled to payment, by the Employer for the performance of services and each hour for which back pay, regardless of mitigation of damages, is either awarded or agreed to by the Employer; provided, however, that an employee shall be credited with only one Hour of Service even though such employee may receive more than straight-time pay for such hour; and

(b) Each hour for which an employee is directly or indirectly paid, or entitled to payment, by the Employer for reasons other than performance of duties, including paid vacation hours and hours of sickness or disability for which he is paid (other than solely for the purpose of complying with applicable workman's compensation, unemployment compensation, or disability laws or other than solely as reimbursement for medical expenses), jury duty, layoff, military duty, or leave of absence up to a maximum of 501 hours for any continuous period during which the employee is paid although no duties were performed. When payments made for reasons other than the performance of duties are calculated on units of time (such as eight hours per day or 40 hours per week), such additional hours shall be credited based on the number of regularly scheduled working hours included in the units of time on which such payments are based. When such payments are not calculated on units of time, such additional Hours of Service shall be credited by dividing the amount of payment received or due for reasons other than the performance of duties by the lesser of: (i) the employee's most recent hourly rate of Compensation for the performance of duties or (ii) the employee's average rate of Compensation for the performance of duties for the most recent Plan Year in which such employee completed more than 500 Hours of Service. The determination of Hours of Service for reasons other than the performance of duties, and the crediting of such hours to periods of service, shall in all instances comply with the provisions of Labor Department Regulations Sections 2530.200b-2(b) and (c). An Hour of Service shall be determined from records maintained by the Employer; provided, however, that in the case of an employee whose Compensation is not determined on the basis of certain amounts for each hour worked (such as salaried, commission, and piece-work employees) and whose hours are not required to be counted and recorded by any federal law (such as the Fair Labor Standards Act), such employee's Hours of Service, in the discretion of the Employer, need not be determined from employment records and such employee may be credited with 45 Hours of Service per each week, or ten Hours of Service per each day, in which the Employee would be credited with Hours of Service pursuant to this Section 2.22.

For participation and vesting purposes, an individual who is absent from work for maternity or paternity reasons shall receive credit for Hours of Service which would otherwise have been credited to such individual but for such absence, or in any case in which such hours cannot be determined, eight Hours of Service

per day of such absence. For purposes of this paragraph, an absence from work for maternity or paternity reasons means an absence (1) by reason of the pregnancy of the individual, (2) by reason of a birth of a child of the individual, (3) by reason of the placement of a child with the individual in connection with the adoption of such child by such individual, or (4) for purposes of caring for such child for a period beginning immediately following such birth or placement. The Hours of Service credited under this paragraph shall be credited for a 12-month period beginning in the Plan Year in which the absence begins.

An Hour of Service shall be credited for employment with other members of an affiliated service group (as defined under Section 414(m) of the Code); a controlled group of corporations (as defined under Section 414(b) of the Code); or a group of trades or businesses under common control (as defined under Section 414(c) of the Code) of the Employer, and any other entity required to be aggregated with the Employer pursuant to Section 414(n) or 414(o) of the Code and the regulations thereunder.

Hours of Service shall also be credited for any individual considered an Employee for purposes of this Plan under Section 414(n) or Section 414(o) of the Code and the regulations thereunder.

For purposes of this definition, "employee" shall mean a person employed in any capacity by the Employer and shall not be restricted to persons employed as pilots.

2.27 MARRIED PARTICIPANT. A Participant who has been married to his spouse for at least one year on the date of the Participant's death.

2.28 NORMAL RETIREMENT DATE. The first day of the calendar month in which occurs a Participant's 60th birthday.

2.29 PARTICIPANT. Any Employee who becomes eligible to participate in the Plan pursuant to Article 3. In addition, any Person who maintains a balance in an Account under the Plan shall be considered a Participant for such purpose.

Each active Participant shall be classified in one of the following groups:

Group A Participant: An Employee on the System Seniority List as of January 1, 2006 (including, but not limited to, an Employee who was on furlough on that date) and who after December 31, 2007 is eligible to accrue benefits under the Retirement Plan for Pilots of Hawaiian Airlines, Inc. for compensation and service after December 31, 2007.

Group B Participant: An Employee on the System Seniority List as of January 1, 2006 (including, but not limited to, an Employee who was on furlough on that date) and whose accrued benefit under the Retirement Plan for Pilots of Hawaiian Airlines, Inc. was frozen as of December 31, 2007.

Group C Participant: An Employee not on the System Seniority List as of June 30, 2005.

- 2.30 PERSON. Any individual, partnership, corporation, trust, or other entity.
- 2.31 PLAN. Hawaiian Airlines, Inc. Pilots' 401(k) Plan.
- 2.32 PLAN ADMINISTRATOR. The Employer, as provided in Section 18.1.
- 2.33 PLAN YEAR. The period from September 1, 1990 through December 31, 1990 and each subsequent 12-month period ending on December 31.
- 2.34 QUALIFIED DOMESTIC RELATIONS ORDER. A Domestic Relations Order that satisfies the requirements of Section 414(p) of the Code.
- 2.35 REGULAR ROLLOVER ACCOUNT. The separate account maintained for each Participant on the Plan's records reflecting his interest in assets attributable to any rollover contribution made by such Participant from a non-Roth elective deferral account, as adjusted pursuant to Section 7.5.
- 2.36 RETIREMENT BOARD. The body established pursuant to Article 19.
- 2.37 ROTH DEFERRAL. Such portion of a Participant's Elective Deferrals that are includible in the Participant's gross income at the time deferred and have been irrevocably designated as Roth Deferrals by the Participant in his deferral election.
- 2.38 ROTH DEFERRAL ACCOUNT. The separate account maintained for each Participant on the Plan's records reflecting his interest in assets attributable to Roth Deferrals, as adjusted pursuant to Section 7.5.
- 2.39 ROTH ROLLOVER ACCOUNT. The separate account maintained for each Participant on the Plan's records reflecting his interest in assets attributable to any rollover contribution made by such Participant from a Roth elective deferral account, as adjusted pursuant to Section 7.5.
- 2.40 SALARY DEFERRAL. Such portion of a Participant's Elective Deferrals that are not includible in the Participant's gross income at the time deferred and have been irrevocably designated as Salary Deferrals by the Participant in his deferral election.

2.41 SALARY DEFERRAL ACCOUNT. The separate account maintained for each Participant on the Plan's records reflecting his interest in assets attributable to Salary Deferrals, as adjusted pursuant to Section 7.5.

2.42 STATUTORY COMPENSATION. The aggregate of all of a Participant's wages, salaries, and fees for professional services and other amounts received (without regard to whether or not an amount is paid in cash) for personal services actually rendered in the course of employment with the Employer to the extent that the amounts are includible in gross income (including, but not limited to, commissions paid salesmen, compensation for services on the basis of a percentage of profits, commissions on insurance premiums, tips, bonuses, fringe benefits, and reimbursements or other expense allowances under a nonaccountable plan described in Treas. Reg. § 1.62-2(c)), and excluding the following:

(1) Employer contributions to a plan of deferred compensation that are not includible in the employee's gross income for the taxable year in which contributed, Employer contributions under a simplified employee pension plan to the extent such contributions are deductible by the employee, or any distributions from a plan of deferred compensation;

(2) amounts realized (i) from the exercise of a non-qualified stock option or (ii) when restricted stock (or property) held by the employee either becomes freely transferable or is no longer subject to a substantial risk of forfeiture;

(3) amounts realized from the sale, exchange, or other disposition of stock acquired under a qualified stock option; and

(4) other amounts that received special tax benefits, or contributions made by an Employer (whether or not under a deferral agreement) towards the purchase of an annuity account described in Section 403(b) of the Code (whether or not the contributions are actually excludible from the gross income of the employee).

For Limitation Years (as defined in Section 8.3(D)) beginning after December 31, 1991, Statutory Compensation for a Limitation Year shall be the Compensation actually paid or made available during such year. Effective as of January 1, 1998, Statutory Compensation shall also include (i) any elective deferral (as defined in Section 402(g)(3) of the Code) and (ii) any amount that is contributed or deferred by an Employer at the election of the Employee and is not includible in the gross income of the Employee by reason of Section 125, 132(f)(4), 402(e)(3), 402(h)(1)(B), 403(b), or 457 of the Code.

For Plan Years beginning before January 1, 1995, the Compensation of

each Participant taken into account for determining all benefits provided under the Plan for any Plan Year shall not exceed \$200,000 (hereinafter the "\$200,000 limitation"). For each such Plan Year, this limitation shall be adjusted by the Secretary of the Treasury at the same time and in the same manner as under Section 415(d) of the Code, except that the dollar increase in effect on January 1 of any calendar year shall be effective for the Plan Year beginning in such calendar year and the first adjustment to the \$200,000 limitation shall be effective on January 1, 1990.

For Plan Years beginning on or after January 1, 1995 and before January 1, 2002, the annual Compensation of each Participant taken into account for determining all benefits provided under the Plan for any Plan Year shall not exceed \$150,000, as adjusted for increases in the cost-of-living in accordance with Section 401(a)(17)(B) of the Code. The cost-of-living adjustment in effect for a calendar year shall apply to any determination period beginning in such calendar year.

For any Plan Year beginning after December 31, 2001, the annual Statutory Compensation of each Participant taken into account in determining allocations shall not exceed \$200,000 ("EGTRRA Limit"). Annual Statutory Compensation means Statutory Compensation during the Plan Year or such other consecutive 12-month period over which compensation is otherwise determined under the Plan (the "determination period"). This EGTRRA Limit on annual Statutory Compensation shall be adjusted for cost-of-living increases in accordance with Section 401(a)(17)(B) of the Code. The cost-of-living adjustment in effect for a calendar year shall apply to annual Statutory Compensation for the determination period that begins with or within such calendar year.

If a determination period contains fewer than 12 months, then the annual Compensation limit shall be an amount equal to the otherwise applicable annual Compensation limit multiplied by a fraction, the numerator of which is the number of months in the short determination period and the denominator of which is 12.

2.43 STOCK FUND. The investment fund consisting of Employer contributions of Employer Stock to the Plan and dividends and distributions on Employer Stock held in the Stock Fund. The Stock Fund may also contain Employer Stock purchased on the open market by the Trustee. The Stock Fund shall be primarily invested in Employer Stock with a small percentage invested in a money market fund to provide liquidity.

2.44 SYSTEM SENIORITY LIST. The Hawaiian Pilots' System Seniority List for Pilots of Hawaiian Airlines, Inc.

2.45 TARGET BENEFIT ACCOUNT. The separate account maintained for each Participant on the Plan's records reflecting his interest in assets attributable to any

Target Benefit Contributions allocated to such Participant, as adjusted pursuant to Section 7.5.

2.46 TARGET BENEFIT CONTRIBUTIONS. Contributions to the Plan by the Employer pursuant to Section 4.5.

2.47 TERMINATION OF EMPLOYMENT. A Participant's separation from service with the Employer. In addition, an Employee who has been furloughed by the Employer for at least one year may elect, for purposes of this Plan only, to be treated as having incurred a Termination of Employment, although he retains all recall rights and other rights as a furloughed pilot under the collective bargaining agreement between the Employer and the Association in effect at the time of his furlough.

2.48 TRUST. The legal entity resulting from this Plan and the Trust Agreement executed incident hereto which provides for the Trust to receive, hold, and invest the contributions made by the Employer and/or Participant and to make disbursements to, or for the benefit of, Participants and their Beneficiaries.

2.49 TRUST AGREEMENT. The agreement between the Employer and the Trustee executed pursuant to Article 20.

2.50 TRUST FUND. The total of contributions to the Trust made by the Employer and Participants pursuant to this Plan, increased by income, gains, appreciation, and recoveries received, and decreased by losses, depreciation and benefits paid. The Trust Fund includes all assets acquired by investment and reinvestment which are held in the Trust Fund.

2.51 TRUSTEE. The person(s) appointed pursuant to Section 20.1, and any duly appointed additional or successor Trustee(s) acting thereunder.

2.52 VALUATION DATE. The last business day of each calendar quarter; but with respect to the distribution of an account, the business day preceding the date of distribution.

2.53 VOLUNTARY AFTER TAX CONTRIBUTION ACCOUNT. The separate account maintained for each Participant to reflect his interest in assets attributable to contributions voluntarily made by such Participant, as adjusted pursuant to Section 7.5.

2.54 YEAR OF SERVICE. Twelve months of service, where a month of service is any calendar month in which the Employee is credited with at least one Hour of Service. Nonconsecutive months of service shall be aggregated. Years of Service shall be expressed in whole years and fractional years with each month of service constituting 1/12th of one Year of Service.

ARTICLE 3
PARTICIPATION

3.1 REQUIREMENTS.

(A) Minimum Service Requirement: Group A and Group B.

(1) Each Employee classified as a Group A Participant or a Group B Participant who was a Participant on April 30, 2007 and who is an Employee on May 1, 2007 shall continue as a Participant. Each Employee classified as a Group A Participant or a Group B Participant who was not a Participant on April 30, 2007 shall commence participation on the day he first completes an Hour of Service. Any Group A Participant or Group B Participant who previously met the foregoing requirements of this Section 3.1(A)(1) and who becomes reemployed as an Employee shall commence participation on the first day of the month following his date of reemployment.

(2) In all cases, an Employee classified as a Group A Participant or a Group B Participant who completes 1,000 Hours of Service during the 12-consecutive month period measured from the date he first completes an Hour of Service (or an anniversary thereof) shall be regarded as completing one Year of Service.

(B) Minimum Service Requirement: Group C. An Employee classified as a Group C Participant shall become a Participant on his date of hire as an Employee classified as a Group C Participant. If a Person who is employed by the Employer in a capacity other than as an Employee classified as a Group C Participant subsequently becomes an Employee classified as a Group C Participant, he shall commence participation on his date of hire.

3.2 DETERMINATION OF ELIGIBILITY. The Plan Administrator shall determine the eligibility of each Employee to participate in this Plan.

3.3 MILITARY LEAVE. Contributions, benefits, and service credit with respect to qualified military service shall be provided in accordance with Section 414(u) of the Code. The Participant shall be responsible for reporting his military leave to the Employer in writing, on a form prescribed by the Plan Administrator. Upon return to work from a qualified military leave, an Employee shall receive service credit for the military leave for purposes of eligibility, vesting, Hours of Service, and Years of Service.

ARTICLE 4 CONTRIBUTIONS

4.1 ELECTIVE DEFERRAL CONTRIBUTIONS.

(A) Election and Amount.

(1) A Participant may elect to reduce his cash Compensation by a designated amount (in whole multiples of 1% of his cash Compensation with a maximum of 50%), provided that in no case shall the amount contributed to the Plan for any pay period exceed the amount of Compensation for such pay period that remains after such Compensation has been reduced by withholdings and deductions that are given priority by the Employer's payroll program. Any such election must specify the portion of the Elective Deferral contribution (including any Catch-up Contribution) to be contributed as Salary Deferral and the portion to be contributed as Roth Deferral. In accordance with the Participant's election, the Employer shall contribute, in cash, the applicable portion of the Elective Deferral (including any Catch-up Contribution) to the Participant's Salary Deferral Account or Roth Deferral Account. Elective Deferrals contributed to the Plan as one type, either Salary Deferral or Roth Deferral, may not later be reclassified as the other type.

(2) In accordance with such procedures as may be adopted by the Plan Administrator or its designee, a Participant may change his Salary Deferral election at any time. In no event, however, may a Participant's Elective Deferral contribution for a Plan Year exceed the amount specified in Section 4.1(F)(1).

(B) Elective Deferral Agreement. The election described in Section 4.1(A) shall be made by a written Elective Deferral agreement between the Employer and the Employee, in such form and manner as approved by the Plan Administrator.

(C) Time for Payment. Elective Deferral contributions shall be transmitted by wire transfer to the Trust by the Employer as soon as reasonably possible, but in no event later than 15 days from the date such amounts would have been due and payable to the Participant in the absence of an Elective Deferral agreement, in accordance with the Employer's usual payroll procedures.

(D) Special Rule.

(1) The Average Actual Deferral Percentage for Participants who are Highly Compensated Employees for the Plan Year shall not exceed the

Average Actual Deferral Percentage for Participants who are non-Highly Compensated Employees for such Plan Year multiplied by 1.25; or

(2) The Average Actual Deferral Percentage for Participants who are Highly Compensated Employees for the Plan Year shall not exceed the Average Actual Deferral Percentage for Participants who are non-Highly Compensated Employees for such Plan Year multiplied by 2.0, provided that the Average Actual Deferral Percentage for Participants who are Highly Compensated Employees does not exceed the Average Actual Deferral Percentage for Participants who are non-Highly Compensated Employees by more than two percentage points.

(3) The Actual Deferral Percentage for any Participant who is a Highly Compensated Employee for the Plan Year and who is eligible to have Elective Deferrals (and qualified non-elective contributions or qualified matching contributions, or both, if treated as elective deferrals for purposes of the Actual Deferral Percentage test) allocated to his accounts under two or more arrangements described in Section 401(k) of the Code, that are maintained by the Employer, shall be determined as if such Elective Deferrals (and, if applicable, such qualified non-elective contributions or qualified matching contributions, or both) were made under a single arrangement. For Plan Years prior to 2006, if a Highly Compensated Employee participates in two or more cash or deferred arrangements that have different Plan Years, all cash or deferred arrangements ending with or within the same calendar year shall be treated as a single arrangement. Notwithstanding the foregoing, certain plans shall be treated as separate if required to be mandatorily disaggregated under regulations under Section 401(k) of the Code.

(a) For purposes of determining the Actual Deferral Percentage test, Elective Deferrals, qualified non-elective contributions, and qualified matching contributions must be made before the last day of the 12-month period immediately following the Plan Year to which contributions relate.

(b) The Employer shall maintain records sufficient to demonstrate satisfaction of the Actual Deferral Percentage test and the amount of qualified non-elective contributions or qualified matching contributions, or both, used in such test.

(c) The determination and treatment of the Actual Deferral Percentage amounts of any Participant shall satisfy such other requirements as may be prescribed by the Secretary of the Treasury.

(d) If this Plan satisfies the requirements of Section 401(a)(4), 401(k), or 410(b) of the Code only if aggregated with one or more plans, or if one or more other plans satisfy the requirements of such section of the Code

only if aggregated with this Plan, then this Section 4.1(D) shall be applied by determining the Actual Deferral Percentage of employees as if all such plans were a single plan. The aggregation of this Plan with any other plan is permissible only if the results of the Actual Deferral Percentage test is no less favorable than when calculated without such aggregation. If more than ten percent of the Employer's non-Highly Compensated Employees are involved in a plan coverage change as defined in Treas. Reg. § 1.401(k)-2(c)(4), then any adjustments to the non-Highly Compensated Employees' Actual Deferral Percentage for the prior year shall be made in accordance with such Regulations. Plans may be aggregated to satisfy Section 401(k) of the Code only if they have the same plan year and use the same Actual Deferral Percentage testing method.

(e) For Plan Years commencing after December 31, 2007, the Employer and the Association may agree to comply with the non-discrimination requirements of Section 401(k)(3) of the Code by satisfying the Safe Harbor rules of Section 401(k)(12) of the Code.

(E) Refund of Excess Contributions.

(1) Notwithstanding any other provision of the Plan, Excess Contributions, plus any income and minus any loss allocable thereto, shall be distributed no later than 12 months after a Plan Year to Participants to whose accounts such Excess Contributions were allocated for such Plan Year, except to the extent such Excess Contributions are classified as Catch-up Contributions. Excess Contributions shall be allocated to the Highly Compensated Employees with the largest amounts of Employer contributions taken into account in calculating the Actual Deferral Percentage test for the year in which the excess arose, beginning with the Highly Compensated Employee with the largest amount of such Employer contributions and continuing in descending order until all the Excess Contributions have been allocated. To the extent a Highly Compensated Employee has not reached his Catch-up Contribution limit under the Plan, Excess Contributions allocated to such Highly Compensated Employee shall be Catch-up Contributions and shall not be treated as Excess Contributions. If such excess amounts (other than Catch-up Contributions) are distributed more than 2 1/2 months after the last day of the Plan Year in which such excess amounts arose, a ten-percent excise tax shall be imposed on the Employer maintaining the Plan with respect to such amounts.

(2) Excess Contributions shall be treated as annual additions under the Plan even if distributed.

(3) Any Excess Contributions shall be returned to the Employer; provided that these funds shall be paid to the affected Participants as additional Compensation, net of any applicable tax withholdings.

(4) Such Excess Contributions shall be adjusted for any income or loss up to the date of distribution. The income or loss allocable to such Excess Contributions shall be the sum of:

(i) the income or loss allocable to the Participant's Salary Deferral Account or Roth Deferral Account for the Plan Year for which the excess contributions occurred multiplied by a fraction, the numerator of which is the Participant's excess contributions for the year and the denominator of which is the balance of the Participant's Salary Deferral Account or Roth Deferral Account as of the end of the Plan Year without regard to any income or loss occurring during such Plan Year; and

(ii) 10% of the amount determined under (i) above multiplied by the number of whole calendar months between the end of such taxable year and the date of distribution, counting the month of distribution if distribution occurs after the 15th day of such month.

(5) Distribution of Elective Deferrals that are Excess Contributions shall be made from the Participant's Salary Deferral Account before the Participant's Roth Deferral Account, to the extent Salary Deferrals were made for the year.

(F) Section 402(g) Limitations on Elective Deferral Contributions.

(1) No Participant shall be permitted to have Elective Deferrals made under this Plan or any other qualified plan maintained by the Employer during any taxable year in excess of the dollar limitation contained in Section 402(g) of the Code in effect at the beginning of such taxable year, except to the extent permitted under Section 4.1(G).

(2) A Participant may assign to this Plan any Excess Elective Deferrals made during a taxable year of the Participant by notifying the Plan Administrator on or before March 1 of the applicable year of the amount of the Excess Elective Deferrals to be assigned to the Plan. A Participant shall be deemed to notify the Employer of any Excess Elective Deferrals that arise by taking into account only those Elective Deferrals made to this Plan and any other plans of the Employer.

(3) Notwithstanding any other provision of the Plan, Excess Elective Deferrals, plus any income and minus any loss allocable thereto, shall be distributed no later than April 15 of each year to the Participant to whose account Excess Elective Deferrals were assigned for the preceding year and who claims Excess Elective Deferrals for such taxable year. Distribution of Excess Elective Deferrals for a year shall be made first from the Participant's Salary Deferral Account, to the extent Salary Deferrals were made for the year.

(4) The Participant's claim must (i) be in writing, (ii) be submitted to the Plan Administrator not later than March 1 of the applicable year, (iii) specify the amount of the Participant's Excess Elective Deferrals for the preceding calendar year, and (iv) be accompanied by the Participant's written statement that if such amounts are not distributed, such Excess Elective Deferrals (when added to amounts deferred under other plans or arrangements described in Sections 401(k), 408(k), or 403(b) of the Code) shall exceed the limit imposed on the Participant by Section 402(g) of the Code for the year in which the deferral occurred.

(5) The Excess Elective Deferrals shall be adjusted for any income or loss up to the date of distribution. The income or loss allocable to Excess Elective Deferrals shall be the sum of:

(i) the income or loss allocable to the Participant's Salary Deferral Account or Roth Deferral Account for the taxable year multiplied by a fraction, the numerator of which is such Participant's Excess Elective Deferrals for the year and the denominator of which is the balance of the Participant's Salary Deferral Account or Roth Deferral Account without regard to any income or loss occurring during such taxable year; and

(ii) 10% of the amount determined under (i) above multiplied by the number of whole calendar months between the end of the Participant's taxable year and the date of distribution, counting the month of distribution if distribution occurs after the 15th day of such month.

The amount of Excess Elective Deferrals that may be distributed with respect to a Participant shall be reduced by any Excess Contributions previously distributed or recharacterized with respect to such Participant for the Plan Year beginning with or within such taxable year. In no event may the amount distributed exceed the Participant's total Elective Deferrals for such taxable year.

(G) All Participants who are eligible to make Elective Deferrals under this Plan and who have attained age 50 before the close of the Plan Year shall be eligible to make catch-up contributions in accordance with, and subject to the limitations of, Section 414(v) of the Code. Such catch-up contributions shall not be taken into account for purposes of the provisions of the Plan implementing the required limitations of Sections 402(g) and 415 of the Code. The Plan shall not be treated as failing to satisfy the provisions of the Plan implementing the requirements of Section 401(k)(3), 401(k)(11), 401(k)(12), 410(b), or 416 of the Code, as applicable, by reason of the making of such catch-up contributions.

4.2 VOLUNTARY AFTER TAX CONTRIBUTIONS. No Participant is required to make any contributions to the Plan. However, each Participant may make

voluntary after tax contributions to the Plan in whole multiples of 1% of his Compensation. Such voluntary after tax contributions may not exceed 10% of such Participant's Statutory Compensation for the Plan Year of the contribution. If such Participant is a participant under any other defined contribution or defined benefit plan of the Employer, the total voluntary after tax contributions under all such plans shall not exceed 10% of such Participant's Statutory Compensation for all Plan Years that he has been a Participant. Any such voluntary after tax contributions by a Participant shall be credited to such Participant's Voluntary After Tax Contribution Account and shall be immune from forfeiture under any provision of this Plan.

4.3 ROLLOVER CONTRIBUTIONS.

(A) An Employee, whether or not he has met the service requirement for active participation, may make a rollover contribution to the Plan. The Retirement Board shall determine whether to accept such contribution. Any rollover contribution shall be kept in a separate Regular Rollover Account or Roth Rollover Account, as applicable, in such Participant's name on the Plan's records and shall be immune from forfeiture under any provision of this Plan.

The Retirement Board may accept Employee rollover contributions and/or direct rollovers of eligible rollover distributions from the following types of plans:

- (i) a qualified plan described in Section 401(a) or 403(a) of the Code, excluding after-tax employee contributions;
- (ii) an annuity contract described in Section 403(b) of the Code, excluding after-tax employee contributions;
- (iii) an eligible plan under Section 457(b) of the Code which is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or political subdivision of a state; and
- (iv) the portion of a distribution from an individual retirement account or annuity described in Section 408(a) or 408(b) of the Code that is eligible to be rolled over and would otherwise be includible in gross income.

(B) Notwithstanding any other provision of the Plan, the Plan may accept a rollover contribution to a Roth Rollover Account if it is a direct rollover from another Roth elective deferral account under an applicable retirement plan described in Section 402A(e)(1) of the Code but only to the extent the rollover is permitted under the rules of Section 402(c) of the Code.

4.4 EMPLOYER STOCK CONTRIBUTIONS.

From time to time, the Employer made contributions (all of which have been completed) to the Trust in Employer Stock as required by letters of agreement with the Association. In addition, the Employer shall contribute Employer Stock to the Plan in accordance with the Letter of Agreement (and any amendments thereto) between the Employer and the Association attached hereto as Appendix 2 of the Plan. Such contributions shall be allocated to Participants and shall be made at such times and in such manner as shall be determined under said Letter of Agreement (and any amendments thereto).

4.5 TARGET BENEFIT CONTRIBUTIONS AND DEFINED CONTRIBUTIONS.

(A) Effective for Plan Years commencing on or after January 1, 2008, the Employer shall contribute to the Plan an amount equal to 17% of Group B Participants' Compensation as Target Benefit Contributions. Effective as of July 1, 2005, the Employer shall contribute to the Plan an amount equal to 15% of Group C Participants', if any, Compensation as Defined Contributions.

(B) Target Benefit Contributions and Defined Contributions shall be allocated pursuant to Section 5.2 and Appendix 3 of the Plan and deposited to each eligible Participant's Target Benefit Account or Defined Contribution Account no later than the 15th calendar day of the month following the month in which the Participant is paid the Compensation with respect to which the contribution and allocation is made.

4.6 RETURN OF CONTRIBUTIONS. Notwithstanding any other provisions of this Plan:

(i) any contribution made because of a mistake of fact must be returned to the Employer within one year of the contribution; or

(ii) if the deduction of a contribution is disallowed under Section 404 of the Code, such contribution (to the extent disallowed) must be returned to the Employer within one year of the disallowance of the deduction.

Any contribution that is returned to the Employer shall be paid directly to the Participants as compensation.

4.7 INDIVIDUAL LIMITATIONS ON CONTRIBUTIONS. The total amount of contributions under this Article for any Plan Year may not exceed the limitations set forth in Article 8.

4.8 MAKE UP CONTRIBUTIONS.

(A) Effective December 12, 1994, an Employee who was on leave due to qualified military service, as defined in Section 414(u)(5) of the Code, shall be entitled to make additional Elective Deferrals and Voluntary After Tax Contributions to make up for the period of leave during which no contributions were made, provided the Employee is reemployed by the Employer. Such additional contributions must be made to the Plan within the period beginning with the date of the Employee's reemployment and ending with the date equal to three times the duration of the Employee's qualified military service, not to exceed five years.

(B) The amount of additional Elective Deferral and Voluntary After Tax Contributions an Employee is permitted to make pursuant to this Section 4.7 shall be limited to the amount of Elective Deferrals and Voluntary After tax Contributions the Employee would have been permitted to make under the Plan during the period of qualified military service if the Employee had continued to be employed by the Employer during this period and received Compensation.

(C) The Employee shall be entitled to Employer contributions under Sections 4.4 and 4.5 that would have been made during the period of qualified military service. Such Employer contributions shall be determined and made as as soon as practicable following the Employee's reemployment with the Employer.

(D) The make-up contributions pursuant to this Section 4.8, (i) may not exceed the amount the Employee would have been permitted to make or receive on his behalf had the Employee remained continuously employed by the Employer throughout the period of qualified military service; (ii) shall not be subject to any otherwise applicable limitation contained in Section 402(g) , 402(h) , 403(b) , 404(a) , 404(h) , 408 , 415 , or 457 of the Code, and shall not be taken into account in applying such limitations to other contributions or benefits under this Plan or any other plan, with respect to the year in which such contribution is made; and (iii) shall be subject to the limitations referred to in the prior clause (ii) with respect to the year to which the contribution relates (in accordance with rules prescribed by the Secretary of the Treasury).

ARTICLE 5 ALLOCATIONS TO PARTICIPANTS' ACCOUNTS

5.1 SEPARATE ACCOUNTS. The Plan Administrator shall establish and maintain on its books, as applicable, a Salary Deferral Account, a Roth Deferral Account, a Voluntary After Tax Contribution Account, a Rollover Account, a Target Benefit Account, a Defined Contribution Account, and an Employer Stock Contribution Account in the name of each Participant.

5.2 ALLOCATION RULES.

(A) Elective Deferral Contributions. The Plan Administrator shall allocate Elective Deferral contributions among Participants' Salary Deferral Accounts and Roth Deferral Accounts in accordance with the applicable Elective Deferral agreements and concurrent with the Employer's deposit of such contributions in the Trust pursuant to Section 4.1.

(B) Voluntary After Tax Contributions. The Plan Administrator shall allocate voluntary after tax contributions among the Participants' Voluntary After Tax Contribution Accounts in accordance with the applicable voluntary after tax contribution agreements and concurrent with the Employer's deposit of such contributions in the Trust pursuant to Section 4.2.

(C) Rollover Contributions. The Plan Administrator shall allocate rollover contributions among the Participant's Regular Rollover Account or Roth Rollover Account, as applicable, concurrent with the Employer's deposit of such contributions in the Trust pursuant to Section 4.3.

(D) Employer Stock Contributions. The Employer shall allocate Employer Stock to the Plan in accordance with the Letter of Agreement between the Employer and the Association, a copy of which is attached as Appendix 2 to the Plan. Such contributions shall be allocated to Participants and shall be made at such times and in such manner as shall be determined under said Letter of Agreement.

(E) Target Benefit Contributions and Defined Contributions. The Plan Administrator shall allocate Target Benefit Contributions and Defined Contributions among Participants' Target Benefit Accounts and Defined Contribution Accounts in accordance with Appendix 3 concurrent with the Employer's deposit of such contributions in the Trust pursuant to Section 4.5.

ARTICLE 6 VESTING

A Participant's Accounts shall be 100% nonforfeitable at all times.

ARTICLE 7 INVESTMENT OF ACCOUNTS

7.1 PARTICIPANT-DIRECTED INVESTMENT. All contributions to the Trust shall be invested by the Trustee as directed by the Participants pursuant to this Article 7 or in accordance with Section 7.4.

7.2 INVESTMENT OPTIONS. Subject to the next paragraph, each Participant shall select any combination of the following investment options with respect to the funds in all of his Accounts (except his Employer Stock Contribution Account):

(A) An investment option as selected by the Retirement Board, from time to time, which provides for a short term fixed rate of return;

(B) An investment option as selected by the Retirement Board, from time to time, which is primarily invested in equities;

(C) An investment option as selected by the Retirement Board, from time to time, which is primarily invested in high grade money market instruments; and

(D) Any additional investment options as selected, from time to time, by the Retirement Board; provided that in addition to the seven investment options existing as of December 8, 1995, seven additional investment options shall be selected by the pilot members of the Retirement Board and the retention or replacement of such seven additional options shall be determined, from time to time, by the pilot members of the Retirement Board.

Such elections shall be made in writing or, if acceptable to the Trustee, by phone or electronic transmission, to the Trustee in accordance with procedures established by the Plan Administrator. Each Participant shall be solely responsible for the selection of his investment options provided for hereunder. The fact that an investment option is made available to a Participant for investment under the Plan shall not constitute, or be construed as constituting, a recommendation for investment in that investment option.

A Participant may direct the Trustee to liquidate any or all amounts held in his name in the Stock Fund, to the extent permissible under law, and immediately thereafter reinvest in another investment option available under this Article 7. The Trust Fund may hold up to 100% of its assets in Employer Stock. A Participant may not, however, direct the Trustee to liquidate any or all amounts held in his name in another investment option and immediately thereafter reinvest in the Stock Fund.

A directed brokerage account through Vanguard Brokerage Services (or such other service provider as may be approved by the Retirement Board) shall also be available as an investment option under the Plan. Such directed brokerage account shall be subject to such restrictions and limitations as Vanguard Brokerage Services (or such other service provider as may be approved by the Retirement Board) may from time to time impose, including

restrictions and limitations on the investments that may be acquired through such directed brokerage account.

7.3 FREQUENCY OF CHANGING INVESTMENT OPTIONS. Subject only to restrictions imposed by the Trustee, a Participant shall be permitted to change his election of any investment option(s) and/or the percentage of funds (in increments of 10%) in each of his Accounts to be invested in each investment option, with respect to prior contributions, future contributions, other allocations, and all earnings thereon.

7.4 FAILURE TO SELECT INVESTMENT OPTION. Any funds in the Accounts of a Participant with respect to which the Participant has failed to elect an investment option shall be invested in such option as may be designated from time to time by the Retirement Board pursuant to Section 7.2(C), until such time as the Trustee is advised by the Participant of the investment option election.

7.5 INVESTMENT INCOME AND LOSSES. The amount of net income, loss, appreciation, or depreciation from each investment option shall be credited to or charged against, as the case may be, each of the Accounts of each Participant selecting such option on a pro rata basis no less frequently than the last day of each month in the Plan Year or as the Trustee may dictate. The Plan Administrator shall provide each Participant with written information concerning his investments' performance for each quarter within the first month of the following quarter.

7.6 VOTING EMPLOYER STOCK. Any Participant shall be entitled to inform the Trustee in writing of the direction in which he would vote the shares of Employer Stock then allocated to his interest in the Stock Fund. The Trustee shall vote the block of shares so allocated to Participants according to the direction of the majority of number of shares for which the Trustee received information, subject, however, to the Trustee's fiduciary obligation under ERISA. Shares of Employer Stock held by the Stock Fund that are not then allocated to Participants shall be voted by the fiduciaries designated in Section 18.6 in accordance with the applicable fiduciary obligations of ERISA.

On any question regarding the merger, consolidation, or acquisition of the Employer, the acquisition by the Employer of another airline, the sale of all or substantially all of the Employer's assets, or the liquidation of the Employer, the Trustee shall vote the block of allocated and unallocated shares of Employer Stock held by the Stock Fund as specified above. In addition, prior to any sale of Employer Stock by the Trustee other than as described in Section 14.2 (such as a "tender offer" for Employer Stock or a "takeover attempt"), a majority of the shares of Employer Stock allocated to Participants must have been voted by such Participants in favor of such sale.

At the direction of the Plan Administrator, the Trustee shall use its best efforts to deliver, or cause to be delivered, to the Participants a copy of all proxies, notices, and other information that the Employer generally distributes to the shareholders of the Employer. The Trustee shall establish such procedures for the collection of the instructions of the Participants on the voting of Employer Stock held in the Stock Fund as it shall determine to be appropriate.

7.7 CONVERSION OF EMPLOYER STOCK TO CASH. Cash resulting from liquidation of Employer Stock pursuant to the provisions of this Article 7 shall be credited to the Participant as of the transaction date.

7.8 ERISA SECTION 404(c) PLAN. The Plan is intended to constitute a plan described in Section 404(c) of ERISA and the regulations thereunder. As a result, with respect to elections described in the Plan and any exercise of control by a Participant or Beneficiary over assets in the Participant's Accounts, such Participant or Beneficiary shall be solely responsible for such actions, and neither the Employer, the Association, nor any other person or entity shall be liable for any loss or liability that results from such Participant's or Beneficiary's exercise of control.

ARTICLE 8 LIMITATIONS ON CONTRIBUTIONS

8.1 LIMITATION ON ANNUAL ADDITIONS TO THE PLAN - NO PARTICIPATION IN OTHER DEFINED CONTRIBUTION ARRANGEMENT.

(A) If a Participant does not participate in and has never participated in another qualified plan maintained by the Employer, a welfare benefit fund (as defined in Section 419(e) of the Code) maintained by the Employer, an individual medical account (as defined in Section 415(1)(2) of the Code) maintained by the Employer, or a simplified employee pension (as defined in Section 408(k) of the Code) maintained by the Employer that provides an Annual Addition, the amount of Annual Additions that may be credited to the Participant's Accounts for any limitation year shall not exceed the lesser of the Maximum Permissible Amount or any other limitation contained in the Plan. If a contribution that would otherwise be contributed or allocated to the Participant's Accounts would cause the Annual Additions for the Limitation Year to exceed the Maximum Permissible Amount, the amount contributed or allocated shall be reduced so that the Annual Additions for the Limitation Year equal the Maximum Permissible Amount.

(B) Prior to determining the Participant's Statutory Compensation for the Limitation Year, the Employer may determine the Maximum Permissible Amount for a Participant on the basis of a reasonable estimate of the Participant's Statutory Compensation for the Limitation Year, such estimate to be uniformly determined for all Participants similarly situated.

(C) As soon as is administratively feasible after the end of the Limitation Year, the Maximum Permissible Amount for the Limitation Year shall be determined on the basis of the Participant's actual Statutory Compensation for the Limitation Year.

(D) If pursuant to Section 8.1(C) there is an Excess Amount, the excess shall be disposed of as follows:

(i) Any nondeductible employee contributions (plus attributable earnings), to the extent they would reduce the Excess Amount, shall be returned to the Participant.

(ii) If after the application of clause (i) an Excess Amount still remains, then any Salary Deferrals (plus attributable earnings), to the extent they would reduce the Excess Amount, shall be returned to the Participant.

(iii) If after the application of clauses (i) and (ii), an Excess Amount still remains, then any Roth Deferrals (plus attributable earnings), to the extent they would reduce the Excess Amount, shall be returned to the Participant.

(iv) If after the application of clause (i), (ii), and (iii) an Excess Amount still exists and the Participant is covered by the Plan at the end of the Limitation Year, the Excess Amount (other than Elective Deferrals) in the Participant's account shall be used to reduce employer contributions (including any allocation of forfeitures) for such Participant in the next Limitation Year, and each succeeding Limitation Year if necessary.

(v) If after the application of clause (i), (ii), (iii), and (iv) an Excess Amount still exists and the Participant is not covered by the Plan at the end of a Limitation Year, the Excess Amount (other than Salary Deferrals) shall be held unallocated in a suspense account. The suspense account shall be applied to reduce future employer contributions for all remaining Participants in the next Limitation Year, and each succeeding Limitation Year if necessary.

(vi) If a suspense account exists at any time during a Limitation Year pursuant to this Section 8.1(D), it shall not participate in the allocation of investment gains and losses. If a suspense account exists at any time during a particular Limitation Year, all amounts in the suspense account must be allocated and reallocated to Participants' accounts before any employer or any employee contributions may be made to the Plan for that Limitation Year. Excess Amounts in the suspense account may not be distributed to Participants or former Participants.

8.2 LIMITATION ON ANNUAL ADDITIONS TO THE PLAN - PARTICIPATION IN ANOTHER DEFINED CONTRIBUTION ARRANGEMENT.

(A) If in addition to this Plan the Participant is covered under another qualified plan maintained by the Employer, a welfare benefit fund (as defined in Section 419(e) of the Code) maintained by the Employer, an individual medical account (as defined in Section 415(1)(2) of the Code) maintained by the Employer, or a simplified employee pension (as defined in Section 408(k) of the Code) maintained by the Employer that provides an Annual Addition during any Limitation Year, then the Annual Additions that may be credited to a Participant's Accounts under this Plan for any such Limitation Year shall not exceed the Maximum Permissible Amount reduced by the Annual Additions credited to a Participant's account under such other plans and funds for the same Limitation Year. If the Annual Additions with respect to the Participant under such other plans and funds are less than the Maximum Permissible Amount and a contribution that would otherwise be contributed or allocated to the Participant's Accounts under this Plan would cause the Annual Additions for the Limitation Year to exceed the Maximum Permissible Amount, the amount contributed or allocated shall be reduced so that the Annual Additions under all such plans and funds for the Limitation Year shall equal the Maximum Permissible Amount. If the Annual Additions with respect to the Participant under such other plans and funds in the aggregate are equal to or greater than the Maximum Permissible Amount, no amount shall be contributed or allocated to the Participant's Accounts under this Plan for the Limitation Year.

(B) Prior to determining the Participant's actual Statutory Compensation for the Limitation Year, the Employer may determine the Maximum Permissible Amount for a Participant in the manner described in Section 8.1(B).

(C) As soon as is administratively feasible after the end of the Limitation Year, the Maximum Permissible Amount for the Limitation Year shall be determined on the basis of the Participant's actual Statutory Compensation for the Limitation Year.

(D) If, pursuant to Section 8.2(C) or as a result of the allocation of forfeitures, if any, a Participant's Annual Additions under this Plan and such other plans and funds would result in an Excess Amount for a Limitation Year, the Excess Amount shall be deemed to consist of the Annual Additions last allocated, except that Annual Additions attributable to a welfare benefit fund or individual medical account shall be deemed to have been allocated first regardless of the actual allocation date.

(E) If an Excess Amount was allocated to a Participant on an allocation date of this Plan that coincides with an allocation date of another such plan or

fund, the Excess Amount attributed to this Plan shall be the product of (i) the total Excess Amount allocated as of such date and (ii) the ratio of [a] the Annual Additions allocated to the Participant for the Limitation Year as of such date under this Plan to [b] the total Annual Additions allocated to the Participant for the Limitation Year as of such date under this and all other such plans and funds.

(F) Any Excess Amount attributed to this Plan shall be disposed in the manner described in Section 8.1(D).

8.3 DEFINITIONS.

In addition to the definitions in Article 2, the following definitions shall apply for purposes of this Article 8:

(A) Annual Additions: The sum of the following amounts credited to a Participant's Accounts for the Limitation Year:

- (1) Employer contributions,
- (2) employee contributions,
- (3) forfeitures,
- (4) amounts allocated to an individual medical account (as defined in Section 415(1)(2) of the Code) that is part of a pension or annuity plan maintained by the Employer,
- (5) amounts derived from contributions paid or accrued in taxable years that are attributable to post-retirement medical benefits allocated to the separate account of a key employee (as defined in Section 419A(d)(3) of the Code) under a welfare benefit fund (as defined in Section 419(e) of the Code) maintained by the Employer,
- (6) allocations under a simplified employee pension (as defined in Section 408(k) of the Code), and
- (7) any Excess Amount applied under Section 8.1(D) or 8.2(F) in the Limitation Year to reduce employer contributions.

(B) Employer: The Employer and all members of a controlled group of corporations (as defined in Section 414(b) of the Code as modified by Section 415(h) of the Code), all commonly controlled trades or businesses (as defined in Section 414(c) of the Code as modified by Section 415(h) of the Code), or all members of an affiliated service group (as defined in Section 414(m) of the

Code) of which the Employer is a part, and any other entity required to be aggregated with the Employer pursuant to Section 414(o) of the Code.

(C) Excess Amount: The excess of the Participant's Annual Additions for the Limitation Year over the Maximum Permissible Amount.

(D) Limitation Year: A calendar year. All qualified plans maintained by the Employer must use the same Limitation Year. If the Limitation Year is amended to a different 12-consecutive month period, the new Limitation Year must begin on a date within the Limitation Year in which the amendment is made.

(E) Maximum Permissible Amount: Except to the extent permitted under Section 4.1(G) of the Plan and Section 414(v) of the Code, if applicable, the maximum Annual Addition that may be contributed or allocated to a Participant's accounts under the Plan for any Limitation Year shall not exceed the lesser of (i) \$45,000, as adjusted for increases in the cost-of-living under Section 415(d) of the Code, or (ii) 100% of the Participant's compensation, within the meaning of Section 415(c)(3) of the Code, for the Limitation Year. The compensation limit referred to in (ii) shall not apply to any contribution for medical benefits after separation from service (within the meaning of Section 401(h) or Section 419A(f)(2) of the Code) which is otherwise treated as an Annual Addition.

8.4 TRANSITIONAL RULES.

Notwithstanding any other provisions of this Article 8, a Participant's Accounts or accrued benefit accrued prior to any amendment of Section 415 of the Code shall be determined in accordance with the transitional rules provided by such amendment.

ARTICLE 9 BENEFICIARIES

9.1 DESIGNATION. Each Participant may designate one or more Beneficiaries by delivering a written designation thereof to the Plan Administrator. Upon the death of a Participant, his Beneficiary shall be entitled to payments of benefits due the Participant in an amount and in the manner provided for in this Plan. A Participant may designate different Beneficiaries at any time by delivering a new written designation to the Plan Administrator. Any such designation shall become effective only upon its receipt by the Plan Administrator. The last effective designation received by the Plan Administrator shall supersede all prior designations. A designation of a Beneficiary shall be effective only if the designated Beneficiary survives the Participant. In the case of a Married Participant, the Beneficiary of the death benefit provided in this

Article shall be the Married Participant's spouse, provided, however, that a Married Participant may designate a Beneficiary other than the spouse if:

- (a) the spouse, in a writing witnessed by a notary, consents to the Participant's right to designate another Beneficiary,
- (b) the Participant has no spouse, or
- (c) the spouse cannot be located.

9.2 FAILURE TO DESIGNATE. If a Participant fails to designate a Beneficiary, or if no designated Beneficiary survives the Participant, the Participant shall be deemed to have designated as the Beneficiary, in order of priority: (a) surviving spouse, (b) surviving children (including adopted children), in equal shares, (c) surviving parents, in equal shares, or (d) the Participant's estate.

9.3 BENEFICIARIES BOUND BY PLAN. Whenever the rights of a Participant are stated or limited in the Plan and the Trust Agreement, his Beneficiaries shall be bound thereby.

ARTICLE 10 RETIREMENT BENEFITS

10.1 AMOUNT OF BENEFITS. Upon a Participant's Early Retirement Date, Normal Retirement Date, or Deferred Retirement Date or on or after a Participant attains age 59-1/2, the Participant may elect to receive a distribution of his Accounts, in the form and manner required by Article 14. Notwithstanding the prior sentence, a Participant must have terminated employment to elect to receive a distribution from his Employer Stock Account.

10.2 TIME OF DISTRIBUTION.

(A) Subject to Section 14.4, unless a Participant elects to defer commencement of benefits pursuant to Section 10.2(B), the benefits under Section 10.1 shall be distributed after the Plan Administrator receives written notice of a Participant's election to receive benefits. Should a retired Participant die before receiving all amounts due to him, any balance shall be paid to his Beneficiary.

(B) Subject to Appendix 1, a Participant shall have the option to defer distribution of his benefits until a date not later than April 1 of the calendar year following the calendar year in which the Participant attains age 70-1/2. Upon a Participant's written election to receive his benefits, after his Normal Retirement Date but prior to April 1 of the year in which the Participant attains age 70-1/2

such benefits shall be distributed no later than 90 days after the end of the calendar month within which the Participant actually makes such election.

(C) Anything contained herein to the contrary notwithstanding, a Participant, whether retired or active, must commence receipt of his benefits in accordance with the requirement of Appendix 1.

10.3 DEFERRED RETIREMENT. Notwithstanding a Participant's Normal or Early Retirement Date, he shall not be required to actually retire from the service of the Employer and shall be entitled to continue to participate in the Plan until his actual retirement.

ARTICLE 11 DEATH BENEFITS

11.1 DEATH BENEFITS.

(A) Amount of Benefits. Upon a Participant's death, the Plan Administrator shall direct the Trustee to distribute to such Participant's Beneficiary the Participant's Accounts, in the form and manner required by Article 14.

(B) Time of Distribution. Subject to Section 14.4, the benefits under this Section 11.1 shall be distributed after the Plan Administrator receives written notice of such Participant's death.

11.2 PROOFS. The Plan Administrator may require such proof of death and such evidence of the right of any person to receive payment of the benefits of the deceased Participant as it may deem advisable. The Plan Administrator's determination of death and of the right of any person to receive payment shall be conclusive.

ARTICLE 12 DISABILITY BENEFITS

12.1 AMOUNT OF BENEFITS. Upon a Disability Retirement Date, the Plan Administrator shall direct the Trustee to distribute to such Participant his Accounts in the form and manner required by Article 14.

12.2 TIME OF DISTRIBUTION.

(A) Subject to Section 14.4, unless a Participant elects to defer commencement of benefits pursuant to Section 12.2(B), the benefits under Section 12.1 shall be distributed after the Plan Administrator receives written notice of a Participant's Disability Retirement Date and the Participant's election

to receive benefits. Should a disabled Participant die before receiving all amounts due to him, any balance shall be paid to his Beneficiary.

(B) Subject to Appendix 1, a Participant shall have the option to defer distribution of his benefits. Upon a Participant's written election to receive his benefits, such benefits shall be distributed after the Participant actually makes such election.

(C) Anything contained herein to the contrary notwithstanding, a Participant, whether retired or active, must commence receipt of his benefits in accordance with the requirement of Appendix 1.

ARTICLE 13 EMPLOYMENT TERMINATION BENEFITS

13.1 PARTICIPATION CEASES UPON TERMINATION OF EMPLOYMENT. Upon Termination of Employment prior to retirement, death, or disability, a Participant shall cease to be a Participant in the Plan, except for purposes of receiving a distribution of his Accounts, as hereinafter provided in this Article.

13.2 TIME OF DISTRIBUTION. Subject to Section 14.4, the benefits provided for hereunder shall be distributed after the Participant incurs a Termination of Employment.

ARTICLE 14 DISTRIBUTIONS TO PARTICIPANTS

14.1 TIME AND METHOD OF PAYMENT. The benefit to which a Participant or Beneficiary may become entitled under Articles 10 through 13 (inclusive) shall be distributed to him at such time as he elects in the form of a single sum.

14.2 DISTRIBUTION IN CASH. Distributions shall be made in cash; except for a Participant's interest in the Stock Fund, which interest shall be distributed in shares of Employer Stock, with the value of any fractional share distributed in cash. To the extent possible, the Trustee may sell fractional shares of Employer Stock allocated to a Participant in order to obtain cash that is to be distributed to a Participant or Beneficiary.

14.3 REPURCHASE OF EMPLOYER STOCK. To the extent that Employer Stock is no longer publicly traded on an established securities market at the time that Employer Stock is distributed to any Participant or Beneficiary, such Employer Stock shall be subject to the requirements of Section 409(h) of the Code.

In such event, any Participant or Beneficiary receiving a distribution of shares of Employer Stock from the Plan shall have the right to require the Employer to purchase such shares of Employer Stock (the "put option") at any time during the following two periods, at their fair market value determined by the most recently completed valuation that coincides with or immediately precedes the date the put option is exercised. The first period shall be for 60 days beginning on the date of distribution of Employer Stock to the Participant or Beneficiary, and the second period shall be for 60 days beginning on the date the Participant or Beneficiary receives notice of the first valuation of Employer Stock which occurs after the date of distribution of Employer Stock to the Participant or Beneficiary. The payment for shares of Employer Stock sold to the Employer pursuant to the put option shall be made in a lump sum in cash within 30 days after the put option is exercised.

14.4 SPECIAL DISTRIBUTION RULES.

(A) (1) If a Participant terminates service and the value of his Accounts does not exceed \$5,000, the Participant shall receive a distribution of the value of his Accounts. If a Participant would have received a distribution under the preceding sentence but for the fact that his vested Accounts exceeded \$5,000 when he terminated service and if at a later time such Accounts are reduced such that it is not greater than \$5,000, the Participant shall receive a distribution of such Accounts. For purposes of this Section 14.4(A)(1), if the value of a Participant's Accounts is zero, the Participant shall be deemed to have received a distribution of his Accounts.

(2) If the value of a Participant's Accounts exceeds \$5,000 and the Accounts are immediately distributable, the Participant must consent to any distribution of his Accounts. The consent of the Participant shall be obtained in writing within the 90-day period ending on the first day of the first period for which an amount is paid in any form. The Employer shall notify the Participant of the right to defer any distribution until his Accounts are no longer immediately distributable. Such notification shall be provided no less than 30 days and no more than 90 days prior to the distribution date. However, distribution may commence less than 30 days after the notice described in the preceding sentence is given, provided the distribution is one to which Sections 401(a)(11) and 417 of the Internal Revenue Code do not apply, the Employer clearly informs the Participant that he has a right to a period of at least 30 days after receiving the notice to consider the decision of whether or not to elect a distribution (and, if applicable, a particular distribution option), and the Participant after receiving the notice affirmatively elects a distribution.

(3) Notwithstanding Section 14.4(A)(2), the consent of the Participant shall not be required to the extent that a distribution is required to satisfy Section 401(a)(9) or 415 of the Code.

(4) Accounts are immediately distributable if any part of the Accounts could be distributed to the Participant (or surviving spouse) before the Participant attains, or would have attained if deceased, the later of his Normal Retirement Date or age 62.

(5) For purposes of Section 14.4(A)(1), the value of a Participant's vested Accounts shall be determined without regard to that portion of the Accounts that is attributable to rollover contributions (and earnings allocable thereto) within the meaning of Sections 402(c), 403(a)(4), 403(b)(8), 408(d)(3)(A)(ii), and 457(e)(16) of the Code. If the value of the vested Accounts as so determined is \$5,000 or less, the Plan shall immediately distribute the Participant's entire vested Accounts.

(6) In the event of a mandatory distribution greater than \$1,000 in accordance with the provisions of this Section 14.4, if the Participant does not elect to have such distribution paid directly to an eligible retirement plan specified by the Participant in a direct rollover or to receive the distribution directly, then the Plan Administrator shall pay the distribution in a direct rollover to an individual retirement plan designated by the Plan Administrator. For purposes of determining whether a mandatory distribution is greater than \$1,000, the portion of the Participant's distribution attributable to any rollover contribution shall be included.

(B) (1) Unless the Participant elects otherwise, distribution of benefits shall begin no later than the 60th day after the latest of the close of the Plan Year in which (i) the Participant attains age 65 (or his Normal Retirement Date, if earlier), (ii) occurs the tenth anniversary of the year in which the Participant commenced participation in the Plan, or (iii) the Participant terminates service with the Employers. Notwithstanding the foregoing, the failure of a Participant to consent to a distribution while his Accounts are immediately distributable (within the meaning of Section 14.4(A)(4)) shall be deemed to be an election to defer commencement of payment of any benefit sufficient to satisfy this Section 14.4(B)(1).

(2) A Participant may request that the payment to him of his Accounts commence at a date later than the latest date provided under Section 14.4(B)(1). This request must be made by submitting to the Employer a written statement, signed by the Participant, that describes the date on which the Participant requests payment to commence. The Employer shall not grant this request if such request would cause death benefits payable under the Plan with respect to the Participant to be more than "incidental" within the meaning of the applicable Treasury Regulations.

(C) The requirements of Appendix 1 shall apply to any distribution of a Participant's Accounts and shall take precedence over any inconsistent provisions of the Plan.

14.5 SECTION 401(a)(31) ELIGIBLE DISTRIBUTIONS.

(A) Notwithstanding any provision of the Plan to the contrary that would otherwise limit a distributee's election under this Section 14.5, a distributee may elect, at the time and in the manner prescribed by the Employer, to have any portion of an eligible rollover distribution that is equal to at least \$500 paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

(B) For purposes of this Section 14.5, the following definitions shall apply:

(1) Eligible rollover distribution: An eligible rollover distribution is any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary or for a specified period of ten years or more; any distribution to the extent such distribution is required under Section 401(a)(9) of the Code; any hardship distribution described in section 401(k)(2)(B)(i)(IV) of the Code; the portion of any distribution that is not includible in gross income (determined without regard to the exclusion for net unrealized appreciation with respect to employer securities); and any other distribution that is reasonably expected to total less than \$200 during a year.

A distribution shall not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income. However, such portion may be transferred only to an individual retirement account or annuity described in Section 408(a) or (b) of the Code, or to a qualified defined contribution plan described in Section 401(a) or 403(a) of the Code that agrees to separately account for amounts so transferred, including separately accounting for the portion of such distribution which is includible in gross income and the portion of such distribution which is not so includible.

(2) Eligible retirement plan: An eligible retirement plan is an individual retirement account described in Section 408(a) of the Code, an individual retirement annuity described in Section 408(b) of the Code, an annuity plan described in Section 403(a) of the Code, or a qualified trust described in Section 401(a) of the Code, that accepts the distributee's eligible rollover

distribution. However, in the case of an eligible rollover distribution to the surviving spouse, an eligible retirement plan is an individual retirement account or individual retirement annuity.

An eligible retirement plan shall also mean an annuity contract described in Section 403(b) of the Code and an eligible plan under Section 457(b) of the Code which is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or political subdivision of a state and which agrees to separately account for amounts transferred into such plan from this Plan. The definition of eligible retirement plan shall also apply in the case of a distribution to a surviving spouse, or to a spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Code.

If any portion of an eligible rollover distribution is attributable to payments or distributions from a designated Roth account, an eligible retirement plan with respect to such portion shall include only another designated Roth account of the individual from whose account the payments or distributions were made or a Roth IRA of such individual, and only to the extent the rollover is permitted under the rules of Section 402(c) of the Code.

Notwithstanding the foregoing, if a rollover is subject to Section 402(c)(11) of the Code, an "eligible retirement plan" must be an individual retirement plan described in clause (i) or (ii) Section 402(c) (8)(B) established for the purposes of receiving the distribution on behalf of an individual who is a designated beneficiary (as defined by Section 401(a)(9)(E) of the Code) of the Employee or former Employee and who is not the surviving spouse of the Employee or former Employee.

(3) Distributee: A distributee includes an Employee or former Employee. In addition,

(i) the Employee's or former Employee's surviving spouse and the Employee's or former Employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Code, shall also be a distributee with regard to the interest of the spouse or former spouse, and

(ii) an individual who is a designated beneficiary (as defined by Section 401(a)(9)(E) of the Code) of the Employee or former Employee and who is not the surviving spouse of the Employee or former Employee shall also be a distributee with regard to the interest of such individual.

To the extent provided in rules prescribed by the Secretary of the Treasury, a trust maintained for the benefit of one or more designated beneficiaries shall be treated in the same manner as a trust designated beneficiary.

(4) Direct rollover: A direct rollover is a payment by the Plan to the eligible retirement plan specified by the distributee.

(C) Special Rules Relating to Roth Deferral Accounts.

(1) The Plan shall not provide for a direct rollover for distributions from a Participant's Roth Deferral Account if the amount of the distributions that are eligible rollover distributions from such account are reasonably expected to total less than \$200 during a year. In addition, any distribution from a Participant's Roth Deferral Account shall not be taken into account in determining whether distributions from a Participant's Accounts other than his Roth Deferral Account are reasonably expected to total less than \$200 during a year.

(2) Eligible rollover distributions from a Participant's Roth Deferral Account shall be taken into account in determining whether the total balance of the Participant's Accounts exceeds \$1,000 for purposes of mandatory distributions from the Plan.

(3) The provisions of Section 14.5(A) that allow a Participant to elect a direct rollover of only a portion of an eligible rollover distribution but only if the amount rolled over is at least \$500 shall be applied by treating any amount distributed from the Participant's Roth Deferral Account as a separate distribution from any amount distributed from the Participant's Accounts other than his Roth Deferral Account, even if the amounts are distributed at the same time.

ARTICLE 15
INALIENABILITY OF BENEFITS

15.1 INALIENABILITY. A Participant's interest in the Plan, or that of his Beneficiary, may not be assigned or alienated by voluntary or involuntary assignment. Any attempt by a Participant or Beneficiary to assign or alienate his interest under the Plan, or any attempt to subject his interest to attachment, execution, garnishment, or other legal or equitable process, shall be void. This does not preclude the Trustee from complying with any Qualified Domestic Relations Order or from the use of the Plan assets as security on a loan made pursuant to Article 22.

ARTICLE 16
QUALIFIED DOMESTIC RELATIONS ORDERS

16.1 QUALIFIED DOMESTIC RELATIONS ORDERS. The Plan Administrator or its designee shall comply with all Qualified Domestic Relations Orders received by it and shall pay benefits in accordance with the applicable requirements of such Qualified Domestic Relations Orders.

16.2 NOTICE AND DETERMINATION. The Plan Administrator or its designee shall adopt procedures regarding the review of a Domestic Relations Order for determining whether a Domestic Relations Order is a Qualified Domestic Relations Order. Such procedures shall be made available upon request to a Participant and any Alternate Payee or potential Alternate Payee.

ARTICLE 17
CLAIMS PROCEDURE

17.1 CLAIMS AND DETERMINATION.

(A) Any claim for benefits under this Plan shall be in writing to the Plan Administrator.

(B) (1) If a claim is denied in whole or in part, the Plan Administrator shall give the claimant written notice of such denial within a reasonable period of time, but not later than 90 days after receipt of the claim, unless the Plan Administrator determines that special circumstances require an extension of time for processing the claim. If the Plan Administrator determines that an extension of time for processing is required, written notice of the extension shall be furnished to the claimant prior to the termination of the initial 90-day period. In no event shall such extension exceed a period of 90 days from the end of such initial period. The extension notice shall indicate the special circumstances requiring an extension of time and the date by which the Plan Administrator expects to render the benefit determination.

(2) The Plan Administrator shall provide the claimant with written or electronic notification of any adverse benefit determination. Such notice shall set forth in a manner calculated to be understood by the claimant (i) the specific reason or reasons for the adverse determination, (ii) reference to the specific Plan provisions on which the determination is based, (iii) a description of any additional material or information necessary to perfect the claim and an explanation of why such material or information is necessary, and (iv) a description of the review procedure described in Section 17.2 hereof, including a statement of the claimant's right to bring a civil action under Section 502(a) of the Act following an adverse benefit determination on review.

17.2 REVIEW OF DENIAL OF CLAIMS.

(1) The claimant or his authorized representative may then appeal the adverse benefit determination to the Retirement Board by filing written notice of such appeal with the Retirement Board within 60 days after receipt of the notification of the adverse benefit determination. The claimant or his authorized representative (i) may submit written comments, documents, records, and other information relating to the claim for benefits and (ii) shall be provided, upon request and free of charge, reasonable access to, and copies of, all documents, records, and other information relevant to the claimant's claim for benefits.

(2) The Retirement Board's review of the claimant's appeal shall take into account all comments, documents, records, and other information submitted by the claimant or his representative relating to the claim without regard to whether such information was submitted or considered in the initial benefit determination. The Retirement Board in its discretion may hold a hearing on the claimant's appeal.

(3) The Retirement Board shall make its determination on such appeal within a reasonable period of time, but not later than 60 days after receipt of the claimant's request for review by the Retirement Board, unless the Retirement Board determines that special circumstances (such as the need to hold a hearing) require an extension of time for processing the claim. If the Retirement Board determines that an extension of time for processing is required, written notice of the extension shall be furnished to the claimant prior to the termination of the initial 60-day period. In no event shall such extension exceed a period of 60 days from the end of such initial period. The extension notice shall indicate the special circumstances requiring an extension of time and the date by which the Retirement Board expects to render a determination on review.

(4) The Retirement Board shall provide the claimant with written or electronic notification of its benefit determination on review. In the case of any adverse determination, the notification shall set forth in a manner calculated to be understood by the claimant (i) the specific reason or reasons for the adverse determination, (ii) reference to the specific Plan provisions on which the determination is based, (iii) a statement that the claimant is entitled to receive, upon request and free of charge, reasonable access to, and copies of, all documents, records, and other information relevant to the claimant's claim for benefits, and (iv) a statement of the claimant's right to bring an action under Section 502(a) of ERISA.

ARTICLE 18
PLAN ADMINISTRATION

18.1 PLAN ADMINISTRATOR. The Employer shall be the "Plan Administrator" (as defined in Section 3(16)(A) of ERISA) of the Plan, and shall be responsible for the performance of all reporting and disclosure obligations under ERISA and all other obligations required or permitted to be performed by the Plan Administrator under ERISA, including, but not limited to, conducting the discrimination test required under ERISA. The Employer shall be the designated agent for service of legal process. The Plan Administrator shall have such duties for the management, operation, and administration of the Plan as are specified herein.

18.2 ASSISTANTS OR REPRESENTATIVES. The Plan Administrator may appoint such assistants or representatives as it deems necessary for the effective exercise of its duties in administering the Plan. Further, the Plan Administrator may delegate to such assistants and representatives any powers and duties, both ministerial and discretionary, as it deems necessary or appropriate. Further, the Plan Administrator may engage accountants, attorneys, physicians, and such other personnel as it deems necessary or appropriate.

18.3 LIABILITY. The Plan Administrator shall be free from all liability, for its conduct and omissions, except to the extent of liability arising from its own willful misconduct or from the breach of any responsibility, obligation, or duty imposed upon him by ERISA.

18.4 INDEMNIFICATION. To the extent not insured against by an insurance company, the Employer shall indemnify and hold harmless the Plan Administrator, the Employer members of the Retirement Board, and its assistants and representatives, and the Association shall indemnify and hold harmless the Association members of the Retirement Board, from any and all proceedings in connection with the Plan or the Trust that may be brought by Employees, Participants, or their Beneficiaries or legal representatives, or by any other Person; provided, however, that such indemnification shall not apply to any such Person for such Person's acts of willful misconduct in connection with the Plan.

18.5 COSTS AND EXPENSES.

(1) The Employer shall pay all the administrative costs of the Plan, including by way of illustration, not limitation: actuarial fees, recordkeeping fees, loan fees, brokerage account fees, fees or charges to process domestic relations orders, fees for discrimination testing, legal fees, attorneys' fees and costs, court costs, any expenses associated with communications with Plan Participants, or

the development and distribution of enrollment forms to pilots, costs associated with Employer personnel, computer time or materials used in the administration of the Plan as it is constituted under pilots' collective bargaining agreement.

(2) The Employer also shall pay all the costs associated with the "Employer Stock Contribution Account," including the costs and fees of an independent appraiser or independent fiduciary, to the extent required by law, to determine the fair market value of Employer Stock in the event the stock is no longer readily tradable on an established securities market. In such an event, the appraisal or fiduciary determination shall be accomplished not more than once per year, no later than the last working day in the calendar year, and all puts for that year shall be based on that year's appraisal or fiduciary determination.

18.6 VOTING RIGHTS. The Association shall appoint fiduciaries to direct the Trustee as to the manner in which shares of Employer Stock shall be voted with respect to Employer Stock in the Stock Fund that is not allocated to Participants.

ARTICLE 19 RETIREMENT BOARD

19.1 ESTABLISHMENT. There shall be established a Retirement Board for the purpose of hearing, determining, and resolving all disputes which may arise out of the application, interpretation, or administration of the Plan and/or with respect to the Trustee or Trustees or insuring companies (if any) utilized in connection with the Plan.

19.2 COMPOSITION. The Retirement Board shall consist of four members; the Employer shall select two members, and the Association shall select two members. The Employer shall establish its own rules for the selection of the members of the Retirement Board to be selected by it and the Association shall likewise establish its own rules for the selection of the members of the Retirement Board to be selected by it. The Employer shall also select one alternate member who may act for either of the two members of the Retirement Board appointed by the Employer in the event of the absence or inability to act of one of such members, and the Association shall likewise select one alternate member who may act for either of the two members of the Retirement Board appointed by the Association in the event of the absence or inability to act of one of such members. Either the Employer or the Association at any time may remove a member appointed by it and may select a member to fill any vacancy among the members selected by it. Both the Employer and the Association shall, in writing, notify each other respectively concerning such selections, which shall continue until further written notice.

19.3 QUORUM AND VOTING. Three members of the Retirement Board shall constitute a quorum for the transaction of business. At all Retirement Board meetings, Employer members present shall be entitled to one vote each and Association members present shall be entitled to one vote each. If at any such meeting two Employer members are not present, the Employer member present may cast two votes and if two Association members are not present, the Association member present may cast two votes.

19.4 SUBCOMMITTEES. The Retirement Board shall have the authority to appoint subcommittees from among the members of the Retirement Board to handle any problem within the jurisdiction of the Retirement Board. Such subcommittee shall report exclusively to the Retirement Board.

19.5 EXPENSES. The compensation, travel, and other reasonable living expenses, if any, of members of the Retirement Board selected by the Employer which are incidental to the holding of such meetings and performing functions of the Retirement Board, shall be paid by the Employer. The compensation, travel, and other reasonable living expenses, if any, of members of the Retirement Board selected by the Association that are incidental to the holding of such meetings and performing of the Retirement Board, shall be paid by the Association.

19.6 DECISIONS. All decisions and actions taken by the Retirement Board shall be by the affirmative vote or agreement of not less than three members and shall be in writing. All decisions of the Retirement Board shall be final and binding upon the Employer, the Association, and any other person having an interest in, under, or derived from the Plan.

19.7 DISPUTES.

(A) If the Retirement Board shall fail to agree on any matter or dispute coming before it, it shall, within ten days from the date of such failure to agree, designate an Impartial Referee. If the Retirement Board does not agree upon the selection of an Impartial Referee with such ten day period, then either the Employer or the Association may apply to the National Mediation Retirement Board for the designation by such Retirement Board of an Impartial Referee. The matter or dispute shall be submitted to such Retirement Board sitting with the Impartial Referee who shall act as Chairman during the proceedings pertaining to such matter. Such Impartial Referee shall have one vote. Three affirmative votes shall be required to render a decision or determination on matters coming before the Retirement Board sitting together with the Impartial Referee.

(B) The compensation and expenses of the Impartial Referee and expenses incident to the conduct of the proceedings coming before the

Retirement Board shall be shared equally between the Employer and the Association.

19.8 MEETINGS. Meetings of the Retirement Board may be called by mutual agreement of the members at any time without notice or by any two members of the Retirement Board upon thirty days notice to the other members of the Retirement Board. Such meetings shall be conducted at the Employer's offices unless otherwise agreed to by the members of the Retirement Board.

19.9 POWERS OF THE RETIREMENT BOARD.

(A) The Retirement Board shall determine all disputes that may arise out of the application, interpretation, or administration of the Plan, or concerning participation in or benefits under the Plan, with respect to the pilots covered thereby. The Retirement Board shall have full power to affirm, reverse, or otherwise modify any decision or administrative action or proposed action that gave rise to any dispute.

(B) The Retirement Board shall have no power to add to or subtract from or modify any terms of any Plan.

(C) The Retirement Board shall have the power to establish rules of procedure for the conduct of its business and of hearings before it, which rules shall not be inconsistent with the provisions of collective bargaining agreement.

(D) The Retirement Board shall be responsible for determining the investment options under the Plan. The Retirement Board shall review the transaction fees for the brokerage account to ensure that those fees are reasonable. The Employer shall use its best efforts to reach agreement with the plan vendor that there shall be no annual fee for the brokerage account.

19.10 REVIEW FUNCTIONS OF THE RETIREMENT BOARD. The Retirement Board shall have the following rights and review functions:

(A) To examine, during normal business hours, all books, records, reports, regulations, and procedures relative to the Plan, including but not limited to Trustee and insuring company (if any) instruments, amendments, annual reports filed with the Department of Labor and Internal Revenue Service, actuarial, Trustees' and insuring companies' (if any) reports for the Plan and the Trust Fund, and related data.

(B) The Employer, the Trustee, and the insuring company (if any), as the case may be, shall furnish to the pilot members of the Retirement Board and the Association all records and material set forth in Section 19.10(A) within thirty days from the date on which such material may have been prepared or compiled; and in

any case, annual reports filed with the Department of Labor and Internal Revenue Service, actuarial reports, Trustees' and insuring companies' (if any) reports for the Plan shall be furnished to the pilot members of the Retirement Board and the Association not less frequently than once each year. The pilot members of the Retirement Board may request and shall be entitled to receive additional material and data relating to the foregoing.

(C) The Retirement Board shall review the status and administration of the Plan, and in the appropriate case make recommendations to the Employer, the Association, the Trustees, and insuring companies (if any) and the members thereon. The Retirement Board shall prepare periodic reports with respect to its functions, actions, and decisions and supply the same to the Employer and the Association.

19.11 RELIANCE ON INFORMATION. The Retirement Board and any members thereof shall be entitled to rely upon the correctness of any information furnished by the Employer and the Association. Neither the Retirement Board nor any of its members, nor the Association, nor any officers or other representatives of the Employer shall be liable because of any act or failure to act on the part of the Retirement Board, or any of its members, except that nothing herein shall be deemed to relieve any such individual from liability for his own fraud or bad faith.

ARTICLE 20 TRUST FUND

20.1 TRUST AGREEMENT. The Employer shall at the discretion of the Retirement Board enter into one or more Trust Agreements with one or more Trustees to implement the provisions of this Plan. The Trust Agreements shall be deemed a part of this Plan and any and all rights or benefits which may accrue to any person under this Plan shall be subject to the terms and provisions of said Trust Agreements. Likewise, all provisions of this Plan shall be deemed part of the Trust Agreements. In case of any inconsistency between the provisions of the Plan and the Trust Agreements, the provisions of this Plan shall control.

ARTICLE 21 TERMINATION AND AMENDMENT

21.1 PLAN TERMINATION. The Employer and the Association contemplate that the Plan and the Trust shall be permanent. Nevertheless, in recognition of the fact that future conditions and circumstances cannot now be entirely foreseen, the Employer and the Association reserve the right to terminate either or both the Plan and the Trust by joint agreement.

21.2 DISCONTINUANCE OF CONTRIBUTIONS. Whenever the Employer and the Association determine that it is impossible or inadvisable to make further

contributions as provided in the Plan, they may jointly agree, without terminating the Trust, to permanently or temporarily discontinue all further contributions under the Plan. The Plan Administrator and the Trustee shall thereafter continue to administer all the provisions of the Plan which are necessary to remain in force, other than the provisions relating to contributions.

21.3 VESTING UPON TERMINATION AND DISCONTINUANCE. Upon the termination or partial termination of the Plan or the complete discontinuance of contributions by the Employer, the rights of each Participant to the amount credited to his Accounts at such date shall be entirely nonforfeitable without reference to any formal action on the part of the Employer, the Plan Administrator, or the Trustee.

21.4 MERGER, CONSOLIDATION, OR SALE. In the event of a merger, consolidation, or sale of assets of the Employer, under circumstances in which a successor shall continue and carry on all or a substantial part of the business of such Employer, and such successor shall employ a substantial number of Employees of such Employer, then such successor shall carry on the provisions of this Plan and such successor shall be substituted for the Employer under the terms and provisions of this Plan.

21.5 VESTED RIGHTS NOT REDUCED ON MERGER, CONSOLIDATION, OR SALE. Neither the Plan nor the Trust may be merged or consolidated with, nor may its assets or liabilities be transferred to, any other plan or trust, unless (a) by joint agreement of the Employer and the Association and (b) each Participant would (if the Plan then terminated) receive a benefit immediately after the merger, consolidation, or transfer that is equal to or greater than the benefit he would have been entitled to receive immediately before the merger, consolidation, or transfer (if the Plan had then terminated).

21.6 AMENDMENT.

(1) The Employer and the Association may amend the Plan and the Trust at any time, and from time to time, by joint agreement. No such amendment, however, shall have the effect of reducing any then nonforfeitable benefits of any Participant. If the vesting schedule under Article 6 shall be amended and such amendment would, at any time, decrease the percentage of nonforfeitable benefits which any Participant would have been entitled to receive had the vesting schedule not been so amended, then each Participant who is employed on the date such amendment is adopted, or the date such amendment is effective, whichever is later, and who has a nonforfeitable right to amounts in his Accounts pursuant to Article 6 as of the end of the period within which such Participant may make the election provided for herein, shall be permitted, beginning on the date such amendment is adopted, to irrevocably elect to have his nonforfeitable interest computed without regard to such amendment. Written notice of such amendment

and the availability of such election must be given to each such Participant, and each such Participant shall be granted a period of 60 days after the later of (a) his receipt of such notice or (b) the effective date of such amendment within which to make such election. Such election shall be exercised by the Participant by delivering or sending written notice thereof to the Plan Administrator prior to the expiration of such 60 day period.

(2) The Employer shall maintain the Plan as a qualified plan within the meaning of Section 401 of the Code, and shall take effect subject to the approval of the Internal Revenue Service which approval shall be sought by the Employer. If such approval is not given, the parties hereto shall meet in an effort to effect changes in the Plan in order to secure such approval. If the Plan, nevertheless, fails to be approved by the Internal Revenue Service, or the parties are unable to agree upon changes designed to secure such approval, then and in any of such events, the matters covered by pilots' collective bargaining agreement shall be the subject of further negotiations between the Employer and the Association in accordance with the provisions of the Railway Labor Act, as amended.

ARTICLE 22 LOANS

22.1 SEPARATE LOAN PROCEDURES. A Participant may apply for a loan from his Accounts. All Plan loans shall be made and administered in accordance with separate loan procedures adopted by the Plan Administrator or its designee that are hereby incorporated into the Plan by reference. Such procedures shall include procedures for a Participant who has accounts in more than one defined contribution plan sponsored by an Employer.

22.2 MILITARY LEAVE. Loan repayments shall be suspended under this Plan for a Participant during the time period that such Participant is on leave due to qualified military service as permitted under Section 414(u)(4) of the Code. Upon a Participant's reemployment with the Employer, loan payments shall resume in an amount which is necessary to provide for level amortization of the entire amount then outstanding on the loan, over a loan repayment period equal to the original loan repayment period extended by the length of the qualified military service, or such longer period as may be allowed by applicable law. With respect to a Participant who fails to be reemployed with the Employer prior to expiration of reemployment rights under the Uniformed Services Employment and Reemployment Rights Act of 1994, the provisions of Section 22.3 shall apply.

22.3 REDUCTION IN BENEFITS FOR NON-PAYMENT.

(A) If a Participant fails to make a payment required under the terms of the Participant loan and the Plan, a deemed distribution shall occur on the last day

of the calendar quarter following the calendar quarter in which the Participant failed to make the payment.

(B) Any Participant who has not repaid the full amount of any loan, plus interest, at the time he retires, dies, or terminates employment shall have the unpaid balance deducted from benefits otherwise payable to him or his Beneficiary under this Plan.

ARTICLE 23 WITHDRAWALS

23.1 HARDSHIP WITHDRAWALS. Distribution of Elective Deferrals may be made on account of financial hardship if the distribution is necessary in light of the immediate and heavy financial needs of the Participant. Such a distribution shall not exceed the amount required to meet the immediate financial need created by the hardship and may not be made to the extent that other financial resources of the Participant are reasonably available.

(A) A distribution shall be deemed to be made on account of the immediate and heavy financial needs of the Participant if and only if the distribution is used for the following expenses:

(1) medical expenses, as defined in Section 213(d) of the Code, of the Participant or his spouse or dependents;

(2) purchase of a principal residence for the Participant, excluding mortgage payments;

(3) provide mortgage payments needed to prevent the eviction of the Participant from, or foreclosure on the mortgage for, the principal residence for the Participant;

(4) tuition for the next 12 months of post-secondary education for the Participant or his spouse, children, or dependents.

(5) payments for funeral or burial expenses for the Participant's deceased parent, spouse, child, or dependent; and

(6) expenses to repair damage to the Participant's principal residence that would qualify for a casualty loss deduction under Section 165 of the Code (determined without regard to whether the loss exceeds ten percent of adjusted gross income).

(B) All determinations regarding financial hardship shall be made in accordance with written procedures that are established by the Plan Administrator

or its designee and applied in a uniform and nondiscriminatory manner. Such written procedures shall specify the requirements for requesting and receiving distributions on account of hardship, including what forms must be submitted and to whom. All determinations regarding financial hardship shall comply with the applicable regulations under the Code. Such procedures shall include (but shall not be limited to) the following requirements:

(1) The Participant has obtained all distributions, other than hardship distributions, and all nontaxable loans under all plans maintained by the Employer; and

(2) The Participant's Elective Deferrals (and voluntary after-tax contributions) shall be suspended for six months after the receipt of the hardship distribution.

(C) No portion of a Participant's interest in Employer Stock in the Stock Fund shall be distributable under this Article 23.

(D) The benefits under this Section 23.1 shall be distributed after the Plan Administrator or its designee approves the Participant's request to receive such benefits.

23.2 ROLLOVER ACCOUNTS. A Participant may elect to withdraw all or part of the amount then credited to his Regular Rollover Account and/or Roth Rollover Account. Such an election may be made at any time. The benefits under this Section 23.1 shall be distributed after the Plan Administrator or its designee processes the Participant's request to receive such benefits.

ARTICLE 24 MISCELLANEOUS

24.1 PLAN NOT AN EMPLOYMENT CONTRACT. Nothing herein contained shall be deemed (a) to give to any Employee the right to be retained in the employ of the Employer, (b) to affect the right of the Employer to discipline or discharge any Employee at any time, (c) to give the Employer the right to require any Employee to remain in its employ, or (d) to affect the Employee's right to terminate his employment at any time.

24.2 GOVERNING LAW. To the extent not preempted by federal law, the Plan and the Trust shall be construed, regulated, interpreted, and administered under and in accordance with the laws of the State of Hawaii.

24.3 RULE AGAINST PERPETUITIES. If the laws of the State of Hawaii (or those of any other jurisdiction whose laws apply to this Plan) restrict the duration of

the Plan or provide that interests may be completely vested within a designated period, this Plan shall not last longer than the period permitted by such law.

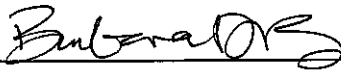
24.4 USE OF WORDS. Wherever appropriate, words used in this Plan and this Trust Agreement in the singular may mean the plural, and vice-versa, and the masculine may mean the feminine, and vice-versa.

24.5 INDEPENDENT PROVISIONS. If any provision of this Plan shall be held invalid or illegal for any reason, the remaining provisions shall be construed and enforced as if the invalid or illegal provisions had never been included.

24.6 TITLES. Titles to Articles and Sections are for convenience of reference only and shall not affect the construction of this Plan.

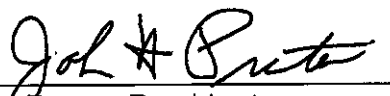
IN WITNESS WHEREOF, the Employer and the Association, by the signatures of their duly authorized representatives below on December __, 2007 hereby adopt and agree to be bound by the provisions of this amended and restated Plan effective as of January 1, 2007.

FOR HAWAIIAN AIRLINES, INC.

By 
Its SVP HR

By 
Its EVP Finance

AIR LINE PILOTS ASSOCIATION,
INTERNATIONAL FOR THE AIR LINE PILOTS
IN THE SERVICE OF HAWAIIAN AIRLINES,
INC.

By 
John Prater, President

By 
HAL MEC, Chairman

Appendix 1
MINIMUM DISTRIBUTION REQUIREMENTS

Section 1. General Rules.

(A) The requirements of this Appendix 1 shall apply to any distribution of a Participant's interest and shall take precedence over any inconsistent provisions of this Plan.

(B) All distributions required under Appendix 1 shall be determined and made in accordance with the regulations under Section 401(a)(9) of the Code and the minimum distribution incidental benefit requirement of Section 401(a)(9)(G) of the Code.

(C) As of the first distribution calendar year, distributions to a Participant shall be made in a single-sum equal to the entire balance of his Accounts.

Section 2. Time and Manner of Distribution.

(A) Required Beginning Date. The Participant's entire interest shall be distributed to the Participant no later than the Participant's required beginning date.

(B) Death of Participant Before Distributions Begin. If the Participant dies before distributions begin, the Participant's entire interest shall be distributed no later than as follows:

(1) If the Participant's surviving spouse is the Participant's sole designated beneficiary, then distributions to the surviving spouse shall begin by December 31 of the calendar year immediately following the calendar year in which the Participant died, or by December 31 of the calendar year in which the Participant would have attained age 70 1/2, if later.

(2) If the Participant's surviving spouse is not the Participant's sole designated beneficiary, then distributions to the designated beneficiary shall begin by December 31 of the calendar year immediately following the calendar year in which the Participant died.

(3) If there is no designated beneficiary as of September 30 of the year following the year of the Participant's death, the Participant's entire interest shall be distributed by December 31 of the calendar year containing the fifth anniversary of the Participant's death.

(4) If the Participant's surviving spouse is the Participant's sole designated beneficiary and the surviving spouse dies after the Participant but before distributions to the surviving spouse are required to begin, this Section 2(B),

other than Section 2(B)(1), shall apply as if the surviving spouse were the Participant.

For purposes of this Section 2(B) and Section 4 of this Appendix 1, unless Section 2(B)(4) applies, distributions shall be considered to begin on the Participant's required beginning date. If Section 2(B)(4) applies, distributions shall be considered to begin on the date distributions are required to begin to the surviving spouse under Section 2(B)(1).

(C) Forms of Distribution. Unless the Participant's interest is distributed in a single-sum on or before the required beginning date, as of the first distribution calendar year distributions shall be made in accordance with sections 3 and 4 of this Appendix 1.

Section 3. Required Minimum Distributions During Participant's Lifetime.

(A) Amount of Required Minimum Distribution For Each Distribution Calendar Year. During the Participant's lifetime, the minimum amount that shall be distributed for each distribution calendar year shall be the Participant's entire balance of his Accounts that has not been previously distributed, if any.

(B) Lifetime Required Minimum Distributions Continue Through Year of Participant's Death. Required minimum distributions shall be determined under this Section 3 beginning with the first distribution calendar year and continuing up to, and including, the distribution calendar year that includes the Participant's date of death.

Section 4. Required Minimum Distributions After Participant's Death.

(A) Death On or After Date Distributions Begin. If the Participant dies on or after the date distributions begin, the remaining portion of his Accounts, if any, shall be distributed in a single sum to his Beneficiary determined in accordance with Article 9.

(B) Death Before Date Distributions Begin. If the Participant dies before the date distributions begin, the remaining portion of his Accounts, if any, shall be distributed in a single sum to his Beneficiary determined in accordance with Article 9.

Section 5. Definitions.

(A) Designated beneficiary: The individual who is designated by the Participant (or the Participant's surviving spouse) as the beneficiary of the Participant's interest under the Plan and who is the designated beneficiary under Section 401(a)(9) of the Code and Treas. Reg. §1.401(a)(9)-4.

(B) Distribution calendar year: A calendar year for which a minimum distribution is required. For distributions beginning before the Participant's death, the first distribution calendar year is the calendar year immediately preceding the calendar year which contains the Participant's required beginning date. For distributions beginning after the Participant's death, the first distribution calendar year is the calendar year in which distributions shall be required to begin under Section 2(B). The required minimum distribution for the Participant's first distribution calendar year shall be made on or before the Participant's required beginning date. The required minimum distribution for other distribution calendar years, including the required minimum distribution for the distribution calendar year in which the Participant's required beginning date occurs, shall be made on or before December 31 of that distribution calendar year.

(C) Required Beginning Date: The later of the April 1 of the calendar year following the calendar year in which the Participant attains age 70½ or retires, except that benefit distributions to a 5% owner must commence by the April 1 of the calendar year following the calendar year in which the Participant attains age 70½.

(D) 5% owner: A Participant who is a 5% owner for purposes of this Section 5 if such Participant is a 5% owner as defined in Section 416 of the Code at any time during the plan year ending with or within the calendar year in which such owner attains age 70½. Once distributions have begun to a 5% owner under this Section 5, they must continue to be distributed, even if the Participant ceases to be a 5% owner in a subsequent year.

Appendix 2

Letter of Agreement

LETTER OF AGREEMENT

among

HAWAIIAN AIRLINES, INC.,

HAWAIIAN HOLDINGS, INC.,

and

THE AIRLINE PILOTS

in the service of

HAWAIIAN AIRLINES, INC.

as represented by

THE AIR LINE PILOTS ASSOCIATION, INTERNATIONAL

STOCK ALLOCATION AGREEMENT

Hawaiian Airlines, Inc. (the "Company"), Hawaiian Holdings, Inc., and the Air Line Pilots in the service of the Company, as represented by the Air Line Pilots Association, International (the "Association"), and jointly referred to hereinafter as the "Parties," enter into this LETTER OF AGREEMENT ("LOA") in accordance with the provisions of Title II of the Railway Labor Act, as amended.

WITNESSETH:

WHEREAS, the Company and the Association reached an agreement on or about _____, 2005 (the "Agreement") regarding the general terms of a new collective bargaining agreement between the Company and the Association effective as of _____, 2005;

WHEREAS, the Agreement requires that the number of shares of Hawaiian Holdings, Inc. common stock, par value \$____ per share ("HH Common Stock"), determined herein be allocated to pilots in the service of the Company pursuant to the method described herein;

NOW, THEREFORE, the Company, Hawaiian Holdings, Inc., and the Association hereby agree as follows:

1. Number of Shares and Allocation. Hawaiian Holdings, Inc. has agreed to grant 1,500,000 shares of HH Common Stock (the "Bonus Shares") to employees of the Company, of which a portion will be allocated to pilots in the service of the Company (the "Pilot Stock Pool") as follows:

Step 1: On the effective date of the Company's exit from bankruptcy reorganization, each full-time employee of the Company (other than officers of the Company) as of such date will be allocated 100 shares of HH Common Stock and each part-time employee of the Company (other than officers of the Company) as of such date will be allocated 50 shares of HH Common Stock.

If as of such date a pilot is a "Participant" in the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (or such other plan qualified under Section 401(a) of the Internal Revenue Code of 1986, as amended, (the "Code") that the Company utilizes to implement this LOA) (the "Plan"), the shares allocated to such pilot will be contributed to his Employer Contribution Account in the Plan and invested in the Plan's investment option that invests primarily in HH Common Stock (the "Plan Stock Fund"). If as of such date the pilot is not a "Participant" in the Plan, the shares allocated to such pilot will be distributed directly to such pilot.

Step 2: The 1,500,000 shares will be reduced by the number of shares allocated to Company employees in Step 1. One-half of such remaining shares will be allocated to Company employees or prior employees (as identified herein) on May 1, 2006. With respect to the one-half of such shares to be allocated on May 1, 2006, pilots who were in the service of the Company for any portion of the 2005 calendar year shall, as a group, be entitled to ("Pilot 2005 Proportion") the proportion thereof that their Form W-2 wages for calendar year 2005 as a group is of the aggregate of all Form W-2 wages for calendar year 2005 paid to all Company employees (other than officers of the Company) as a group.

The Pilot 2005 Proportion will be allocated to each pilot with Form W-2 wages for calendar year 2005 in the proportion his/her Form W-2 wages for 2005 is of the Form W-2 wages for 2005 of all pilots. The Company will round each pilot's allocation up or down, as the case may be, to the nearest whole number (i.e., a fraction of 0.5 or greater will be rounded up to the nearest whole number).

Each pilot's allocation of the Pilot 2005 Proportion will be contributed to his/her Employer Contribution Account in the Plan and invested in the Plan Stock Fund; provided that if as of December 31, 2005 the pilot is not a "Participant" in the Plan, the shares allocated to such pilot will be distributed directly to such pilot (or in the case of a pilot's death, to his/her estate) on May 1, 2006; provided further, that if on or prior to May 1, 2006 a pilot ceases to be an employee of the Company due to retirement or voluntary termination, such pilot's shares shall be distributed directly to such pilot on May 1, 2006.

Step 3: The shares of HH Common Stock not allocated pursuant to Steps 1 and 2, will be allocated to Company employees or prior employees (as identified herein) on May 1, 2007. With respect to the shares to be allocated on May 1, 2007, pilots who were in the service of the Company for any portion of calendar year 2006 shall as a group, be entitled to ("Pilot 2006 Proportion") the proportion thereof that their Form W-2 wages for calendar year 2006 as a group is of the aggregate of all Form W-2 wages for calendar year 2006 paid to all Company employees (other than officers of the Company) as a group.

The Pilot 2006 Proportion will be allocated to each pilot with Form W-2 wages for calendar year 2006 in the proportion his/her Form W-2 wages for 2006 is of the Form W-2 wages for 2006 of all pilots. The Company will round each pilot's allocation up or down, as the case may be, to the nearest whole number (i.e., a fraction of 0.5 or greater will be rounded up to the nearest whole number).

Each pilot's allocation of the Pilot 2006 Proportion will be contributed to his/her Employer Contribution Account in the Plan and invested in the Plan Stock Fund; provided that if as of December 31, 2006 the pilot is not a "Participant" in the Plan, the shares allocated to such pilot will be distributed directly to such pilot (or in the case of a pilot's death, to his/her estate) on May 1, 2007; provided further, that if on or prior to May 1, 2007 a pilot ceases to be an employee of the Company due to retirement or voluntary termination, such pilot's shares shall be distributed directly to such pilot on May 1, 2007.

2. Allocation Rules.

- a. For purposes of this LOA, "Form W-2 wages" for a year will mean regular earnings as reported in Box 5 of Form W-2 for such year, including employee pre-tax deferrals (such as contributions to a plan qualified under Section 401(a) of the Code, and adding to the amount in Box 5 of Form W-2 any amount contributed by salary reduction agreement under Section 125 of the Code to a cafeteria plan, including any health care premium conversion, health care flexible spending, or dependent care flexible spending accounts). However, bonuses, vacation payoffs, insurance, layoff severance, and other similar non-regular earnings (such as income attributable to any direct distributions of HH Common Stock pursuant to this LOA) will not be included even if reported in Box 5 of Form W-2 for such year.
- b. The fair market value of the shares of HH Common Stock on the date of actual contribution to the Plan will determine the number of additional units of interest in the Plan Stock Fund that the Plan's trustee will credit to a pilot's Employer Contribution Account. The Plan's trustee will convert shares of Company Common Stock into Stock Fund units in accordance with its normal procedures.
- c. Notwithstanding the foregoing, no shares will be allocated to the Employer Contribution Account of a pilot for 2005, 2006, or 2007 to the extent the maximum benefit limitations of Section 415 of the Code would be exceeded for the applicable year. Any such shares will be deducted from the Pilot Stock Pool and will be (i) contributed to the Plan and specially allocated to such pilot's Employer Contribution Account as of the next Allocation Date such contribution and allocation would not exceed the maximum benefit limitations of Section 415 of the Code, or, if earlier, as soon as legally permissible, or, if not legally permissible, then (ii) distributed

directly to the pilot as described in item 1 above.

- d. In order to satisfy federal, state, local, and foreign taxes (including the pilot's FICA obligation) required by law to be withheld with respect to any taxable event concerning a pilot arising as a result of this LOA, the Company will contact the pilot to determine which of the following options shall be used to satisfy such withholding obligations: (i) deductions or withholdings from a pilot's cash compensation, or (ii) requiring a pilot to remit cash to the Company, provided, however, that any pilot who ceases to be an employee for reasons of retirement or voluntary termination will satisfy such withholding obligations by remitting cash to the Company. If the pilot neither responds to the Company nor agrees to any of the foregoing options within 15 days following the date that the Company contacted him/her, the Company will have the authority and the right to satisfy such withholding obligations by (i) deductions or withholdings from a pilot's cash compensation, or (ii) requiring a pilot to remit cash to the Company.

3. Reporting, Review, and Dispute Resolution. Either before or as soon as practicable following the conclusion of each allocation, the Company will create, and the Association will review and assist in explaining to pilots, a summary of the allocation calculation for all pilots and (ii) the Company will provide each pilot with a description of his/her allocation calculation (an "Allocation Statement"). If a pilot disputes his/her Allocation Statement, the pilot must submit a written issue statement to the Company, in a form to be determined by the Company, by no later than 15 days following the distribution of the Allocation Statements. All such issues will be conclusively determined by the Company no later than 30 days following its receipt of such statement. The Company will implement any corrections that result from this review process in the next allocation following its decision or a special one-time allocation in the event the correction concerns the May 1, 2007 allocation. The Parties will develop a reasonable distribution mechanism (e.g., a brief deferral of the May 1, 2007 allocation or a holdback from the May 1, 2007 allocation) to ensure that the Company maintains sufficient shares in the Pilot Stock Pool to process any such corrections with respect to the May 1, 2007 allocation. In no event, however, will the Company's obligation to contribute shares to the Plan exceed the pilot's group proportion of the 1,500,000 shares of HH Common Stock that was determined under item 1 of this LOA.

4. Dividends, Reclassification, Sale, or Exchange. As a general matter, Hawaiian Holdings, Inc. will take all commercially reasonable steps necessary to ensure that the unallocated shares in the Pilot Stock Pool receive all of the rights and benefits (including voting rights) enjoyed by the HH Common Stock in connection with any dividend, reclassification, sale, or exchange of HH Common Stock. In particular:

- a. If Hawaiian Holdings, Inc. declares a cash dividend, stock dividend, or any other distribution to shareholders before May 1, 2007, then (to the extent legally permissible) such cash dividend, stock dividend, or other distribution will accrue with respect to all unallocated shares remaining in the Pilot Stock Pool and will be contributed or distributed as the unallocated shares to which it relates are contributed to the Plan or distributed to a pilot in accordance with this LOA.
- b. If HH Common Stock is split, converted, reclassified, changed into, or exchanged for a different number or kind of securities of Hawaiian Holdings, Inc. before May 1, 2007,

then (i) all unallocated shares remaining in the Pilot Stock Pool will (to the extent legally permissible) be subject to the same split, conversion, reclassification, or exchange and (ii) the calculations under item 1 above will be comparably adjusted if necessary to give effect to the stock allocations described in this LOA.

- c. If shares of HHH Common Stock are changed into or exchanged for cash, securities, or other property pursuant to an acquisition, recapitalization, stock repurchase, merger, consolidation, combination, or similar transaction (a "Transaction") before May 1, 2007, then

#1) Hawaiian Holdings, Inc. will provide the Association with written notice of such Transaction no later than it provides notice to its shareholders of such Transaction; and

#2) at the written request of the Association delivered as soon as practicable after its receipt of such notice (but prior to the date of closing of such Transaction), Hawaiian Holdings, Inc. will divide all remaining shares in the Pilot Stock Pool equally among all pilots actively employed by the Company as of the date of the Association's request. If the pilot is a "Participant" in the Plan, such shares will be contributed to his/her Employer Contribution Account in the Plan as soon as practicable following the Association's request and invested in the Plan Stock Fund, subject to item 2.c above. If the pilot is not a "Participant" in the Plan, such shares will be distributed directly to the pilot (or in the case of a pilot's death, to his/her estate) as soon as practicable following the Association's request.

5. Trust or Plan Permissible. Notwithstanding any other provision of this LOA, the Company may, subject to the review and written approval of the Association, establish or utilize a plan qualified under Section 401(a) of the Code or a trust or other vehicle to which it may at any time or from time to time contribute all or a portion of the Bonus Shares to implement this LOA.
6. The Plan shall be amended as needed to conform to the terms of this LOA. Such amendments will be drafted by the Company and subject to the review and written approval of the Association.

This LOA will become effective upon execution by all signatories thereof and will remain in full force and effect until the distribution of all shares in the Pilot Stock Pool is completed in accordance with the provisions of this LOA.

IN WITNESS WHEREOF, the Parties have signed this LOA this day of _____, 2005.

FOR HAWAIIAN AIRLINES, INC.

[name] Its

1

[title]

EXHIBIT 1

[name] Its
[title]

FOR HAWAIIAN HOLDINGS, INC.

[name] Its
[title]

[name] Its
[title]

WITNESS:

FOR THE AIR-LINE PILOTS
ASSOCIATION, INTERNATIONAL

[name]
[title]

[name]
[title]

Appendix 3
TARGET BENEFIT CONTRIBUTION AND DEFINED CONTRIBUTION
ALLOCATION PROCESS

Section 1. Introduction.

This Appendix 3 describes the assumptions and methodology used to determine the allocation of the Target Benefit Contributions and Defined Contributions made to the Plan pursuant to Section 4.5.

Section 2. Definitions.

In addition to the definitions in Article 2, the following definitions shall apply for purposes of this Appendix 3.

Actual Contribution Percentage: The contribution percentage determined pursuant to Section 3(h)(3) of this Appendix 3.

Active Pilot: A Group A Participant or Group B Participant who is listed on the System Seniority List as of the Current Valuation Date.

Contribution Period: Each Plan Year shall contain two Contribution Periods: one period from January 1 through June 30 of such Plan Year and a second period from July 1 through December 31 of such Plan Year.

Current Valuation Date: The January 1 or July 1 of the Contribution Period for which the Actual Contribution Percentage is being determined.

Frozen Pension Amount: The accrued benefit for a Group B Participant under the Frozen Plan as of December 31, 2007 and payable at Retirement Age.

Frozen Plan: The Retirement Plan for Pilots of Hawaiian Airlines, Inc. in effect as of June 2, 2005.

Future Annual Pay: The annual equivalent of the Group B Participant's Future Hourly Pay Rate assuming such Pilot works 85 hours per month.

Future Annual Average Pay: The highest consecutive 36 months of Future Annual Pay divided by 12.

Future Hourly Pay Rate: The hourly pay rate determined pursuant to Section 3(b) of this Appendix 3.

Future Valuation Date: Any January 1 or July 1 for any year after the current Contribution Period.

Hypothetical Target Benefit Contribution Amount: The amount determined pursuant to Section 3(i) hereof.

Narrow-Body or (NB): An aircraft determined by the Employer and Association to be a narrow-body aircraft.

Narrow-Body (NB) Captain Count: The number of Active Pilots as of the Current Valuation Date who are Narrow-Body (NB) Captains.

Narrow-Body (NB) First Officer Count: The number of Active Pilots as of the Current Valuation Date who are Narrow-Body (NB) First Officers.

Notional Account: As of any Valuation Date, the hypothetical bookkeeping account maintained for each Group B Participant equal to the accumulation of Hypothetical Target Benefit Contribution Amounts with interest at the Pre-Retirement Interest Rate specified in Section 4 of this Appendix 3, based on the date the contribution was made. As of January 1, 2008 the Notional Account shall equal zero for all Group B Participants.

Pilot: An Employee who (i) is defined on the Current Valuation Date as a "Pilot" in the Basic Agreement in effect from time to time between the Employer and the Association and (ii) is listed on the System Seniority List as of the Current Valuation Date.

Plan Year: The calendar year. For purposes of this Appendix 3, the first Plan Year shall commence January 1, 2008.

Preliminary Defined Contribution Percentage: 15%.

Preliminary Target Benefit Percentage: The percentage determined pursuant to Section 3(g) of this Appendix 3.

Present Value of Future Pay (PVFP): The present value determined pursuant to Section 3(d) of this Appendix 3.

Projected Pension Amount: The retirement benefit payable at Retirement Age under Section 8.1 of the Frozen Plan for a Group B Participant determined as if such benefit had not been frozen and assuming 85 hours of flying time per month in Seat Assignment (Highest) during the last 36 months used in determining "Final Average Earnings" under the Frozen Plan.

Projected Seniority Service: Service as a Pilot with the Employer as of any Future Valuation Date as determined by the Seat Projection Assignment Model.

Retirement Age: A Pilot's 60th birthday.

Seat Assignment (Actual): The actual seat (WB Captain, NB Captain, WB First Officer, or NB First Officer) occupied by an Active Pilot on the Current Valuation Date.

Seat Assignment (Highest): The highest seat that could be occupied by an Active Pilot as of the Current Valuation Date, reflecting such Pilot's decision not to accept a higher seat assignment.

Seat Assignment Order: From highest to lowest: WB Captain, NB Captain, WB First Officer, and NB First Officer.

Seat Projection Assignment Model (SPAM): The projection model used to determine each Group B Participant's expected seat assignment and expected future pay as of each Future Valuation Date.

Seniority Service: Service as a Pilot with the Employer as of the Current Valuation Date.

Target Benefit Accumulation: The amount determined pursuant to Section 3(e) hereof.

Total Pilot Group Count (TPGC): The number of Active Pilots who are either Group A Participants or Group B Participants as of each Valuation Date.

Valuation Age: Attained age as of any Valuation Date in completed years and months.

Valuation Date: Either the Current Valuation Date or any Future Valuation Date.

Valuation Pay: As of any Valuation Date, for each Group B Participant, the annualized Valuation Hourly Pay Rate, assuming each Group B Participant works 83 hours per month.

Valuation Hourly Pay Rate: As of any Valuation Date, Valuation Pay Rate is determined based on the hourly wage rate for each Active Pilot's Seat Assignment (Highest), as contained in the basic agreement in effect from time to time between the Employer and the Association. For periods after the expiration of such agreement, the hourly wage rates shall be assumed to increase with the Pay Scale Adjustment Factor specified in Section 4 of this Appendix 3.

Wide-Body (WB): An aircraft determined by the Employer and Association to be a wide-body aircraft.

Wide-Body (WB) Captain Count: The number of Active Pilots as of the Current Valuation Date who are Wide-Body (WB) Captains.

Wide-Body (WB) First Officer Count: The number of Active Pilots as of the Current Valuation Date who are Wide-Body First Officers.

Section 3. Methods.

(a) Seat Projection Assignment Model (SPAM).

(1) As of the Current Valuation Date, the Employer shall provide the following information for all Active Pilots: Seat Assignment (Actual), Seat Assignment (Highest), and Seniority Service.

(2) SPAM shall determine each Group B Participant's Seat Assignment (Highest) for each Future Valuation Date from the Current Valuation Date through his Retirement Age. This is accomplished by incrementally increasing the Valuation Age and Seniority Service by six months for each Future Valuation Date and determining for each Group B Participant, the seat he would be assigned, assuming each Group B Participant would move to the next higher seat as that seat becomes available due to assumed retirements.

(3) As of any Future Valuation Date, SPAM shall assume that the distribution of WB Captains, NB Captains, WB First Officers, and NB First Officers remains unchanged from the distribution on the Current Valuation Date. In no event shall the seat assigned to any Group B Participant as of any Future Valuation Date be of Seat Assignment Order lower than the Seat Assignment (Highest) as of the Current Valuation Date.

(4) SPAM shall assign seats and determine pay for each Group B Participant for each Future Valuation Date as follows:

Step 1: The Total Pilot Group Count shall first be compared with the WB Captain Count. If the TPGC is greater than or equal to the WB Captain Count, then the Active Pilots with the longest Projected Seniority Service shall be assumed to be WB Captains (up to a maximum of the WB Captain Count). If the TPGC is less than the WB Captain Count, then all Group B Participants shall be assumed to be WB Captains.

Step 2: Next, the excess of the TPGC over the WB Captain Count shall be compared with the NB Captain Count. If the excess is greater than or equal to the NB Captain Count, then the Active Pilots with the longest Projected Seniority Service (excluding those already assigned to a higher seat) shall be assumed to be NB Captains up to a maximum of the NB Captain Count. If the

excess is less than the NB Captain Count, then all Group B Participants not assigned in Step 1 shall be assumed to be NB Captains.

Step 3: Next, the excess of the TPGC over the WB Captain Count and the NB Captain Count shall be compared with the WB First Officer Count. If the excess is greater than or equal to the WB First Officer Count, then the Active Pilots with the longest Projected Seniority Service (excluding those already assigned to a higher seat) shall be assumed to be WB First Officers up to a maximum of the WB First Officer Count. If the excess is less than the WB First Officer Count, then all Group B Participants not assigned in Steps 1 or 2 shall be assumed to be WB First Officers.

Step 4: Finally, the excess of the TPGC over the WB Captain Count, the NB Captain Count, and the WB First Officer Count shall be assumed to be NB First Officers.

(b) Determination of Future Hourly Pay Rate. Each Group B Participant's Future Hourly Pay Rate as of each Future Valuation Date shall be assigned based on the Seat Assignment (Highest), Projected Seniority Service, and the Valuation Hourly Pay Rate.

(c) Calculation of Future Annual Average Pay. As of the Current Valuation Date, each Group B Participant's Future Annual Average Pay shall be calculated. In the year in which a Group B Participant retires, the Future Annual Pay for such year shall be pro-rated based on the number of completed months prior to Retirement Age.

(d) Calculation of Present Value of Future Pay. For each Group B Participant, Present Value of Future Pay shall be calculated as the discounted value (using only the Preretirement Interest Rate specified in Section 4 of this Appendix 3) of Future Annual Pay assuming such pay for a Contribution Period is received in the middle of such Contribution Period. For PVFP purposes, the Future Annual Pay shall be calculated assuming each Group B Participant works 83 hours per month. For the Contribution Period in which a Group B Participant attains Retirement Age, Future Annual Pay shall be pro-rated based on the number of completed months prior to such Retirement Age.

(e) Calculation of Retirement Age Target Benefit Accumulation. For each Group B Participant, the Projected Pension Amount shall be calculated using Future Annual Average Pay and expected service at Retirement Age. The Target Benefit Accumulation shall be the lump sum equivalent at Retirement Age of the excess of this Projected Pension Amount over the Frozen Pension Amount using the assumptions for Post-Retirement Interest, Marital Status, Form of Benefit Payout, and Mortality specified in Section 4 of this Appendix 3.

(f) Calculation of Target Benefit Contribution and Defined Contribution Amounts. The Target Benefit Contribution amount for each month during a Contribution Period shall be determined as soon as practicable after the last day of such month as 17% of the aggregate Compensation of all Group B Participants during such month. The Defined Contribution amount for each month during a Contribution Period shall be determined as soon as practicable after the last day of such month as 15% of the aggregate Compensation of all Group C Participants during such month.

(g) Calculation of Preliminary Target Benefit Percentage. As of the Current Valuation Date, each Group B Participant's Preliminary Target Benefit Percentage for the current Contribution Period is calculated as the ratio of **A** divided by **B** where:

A is the excess of the present value of the Target Benefit Accumulation (using the Pre-Retirement Interest Rate specified in Section 4 hereof only) minus the Notional Account and

B is the Present Value of Future Pay for each Group B Participant.

(h) Allocation of Target Benefit Contribution and Defined Contribution Amounts.

(1) For each Contribution Period, the Preliminary Target Benefit Percentage for each Group B Participant and the Preliminary Defined Contribution Percentage for each Group C Participant shall be adjusted up or down in order to bring the aggregate projected Employer contributions to Group B Participants and Group C Participants within the limits specified in Section 3(f) of this Appendix 3. This adjustment shall be the ratio that the total preliminary projected aggregate contributions resulting from such percentages is to the total preliminary projected contribution amounts resulting from the limits specified in Section 3(f) of this Appendix 3.

(2) For each Contribution Period, the Preliminary Target Benefit Percentages for Group B Participants as adjusted pursuant to Section 3(h)(1) of this Appendix 3 shall then be adjusted to narrow the distribution of individual percentages around the mean, but with the aggregate Employer contribution amounts resulting therefrom the same as prior to such adjustment.

(3) The Preliminary Target Benefit Percentage for each Group B Participant as adjusted pursuant to Section 3(h)(1) and Section 3(h)(2) of this Appendix 3 and the Preliminary Defined Contribution Percentage for each Group B Participant as adjusted pursuant to Section 3(h)(1) of this Appendix 3 shall be such Participant's Actual Contribution Percentage for such Contribution Period.

(4) For each month during such Contribution Period, each Group B Participant's actual Target Benefit Contribution amount and each Group C Participant's actual Defined Contribution amount shall be determined by multiplying the product of such Pilot's Actual Contribution Percentage and his Compensation for the month by the "Adjustment Factor" for such month.

The Adjustment Factor shall be calculated as follows:

$$\text{Sum of 17\% times each Group B Participant's Compensation for the month} + \text{Sum of 15\% times each Group C Participant's Compensation for the month} = \text{Actual Employer contribution}$$
$$\text{Sum of each Group B Participant's and Group C Participant's Actual Contribution Percentage times his Compensation for the month} = \text{Aggregate target contribution}$$
$$\text{Actual Employer contribution} \div \text{Aggregate target contribution} = \text{Adjustment Factor}$$

The Adjustment Factor for a month shall be applied as follows:

$$\text{Group B Participant's or Group C Participant's Actual Contribution Percentage} \times \text{his Compensation} \times \text{the Adjustment Factor} = \text{the required Employer contribution for such Participant for such month}$$

(5) Such allocations shall be subject to the limitations of Sections 401(a)(17) and 415 of the Code. In no case shall the aggregate amount of Target Benefit Contributions and Defined Contributions for a Plan Year exceed the amount deductible under Section 404 of the Code. If the amount of Target Benefit Contributions and Defined Contributions are reduced pursuant to the prior sentence, each Group B Participant's Target Benefit Contribution amount and each Group C Participant's Defined Contribution amount shall be proportionately reduced, and such reduced amount allocated in the following Plan Year.

(i) Notional Accounts and Calculation of Hypothetical Target Benefit Contribution Amount.

(1) After the Actual Contribution Percentages for a month have been determined pursuant to Section 3(h) of this Appendix 3, such Actual Contribution Percentage multiplied by the Adjustment Factor for each Group B Participant shall be used to determine the Hypothetical Target Benefit Contribution Amount to be added to his Notional Account. This Hypothetical Target Benefit Contribution Amount shall be based on 83 hours per month. For a Group B Participant whose Seat Assignment (Actual) is the same as the Seat Assignment (Highest), the Hypothetical Target Benefit Contribution Amount shall use the Valuation Pay

determined by his Seat Assignment (Actual). For a Group B Participant whose Seat Assignment (Actual) is not the same as the Seat Assignment (Highest), the Hypothetical Target Benefit Contribution Amount shall use the Valuation Pay expected to be received by such Participant for the Contribution Period.

(2) A Group B Participant's Hypothetical Target Benefit Contribution Amount for a month shall be compounded by the Pre-Retirement Interest Rate specified in Section 4 of this Appendix 3 and then added to his Notional Account.

(j) Special rule for Group B Participants recalled from furlough or returning from leave of absence during a Contribution Period. If a Participant is recalled from furlough or returns from a leave of absence during a Contribution Period, his Preliminary Target Benefit Percentage for such Contribution Period shall be 17% and shall be adjusted during such Contribution Period in accordance with Section 3(h) of this Appendix 3.

Section 4. Assumptions.

The following assumptions shall apply for purposes of this Appendix 3:

Form of Payment under the Frozen Plan: Projected Pension Amount assumed to be paid as a Joint & 50% Survivor Annuity.

Marital Status: All Pilots assumed to be married at Retirement Age with a spouse 4 years younger.

Mortality Post-Retirement: 1994 Group Annuity Reserving Table unloaded (50/50 blend), projected with Scale AA to 2002.

Pay Scale Adjustment Factor: 1% compounded annually.

Pre-Retirement Decrements: None.

Pre-Retirement Interest Rate: 8% compounded annually.

Post-Retirement Interest Rate: 7.25% compounded annually.

**AMENDMENT 1 TO
HAWAIIAN AIRLINES, INC.
PILOTS' 401(k) PLAN**

In accordance with Section 21.6 of the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (hereinafter the "Plan"), the Plan is hereby amended as follows:

1. Section 3.3 of the Plan is hereby amended by adding the following paragraph at the end thereof to read in its entirety as follows:

Notwithstanding any provision of this Plan to the contrary:

(a) Effective as of January 1, 2007, if a Participant dies while performing qualified military service (as defined in Section 414(u) of the Code), the survivors of the Participant shall be entitled to any additional benefits (other than benefit accruals relating to the period of qualified military service) provided under the Plan had the Participant resumed and then terminated employment on account of death; and

(b) Effective for Plan Years beginning after December 31, 2008, Section 414(u)(12) shall apply to the Plan if a Participant performing qualified military service (as defined in Section 414(u) of the Code) receives differential wage payments (as defined in Section 3401(h) of the Code).

2. Effective for Limitation Years beginning on or after July 1, 2008, Section 4.1(E)(4) of the Plan is hereby amended to read in its entirety as follows:

(4) Such Excess Contributions shall be adjusted for any income or loss through the end of the Plan Year during which such Excess Contributions were made.

3. Effective for Limitation Years beginning on or after July 1, 2007, Section 8.1(D) is hereby amended by adding the following paragraph at the end thereof to read in its entirety as follows:

Notwithstanding the foregoing, effective for Limitation Years beginning on or after July 1, 2007, such Excess Amount shall be corrected through the Employee Plan Compliance Resolution System or such other correction method allowed by statute, regulations, or regulatory authorities.

4. Effective for Limitation Years beginning on or after July 1, 2007, Section 8.2(F) is hereby amended to read in its entirety as follows:

(F) If there is an Excess Amount attributed to this Plan, such Excess Amount shall be corrected through the Employee Plan Compliance Resolution System or such other correction method allowed by statute, regulations, or regulatory authorities.

5. Effective for Limitation Years beginning on or after July 1, 2007, Section 8.3(A) of the Plan is hereby amended by adding the following paragraphs at the end thereof to read in its entirety as follows:

Notwithstanding the foregoing, a Participant's Annual Additions shall not include a Restorative Payment that is allocated to a Participant's Accounts. For purposes of this paragraph, the term "Restorative Payment" means a payment made to restore some or all of the Plan's losses resulting from an action (or a failure to act) by a fiduciary for which there is reasonable risk of liability for breach of a fiduciary duty (other than a breach of fiduciary duty arising from failure to remit contributions to the Plan) under ERISA or under other applicable federal or state law, where Participants who are similarly situated are treated similarly with respect to the payments. This includes payments to the Plan made pursuant to a Department of Labor order, the Department of Labor's Voluntary Fiduciary Correction Program, or a court-approved settlement, to restore losses to a qualified defined contribution plan. Payments made to the Plan to make up for losses due merely to market fluctuations and other payments that are not made on account of a reasonable risk of liability for breach of a fiduciary duty under Title I of ERISA are not Restorative Payments and generally constitute contributions that give rise to Annual Additions.

In determining the amount of an Annual Additions, a contribution by the Employer or an employee of property other than cash will be considered to be a contribution in an amount equal to the fair market value (as defined in §20.2031-1 of the Estate Tax Regulations) of the property on the date the contribution is made.

6. Effective for Limitation Years beginning on or after July 1, 2007, Section 8.3(E) of the Plan is hereby amended by adding the following paragraphs at the end thereof to read in their entirety as follows:

For Limitation Years beginning on or after July 1, 2007, an employee's compensation for a Limitation Year shall also include compensation paid by the later of 2-¹/₂ months after the Participant's severance from employment with the Employer maintaining the Plan or the end of the Limitation Year that includes the date of the employee's severance from employment with the Employer maintaining the Plan, if the payment is regular compensation for services during the employee's regular working hours or compensation for services outside the employee's regular working hours (such as overtime or shift differential); commissions, bonuses, or other similar payments; and absent a severance from

employment, the payments would have been paid to the employee while the employee continued in employment with the Employer. Any payments not described above shall not be considered compensation if paid after severance from employment, even if they are paid by the later of 2-1/2 months after the date of severance from employment or the end of the Limitation Year that includes the date of severance from employment.

Effective for Limitation Years beginning after December 31, 2008, Section 414(u)(12) shall apply to the Plan if a Participant performing qualified military service (as defined in Section 414(u) of the Code) receives differential wage payments (as defined in Section 3401(h) of the Code).

For Limitation Years beginning on or after July 1, 2007, an employee's compensation for any Limitation Year shall not exceed the Section 401(a)(17) compensation limit that applies to that Limitation Year. If the Limitation Year is not the calendar year, then the Section 401(a)(17) compensation limit that applies to such Limitation Year shall be the Section 401(a)(17) compensation limit in effect for the respective calendar year in which such Limitation Year begins.

7. Effective for Limitation Years beginning on or after July 1, 2007, Section 8.4 of the Plan is hereby amended by adding the following paragraph at the end thereof to read in its entirety as follows:

Effective for limitation years beginning on or after July 1, 2007, this Article 8 shall be administered in accordance with the regulations under Section 415 of the Code that apply to such limitation years.

8. Effective as of January 1, 2007, Section 14.4(A)(2) is hereby amended by to read in its entirety as follows:

(2) If the value of a Participant's Accounts exceeds \$5,000 and the Accounts are immediately distributable, the Participant must consent to any distribution of his Accounts. The consent of the Participant shall be obtained in writing within the 180-day period ending on the first day of the first period for which an amount is paid in any form. The Employer shall notify the Participant of the right to defer any distribution until his Accounts are no longer immediately distributable and the consequences of failing to defer. Such notification shall be provided no less than 30 days and no more than 180 days prior to the distribution date. However, distribution may commence less than 30 days after the notice described in the preceding sentence is given, provided the distribution is one to which Sections 401(a)(11) and 417 of the Internal Revenue Code do not apply, the Employer clearly informs the Participant that he has a right to a period of at least 30 days after receiving the notice to consider the decision of whether or not to elect a distribution (and, if applicable, a particular distribution option), and the Participant after receiving the notice affirmatively elects a distribution.

9. Effective for distributions after the date this Amendment 1 is executed, Section 14.5 of the Plan is hereby amended by a new subsection (D) at the end thereof to read in its entirety as follows:

(D) If a beneficiary (other than the Participant's spouse) is considered to be a "designated beneficiary" as set forth in Section 401(a)(9)(E) of the Code, such beneficiary may establish a specific IRA (an "inherited IRA") into which all or a portion of a death benefit distribution (to which such non-spouse designated beneficiary is entitled) can be transferred directly as a direct rollover, provided that such a distribution shall not be eligible for such rollover to the extent it is a required minimum distribution under Section 401(a)(9) of the Code. Such a nonspouse rollover shall be subject to the requirements of Section 402(c)(11) of Code.

10. Section 1 of Appendix 1 of the Plan is hereby amended by adding a new subsection (E) to read in its entirety as follows:

(E) Notwithstanding any other provisions of the Plan, the requirements of Section 401(a)(9) of the Code shall not apply for calendar year 2009.

IN WITNESS WHEREOF, Hawaiian Airlines, Inc. and the Air Line Pilots Association, International, by the signatures of their duly authorized representatives, have executed this amendment this 11th day of SEPTEMBER 2009.

FOR HAWAIIAN AIRLINES, INC.

By Burbaney
Its SVP #12

By [Signature]
Its PETER INGRAM
Executive Vice President,
Chief Financial Officer & Treasurer

FOR THE AIR LINE PILOTS IN
THE SERVICE OF
HAWAIIAN AIRLINES, INC.

By John Prater
John Prater, President

By [Signature]
Eric Sampson, MEC Chairmen

AMENDMENT 1 TO
HAWAIIAN AIRLINES, INC.
PILOTS' 401(k) PLAN

In accordance with Section 21.6 of the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (hereinafter the "Plan"), the second paragraph of Section 7.6 of the Plan is hereby amended by adding the following sentences at the end thereof to read in their entirety as follows:

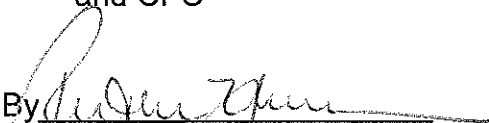
Notwithstanding the foregoing or any other provision of the Plan, each Participant shall be entitled to direct the Trustee whether to tender the shares of Employer Stock allocated to his interest in the Stock Fund pursuant to Hawaiian Airlines, Inc.'s offer to purchase shares of its common stock dated May 31, 2002. The Trustee shall tender such shares in accordance with each Participant's direction. If a Participant fails to provide timely direction to the Trustee, the Trustee shall not tender any shares of Employer Stock allocated to such Participant's interest in the Stock Fund. Participant direction shall be in accordance with and subject to such procedures as the Trustee shall establish.

The amendment set forth herein shall be effective as of May 31, 2002.

IN WITNESS WHEREOF, Hawaiian Airlines, Inc. and the Air Line Pilots Association, International, by the signatures of their duly authorized representatives, have executed this amendment this 18th day of September 2002.

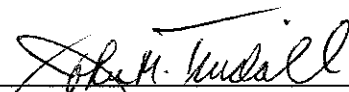
FOR HAWAIIAN AIRLINES, INC.

By 
Its Executive Vice President
and CFO

By 
Its Senior Vice President
People Services Group

FOR THE AIR LINE PILOTS IN
THE SERVICE OF
HAWAIIAN AIRLINES, INC.

By 
Duane E. Woerth, President

By 
John M. Tindall, Chairman

AMENDMENT 2 TO
HAWAIIAN AIRLINES, INC.
PILOTS' 401(k) PLAN

In accordance with Section 21.6 of the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (hereinafter the "Plan"), Section 2.17 of the Plan is hereby amended to read in its entirety as follows:

2.17 EMPLOYER STOCK. Shares of voting common stock of HA Holdings, Inc., which shares constitute "employer securities" as defined in Section 409(1) of the Code. Employer Stock which is listed on the American Stock Exchange and which is regularly traded thereon shall be valued by the Trustee at the closing price thereon determined as of the end of the trading day on which such value is to be determined.

The amendment set forth herein shall be effective as of the date that all of the outstanding common stock of Hawaiian Airlines, Inc. is converted into common stock of HA Holdings, Inc. pursuant to the corporate reorganization in which Hawaiian Airlines, Inc. will become a wholly-owned subsidiary of HA Holdings, Inc.

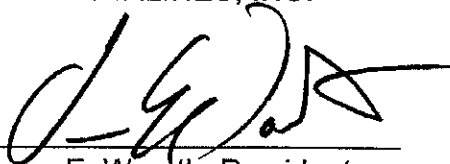
IN WITNESS WHEREOF, Hawaiian Airlines, Inc. and the Air Line Pilots Association, International, by the signatures of their duly authorized representatives, have executed this amendment this 20th day of September, 2002.

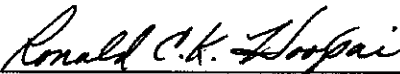
FOR HAWAIIAN AIRLINES, INC.

By Christine R. Jester
Its Executive Vice President,
CFO and Treasurer

By [Signature]
Its Sr. Vice President,
People Services Group

FOR THE AIR LINE PILOTS IN
THE SERVICE OF
HAWAIIAN AIRLINES, INC.

By 
Duane E. Woerth, President

By 
Ronald C. K. Hoopai, Chairman

AMENDMENT 3 TO
HAWAIIAN AIRLINES, INC.
PILOTS' 401(k) PLAN

In accordance with Section 21.6 of the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (hereinafter the "Plan"), the Plan is hereby amended in the following respects:

1. The fourth paragraph of Section 2.8 of the Plan is hereby replaced by the following paragraph:

The annual Compensation of each Participant taken into account in determining allocations in any determination period beginning after December 31, 2001 shall not exceed \$200,000 ("EGTRRA Limit"). Annual Compensation means Compensation during the Plan Year or such other consecutive 12-month period over which compensation is otherwise determined under the Plan (the "determination period"). This EGTRRA Limit on annual Compensation shall be adjusted for cost-of-living increases in accordance with Section 401(a)(17)(B) of the Code. The cost-of-living adjustment in effect for a calendar year shall apply to annual Compensation for the determination period that begins with or within such calendar year.

2. The fifth paragraph of Section 2.35 of the Plan is hereby replaced by the following paragraph:

The annual Statutory Compensation of each Participant taken into account in determining allocations in any determination period beginning after December 31, 2001 shall not exceed \$200,000 ("EGTRRA Limit"). Annual Statutory Compensation means Statutory Compensation during the Plan Year or such other consecutive 12-month period over which compensation is otherwise determined under the Plan (the "determination period"). This EGTRRA Limit on annual Statutory Compensation shall be adjusted for cost-of-living increases in accordance with Section 401(a)(17)(B) of the Code. The cost-of-living adjustment in effect for a calendar year shall apply to annual Statutory Compensation for the determination period that begins with or within such calendar year.

3. Section 4.1(F)(1) of the Plan is hereby amended to read in its entirety as follows:

(1) No Participant shall be permitted to have Salary Deferrals made under this Plan or any other qualified plan maintained by the Employer during any taxable year in excess of the dollar limitation contained in Section 402(g) of the Code in effect at the beginning of such taxable year, except to the extent permitted under Section 4.1(G).

4. Section 4.1 of the Plan is hereby amended by adding a new paragraph (G) at the end thereof to read in its entirety as follows:

(G) All Participants who are eligible to make elective deferrals under this Plan and who have attained age 50 before the close of the Plan Year shall be eligible to make catch-up contributions in accordance with, and subject to the limitations of, Section 414(v) of the Code. Such catch-up contributions shall not be taken into account for purposes of the provisions of the Plan implementing the required limitations of Sections 402(g) and 415 of the Code. The Plan shall not be treated as failing to satisfy the provisions of the Plan implementing the requirements of Section 401(k)(3), 401(k)(11), 401(k)(12), 410(b), or 416 of the Code, as applicable, by reason of the making of such catch-up contributions. This Section 4.1(G) shall be effective as of such date as the Company and the Association shall agree in writing.

5. Section 4.3 of the Plan is hereby amended by adding a new paragraph at the end thereof to read in its entirety as follows:

The Retirement Board may accept Employee rollover contributions and/or direct rollovers of eligible rollover distributions made after December 31, 2001, from the following types of plans beginning on January 1, 2003:

- (i) a qualified plan described in Section 401(a) or 403(a) of the Code, excluding after-tax employee contributions;
- (ii) an annuity contract described in Section 403(b) of the Code, excluding after-tax employee contributions;
- (iii) an eligible plan under Section 457(b) of the Code which is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or political subdivision of a state; and
- (iv) the portion of a distribution from an individual retirement account or annuity described in Section 408(a) or 408(b) of the Code that is eligible to be rolled over and would otherwise be includible in gross income.

6. Section 8.4(l) of the Plan is hereby amended to read in its entirety as follows:

(l) Maximum Permissible Amount: Except to the extent permitted under Section 4.1(G) of the Plan and Section 414(v) of the Code, if applicable, the maximum Annual Addition that may be contributed or allocated to a Participant's accounts under the Plan for any Limitation Year shall not exceed the lesser of (i) \$40,000, as adjusted for increases in the cost-of-living under Section 415(d) of the Code, or (ii) 100% of the Participant's compensation, within the meaning of Section 415(c)(3) of the Code, for the Limitation Year.

The compensation limit referred to in (ii) shall not apply to any contribution for medical benefits after separation from service (within the meaning of Section 401(h) or Section 419A(f)(2) of the Code) which is otherwise treated as an Annual Addition.

7. The following Sections are hereby deleted as obsolete, without replacement: Section 8.3, Section 8.4(B), (C), (D), and (J).

8. Section 14.4(A) of the Plan is hereby amended by adding a new subparagraph (5) at the end thereof to read in its entirety as follows:

(5) This Section 14.4(A)(5) shall be effective as of January 1, 2003. For purposes of Section 14.4(A)(1), the value of a Participant's vested Accounts shall be determined without regard to that portion of the Accounts that is attributable to rollover contributions (and earnings allocable thereto) within the meaning of Sections 402(c), 403(a)(4), 403(b)(8), 408(d)(3)(A)(ii), and 457(e)(16) of the Code. If the value of the vested Accounts as so determined is \$5,000 or less, the Plan shall immediately distribute the Participant's entire vested Accounts.

9. Effective for distributions made after December 31, 2001, Section 14.5(B)(1) of the Plan is hereby amended by adding the following two paragraphs at the end thereof to read in their entirety as follows:

Any amount that is distributed on account of hardship shall not be an eligible rollover distribution and the distributee may not elect to have any portion of such a distribution paid directly to an eligible retirement plan.

A distribution shall not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions which are not includible in gross income. However, such portion may be transferred only to an individual retirement account or annuity described in Section 408(a) or (b) of the Code, or to a qualified defined contribution plan described in Section 401(a) or 403(a) of the Code that agrees to separately account for amounts so transferred, including separately accounting for the portion of such distribution which is includible in gross income and the portion of such distribution which is not so includible.

10. Effective for distributions made after December 31, 2001, Section 14.5(B)(2) of the Plan is hereby amended by adding the following paragraph at the end thereof to read in its entirety as follows:

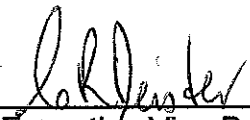
An eligible retirement plan shall also mean an annuity contract described in Section 403(b) of the Code and an eligible plan under Section 457(b) of the Code which is maintained by a state, political subdivision of a state, or any

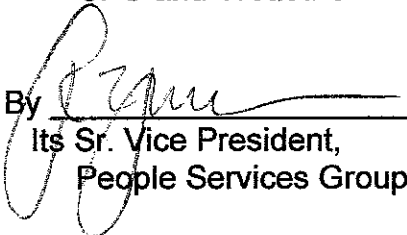
agency or instrumentality of a state or political subdivision of a state and which agrees to separately account for amounts transferred into such plan from this Plan. The definition of eligible retirement plan shall also apply in the case of a distribution to a surviving spouse, or to a spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Code.

This Amendment 3 to the Plan is adopted to reflect certain provisions of the Economic Growth and Tax Relief Reconciliation Act of 2001 (hereinafter "EGTRRA"). This Amendment 3 is intended as good faith compliance with the requirements of EGTRRA and is to be construed in accordance with EGTRRA and guidance issued thereunder. Except as otherwise provided, this amendment shall be effective as of January 1, 2002 and shall supersede the provisions of the Plan to the extent those provisions are inconsistent with the provisions of this Amendment 3.

IN WITNESS WHEREOF, Hawaiian Airlines, Inc. and the Air Line Pilots Association, International, by the signatures of their duly authorized representatives, have executed this amendment this ____ day of _____, 2002.

FOR HAWAIIAN AIRLINES, INC.

By 
Its Executive Vice President,
CFO and Treasurer

By 
Its Sr. Vice President,
People Services Group

FOR THE AIR LINE PILOTS IN
THE SERVICE OF
HAWAIIAN AIRLINES, INC.

By _____
Duane E. Woerth, President

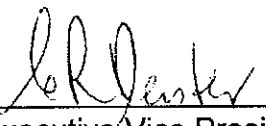
By 
Ronald C.K. Hoopai, Chairman

agency or instrumentality of a state or political subdivision of a state and which agrees to separately account for amounts transferred into such plan from this Plan. The definition of eligible retirement plan shall also apply in the case of a distribution to a surviving spouse, or to a spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Code.

This Amendment 3 to the Plan is adopted to reflect certain provisions of the Economic Growth and Tax Relief Reconciliation Act of 2001 (hereinafter "EGTRRA"). This Amendment 3 is intended as good faith compliance with the requirements of EGTRRA and is to be construed in accordance with EGTRRA and guidance issued thereunder. Except as otherwise provided, this amendment shall be effective as of January 1, 2002 and shall supersede the provisions of the Plan to the extent those provisions are inconsistent with the provisions of this Amendment 3.

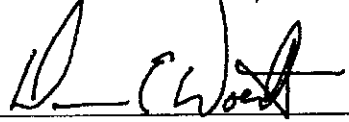
IN WITNESS WHEREOF, Hawaiian Airlines, Inc. and the Air Line Pilots Association, International, by the signatures of their duly authorized representatives, have executed this amendment this 20 day of December, 2002.

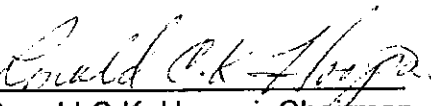
FOR HAWAIIAN AIRLINES, INC.

By 
Its Executive Vice President,
CFO and Treasurer

By 
Its Sr. Vice President,
People Services Group

FOR THE AIR LINE PILOTS IN
THE SERVICE OF
HAWAIIAN AIRLINES, INC.

By 
Duane E. Woerth, President

By 
Ronald C.K. Hoopai, Chairman

AMENDMENT 4 TO
HAWAIIAN AIRLINES, INC.
PILOTS' 401(k) PLAN

In accordance with Section 21.6 of the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (hereinafter the "Plan"), the Plan is hereby amended in the following respects:

1. Effective as of January 1, 2004, Section 4.1(A) of the Plan is hereby amended by adding the following paragraph at the end thereof:

Notwithstanding the prior paragraph of this Section 4.1(A):

(i) for periods after January 1, 2004, the maximum percentage set forth in the prior sentence shall be 50%, provided that in no case shall the amount contributed to the Plan for any pay period exceed the amount of Compensation for such pay period that remains after such Compensation has been reduced by withholdings and deductions that are given priority by the Company's payroll program; and

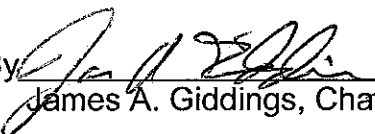
(ii) any election received on or prior to December 15, 2003 shall be effective as of January 1, 2004.

4. Effective as of January 1, 2003, the Plan is hereby amended by adding a new Appendix 3 at the end thereof to read in its entirety as the Appendix 3 attached hereto.

IN WITNESS WHEREOF, Hawaiian Airlines, Inc. and the Air Line Pilots Association, International, by the signatures of their duly authorized representatives, have executed this amendment this 19th day of November, 2003.

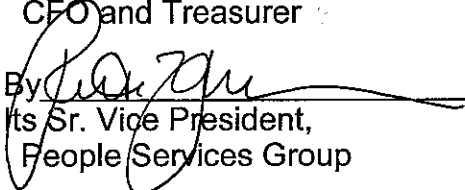
FOR THE AIR LINE PILOTS IN
THE SERVICE OF
HAWAIIAN AIRLINES, INC.

By _____
Duane E. Woerth, President

By  _____
James A. Giddings, Chairman

FOR HAWAIIAN AIRLINES, INC.

By _____
Its Executive Vice President,
CFO and Treasurer

By  _____
Its Sr. Vice President,
People Services Group

APPENDIX 3
MINIMUM DISTRIBUTION REQUIREMENTS

Section 1. General Rules.

(a) Effective Date. The provisions of this Appendix 3 shall apply for purposes of determining required minimum distributions for calendar years beginning with the 2003 calendar year.

(b) Precedence. The requirements of this Appendix 3 shall take precedence over any inconsistent provisions of the Plan, including Appendix 1.

(c) Requirements of Treasury Regulations Incorporated. All distributions required under this Appendix 3 shall be determined and made in accordance with the Treasury regulations under Section 401(a)(9) of the Code.

Section 2. Time and Manner of Distribution.

(a) Required Beginning Date. The Participant's entire interest shall be distributed, or begin to be distributed, to the Participant no later than the Participant's required beginning date.

(b) Death of Participant Before Distributions Begin. If the Participant dies before distributions begin, the Participant's entire interest shall be distributed, or begin to be distributed, no later than as follows:

(1) If the Participant's surviving spouse is the Participant's sole designated beneficiary, then distributions to the surviving spouse shall begin by December 31 of the calendar year immediately following the calendar year in which the Participant died, or by December 31 of the calendar year in which the Participant would have attained age 70 1/2, if later.

(2) If the Participant's surviving spouse is not the Participant's sole designated beneficiary, then distributions to the designated beneficiary shall begin by December 31 of the calendar year immediately following the calendar year in which the Participant died.

(3) If there is no designated beneficiary as of September 30 of the year following the year of the Participant's death, the Participant's entire interest shall be distributed by December 31 of the calendar year containing the fifth anniversary of the Participant's death.

(4) If the Participant's surviving spouse is the Participant's sole designated beneficiary and the surviving spouse dies after the Participant but before distributions to the surviving spouse begin, this Section 2(b), other than Section 2(b)(1), shall apply as if the surviving spouse were the Participant.

For purposes of this Section 2(b) and Section 4, unless Section 2(b)(4) applies, distributions are considered to begin on the Participant's required beginning date. If Section 2(b)(4) applies, distributions are considered to begin on the date distributions are required to begin to the surviving spouse under Section 2(b)(1).

(c) Forms of Distribution. Unless the Participant's interest is distributed in the form of an annuity purchased from an insurance company or in a single sum on or before the required beginning date, as of the first distribution calendar year distributions shall be made in accordance with Sections 3 and 4 of this Appendix 3.

Section 3. Required Minimum Distributions During Participant's Lifetime.

(a) Amount of Required Minimum Distribution For Each Distribution Calendar Year. During the Participant's lifetime, the minimum amount that shall be distributed for each distribution calendar year is the lesser of:

(1) the quotient obtained by dividing the Participant's account balance by the distribution period in the Uniform Lifetime Table set forth in Section 1.401(a)(9)-9 of the Treasury regulations, using the Participant's age as of the Participant's birthday in the distribution calendar year; or

(2) if the Participant's sole designated beneficiary for the distribution calendar year is the Participant's spouse, the quotient obtained by dividing the Participant's account balance by the number in the Joint and Last Survivor Table set forth in Section 1.401(a)(9)-9 of the Treasury regulations, using the Participant's and spouse's attained ages as of the Participant's and spouse's birthdays in the distribution calendar year.

(b) Lifetime Required Minimum Distributions Continue Through Year of Participant's Death. Required minimum distributions shall be determined under this Section 3 beginning with the first distribution calendar year and up to and including the distribution calendar year that includes the Participant's date of death.

Section 4. Required Minimum Distributions After Participant's Death.

(a) Death On or After Date Distributions Begin.

(1) Participant Survived by Designated Beneficiary. If the Participant dies on or after the date distributions begin and there is a designated beneficiary, the minimum amount that shall be distributed for each distribution calendar year after the year of the Participant's death is the quotient obtained by dividing the Participant's account balance by the longer of the remaining life expectancy of the Participant or the remaining life expectancy of the Participant's designated beneficiary, determined as follows:

(i) The Participant's remaining life expectancy is calculated using the age of the Participant in the year of death, reduced by one for each subsequent year.

(ii) If the Participant's surviving spouse is the Participant's sole designated beneficiary, the remaining life expectancy of the surviving spouse is calculated for each distribution calendar year after the year of the Participant's death using the surviving spouse's age as of the spouse's birthday in that year. For distribution calendar years after the year of the surviving spouse's death, the remaining life expectancy of the surviving spouse is calculated using the age of the surviving spouse as of the spouse's birthday in the calendar year of the spouse's death, reduced by one for each subsequent calendar year.

(iii) If the Participant's surviving spouse is not the Participant's sole designated beneficiary, the designated beneficiary's remaining life expectancy is calculated using the age of the beneficiary in the year following the year of the Participant's death, reduced by one for each subsequent year.

(2) No Designated Beneficiary. If the Participant dies on or after the date distributions begin and there is no designated beneficiary as of September 30 of the year after the year of the Participant's death, the minimum amount that shall be distributed for each distribution calendar year after the year of the Participant's death is the quotient obtained by dividing the Participant's account balance by the Participant's remaining life expectancy calculated using the age of the Participant in the year of death, reduced by one for each subsequent year.

(b) Death Before Date Distributions Begin.

(1) Participant Survived by Designated Beneficiary. If the Participant dies before the date distributions begin and there is a designated beneficiary, the minimum amount that shall be distributed for each distribution calendar year after the year of the Participant's death is the quotient obtained by dividing the Participant's account balance by the remaining life expectancy of the Participant's designated beneficiary, determined as provided in Section 4(a).

(2) No Designated Beneficiary. If the Participant dies before the date distributions begin and there is no designated beneficiary as of September 30 of the year following the year of the Participant's death, distribution of the Participant's entire interest shall be completed by December 31 of the calendar year containing the fifth anniversary of the Participant's death.

(3) Death of Surviving Spouse Before Distributions to Surviving Spouse Are Required to Begin. If the Participant dies before the date distributions begin, the Participant's surviving spouse is the Participant's sole designated beneficiary, and the surviving spouse dies before distributions are required to begin to the surviving spouse under Section 2(b)(1), this Section 4(b) shall apply as if the surviving spouse were the Participant.

Section 5. Definitions.

(a) Designated beneficiary. The individual who is designated as the beneficiary under Section 2.6 of the Plan and is the designated beneficiary under Section 401(a)(9) of the Internal Revenue Code and Section 1.401(a)(9)-1, Q&A-4, of the Treasury regulations.

(b) Distribution calendar year. A calendar year for which a minimum distribution is required. For distributions beginning before the Participant's death, the first distribution calendar year is the calendar year immediately preceding the calendar year which contains the Participant's required beginning date. For distributions beginning after the Participant's death, the first distribution calendar year is the calendar year in which distributions are required to begin under Section 2(b). The required minimum distribution for the Participant's first distribution calendar year shall be made on or before the Participant's required beginning date. The required minimum distribution for other distribution calendar years, including the required minimum distribution for the distribution calendar year in which the Participant's required beginning date occurs, shall be made on or before December 31 of that distribution calendar year.

(c) Life expectancy. Life expectancy as computed by use of the Single Life Table in Section 1.401(a)(9)-9 of the Treasury regulations.

(d) Participant's account balance. The account balance as of the last valuation date in the calendar year immediately preceding the distribution calendar year (valuation calendar year) increased by the amount of any contributions made and allocated or forfeitures allocated to the account balance as of dates in the valuation calendar year after the valuation date and decreased by distributions made in the valuation calendar year after the valuation date. The account balance for the valuation calendar year includes any amounts rolled over or transferred to the Plan either in the valuation calendar year or in the distribution calendar year if distributed or transferred in the valuation calendar year.

(e) Required beginning date. The date specified in Section 5(D) of Appendix 1 of the Plan.

AMENDMENT 5 TO
HAWAIIAN AIRLINES, INC.
PILOTS' 401(k) PLAN

In accordance with Section 21.6 of the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (hereinafter the "Plan"), Section 4.4 of the Plan is hereby amended by adding a new paragraph (C) at the end thereof to read in its entirety as follows:

(C) The Employer shall contribute Employer Stock to the Plan in accordance with the Letter of Agreement (and any amendments thereto) between the Employer and the Association dated _____, 2005, a copy of which is attached as Appendix 3 to the Plan. Such contributions shall be allocated to Participants and shall be made at such times and in such manner as shall be determined under said Letter of Agreement (and any amendments thereto).

This Amendment 5 to the Plan shall be effective as of the effective date of Hawaiian Airlines, Inc.'s exit from bankruptcy reorganization in 2005.

IN WITNESS WHEREOF, Hawaiian Airlines, Inc. and the Air Line Pilots Association, International, by the signatures of their duly authorized representative, have executed this amendment this _____ day of _____, 2005.

FOR HAWAIIAN AIRLINES, INC.

FOR THE AIR LINE PILOTS IN THE
SERVICE OF HAWAIIAN AIRLINES, INC.

By _____
Its _____

By _____
Duane E. Woerth, President

By _____
Its _____

By _____
Kirk McBride, MEC Chairman

By _____
Captain James Giddings,
Negotiating Committee Chairman

AMENDMENT 6 TO
HAWAIIAN AIRLINES, INC.
PILOTS' 401(k) PLAN

In accordance with Section 21.6 of the Hawaiian Airlines, Inc. Pilots' 401(k) Plan (hereinafter the "Plan"), the Plan is hereby amended in the following respects:

1. Section 14.4(A)(1) of the Plan is hereby amended to read in its entirety as follows:

(1) If a Participant terminates service and the value of his Accounts does not exceed \$1,000, the Participant shall receive a distribution of the value of his Accounts. If a Participant would have received a distribution under the preceding sentence but for the fact that his vested Accounts exceeded \$1,000 when he terminated service and if at a later time such Accounts are reduced such that it is not greater than \$1,000, the Participant shall receive a distribution of such Accounts. For purposes of this Section 14.4(A)(1), if the value of a Participant's Accounts is zero, the Participant shall be deemed to have received a distribution of his Accounts.

2. The first sentence of Section 14.4(A)(2) of the Plan is hereby amended to read in its entirety as follows:

If the value of a Participant's Accounts exceeds \$1,000 and the Accounts are immediately distributable, the Participant must consent to any distribution of his Accounts.

This Amendment 6 to the Plan shall be effective as of March 28, 2005.

IN WITNESS WHEREOF, Hawaiian Airlines, Inc. and the Air Line Pilots Association, International, by the signatures of their duly authorized representatives, have executed this amendment this 7th day of March, 2005.

FOR HAWAIIAN AIRLINES, INC.

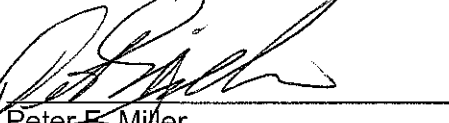
By 
Its Executive Vice President/CFO

By 
Its Senior Vice President
Human Resources

FOR THE AIR LINE PILOTS IN THE
SERVICE OF HAWAIIAN AIRLINES, INC.

By 
Duane E. Woerth, President

By 
Kirk McBride, MEC Chairman

By 
Peter F. Miller,
Pension Committee Chairman

ORIGINAL

**HAWAIIAN AIRLINES, INC.
PILOTS' VOLUNTARY EMPLOYEE BENEFICIARY ASSOCIATION
DISABILITY AND SURVIVORS' BENEFITS PLAN**

Effective: June 1, 2005

HAWAIIAN AIRLINES, INC.
PILOTS' VOLUNTARY EMPLOYEE BENEFICIARY ASSOCIATION
DISABILITY AND SURVIVORS' BENEFITS PLAN

Effective as of June 1, 2005, Hawaiian Airlines, Inc. hereby establishes this long term disability plan and trust for the purpose of providing Pilots who are covered by the Plan with a source of income during a period of significant illness or injury. The Hawaiian Airlines, Inc. Pilots' Voluntary Employee Beneficiary Association Disability and Survivors' Benefits Plan (the "Plan") and trust is intended to be a voluntary employees' beneficiary association ("VEBA") and to meet the requirements of sections 501(a) and 501(c)(9) of the Internal Revenue Code of 1986, as amended.

The Plan supersedes the disability provisions of the Retirement Plan for Pilots of Hawaiian Airlines, Inc. (the "Retirement Plan") and will cover all disabilities which arise from illness or injuries that occur on or after June 1, 2005. Disabilities caused from illness or injuries which arose before June 1, 2005 will continue to be paid from the Retirement Plan.

ARTICLE I

DEFINITIONS

1.1 Effective Date

The Plan is effective as of June 1, 2005.

1.2 Plan Definitions

As used herein, the following words and phrases have the meanings hereinafter set forth, unless a different meaning is plainly required by the context:

"Active Service" means those periods during which the individual is in active payroll status with the Employer, including those periods during which the employee has been granted a leave of absence from the Employer to perform Association business.

"Administrator" means the Retirement Board or such other person or committee as may be appointed from time to time by the Retirement Board to administer the provisions of the Plan.

"Agreement" means the Hawaiian Airlines Pilots' Working Agreement as in effect between the Employer and the Association as it may be amended from time to time.

"Association" means the Air Line Pilots Association, International.

"Average Monthly Earnings" means for a Participant who is working as a pilot for the Employer, the regular gross earnings of a Participant in the most recent, but not necessarily consecutive, twelve months prior to commencement of Benefits where the Participant received at least seventy-five (75) hours of pay as a pilot with Active Service, divided by twelve (12). Earnings will not include: (i) Company reimbursed expenses, except that Company reimbursed meal pay as reported on Treasury Form W-2 will be included, or (ii) Company contributions to any benefit plan. Earnings will include any salary reductions authorized by the Participant, which are not includible in the Participant's gross income under Section 125, 402(e)(3), 402(h), 403(b), and 132(f)(4) of the Code. Earnings covering certain periods of pay such as retroactive pay, back pay, lump sums, or other payments will be allocated to the payroll periods for the months to which they would have applied.

Annual Earnings of each Member taken into account for determining Benefits provided under the Plan for any Plan Year shall not exceed the annual compensation limit in effect under Section 401(a) (17) of the Code, as adjusted for cost-of-living in accordance with Section 401(a)(17)(B) of the Code.

If a determination period consists of fewer than 12 months, the annual Earnings limit shall be an amount equal to the otherwise applicable annual compensation limit multiplied by a fraction, the numerator of which shall be the number of months in the short determination period and the denominator of which shall be 12.

If Earnings for any prior determination period shall be taken into account in determining a Member's benefits for the current Plan year, the Earnings for such prior determination period shall be subject to the applicable annual Earnings limit in effect for that prior period.

"Benefit" means the monthly disability income benefit which a Participant, who is determined to be Disabled in accordance with Section 4.2, will be entitled to receive under the Plan. The amount of such monthly benefit will be determined in accordance with Article III of the Plan.

"Benefit Waiting Period" is the later of: (i) the period beginning on the first date of injury or illness and ending on the 90th day thereafter, or (ii) the date on which the OCC benefit is exhausted.

"Code" means the Internal Revenue Code of 1986, as amended from time to time. Reference to a section of the Code will include such section and any comparable section or sections of any future legislation that amends, supplements, or supersedes such section.

"Disability" or **"Disabled"** for purposes of the Plan means the inability of a Participant to maintain or exercise the privileges of the FAA medical certificate required by the FAA to be maintained for his/her job position or category due to a medically determinable physical or mental condition, but excluding the following:

- (a) An intentionally self-inflicted injury, provided such injury is not the result of an underlying and disabling medical or psychiatric disorder;
- (b) An injury incurred while actively participating in a riot;
- (c) An injury while engaged in the commission of an act which results in a conviction for a serious felony;
- (d) An injury or illness while in the service of the armed forces of any country, or as a result of war, declared or undeclared, except:
 - (i) during the performance of service for the Employer;
 - (ii) service in the U.S. National Guard or Reserves, except for Employees on long-term military leaves exceeding six (6) months; and
- (e) An injury or illness while on a leave of absence and employed as a pilot at another airline.

"Employee" means any individual with Active Service in the employ of the Employer as a pilot, who is listed on the Pilots System Seniority List as of the Effective Date or thereafter.

"Employer" means Hawaiian Airlines, Inc., any subsidiary, affiliate, or successor thereto and any surviving corporation resulting from any merger or consolidation of Hawaiian Airlines, Inc. with any other corporation.

"ERISA" means the Employee Retirement Income Security Act of 1974, as amended from time to time. Reference to a section of ERISA includes such section and any comparable section or sections of any future legislation that amends, supplements, or supersedes such section.

"Management Pilot" means a pilot who is employed by the Employer in a non-flying or supervisory duty status, and who is a party to an agreement with the Employer and the Association in accordance with Section 8.A of the Agreement.

"Month of Service" means any month in which a person completes and receives remuneration for one hour of Service with the Employer, regardless of whether or not that service is rendered to the Employer as a pilot.

"OCC" means the Employer's Occupational Injury Pay, as described in Section 14 C and D of the Agreement.

"Participant" means any Employee who satisfies the eligibility requirements set forth in Article II of the Plan.

"Plan" means the Hawaiian Airlines, Inc. Pilots' Voluntary Employee Beneficiary Association Disability and Survivors' Benefits Plan as amended from time to time.

"Plan Year" means for calendar year 2005, the period between June 1, 2005 to December 31, 2005, and thereafter the calendar year.

"Qualified Health Professional" means a person who is a member of a category of licensed health professionals, including but not limited to: physician, surgeon, osteopath, chiropractor, and psychiatrist, as well as any other category of professional designated from time to time by the Retirement Board.

"Retirement Board" means the Retirement Board as established pursuant to terms of the Agreement.

"Retirement Plan" means the Retirement Plan for Pilots of Hawaiian Airlines, Inc. as amended from time to time.

"Service" means the period of time when an employee is employed by the Employer as an employee in any capacity. Service does not include periods of time on layoff or furlough for which the employee is not compensated.

"Spouse" means a Participant's lawful partner in marriage, or a domestic partner as recognized by the laws of the state or country where the marriage or domestic partnership was contracted.

"Trust" means the 501(c)(9) trust established with the Trustee, or any successor thereto.

"Trustee" means Bank of Hawaii, or any successor Trustee thereto.

"Year of Service" means twelve (12) Months of Service.

1.3 Interpretation

Wherever used herein, the masculine pronoun will include the feminine, the singular will include the plural, and the plural will include the singular.

ARTICLE II

ELIGIBILITY

2.1 Eligibility to Participate

Each Employee will become a Participant in the Plan beginning on the first date upon which he/she completes one hour of service as a pilot.

2.2 Termination of Eligibility

An Employee will cease to be a Participant in the Plan upon the date on which the Participant (i) terminates employment for any reason, including retirement, furlough, or death, (ii) begins work for the Employer, other than as a pilot or Management Pilot, or (iii) ceases to be an Employee. If a Participant who is receiving Benefits hereunder ceases to be an Employee as a result of transferring directly from active or on-leave payroll status to pension benefit commencement, he/she will continue to be a Participant in the Plan.

2.3 Reemployment

A person who has terminated employment, or is furloughed, will again become a Participant in the Plan on the date he/she is reemployed as a pilot for the Employer, or returned from furlough.

ARTICLE III

BENEFITS UNDER THE PLAN

3.1 Benefits Payable Under the Plan

(a) Calculation. A Participant will be paid a monthly Benefit corresponding to the percentage of Average Monthly Earnings, depending on the Participant's Years of Service at the time the injury or illness commences, which results in the Disability, according to the following:

<u>Full Years of Service</u>	<u>Percentage of Average Monthly Earnings</u>
10 or more	50%
9	45%
8	40%
7	35%
6	30%
5	25%
4	20%
3	15%
2	10%
Less than 2	0%

(b) Limitation. Notwithstanding the above, the amount of the Benefit will be limited to not more than an Employee's projected normal retirement benefit under the Retirement Plan in effect prior to June 1, 2005. In the event that Trust funds to fund the Benefits hereunder are insufficient to pay all promised benefits, each Participant's Disability Benefit shall be reduced prorata, and the Retirement Board will consult with the Hawaiian Airlines, Inc. MEC and provide recommendations to the MEC as to how to deal with the shortfall.

(c) Coordination with Sick Leave and Vacation Leave. A Disabled Participant who has less than ten (10) years of Service may increase his/her pay during the period of Disability up to 50% of his/her Average Monthly Earnings by using accrued sick leave hours in order to increase his/her Disability pay above the Benefit otherwise payable under Section 3.1(a). Such increase shall continue until the Disabled Participant's accrued sick leave is exhausted.

Any Disabled Participant may increase his/her pay during the period of Disability up to or above 50% of his/her Average Monthly by using accrued vacation leave hours in order to increase Disability pay above the dollar amount of Benefit otherwise payable under Section 3.1(a). Such increase shall continue until the Disabled Participant's accrued vacation leave is exhausted.

Any such election must be made within twenty (20) days of the date the Retirement Board notifies the Disabled Participant that the Retirement Board has pursuant to Article IV determined that he/she is eligible for Benefits. Such election shall be made on a form approved by the Retirement Board that requires the Disabled Participant to elect the number of months over which the accrued sick leave hours or accrued vacation leave hours or both shall be paid. Such payments shall to the extent possible be made in monthly installments.

This Section 3.1(c) shall be effective as of such date as the Employer's payroll system can effect such elections on an acceptable automated basis acceptable to the Employer. The Employer in its sole discretion shall determine whether its payroll system can effect such elections on an acceptable automated basis, and if so, the effective date after which such elections may be made.

(d) Surviving Spouse Benefits. If a Participant dies while receiving a Benefit, the Plan will pay a Surviving Spouse Benefit to the Participant's surviving Spouse commencing as of the first day of the month following the Participant's death. The Surviving Spouse Benefit will be equal to fifty percent (50%) of the Benefit payable to the Participant and will be paid during the life of the surviving Spouse. The Surviving Spouse Benefit may also be reduced in the event Trust funds are insufficient to pay promised Benefits.

3.2 Commencement of Benefits

Unless the Participant elects a later commencement date, Benefits payable hereunder will commence to the Participant on the first day following the end of the Benefit Waiting Period. Benefits will be paid monthly. If Benefits are payable for any period of time which is less than one full month, the Benefit payable for such period of time will be proportionately reduced. If the Participant's benefit determination is not complete prior to the end of the Benefit Waiting Period, Benefits will commence to the Participant as soon as administratively possible and will be retroactive to the first day following the end of the Benefit Waiting Period after the Participant is determined to be Disabled.

If a Participant who returns to Active Service as an Employee with the Employer sustains a reoccurrence of the original Disability within twelve (12) months after his/her return to Active Service, such Participant will not be subject to a new Benefit Waiting Period, and Benefits will re-commence as soon as administratively possible; provided, however, that the Benefits will be retroactive to the date of the reoccurrence of the Disability. Benefits will be calculated using the same Average Monthly Earnings in effect prior to the Participant's original Disability.

If a Participant who returns to Active Service as an Employee with the Employer sustains a reoccurrence of the original Disability more than twelve (12) months after the Participant has returned to work, or if a Participant sustains a new Disability in accordance with Section 4.2 of the Plan, Benefits will not commence until the first day following the end of a new Benefit Waiting Period. Benefits will be calculated using the Participant's Average Monthly Earnings in effect just prior to the commencement of the new Benefit Waiting Period.

3.3 Payment of Benefits to Incapacitated Participant

If a Participant is not competent to make a request for Benefits hereunder, and if no request has been received from a duly appointed guardian or other legally appointed representative of such Participant, the Retirement Board may, in its discretion, direct payment of any Benefits due hereunder to such individual or institution which has assumed custody or principal support of the Participant.

3.4 Cessation of Benefits

Benefits payable hereunder will cease upon the earliest of the following:

- a) the date the Participant returns to active performance of duties as an Employee;
- b) the date the Participant is no longer Disabled as determined in accordance with Section 4.3 of the Plan;
- c) the date the Participant is no longer under the regular care of a Qualified Health Professional, unless the Retirement Board determines that continued care by a Qualified Health Professional is no longer required, based on the nature of the condition;
- d) the date the Retirement Board determines the Participant is employed as an air line pilot;
- e) the date which is two (2) years from the date the Disability commenced, if the Disability is due to substance abuse, unless the Participant is enrolled in program that complies with the FAA rules for recertification;
- f) the Participant's death, and if a Surviving Spouse Benefit is paid pursuant to Section 3.1(d) of the Plan, the Surviving Spouse's death; and
- g) if the Board determines that the Participant has not furnished the required information pursuant to Section 4.4 of the Plan.

3.5 Offsets to Benefits

Disability benefits will be offset, dollar for dollar, by the following:

- a) OCC/Workers' Compensation;
- b) the annuity equivalent actuarial value of actual amounts contributed by the Company after June 1, 2005 (except for amounts contributed under the Stock Allocation Agreement) and earnings thereon under all defined contribution plans of the Employer qualified under Section 401(a) of the Code, at the time the pilot chooses to begin to receive taxable distributions from such benefits, but not in a direct rollover or a taxable distribution of a plan loan, or when he/she has reached Age 62, whichever is earlier;

- c) the actual benefit payments under the Retirement Plan, at the time actually paid (except that any lump sum payment of the Member Contribution Account balance will be converted to its annuity equivalent amount and the annuity equivalent will be used as an offset instead of the lump sum); and
- d) the annuity equivalent described in paragraph (b) above will be calculated based on an interest rate assumption of 7.0% and
 - (i) the offset amount will be calculated in accordance with Exhibit 1 to the Plan based on a notional account balance as if the Company contributions had been invested in the S&P 500 Index Fund (i.e., the offset is based on the notional investment performance, not the actual investment performance);
 - (ii) mortality table will be GAR-94 projected to 2002 Unisex.

ARTICLE IV

APPLICATION FOR BENEFITS

4.1 Application

The Participant must make an application for Benefits hereunder in accordance with the administrative procedures established by the Retirement Board. The Participant must provide the Administrator with such information and evidence, and must sign such documents, as may reasonably be requested. In the event the Board determines that a Participant's application is incomplete, the Board must specifically state or request what information is necessary to perfect the Participant's claim.

4.2 Determination of Eligibility for Benefits

The determination of a Participant's eligibility for Benefits hereunder will be made as follows:

- a) The Retirement Board will make all initial determinations with respect to the Participant's claim for Benefits hereunder on the basis of the evidence submitted by the Participant's Qualified Health Professional with respect to the Participant's Disability. If the Retirement Board determines on the basis of the evidence submitted by the Participant's Qualified Health Professional that the Participant is Disabled for purposes of receiving Benefits hereunder, the Participant's application for Benefits will be approved. The Retirement Board will provide the results of such determination to the Participant in writing.
- b) If the Retirement Board, in its discretion, determines that there is insufficient evidence to conclude that the Participant is Disabled for purposes of receiving benefits hereunder, the Retirement Board may require the Participant to submit to a medical examination by a Qualified Health Professional who will conduct such an examination. If such Qualified Health Professional concludes that the Participant is not disabled for purposes of receiving Benefits hereunder, the Retirement Board will deny the Participant's application for Benefits under the Plan. The Retirement Board will provide the results of such determination to the Participant in writing.
- c) If the Retirement Board, in its discretion, determines that there is insufficient evidence to conclude that the Participant is Disabled for purposes of receiving Benefits hereunder, but does not require the Participant to submit to a medical examination as described in (b) above, the Retirement Board will request such additional information as necessary to make a determination.

If the Retirement Board fails to reach a majority opinion with respect to whether the Participant is Disabled for purposes of receiving Benefits under the Plan, the matter will

be submitted to an impartial neutral individual selected by the members of the Retirement Board as set forth in the Agreement. The decision of such individual will be final and binding.

4.3 Request for Information

Prior to Age 60, and in order to continue to receive Disability Benefits, a Participant must respond to all Retirement Board requests for information within thirty (30) days, or provide an explanation of why the information cannot be furnished within thirty (30) days, satisfactory to the Retirement Board. The Retirement Board may require a Participant receiving Benefits under the Plan:

- (a) To provide evidence of continuing Disability;
- (b) To continue reasonable regular care by a Qualified Health Professional that is appropriate to the cause of the Participant's Disability, for the purpose of restoring the Participant's valid airman medical certificate, unless such care involves undue risk or involves an unreasonably invasive procedure;
- (c) To disclose any employment as an air line pilot;
- (d) To disclose monies received that may offset Disability Benefits pursuant to Section 3.5 of the Plan; or
- (e) To provide such other information as requested by the Retirement Board.

The Retirement Board will generally require the evidence described above, unless the Retirement Board determines that such information is no longer necessary or useful, based on the nature of the condition.

4.4 Failure to Provide Required Documentation

Benefits hereunder may be terminated if the Participant (i) fails to provide evidence of continuing Disability as required by Section 4.3 of the Plan, (ii) provides materially false documentation to the Retirement Board, or (iii) fails to provide other documentation as may be required by the Retirement Board.

4.5 Recoupment of Erroneous Payments and Overpayments

In the event of an erroneous payment or overpayment of a Benefit by the Plan, the Participant will return to the Plan the erroneous or excess amount. The Retirement Board will attempt to recoup the erroneous or excess payment from the Participant and may reduce the correct amount of future payments to recover the erroneous or excess payments, in the time and manner and with interest at rate determined by the Retirement Board. The Plan may to the maximum extent permitted by law, apply the remedy of set off, garnishment, and other collection remedies to receive the erroneous or excess amount (plus any interest).

ARTICLE V

ADMINISTRATION

5.1 The Retirement Board

(a) The Retirement Board will hear, determine, and resolve all disputes which may arise out of the application, interpretation, or administration of the Plan and the Trust, and with respect to the Trustee or insurers utilized in connection with the Plan, and concerning the participation in or benefits under the Plan with respect to all Participants. The Retirement Board will not have any power to add to or subtract from or modify any terms of the Plan. The Retirement Board will have the power to establish rules of procedure for the conduct of its business and of hearings before it, which rules will not be inconsistent with the provisions of the Agreement.

(b) The Retirement Board will consist of four (4) members, the Employer will select two (2) members, and the Association will select two (2) members. The Employer will establish its own rules for the selection of the members of the Retirement Board to be selected by it, and the Association will likewise establish its own rules for the selection of the members of the Retirement Board to be selected by it. The Employer will also select one (1) alternate member who may act for either of the two (2) members of the Retirement Board appointed by the Employer in the event of the absence or inability to act of one (1) of such members, and the Association will likewise select one (1) alternate member who may act for either of the two (2) members of the Board appointed by the Association in the event of the absence or inability to act of one (1) of such members. Either the Employer or the Association at any time may remove a member appointed by it and may select a member to fill any vacancy among the members selected by it. Both the Employer and the Association will, in writing, notify each other respectively concerning such selections, which will continue until further written notice.

(c) Three members of the Retirement Board will constitute a quorum for the transaction of business. At all Retirement Board meetings, Employer members present will be entitled to one (1) vote each and Association members present will be entitled to one (1) vote each. If at any such meeting two (2) Employer members are not present, the Employer member present may cast two (2) votes, and if two (2) Association members are not present, the Association member present may cast two (2) votes.

(d) The Retirement Board will have the authority to appoint subcommittees from among the members of the Retirement Board to handle any problem within the jurisdiction of the Retirement Board. Such subcommittee will report exclusively to the Retirement Board.

(e) The compensation, travel, and other reasonable living expenses, if any, of members of the Retirement Board selected by the Employer that are incidental to the holding of such meetings and performing functions of the Board will be paid by the Employer. The compensation, travel, and other reasonable living expenses, if any, of members of the Retirement Board selected by

the Association that are incidental to the holding of such meetings and performing of the Board will be paid by the Association.

(f) All decisions and actions taken of the Retirement Board will be by the affirmative vote or agreement of not less than three (3) members and will be in writing. All decisions of the Retirement Board will be final and binding on the Employer, the Association, and any other person having an interest in, under or derived from the Plan.

(g) If the Retirement Board fails to agree on any matter or dispute coming before it, it will, within ten (10) days from the date of such failure to agree, designate an Impartial Referee. If the Retirement Board does not agree upon the selection of an Impartial Referee within such ten (10) day period, then either the Employer or the Association may apply to the National Mediation Board for the designation by such Board of an Impartial Referee. The matter or dispute will be submitted to such Board sitting with the Impartial Referee who will act as Chairman during the proceedings pertaining to such matter. Such Impartial Referee will have one (1) vote. Three affirmative votes will be required to render a decision or determination on matters coming before the Retirement Board sitting together with the Impartial Referee.

(h) The compensation and expenses of the Impartial Referee and expenses incident to the conduct of the proceedings coming before the Retirement Board will be shared equally between the Employer and the Association.

(i) Meetings of the Retirement Board may be called by mutual agreement of the members at any time without notice or by any two (2) members of the Retirement Board. Such meetings will be conducted at the Employer's offices unless otherwise agreed to by the members of the Board.

(j) The Retirement Board will be the "named" fiduciary as that term is defined in Section 402(a)(2) of ERISA.

5.2 Review Functions

The Retirement Board will have the following rights and review functions:

(a) To examine, during normal business hours, all books, records, reports, regulations, and procedures relative to the Plan, including but not limited to Trustee and insuring company instruments; amendments; annual reports filed with the Department of Labor and Internal Revenue Service; actuarial, Trustee, and insuring companies' reports for the Plan and Trust; and all Plan accounting, and related data.

(b) The Employer, the Trustee, the record keeper, and any insuring company, as the case may be, will furnish to the Association members of the Retirement Board and the Association all records and materials requested by it, within thirty (30) days from the date on which such

material may have been prepared or compiled, and in any case, annual reports filed with the Department of Labor and Internal Revenue Service; actuarial, Trustee, and insuring companies' reports for the Plan and Trust will be furnished to the Association members of the Retirement Board and the Association not less frequently than once each year. The Association members of the Board may request and will be entitled to receive additional material and data relating to the foregoing.

(c) The Retirement Board will review the status and administration of the Plan, insurance contracts, agreements, and Trust funds, and in the appropriate case make recommendations to the Employer, the Association, the Trustees, and any insurance company, or record keeper, and the member thereon. The Retirement Board will prepare periodic reports with respect to its functions, actions, and decisions and supply the same to the Employer and the Association.

5.3 Reliance on Data

The Retirement Board and any members thereof will be entitled to rely upon the correctness of any information furnished by the Employer and the Association. Neither the Retirement Board, nor any of its members, nor the Association, nor any officers or other representatives of the Employer will be liable because of any act or failure to act on the part of the Board or any of its members, except that nothing herein will be deemed to relieve any such individual from liability for his/her own fraud or bad faith.

5.4 Claims Review Procedure

Whenever a claim for benefits under the Plan filed by any employee (herein referred to as the "Claimant") is denied, whether in whole or in part, the Retirement Board will transmit a written notice of such decision to the Claimant within 90 days of the date the claim was filed or, if special circumstances require an extension, within 180 days of such date, which notice will be written in a manner calculated to be understood by the Claimant and will contain a statement of (i) the specific reasons for denial of the claim; (ii) specific references to pertinent Plan provisions on which the denial is based; and (iii) a description of any additional material or information necessary for the Claimant to perfect the claim, an explanation of why such material or information is necessary, and a statement advising the Claimant that, within 60 days of the date on which he/she receives such notice, he/she may obtain review of such decision, in accordance with the procedures hereinafter set forth.

Within such 60-day period, the Claimant or his/her authorized representative may request that the claim denial be reviewed by filing with the Retirement Board a written request therefore, which request will contain the following information:

- a) the date on which the Claimant's request was filed with the Retirement Board;
- b) the specific portions of the denial of his/her claim which the Claimant requests the Retirement Board to review;

- c) a statement by the Claimant setting forth the basis upon which he believes the Retirement Board should reverse the previous denial of his/her claim for benefits and accept his/her claim as made; and
- d) any written material (offered as exhibits) which the Claimant desires the Retirement Board to examine in its consideration of his/her position as stated pursuant to clause (c) above.

Within 60 days of the date on which the Claimant's request was filed with the Retirement Board, the Retirement Board will conduct a full and fair review of the decision denying the Claimant's claim for Benefits hereunder and will furnish its written decision on review to the Claimant. If the Retirement Board requests an additional examination which requires the Participant to travel or to incur expenses not covered by a medical plan or insurance, the Plan will reimburse the Participant for all such reasonable expenses, as permitted by law. The Retirement Board's decision will be final and binding.

If the Retirement Board cannot resolve the issue on the basis of the evidence presented and the Retirement Board determines an oral hearing is required, said hearing may be held at the next regular meeting of the Retirement Board, or at such earlier date as the Retirement Board may agree upon. The Retirement Board will notify the Claimant of its decision in writing.

If the Retirement Board fails to reach a majority opinion, the matter will be submitted to an impartial neutral individual selected by the members of the Retirement Board as set forth in the Agreement. The decision of such individual will be final and binding.

The timeframes described above will begin to toll once the Participant's application, exams, and supplemental information have been completed and sent to the Retirement Board.

ARTICLE VI

FUNDING

6.1 Funding of Plan

Benefits under the Plan will be paid from the Trust and/or provided through a group insurance contract as determined by the Retirement Board. The Retirement Board will have the sole right to select an insurance company or other providers, to remove an insurance company or other provider, to select successors, and to determine the form and terms of all applicable agreements and contracts. Notwithstanding the foregoing, the Employer will contribute to the Trust \$1,350,000 per full calendar year, with such amount to be adjusted annually on each January 1 beginning with January 1, 2006 (but not below \$1,350,000) in proportion to the number of active pilots who are covered by the Plan (using the number of active pilots as of January 1, 2005, which number is 288, as the baseline, and the number of active pilots covered by the Plan as of January 1 of each succeeding year to determine the adjustment for that year). Notwithstanding the foregoing, the Employer contribution for 2005 will equal \$1,350,000 multiplied by a fraction, the numerator of which is the number of days in 2005 after June 1, 2005 (i.e., 214) and the denominator of which is 365. The Employer contribution for 2005 will be made no later than June 1, 2005, except as agreed between the Employer and the Association. Employer contributions for succeeding years will be made no later than the first business day after January 1 of each year (e.g., the contribution for 2006 will be made no later than January 3, 2006). To the extent the actuary appointed by the Retirement Board for the Plan determines that less than \$1,350,000 per year is required to provide benefits under the Plan, in lieu of contributing the excess amount to the Trust, such excess may be used as the Association directs. To the extent the actuary appointed by the Retirement Board for the Plan determines that more than \$1,350,000 per year is required to provide benefits under the Plan, the Employer will share 50% of the additional contributions, up to total combined Employer and Association annual contributions of \$1.7 million (prorated for 2005 based on the effective date of the Agreement). The \$1.7 million threshold will also be adjusted annually (but not decreased below \$1.7 million) in proportion to the number of active pilots who are covered by the Plan (using the number of active pilots as of January 1, 2005, as the baseline and the number of active pilots covered by the Plan as of January 1 of each succeeding year to determine the adjustment for that year).

6.2 Establishment of a Trust Agreement

The Employer, the Association, and the Retirement Board will execute a Trust agreement with the Trustee to manage and operate a Trust fund and to receive, hold, invest, and reinvest contributions made under this Plan, together with interest and other income, and to pay the benefits provided under the Plan.

6.3 Investment of Funds

The Trust funds administered by the Trustee may be invested in each and every kind of property authorized for the investment of the corpus of the trust fund of a voluntary employees' beneficiary association exempt from Federal income taxation pursuant to sections 501(a) and 501(c)(9) of the Code; provided, however, in no event will the Trust fund be directly invested in property and/or equity of the Employer or any of its affiliates or subsidiaries.

6.4 Removal of the Trustee

The Retirement Board may, in accordance with the applicable provisions of the Trust Agreement, at any time, remove the Trustee and designate a successor Trustee to serve under the Trust Agreement.

6.5 Plan Expenses

The initial setup costs of the Plan and Trust will be paid by the Employer up to \$30,000. In the event the cost of establishing the Plan and Trust exceeds \$30,000, such costs will be paid by the Trust, if permitted by ERISA. Thereafter, the Employer will pay the actuary's fees and the cost of administering the Plan up to \$10,000 per year. Any additional or other costs will be borne by the Trust, except if otherwise prohibited by law. Investment advisory and management fees will be paid by the Trust. Any calculations involving the Retirement Plan will be completed by the actuary for the Retirement Plan, as per current practice or by the Employer, and will not be an expense of the Plan or Trust.

ARTICLE VII

AMENDMENT AND TERMINATION

7.1 Amendment

The Employer and the Association may at any time, and from time to time, amend the Plan, in writing, either prospectively or retroactively; provided, however, that any such amendment may not affect in any way the amount or terms of benefits accrued prior to the date of such action, or cutback, alter, or modify any rights provided for in the Agreement. Any such amendment will be by written instrument executed by the Employer, the Association, and the Retirement Board.

7.2 Termination

The Employer may, with the prior written approval of the Association, terminate the Plan at any time. On or after the effective date of the termination, no further Benefits hereunder will be payable to or on behalf of any Participant as to whom such termination applies.

ARTICLE VIII
MISCELLANEOUS

8.1 Expenses

The expenses of administration of the Plan will be borne by the Employer, except as otherwise provided in the Agreement and Section 6.5 of the Plan.

8.2 Assignment

The Benefits payable hereunder are provided exclusively for the support and benefit of such Participant and his/her surviving Spouse, if any. No benefit payable at any time under the Plan will be subject in any manner to alienation, sale, transfer, assignment, pledge, attachment, garnishment, or encumbrance of any kind. Any attempt to alienate, sell, transfer, assign, pledge, or otherwise encumber any such benefit, whether presently or thereafter payable, will be void. Neither the Plan, the Trust Fund, nor any insurance company will be in any way liable for or subject to the debts or liabilities of any Participant.

8.3 Validity of the Plan

Except as preempted by ERISA, the validity of the Plan will be determined, and the Plan will be construed and interpreted in accordance with applicable Hawaii law. The invalidity or illegality of any provision of the Plan will not affect the legality or validity of any other part thereof.

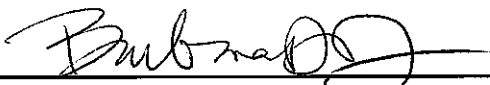
EXECUTED at Honolulu, HI, December 9, 2005, effective as of the 1st day of June, 2005.

HAWAIIAN AIRLINES, INC.

By:  _____

Peter Ingram

Its: Executive Vice President & Chief Financial Officer

By:  _____

Barbara Falvey

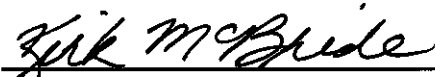
Its: Senior Vice President, Human Resources

AIR LINE PILOTS ASSOCIATION, INTERNATIONAL

By:  _____

Duane Weerth

Its: President

By:  _____

Kirk McBride

Its: MEC Chairman

By:  _____

James Giddings

Its: MEC Negotiating Chairman

Exhibit 1

A compounded average rate of return for the S&P 500 Index Fund will be used to calculate earnings on the contributions. Under this method, the rate of return for the S&P 500 Index Fund will first be determined for each year or portion of a year (hereinafter "Period").

The aggregate amounts of the contributions for each Period will be assumed to be made at the mid-point of such Period. Such contributions will initially earn one-half of the rate of return of the Period. In the following Period, the previously-made contributions will earn the rate of return for the S&P 500 Index Fund for the whole Period, on a compounded basis.

Example: If for Period 1 the contribution for Participant A is \$100 and the rate of return in Period 1 is 10%, the earnings credit for the contribution for Period 1 will be \$5.00, calculated as follows:

$$\$100.00 \times 10\% \times 50\% = \$5.00$$

Thus the value of the contribution and the earnings credit at the end of Period 1 would total \$105.

If for Period 2 the contribution for Participant A is \$150 and the rate of return for the S&P 500 Index Fund in Period 2 is 14%, the earnings credit for the contributions for Periods 1 and 2 will be calculated as follows:

$$(\$105.00 \times 14\%) + (150.00 \times 14\% \times 50\%) = \$14.70 + \$10.50 = \$25.20$$

The value of the contributions and the earnings credit at the end of the Period 2 would total \$280.20 (\$105.00 + \$150.00 + \$25.20).

AMENDMENT 2 TO THE
HAWAIIAN AIRLINES, INC.
PILOTS' VOLUNTARY EMPLOYEE BENEFICIARY ASSOCIATION
DISABILITY AND SURVIVORS' BENEFITS PLAN

The Hawaiian Airlines, Inc. Pilots' Voluntary Employee Beneficiary Association Disability and Survivors' Benefits Plan (the "Plan"), originally effective as of June 1, 2005, is hereby amended, pursuant to Article 7.1 of the Plan as follows:

1. Effective as of January 1, 2014, Paragraph (b) of Section 3.5, Offsets to Benefits, of the Plan is hereby amended in its entirety, to read as follows:

"(b) the annuity equivalent actuarial value of actual amounts contributed by the Company after June 1, 2005 (except for amounts contributed under the Stock Allocation Agreement) and earnings thereon under all defined contribution plans of the Employer qualified under Section 401(a) of the Code, at the time the pilot choses to begin to receive taxable distributions from such benefits, but not in a direct rollover or a taxable distribution of a plan loan, or when he/she has reached Age 65, whichever is earlier;"

2. Effective as of January 1, 2014, Paragraph (c) of Section 3.5, Offsets to Benefits, of the Plan is hereby amended in its entirety, to read as follows:

"(c) the normal form of Pension benefit payments as described under Section 9.1 under the Retirement Plan, including any benefit payments to an Alternate Payee under the terms of Section 21 under the Retirement Plan adjusted for early commencement if applicable, but without regard for differences in expected lifetime, at the time actually paid to the Participant or Alternate Payee, or when the Participant has reached Age 65, whichever is earlier (except that any lump sum payment of the Member Contribution Account balance will be converted to its annuity equivalent amount and the annuity equivalent will be used as an offset instead of the lump sum) irrespective of the actual optional form of benefit payment actually elected under the Retirement Plan; and"

3. Effective as of January 1, 2014, the first sentence of Section 4.3, Request for Information, of the Plan is hereby amended in its entirety, to read as follows:

"Prior to Age 65, and in order to continue to receive Disability Benefits, a Participant must respond to all Retirement Board requests for information within thirty (30) days, or provide an explanation of why the information cannot be furnished within thirty (30) days, satisfactory to the Retirement Board."

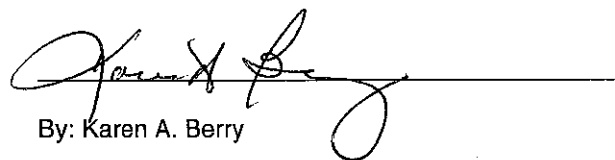
IN WITNESS WHEREOF, the Company and the Association have executed this Amendment 2 on this 3rd day of April, 2014.

Hawaiian Airlines, Inc. (the "Company")



By: Barbara Falvey

Its: Senior Vice President



By: Karen A. Berry

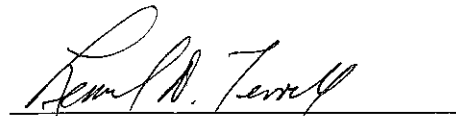
Its: Vice President Labor and Employee Relations

Air Line Pilots Association, International (the "Association")



By: Captain Donald Lee Moak

Its: President



By: Captain Lem Terrell

Its: Chairman, Hawaiian Master Executive Council

**AMENDMENT TO THE
HAWAIIAN AIRLINES, INC.
PILOTS' VOLUNTARY EMPLOYEE BENEFICIARY ASSOCIATION
DISABILITY AND SURVIVORS' BENEFITS PLAN**

The Hawaiian Airlines, Inc. Pilots' Voluntary Employee Beneficiary Association Disability and Survivors' Benefits Plan (the "**Plan**"), originally effective as of June 1, 2005, is hereby amended, as follows:

Effective as of January 1, 2012, Paragraph (c) of Section 3.5, Offsets to Benefits, of the Plan is hereby amended in its entirety, to read as follows:

"(c) the normal form of Pension benefit payments as described under Section 9.1 under the Retirement Plan, at the time actually paid (except that any lump sum payment of the Member Contribution Account balance will be converted to its annuity equivalent amount and the annuity equivalent will be used as an offset instead of the lump sum) irrespective of the actual optional form of benefit payment actually elected under the Retirement Plan; and."

This amendment is executed on Dec 20, 2012

HAWAIIAN AIRLINES, INC.

By: _____

Barbara D. Falvey

Its: Sr. Vice President, Human Resources

By: _____

Karen A. Berry

Its: Vice President, Labor Relations

AIR LINE PILOTS ASSOCIATION, INTERNATIONAL

By: _____

Captain Lee Moak

Its: President

By: _____

Captain Richard A. Horne

Its: MEC Chairman

By: _____

Captain James A. Giddings

Its: MEC Negotiating Chairman

AMENDMENT 2 TO THE

HAWAIIAN AIRLINES, INC.
PILOTS' VOLUNTARY EMPLOYEE BENEFICIARY ASSOCIATION
DISABILITY AND SURVIVORS' BENEFITS PLAN

The Hawaiian Airlines, Inc. Pilots' Voluntary Employee Beneficiary Association Disability and Survivors' Benefits Plan (the "Plan"), originally effective as of June 1, 2005, is hereby amended, pursuant to Article 7.1 of the Plan as follows:

1. Effective as of January 1, 2014, Paragraph (b) of Section 3.5, Offsets to Benefits, of the Plan is hereby amended in its entirety, to read as follows:

"(b) the annuity equivalent actuarial value of actual amounts contributed by the Company after June 1, 2005 (except for amounts contributed under the Stock Allocation Agreement) and earnings thereon under a defined contribution plans of the Employer qualified under Section 401(a) of the Code, at the time the pilot chooses to begin to receive taxable distributions from such benefits, but not in a direct rollover or a taxable distribution of a plan loan, or when he/she has reached Age 65, whichever is earlier;"

2. Effective as of January 1, 2014, Paragraph (c) of Section 3.5, Offsets to Benefits, of the Plan is hereby amended in its entirety, to read as follows:

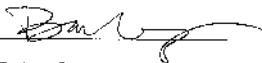
"(c) the normal form of Pension benefit payments as described under Section 9.1 under the Retirement Plan, including any benefit payments to an Alternate Payee under the terms of Section 21 under the Retirement Plan adjusted for early commencement if applicable, but without regard for differences in expected lifetime, at the time actually paid to the Participant or Alternate Payee, or when the Participant has reached Age 65, whichever is earlier (except that any lump sum payment of the Member Contribution Account balance will be converted to its annuity equivalent amount and the annuity equivalent will be used as an offset instead of the lump sum) irrespective of the actual optional form of benefit payment actually elected under the Retirement Plan; and"

3. Effective as of January 1, 2014, the first sentence of Section 4.3, Request for Information, of the Plan is hereby amended in its entirety, to read as follows:

"Prior to Age 65, and in order to continue to receive Disability Benefits, a Participant must respond to all Retirement Board requests for information within thirty (30) days, or provide an explanation of why the information cannot be furnished within thirty (30) days, satisfactory to the Retirement Board."

IN WITNESS WHEREOF, the Company and the Association have executed this Amendment 2 on this 3rd day of April, 2014.

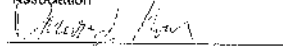
Hawaiian Airlines, Inc. (the "Company")



By: Barbara Falvey

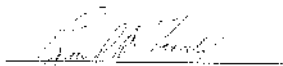
Its: Senior Vice President

Air Line Pilots Association, International (the "Association")



By: Captain Donald Lee Moak

Its: President



By: Captain Lem Terrell

Its: Chairman, Hawaiian Master Executive Council



By: Karen A. Berry

Its: Vice President Labor and Employee Relations

AMENDMENT 3

to the

HAWAIIAN AIRLINES, INC.
PILOTS' VOLUNTARY EMPLOYEE BENEFICIARY ASSOCIATION
DISABILITY AND SURVIVORS' BENEFITS PLAN

The Hawaiian Airlines, Inc. Pilots' Voluntary Employee Beneficiary Association Disability and Survivors' Benefits Plan (the "Plan"), originally effective as of June 1, 2005, is hereby amended, pursuant to Article 7.1 of the Plan as follows:

1. Effective April 1, 2017, the second paragraph of the definition of "Average Monthly Earnings" in Section 1.2, Plan Definitions, is amended by adding the following sentence at the end thereof:

"The cost-of-living adjustment in effect for a calendar year shall apply to Annual Earnings for the determination period that begins with or within such calendar year."

2. Effective April 1, 2017, Paragraph (a) of Section 3.1, Benefits Payable Under the Plan, is hereby amended in its entirety, to read as follows:

"(a) **Calculation.** A Participant will be paid a monthly Benefit corresponding to the percentage of Average Monthly Earnings, depending on the Participant's age or Years of Service at the time of the injury or illness commences, whichever produces the greatest percentage, in accordance with the following schedule:

Age	Years of Service	Percent of Average Monthly Earnings
49 and older	10 or more	50%
48	9	45%
47	8	40%
46	7	35%
45	6	30%
44	5	25%
43	4	20%
42	3	15%
41	2	10%
40	Less than 2	0%

3. Effective April 1, 2017, Paragraph (b) of Section 3.5, Offsets to Benefits, is hereby amended in its entirety, to read as follows:

"(b) the annuity equivalent actuarial value of actual amounts contributed by the Company after June 1, 2005 (except for amounts contributed under the Stock Allocation Agreement), and earnings thereon, under all defined contribution plans of the Employer qualified under Section

401(a) of the Code, calculated in accordance with Exhibit 1 as of the date the pilot reaches age 65.”

4. Effective April 1, 2017, Paragraph (d) of Section 3.5, Offsets to Benefits, is hereby amended in its entirety, to read as follows:

“(d) the annuity equivalent described in paragraph (b) above will be calculated based on an interest rate assumption of 7%, and

- (i) Effective as of April 1, 2017, the offset amount will be calculated in accordance with Exhibit 1 to the Plan based on a notional account balance as if the Company contributions had earned 7% investment return (i.e., the offset is based on the notional investment performance, not the actual investment performance) on contributions both before and after this effective date; and
- (ii) Mortality table will be GAR-94 projected to 2002 Unisex.”

5. Effective April 1, 2017, Section 6.1, Funding of Plan, is amended by adding the following sentence at the end thereof:

“Effective April 1, 2017, the Employer contribution shall be made annually on each January 15.”

6. Exhibit 1 of the Plan is hereby amended in its entirety to read as follows:

“Exhibit 1

A compounded rate of return of 7% will be used to calculate earnings on the contributions for each year or portion of a year (hereinafter called “Period”).

The aggregate amount of the contributions for each Period will be assumed to be made at the mid-point of such Period. Such contributions will earn 3.5% in the initial Period. In the following Period, the previously made contributions will earn 7% for the whole Period, on a compounded basis.

Example: If for Period 1 the contribution for Participant A is \$100, the earnings credit for the contribution for Period 1 will be \$3.50, calculated as follows:

$$\$100.00 \times 3.5\% = \$3.50$$

Thus, the value of the contribution and the earnings credit at the end of Period 1 would total \$103.50.

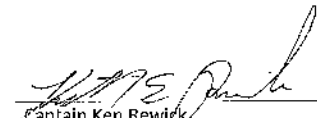
If for Period 2 the contribution for Participant A is \$150, the earnings credit for the contributions for Period 1 and Period 2 will be calculated as follows:

$$(\$103.50 \times 7\%) + (\$150.00 \times 3.5\%) = \$7.25 + \$5.25 = \$12.50$$

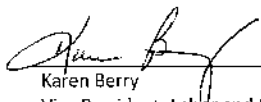
The value of the contributions and the earnings credit at the end of Period 2 would total \$266 (\$103.50 + \$150 + \$12.50).”

IN WITNESS WHEREOF, the Company and the Association have executed this Amendment 3 on this 19
day of June, 2017.

FOR HAWAIIAN AIRLINES, INC.:

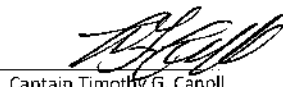


Captain Ken Rewick
Vice President, Flight Operations



Karen Berry
Vice President, Labor and Employee
Relations

FOR THE
AIRLINE PILOTS ASSOCIATION,
INTERNATIONAL:



Captain Timothy G. Canoll
President of the Air Line Pilots
Association, International



Captain Hoon Lee
Chairman, HAL Master Executive
Council



First Officer Douglas Grant
Chairman, HAL Negotiating Committee